United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 114th CONGRESS, FIRST SESSION

Vol. 161 WASHINGTON, TUESDAY, JULY 14, 2015 *No. 109*

House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. CURBELO of Florida).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
July 14, 2015.

I hereby appoint the Honorable CARLOS CURBELO to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 6, 2015, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

SUPPORT FOR UKRAINE AND GEORGIA

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. ROSKAM) for 5 minutes.

Mr. ROSKAM. Mr. Speaker, ladies and gentlemen of the House, we ought not bet against Ukraine and Georgia.

I recently returned from a bipartisan delegation of the House Democracy Partnership that visited Ukraine and Georgia over the Fourth of July recess. Our purpose was to reflect this body to those parliamentary bodies in Ukraine and Georgia.

I—and I know the other members of the House Democracy Partnership—came away with a feeling of encouragement and a feeling of gratitude for the tenacity and very seriousness with which the Ukrainians and the Georgians are pursuing freedom.

These are two nations that desperately want to be in the orbit of the West. They desperately want to be a part of the EU; they desperately want to be a part of NATO, and they are doing everything they can to stiff-arm and push back from the aggression of Vladimir Putin. They need our help; they need our encouragement, and they need our support.

It is said that there are some who look at this as the front line of the rising voices against authoritarianism, and I think that is true. We have got to do everything we can in this body not only to provide the economic support and other support that these countries need, but also to do everything we can to push the administration to do the right thing as well.

TRANSPORTATION FUNDING

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, this is a big day on Capitol Hill. The Iranian agreement has been signed. Hopefully, we will all have a chance to study it and think through the implications of this historic event, but the legislative clock is ticking down on another area. We have only 10 legislative days left this month before we face another transportation funding cliff.

The expectation now is that there will be a 34th short-term transportation extension that we have faced since our last, meaningful 6-year reauthorization. People are scrambling for another short-term funding source to keep us going for the next few months that targets, presumably, $8 billion to $11 billion to get us through the end of the year.

This is actually worse than no solution at all because it perpetuates the uncertainty, the crisis mentality, the inability of State and local governments that rely on this Federal partnership to supply approximately one-half of the capital expenditures for our surface transportation.

This uncertainty comes at a time when our bridges, roads, and transit systems are all in serious areas of disrepair. We are desperately in need of bigger, longer-term projects.

It is a myth that somehow we can't afford to take action. The public is paying now hundreds of dollars a year in damage to each of their vehicles, costs far in excess of a few cents a day for a gas tax increase.

American commuters and businesses are suffering over $120 billion a year in costs related to congestion, costs directly related to inadequate infrastructure. People are tying themselves in knots when there is a simple, obvious solution.

As pointed out in a delightful op-ed in The Washington Post on July 9, we should simply follow Ronald Reagan's example and fill up America's highway trust fund.

They ask how the famously tax-cutting conservative President raised the Federal user fee—the gas tax—on motor fuels 125 percent. While he was concerned about general taxation, he was absolutely comfortable with having user fees cover specific costs like the fuel tax for aviation or inland waterway fees.

He worked with Republicans in Congress, who demonstrated significant support for user fee increases. He then gave his Secretary of Transportation, Drew Lewis, free hand to lay the groundwork.

Finally, when he decided to support a gas tax increase, his Department of Transportation swung into action, as did Ronald Reagan himself. He gave an eloquent speech November 29, 1982, on

Printed on recycled paper.

Thanksgiving Day, calling on Congress to come back into session and approve the gas tax increase.

We have the opportunity for such leadership today. My proposed gas tax increase, H.R. 680, is supported by all the major interest groups: unions, the Chamber of Commerce, truckers, AAA, transit, local government, environmentalists, engineers, and contractors.

The same approach has been used in 20 States since 2012 to raise transportation revenues. Six States have raised the gas tax already this year, six red Republican States. It is simple. My bill would provide the money necessary to actually pass a 6-year bill. It would be sustainable so we wouldn't be back in the same pickle in a year, 2 years, or 5 years.

Finally, it is dedicated so people can count upon it to implement the steps necessary to rebuild and renew America's infrastructure.

It is time to stop temporizing, and it is time to act. Filling the highway trust fund with borrowed money inadequate to do the job but enough to avoid responsibility is not a solution that we can be proud of, especially when America is ready and Ronald Reagan pointed the way.

AFTER 45 SEASONS, 50 CONSECUTIVE WINS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Minnesota (Mr. EMMER) for 5 minutes.

Mr. EMMER of Minnesota. Mr. Speaker, I rise today to recognize and congratulate St. Cloud Cathedral High School baseball coach Bob Karn on being named not only the Regional Coach of the Year, but also the Diamond National Coach of the Year, by the American Baseball Coaches Association.

Under Coach Karn's direction, the Crusaders have won 50 consecutive games, and this year, they celebrated their second straight State title. These impressive statistics are nothing new for Coach Karn. Karn has coached a total of 45 seasons, and under his leadership, Cathedral has a record of 736–237 and nine State championships.

Coach Karn, you have made a lasting impact on the lives of your players, and they will no doubt use all you have taught them wherever they go. Your team, your school, and your community have all benefited from your leadership.

Thank you so much for everything that you do. Keep up the excellent work, and best of luck next season.

ACCOUNTABLE REGULATION, NOT MORE REGULATION

Mr. EMMER of Minnesota. Mr. Speaker, I rise today in support of the REINS Act.

In my time in Congress, one message I consistently hear at home is Washington is not listening to the people. Unelected, nameless bureaucrats continue to impose harmful and burdensome regulation on the American people.

In total, compliance with Federal regulation costs $1.8 trillion a year. These regulations are devastating to small business and cost American families nearly $15,000 a year.

Using the REINS Act, the new Congress has stepped up to the plate. Under the REINS Act, major rules from Federal agencies would require congressional approval before enactment. Through Congress, the American people would have up to 70 days to view a major rule before it is ever called for a vote. To prevent long legal challenges, courts are allowed to ensure agencies have adhered to all necessary requirements before final implementation.

Finally, the REINS Act allows for Congress to disapprove of any minor rule, thus holding this administration accountable and protecting against a runaway Federal Government.

I am a proud cosponsor of the REINS Act, which restores the democratic process in favor of those who originally formed our government, the people.

I ask my colleagues to join me in supporting this vital legislation.

TRANSPORTATION IS OUR FUTURE

Mr. EMMER of Minnesota. Mr. Speaker, transportation is the key to the future economic growth of my district and our Nation.

For years, the Federal highway trust fund has run deficits and fostered an environment of waste and frivolous spending. This week, Congress is poised to pass another short-term fix. While I applaud the efforts of Chairmen RYAN and SHUSTER, my constituents need long-term answers and solutions to the transportation gridlock and congestion that stifles growth and expansion.

Projects in my district, such as Interstate 94, which is one of the most congested corridors in the region, are slowing development and cost commuters valuable time and money while they are stuck in traffic. U.S. Highway 10 has become such an issue that cities are placing moratoriums on new business development.

Mr. Speaker, this is a travesty, and my constituents have every right to be frustrated. I call upon this body to work to pass a long-term funding bill and give our constituents the certainty they deserve in their transportation system.

ONE OF ST. CLOUD'S FINEST IS ONE OF THE WORLD'S STRONGEST

Mr. EMMER of Minnesota. Mr. Speaker, I rise today to recognize St. Cloud's own Nick Tylutki for his second-place finish at the International Powerlifting Federation World Championship in Salo, Finland.

This past year, after topping 108 competitors, Nick won the national title and a ticket to the world championship in Finland. With eight previous world championships under his belt, Nick finished higher than ever before, coming just shy of completing a 744-pound deadlift for the gold.

In addition to his successful powerlifting career, Nick is also a St. Cloud police officer and SWAT team operator. As a child, Nick dreamed of becoming a police officer, and that dream was realized 7 years ago when he joined the St. Cloud police force.

I congratulate Nick on his impressive silver medal at the world championship, and I thank him for his service as one of St. Cloud's finest.

MARKING THE OCCASION OF THE ''NEW HORIZONS'' SPACECRAFT REACHING PLUTO

The SPEAKER pro tempore. The Chair recognizes the gentleman from Massachusetts (Mr. NEAL) for 5 minutes.

Mr. NEAL. Mr. Speaker, I rise this morning to mark the occasion of the *New Horizons* spacecraft reaching Pluto.

New Horizons launched on January 19, 2006, and since 2007, has been traveling steadily at 30,000 miles per hour. This morning, at approximately 7:49:57 a.m., the *New Horizons* spacecraft rendezvoused with Pluto, three billion miles away from Earth. Having just passed Pluto this morning, *New Horizons* will continue on in the Kuiper belt.

Standing here as the spacecraft just passed Pluto, I take great pride in noting that a Massachusetts astronomer helped in the discovery of its existence. While Clyde Tombaugh formally discovered Pluto, it was Boston astronomer Percival Lowell's calculations that led the way. The P and the L that make the astronomical symbol for Pluto serve as a testament to Lowell's part in the discovery of this small planet.

Lowell's contribution to astronomy also stands today with the establishment of the Lowell Observatory located in Flagstaff, Arizona. Percival Lowell inspired countless generations with his advocacy of astronomy, and more than 80,000 visitors each year go through the doors of the observatory.

I am certainly proud to have known Lowell's descendants, the Putnam family, for years; and I admire their continued advocacy of the Lowell Observatory.

□ 1015

New Horizons is the first in the ''New Frontiers'' series, inspired by another son of Massachusetts, President John Kennedy, who said about the need to explore space: ''We set sail on this new sea because there is a new knowledge to be gained, new rights to be won, and they must be won and used for the progress of all people.''

President Kennedy's support of our Nation's first space program set us on course for hope and optimism for our future.

New Horizons' accomplishment this morning, along with other initiatives such as the International Space Station, which I am very proud to say that I supported and recall that in this institution, the space station survived by

one vote at a precarious time in our history. It serves today as a strong reminder of the continued importance of space exploration and the very smart people that are drawn to this initiative.

I also want to close by saying that I would hope that we might remind ourselves of the optimism of the Kennedy years and the space exploration program which Kennedy highlighted and helped to inaugurate but which he never got to see many of the benefits of, a sentiment that all Members of Congress should grasp, and that is that the candidate who offers the best sense of optimism for the future is generally the candidate that prevails. During the course of a campaign when one makes arguments on behalf of a particular initiative, we are also to understand that it is part of forming a government. So optimism becomes infectious in our political system when embraced properly.

I hope today, as we celebrate this remarkable achievement of *New Horizons* and just the thought that that spacecraft travels at 30,000 miles per hour and the fact, at 3 billion miles from Earth, America's science, achievement, and initiative have once again prevailed in this world, that we will continue to support these space initiatives and embrace the notion and the role that science plays in our lives.

Thank you Percival Lowell, and thank you President John Kennedy.

CUT ILLEGAL ALIEN LABOR SUPPLY THAT COSTS AMERICAN JOBS AND SUPPRESSED INCOMES

The SPEAKER pro tempore. The Chair recognizes the gentleman from Alabama (Mr. BROOKS) for 5 minutes.

Mr. BROOKS of Alabama. Mr. Speaker, yesterday Democrat Presidential candidate Hillary Clinton unveiled her economic program stating: ''The defining economic challenge of our time is clear. We must raise incomes for hard-working Americans so they can afford a middle class life. We must drive strong and steady income growth that lifts up families''; and, ''The measure of our success must be how much incomes rise for hard-working families.''

Clinton concluded that: ''If you work hard and do your part, you should be able to get ahead. But over the past several decades, that bargain has eroded.''

Hillary Clinton identifies the problem and goals; however, I submit her trickle-down Federal Government dictates solution, while splendid rhetoric, misses the target entirely.

What changed over the past several decades that eroded the American dream?

Three decades ago, America gave amnesty to millions of illegal aliens. That amnesty beget millions and millions in more illegal aliens. This illegal alien tsunami has done more to take jobs from and suppress wages of struggling American families than anything else over the past three decades.

The Pew Hispanic Center established in 2009 that American workers lost 7.8 million job opportunities to illegal aliens. A more recent FAIR study estimates Americans lost 8.5 million job opportunities to illegal aliens.

Economic studies reveal that wage suppression caused by the surge in cheap, illegal alien labor costs American high school graduates an estimated $800 per year and America's low-skilled labor an estimated $2,300 per year in income. But it is not just illegal alien labor that undermines American opportunity and the American Dream for American citizens.

America's generous legal immigration policy created a second tsunami of legal foreign labor that doubles the economic damage to struggling American families. Census Bureau, Homeland Security, and Labor Department data offers a startling and sobering insight for Americans in the 16–65 age bracket.

While the American economy created 5.6 million net new jobs in the 16–65 age bracket over the past 14 years, American-born citizens lost 127,000 net jobs. All net job gains and more went to illegal and legal immigrants. While American-born citizens lost 127,000 jobs, foreign-born persons gained 5.7 million jobs.

Worse yet, when you factor in population growth, there were 17 million more Americans in the 16–65 age bracket not working in 2014 than in 2000.

Contrary to the propaganda of amnesty and open border proponents and their media allies, immigrants gained across the labor market in lower skilled jobs, such as maintenance, construction, and food service, and middle skilled jobs, like office support and healthcare support, and higher skilled jobs, including management, computers, and healthcare practitioners.

The propaganda that immigrants only do jobs Americans won't do is not supported by fact. Immigrants gained jobs while Americans lost jobs in each of the following high-paying industries: architecture, engineering, transportation and material moving, office and administrative support.

Further, American-born citizens of all major races lost ground. The percentage of working African Americans dropped 9.2 percentage points; Hispanic Americans dropped 7.7 percentage points; Caucasian Americans dropped 6.1 percentage points.

In a dig at Jeb Bush, Clinton added that Americans ''don't need a lecture, they need a raise.''

Mr. Speaker, Hillary Clinton is right. America does not need lectures. America needs solutions. And the number one job and economic solution for Americans is securing America's borders and implementing a rational immigration policy that reflects economic conditions and protects American jobs and American wages for struggling American families.

CENTRAL PENNSYLVANIA FESTIVAL OF THE ARTS

The SPEAKER pro tempore (Mr. COSTELLO of Pennsylvania). The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, this past weekend, over 125,000 people flocked to Pennsylvania's Fifth District to attend the 49th annual Central Pennsylvania Festival of the Arts, affectionately known as Arts Fest.

Every July, people gather in State College, Pennsylvania, to enjoy works of art, live music, and great foods. Arts Fest is home to one the Nation's premier outdoor fine art and craft shows, and hosts over 300 exhibitors.

Now, these artists, ranging from international talent to local artists, display a wide variety of art that fits any and all interests. Live musical performances also take place throughout the weekend at a number of venues.

Arts Fest strives to instill an interest and appreciation of the arts in the area's youth through performances for young people by young people.

Mr. Speaker, as co-chairman of the Congressional Art Competition, I rise in strong support of the arts, and it is my honor to recognize all the volunteers and the staff who did such a great job of putting on this year's Central Pennsylvania Festival of the Arts.

STOP IRAN DEAL

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. DESANTIS) for 5 minutes.

Mr. DESANTIS. Mr. Speaker, Congress, at this juncture, has one overriding task, and that is to stop President Obama's capitulation to Iran. Make no mistake, this is less a deal than it is a list of concessions to the world's leading state sponsor of terrorism. And there is a reason why you see smiles on the ayatollahs in Tehran and Javad Zarif in Vienna.

Congress should stop this deal because it gives billions of dollars to the Iranian regime, which Iran will use to foment jihad and terrorism throughout the Middle East. Congress should stop this deal because it validates Iran's entire nuclear infrastructure—no dismantling, not even Iran's underground nuclear bunker at Fordo, which has no rational peaceful purpose.

Indeed, Iran is crossing all of President Obama's red lines. President Obama had said you could not have Fordo, he said you could not have a plutonium reactor in Iraq. He said you could not have advanced centrifuges because there is no peaceful purpose for any of those, and yet this final deal validates each and every one of those pieces of Iran's nuclear arsenal.

Congress should stop this deal because it removes sanctions from Iran's Quds force and its commander, Qasem Soleimani, who are responsible for killing hundreds of American soldiers in

Iraq. And indeed, when I served in Iraq, Iran was responsible for killing more Americans than even al Qaeda in Iraq.

Why reward those with American blood on their hands by lifting sanctions on them?

Congress needs to stop this deal because it stabs our allies in the back, most notably, our trusted ally Israel. Iran threatens to wipe Israel off the map and refers to Israel as a one-bomb country.

Congress needs to stop this deal because the inspections are not snap inspections. Indeed, the inspections depend on Iran allowing the inspections, and there is an entire bureaucracy set up so that even if you end up getting approval, Iran will have the ability to remove their offending conduct and conceal it before the inspectors see it.

The bottom line is that this deal does not dismantle Iran's nuclear infrastructure. The deal empowers Iran. It makes the world less safe by paving Iran's path to the bomb.

It is a time for choosing in this House. Congress must act swiftly and decisively and reject this capitulation. This deal cannot stand.

THE PRESIDENT'S FOREIGN POLICY SCORECARD

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. WALKER) for 5 minutes.

Mr. WALKER. Mr. Speaker, the President's foreign policy has been disastrous for more than 6 years. If you are keeping score at home on this deal with Iran, feel free to add another major error in the box score, labeled, ''The Failed Obama Doctrine.''

President Obama's insistence on force-feeding a deal with Iran is troubling. The unrelenting attempt to boost his legacy has created a gross lack of discernment. The President and his State Department have left a trail of detrimental decisions with deteriorating relationships throughout the world.

How can we forget the President's blurred red lines in demanding that Syria's Assad end his human rights violation? After the President drew his line in the sand, Assad responded with the bombing of hospitals and the use of chemical weapons against his own people.

The President has failed to show any initiative or strategy and has consistently attempted to lead from behind. Meanwhile, of all people, Russia's Vladimir Putin was the one who intervened in this international crisis.

Speaking of Putin, the President's posture with Putin has been pitiful.

Of course, it was President Obama who mocked Presidential candidate Mitt Romeny's 1980s concern of Russia being a threat. Maybe it is time President Obama revisited Ronald Reagan's foreign policy of the 1980s.

Wasn't it Vice President JOE BIDEN that claimed the President's work in Iraq would be one of the greatest achievements of this administration?

Syria, Russia, Benghazi, Iraq, ISIS, and we are supposed to be excited about a deal with the world's leader in state-sponsored terrorism. All the while, we have given the cold shoulder to Israel, our greatest ally in the Middle East for generations, as we have listened to, over the weekend, shouts from Iran, ''Death to Israel. Death to America.''

The great majority of Americans had hoped that our President would find the strength to increase the sanctions on Iran rather than remove them and surrender control of inspections to Iran. As a Member of Congress, I will stand against any agreement that doesn't completely strip Iran of all nuclear capability.

While we are at it, Mr. President, maybe it is time to stop ignoring the imprisonment of Saeed Abedini, Jason Rezaian, Bob Levinson, and Amir Hekmati, our four Americans in Iran. Both the House and the Senate have showed compassion and strength demanding these Americans return home to their families. Saeed has been held for over 1,000 days while his children plead for his release.

I agree with the President when he exclaimed: ''We should always do everything in our power to bring these Americans home safe.''

Mr. President, it is time to honor the commitment you have made to these men, these families, and to all Americans.

□ 1030

May I close with the words of the Prime Minister of Israel in agreeing that this is ''a mistake of historic proportion.''

The SPEAKER pro tempore. Members are reminded to direct their remarks to the Chair.

HONORING THE LIFE OF KENTUCKY STATE TROOPER ERIC K. CHRISMAN OF LAWRENCEBURG, KENTUCKY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Kentucky (Mr. BARR) for 5 minutes.

Mr. BARR. Mr. Speaker, I rise today to celebrate the life and to note the recent passing of Kentucky State Trooper Eric K. Chrisman of Lawrenceburg, Kentucky.

On June 23, Trooper Chrisman was killed in the line of duty during a vehicle collision while responding to a distress call. Trooper Chrisman was 23 years old and had served on the force for only 6 months.

The fact that in this year alone 64 law enforcement officers have already been killed while serving in the line of duty gives great testament to the dangers and challenges officers face every single day.

Inscribed on the National Law Enforcement Officers Memorial are the words, ''Carved on these walls is the story of America, of a continuing quest to preserve both democracy and decency, and to protect a national treasure that we call the American Dream.''

Trooper Chrisman gave his life while striving to preserve democracy and decency, and I thank him for his service and his devotion to his community.

LAW ENFORCEMENT AND FIRST RESPONDERS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Georgia (Mr. LOUDERMILK) for 5 minutes.

Mr. LOUDERMILK. Mr. Speaker, just a few weeks ago, in Fulton County, Georgia, officers of the Fulton County Police Department were alerted to shots fired in a neighborhood around 1:30 in the morning.

The initial call indicated that a man was terrorizing citizens by going house to house, banging on doors and firing a weapon. Officers immediately responded and began searching for the gunman.

About 45 minutes later another call was received, reporting gunfire in another part of the same neighborhood. Additional officers were dispatched.

One of the officers responding to the second call was Detective Terrence Green, a 22-year veteran of the Fulton County Police force. Upon arriving in the neighborhood, officers could hear shots coming from the direction of one of the homes.

As Terrence Green and his fellow officers bravely moved toward the gunfire, they were unknowingly walking into an ambush.

When the officers were in range, the gunman emerged from a concealed position and began firing upon the officers. While running for cover, the officers returned fire, and in the ensuing firefight the gunman was eventually wounded.

When the officers approached the gunman, they discovered that two of their own officers had also been shot during the ambush. All three were rushed to the hospital, where the gunman was treated for nonlife-threatening wounds.

However, Detective Green had received a fatal shot to the head and around 4:30 in the morning succumbed to his injuries, leaving behind four young children.

In all aspects of the term, Detective Green is a hero. He put himself in harm's way to protect the lives of others.

I wish I could stand here today and say that what happened to Terrence Green was an isolated incident; but, unfortunately, this scenario plays out much too often in the cities, towns, and boroughs across America.

But even in the midst of imminent danger, officers like Detective Green courageously fulfill their duty to protect and serve the people of this Nation. And I am grateful to those men and women who willingly put their lives on the line for us daily.

It is the cop walking the streets, the officer on patrol, the sergeant on watch, or the deputy responding to a call who are on the front lines in our States, counties, and cities.

Whether the call is for a crime in progress, an automobile accident, or a natural disaster, they are often the first on the scene to render aid, give comfort, or even save a life.

While they don't do their job for accolades nor do they expect our continuous praise, it is encouraging for someone to occasionally say thank you.

But instead of thanking them for their dedication to duty, some officials instead publicly criticize our law enforcement community. This unwarranted public criticism not only undermines the morale of our law enforcement officers, but it undermines the public trust in these dedicated servants.

With a growing number of violent protests and riots in our Nation, tensions between the police and the public have grown significantly over the past several years.

But instead of using their positions of influence to diffuse the tension, certain officials have stoked the fire, which has rekindled distrust and encouraged public unrest.

Careless remarks, such as comparing American law enforcement officers to terrorist organizations like ISIS, have placed more officers' lives at risk and have sparked more anti-law enforcement sentiment across our Nation.

As a result, public bashing of our police has skyrocketed and now American law enforcement officers feel they have been thrown under the bus by the very people that should be supporting them.

Recently, during a meeting with local first responders in my district, I asked if there was something I could do to help them.

They asked for me to go back to Washington, D.C., and tell our government officials to please stop undermining them, to stop publicly criticizing them for doing the job they are tasked to do.

''Please make Washington understand,'' they said, ''that it is incredibly demoralizing to be putting your life on the line, fighting crime, while those in positions of leadership are making you out to be the criminal.''

Mr. Speaker, as with any organization, there are a few in law enforcement that haven't held themselves to the high standards of dedication expected within the law enforcement community, and those who violate the public trust should and most often are removed from their positions to face harsh disciplinary action.

But just as every elected official in Washington, D.C., our peace officers have sworn an oath to uphold and defend the Constitution of the United States.

And while there are some instances where officers have strayed off-course, from what I have seen in the short time that I have been here, as a whole, law enforcement has a better record of upholding their oaths than some of the elected officials here in Washington.

Mr. Speaker, our law enforcement officers deserve our admiration, respect, and appreciation, and today I want to thank them for the work they do for us.

I want to thank the spouses and the families who have endured many sleepless nights while their loved ones were responding to a call.

And to the families of those that have given their lives in the line of duty, on behalf of a grateful Nation, I thank you for your sacrifice for our safety, security, and freedom.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 37 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Lord our God, thank You for giving us another day.

Protect us and guide us as a free people who turn to You in faith and prayer and who strive to grow in virtue and integrity.

Be with the Members of this people's House in all their undertakings today. May the recent celebration of the birth of this Nation 239 years ago renew all hearts in the same spirit that guided the signers of the Declaration of Independence and the Framers of the Constitution. May those goals and aspirations still serve to guide every informed decision here today and across this Nation.

Let us, ''the people of the United States, in order to form a more perfect Union, establish justice, insure domestic tranquility, provide for the common defense, promote the general welfare, and secure the blessings of liberty for ourselves and our posterity.''

May all that is done within the people's House this day be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentlewoman from Indiana (Mrs. WALORSKI) come forward and lead the House in the Pledge of Allegiance.

Mrs. WALORSKI led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

RECOGNIZING PRINCIPAL JAMES CONDON OF PLYMOUTH HIGH SCHOOL

(Mrs. WALORSKI asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. WALORSKI. Mr. Speaker, I rise today to recognize Principal James Condon of Plymouth High School for being named the 2015 Principal of the Year. His success in providing high-quality learning opportunities for students in Plymouth is nothing short of remarkable.

Principal Condon's leadership has been instrumental in the development of digital and project-based learning, creation of dual credit courses, and preparation of students for the job market. As a result of his leadership, Hoosier classrooms are full of future doctors, scientists, and entrepreneurs.

His success reminds us of how important educators are to kids everywhere. Every one of us depends on our teachers, and because of that, they deserve our support and our appreciation.

Principal Condon has helped spark imagination and give young Hoosiers the ability to make their dreams become a reality. Today I thank Principal Condon for helping students in Plymouth develop their talents and become our future leaders.

CONTINUED INACTION ON THE HIGHWAY TRUST FUND AND REAUTHORIZATION OF OUR SURFACE TRANSPORTATION PROGRAMS

(Ms. ESTY asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. ESTY. Mr. Speaker, exactly 2 months ago, I came to the floor to speak out against this House's reckless inaction on the highway trust fund, needlessly endangering hundreds of thousands of good-paying jobs. Yet here we are again, with only 10 legislative days left before the highway trust fund runs out of money. Mr. Speaker, this is harmful and it is wrong.

According to the American Society of Civil Engineers, 73 percent of Connecticut's roads are in poor or mediocre condition. These poor road conditions cost the average Connecticut

driver $628 in otherwise unnecessary repairs and expenses every year. Thirty-five percent of Connecticut's bridges are structurally deficient, functionally obsolete, or both.

A great nation does not respond to crises with duct tape. A great nation leads with bold action. I urge the leadership of the House to work with us to pass a long-term highway bill and invest in America's infrastructure.

SUPPORT OUR PUBLIC LIBRARIES

(Mr. COSTELLO of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COSTELLO of Pennsylvania. Mr. Speaker, as students across Pennsylvania's Sixth Congressional District and the rest of the country enjoy the summer months, many are looking for activities to participate in to occupy their days.

I wanted to highlight the value of public libraries and, specifically, an exceptional program in my district that empowers, inspires, and supports performance arts.

The Tredyffrin Public Library is offering a series of camps that seek to ''cultivate performance arts skills and instill confidence in students in rising fifth through rising ninth grades.''

The vocal and musical theater camps are led by Conestoga High School graduates and serve as a wonderful resource for area students to improve theatrical and music skills over the summer vacation.

It has long been proven that students that participate in the arts have improved academic performance and a strong sense of community. I applaud the Tredyffrin and Paoli Public Libraries across Pennsylvania's Sixth District in their efforts to promote lifelong learning, entertainment, and enrichment.

Our public libraries are local treasures that add value and promote learning in our communities. I encourage everyone to share this support this summer and year-round by attending our libraries, by supporting those who work there and offering our thanks to those who volunteer there.

SUPPORTING A LONG-TERM SOLUTION FOR THE HIGHWAY TRUST FUND

(Ms. HAHN asked and was given permission to address the House for 1 minute.)

Ms. HAHN. Mr. Speaker, I rise to highlight America's infrastructure crisis.

Almost 30 percent of our Nation's major roadways, and 50 percent in California, are in poor condition, meaning they must be rebuilt, not just patched up.

Drivers are now paying a hidden pothole tax, the extra cost to maintain a car because of bad roads. In California, the average driver pays $760 because of poor roads. People and goods are slowed down by congestion.

In just 10 legislative days, our highway trust fund expires. Congress must pass a long-term surface transportation bill to ensure that the United States has the best infrastructure.

In May, this Congress kicked the can down the road and passed a short-term bill. It seems we are likely to do that again. This is not a responsible way to govern.

We should invest in our transportation system to be globally competitive and to move these goods efficiently. Drivers want less time stuck in traffic and more time at home with their families. Let's invest in America's future and pass a long-term surface transportation bill.

IRAN—WOLF IN WOLF'S CLOTHING

(Mr. POE of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. POE of Texas. Mr. Speaker, while the Ayatollah has preached ''Death to America,'' the United States and the West have made a deal with the deceitful wolf of the desert.

Iran promises to temporarily cut back and not continue its nuclear weapon development capability. Then Iran will receive sanction relief. It will be able to export oil and receive billions of dollars in cash.

In 5 years, the embargo on most conventional weapons against Iran will be lifted. In 8 years, Iran will be able to import ICBMs. In 10 years, the deal expires and Iran can develop nuclear weapons, thus legitimizing the number one state sponsor of terrorism and allowing it to be a nuclear weapons power.

This is dangerous. This will start a nuclear arms race. Israel will be less safe. So will America.

In theory, this deal is supposed to give us ''peace in our time,'' to coin a phrase. But Iran is a wolf in wolf's clothing, and the wolf has made a deal with the sheep not to eat them for 10 years. Then what? Supper?

And that is just the way it is.

ARROWS AND AN OLIVE BRANCH

(Mr. DOGGETT asked and was given permission to address the House for 1 minute.)

Mr. DOGGETT. Mr. Speaker, in the Great Seal of the United States, the eagle clutches arrows and an olive branch. While today's Iran agreement puts the olive branch out first, the arrows remain firmly in our grasp.

The safety of all our families in the United States, in Israel, and elsewhere, is advanced by pursuing a verifiable, enforceable, diplomatic solution. Refusing to be frozen by fear or pushed into conflict by those who are just campaigning or who are campaigning for war, the President recognizes diplomacy as our greatest strength.

So many of those who loudly renounced this deal before they have even read it also loudly supported the stunning historic mistake of a go-it-alone invasion of Iraq.

No choice is without risk, but strong inspections and verification are the best path to peace and security for all of our families.

A BAD DEAL FOR THE UNITED STATES AND OUR ALLIES

(Mr. DOLD asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DOLD. Mr. Speaker, far from backing Iran's path to a nuclear weapon, the inherently flawed deal announced this morning preserves and legitimizes Iran's nuclear program. The fact that Iran is celebrating and that our allies are not should tell you everything that you need to know about this deal.

I have read the deal. I have it right here.

I believe that it will usher in a terrifying new era of proliferation in which neighboring nations feel no choice but to build nuclear programs of their own, while the massive sanctions relief in the deal will provide Iran with hundreds of billions of dollars in new funds to foment terrorism around the globe and prop up its proxies, like Assad in Syria and Hamas, to launch brutal attacks on Israel.

The measure of success and diplomacy is not simply whether agreement is reached; it is whether a good agreement is achieved. Unfortunately, the administration arrived at this deal through a parade of concessions on poor issues and by straying far from the insistence that Iran's nuclear program be dismantled. The world is a more dangerous place today with this, as a result.

Mr. Speaker, Congress can and must step forward, do the right thing, and reject this deal.

WE NEED A LONG-TERM HIGHWAY BILL

(Mrs. BUSTOS asked and was given permission to address the House for 1 minute.)

Mrs. BUSTOS. Mr. Speaker, I rise to urge my colleagues to take up and pass a long-overdue bill to fund our roads and bridges for the long term. Yet again, we are approaching the end of a short-term extension with the highway trust fund in danger of expiring at the end of this month. We can't keep kicking the can down the road. We need a long-term bill, and we need it now.

In my congressional district alone, there are 421 bridges that are structurally deficient. Just earlier this month, I stood alongside the Murray Baker Bridge in Peoria that runs over the Illinois River, the heart of my district. Its structure is in need of replacement.

Further northwest, where I live, there is the Interstate 74 Bridge. Just over the weekend, I stood alongside it. It spans the Mississippi River. It was built for traffic of about 40,000 cars. Today it accommodates about twice that many. In fact, former Secretary of Transportation Ray LaHood stood alongside that bridge and said it is the worst bridge he has seen in the United States of America.

The families I represent deserve better. The businesses I represent deserve better. We need to pass a bill, a long-term highway bill, and we need to pass it now.

□ 1215

IRAN DEAL

(Mr. BABIN asked and was given permission to address the House for 1 minute.)

Mr. BABIN. Mr. Speaker, I rise to talk about this Iran deal. President Obama has made a deal with Islamic Republic of Iran, a terrorist regime that regularly leads chants of ''Death to America,'' burns our flag, and has killed hundreds of American soldiers.

In April, Energy Secretary Moniz said inspectors would have ''anywhere, anytime access'' to Iran's civil and military sites. Unfortunately, this deal sets forth no such requirement.

Under the deal, inspectors can only ask for permission to access Iranian military sites, like their fortified underground facility in Fordow. Decisions about access will be left to Iran's leaders, who have said that inspectors will not be permitted to inspect military sites even ''in their dreams.''

This deal doesn't require the release of the American hostages being held by Iran's Government. It has no acknowledgement of Israel's right to exist. These provisions would signal that Iran is serious about changing their ways, but they have said no. And that is why Congress should reject this bad deal.

SAN DIEGO PRIDE MONTH

(Mrs. DAVIS of California asked and was given permission to address the House for 1 minute.)

Mrs. DAVIS of California. Mr. Speaker, June may be LGBT Pride month. Back home in San Diego we continue to celebrate well into July, and we sure have something to be proud of this year.

The Supreme Court finally affirmed what all of us know to be true, that love is love, that equality is for everyone, and that discrimination against one is discrimination against all.

Without knowing the outcome of the Supreme Court decision, but knowing that all are created equal, San Diego Pride appropriately chose this year's theme as ''Liberty and Justice for All.'' As we continue to push toward that goal, we can't forget that there is more to be done.

LGBT individuals still do not have workplace or housing protections in many States. Many LGBT students aren't protected from bullying in schools, and transgender individuals, in particular, face added obstacles that arise from stigma and ignorance.

So while we have much to be proud of, there is still work for this House to do. Let's come together to ensure that truly there is liberty and justice for all.

IRAN NUCLEAR NEGOTIATION

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA. Mr. Speaker, from the very beginning of the negotiations, President Obama and Secretary Kerry placed far too much faith in the Iranian regime. Trusting Iran to adhere to the terms of this agreement is a fool's errand.

This deal allows Iran to continue research on advanced nuclear technologies. Over the course of the deal, the temporary restrictions on Iran's nuclear weapons program will wind down. President Obama admitted himself that toward the end of the agreement Iran's nuclear breakout time could shrink almost down to zero.

Meanwhile, Iran will receive sanction relief, a boon of $100 billion in frozen assets, at the same time while chanting ''death to America'' and ''death to Israel.''

The agreement lifts an arms embargo of conventional weapons in 5 years, and they will even achieve the ability to have intercontinental ballistic missiles in 8 years, meaning Iran will have even more money and more weapons to continue to destabilize Iraq, Syria, and its neighbors in the Mideast and, with the advent of ICBMs, even the United States of America.

Congress now has 60 days to review this plan and see if there is something good in it or not, but we need to be very cautious. Just to take any deal is not a good deal. So it is time that we be tough with Iran.

CUTTING OFF YOUR NOSE TO SPITE YOUR FACE

(Mrs. CAROLYN B. MALONEY of New York asked and was given permission to address the House for 1 minute.)

Mrs. CAROLYN B. MALONEY. Mr. Speaker, as of the first day of this month, thousands of American exporters, big and small, were unilaterally disarmed in the battle for new business overseas.

The conservative Members of this body succeeded in their quest to kill the U.S. Export-Import Bank. They did it. The Ex-Im's charter has expired.

Now there is only the Export-Import Bank of China, the Export Finance and Insurance Corporation of Australia, the Export Development of Canada, Finnish Export Credit, Hungarian Export Credit Insurance, the Israel Export Insurance Corporation, the Japan Bank for International Cooperation, the Export-Import Bank of Korea, the Norwegian Guarantee Institute for Export Credits, the Export Credit Bank of Turkey, and about 75 other foreign government-run agencies that are all helping businesses, big and small, in their quest to export and create jobs in their countries.

American companies alone find themselves at a distinct disadvantage. Our colleagues have successfully cut off their nose to spite their face.

It is never too late to fix a mistake. Let this Chamber vote on renewing the Export-Import charter and create more American jobs.

IRAN, STATE SPONSOR OF TERROR

(Ms. ROS-LEHTINEN asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. ROS-LEHTINEN. Mr. Speaker, let's not forget the kind of regime that exists in Iran, a country that will soon be receiving billions of dollars in sanctions relief.

Look at this poster. Friday was Al Quds Day in Iran. And what were they all doing? Officially sanctioned parade, shouting ''death to America'' and ''death to Israel.''

Iran has been labeled as a U.S.-designated state sponsor of terrorism for over three decades now. Yet, just yesterday the White House spokesman couldn't even confirm that Iran would remain on the terrorism list after this deal.

How hard a question is it to answer, Mr. Speaker? Will the administration's next concession to Iran be to remove it from the terrorism list in addition to the billions of dollars in sanctions relief?

Doing so would mean that we will be helping to finance Iran's support for terror, most of it aimed at us and our ally, the democratic Jewish State of Israel.

Look at this poster, Mr. Speaker, where the Supreme Leader says, ''No cure for barbaric Israel, but total annihilation.''

Doing so would be a problem of serious consequences to the United States. Let's get a better, tougher deal. We deserve better.

GI BILL STEM EXTENSION ACT

(Ms. TITUS asked and was given permission to address the House for 1 minute.)

Ms. TITUS. Mr. Speaker, we all agree that we should provide veterans the tools they need to successfully transition from Active Duty to civilian life. Yet, far too many servicemen and -women are struggling to provide for themselves and their families once they return home. We can and must do better.

That is why I am proud to partner with my Republican colleague, DAVID

MCKINLEY, in sponsoring legislation to provide resources to help our veterans pursue higher education and gain the skills and training they need to succeed in STEM careers.

The ability to analyze, communicate, and motivate, honed while in the military, makes veterans ideal candidates for the STEM fields. And with growth and demand for STEM experts expected to outpace other professions in the next two decades, this legislation will help meet the need for a highly skilled workforce, enabling us to better compete in the global economy while also creating new employment opportunities for our Nation's heroes.

So I urge my colleagues to join Mr. MCKINLEY and me in supporting the GI Bill STEM Extension Act.

''WE THE PEOPLE'' INITIATIVE

(Mr. GUINTA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GUINTA. Mr. Speaker, I rise today to urge participation in my new initiative, ''We the People.''

Imagine a Congress that functions effectively. Imagine a Congress that hears from you daily and, as a result, devises legislation and legislative solutions based on your individual needs and from your own experiences. This is my view of an effective government, and it is why I have launched the ''We the People'' initiative this week.

Because of your ideas and your feedback, we have been able to pass two pieces of legislation this year. Let's continue to build on that success and continue to make Washington work for the Granite State.

I know we have much left to accomplish. So I want to hear from you. From now on, my office will be accessible 24 hours a day, 7 days a week. You can email me directly your legislative solutions and ideas to wethepeople@mail.house.gov or you can call me or text me directly at 603–250–6850.

From your suggestions, I will better be able to tailor legislation to meet your needs. My office remains yours. So please spread the word about the ''We the People'' initiative.

U.S. MUST CONSIDER ITS ISLAND TERRITORIES

(Ms. PLASKETT asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. PLASKETT. Mr. Speaker, several weeks ago the President announced resumption of diplomatic relations with Cuba.

While we celebrate the implications of a renewed relationship both for Cuban and American citizens, the citizens of my own home district do so with guarded welcome.

Mr. Speaker, the U.S. territories of the Virgin Islands and Puerto Rico and our geographic proximity to Cuba makes us a direct economic competitor. All indicators point to massive growth in Cuba's tourism industry.

While the U.S. Virgin Islands continues to be a premier tourist destination particularly for Americans, with more than 2.7 million tourists in 2014 alone, Cuba is shaping to be a formidable competitor.

Prior to resumption of relations, a report from the Caribbean Tourism Organization showed just over 3 million visitors to Cuba in 2014 compared to 2.7 for the Virgin Islands and 3 million in Puerto Rico.

However, in the first quarter of 2015, the Cuban Government has already reported more than 1.4 million tourist visits, a number that more than doubles the amount reported for the Virgin Islands and Puerto Rico during this same time.

Mr. Speaker, the United States must consider its own island territories of the U.S. Virgin Islands and Puerto Rico in the advancement of diplomatic relations with Cuba. Investments must come to the U.S. Virgin Islands.

I wish all of our French citizens a happy Bastille Day.

HELPING BUREAU OF INDIAN EDUCATION SCHOOLS

(Mr. PAULSEN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PAULSEN. Mr. Speaker, we should always strive as a country to make sure that the promises we make are kept. Unfortunately, when it comes to the students at our Bureau of Indian Education schools, our promise to them is falling far short.

Students at these schools in Minnesota and around the country have endured deplorable conditions, including leaking roofs, schools with no heat, and other problems that make it difficult, if not impossible, to learn.

However, momentum is gaining to right this wrong. Some of us in the Minnesota delegation, including my colleagues JOHN KLINE and BETTY MCCOLLUM, have highlighted the need for critical repairs and construction for these schools.

The issue is not just financial, though. Washington, including the executive branch, needs to ensure that red tape is not keeping these students from getting an acceptable learning environment.

Mr. Speaker, it is time for us to take action and focus on making sure that these students have a safe school setting where they can learn, grow, and excel.

NEVADA FAA 2015 WORLD CHAMPION LIVESTOCK JUDGING TEAM

(Mrs. HARTZLER asked and was given permission to address the House for 1 minute.)

Mrs. HARTZLER. Mr. Speaker, I rise today to give honor to Payton Dahmer, Kaylee Farmer, Cara Comstock, and Skyler Scotten for earning the title of the 2015 World Championship FFA Livestock Judging Team.

These members of the Nevada FAA chapter, along with their coach, Tanya St. John, practiced for countless hours, traveling all across the State and Nation to evaluate the quality of classes of cattle, swine, sheep, and goats as well as demonstrate the reasoning behind their placements in the oral presentation.

At the national competition, the team placed first overall, with all four competitors placing in the top ten individually. Winning nationals qualified them for the International Livestock Judging Competition in Scotland, where they again placed first in the team judging event.

While it was a long and challenging journey to earn this title, I would like to commend the 2015 World Champion FFA Livestock Judging Team for their dedication, perseverance, and poise they displayed in this competition. I am proud of how they represented themselves, their families, and our country.

I want to congratulate Payton, Kaylee, Cara, and Skyler for this amazing achievement. You are the future agriculture leaders this country needs.

□ 1230

WESTERN WATER AND AMERICAN FOOD SECURITY ACT OF 2015

(Mr. DENHAM asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DENHAM. Mr. Speaker, I rise today to talk about California's water crisis. Later this week, we will be debating a bill, the Western Water and American Food Security Act of 2015, which was born out of many conversations with the Senate and with the administration.

Over the years, we have discussed how dry California is. Now, we can't prevent Mother Nature from creating a drought, but we can plan and store water for those dry years. It has happened for centuries. The problem is it just hasn't been happening in the last several decades in California, which means over 1 million acres of farmland will go fallow.

Mr. Speaker, this is not just a California issue. This is an issue that will affect the entire United States food supply. We need to make sure we are capturing water.

While Members want to continue to debate climate change, shouldn't we all agree that hydroelectricity, the cleanest electricity out there, is good for our environment? The trees that I grow as an almond farmer are good for the environment. If you want to reduce carbon, let's plant more trees.

If we want to have safety and security in our communities that have forestland, then shouldn't we clear the

brush and make sure that we don't have a fuel supply again, creating a better environment with a healthy forest?

There are things that we should do to create a healthy California and a healthy country. This water bill is one of those solutions.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. FARENTHOLD). Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which a recorded vote or the yeas and nays are ordered, or on which the vote incurs objection under clause 6 of rule XX.

Record votes on postponed questions will be taken later today.

BREAST CANCER AWARENESS COMMEMORATIVE COIN ACT

Mr. LUETKEMEYER. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 2722) to require the Secretary of the Treasury to mint coins in recognition of the fight against breast cancer, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 2722

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Breast Cancer Awareness Commemorative Coin Act''.

SEC. 2. FINDINGS.

The Congress finds the following:

(1) Breast cancer is the most common cancer among American women, except for skin cancers. Today, about 1 in 8, or 12 percent of, women in the United States will develop invasive breast cancer during their lifetime. This is an increase from 1 in 11, or 9 percent of, women in 1975.

(2) Breast cancer is the second leading cause of cancer death in women. The chance of dying from breast cancer is about 1 in 36. Thanks to earlier detection, increased awareness, and improved treatment, death rates from breast cancer have decreased since about 1989.

(3) There is a strong interest among the American public to do more to tackle this disease. The National Cancer Institute estimates $16.5 billion is spent in the United States each year on breast cancer treatment. Assuming that incidence and survival rates follow recent trends, it is estimated that $17.2 billion will be spent on breast cancer care in the United States in 2014.

(4) Finding a cure for breast cancer is a goal of the United States Government.

(5) The National Institutes of Health dedicated an estimated $674 million for breast cancer research in Fiscal Year 2014. In Fiscal Year 2014, the Department of Defense's Breast Cancer Research Program received $120 million.

(6) While the National Institutes of Health and the Department of Defense program on Breast Cancer research remain the largest funders of breast cancer research in the United States, in 2013, the National Cancer Institute funding was reduced by nearly $66 million since 2011. The funding level for the Department of Defense Breast Cancer Research Program has remained consistent since 2012, however this amount represents a 20-percent decrease from 2011 funding levels.

(7) Additional private sector support for breast cancer research will help us find cures for breast cancer even faster.

(8) It is estimated that in the United States 231,840 women will be diagnosed with and 40,290 women will die of cancer of the breast in 2015. This means that every 13 minutes a woman dies of breast cancer in the United States.

(9) However, due to disease type and lack of adequate care, African-American women have the highest death rates of all racial and ethnic groups overall and are at least 44 percent more likely to die of breast cancer as compared to other racial and ethnic groups.

(10) Breast cancer used to be considered a disease of aging but recent trends show that more aggressive forms of the disease have been increasingly diagnosed in younger women.

(11) Breast cancer is the most frequently diagnosed cancer among nearly every racial and ethnic group, including African-American, American Indian/Alaska Native, Asian/Pacific Islander and Hispanic/Latina women.

(12) Clinical advances, resulting from research, have led to increased survival from breast cancer. Since 1990, death rates from breast cancer have dropped over 34 percent.

(13) Among men in the United States it is estimated that there will be 2,350 new cases of invasive breast cancer and 440 breast cancer deaths in 2015.

(14) At this time there are more than 3.1 million breast cancer survivors in the United States.

(15) It is estimated that breast cancer costs $12.5 billion in lost productivity. Such productivity losses will increase with projected growth rate and aging of the U.S. population if cancer mortality rates stay constant in the future.

(16) There is a better chance of survival and there are more treatment options with early stage detection through mammograms and clinical breast exams.

(17) Breast cancer is the most common cancer in women worldwide, with an estimated 1.7 million new cases of breast cancer among women worldwide in 2012.

(18) Breast Cancer Research Foundation (BCRF) is considered one of the most efficient cancer research charities.

(19) Of every dollar donated to BCRF, $0.91 goes to research and awareness programs—88 cents towards research and 3 cents towards awareness.

(20) Founded in 1993, the BCRF has raised more than $500 million to fuel discoveries in tumor biology, genetics, prevention, treatment, survivorship and metastasis, making BCRF one of the largest private funders of breast cancer research in the world. For 2014–2015, BCRF committed $58.6 million in research, including $11.6 million to the international Evelyn H. Lauder Founder's Fund focused on metastasis, to support the work of more than 220 researchers at leading medical institutions across six continents (25 states and 14 countries).

(21) Susan G. Komen (Komen) is the largest non-government funder of breast cancer research, funding research that spans the breast cancer continuum from basic biology to treatment to survivorship.

(22) Over the past 5 years, more than 80 cents of every dollar spent by Komen has gone directly to its mission to save lives and end breast cancer by empowering people, ensuring quality care for all and energizing science to find the cures.

(23) Since its inception in 1982, Komen has invested more than $2.6 billion towards its mission, including more than $847 million in over 2400 research grants and 450 clinical trials in 48 states and 21 different countries. Recent funding has focused on research to stem metastatic and aggressive disease, find scientifically sound preventive strategies, and investigate environmental links to breast cancer development.

(24) Today, BCRF and Susan G. Komen continue their work to advance research and support programs for patients and their families.

SEC. 3. COIN SPECIFICATIONS.

(a) DENOMINATIONS.—The Secretary of the Treasury (hereafter in this Act referred to as the ''Secretary'') shall mint and issue the following coins:

(1) $5 GOLD COINS.—Not more than 50,000 $5 gold coins, which shall—

(A) have a diameter of 0.850 inches; and

(B) be made of ''pink gold'' which contains not less than 75 percent gold.

(2) $1 SILVER COINS.—Not more than 400,000 $1 coins, which shall—

(A) weigh 26.73 grams;

(B) have a diameter of 1.500 inches; and

(C) contain not less than 90 percent silver.

(3) HALF-DOLLAR CLAD COINS.—Not more than 750,000 half-dollar coins which shall—

(A) weigh 11.34 grams;

(B) have a diameter of 1.205 inches; and

(C) be minted to the specifications for half-dollar coins contained in section 5112(b) of title 31, United States Code.

(b) LEGAL TENDER.—The coins minted under this Act shall be legal tender, as provided in section 5103 of title 31, United States Code.

(c) NUMISMATIC ITEMS.—For purposes of sections 5134 and 5136 of title 31, United States Code, all coins minted under this Act shall be considered to be numismatic items.

SEC. 4. DESIGN OF COINS.

(a) DESIGN REQUIREMENTS.—

(1) IN GENERAL.—The design of the coins minted under this Act shall be emblematic of the fight against breast cancer.

(2) DESIGNATION AND INSCRIPTIONS.—On each coin minted under this Act there shall be—

(A) a designation of the face value of the coin;

(B) an inscription of the year ''2018''; and

(C) inscriptions of the words ''Liberty'', ''In God We Trust'', ''United States of America'', and ''E Pluribus Unum''.

(b) SELECTION.—The design for the coins minted under this Act shall be selected by the Secretary based on the winning design from a juried, compensated design competition described under subsection (c).

(c) DESIGN COMPETITION.—

(1) IN GENERAL.—The Secretary shall hold a competition and provide compensation for its winner to design the obverse and reverse of the coins minted under this Act. The competition shall be judged by an expert jury chaired by the Secretary and consisting of 3 members from the Citizens Coinage Advisory Committee who shall be elected by such Committee and 3 members from the Commission of Fine Arts who shall be elected by such Commission.

(2) PROPOSALS.—As part of the competition described in this subsection, the Secretary may accept proposals from artists, engravers of the United States Mint, and members of the general public, and any designs submitted for the design review process described herein shall be anonymized until a final selection is made.

(3) ACCOMPANYING DESIGNS; PREFERENCE FOR PHYSICAL DESIGNS.—The Secretary shall encourage 3-dimensional designs to be submitted as part of the proposals, and the jury shall give a preference for proposals that are accompanied by a 3-dimensional physical design instead of, or in addition to, an electronic design.

(4) COMPENSATION.—The Secretary shall determine compensation for the winning design under this subsection, which shall be not less than $5,000. The Secretary shall take into account this compensation amount when determining the sale price described in section 6(a).

SEC. 5. ISSUANCE OF COINS.

(a) QUALITY OF COINS.—Coins minted under this Act shall be issued in uncirculated and proof qualities.

(b) PERIOD FOR ISSUANCE.—The Secretary may issue coins minted under this Act only during the 1-year period beginning on January 1, 2018.

SEC. 6. SALE OF COINS.

(a) SALE PRICE.—The coins issued under this Act shall be sold by the Secretary at a price equal to the sum of—

(1) the face value of the coins;

(2) the surcharge provided in section 7(a) with respect to the coins; and

(3) the cost of designing and issuing the coins (including labor, materials, dies, use of machinery, overhead expenses, marketing, and shipping).

(b) BULK SALES.—The Secretary shall make bulk sales of the coins issued under this Act at a reasonable discount.

(c) PREPAID ORDERS.—

(1) IN GENERAL.—The Secretary shall accept prepaid orders for the coins minted under this Act before the issuance of such coins.

(2) DISCOUNT.—Sale prices with respect to prepaid orders under paragraph (1) shall be at a reasonable discount.

SEC. 7. SURCHARGES.

(a) IN GENERAL.—All sales of coins issued under this Act shall include a surcharge of—

(1) $35 per coin for the $5 coin;

(2) $10 per coin for the $1 coin; and

(3) $5 per coin for the half-dollar coin.

(b) DISTRIBUTION.—Subject to section 5134(f) of title 31, United States Code, all surcharges which are received by the Secretary from the sale of coins issued under this Act shall be promptly paid by the Secretary as follows:

(1) ½ to the Susan G. Komen for the Cure, Dallas, Texas, for the purpose of furthering research funded by the organization.

(2) ½ to the Breast Cancer Research Foundation, New York, New York, for the purpose of furthering research funded by the Foundation.

(c) AUDITS.—The surcharge recipients under subsection (b) shall be subject to the audit requirements of section 5134(f)(2) of title 31, United States Code, with regard to the amounts received under that subsection.

(d) LIMITATIONS.—Notwithstanding subsection (a), no surcharge may be included with respect to the issuance under this Act of any coin during a calendar year if, as of the time of such issuance, the issuance of such coin would result in the number of commemorative coin programs issued during such year to exceed the annual 2 commemorative coin program issuance limitation under section 5112(m)(1) of title 31, United States Code (as in effect on the date of the enactment of this Act). The Secretary of the Treasury may issue guidance to carry out this subsection.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Missouri (Mr. LUETKEMEYER) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 20 minutes.

The Chair recognizes the gentleman from Missouri.

GENERAL LEAVE

Mr. LUETKEMEYER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

Mr. LUETKEMEYER. Mr. Speaker, I yield such time as he may consume to the gentleman from Texas (Mr. SESSIONS), the distinguished chairman of the Rules Committee.

Mr. SESSIONS. Mr. Speaker, I appreciate the gentleman, my dear friend from Missouri, for this opportunity to allow me to speak today.

Mr. Speaker, I rise today with my friends and colleagues, including the gentlewoman from New York, Congresswoman CAROLYN B. MALONEY, in support of H.R. 2722, the Breast Cancer Awareness Commemorative Coin Act.

This bipartisan legislation supports research only and awareness with a new $1 gold minted coin, proceeds of which will benefit breast cancer research.

Mr. Speaker, breast cancer research is one of the most important pieces of research that the Federal Government and other organizations perform on behalf of the American people and people all around the world. This is going to allow, for the first time ever, for these congressionally approved coins to be minted in pink gold in honor of the fight against breast cancer.

Mr. Speaker, today, I wear this pin of the breast cancer fight. I applaud organizations all across the country that are not only trying to make progress in this issue, but are making sure that awareness about breast cancer and actual research to eliminate this deadly disease, that progress is being made. That is what the funds would do from private contributions of individuals all around the United States.

There will be approximately 231,840 cases—new cases—of breast cancer among women and 2,350 new cases of breast cancer in men this year alone. That means that every 13 minutes, a woman will die of breast cancer in the United States, making breast cancer the second leading cause of death in women in the United States.

I think it is important that we understand what we are trying to accomplish with this coin and this act today. The bottom line is that the United States Congress allows several organizations each year to be able to mint coins on behalf of highlighting the services that they offer to the American people.

It comes at no cost to the taxpayers of this country. As a matter of fact, the Treasury makes a small amount of money as a result of their doing the work.

Mr. Speaker, what will happen is that through this legislation today—that is very intricate and well understood—no money outside of any money that is brought to bear would be for anything other than breast cancer research. I am aware of the sensitivity of taxpayer money and how that might be used, but no taxpayer money would be used for this effort today.

I want to recognize not only the people in breast cancer research, but also many of the survivors all across this country who are recognizing that the awareness and highlighting this project and the money that would be brought to bear of how important that is.

I would say to my colleagues today that breast cancer research cannot be done entirely through taxpayer money. We are counting on outside money. This is allowing the American people to buy coins, just as we did when I handled the Boy Scout coin with the 100th anniversary of the Boy Scouts several years ago. People who were part of the Boy Scouts of America paid money in, and it helped us to sell the coin and to celebrate the 100th anniversary of the Boy Scouts.

That is exactly what this coin would do also. It would be money from citizens all across this country that would highlight breast cancer awareness and the research dollars that would come as a result of that. That is why we are here today, the incredible medical research that is improving the lives of those who are diagnosed and undergoing treatment for breast cancer.

Mr. Speaker, I believe this is the right thing to do for breast cancer research, and I want to thank my colleague, CAROLYN B. MALONEY, who has been doing this bill, not only for the hard work necessary to get 290 Members of Congress to say we want to vote on this bill, but also the awareness that, if we will join ranks with millions of people who are back home in our congressional districts who want to see breast cancer be solved in our lifetime, that it means that it would be all of us across this country.

I want to thank the gentleman who is handling this on behalf of the Financial Services Committee, the gentleman from Missouri, for his great work. I think that this is an overwhelmingly bipartisan bill where the money will go 100 percent for research, not a dime of taxpayer dollars, and it is a well-understood process that is in the best interests of cancer research for our country.

Mr. Speaker, I want to thank the gentleman.

Mr. LUETKEMEYER. Mr. Speaker, I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today to speak in favor of H.R. 2722, introduced by my distinguished colleague on the Financial Services Committee, Representative CAROLYN B. MALONEY, the ranking member of the Financial Services Subcommittee on Capital Markets and Government Sponsored Enterprises.

I commend the gentlewoman for introducing the bill before us today, the Breast Cancer Awareness Commemorative Coin Act, which provides a chance

for all of us to come together to raise awareness about this critical health issue that impacts the lives of so many women and families.

Mr. Speaker, the statistics are startling. Approximately one in eight women in the United States will develop invasive breast cancer during her lifetime; and many of these women, approximately 1 in 36, will lose their lives from this horrible disease.

This means that every 13 minutes, a woman in this country will die from breast cancer. That is 40,290 women in the United States are expected to die from breast cancer in 2015 alone.

□ 1245

While this disease affects women in every community across this country for a variety of reasons, such as the lack of adequate care, the likelihood of dying from the disease is particularly high for African American women. In fact, African American women had a 44 percent higher rate of breast cancer mortality than White women. That is why the conversation we are having here today is so important.

With increased awareness, early detection, new research, and better medicine, we can save lives, thousands of them each year. If consideration of the bill before us today causes at least one woman to get screened for breast cancer, we will be better off for it.

I urge my colleagues to support the bill before us today, which will help raise awareness and modest sums for the fight against breast cancer.

Again, I urge adoption of the bill, and I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield such time as she may consume to the gentlewoman from New York (Mrs. CAROLYN B. MALONEY), the author of this legislation.

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, I thank my good friend and colleague from the great State of California for yielding me the time and for her leadership in so many important areas before this body.

Mr. Speaker, I am very, very proud to rise today to urge the passage of H.R. 2722, the Breast Cancer Awareness Commemorative Coin Act, a bill that I authored with my good friend and colleague, Congressman PETE SESSIONS from Texas. I also want to add my thanks to Chairman HENSARLING, Ranking Member MAXINE WATERS of the Financial Services Committee, and the House leadership for bringing this bill so quickly to the floor.

And a very special thank-you to my partner in this effort, Congressman SESSIONS, who has worked with great commitment and, I would say, creativity in bringing this bill forward and has selflessly worked to have it passed in this body. With his leadership, we were able to secure over 307 cosponsors supporting the passage of this bill in writing.

What we are doing together with this bill is we are going to save American lives. I am absolutely delighted that Senator HEIDI HEITKAMP from North Dakota, who is, herself, a breast cancer survivor, has pledged to put 100 percent of her effort to making sure that the passage of this bill happens in the United States Senate.

In the United States, over 200,000 new cases of breast cancer will be diagnosed this year, and more than 40,000 women will die. Breast cancer is the second leading cause of cancer death in women, and over 2,000 men will be diagnosed. Many people think that it is a woman's disease, but there will be, on average, over 400 men a year who will die from breast cancer. There is only one thing, and one thing only, that can possibly save these lives, and that is research.

The Breast Cancer Commemorative Coin Act will create the opportunity to raise millions of dollars for badly needed breast cancer research without spending one taxpayer dime. Money buys research, and research saves lives. Make no mistake, there have been significant advances in medical research and better detection efforts over the years. But 40,000 women are still dying every year, and so much more needs to be done.

I suspect that absolutely everyone in this body and everyone who is listening who hears my voice today knows someone that they love, some woman they admire, some family member that they care for who has been touched by the shadow of breast cancer. Through this bill, we offer them hope.

Our bill directs the U.S. Mint to create up to 50,000 $5 gold coins, 400,000 silver dollars, and 750,000 clad commemorative coins and make them available for purchase by the public throughout 2018 so that the American public can be involved with their dollars themselves making a decision to support breast cancer research.

These coins will feature designs submitted and judged through a national art competition that will symbolize the fight against this terrible disease. The gold coin will be unique, made out of the beautiful, highly-prized pink gold to reflect the pink ribbon, an international symbol of breast cancer awareness. Like the ribbon, we hope that Americans across this Nation will be wearing the pink gold coin.

Actually, Mr. Speaker, there has never been a pink gold commemorative coin made like this in U.S. history. This will be another congressional first.

This bill is a creative way to raise awareness about breast cancer entirely from private funds for critically needed research that is necessary to find a cure. The proceeds will be split between two outstanding organizations: the Breast Cancer Research Foundation and Susan G. Komen. Over the years, the Breast Cancer Research Foundation and Komen each have raised hundreds of millions of dollars for breast cancer research across this Nation.

I am privileged to represent the Breast Cancer Research Foundation and appreciate the constant support and effort from its founder, Evelyn Lauder, who has passed but created this wonderful organization, and Myra Biblowit, president of the Breast Cancer Research Foundation. The Research Foundation has been responsible for many of the cures that have come forward and breakthroughs.

There are 3.1 million Americans alive today because of cures that have been financed by the Breast Cancer Research Foundation and Komen. Both organizations have low administrative cost rates so that the majority of every dollar received goes directly to research. For instance, for every dollar donated to the Breast Cancer Research Foundation, 91 cents goes directly to research, and that is incredibly important.

The bill requires that every dollar generated through the coin program must also be matched by private fundraising dollars that are raised by these two organizations. The coin program has the potential to raise millions of dollars to save lives—and at absolutely no cost to the American taxpayer. It can raise as much as $8 million. The money will buy research, and the research will save lives. When so many lives are on the line, every dollar counts, every dollar matters.

I thank my colleagues, particularly my partner in this effort, Congressman SESSIONS, for their support, and I urge their continued bipartisan support in passing the Breast Cancer Commemorative Coin Act.

Mr. LUETKEMEYER. Mr. Speaker, I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I have no additional speakers, and I yield back the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume.

Just to reiterate, the gentleman from Texas and the fine ladies from New York and California have really done a good job of explaining this bill. The importance of this, the fact that we are going to try and go after one of the Nation's leading killers, a disease that has claimed many lives, I think it is important to show that the bipartisan support here and the well wishes and good intentions of the group are something where it is nice to see something like this happen in Congress.

I urge support of the bill, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Missouri (Mr. LUETKEMEYER) that the House suspend the rules and pass the bill, H.R. 2722, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. AMASH. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

HOMES FOR HEROES ACT OF 2015

Mr. LUETKEMEYER. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 251) to transfer the position of Special Assistant for Veterans Affairs in the Department of Housing and Urban Development to the Office of the Secretary, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 251

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Homes for Heroes Act of 2015''.

SEC. 2. SPECIAL ASSISTANT FOR VETERANS AFFAIRS IN THE DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT.

(a) TRANSFER OF POSITION TO OFFICE OF THE SECRETARY.—Section 4 of the Department of Housing and Urban Development Act (42 U.S.C. 3533) is amended by adding at the end the following new subsection:

''(h) SPECIAL ASSISTANT FOR VETERANS AFFAIRS.—

''(1) POSITION.—There shall be in the Office of the Secretary a Special Assistant for Veterans Affairs, who shall report directly to the Secretary.

''(2) APPOINTMENT.—The Special Assistant for Veterans Affairs shall be appointed based solely on merit and shall be covered under the provisions of title 5, United States Code, governing appointments in the competitive service.

''(3) RESPONSIBILITIES.—The Special Assistant for Veterans Affairs shall be responsible for—

''(A) ensuring veterans have fair access to housing and homeless assistance under each program of the Department providing either such assistance;

''(B) coordinating all programs and activities of the Department relating to veterans;

''(C) serving as a liaison for the Department with the Department of Veterans Affairs, including establishing and maintaining relationships with the Secretary of Veterans Affairs;

''(D) serving as a liaison for the Department, and establishing and maintaining relationships with the United States Interagency Council on Homelessness and officials of State, local, regional, and nongovernmental organizations concerned with veterans;

''(E) providing information and advice regarding—

''(i) sponsoring housing projects for veterans assisted under programs administered by the Department; or

''(ii) assisting veterans in obtaining housing or homeless assistance under programs administered by the Department;

''(F) coordinating with the Secretary of Housing and Urban Development and the Secretary of Veterans Affairs in carrying out section 3 of the Homes for Heroes Act of 2015; and

''(G) carrying out such other duties as may be assigned to the Special Assistant by the Secretary or by law.''.

(b) TRANSFER OF POSITION IN OFFICE OF DEPUTY ASSISTANT SECRETARY FOR SPECIAL NEEDS.—On the date that the initial Special Assistant for Veterans Affairs is appointed pursuant to section 4(h)(2) of the Department of Housing and Urban Development Act, as added by subsection (a) of this section, the position of Special Assistant for Veterans Programs in the Office of the Deputy Assistant Secretary for Special Needs of the Department of Housing and Urban Development shall be terminated.

SEC. 3. ANNUAL SUPPLEMENTAL REPORT ON VETERANS HOMELESSNESS.

(a) IN GENERAL.—The Secretary of Housing and Urban Development and the Secretary of Veterans Affairs, in coordination with the United States Interagency Council on Homelessness, shall submit annually to the Committees of the Congress specified in subsection (b), together with the annual reports required by such Secretaries under section 203(c)(1) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11313(c)(1)), a supplemental report that includes the following information with respect to the preceding year:

(1) The same information, for such preceding year, that was included with respect to 2010 in the report by the Secretary of Housing and Urban Development and the Secretary of Veterans Affairs entitled ''Veterans Homelessness: A Supplemental Report to the 2010 Annual Homeless Assessment Report to Congress''.

(2) Information regarding the activities of the Department of Housing and Urban Development relating to veterans during such preceding year, as follows:

(A) The number of veterans provided assistance under the housing choice voucher program for Veterans Affairs supported housing (VASH) under section 8(o)(19) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)(19)), the socioeconomic characteristics of such homeless veterans, and the number, types, and locations of entities contracted under such section to administer the vouchers.

(B) A summary description of the special considerations made for veterans under public housing agency plans submitted pursuant to section 5A of the United States Housing Act of 1937 (42 U.S.C. 1437c–1) and under comprehensive housing affordability strategies submitted pursuant to section 105 of the Cranston-Gonzalez National Affordable Housing Act (42 U.S.C. 12705).

(C) A description of the activities of the Special Assistant for Veterans Affairs of the Department of Housing and Urban Development.

(D) A description of the efforts of the Department of Housing and Urban Development and the other members of the United States Interagency Council on Homelessness to coordinate the delivery of housing and services to veterans.

(E) The cost to the Department of Housing and Urban Development of administering the programs and activities relating to veterans.

(F) Any other information that the Secretary of Housing and Urban Development and the Secretary of Veterans Affairs consider relevant in assessing the programs and activities of the Department of Housing and Urban Development relating to veterans.

(b) COMMITTEES.—The Committees of the Congress specified in this subsection are as follows:

(1) The Committee on Banking, Housing, and Urban Affairs of the Senate.

(2) The Committee on Veterans' Affairs of the Senate.

(3) The Committee on Appropriations of the Senate.

(4) The Committee on Financial Services of the House of Representatives.

(5) The Committee on Veterans' Affairs of the House of Representatives.

(6) The Committee on Appropriations of the House of Representatives.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Missouri (Mr. LUETKEMEYER) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 20 minutes.

The Chair recognizes the gentleman from Missouri.

GENERAL LEAVE

Mr. LUETKEMEYER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous material on the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, today I rise in support of H.R. 251, the Homes for Heroes Act of 2015.

This bill, introduced by my colleague from Texas, Congressman AL GREEN, would establish the position of special assistant for Veterans Affairs within HUD to coordinate services provided to homeless veterans and to serve as HUD's liaison to the Department of Veterans Affairs, the U.S. Interagency Council on Homelessness, State and local officials, and nonprofit service organizations. The position is currently in the Office of the Deputy Assistant Secretary for Special Needs. This transfer highlights the importance of this issue.

H.R. 251 would also require HUD to submit a comprehensive annual report to Congress on the housing needs of homeless veterans and the steps undertaken by HUD to meet these needs.

Previous iterations of H.R. 251 have garnered broad support in the past. In 2013, the bill passed by a vote of 420–3; in 2012, by a vote of 414–5; in 2009, by a vote of 417–2; and in 2008, by a vote of 412–9.

Our servicemen and -women continue to bravely serve our country both here and abroad. The least we can do is ensure they have proper access to the services offered to them. This bill represents a step in that direction.

I urge my colleagues to again support this worthy endeavor.

Mr. Speaker, I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

I would like to thank my colleague and friend, Mr. GREEN, for introducing this important bill, the Homes for Heroes Act of 2015.

This bill aims to help prevent low-income veteran families from falling into homelessness, while also providing relief for those who are currently homeless. This bill achieves these aims by elevating a position at HUD aimed specifically at coordinating efforts to ensure that all Federal agencies working to house our homeless veterans are working together at maximum capacity. This position will work closely

with the HUD Secretary to achieve these outcomes.

The Homes for Heroes Act will also ensure the long-term coordination of services for homeless veterans by requiring HUD to submit a comprehensive annual report to Congress on the housing needs of homeless veterans.

This bill will help ensure that we continue to make progress on the goal of ending veteran homelessness so that we can ensure that every veteran has a roof over their head. Recent efforts to house our homeless veterans have seen bipartisan support in both the House and Senate in the form of supporting robust funding for the HUD-Veterans Affairs Supportive Housing program, also known as HUD-VASH. This bill should be no different.

Our veterans have been at the forefront of protecting this country, and we have an obligation here in Congress to protect and provide for those who are most vulnerable. No person in the country should be deprived of a safe, decent, and affordable place to call home. No person should be deprived of a roof over their head. This bill would help to ensure that we are taking care of those who have taken care of this country.

In addition, this bill is supported by the National Alliance to End Homelessness, a national advocacy organization committed to preventing and ending homelessness in the United States.

An identical bill passed the House last Congress. I urge my colleagues to again pass this important piece of legislation.

I want to thank Mr. GREEN for his persistence in bringing forth this legislation. It is another wonderful moment for him.

I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield such time as he may consume to the gentleman from New Hampshire (Mr. GUINTA).

□ 1300

Mr. GUINTA. Mr. Speaker, the U.S. Department of Housing and Urban Development estimates that almost 50,000 veterans are homeless on any given night. That means that right now there are roughly 50,000 of our Nation's heroes on the streets, without shelter, struggling to find a place to live.

This is not how our country should treat the men and women who have risked their lives to protect our Nation. The issue of homeless veterans needs to be addressed and resolved, and it needs to be done now.

It has always been a priority of mine to eliminate veterans homelessness not just in my home State of New Hampshire, but all across this great Nation. I think my colleagues will all agree with me that we must ensure our veterans and their families have access to affordable housing in order to help promote their independence and well-being.

When I was mayor of New Hampshire's largest city, Manchester, I launched a homeless veterans initiative by working with leaders at Liberty House, a safe, supportive, and substance-free housing community for those transitioning out of homelessness.

Our veterans deserve equal treatment and access to HUD housing and homeless assistance programs. We can start now by cutting down the bureaucracy, bureaucratic hurdles, and by ensuring that the highest care is given to our veterans. This bipartisan bill is a step in the right direction.

I thank the gentleman from Texas (Mr. AL GREEN) for fighting on behalf of homeless veterans. I am proud to rise in support of our Nation's heroes, and I am proud to support H.R. 251.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield such time as he may consume to the gentleman from Texas (Mr. AL GREEN), the ranking member of the Subcommittee for Oversight and Investigations of the Financial Services Committee.

Mr. AL GREEN of Texas. I thank the ranking member very much.

Mr. Speaker, I am so honored to stand on the floor with the gentlewoman. Her reputation for supporting the needs of the homeless across the length and breadth of our country is widely known and greatly appreciated and, quite frankly, celebrated.

She has been there for the homeless, she has spoken up in committee, and she has passed legislation to assist. So it does not surprise me that she would be supportive of this legislation.

While it does not surprise me, I still must say that I am greatly appreciative for her support because her support makes a difference in legislation moving forward from our committee.

I am also honored to thank the chair of the committee, Mr. HENSARLING, who, without question, reservation, or hesitation, immediately concluded that this legislation should have an opportunity to be voted upon. He has been a supporter of the legislation in the past, and I thank him for his current support.

Mr. LUETKEMEYER has been supportive of the legislation, and I thank him for his willingness to allow it to come to the floor as quickly as it has. Sometimes it can take a little longer than we would like in getting legislation to the floor, but the gentleman immediately responded, and this legislation has made its way to the floor.

I also would like to thank the gentleman from New Hampshire, who spoke very eloquently about the needs of veterans. It means a lot to me to know that we have the breadth of support in the House of Representatives that we have.

Mr. Speaker, I believe that it is almost sinful for us in the richest country in the world to pass veterans who are living in the streets of life, holding signs indicating that they are homeless and that they need help. I believe that the richest country in the world can afford to provide for those who return home and are homeless.

I think that, when a person signs up to serve in the military, you do not know where that assignment will take you. It could very well mean that you will go to some distant place or it could mean that you will stay right here within the continental United States.

But when you sign up, you sign up to go wherever you are told and to do whatever is required, and a good many of those who sign up and go and do what is required don't always return home the same way they left.

As a result, we see not only veterans on the streets asking for help, but you see veterans who are sometimes without all of their body parts. It is especially painful when you see a person who has served the country and who may be in a wheelchair now who is asking for assistance on a street corner.

I am proud to thank the Obama administration for the work that has been done to eradicate homelessness among our veterans. In Houston, Texas, we had a meeting with the HUD Secretary and others.

At that meeting, our mayor announced that we were ending homelessness in Houston, Texas, in the sense that a person who needs help could find help if one is a veteran in Houston, Texas. That means a lot to me to know that my hometown city is now moving forward and is helping those who are living in the streets of life.

This piece of legislation, H.R. 251, makes permanent what is already taking place. There is a person who is there to look out for veterans in HUD, but we want to make sure that that person is there permanently. That is what this legislation does.

You have heard about the reports that will have to be submitted. It is exceedingly important that we know how many people are homeless in the veterans population, and it is exceedingly important to know what it costs to house and to take care of them. These are the kinds of things that the report will reveal to all who wish to know.

It is also important for us to understand that this is not an effort that we can end, because we are making progress. Progress is important, but to continue the progress and to completely eradicate this homelessness, we have to have people who are there, acting as sentinels, as watchmen, for those who have served us well. That is what this person will do who will be stationed in HUD.

For further edification about the situation in terms of homelessness among the veterans population, let me share the statistical information with you:

In January of 2014, the demographics indicated that, on any given night, as was indicated, about 50,000 veterans—49,933—were homeless.

Let's talk about the people themselves and not allow them to become numbers. Here is what the statistical information further reveals: 12 percent of the homeless adult population are veterans.

It reveals that 20 percent of the male homeless population are veterans. It reveals that 51 percent of individual homeless veterans had disabilities, 51 percent who need our help, 51 percent who will benefit from having a person whose job it is to monitor and to make sure that they are taken care of.

Further, it would reveal that 70 percent have substance abuse problems, which is something that we really don't like to talk about. We know that it exists, and we know that something can be done about it, but you need someone who is there as a sentinel, as a watchman, to make sure that these needs are taken care of.

Many of them developed their substance abuse problems while in the military, while serving the country. That is unfortunate, but it is a fact. What we want to do is to make sure that we take care of all of them.

I am so honored to say to you that this bill has received great bipartisan support in the past, overwhelmingly so, I might add.

I also want to just thank my colleagues by reminding us of Ruth Smeltzer's words:

Some measure their lives by days and years, others by heartthrobs, passions, and tears; but the surest measure under the God's Sun is what for others in your lifetime have you done.

I want to thank all who are going to do what they can to help eliminate homelessness among the veterans population and those who will support this piece of legislation. Hopefully, we will get it passed in the Senate such that we won't next term find ourselves supporting this same legislation.

I thank the ranking member again so much for her many years of service and for her support for this legislation as well as for the many years of support that she has accorded those who have lived in the streets of life.

God bless her, and God bless our country.

Ms. MAXINE WATERS of California. Mr. Speaker, I have no additional speakers.

I yield back the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, in closing, just to reiterate and, again, congratulate and associate our remarks with the fine gentleman's from Texas (Mr. AL GREEN), one can see that his hard work and advocacy and his passion for this issue is unparalleled. We certainly want to continue to support him, and we urge the support of this body for his fine bill here, H.R. 251.

I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, I rise in support to H.R. 251, the "Homes for Heroes Act of 2015," which would amend the Department of Housing and Urban Development Act to establish in the Office of the Secretary of the Department of Housing and Urban Development (HUD) a Special Assistant for Veterans Affairs.

Our military veterans deserve our deepest gratitude for the courage and valor they demonstrated in service while defending the United States of America.

I support this bill strongly because it ensure veterans fair access to HUD housing and homeless assistance programs, coordinates all HUD programs and activities relating to veterans, and betters serves as a HUD liaison with the Department of Veterans Affairs (VA).

Also, terminating the position of Special Assistant for Veterans Programs in the Office of the Deputy Assistant Secretary for Special Needs would create more coordinated relations that will better serve the needs of our nation's veterans.

Mr. Speaker, today, in our country, there are approximately 107,000 veterans (male and female) who are homeless on any given night.

And perhaps twice as many (200,000) experience homelessness at some point during the course of a year.

Many other veterans are considered near homeless or at risk because of their poverty, lack of support from family and friends, and dismal living conditions in cheap hotels or in overcrowded or substandard housing.

In my hometown of Houston for example, between the years 2010 and 2012, the number of homeless veterans increased from 771 to 1,162.

President Obama and the Congress made a commitment to end homelessness by 2015.

However, even with all the progress this administration has made, until we have every veteran permanently sheltered in the United States, we have not succeeded.

I have always devoted myself in these efforts, as I know of the kind of impact assisting our heroes to get back on their feet can have on the well-being of our communities.

H.R. 251, the "Homes for Heroes Act of 2015," is a positive step towards the right direction in our effort to support our nation's heroes, who have put their lives on the line for our protection.

Mr. Speaker, we cannot let this issue of homelessness continue.

I urge my colleagues to join me in voting in support of H.R. 251.

The SPEAKER pro tempore (Mr. CARTER of Georgia). The question is on the motion offered by the gentleman from Missouri (Mr. LUETKEMEYER) that the House suspend the rules and pass the bill, H.R. 251.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. LUETKEMEYER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

HOUSING ASSISTANCE EFFICIENCY ACT

Mr. LUETKEMEYER. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 1047) to authorize private nonprofit organizations to administer permanent housing rental assistance provided through the Continuum of Care Program under the McKinney-Vento Homeless Assistance Act, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 1047

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Housing Assistance Efficiency Act''.

SEC. 2. AUTHORITY TO ADMINISTER RENTAL ASSISTANCE.

Subsection (g) of section 423 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11383(g)) is amended by inserting ''private nonprofit organization,'' after ''unit of general local government,''.

SEC. 3. REALLOCATION OF FUNDS.

Paragraph (1) of section 414(d) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11373(d)(1)) is amended by striking ''twice'' and inserting ''once''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Missouri (Mr. LUETKEMEYER) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 20 minutes.

The Chair recognizes the gentleman from Missouri.

GENERAL LEAVE

Mr. LUETKEMEYER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous material on this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume.

I rise today in strong support of H.R. 1047, the Housing Assistance Efficiency Act, introduced by the gentleman from California (Mr. PETERS). This bill makes a technical correction to the 2009 HEARTH Act amendments to the McKinney-Vento Homeless Assistance Act.

H.R. 1047 will accomplish two goals:

First, it would restore the ability of nonprofit organizations to administer permanent housing rental assistance provided through the McKinney-Vento Continuum of Care program.

Second, it would authorize the HUD Secretary to reallocate any housing assistance provided from the Emergency Solutions Grants Program that is unused or returned or that becomes available after the minimum allocation requirements under McKinney-Vento have been met on an annual rather than on a semiannual basis.

In 2009, the HEARTH Act amended McKinney-Vento to combine the Shelter Plus Care program and the supportive housing programs into a single, competitive program.

When combining the activities of the previous programs into one, the HEARTH Act also created a new requirement that only States, units of local governments, or Public Housing Agencies—PHAs—could administer rental assistance. Previously, these public entities had used private nonprofit organizations to administer the assistance.

H.R. 1047 corrects an unintended consequence of the HEARTH Act by restoring nonprofit participation. The bill maximizes community flexibility to allow existing nonprofits that operate leased housing to homeless families and individuals to continue to manage their McKinney-Vento grants as rental assistance as well as to continue to develop innovative practices that assist homeless families and individuals.

Finally, H.R. 1047 reduces a regulatory burden by requiring HUD to reallocate unused Emergency Solutions Grants Program funds only once per year. As I understand from HUD and many nonprofit organizations, there are very few unused funds available; yet, a complicated reallocation program, as required by current law, must be conducted twice a year even if the amount is miniscule.

Mr. Speaker, I urge my colleagues to pass this commonsense legislation that is supported by the administration and many of the nonprofit organizations that continue to serve homeless populations with limited resources.

I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

I want to thank my colleague from California (Mr. PETERS) for working on this important issue and introducing this bill.

This bill, entitled the Housing Assistance Efficiency Act, makes two key changes to the McKinney-Vento Homeless Assistance Act that are long overdo.

Specifically, this bill is designed to fix two technical problems that have arisen in HUD's homeless assistance programs due to technical errors in the language in the HEARTH Act, which was a bipartisan bill that significantly reformed the homeless assistance programs in 2009.

Among other things, HUD's homeless assistance programs help homeless people pay rent when they move out of shelters or off the streets and into housing.

Since the inception of these programs, local nonprofit organizations have received funding from HUD to administer efficient and cost-effective rental assistance programs, working with local landlords to get places for homeless people to live.

Unfortunately, in 2009, when certain programs were merged under the HEARTH Act, these nonprofits became ineligible to directly administer permanent rental assistance.

□ 1315

This unintentional result of the HEARTH Act has created huge uncertainty on the ground for many nonprofits who work hard to house our homeless populations across the country. The permanent fix in H.R. 1047 would be extremely helpful for communities that are working to end homelessness for chronic individuals, veterans, children, and other populations.

The second provision in H.R. 1047 addresses the Emergency Solutions Grants Program, a program aimed at homelessness prevention and rapid rehousing activities. The bill would amend the current HUD requirement to reallocate unused, returned, or otherwise newly available funds twice per year to just once per year. This change provides HUD and local agencies with administrative relief, while having no negative impact on beneficiaries of these programs.

In addition, this program is supported by the National Alliance to End Homelessness, a national advocacy organization committed to preventing and ending homelessness in the United States. An identical bill passed the House last December on the suspension calendar by voice vote. I urge my colleagues to again vote in favor of this bill.

Mr. Speaker, I reserve the balance of my time.

Mr. LUETKEMEYER. I reserve the balance of my time, Mr. Speaker.

Ms. MAXINE WATERS of California. I yield such time as he may consume to the gentleman from California (Mr. PETERS).

Mr. PETERS. Mr. Speaker, I thank the gentlewoman for yielding.

Today, I rise to urge passage of the Housing Assistance Efficiency Act, a bill that I introduced earlier this year. As the ranking member said, an identical version of this legislation passed the House by voice vote last December.

Many laws are intended to ensure efficiency in Federal agencies but often have unintended consequences, preventing agencies from serving the public and costing taxpayers money.

Currently, the Department of Housing and Urban Development's Continuum of Care Program is forced to spend too much time fulfilling administrative obligations, instead of helping individuals and families transition out of homelessness and putting them on a path to independent living.

This legislation will reduce government inefficiency and make it easier for Americans struggling to find a foothold to access the already existing resources available to them.

Twice each fiscal year, HUD has to reallocate unused or returned funds in the Emergency Solutions Grants Program. Because funds are almost never unused or returned under this program, the reallocation of funds takes a lot of time and human capital to complete but with little end purpose.

It is administratively more efficient to reallocate funds only once per year. This frees up HUD employees to provide more human resources toward better providing service to constituents. We shouldn't saddle HUD with more administrative work that isn't helping anyone.

In addition to mandatory fund allocations, HUD faces a mountain of paperwork as it tries to administer that important system used by more than 3 million Americans each year. Prior to 2009, private nonprofits could administer rental assistance through HUD's Continuum of Care.

Nonprofits are uniquely positioned to handle the needs of those seeking rental assistance, using expertise in individual communities of vulnerable populations to serve the clients where they are.

The HEARTH Act, however, muddled rental assistance laws, and private nonprofits were left off the list of entities allowed to administer rental assistance. Currently, only States, local government units, or public housing agencies can dispense this housing assistance, although nonprofits have substantial experience and the ability to reach vulnerable populations that is often unavailable to government programs.

Private nonprofits can still execute other homelessness programs, but they have to go through public housing agencies or another layer of bureaucracy to get rental assistance to their clients or to the landlord. This creates more bureaucratic burdens when individuals and families really need the help quickly to stay in their homes.

Passing this bill would remedy both these problems, make HUD a more efficient agency, and get homelessness assistance to those who need it more quickly. This is particularly important in San Diego, where access to affordable housing has been continually one of our region's biggest obstacles and where we have the third largest homeless population in the country. By passing today's bill, we can help HUD be more efficient and ensure that community experts and nonprofits are not hamstrung by Federal inaction.

In their statement supporting this legislation, the San Diego Housing Federation said: ''This bill removes barriers to helping get important resources to those who need it most.'' Mr. Speaker, that is what it is all about.

I urge my colleagues to help pass this legislation and take substantive action to improve government efficiency and help fight chronic homelessness in our country.

Mr. LUETKEMEYER. I reserve the balance of my time, Mr. Speaker.

Ms. MAXINE WATERS of California. Mr. Speaker, I have no additional speakers.

I yield back the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, we just want to reiterate our support for H.R. 1047. We feel it corrects some problems that have arisen inadvertently.

I yield back the balance of my time.

Ms. SEWELL of Alabama. Mr. Speaker, today, I rise in support of H.R. 1047, the Housing Assistance Efficiency Act. This bill would remove non-essential administrative boundaries in order to better serve our nation's homeless population.

Under the McKinney-Vento Homeless Assistance Act, only a state, local government, or public housing agency may administer housing assistance to our nation's homeless.

This regulation prevents many non-profit agencies—which often have deep ties to our communities—from assisting the homeless.

Like many districts and states, the State of Alabama faces many challenges in addressing the needs of our homeless. We can accomplish this by correcting any unintended legislative consequences and taking action to create the most fast-acting and efficient system of housing assistance possible.

The Housing Assistance Efficiency Act addresses these problems by increasing efficiency, eliminating red tape, and expediting the process of providing safe, stable shelter for homeless communities.

I congratulate my colleague from California, Congressman PETERS, for remaining vigilant and continuing to be a voice for our most vulnerable communities. This is a valuable opportunity to eliminate barriers and offer a faster and more financially responsible approach to assisting the homeless.

While we continue our efforts to help the homeless, we must remain mindful of our long-term goals. I urge my colleagues to help pass this legislation and reaffirm our commitment to the alleviation of homelessness in all of our communities.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Missouri (Mr. LUETKEMEYER) that the House suspend the rules and pass the bill, H.R. 1047.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

PRESERVATION ENHANCEMENT AND SAVINGS OPPORTUNITY ACT OF 2015

Mr. LUETKEMEYER. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 2482) to amend the Low-Income Housing Preservation and Resident Homeownership Act of 1990.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 2482

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Preservation Enhancement and Savings Opportunity Act of 2015''.

SEC. 2. DISTRIBUTIONS AND RESIDUAL RECEIPTS.

Section 222 of the Low-Income Housing Preservation and Resident Homeownership Act of 1990 (12 U.S.C. 4112) is amended by adding at the end the following new subsection:

''(e) DISTRIBUTION AND RESIDUAL RECEIPTS.—

''(1) AUTHORITY.—After the date of the enactment of the Preservation Enhancement and Savings Opportunity Act of 2015, the owner of a property subject to a plan of action or use agreement pursuant to this section shall be entitled to distribute—

''(A) annually, all surplus cash generated by the property, but only if the owner is in material compliance with such use agreement including compliance with prevailing physical condition standards established by the Secretary; and

''(B) notwithstanding any conflicting provision in such use agreement, any funds accumulated in a residual receipts account, but only if the owner is in material compliance with such use agreement and has completed, or set aside sufficient funds for completion of, any capital repairs identified by the most recent third party capital needs assessment.

''(2) OPERATION OF PROPERTY.—An owner that distributes any amounts pursuant to paragraph (1) shall—

''(A) continue to operate the property in accordance with the affordability provisions of the use agreement for the property for the remaining useful life of the property;

''(B) as required by the plan of action for the property, continue to renew or extend any project-based rental assistance contract for a term of not less than 20 years; and

''(C) if the owner has an existing multi-year project-based rental assistance contract for less than 20 years, have the option to extend the contract to a 20-year term.''.

SEC. 3. FUTURE REFINANCINGS.

Section 214 of the Low-Income Housing Preservation and Resident Homeownership Act of 1990 (12 U.S.C. 4104) is amended by adding at the end the following new subsection:

''(c) FUTURE FINANCING.—Neither this section, nor any plan of action or use agreement implementing this section, shall restrict an owner from obtaining a new loan or refinancing an existing loan secured by the project, or from distributing the proceeds of such a loan; except that, in conjunction with such refinancing—

''(1) the owner shall provide for adequate rehabilitation pursuant to a capital needs assessment to ensure long-term sustainability of the property satisfactory to the lender or bond issuance agency;

''(2) any resulting budget-based rent increase shall include debt service on the new financing, commercially reasonable debt service coverage, and replacement reserves as required by the lender; and

''(3) for tenants of dwelling units not covered by a project- or tenant-based rental subsidy, any rent increases resulting from the refinancing transaction may not exceed 10 percent per year, except that—

''(A) any tenant occupying a dwelling unit as of time of the refinancing may not be required to pay for rent and utilities, for the duration of such tenancy, an amount that exceeds the greater of—

''(i) 30 percent of the tenant's income; or

''(ii) the amount paid by the tenant for rent and utilities immediately before such refinancing; and

''(B) this paragraph shall not apply to any tenant who does not provide the owner with proof of income.

Paragraph (3) may not be construed to limit any rent increases resulting from increased operating costs for a project.''.

SEC. 4. IMPLEMENTATION.

The Secretary of Housing and Urban Development shall issue any guidance that the Secretary considers necessary to carry out the provisions added by the amendments made by sections 2 and 3 not later than the expiration of the 120-day period beginning on the date of the enactment of this Act.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Missouri (Mr. LUETKEMEYER) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 20 minutes.

The Chair recognizes the gentleman from Missouri.

GENERAL LEAVE

Mr. LUETKEMEYER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

Mr. LUETKEMEYER. Mr. Speaker, I rise in support of H.R. 2482, the Preservation Enhancement and Savings Opportunity Act of 2015.

As my colleague from Minnesota, a longtime advocate of this preservation bill, will explain shortly, this bill provides technical changes to the Low-Income Housing Preservation and Resident Homeownership Act of 1990, or LIHPRHA, to allow property owners access to their profits while ensuring long-term preservation of affordable, multifamily housing properties.

By correcting the inequities resulting from a fixed return on investment, we are providing for continued preservation of an important asset and facilitating future recapitalization to maximize the remaining useful life of the LIHPRHA properties without any cost to the Federal Government.

HUD recognized the need to address this issue in the administration's fiscal year 2015 and fiscal year 2016 budget requests. Administratively, HUD has removed the limitation on distributions in similar circumstances where it had the authority to do so but has determined it lacks such authority with the LIHPRHA portfolio.

This bill ensures the continued viability of the properties through continued adherence to the use agreement. This includes compliance with physical need requirements and requirement to provide for any identified capital needs.

I would like to reemphasize that this provision does not result in a cost to the Federal Government and ensures long-term preservation. I thank the gentleman from Minnesota for his hard work on this issue.

Mr. Speaker, I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

This bill is the product of years of thoughtful consideration and negotiations. I am very pleased with the compromises that were reached on this bill, especially some additional tenant protections that include rent affordability restrictions for existing tenants.

There are currently about 640 properties that are subject to restrictions in the Low-Income Housing Preservation and Resident Homeownership Act of 1990, otherwise known as LIHPRHA. LIHPRHA imposed some significant restrictions on property owners, which have proven to be problematic by making it more difficult for property owners to preserve these aging properties.

This bill would help address this issue by providing affected property owners with greater flexibilities on the condition that they comply with basic requirements that ensure that the properties are adequately maintained

and that tenants do not see dramatic increases in rents.

By providing these flexibilities, property owners will have better access to capital to carry out repairs and other improvements that will help preserve these aging properties and ultimately benefit tenants. Particularly in light of the current rental housing crisis, this is an important bipartisan measure that seeks to preserve our affordable housing stock. I urge my colleagues to support this bill.

Mr. Speaker, I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield such time as he may consume to the distinguished gentleman from Minnesota (Mr. PAULSEN), who has been an advocate on this issue for a long, long time.

Mr. PAULSEN. Mr. Speaker, I rise in support of the legislation, the Preservation Enhancement and Savings Opportunity Act. Let me start by thanking the gentleman and the ranking member of the committee for their long efforts to bring this legislation forward with support.

As was mentioned, in 1990 Congress enacted the Low-Income Housing Preservation and Resident Homeownership Act, or LIHPRHA, to preserve and extend the availability of low-income housing throughout the country.

Many low-income housing properties at that time were nearing the end of a 20-year period of the owner's obligation to maintain below-market rents for qualified tenants, and Congress was worried about a flood of thousands of properties coming out of the low-income housing pool.

Congress used LIHPRHA to create new incentives, in the form of low-interest restructured mortgages, to entice property owners to maintain their properties as low-income housing. In exchange for the incentives, owners who agreed to extend low-income use of properties became obligated to operate properties as low-income housing for 50 years or the remaining useful life of the properties, whichever would be greater.

Property owners also agreed to a fixed cap on their allowed annual cash distributions from rents from the properties. The cap was designed to provide the owners with an 8 percent equity return, based on property values at the time. The income from the properties above the cap is still the owner's money, but it is held at HUD in an account that the owners have no right to access until the end of that 50-year period.

These 8 percent distribution limits, while initially workable, over time have resulted in very adverse and unexpected consequences, in particular relating to the Federal income tax liabilities of the owners. Initially, owners were able to offset a portion of their taxes owed with depreciation and mortgage interest deductions. The 8 percent cash distributions were sufficient to meet those tax obligations.

However, since that time, rents have increased, and deductible mortgage interest and depreciation deductions have decreased for LIHPRHA property owners. This effectively means that the annual Federal taxable income of the owners has increased substantially, despite the fact that their allowed cash distributions have remained capped at a constant dollar amount fixed in the 1990s.

Mr. Speaker, in recent years, for example, owners' income tax liabilities have often been more than double the amount of cash permitted to be distributed to them under the law, and this is unfair to LIHPRHA property owners. It will only worsen over time.

Fortunately, there is a simple solution to the problem. The Preservation Enhancement and Savings Opportunity Act will allow LIHPRHA property owners to access their funds held at HUD, after all operating expenses and property maintenance costs have been paid. More importantly, removing the limitation on distributions will not result in any cost to the Federal Government, as the funds belong to the owners and not to HUD.

The legislation also requires individuals refinancing LIHPRHA properties to provide adequate rehabilitation and replacement reserves. It includes protections for low-income housing tenants from excessive rent increases.

Removing the limitation on distributions and the refinancing provisions will facilitate additional recapitalization of these properties by private sector developers and other preservation entities, which will in turn extend the availability of low-income housing across the country for those who most need it. This all happens at no additional cost to American taxpayers.

Mr. Speaker, I insert into the RECORD a letter to Chairman HENSARLING and Ranking Member WATERS from nine national housing organizations endorsing this bill.

I close by asking my colleagues to join me in support of this legislation.

JUNE 11, 2015.

Hon. JEB HENSARLING,
Chairman, Committee on Financial Services.
Hon. MAXINE WATERS,
Ranking Minority Member, Committee on Financial Services.

DEAR CHAIRMAN HENSARLING AND RANKING MEMBER WATERS: The undersigned organizations urge you to support H.R. 2482, the Preservation, Enhancement and Savings Opportunity Act of 2014. The bill provides technical changes to the Low Income Housing Preservation and Resident Homeownership Act of 1990 (LIHPRHA) while ensuring long-term preservation of these affordable multifamily housing properties.

When LIHPRHA was enacted, property owners were provided incentives to maintain the affordability of the properties for low and moderate income renters for the remaining useful life of the properties in exchange for relinquishing the right to prepay the mortgage after 20 years. As part of the process, the owners' equity contributions in the property were redefined but a contractual limitation on property income distributions remained, even though all surplus funds belong to the ownership entity. Such a limitation was workable twenty years ago, but as the mortgages mature the annual distribution becomes insufficient to address increasing tax liabilities.

The bill would remove the limitation on distributions and provide the ownership entity/sponsor access to its own funds to address tax liabilities or other expenses while ensuring continued preservation and adherence to the properties' use agreements. Such action provides additional incentives for future investors to recapitalize these multifamily properties, therefore extending their useful life and the continuation of a scarce housing resource for years to come. For the last 15 years, HUD has administratively removed limitations on distributions where it had the authority to do so. HUD has concluded that it lacks this authority with the LIHPRHA portfolio.

The bill's changes to LIHPRHA have no associated budgetary or tax cost to the Federal Government and ensure the preservation of an important housing resource. We urge you to support H.R. 2482.

Sincerely,

Council for Affordable and Rural Housing (CARH); Institute of Real Estate Management (IREM); Institute for Responsible Housing Preservation (IRHP); Mortgage Bankers Association (MBA); National Affordable Housing Management Association (NAHMA); National Apartment Association (NAA); National Association of Home Builders (NAHB); National Leased Housing Association (NLHA); National Multifamily Housing Council (NMHC).

□ 1330

Ms. MAXINE WATERS of California. Mr. Speaker, I have no additional speakers. I encourage support for this bill, and I yield back the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I urge support of H.R. 2482, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Missouri (Mr. LUETKEMEYER) that the House suspend the rules and pass the bill, H.R. 2482.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

PRIVATE INVESTMENT IN HOUSING ACT OF 2015

Mr. LUETKEMEYER. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 2997) to authorize the Secretary of Housing and Urban Development to carry out a demonstration program to enter into budget-neutral, performance-based contracts for energy and water conservation improvements for multifamily residential units.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 2997

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Private Investment in Housing Act of 2015''.

SEC. 2. BUDGET-NEUTRAL DEMONSTRATION PROGRAM FOR ENERGY AND WATER CONSERVATION IMPROVEMENTS AT MULTIFAMILY RESIDENTIAL UNITS.

(a) ESTABLISHMENT.—The Secretary of Housing and Urban Development (in this section referred to as the ''Secretary'') shall establish a demonstration program under which the Secretary may execute budget-neutral, performance-based agreements in fiscal years 2016 through 2019 that result in a reduction in energy or water costs with such entities as the Secretary determines to be appropriate under which the entities shall carry out projects for energy or water conservation improvements at not more than 20,000 residential units in multifamily buildings participating in—

(1) the project-based rental assistance program under section 8 of the United States Housing Act of 1937 (42 U.S.C. 1437f), other than assistance provided under section 8(o) of that Act;

(2) the supportive housing for the elderly program under section 202 of the Housing Act of 1959 (12 U.S.C. 1701q); or

(3) the supportive housing for persons with disabilities program under section 811(d)(2) of the Cranston-Gonzalez National Affordable Housing Act (42 U.S.C. 8013(d)(2)).

(b) REQUIREMENTS.—

(1) PAYMENTS CONTINGENT ON SAVINGS.—

(A) IN GENERAL.—The Secretary shall provide to an entity a payment under an agreement under this section only during applicable years for which an energy or water cost savings is achieved with respect to the applicable multifamily portfolio of properties, as determined by the Secretary, in accordance with subparagraph (B).

(B) PAYMENT METHODOLOGY.—

(i) IN GENERAL.—Each agreement under this section shall include a pay-for-success provision that—

(I) shall serve as a payment threshold for the term of the agreement; and

(II) requires that payments shall be contingent on realized cost savings associated with reduced utility consumption in the participating properties.

(ii) LIMITATIONS.—A payment made by the Secretary under an agreement under this section—

(I) shall be contingent on documented utility savings; and

(II) shall not exceed the utility savings achieved by the date of the payment, and not previously paid, as a result of the improvements made under the agreement.

(C) THIRD-PARTY VERIFICATION.—Savings payments made by the Secretary under this section shall be based on a measurement and verification protocol that includes at least—

(i) establishment of a weather-normalized and occupancy-normalized utility consumption baseline established pre-retrofit;

(ii) annual third-party confirmation of actual utility consumption and cost for utilities;

(iii) annual third-party validation of the tenant utility allowances in effect during the applicable year and vacancy rates for each unit type; and

(iv) annual third-party determination of savings to the Secretary.

An agreement under this section with an entity shall provide that the entity shall cover costs associated with third-party verification under this subparagraph.

(2) TERMS OF PERFORMANCE-BASED AGREEMENTS.—A performance-based agreement under this section shall include—

(A) the period that the agreement will be in effect and during which payments may be made, which may not be longer than 12 years;

(B) the performance measures that will serve as payment thresholds during the term of the agreement;

(C) an audit protocol for the properties covered by the agreement;

(D) a requirement that payments shall be contingent on realized cost savings associated with reduced utility consumption in the participating properties; and

(E) such other requirements and terms as determined to be appropriate by the Secretary.

(3) ENTITY ELIGIBILITY.—The Secretary shall—

(A) establish a competitive process for entering into agreements under this section; and

(B) enter into such agreements only with entities that, either jointly or individually, demonstrate significant experience relating to—

(i) financing or operating properties receiving assistance under a program identified in subsection (a);

(ii) oversight of energy or water conservation programs, including oversight of contractors; and

(iii) raising capital for energy or water conservation improvements from charitable organizations or private investors.

(4) GEOGRAPHICAL DIVERSITY.—Each agreement entered into under this section shall provide for the inclusion of properties with the greatest feasible regional and State variance.

(5) PROPERTIES.—A property may only be included in the demonstration under this section only if the property is subject to affordability restrictions for at least 15 years after the date of the completion of any conservation improvements made to the property under the demonstration program. Such restrictions may be made through an extended affordability agreement for the property under a new housing assistance payments contract with the Secretary of Housing and Urban Development or through an enforceable covenant with the owner of the property.

(c) PLAN AND REPORTS.—

(1) PLAN.—Not later than 90 days after the date of enactment of this Act, the Secretary shall submit to the Committees on Appropriations and Financial Services of the House of Representatives and the Committees on Appropriations and Banking, Housing, and Urban Affairs of the Senate a detailed plan for the implementation of this section.

(2) REPORTS.—Not later than 1 year after the date of enactment of this Act, and annually thereafter, the Secretary shall—

(A) conduct an evaluation of the program under this section; and

(B) submit to Congress a report describing each evaluation conducted under subparagraph (A).

(d) FUNDING.—For each fiscal year during which an agreement under this section is in effect, the Secretary may use to carry out this section any funds appropriated to the Secretary for the renewal of contracts under a program described in subsection (a).

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Missouri (Mr. LUETKEMEYER) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 20 minutes.

The Chair recognizes the gentleman from Missouri.

GENERAL LEAVE

Mr. LUETKEMEYER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume.

Today, I rise in support of H.R. 2997, the Private Investment in Housing Act of 2015. This bill, introduced by my colleague, the gentleman from Florida (Mr. ROSS), would authorize the Secretary of Housing and Urban Development to establish a demonstration program to make assisted multifamily properties more energy and water efficient at no cost to U.S. taxpayers.

Currently, HUD spends in excess of $7 billion in annual energy and water costs for HUD-assisted properties. These properties are generally older, with inefficient energy and water usage. In most cases, owners of these older assisted properties lack the capital to modernize their buildings to perform energy and water efficiency.

H.R. 2997 would create a demonstration for no more than 20,000 assisted units where HUD would enter into agreements with intermediaries—most likely, nonprofit entities—to produce energy and water efficiency in exchange for a share of the savings.

This demonstration and the subsequent contract with the intermediary would allow these entities to raise capital from private investors and foundations. HUD would not provide upfront capital investments for any energy retrofits and there would be no risk to the Federal Government.

Savings due to the retrofits, verified by an independent third party, would then result in HUD remitting a portion of the savings back to the intermediaries. If savings are not realized, the loss is absorbed by the private investors or foundations.

Mr. Speaker, H.R. 2997 is an example of the public-private partnership innovation needed to attract capital investment to our public- and assisted-housing stock. This demonstration, in addition to the Rental Assistance Demonstration program, is the beginning of bipartisan legislative initiatives to bring private sector resources and management to affordable housing for low- and very low-income families.

As chairman of the Housing and Insurance Subcommittee of the Financial Services Committee, I am working with Members on both sides of the aisle to develop legislation similar to H.R. 2997, which would make the operations of HUD and its programs more efficient. Today's bill is a step in that direction.

In addition to the sponsor, Representative ROSS, I want to thank the ranking member of the Housing and Insurance Subcommittee, Mr. CLEAVER, along with Representatives HIMES of Connecticut and DELANEY of Maryland, for their hard work on this legislation.

I urge all Members to support H.R. 2997, and I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, this bill would create a pilot program within HUD which would allow for energy and water efficiency upgrades to be made to certain private multifamily HUD properties at no cost to the government.

Under this innovative pilot program, investors would provide all of the upfront capital to make the improvements, and they would only get paid based on a portion of the cost savings that result from the improvements. If there are no cost savings, the losses would be completely on the investors, not HUD or the taxpayers.

This is a rare win-win situation. HUD and taxpayers benefit from cost savings; tenants benefit from the improvements made to their homes; investors benefit from the profits, and of course, the environment benefits from the more responsible use of natural resources.

This bill also ensures accountability by requiring a third-party evaluation to verify any cost savings and also by requiring the Secretary to report on the outcomes of the pilot within a year of enactment.

There is simply no reason for bipartisan bickering on a bill like this. I urge my colleagues to support this bill, and I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield such time as he may consume to the gentleman from Florida (Mr. ROSS), a distinguished member of the Housing and Insurance Subcommittee.

Mr. ROSS. Mr. Speaker, I thank the chairman and Ranking Member WATERS for their support.

As the chairman pointed out, currently, HUD spends more than $7 billion annually in energy and water costs. In our current fiscal environment, we must look to new technology and for innovative solutions to generate savings for both taxpayers and the Federal Government.

Today, I am proud to ask my colleagues to join me in supporting bipartisan H.R. 2997, the Private Investment and Housing Act. This legislation will establish a demonstration project that will encourage private sector entities to retrofit and modernize a limited number of HUD multifamily housing units at absolutely no cost to taxpayers.

This legislation is necessary because nonprofits and other entities that focus on financing for affordable housing are unable to enter into contractual agreements to retrofit HUD multifamily housing units. Imagine leveraging private capital to enhance the livability and inhabitability of affordable housing at no cost to the taxpayers or the Federal Government.

It doesn't involve any risk to the Federal Government or the taxpayer. In fact, investors take the first loss position on energy upgrades. If energy savings from these projects are not realized after private entities enter these contracts, the Federal Government does not pay anything, period.

If savings through these projects are achieved, they would lower HUD's energy expenditures by as much as 20 percent, creating tremendous savings for the taxpayer. Private entities who take on the risk to retrofit these units will receive a $1 return for every $1 in cost savings that are verified by a third party.

The demonstration program created by this legislation would help improve up to 20,000 HUD-assisted apartments receiving project-based rental assistance, supportive housing for the elderly, or supportive housing for persons with disabilities.

The demonstration projects will help a limited number of people at first in Florida and across the country. However, over time, once it is a proven success, more than 48,000 eligible properties in the State of Florida and the 900 units in my district alone may be able to benefit, again, at no expense to the taxpayer.

In addition to the direct economic benefits to taxpayers, these upgrades will bring meaningful health and other benefits to the families living in the buildings, creating a healthier and safer environment for residents.

I want to thank my colleagues, Representative JIM HIMES; Representative EMANUEL CLEAVER, ranking member of the subcommittee; and Representative JOHN DELANEY, for their support on this legislation.

I also want to thank Enterprise Community Partners for their support of this legislation and for the support of projects that encourage a public-private partnership in affordable housing.

I ask you join me in supporting this legislation to engage the private sector to help HUD reduce their annual $7 billion in energy and water spending.

Ms. MAXINE WATERS of California. Mr. Speaker, I urge support, and I yield back the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I encourage support for H.R. 2997. I think it is a great idea to, again, go into a public-private partnership and utilize that as an opportunity, again, at no cost to the taxpayers.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Missouri (Mr. LUETKEMEYER) that the House suspend the rules and pass the bill, H.R. 2997.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. LUETKEMEYER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

MORTGAGE SERVICING ASSET CAPITAL REQUIREMENTS ACT OF 2015

Mr. LUETKEMEYER. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 1408) to require certain Federal banking agencies to conduct a study of the appropriate capital requirements for mortgage servicing assets for nonsystemic banking institutions, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 1408

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Mortgage Servicing Asset Capital Requirements Act of 2015''.

SEC. 2. STUDY OF MORTGAGE SERVICING ASSETS.

(a) DEFINITIONS.—In this section:

(1) BANKING INSTITUTION.—The term ''banking institution'' means an insured depository institution, Federal credit union, State credit union, bank holding company, or savings and loan holding company.

(2) BASEL III CAPITAL REQUIREMENTS.—The term ''Basel III capital requirements'' means the Global Regulatory Framework for More Resilient Banks and Banking Systems issued by the Basel Committee on Banking Supervision on December 16, 2010, as revised on June 1, 2011.

(3) FEDERAL BANKING AGENCIES.—The term ''Federal banking agencies'' means the Board of Governors of the Federal Reserve System, the Office of the Comptroller of the Currency, the Federal Deposit Insurance Corporation, and the National Credit Union Administration.

(4) MORTGAGE SERVICING ASSETS.—The term ''mortgage servicing assets'' means those assets that result from contracts to service loans secured by real estate, where such loans are owned by third parties.

(5) NCUA CAPITAL REQUIREMENTS.—The term ''NCUA capital requirements'' means the proposed rule of the National Credit Union Administration entitled ''Risk-Based Capital'' (80 Fed. Reg. 4340 (January 27, 2015)).

(6) OTHER DEFINITIONS.—

(A) BANKING DEFINITIONS.—The terms ''bank holding company'', ''insured depository institution'', and ''savings and loan holding company'' have the meanings given those terms in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813).

(B) CREDIT UNION DEFINITIONS.—The terms ''Federal credit union'' and ''State credit union'' have the meanings given those terms in section 101 of the Federal Credit Union Act (12 U.S.C. 1752).

(b) STUDY OF THE APPROPRIATE CAPITAL FOR MORTGAGE SERVICING ASSETS.—

(1) IN GENERAL.—The Federal banking agencies shall jointly conduct a study of the appropriate capital requirements for mortgage servicing assets for banking institutions.

(2) ISSUES TO BE STUDIED.—The study required under paragraph (1) shall include, with a specific focus on banking institutions—

(A) the risk to banking institutions of holding mortgage servicing assets;

(B) the history of the market for mortgage servicing assets, including in particular the market for those assets in the period of the financial crisis;

(C) the ability of banking institutions to establish a value for mortgage servicing assets of the institution through periodic sales or other means;

(D) regulatory approaches to mortgage servicing assets and capital requirements that may be used to address concerns about the value of and ability to sell mortgage servicing assets;

(E) the impact of imposing the Basel III capital requirements and the NCUA capital requirements on banking institutions on the ability of those institutions—

(i) to compete in the mortgage servicing business, including the need for economies of scale to compete in that business; and

(ii) to provide service to consumers to whom the institutions have made mortgage loans;

(F) an analysis of what the mortgage servicing marketplace would look like if the Basel III capital requirements and the NCUA capital requirements on mortgage servicing assets—

(i) were fully implemented; and

(ii) applied to both banking institutions and nondepository residential mortgage loan servicers;

(G) the significance of problems with mortgage servicing assets, if any, in banking institution failures and problem banking institutions, including specifically identifying failed banking institutions where mortgage servicing assets contributed to the failure; and

(H) an analysis of the relevance of the Basel III capital requirements and the NCUA capital requirements on mortgage servicing assets to the banking systems of other significantly developed countries.

(3) REPORT TO CONGRESS.—Not later than 180 days after the date of enactment of this Act, the Federal banking agencies shall submit to the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives a report containing—

(A) the results of the study required under paragraph (1);

(B) any analysis on the specific issue of mortgage servicing assets undertaken by the Federal banking agencies before finalizing regulations implementing the Basel III capital requirements and the NCUA capital requirements; and

(C) any recommendations for legislative or regulatory actions that would address concerns about the value of and ability to sell and the ability of banking institutions to hold mortgage servicing assets.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Missouri (Mr. LUETKEMEYER) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 20 minutes.

The Chair recognizes the gentleman from Missouri.

GENERAL LEAVE

Mr. LUETKEMEYER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume.

I rise today in support of H.R. 1408, as amended. I want to thank the gentleman from Colorado (Mr. PERLMUTTER) for introducing the legislation.

Mortgage servicing assets, or MSAs, also known as mortgage servicing rights, are contracts to service mortgage loans. Historically, these assets have been held by banks and credit unions that have existing or developing relationships with their customers.

However, the Basel III negotiations dramatically changed the capital requirements for MSAs, forcing many financial institutions to sell off these assets. Many have been sold to hedge funds or other nonbanks with little to no experience in dealing directly with consumers.

In recent years, a bipartisan group of five members of the Financial Services Committee sent letters to Federal banking regulators asking whether or not they have studied MSAs or MSA performance during the financial crisis before finalizing the Basel-generated capital requirements. The answer was pretty clear; the regulators had not.

There was no consideration of MSAs, how the assets have performed historically, or the impact that higher capital would have on consumers. What is more disconcerting is MSAs exist only in the United States. These are a uniquely American product. Nowhere else in the world do MSAs exist; yet it was international regulators who decided how these assets should be treated.

Last year, New York State superintendent of financial services Benjamin Lawsky addressed MSAs before a meeting of the Institute of International Bankers. Lawsky stated:

> We are finding we are creating giant nonbank servicers who, in a couple of instances . . . are not fully prepared to deal with this exponential rise in their portfolios, and they don't have the capacity to service the loans they are taking on.

Lawsky went on to say:

> While, on the one hand, we were trying to get rid of a problem, we made a different problem worse.

H.R. 1408 is a straightforward, bipartisan bill. The bill simply says that the U.S. banking regulators need to go back and study MSAs and the impact the new capital requirements will have on consumers. Given what we have seen in this space in the last year, I think it is not only appropriate but completely necessary that we take another look at MSAs.

I want to, again, thank Mr. PERLMUTTER for his work on this legislation, and I ask that my colleagues support our effort to ensure that a more methodical approach is taken by the banking regulators.

Mr. Speaker, I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

During the foreclosure crisis of the last several years, we have learned how important the role of mortgage servicing is to our economy and our constituents. I am proud of the work we did in the Dodd-Frank Act and of the work that the Consumer Financial Protection Bureau continues to do to reform the practices of the mortgage servicing industry.

Unfortunately, this Congress has not been able to move legislation on broader housing finance reform. While we have left this business unfinished, there has been a large shift in the structure of the mortgage servicing industry, as nonbank servicers who are supervised by State regulators play a much larger role than they have in the past.

That is why I am supporting the good, bipartisan work Mr. PERLMUTTER and Mr. LUETKEMEYER have engaged in to make sure that State and Federal regulators are working together to understand the changes in the mortgage servicing industry and to make sure bank and nonbank services are treated appropriately under new financial rules.

This study will give regulators the information they need to monitor the impact of capital standards on the mortgage servicing market and encourage State and Federal regulators to work together to ensure that all mortgage services are appropriately capitalized, regardless of who regulates them.

□ 1345

H.R. 1408 will ensure that regulators are paying close attention to a vital part of our housing and financial system, and I am happy that we were able to work with the majority to pass this bill.

So I thank you, and I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield such time as he may consume to the gentleman from Arkansas (Mr. HILL), who is a distinguished member of our Financial Services Committee.

Mr. HILL. I thank the manager, my friend from Missouri.

Mr. Speaker, I rise today in support of H.R. 1408, the Mortgage Servicing Asset Capital Requirements Act.

Mortgage servicing is a very valued product for our community banks. I am proud to represent several mortgage service firms connected to community banks in my State of Arkansas.

Having mortgage servicing assets connected with a residential lending portfolio adds value; it is incidental and important to banking; and, effectively, it is a proper hedge, a natural hedge for that residential lending business.

However, because of Basel III's capital requirements imposed on mortgage servicing organizations, many banks are being forced to sell their MSA portfolios to hedge funds or nonbanks, which don't really have the experience with the local customers in a personal, knowledgeable way like our community banks do.

MSAs are unique, as the gentleman from Missouri said, to the United States, but they are being regulated by

rules developed by an international body without any study as to whether additional capital is even needed or any review on the impact of customer relationships.

In my view, while staying implementation of these capital requirements during a study, as provided in the original version of the bill, would be optimal, it is nonetheless imperative that the impacts of this rule be thoroughly analyzed, vetted, and understood.

I thank my friends, the gentlemen from Colorado and Missouri, for their work. I ask my colleagues to support this commonsense bill.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield such time as he may consume to the gentleman from Colorado (Mr. PERLMUTTER), and I would like to thank him for the work that he has put into this legislation.

Mr. PERLMUTTER. Mr. Speaker, to my friend from California, I thank Congresswoman WATERS, Chairman HENSARLING for allowing me to bring this forward, my friend from Missouri (Mr. LUETKEMEYER), and I appreciate the remarks of the gentleman from Arkansas (Mr. HILL).

So after years of working on this issue, I am glad to see our work is culminating with the passage of H.R. 1408 today.

The language before us today represents a compromise simply requiring the Federal banking regulators—and by those I mean the Federal Reserve, the Federal Deposit Insurance Corporation, the National Credit Union Administration, and the Office of the Comptroller of Currency—to jointly study the capital treatment of mortgage servicing assets or mortgage servicing rights, and I will say MSRs or MSAs, under the Basel III Accords. It is nearly identical to section 116 of S. 1484, offered by Chairman SHELBY in the Senate Banking Committee.

Now, it differs from the original bill passed out of the Financial Services Committee on March 26 that included language to delay the current rule while regulators conducted a study and then proposed new appropriate capital requirements for MSRs. While many of us wish the bill included those provisions, the study is what is key. The study will be an important step in informing how we proceed with future actions establishing the appropriate capital requirements for MSRs.

Now, what does H.R. 1408 require?

Under H.R. 1408, regulators will have 6 months to study and report back to Congress many outstanding questions about the mortgage servicing industry, including:

One, the risk to banks and credit unions of holding mortgage servicing assets, MSAs;

Two, how the assets performed during the financial crisis;

Three, the ability to establish a value and liquidity for MSAs;

Four, the impact of imposing Basel III capital requirements on banks versus nonbank servicers; and

Five, the impact to consumers and the ability of regulated banks to service mortgages that they originate.

The mortgage servicing industry has shifted since the financial crisis of 2008, as Congresswoman WATERS mentioned. We have seen a significant sale of MSRs and MSAs from banks to nonbanks, including to specialty servicers, private equity firms, and hedge funds.

In 2013, about $1.03 trillion of mortgage servicing rights were sold, with a vast majority going to nonbank servicing companies. Moreover, the percentage of loans serviced by nonbanks has steadily increased from 12 percent to almost 31 percent.

Now, why is the market shifting?

While there are several factors for the growth in nonbank servicing activity, I believe the primary driver has been the capital treatment of MSAs under the Basel III Accords.

Basel III was always intended to apply to the largest, most interconnected globally active banks, but the MSA capital treatment is actually having the greatest impact on our smaller community banks.

Basel III caps the value of MSAs that depository institutions can count towards their tier 1 capital at 10 percent. Any MSAs that exceed the 10 percent threshold are subject to 100 percent risk weight, a standard that will increase to 250 percent by 2018.

Why is this a concern?

In addition to the capital treatment, there is a discrepancy between how banks and nonbank servicers are regulated. So there is additional regulation that comes down on the community banks while that same kind of regulation isn't seen by the nonbank servicers. And if there were to be another sudden market disruption or downturn, it is important we understand if nonbank mortgage servicers have the capacity or the expertise to manage defaults or modifications.

The Financial Stability Oversight Council, the FSOC, in its 2014 annual report specifically named the transfer of mortgage servicing rights to nonbanks as a ''potential emerging threat.''

The report says: ''MSRs are increasingly being transferred to nonbank mortgage servicing companies. While the CFPB and State regulators have some authority over these companies, many of them are not currently subject to prudential standards such as capital, liquidity, or risk management.''

Adam Levitin, the Democratic witness at our hearing, spoke favorably and in support of the bill, saying:

''MSRs have traditionally been an important asset class for depositories, as their value provides a countercyclical offset to mortgage origination activity, and MSR accounting is subject-enough to give depositories room to smooth their earnings.

''Basel III changes make MSRs an unattractive asset for banks.''

Representative LUETKEMEYER and I have questioned whether the prudential regulators struck the right balance between limiting risk exposure and ensuring that depository institutions can still compete with the nonbank entrants in the mortgage servicing arena. From the conversations we have had with the regulators, it is clear they did not study the specific capital treatment applied to MSAs and the impacts on consumers and the market.

Banks want to continue servicing mortgages they originate and maintain these connections to their communities, as Mr. HILL mentioned. However, if the current capital requirements remain in effect, it would make it more and more difficult.

Mr. Speaker, I will place in the RECORD two letters that we have received—one dated July 13 from the American Bankers Association, the other dated July 14 from the National Association of Federal Credit Unions—in support of H.R. 1408. I am glad that we were able to seek and reach a compromise on this bill. I urge the quick passage of H.R. 1408.

AMERICAN BANKERS ASSOCIATION,
July 13, 2015.

Re: ABA Support for H.R. 1334, H.R. 1408 and H.R. 1529

MEMBERS OF THE HOUSE OF REPRESENTATIVES: On behalf of the members of the American Bankers Association (ABA), I am writing to express our strong support for three banking related measures that are scheduled for consideration on the House suspension calendar on Tuesday, July 14.

H.R. 1334, the Holding Company Registration Threshold Equalization Act, introduced by Representatives Steve Womack (R-AR), Jim Himes (D-CT), Ann Wagner (R-MO) and John Delaney (D-MD), would extend to savings and loan holding companies (SLHCs) the Securities and Exchange Commission shareholder registration and deregistration thresholds enacted under the JOBS Act.

The JOBS Act did not expressly extend the new shareholder thresholds to savings and loan holding companies (SLHCs) as defined by the Home Owners Loan Act. However, Congress did not intend to treat SLHCs differently from bank and bank holding companies. H.R. 1334 would correct this oversight and extend the shareholder registration and deregistration requirements to SLHCs.

This bill passed the House Financial Services Committee on May 20, 2015 by a vote of 60–0 and passed the full House last Congress by an overwhelming vote of 417–4. We urge the members to once again pass this legislation.

In addition, the House will consider H.R. 1408, the Community Bank Mortgage Servicing Asset Capital Requirements Act of 2015 introduced by Representatives Ed Perlmutter (D-CO) and Blaine Luetkemeyer (R-MO). This ABA supported legislation would defer implementation of the Basel III rules on mortgage servicing assets (''MSAs'') until the impact of the new rules can be studied and alternatives explored.

Many banks that make mortgage loans also engage in servicing, which primarily consists of collecting mortgage payments and forwarding them to the ''owner'' of the loan; collecting insurance and tax payments; and addressing problems such as late payments, delinquencies, and defaults. Banks commonly sell mortgage loans into the secondary market but retain the right to service the loan (called ''servicing retained''). This strategy is an important way for banks to maintain valuable connections with their

customers, while managing interest rate risk by selling long-term credit assets.

Banks are retaining less mortgage servicing due to Basel III's unfavorable capital treatment of MSAs. As a result, Basel III is unintentionally increasing the concentration of servicing held by less regulated, non-bank firms such as mortgage companies, REITs, hedge funds, and private equity firms that are not subject to the new capital restrictions. The long-term relationships that banks and their customers have established should not be penalized by Basel III's punitive capital treatment of MSAs.

Banks should be encouraged to service the loans that they make to their customers. This legislation stops the negative effects until the impact can be fully examined. The bill does not apply to the large international banks that Basel III was meant to address.

H.R. 1408 passed the House Financial Services Committee on March 26 by a strong bipartisan vote of 49–9. ABA urges strong support for this legislation.

The House will also consider H.R. 1529, the Community Institution Mortgage Relief Act of 2015, introduced by Representatives Brad Sherman (D-CA) and Blaine Luetkemeyer (R-MO). This bipartisan legislation, which passed the House Financial Services Committee by a vote of 48–10, would exempt from the escrow requirements imposed under the Dodd/Frank Act loans held by small creditors with less than $10 billion in assets. ABA supports the legislation's expansion of the Consumer Financial Protection Bureau's (CFPB) ''small servicer'' exemption to include servicers that annually service 20,000 or fewer mortgage loans. These important exemptions recognize the strong history of small institutions in providing high-quality mortgage servicing, even with limited staff and resources of smaller institutions.

Given their track record, small servicers should be incentivized to continue to service mortgage loans. Unfortunately, existing regulations are having the opposite effect. The existing escrow rules have the potential to drive small creditors from the mortgage market because it is difficult, if not impossible, for them to provide escrow services in a cost effective manner. Further, imposing escrow requirements often runs counter to customer preference as many mortgage customers prefer to pay tax and insurance bills on their own and not establish escrow accounts. Without the exemptions provided in this legislation, customers of smaller institutions will face higher costs to offset the cost of compliance for a service which they do not in some cases even want. Worse, some customers will face fewer credit choices as small local lenders choose to exit the mortgage market rather than incur the added staffing and technical expenses of adding escrow services. This is an important piece of legislation and ABA urges the House to pass H.R. 1529.

JAMES BALLENTINE,
Executive Vice President, Congressional Relations and Political Affairs.

NATIONAL ASSOCIATION OF FEDERAL CREDIT UNIONS,
Arlington, VA, July 14, 2015.

Re: Support for the Mortgage Servicing Asset Capital Requirements Act of 2015 (H.R. 1408)

Hon. JOHN BOEHNER,
Speaker, House of Representatives, Washington, DC.
Hon. NANCY PELOSI,
Minority Leader, House of Representatives, Washington, DC.

DEAR SPEAKER BOEHNER AND LEADER PELOSI: On behalf of the National Association of Federal Credit Unions (NAFCU), the only trade association exclusively representing the federal interests of our nation's federally insured credit unions, I write today to urge your support of the Mortgage Servicing Asset Capital Requirements Act of 2015 (H.R. 1408), as amended, when it comes to the House floor. This bipartisan measure introduced by Representatives Perlmutter and Luetkemeyer would, among other things, ensure that the National Credit Union Administration (NCUA) study its second risk-based capital proposal's impact on credit union mortgage servicing assets.

As you know, NAFCU has concerns about many aspects of the NCUA's risk-based capital proposal including the portion relative to mortgage servicing assets which has a risk weight of 250 percent. NAFCU believes this is artificially high and a risk weight of 150 percent is more appropriate. This portion of the proposal is indicative of much larger issues with NCUA's proposal and NAFCU continues to believe it is a solution in search of a problem. In short, this entire proposal should be withdrawn until adequate cost-benefit analysis is done to determine the impact it will have on credit union lending and job creation. While NAFCU does not oppose a risk-based capital regime for credit unions, it must be done properly through statue with ample Congressional input.

Not only does NAFCU urge passage of H.R. 1408 to look at the mortgage servicing assets portion of the NCUA's risk-based capital proposal, but we also encourage the House to support and schedule action on the Risk-Based Capital Study Act of 2015 (H.R. 2769). This bipartisan legislation, introduced by Representatives Fincher, Posey and Denny Heck, would require NCUA to study the full impact of the entire risk-based capital proposal on credit unions and report back to Congress before taking any final action on the proposal.

Again, thank you for scheduling the consideration of the Mortgage Servicing Asset Capital Requirements Act (H.R. 1408) on the floor this week. We urge strong support for this legislation and hope the appropriate capital requirements for credit unions continue to be a focus in the House during this Congress.

Sincerely,

BRAD THALER,
Vice President of Legislative Affairs.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield back the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I just want to reiterate my support and thanks for the hard work of the gentleman from Colorado. He has been a leader on this issue, and certainly it has been a pleasure to work with him.

I urge passage of H.R. 1408, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Missouri (Mr. LUETKEMEYER) that the House suspend the rules and pass the bill, H.R. 1408, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The title of the bill was amended so as to read: ''A bill to require certain Federal banking agencies to conduct a study of the appropriate capital requirements for mortgage servicing assets for banking institutions, and for other purposes.''.

A motion to reconsider was laid on the table.

SBIC ADVISERS RELIEF ACT OF 2015

Mr. LUETKEMEYER. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 432) to amend the Investment Advisers Act of 1940 to prevent duplicative regulation of advisers of small business investment companies.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 432

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''SBIC Advisers Relief Act of 2015''.

SEC. 2. ADVISERS OF SBICS AND VENTURE CAPITAL FUNDS.

Section 203(l) of the Investment Advisers Act of 1940 (15 U.S.C. 80b–3(l)) is amended—

(1) by striking ''No investment adviser'' and inserting the following:

''(1) IN GENERAL.—No investment adviser''; and

(2) by adding at the end the following:

''(2) ADVISERS OF SBICS.—For purposes of this subsection, a venture capital fund includes an entity described in subparagraph (A), (B), or (C) of subsection (b)(7) (other than an entity that has elected to be regulated or is regulated as a business development company pursuant to section 54 of the Investment Company Act of 1940).''.

SEC. 3. ADVISERS OF SBICS AND PRIVATE FUNDS.

Section 203(m) of the Investment Advisers Act of 1940 (15 U.S.C. 80b–3(m)) is amended by adding at the end the following:

''(3) ADVISERS OF SBICS.—For purposes of this subsection, the assets under management of a private fund that is an entity described in subparagraph (A), (B), or (C) of subsection (b)(7) (other than an entity that has elected to be regulated or is regulated as a business development company pursuant to section 54 of the Investment Company Act of 1940) shall be excluded from the limit set forth in paragraph (1).''.

SEC. 4. RELATIONSHIP TO STATE LAW.

Section 203A(b)(1) of the Investment Advisers Act of 1940 (15 U.S.C. 80b–3a(b)(1)) is amended—

(1) in subparagraph (A), by striking ''or'' at the end;

(2) in subparagraph (B), by striking the period at the end and inserting ''; or''; and

(3) by adding at the end the following:

''(C) that is not registered under section 203 because that person is exempt from registration as provided in subsection (b)(7) of such section, or is a supervised person of such person.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Missouri (Mr. LUETKEMEYER) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 20 minutes.

The Chair recognizes the gentleman from Missouri.

GENERAL LEAVE

Mr. LUETKEMEYER. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

Mr. LUETKEMEYER. Mr. Speaker, I yield myself such time as I may consume.

I rise today in support of H.R. 432, the SBIC Advisers Relief Act. This legislation allows for commonsense changes that will ultimately allow for greater small business capital formation and job creation.

The SBIC Advisers Relief Act streamlines the registration and reporting requirements for advisers to small business investment companies, or SBICs. These are advisers to investment funds that make long-term investments in United States small businesses and have to the tune of more than $63 billion since 1958.

SBICs are heavily regulated and closely supervised by the U.S. Small Business Administration, and they have been for more than 55 years. The existing regulatory regime surrounding SBICs includes an in-depth examination of management, strong investment rules, numerous operation requirements, recordkeeping, examination and reporting mandates, and conflict of interest rules. These entities and the management of these entities are anything but unregulated.

This robust regulatory framework has been well-recognized by Congress. The intent of Congress in including certain exemptions in Dodd-Frank was to reduce the regulatory burden on smaller funds and SBICs. However, the law has resulted in some unintended consequences that need to be addressed.

The SBIC Advisers Relief Act does three things:

One, it allows advisers that jointly advise SBICs and venture funds to be exempt from registration, combining two separate exemptions that exist: one for advisers of SBICs and a separate one for advisers of venture funds;

Two, it excludes SBIC assets from the SEC's assets under management threshold calculation; and

Three, it exempts from State regulation advisers of SBIC funds with less than $90 million in assets under management, leaving those entities to be regulated by the SBA, as they are today.

Mr. Speaker, I think we can all agree that these changes are common sense. This legislation is not only broadly bipartisan, but it also includes changes suggested by the SEC.

Most importantly, the bill is comprised of sensible provisions that prevent redundant regulatory mandates and allow for greater investment in America's small businesses.

The Financial Services Committee has thoroughly examined this bipartisan legislation in both a legislative hearing and a markup. H.R. 432 passed the committee by a vote of 53–0 in May. Identical legislation passed the House last year by a voice vote.

I want to thank the gentlewoman from New York (Mrs. CAROLYN B. MALONEY) for her help on the bill.

I urge support of H.R. 432, and I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am once again pleased to support this bill related to small business capital formation. This legislation has broad bipartisan support and clarifies the intent of Congress when we passed Dodd-Frank.

H.R. 432, which Representatives LUETKEMEYER and MALONEY worked on in a bipartisan fashion, exempts advisers to small business investment companies, or SBICs, from registration with the SEC in cases where they are inappropriately being required to do so.

Under the Dodd-Frank Act, Congress explicitly exempted advisers to SBIC funds and advisers to venture capital funds from registration. However, the SEC has interpreted the language in the act as still requiring registration if a fund's adviser advises both.

□ 1415

This, to me, is not consistent with the act, and I applaud the authors of this bill for solving this problem.

This bill would also exclude SBIC fund assets from the calculation of fund assets triggering the $150 million registration threshold, another provision I believe is reasonable.

The SBIC program was created in 1958 to help small businesses grow. It is a self-funded program and has provided needed capital to communities via the partnership between the Small Business Administration and private businesses.

I am also comfortable with the exemptions provided in this legislation because the SBA actively oversees SBICs, ensures compliance, and restricts leverage. I am pleased that we are able to work together in this committee to ensure the continued vitality of this longstanding program.

Last Congress, I met with an SBIC located just outside of my district, Escalate Capital Partners, which finances technology firms. Since 2010, the firm has financed 27 companies and increased its payroll by 2,000 jobs.

However, this firm is being inadvertently caught up in unnecessary SEC registration because, with SBIC assets under management being counted, it exceeds the $150 million exemption threshold we established in Dodd-Frank.

Without undermining the key systemic risk and investment protection requirements we established under Dodd-Frank, H.R. 432 provides Escalate Capital Partners and similarly situated SBICs with targeted relief.

So I applaud the bipartisan coauthors and urge Members to support this bill.

I reserve the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I yield such time as he may consume to the gentleman from New Jersey (Mr. GARRETT), a member of the Financial Services Committee and distinguished chairman of the Capital Markets and Government Sponsored Enterprises Subcommittee.

Mr. GARRETT. Mr. Speaker, I rise in support of H.R. 432, the SBIC Advisers Relief Act.

First I want to say thank you to the gentleman from Missouri (Mr. LUETKEMEYER) for his hard work and leadership on this issue, among others, and on the legislation, which passed out of the Financial Services Committee unanimously this past May.

And what would it do? It would fix yet another unintended consequence of the Dodd-Frank Act, an interpretation of the bill that would require unnecessary and costly registration of investment advisers who all play a very critical role in our economy today.

You see, the Dodd-Frank Act amended the private fund exemption under the Advisers Act to include an explicit exemption for advisers to both venture capital funds as well as advisers to Small Business Investment Companies, SBICs.

Whatever the merits of changing the private fund exemption in this way, Congress very clearly intended to exempt advisers to such funds from the burdens and the added costs associated with yet another SEC registration.

Unfortunately, due to the way the legislation text has been interpreted, someone who happens to advise both a venture capital fund and, also, an SBIC is being required now to also register with the SEC. This makes absolutely no sense and is clearly contradictory to the statutory language.

There is no valid argument or reason to require an adviser to register simply because they happen to advise both a venture capital fund and an SBIC. You see, such a requirement would not in any way enhance investor protection or promote capital formation.

It is also important to note that SBICs are already overseen and examined by the Small Business Administration; so registration with the SEC would not only be unnecessary, but duplicative as well.

So why is all of this important? Why do we have the legislation here today? Well, according to the Small Business Investor Alliance, initial registration costs with the SEC are estimated to be in excess of $100,000 a year and annual costs can run up to $250,000 a year. That is money. That is money that could otherwise be used for salaries and hiring more people and in helping the economy.

In conclusion, it is important to keep in mind that the small businesses that we are talking about often don't have an array of lawyers or compliance specialists to deal with registration and oversight from the SEC. Oftentimes these are businesses that only have a handful of employees.

Again, I thank the gentleman from Missouri (Mr. LUETKEMEYER) and all my colleagues on the other side of the aisle on the Financial Services Committee who support this. I urge passage of the underlying bill.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield such time as she may consume to the gentlewoman from New York (Mrs. CAROLYN B. MALONEY).

Mrs. CAROLYN B. MALONEY of New York. I thank the ranking member for

yielding and for her leadership on this committee and in so many other areas.

Mr. Speaker, I rise today in support of H.R. 432, the SBIC Advisers Relief Act. And I am pleased to be an original sponsor of this bill along with my colleague, the gentleman from Missouri (Mr. LUETKEMEYER), a tremendous leader on the Financial Services Committee not only on this bill, but in so many other areas.

The SBIC Advisers Relief Act fixes a truly unintended consequence of Dodd-Frank. Under Dodd-Frank, an investment adviser that only advises a venture capital fund is exempt from SEC registration.

Likewise, an investment adviser that only advises Small Business Investment Companies, or SBICs, is also exempt. But an investment adviser that advises both a venture capital fund and an SBIC is not exempt for some reason.

This makes no sense, and it provides no additional protections for investors. Moreover, it discourages investment advisers who may have experience advising successful venture capital funds that have invested in larger, more mature enterprises from bringing their expertise to SBICs who want to invest in similar startups. This ultimately restricts small businesses' access to much-needed investment capital.

Our bill fixes this problem by clarifying that investment advisers that advise both venture funds and SBICs are also exempt from SEC registration.

This fix does not pose any investor protection concerns because SBICs are already subject to strict oversight by the Small Business Administration, which supports SBICs by providing a guarantee on funds used by SBICs to invest in other small businesses.

The SBIC program has a long history of success and has provided early-stage financing for companies that have since grown to become worldwide icons, such as Apple, Intel, and Staples.

This bill is identical to a bill that passed the House by voice vote last Congress, and it passed unanimously in the Financial Services Committee earlier this year. I, therefore, urge my colleagues to support H.R. 432.

Mr. LUETKEMEYER. Mr. Speaker, I yield such time as he may consume to the gentleman from Arkansas (Mr. HILL), who is a member of the Financial Services Committee.

Mr. HILL. I thank Chairman LUETKEMEYER.

Mr. Speaker, I rise today in support of H.R. 432, the SBIC Advisers Relief Act. This commonsense bill eliminates costly, confusing, and duplicative regulations by State and Federal governments on Small Business Investment Companies, SBICs, like Diamond State Ventures and McLarty Capital Partners in Little Rock, Arkansas, by correcting the unintended consequence of drafting in the Dodd-Frank Act.

Diamond State, which was named SBIC of the year in 2011 by the Small Business Administration, has made over 18 investments in small businesses in my State, employing over 2,300 Arkansans and investing over $40 million in Arkansas businesses.

SBICs are already heavily regulated by the SBA and provide significant, long-term investments in small businesses across the USA.

While Dodd-Frank exempted advisers that solely advise SBIC funds from registering with the SEC, it was silent on the concept of State regulation of Federally licensed SBIC funds, creating confusion and requiring this action today. It is going to save money, legal fees, accounting fees, and make our SBICs much more cost-effective.

With that, I thank Chairman LUETKEMEYER and our colleagues for their work on this issue and urge my colleagues to support the bill.

Ms. MAXINE WATERS of California. Mr. Speaker, I have no additional speakers.

I yield back the balance of my time.

Mr. LUETKEMEYER. Mr. Speaker, I just want to thank the gentlewoman from New York (Mrs. CAROLYN B. MALONEY) for her hard work in helping cosponsor this bill, Ranking Member WATERS, as well as the gentleman from Arkansas (Mr. HILL) and the gentleman from New Jersey (Mr. GARRETT) for their support and kind words. I ask for support for H.R. 432.

I yield back the balance of my time.

The SPEAKER pro tempore (Mr. DUNCAN of Tennessee). The question is on the motion offered by the gentleman from Missouri (Mr. LUETKEMEYER) that the House suspend the rules and pass the bill, H.R. 432.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

HOLDING COMPANY REGISTRATION THRESHOLD EQUALIZATION ACT OF 2015

Mr. HURT of Virginia. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 1334) to amend the Securities Exchange Act of 1934 to make the shareholder threshold for registration of savings and loan holding companies the same as for bank holding companies.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 1334

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Holding Company Registration Threshold Equalization Act of 2015''.

SEC. 2. REGISTRATION THRESHOLD FOR SAVINGS AND LOAN HOLDING COMPANIES.

The Securities Exchange Act of 1934 (15 U.S.C. 78a et seq.) is amended—

(1) in section 12(g)—

(A) in paragraph (1)(B), by inserting after ''is a bank'' the following: '', a savings and loan holding company (as defined in section 10 of the Home Owners' Loan Act),''; and

(B) in paragraph (4), by inserting after ''case of a bank'' the following: '', a savings and loan holding company (as defined in section 10 of the Home Owners' Loan Act),''; and

(2) in section 15(d), by striking ''case of bank'' and inserting the following: ''case of a bank, a savings and loan holding company (as defined in section 10 of the Home Owners' Loan Act),''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. HURT) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

GENERAL LEAVE

Mr. HURT of Virginia. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. HURT of Virginia. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 1334, the Holding Company Registration Threshold Equalization Act.

I would like to thank Representatives WOMACK, HIMES, WAGNER, and DELANEY for their bipartisan work to achieve a unanimous vote in the Financial Services Committee.

H.R. 1334 provides a technical correction to the JOBS Act in the truest sense of the term. The JOBS Act updated the shareholder threshold for bank holding companies to register and deregister under the Securities Exchange Act to 2,000 shareholders and 1,200 shareholders respectively.

However, due to a technical oversight, the statute did not specifically extend the same treatment to savings and loan holding companies, despite their being similarly organized to bank holding companies.

Since the enactment of the JOBS Act, dozens of bank holding companies have taken advantage of these provisions while savings and loan holding companies have been forced to wait for action from Congress to correct the error.

By putting savings and loan holding companies on par with banks, H.R. 1334 provides these institutions the same flexibility as banks to reduce their SEC-related compliance costs and better deploy capital throughout their communities. H.R. 1334 is identical to legislation that received 417 votes in the House last Congress.

I ask my colleagues to join me in supporting this commonsense, bipartisan legislation.

I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, it is my understanding that this bill addresses an oversight in the JOBS Act that established new,

higher thresholds for registration, termination of registration, and suspension of public reporting for banks and bank holding companies, but not for savings and loan companies.

In the JOBS Act, we recognized that banks and bank holding companies were inadvertently becoming public companies by virtue of their securities being distributed to a larger number of shareholders than permitted under the securities laws, even though these institutions were largely held within their own communities.

Accordingly, we provided banks and bank holding companies with regulatory relief by raising the thresholds that trigger public company reporting.

H.R. 1334 would extend this relief to savings and loan companies which, like banks and bank holding companies, are still subject to mandatory public reporting requirements by the banking regulators; so information will continue to be available to shareholders and the public.

Last Congress, we passed this noncontroversial bill out of committee and on the House floor. Since that time, the Securities and Exchange Commission has, under its own authority, proposed to extend the JOBS Act provision to savings and loan companies.

□ 1415

The SEC estimates that approximately 90 of the 125 savings and loan holding companies that have a class of registered securities would be eligible to terminate registration or suspend reporting under its proposal.

I am pleased to support this bill, which will extend the benefits we provide in the JOBS Act to those 90 companies that represent an additional class of community banks.

Mr. Speaker, I reserve the balance of my time.

Mr. HURT of Virginia. Mr. Speaker, I yield such time as he may consume to the gentleman from Arkansas (Mr. WOMACK).

Mr. WOMACK. Mr. Speaker, I thank the manager of this legislation for the time. I would like to also thank Chairman HENSARLING and the entire Financial Services Committee for, yet again, ensuring that this bill, the Holding Company Registration Threshold Equalization Act, is put in front of the full House and sent on to the Senate.

I would also like to express my gratitude to my colleagues on both sides of the aisle, Representative HIMES, Representative WAGNER, and Representative DELANEY, for their continued efforts to codify this necessary JOBS Act clarification.

Mr. Speaker, this is the third time that I have come to the floor to speak on this truly bipartisan bill, and it is unfortunate that we are still without a successful resolution to the problem because we can all agree that small community banks and savings and loan holding companies were not the cause of the financial crisis. They shouldn't be treated as if they were.

That is exactly why the House and Senate eliminated some of the unnecessary burdens placed on our small lenders by passing the JOBS Act in the 112th Congress. However, the JOBS Act, which raised the registration threshold and decreased deregistration threshold for bank holding companies, unfortunately didn't explicitly do so for savings and loan holding companies as well. Mr. Speaker, this was an oversight.

Thanks to the oversight, savings and loan holding companies are still having to spend their resources to comply with regulations intended for larger banks, instead of sharing the same ability bank and bank holding companies have been granted to focus on serving the lending needs of their communities.

A cosponsor of the JOBS Act, I can say with absolute certainty that excluding savings and loan holding companies was not our intent. H.R. 1334 would correct this oversight and would simply ensure that savings and loan holding companies are treated in the same manner as bank and bank holding companies, something my colleagues confidently affirmed when this bill passed in the 113th Congress 417–4.

Mr. Speaker, they say the third time is the charm. I am hopeful that, with the Senate's newfound leadership, we will finally get this bill where it needs to be, on the President's desk.

I urge my colleagues to help me get it there by supporting the passage of H.R. 1334.

Ms. MAXINE WATERS of California. Mr. Speaker, I am very pleased to stand here with my colleagues on both sides of the aisle today to support so many pieces of legislation that have come out of the Financial Services Committee.

I have always said with Dodd-Frank, where there were technical problems or oversights or unintended consequences, that I would work with my colleagues on the opposite side of the aisle, and much of what you see here today, that is what we have done.

Just as there may have been some unintended consequences in Dodd-Frank, we find that with the JOBS Act, there were unintended consequences; and certainly, I stand with them in correcting those. It could happen in any legislation; we know that. This is an example of that. I am very, very pleased to support this legislation today.

I reserve the balance of my time at this moment.

Mr. HURT of Virginia. Mr. Speaker, I yield such time as he may consume to the gentleman from New Jersey (Mr. GARRETT), the chairman of the Capital Markets Subcommittee.

Mr. GARRETT. Mr. Speaker, I thank the gentleman for his work on this. I also thank Mr. WOMACK and Mr. HIMES of Connecticut for all of their work on H.R. 1334.

I am thankful for the great bipartisan message that we just heard from the ranking member as well on the JOBS Act, and I will look forward to working with her even more for those technical corrections on the Dodd-Frank piece of legislation. I am looking forward to doing that going forward.

As she says, there is little doubt that the JOBS Act did have a positive impact upon our economy, as evidenced by the boost in initial public offerings since 2012 and the number of companies, both public and private, that are taking advantage of some of the law's provisions right now.

Title VI of the JOBS Act included an important provision that the gentlewoman talked about, that increased the outdated shareholder thresholds that determined just when banks and bank holding companies have to register with the SEC.

These thresholds, by the way, they have been around for a long time. They haven't been changed for over four decades. What they were doing is they were basically forcing the smaller companies, the small banks, to register as full reporting companies with the SEC, and that is really a very costly burden on them. It is very often the case that it is inappropriate for small lenders who are already regulated and examined by a series of bank regulators.

As the gentlewoman points out, we had a slight oversight in the drafting of the JOBS Act. The SEC, at first, they did not include savings and loans companies under the updated threshold; and this made no sense, particularly when considering that S&Ls perform largely the same functions as banks and are overseen by the same regulators.

With few exceptions, S&Ls tend to be generally small institutions that serve the local communities. This registration with the SEC would have had the ultimate effect of raising the cost of lending to families and small businesses.

This would be the exact opposite of what the JOBS Act intended. The underlying legislation would make a technical correction to the JOBS Act. It would ensure that the S&Ls are able to take advantage of the new provisions of the law.

One final point, while the SEC, last December, proposed to include S&Ls under the new thresholds, a regulation that can be taken away at any moment is no substitute for what we have here, statutory text. Congress has a clear role here to step in and fix the issue.

Again, I thank Mr. WOMACK and Mr. HIMES for their work in fixing that issue; and I urge passage of the underlying legislation.

Ms. MAXINE WATERS of California. Mr. Speaker, I have no additional speakers.

I yield back the balance of my time.

Mr. HURT of Virginia. Mr. Speaker, I want to thank the chairman of the Subcommittee on Capital Markets for his leadership on this. I want to thank the ranking member for her spirit of

bipartisan cooperation in fixing this part of the JOBS Act.

In conclusion, it is my hope that this House will pass this good, commonsense measure.

Mr. Speaker, I yield back the balance of my time.

Mr. CARTER of Georgia. Mr. Speaker, I rise today in support of H.R. 1334, the Holding Company Registration Threshold Equalization Act of 2015.

In 2012, Congress raised the threshold number of shareholders a bank can have before they must register with Securities and Exchange Commission from 500 to 2,000.

At the same time, Congress raised the threshold for bank shareholders from 300 to 1,200 before a bank could deregister for the Securities and Exchange Commission and convert to a private bank.

However, due to a drafting oversight, these raised thresholds currently do not apply to savings and loan institutions.

These institutions are vital for the continued development and growth of our economy.

For a large segment of American homeowners, savings and loan institutions are the primary source of financial assistance for purchasing a home.

Some would say that the structure in which these companies are built is the same structure that our country was built. They are generally locally owned and privately managed; and communities use these businesses as a savings institution and use these funds to help other individuals in the community construct, purchase, repair, or refinance their home.

With a locally owned, community driven foundation, it is wrong to subject these businesses to the same level of oversight and regulation as a large bank without affording them the same registration and deregistration thresholds.

I support this bill because I believe Congress must use every effort to build up the American people on a local level. We are not going to grow our economy from Washington, D.C., but we can create an environment on a state and local level that empowers Americans to grow themselves.

I would like to thank my colleague from Arkansas, Mr. WOMACK, for his hard work on this issue and I urge my colleagues to support this bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. HURT) that the House suspend the rules and pass the bill, H.R. 1334.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

SMALL COMPANY SIMPLE REGISTRATION ACT OF 2015

Mr. HURT of Virginia. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 1723) to direct the Securities and Exchange Commission to revise Form S–1 so as to permit smaller reporting companies to use forward incorporation by reference for such form.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 1723

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Small Company Simple Registration Act of 2015''.

SEC. 2. FORWARD INCORPORATION BY REFERENCE FOR FORM S–1.

Not later than 45 days after the date of the enactment of this Act, the Securities and Exchange Commission shall revise Form S–1 so as to permit a smaller reporting company (as defined in section 230.405 of title 17, Code of Federal Regulations) to incorporate by reference in a registration statement filed on such form any documents that such company files with the Commission after the effective date of such registration statement.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. HURT) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

GENERAL LEAVE

Mr. HURT of Virginia. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. HURT of Virginia. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 1723, the Small Company Simple Registration Act. I would like to thank Representative WAGNER and Representative SEWELL for their efforts to successfully move this legislation through the Financial Services Committee on a unanimous, bipartisan vote.

H.R. 1723 simplifies the registration process by amending the SEC's form S–1 registration statement, the basic registration form for new securities offerings, to allow smaller reporting companies to incorporate by reference any documents filed with the SEC after the effective date of the form S–1.

This forward incorporation by reference eliminates the need for filing excessive paperwork with each subsequent filing, thereby lowering compliance costs associated with filing redundant paperwork. Streamlining this requirement allows eligible companies to direct more resources to growing their business.

H.R. 1723 is consistent with the recommendations of the SEC's Government-Business Forum on Small Business Capital Formation final report and has been endorsed by several witnesses before the Capital Markets Subcommittee.

For example, Tom Quaadman of the United States Chamber of Commerce testified that, by enacting H.R. 1723, smaller companies can use forward incorporation as a way to streamline disclosures and get the information to investors without repetitive disclosures. He went on to say that the explosion of disclosures for smaller companies isn't providing material information to investors.

Additionally, Professor John Coffee with Columbia University Law School previously testified that, for some time, the SEC's Government-Business Forum on Small Business Capital Formation has called for changes to permit smaller reporting companies that have filed a form S–1 to incorporate, by reference, documents filed with the SEC. I believe this one does have real efficiency justifications and could help smaller issuers.

H.R. 1723 is a commonsense update to our securities laws that will more appropriately tailor their requirement for smaller companies. I ask my colleagues to join me in supporting H.R. 1723.

I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, H.R. 1723, the Small Company Simple Registration Act of 2015 is a commonsense provision to help smaller companies avoid having to obtain an audit related to a filing that is itself already audited. The bill would no longer require a company to amend its registration statement when it issues a quarterly or annual filing.

Although one witness noted the concern that all information would no longer be reflected in a single document, she recommended that the SEC's public filing system be improved and that the issuer be required to post the registration statement on its Web site, complete with hyperlinks to the documents that are incorporated by reference. This seems like a reasonable approach. I believe that the SEC can do both and likely would if H.R. 1723 is passed.

This one change has the potential to help companies save $10,000, and with all SEC filings able to be quickly found online, it does not diminish investor protections in any way.

Last Congress, this provision was unfortunately attached to a larger bill that did not make a lot of sense. I am glad to see it has now been offered on its own, as I think it now has a much better likelihood of moving to the President's desk. I certainly support the adoption of this bill.

Mr. Speaker, I reserve the balance of my time.

Mr. HURT of Virginia. Mr. Speaker, I yield such time as she may consume to the gentlewoman from Missouri (Mrs. WAGNER), who is the author of this bill.

Mrs. WAGNER. Mr. Speaker, I thank my colleague, Mr. HURT, for yielding.

I am glad that the House is taking up H.R. 1723, the Small Company Simple Registration Act, which will take a much-needed step in helping remove financial barriers and make it more efficient for small businesses to go public.

This bipartisan legislation, which I have sponsored with Ms. TERRI SEWELL from Alabama and which was approved by the House Financial Services Committee on a completely unanimous

vote of 60–0, would make a simple change in the basic registration form for new securities offerings, the form S–1.

Specifically, it would allow smaller reporting companies to incorporate by reference any documents filed with the SEC after the effective date, which means that those companies will not have to go through the trouble of refiling the form S–1 again and again.

□ 1430

This will have a profound impact on these small companies by cutting compliance costs, as they will not have to file redundant paperwork and wait on the SEC to approve their filing in order to raise capital and grow their small business.

Small companies are increasingly leading the way in terms of technological innovation and job creation but consistently struggle with finding adequate access to capital in order to grow their business. It is a fact that small businesses are the main driver of economic growth in our country, as they create more jobs than any other business sector in America.

In fact, the Kauffman Foundation, which is a nonprofit economic resource organization based in Kansas City, Missouri, estimated in 2010 that startups create an average of 3 million jobs annually and stated: ''Without startups, there would be no net job growth in the U.S. economy.'' It is clear that we must empower small businesses with every avenue to grow and, therefore, create jobs.

For many small businesses looking to take the next step in expanding, going public is an attractive option that grants them access to the capital markets and allows them to issue stock to a wider range of investors. However, the ''price of admission'' for this avenue to raising capital is continually increasing through the amount of compliance and red tape required. For many, it simply is not worth it.

Indeed, our securities laws are structured today in a way that favors large companies over small startups, which are struggling to gain market share, by increasingly requiring more legal compliance and providing exemptions for companies over certain revenue thresholds.

The JOBS Act from 2012 made many improvements to this system and provided small companies additional access to the equity markets. My bill, the Small Company Simple Registration Act, expands upon the progress of the JOBS Act by making securities registration forms more efficient for the main driver of our economy, small business.

During a hearing before the House Financial Services Committee earlier this year, a representative of BIO, Mr. Kovacs from PTC Therapeutics, testified about their experiences with doing a follow-on offering inside of a year of their IPO using form S–1. Ultimately, they had to go and update the entire S–1, which is a process that took weeks of work and required help from outside legal counsel.

If the ''forward incorporation by reference'' provision from H.R. 1723 had been in place, they could simply include a reference to any additional documentation filed alongside their original S–1 form, which would have taken much less time and required significantly less legal help.

Additionally, investors would still be protected by having access to all needed information from the S–1 form, as well as any additional documentation.

I would like to close by urging support for this commonsense and strong bipartisan piece of legislation that would streamline the paperwork that small businesses are required to file. This is something that the SEC's own working group on small business capital formation has recommended for several years now, but which the SEC itself has failed to act upon.

Furthermore, this piece of legislation passed the committee earlier this year on a unanimous vote 60–0.

I urge passage of this legislation.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

I am pleased to also support this legislation. This bipartisan legislation is another example of how we can work together on the Financial Services Committee on behalf of small businesses in this country.

Both Democrats and Republicans have said over and over again that we must do everything that we can to support our small businesses. That is from capital formation to making sure that we get rid of bureaucratic rules and regulations.

Again, this is another great example of that, and I am pleased to be a part of that.

Mr. Speaker, I yield back the balance of my time.

Mr. HURT of Virginia. Mr. Speaker, I yield myself such time as I may consume.

I would, again, like to thank the ranking member for working together on this piece of bipartisan legislation.

I also want to thank the chairman, Chairman HENSARLING, as well as Representative WAGNER and Representative SEWELL, for their laser focus on streamlining SEC regulations that are unnecessary and costly while still maintaining a rock-solid commitment to investor protection. It is my hope the House will adopt this measure.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. HURT) that the House suspend the rules and pass the bill, H.R. 1723.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. HURT of Virginia. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

SWAP DATA REPOSITORY AND CLEARINGHOUSE INDEMNIFICATION CORRECTION ACT OF 2015

Mr. HURT of Virginia. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 1847) to amend the Securities Exchange Act of 1934 and the Commodity Exchange Act to repeal the indemnification requirements for regulatory authorities to obtain access to swap data required to be provided by swaps entities under such Acts, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 1847

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Swap Data Repository and Clearinghouse Indemnification Correction Act of 2015''.

SEC. 2. REPEAL OF INDEMNIFICATION REQUIREMENTS.

(a) DERIVATIVES CLEARING ORGANIZATIONS.—Section 5b(k)(5) of the Commodity Exchange Act (7 U.S.C. 7a–1(k)(5)) is amended to read as follows:

''(5) CONFIDENTIALITY AGREEMENT.—Before the Commission may share information with any entity described in paragraph (4), the Commission shall receive a written agreement from each entity stating that the entity shall abide by the confidentiality requirements described in section 8 relating to the information on swap transactions that is provided.''.

(b) SWAP DATA REPOSITORIES.—Section 21 of such Act (7 U.S.C. 24a) is amended—

(1) in subsection (c)(7)—

(A) in the matter preceding subparagraph (A), by striking ''all'' and inserting ''swap''; and

(B) in subparagraph (E)—

(i) in clause (ii), by striking ''and'' at the end; and

(ii) by adding at the end the following:

''(iv) other foreign authorities; and''; and

(2) by striking subsection (d) and inserting the following:

''(d) CONFIDENTIALITY AGREEMENT.—Before the swap data repository may share information with any entity described in subsection (c)(7), the swap data repository shall receive a written agreement from each entity stating that the entity shall abide by the confidentiality requirements described in section 8 relating to the information on swap transactions that is provided.''.

(c) SECURITY-BASED SWAP DATA REPOSITORIES.—Section 13(n)(5) of the Securities Exchange Act of 1934 25 (15 U.S.C. 78m(n)(5)) is amended—

(1) in subparagraph (G)—

(A) in the matter preceding clause (i), by striking ''all'' and inserting ''security-based swap''; and

(B) in subclause (v)—

(i) in subclause (II), by striking ''; and'' and inserting a semicolon;

(ii) in subclause (III), by striking the period at the end and inserting ''; and''; and

(iii) by adding at the end the following:

''(IV) other foreign authorities.''; and

(2) by striking subparagraph (H) and inserting the following:

''(H) CONFIDENTIALITY AGREEMENT.—Before the security-based swap data repository may share information with any entity described in subparagraph (G), the security-based swap data repository shall receive a written agreement from each entity stating that the entity shall abide by the confidentiality requirements described in section 24 relating to the information on security-based swap transactions that is provided.''.

(d) EFFECTIVE DATE.—The amendments made by this Act shall take effect as if enacted as part of the Dodd-Frank Wall Street Reform and Consumer Protection Act (Public Law 111–203) on July 21, 2010.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. HURT) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

GENERAL LEAVE

Mr. HURT of Virginia. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous material on the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. HURT of Virginia. Mr. Speaker, I ask unanimous consent to yield all remaining time to the gentleman from Georgia (Mr. AUSTIN SCOTT) and ask unanimous consent that he be allowed to control the time.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. AUSTIN SCOTT of Georgia. Mr. Speaker, I yield myself such time as I may consume.

I rise today in support of H.R. 1847, the Swap Data Repository and Clearinghouse Indemnification Correction Act of 2015.

I want to thank Mr. HURT and Chairman HENSARLING for allowing the Agriculture Committee to manage time with them today. The members of our committee have always appreciated the close working relationship that we have with the Financial Services Committee on these financial and regulatory issues.

H.R. 1847 is a targeted correction to remove barriers to information sharing. Dodd-Frank currently requires indemnification agreements from foreign regulators requesting information from U.S. swap data repositories or derivatives clearing organizations.

The agreements state that the foreign regulators will abide by certain confidentiality requirements and indemnify the U.S. commissions for any expenses arising from litigation relating to the request for information.

Unfortunately, the concept of indemnification does not exist in many foreign jurisdictions. Therefore, some foreign regulators cannot agree to these requirements. This may hinder our ability to make workable data sharing arrangements with those regulators and, ultimately, fragment the marketplace by encouraging them to establish their own data repositories.

H.R. 1847 addresses this potential data sharing problem by removing the indemnification requirements from current law, while maintaining existing provisions requiring confidentiality obligations.

This technical correction has been a longstanding priority for Congress. Similar legislation passed the House in the 113th Congress by a vote of 420–2 and passed the House again this year as part of H.R. 37, the Promoting Job Creation and Reducing Small Business Burdens Act.

Additionally, this identical language was included in H.R. 2289, the Commodity End-User Relief Act, after a small technical change was offered by Ms. MOORE and Mr. CRAWFORD and accepted by the House.

I urge my colleagues to join me in supporting H.R. 1847 to ensure that regulators and market participants have access to a global set of swap market data.

I reserve the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON AGRICULTURE,
Washington, DC, July 13, 2015.

Hon. JEB HENSARLING,
Chairman, Committee on Financial Services, House of Representatives, Washington, DC.

DEAR CHAIRMAN HENSARLING: I am writing concerning H.R. 1847, the ''Swap Data Repository and Clearinghouse Indemnification Correction Act of 2015.''

This legislation contains provisions within the Committee on Agriculture's Rule X jurisdiction. As a result of your having consulted with the Committee and in order to expedite this bill for floor consideration, the Committee on Agriculture will forego action on the bill. This is being done on the basis of our mutual understanding that doing so will in no way diminish or alter the jurisdiction of the Committee on Agriculture with respect to the appointment of conferees, or to any future jurisdictional claim over the subject matters contained in the bill or similar legislation.

I would appreciate your response to this letter confirming this understanding, and would request that you include a copy of this letter and your response in the Committee Report and in the Congressional Record during the floor consideration of this bill. Thank you in advance for your cooperation.

Sincerely,

K. MICHAEL CONAWAY,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FINANCIAL SERVICES,
Washington, DC, July 14, 2015.

Hon. MICHAEL CONAWAY,
Chairman, Committee on Agriculture, Washington, DC.

DEAR CHAIRMAN CONAWAY: Thank you for your July 13 letter regarding H.R. 1847, the ''Swap Data Repository and Clearinghouse Indemnification Correction Act of 2015''.

I am most appreciative of your decision to forego action on H.R. 1847 so that it may move expeditiously to the House floor. I acknowledge that although you are waiving action on the bill, the Committee on Agriculture is in no way waiving its jurisdiction over any subject matter contained in the bill that falls within its jurisdiction. In addition, if a conference is necessary on this legislation, I will support any request that your committee be represented therein.

Finally, I shall be pleased to include your letter and this letter in our committee's report on H.R. 1847 and in the Congressional Record during floor consideration of the same.

Sincerely,

JEB HENSARLING,
Chairman.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, transparent trading of derivatives, along with realtime reporting of trades to swap data repositories, is a crucial element of the Dodd-Frank Act.

This bill makes necessary technical changes to better enable our Nation's regulators to share that data about derivatives with one another and with their foreign counterparts.

An unintended result in Dodd-Frank of trying to protect both regulators and the data repositories from burdensome litigation was that other regulators lacked the authority to pay future legal expenses, thus threatening to prevent the sharing of information.

This was clearly not intended as one of the primary goals of title VII, to enable regulators and the public to better understand the derivatives market. H.R. 1847 addresses those concerns and is supported by the industry and advocates, like Americans for Financial Reform, alike.

I also understand that the bill includes additional changes to the legislation requested by the SEC to better target the statutory change.

I thank Representative MOORE and Representative CRAWFORD for working together in a bipartisan manner to address these issues and solve a very real threat to cross-border regulatory cooperation and oversight.

I urge support of this legislation, and I reserve the balance of my time.

Mr. AUSTIN SCOTT of Georgia. I yield such time as he may consume to the gentleman from Arkansas (Mr. CRAWFORD) and thank him for his continued work on this technical but critical issue.

Mr. CRAWFORD. Mr. Chairman, I thank the distinguished chairman of the subcommittee, Mr. SCOTT, and I would like to thank the other cosponsors of this bill, Mr. HUIZENGA, Ms. MOORE, and Mr. MALONEY, for joining me in this bipartisan effort to help bring transparency to the global swap markets. I certainly appreciate the subcommittee chairman's support as well.

While I might not agree with every provision in the Dodd-Frank law today, I believe we are working towards its bipartisan goal of giving regulators the tools they need to improve systemic risk mitigation in the global financial markets.

I think everyone agrees that the lack of transparency and the over-the-counter derivatives markets escalated the financial crisis of 2008. In order to provide market transparency, the Dodd-Frank law requires posttrade reporting to swap data repositories, or

SDRs as they are called, so that regulators and market participants have access to realtime market data that will help identify systemic risk in the financial system. So far, we have made great strides in reaching this goal, but, unfortunately, a provision in the law threatens to undermine our progress unless we fix it.

Currently, Dodd-Frank requires a provision requiring a foreign regulator to indemnify a U.S.-based SDR from any expenses arising from litigation relating to a request from market data. While the intent of the provision was to protect market confidentiality, in practice, it threatens to fragment global data on swap markets because it is a major stumbling block to our regulators' abilities to coordinate with foreign counterparts.

The intended result is a fragmented global data framework where regulators were unable to see a complete picture of the marketplace. Without effective coordination between international regulators and SDRs, monitoring and mitigating global systematic risk is severely limited.

My bill fixes this problem by removing the indemnification provisions in Dodd-Frank. This legislation has broad bipartisan support and passed the House by an overwhelming vote of 420–2 in the last Congress, as Chairman SCOTT indicated. Additionally, both the SEC and CFTC are on record supporting this bill.

If left unresolved, the indemnification provision in Dodd-Frank has the potential to reduce transparency in the over-the-counter derivatives markets and undo the great progress already being made through the cooperative efforts of more than 50 regulators worldwide.

In passing this legislation, we ensure that regulators will have access to a global set of swap market data, which is essential to maintaining the highest degree of market transparency and risk mitigation.

I strongly urge my colleagues to vote ''yes'' on this bill.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield such time as she may consume to the gentlewoman from Wisconsin (Ms. MOORE), who happens to be the ranking member for the Subcommittee on Monetary Policy and Trade.

□ 1445

Ms. MOORE. Mr. Speaker, I thank the madam ranking member for this opportunity to speak on H.R. 1847.

I also want to thank all of my cosponsors on this legislation: Representative HUIZENGA, Representative CRAWFORD, and Representative SEAN PATRICK MALONEY.

Mr. Speaker, the House Financial Services and Agriculture Committees passed this legislation with bipartisan support and without controversy in 2013, 2014, and 2015. This bill has passed the House several times with overwhelming margins, and it is supported by the SEC.

At the Bipartisan Policy Center's 5-year look-back at Dodd-Frank just last week, the question was put to former Commodity Futures Trading Commissioner Jill Sommers: What is yet to be done in Dodd-Frank that needs to be done? Her answer: fixing the indemnification provision.

Here we are today, and we have an opportunity to do this with that bill. Let me try to make this really simple.

A major objective of the Dodd-Frank Act was to improve transparency and to eliminate systemic risk mitigation in global derivatives markets. This bill is a technical fix to ensure that the goal of swaps transparency is realized.

In fact, Dodd-Frank requires post-trade reporting to swap data repositories. During the crisis, these SDRs did not exist.

As a matter of fact, to quote Warren Buffett when he described the situation we were in, he said:

Only when the tide goes out do you discover who has been swimming naked.

This is a really important feature in Dodd-Frank. However, as written, a provision threatens the reporting regime and threatens to fragment the collection of data by imposing an unnecessary requirement on foreign SDRs and regulators that would impede compliance.

By eliminating this unnecessary requirement, this bill makes it possible to achieve the goal of bringing comprehensive swap trade information, transparency, and oversight to the global derivatives markets.

Regardless of your position on derivatives or on Dodd-Frank, this bill makes sense, and I urge all of my colleagues to support it.

Ms. MAXINE WATERS of California. Mr. Speaker, I have no additional speakers.

I yield back the balance of my time.

Mr. AUSTIN SCOTT of Georgia. Mr. Speaker, in closing, I want to thank both the Democrats and the Republicans who have worked on this.

The House has acted several times in a bipartisan manner on this legislation—420–2 on very similar legislation. We have passed this multiple times; so I would just encourage all Members to support this piece of legislation.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. HURT) that the House suspend the rules and pass the bill, H.R. 1847, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

IMPROVING ACCESS TO CAPITAL FOR EMERGING GROWTH COMPANIES ACT

Mr. HURT of Virginia. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 2064) to amend certain provisions of the securities laws relating to the treatment of emerging growth companies, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 2064

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Improving Access to Capital for Emerging Growth Companies Act''.

SEC. 2. FILING REQUIREMENT FOR PUBLIC FILING PRIOR TO PUBLIC OFFERING.

Section 6(e)(1) of the Securities Act of 1933 (15 U.S.C. 77f(e)(1)) is amended by striking ''21 days'' and inserting ''15 days''.

SEC. 3. GRACE PERIOD FOR CHANGE OF STATUS OF EMERGING GROWTH COMPANIES.

Section 6(e)(1) of the Securities Act of 1933 (15 U.S.C. 77f(e)(1)) is further amended by adding at the end the following: ''An issuer that was an emerging growth company at the time it submitted a confidential registration statement or, in lieu thereof, a publicly filed registration statement for review under this subsection but ceases to be an emerging growth company thereafter shall continue to be treated as an emerging market growth company for the purposes of this subsection through the earlier of the date on which the issuer consummates its initial public offering pursuant to such registrations statement or the end of the 1-year period beginning on the date the company ceases to be an emerging growth company.''.

SEC. 4. SIMPLIFIED DISCLOSURE REQUIREMENTS FOR EMERGING GROWTH COMPANIES.

Section 102 of the Jumpstart Our Business Startups Act (Public Law 112–106) is amended by adding at the end the following:

''(d) SIMPLIFIED DISCLOSURE REQUIREMENTS.—With respect to an emerging growth company (as such term is defined under section 2 of the Securities Act of 1933):

''(1) REQUIREMENT TO INCLUDE NOTICE ON FORMS S–1 AND F–1.—Not later than 30 days after the date of enactment of this subsection, the Securities and Exchange Commission shall revise its general instructions on Forms S–1 and F–1 to indicate that a registration statement filed (or submitted for confidential review) by an issuer prior to an initial public offering may omit financial information for historical periods otherwise required by regulation S–X (17 C.F.R. 210.1–01 et seq.) as of the time of filing (or confidential submission) of such registration statement, provided that—

''(A) the omitted financial information relates to a historical period that the issuer reasonably believes will not be required to be included in the Form S–1 or F–1 at the time of the contemplated offering; and

''(B) prior to the issuer distributing a preliminary prospectus to investors, such registration statement is amended to include all financial information required by such regulation S–X at the date of such amendment.

''(2) RELIANCE BY ISSUERS.—Effective 30 days after the date of enactment of this subsection, an issuer filing a registration statement (or submitting the statement for confidential review) on Form S–1 or Form F–1 may omit financial information for historical periods otherwise required by regulation S–X (17 C.F.R. 210.1–01 et seq.) as of the time of filing (or confidential submission) of such registration statement, provided that—

''(A) the omitted financial information relates to a historical period that the issuer reasonably believes will not be required to be included in the Form S–1 or Form F–1 at the time of the contemplated offering; and

''(B) prior to the issuer distributing a preliminary prospectus to investors, such registration

statement is amended to include all financial information required by such regulation S–X at the date of such amendment.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. HURT) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

GENERAL LEAVE

Mr. HURT of Virginia. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous material on this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. HURT of Virginia. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of H.R. 2064, the Improving Access to Capital for Emerging Growth Companies Act.

I would like to thank the ranking member for her support of this good legislation. I would also like to thank Representative FINCHER and Representative DELANEY for their efforts to successfully move this legislation through the Financial Services Committee on a unanimous, bipartisan vote.

Mr. Speaker, a key component of the JOBS Act was the so-called IPO—the initial public offering—on-ramp provisions of title I, which created a new classification of public company known as an emerging growth company.

Emerging growth company status allows smaller companies that are accessing capital in the public markets to utilize streamlined registration and reporting requirements for up to 5 years after their initial public offerings.

In doing so, emerging growth companies are able to spend fewer resources in complying with costly regulations that are designed for the largest public companies.

Just over 3 years since the JOBS Act's enactment, we continue to witness the successful results of its implementation. In 2014, emerging growth companies represented 86 percent of the 288 initial public offerings, allowing those companies to raise over $42 billion in capital.

That capital represents real dollars that can be used by these companies to invest in research and development, in innovative products, and, most importantly, in new jobs in their communities.

While these numbers are encouraging, more can still be done to incentivize companies to access capital in our public markets.

H.R. 2064 will decrease the required time for a confidential registration statement to be on file with the SEC before an emerging growth company may conduct a road show from 21 days to 15 and will further streamline disclosure requirements for emerging growth companies. These targeted changes to the Federal securities laws will make IPOs even more appealing to emerging growth companies.

One witness at a previous Capital Markets and Government Sponsored Enterprises Subcommittee hearing commented:

> We support this bill as it creates generally greater optionality for issuers without altering the ultimate level of required disclosure to investors. This bill is in keeping with the philosophy that underlies title I of the JOBS Act and the creation of safe harbors, such as ''testing the waters'' and ''confidential filings.'' We believe, for example, that providing issuers with the ability to file without full financial statements will cut issuer time-to-market, which is beneficial in mitigating market risk and speeding access to capital.

I ask that my colleagues join me in supporting H.R. 2064.

Mr. Speaker, I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

The Improving Access to Capital for Emerging Growth Companies Act is a good bill and is the product of bipartisan compromise. The bill was amended last year to address certain investor protection concerns while still retaining key relief for small businesses.

H.R. 2064 amends title I of the Jumpstart Our Business Start-Ups Act of 2012, to provide emerging growth companies—that is, EGCs—with additional flexibility when going public.

During a hearing on this bill in the Capital Markets and Government Sponsored Enterprises Subcommittee, one witness expressed concerns that 2 years of financial statements are necessary for the SEC to compare years during its review, and, at a minimum, issuers should be required to provide what they have.

My fear is that, if a company were allowed to delay its filing, as this bill would allow, it would only likely delay the SEC's review, resulting in no real benefit to the issuer.

I would also like to emphasize the problem Congress gets into when it preempts the regulators by trying to issue rules by legislation. When we get it wrong, it takes another act of Congress to fix it. However, I support this legislation today because it seems as if a consensus has emerged that this technical fix is appropriate.

I reserve the balance of my time.

Mr. HURT of Virginia. Mr. Speaker, I yield such time as he may consume to the gentleman from Tennessee (Mr. FINCHER), a coauthor of this legislation.

Mr. FINCHER. Mr. Speaker, I rise today in support of H.R. 2064, the Improving Access to Capital for Emerging Growth Companies Act.

I was pleased to introduce this legislation with my colleague, Congressman JOHN DELANEY of Maryland.

This legislation builds upon the success of the original bipartisan JOBS Act, which I worked on, that created a new category of stock offering for emerging growth companies, which have proven to be a major new source of job creation for the 21st century.

Job creation is the number one reason to support this legislation. As companies are able to expand and go public, they are able to hire more employees and to ultimately invest more in our economy.

Our bill makes important changes to the registration process to ensure that these companies have the most efficient, streamlined access to the market.

Shortening the 21-day filing period to 15 days would save companies exposure to some market volatility before public launch.

The purpose of the 21-day period is to allow the information about the EGC IPO to disseminate to the public before purchase orders are taken on the EGC's stock, but with today's technology, the current 21-day quiet period is unnecessarily long.

The shortened time period would allow the benefit of clearer visibility in market conditions and would save companies from having to update financials and other disclosure before public launch.

Additionally, the bill calls for a grace period of the JOBS Act protections to an issuer who loses EGC status mid-IPO process. Under current law, if a company exceeds the EGC status criteria during the IPO process, it no longer qualifies for the designation.

This discourages a borderline EGC which may be considering going public from making an offering. The grace period would allow an issuer who qualifies as an EGC at the time of filing its confidential registration statement for review to continue to be treated as an EGC through the date on which it completes its initial public offering or 1 year has passed, whichever comes first.

Finally, the bill would permit EGCs to avoid incurring the significant expense and effort of preparing and having audited financials and related disclosures for past periods that will not be included in the prospectus to investors.

This legislation was reported out of committee unanimously, and I urge my colleagues on both sides of the aisle to support the passage of H.R. 2064 today.

This is a simple adjustment to reduce the burdens placed on smaller companies that are trying to access the market, grow their businesses, and hire more employees.

Now more than ever, as Members of Congress, we need to be focused on ways to facilitate job creation. This bill is an important step in that direction.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield such time as he may consume to the gentleman from Maryland (Mr. DELANEY).

It is because of his leadership not only on this issue, but on small business, the opportunities of EGCs, and the fact that his negotiations on this legislation led us to bipartisan support.

Mr. DELANEY. I want to thank the ranking member for her support and leadership on this legislation. I also want to thank the gentleman from Virginia for his support.

Most importantly, I want to thank my friend, the gentleman from Tennessee, for giving me the opportunity to coauthor this piece of legislation with him.

Mr. Speaker, emerging growth companies that raise capital from private investors have two options available to them to give their investors a return. The first option is to take the company public, and the second option is to sell the business.

The data overwhelmingly suggests that, when companies go public, the companies are very likely to take the capital they raise in a public offering, invest it in the business, create jobs, and hire Americans, as compared to when companies are sold, which are often done for strategic reasons that are based on consolidations and often result in jobs being lost.

So, while companies are completely free to make whatever choices they want to make, we, as policymakers, should certainly be trying to level the playing field as it relates to initial public offerings in order to make them more accessible for emerging growth companies, particularly if they can be done without compromising investor protection. I believe strongly that H.R. 2064 does, in fact, do that.

My colleague from Tennessee went through the specifics in terms of the processes that are being improved by the bill.

I have some firsthand experience with this process in having started two businesses in the private sector and in having taken them both public on the New York Stock Exchange, experiences that taught me that a company's initial public offering, as it relates to due diligence and scrutiny and oversight, is the day when they have the most focus by regulators and investors and underwriters.

□ 1500

So it is certainly a time where we have an opportunity for more flexibility around timing, which I believe this bill does and will do successfully. It will lead to more initial public offerings. It will hopefully reverse the trends that we have seen across the last several decades where the number of initial public offerings have decreased.

As I said in my opening comments, the more IPOs we have, the more likely companies are to invest in their businesses, create jobs and hire Americans. It is good for our economy. I urge my colleagues to support H.R. 2064.

Mr. HURT of Virginia. Mr. Speaker, there are very few people in Congress today who have worked harder and understand better the importance of access to capital for our small businesses and for job creation than does the chairman of our Subcommittee on Capital Markets and Government Sponsored Enterprises.

I yield such time as he may consume to the gentleman from New Jersey (Mr. GARRETT).

Mr. GARRETT. Mr. Speaker, I thank the vice chairman for those remarks.

I do in fact rise in support of the bill, H.R. 2064, the Improving Access to Capital for Emerging Growth Companies, EGCs. I also want to thank my friend Mr. DELANEY and my other friend Mr. FINCHER for their hard work on the underlying piece of legislation.

As we said before, because of the JOBS Act, we have seen a significant increase, a resurgence, if you will, in initial public offerings, with 2014 being the best year for IPOs in more than a decade now. If you look back, study after study has shown that job creation expands significantly once a company goes public.

So Congress then should do what? We should do more to reduce the burdens on these small and growing companies that want access to the markets and want access there to capital and want access, therefore, to grow and expand and create job creation. That is exactly what this legislation does.

H.R. 2064 would expand upon the success of the JOBS Act by making significant improvements in title I of that bill, including reducing the number of days that an emerging growth company would have to wait before commencing with the so-called road shows once it files with the SEC, and it would significantly reduce and simplify the financial disclosures that go along with it.

These are targeted and incremental changes that reflect the feedback and input that the Committee on Financial Services—the members who have supported it, the vice chairman as well—has received since the JOBS Act was passed back in 2012.

We had a number of hearings on this, and one witness told our committee: ''This bill is in keeping with the philosophy that underlies title I of the JOBS Act, and the creation of safe harbors such as 'Testing the Waters' and 'Confidential Filings.' . . . providing issuers with the ability to file without financial statements will cut issuer time-to-market which is,'' at the end of the day, ''beneficial in mitigating market risk and speeding access to capital.''

With that said, by removing some of the ongoing hurdles to going public, this bill, H.R. 2064, would help promote growth and help promote job creation throughout our entire country, our entire economy. Therefore, I urge its swift passage.

Ms. MAXINE WATERS of California. Mr. Speaker, I think that this is the last bill that we are taking up on suspension today. What you have seen is a fine example of both sides of the aisle working to do the best thing that we could possibly do for our constituents.

There have been bills that were presented today that were suspect, perhaps, when they first were introduced; there were bills today where we had technical corrections; there were bills today where we had bipartisan support where we never thought we would get bipartisan support. I would like the work that we have done on the floor today to demonstrate that we do have the ability to work together in the best interests of the citizens of this country; and to the degree that we understand that even in Dodd-Frank where there may still be some concerns, that we can be civil about it, that we can be considerate about it, and that we recognize that not only may there may be places for technical corrections in Dodd-Frank, but in the JOBS Act and other bills that we have heard today and that we will hear in the future.

I am very pleased to have been a part of the work that we have done here on this floor today to get together in a bipartisan way, again, to act in the best interests of all of the people of this country.

I yield back the balance of my time.

Mr. HURT of Virginia. Mr. Speaker, I want to thank the ranking member again and those on her side of the aisle for looking for ways we can work together for job creation and streamlining of the regulatory structure as it relates to our financial markets.

I represent Virginia's Fifth District, and over the last 10, 20 years, we have seen a tremendous amount of high unemployment. I would suggest to you that legislation like the legislation that Representative FINCHER and Representative DELANEY have put forward today is the kind of legislation that will lead to more private capital on Main Street all across the Fifth District of Virginia and all across America. I would suggest to you that that is why this bill deserves the full support from the House of Representatives today.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. HURT) that the House suspend the rules and pass the bill, H.R. 2064, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, proceedings will resume on motions to suspend the rules previously postponed.

Votes will be taken in the following order:

H.R. 251, by the yeas and nays;

H.R. 2997, by the yeas and nays;

H.R. 1723, by the yeas and nays.

The first electronic vote will be conducted as a 15-minute vote. Remaining electronic votes will be conducted as 5-minute votes.

HOMES FOR HEROES ACT OF 2015

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 251) to transfer the position of Special Assistant for Veterans Affairs in the Department of Housing and Urban Development to the Office of the Secretary, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Missouri (Mr. LUETKEMEYER) that the House suspend the rules and pass the bill.

The vote was taken by electronic device, and there were—yeas 412, nays 1, not voting 20, as follows:

[Roll No. 435]

YEAS—412

Abraham
Adams
Aderholt
Aguilar
Allen
Amodei
Ashford
Babin
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellmers (NC)
Emmer (MN)
Eshoo
Esty
Farenthold
Farr
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green, Al
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Gutiérrez
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Napolitano
Neal
Neugebauer
Newhouse
Noem
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Perlmutter
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price (NC)
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Rush
Russell
Ryan (OH)
Ryan (WI)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—1

Amash

NOT VOTING—20

Beyer
Boyle, Brendan F.
Clark (MA)
Cohen
Ellison
Engel
Fattah
Grayson
Grijalva
Honda
Jackson Lee
Lee
Nadler
Nolan
Pelosi
Pocan
Polis
Price, Tom
Wasserman Schultz
Welch

□ 1536

Mr. MULLIN changed his vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Ms. LEE. Mr. Speaker, on rollcall No. 435, had I been present, I would have voted ''yea.''

Ms. CLARK of Massachusetts. Mr. Speaker, on rollcall No. 435, had I been present, I would have voted ''yes.''

Mr. HONDA. Mr. Speaker, on rollcall No. 435, on H.R. 251, had I been present, I would have voted ''aye.''

PRIVATE INVESTMENT IN HOUSING ACT OF 2015

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 2997) to authorize the Secretary of Housing and Urban Development to carry out a demonstration program to enter into budget-neutral, performance-based contracts for energy and water conservation improvements for multifamily residential units, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Missouri (Mr. LUETKEMEYER) that the House suspend the rules and pass the bill.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 395, nays 28, not voting 10, as follows:

[Roll No. 436]

YEAS—395

Abraham
Adams
Aderholt
Aguilar
Allen
Amodei
Ashford
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blum
Blumenauer
Bonamici
Bost
Boustany
Brady (PA)
Brady (TX)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Bucshon
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (NY)
Comstock
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Duffy
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Eshoo
Esty
Farenthold
Farr
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Frankel (FL)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green, Al
Green, Gene
Grijalva
Grothman
Guinta
Guthrie
Gutiérrez
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Honda
Hoyer
Hudson
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee

Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Matsui
McCarthy
McCaul
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poliquin
Polis
Pompeo
Posey
Price (NC)
Quigley
Rangel
Reed
Reichert
Renacci
Rice (NY)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Rush
Russell
Ryan (OH)
Ryan (WI)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Waters, Maxine
Watson Coleman
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—28

Amash
Babin
Blackburn
Brat
Bridenstine
Brooks (AL)
Buck
Burgess
Conaway
Duncan (SC)
Foxx
Franks (AZ)
Gohmert
Griffith
Holding
Huelskamp
Jones
Loudermilk
Love
Lummis
Massie
McClintock
Palmer
Poe (TX)
Ratcliffe
Ribble
Rice (SC)
Weber (TX)

NOT VOTING—10

Boyle, Brendan F.
Collins (GA)
Diaz-Balart
Engel
Fattah
Grayson
Johnson (GA)
Meehan
Price, Tom
Wasserman Schultz

□ 1545

Mr. JONES changed his vote from ''yea'' to ''nay.''

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

SMALL COMPANY SIMPLE REGISTRATION ACT OF 2015

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 1723) to direct the Securities and Exchange Commission to revise Form S–1 so as to permit smaller reporting companies to use forward incorporation by reference for such form, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. HURT) that the House suspend the rules and pass the bill.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 426, nays 0, not voting 7, as follows:

[Roll No. 437]

YEAS—426

Abraham
Adams
Aderholt
Aguilar
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Eshoo
Esty
Farenthold
Farr
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green, Al
Green, Gene
Griffith
Grijalva
Grothman
Guinta
Guthrie
Gutiérrez
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Rush
Russell
Ryan (OH)
Ryan (WI)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—7

Boyle, Brendan F.
Engel
Fattah
Grayson
Johnson (GA)
Price, Tom
Wasserman Schultz

□ 1553

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. MEEHAN. Mr. Speaker, on rollcall No. 436 I was unavoidably detained. Had I been present, I would have voted "yes."

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. CRAWFORD. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore (Mrs. MIMI WALTERS of California). Is there objection to the request of the gentleman from Arkansas?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. HUDSON. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from North Carolina?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. GOSAR. Madam Speaker, I ask unanimous consent that my name be withdrawn as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arizona?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mrs. ROBY. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Alabama?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. FLEMING. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Louisiana?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. MOOLENAAR. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Michigan?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mrs. NOEM. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from South Dakota?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. CLAWSON of Florida. Madam Speaker, I ask unanimous consent to be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. HOLDING. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from North Carolina?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. BUCK. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Colorado?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. PERRY. Madam Speaker, I ask unanimous consent that my name be removed from bill number H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mrs. BLACK. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Tennessee?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. MEADOWS. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from North Carolina?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. YODER. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Kansas?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. DESANTIS. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. CRAMER. Madam Speaker, I ask unanimous consent that my name be removed as cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from North Dakota?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mrs. WALORSKI. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Indiana?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mrs. BLACKBURN. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Tennessee?

There was no objection.

□ 1600

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. PALMER. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Alabama?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mrs. LUMMIS. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Wyoming?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722.

Mrs. COMSTOCK. Madam Speaker, I ask unanimous consent that my name be removed from H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Virginia?

There was no objection.

PERSONAL EXPLANATION

Ms. JACKSON LEE. Madam Speaker, I was unavoidably detained during a vote on H.R. 251, the Homes for Heroes Act of 2015. If I had been present, I would have voted ''yea.''

KATE'S LAW

(Mr. MARCHANT asked and was given permission to address the House for 1 minute.)

Mr. MARCHANT. Madam Speaker, I rise in support of the Establishing Mandatory Minimums for Illegal Reentry Act, also known as Kate's Law.

This bill mandates 5-year minimum prison sentences for illegal immigrants who return to the U.S. after being deported. It comes in direct response to the murder of Kathryn Steinle in San Francisco by a man who had been deported from the United States five times.

Kate's Law sends a strong message to any person considering illegal reentry: Come back, and you will face serious consequences. This bill strengthens the rule of law and leaves no room for selective enforcement by the administration for any sanctuary city.

Madam Speaker, my deepest condolences go out to Kate's family and her loved ones. We cannot undo this tragedy, but we must work to prevent others by securing the border and strictly enforcing the law.

OPM DATA BREACH

(Mr. HOYER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HOYER. Madam Speaker, last week I was profoundly disappointed to learn just how large the recent data breach was in which personal information was accessed in the files of the Office of Personnel Management.

That breach and the one before it were unacceptable, and it is a problem that requires an all-hands-on-deck approach to prevent future cyber attacks to protect those whose information has been accessed.

Madam Speaker, I am proud to represent 62,000 Federal employees in Maryland's Fifth District. They deserve to know—and all our hard-working Federal employees do—that the personal information they submit when they serve our country is safe and secure and that they will be protected against identity theft if their information was accessed.

The resignation of Director Archuleta does not solve the underlying problems that made OPM vulnerable to these kinds of attacks. I intend to work closely with interim Director Beth Cobert to make sure OPM has the resources it needs to upgrade its systems and prevent a reoccurrence of this event. But this breach and the one that preceded it underscore the larger issue of cybersecurity and how we must do more to make America's networks the safest in the world.

FETAL ORGAN HARVESTING AND TRAFFICKING

(Mrs. ROBY asked and was given permission to address the House for 1 minute.)

Mrs. ROBY. Madam Speaker, I rise to raise awareness about a disturbing development. Today video surfaced of Dr. Deborah Nucatola, Planned Parenthood's senior director for medical services, admitting—in fact, bragging—about the harvesting and trafficking of fetal organs after abortions.

To those who haven't seen the video, I urge you and encourage you to watch it. But you need to be forewarned: the casual and callous way she details how babies can be killed in such a way that their tiny hearts, lungs, and livers can be taken and sold for profit is simply horrifying.

To quote Dr. Nucatola: ''We have been very good at getting heart, lung, and liver. So I am not going to crush that part. I am going to basically crush below, I am going to crush above, and I am going to see if I can get it all intact.''

Madam Speaker, this is one of those moments as a nation that we have to ask ourselves: ''Who are we? Are we really going to tolerate this inhumanity? Are we going to look the other way while babies are brutally killed and organs are harvested for profit?''

These are not specimens. They are babies for goodness' sake. I may only have 1 minute today, but I promise, Madam Speaker, we are not done talking about this.

HONORING TIM WATSON OF FREMONT

(Mr. SWALWELL of California asked and was given permission to address the House for 1 minute.)

Mr. SWALWELL of California. Madam Speaker, I rise to honor the heroic actions of Tim Watson of Fremont, California.

Last month, Tim, a Santa Clara Valley Transportation Authority busdriver, was driving his bus along I–680 when he got an important alert. It said to be on the lookout for a child abducted at the Milpitas library that morning. It also included a description of the suspect and child.

Quickly realizing that they may be on the bus, Tim pulled off the road. He made up a story to the other passengers that he needed to look for a missing backpack so he could go through the bus and get a good look at the suspect and the child without anyone realizing something may be amiss.

After the search, his suspicion increased, and he called the dispatch center. He was told to continue on his route and that police would follow along the way. He drove his bus slowly, going at less than 30 miles per hour, when Fremont police were able to meet the bus and capture the suspect when it stopped at the Fremont BART station.

Madam Speaker, Tim's quick thinking allowed this kidnapping suspect to be apprehended without incident and for the child to be rescued safely.

Thank you, Tim. Your bravery and quick thinking saved a life, held someone to account, and is an inspiration to all of us.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. SANFORD. Madam Speaker, I ask unanimous consent that my name be removed as cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from South Carolina?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. FLEISCHMANN. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Tennessee?

There was no objection.

IMMINENT THREATS TO OUR NATIONAL SECURITY

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentlewoman from North Carolina (Mrs. ELLMERS) is recognized for 60 minutes as the designee of the majority leader.

GENERAL LEAVE

Mrs. ELLMERS of North Carolina. Madam Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include extraneous materials on the topic of this Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from North Carolina?

There was no objection.

Mrs. ELLMERS of North Carolina. Madam Speaker, I rise today to stand with my fellow members of the Republican Women's Policy Committee to discuss an issue of concern that is on the minds of every American, especially moms. The topic of concern to so many today is our national security and the need to maintain a strong military presence.

Madam Speaker, we currently face many threats abroad, including the terrorist group ISIS and the newly crafted nuclear agreement with Iran. As threats continue to grow overseas, so should our response. We need for our Commander in Chief to lay out a plan of success. We cannot stand idly by while the Islamic State continues to grow. This barbaric group is an imminent threat to the United States and our allies all over the world.

Yet another national security concern facing us today is Iran, the world's largest state sponsor of terrorism. Just last night, Iran and the other world powers reached a so-called nuclear deal. I remain deeply skeptical of this so-called deal. Furthermore, Iran has threatened our greatest ally, Israel. Prime Minister Netanyahu has already called this deal ''a historic mistake.''

The President promised us that he would walk away from a bad deal, but instead he has forsaken his promises, neglected our allies, and disregarded the concerns of the American people. Because of the many freedoms we enjoy here in the United States, we will always have a target on our backs. This is precisely why we must maintain a robust military presence.

At home in North Carolina, I have the privilege of representing the Nation's largest Army installation, Fort Bragg. Despite the mounting threats abroad, the Army began its reduction of 40,000 troops last week. This included a loss of 842 soldiers at Fort Bragg. I firmly believe that any troop reduction is not in the best interests of the national security we have.

However, in light of this troop reduction, I did receive a piece of positive news regarding a decision by the Air Force. The Air Force has decided to stop pursuing their destructive proposal which is to close the 440th Airlift Wing. Our military is one of the best and the brightest. These men and women are the most well trained and well equipped in the world. We are blessed to live in a country that stands for justice and embodies freedom and exemplifies liberty.

Madam Speaker, I now yield to the gentlewoman from Missouri.

Mrs. WAGNER. Madam Speaker, I thank the gentlewoman for having this Special Order. It is wonderful to join my female colleagues here on the House floor to talk about this very important issue.

Madam Speaker, I come to the floor today to sound the alarm about the mistake of historic proportions agreed to by the Obama administration last night in Vienna. In his haste and desire to reach an agreement at any cost, the President has agreed to far-reaching concessions in nearly every area that was supposed to prevent Iran from acquiring a nuclear weapon. In contravention of his stated goal, the deal agreed to by the President last night affords Iran legitimacy for a partial nuclear program now and for a full and unfettered program after 15 years.

Madam Speaker, let me repeat myself for the sake of clarity. Under this deal, Iran will be able to develop a nuclear program with absolutely no restrictions less than 15 years from now. Under this deal, Iran will be allowed to continue to operate more than 6,000 centrifuges and will hold on to nearly 300 kilograms of enriched uranium.

Iran will also receive hundreds of billions of dollars in sanctions relief and regain the access to conventional arms and missiles that it has been denied for nearly a decade. Iran will be free to transfer these weapons to Hezbollah, the Syrian Government, and Yemeni rebels, who all threaten our ally Israel and further inflame the region already in crisis. Iran will be free to use the weapons and money provided by this agreement to fuel its terrorist aspirations around the region and the world.

This is a completely unacceptable outcome for the United States, Israel, our allies, and the Middle East.

Wagering the peace and security of the United States, Israel, and the world on a small chance that a hateful and deceitful regime will suddenly change its entire comportment is not only wrong, it is foolish and it is dangerous. Iran's decades-long record of state-sponsored terrorism will not change simply because this deal has been signed.

Just this past Friday—this past Friday, Madam Speaker—in Tehran, Iranian mullahs led people in chants of ''death to America.'' Yet, less than 72 hours later, the President is signing a deal with those fanatics, a deal that will eventually pave the way for Iran to obtain a nuclear weapon.

As Prime Minister Netanyahu told us in this Congress, in this very Chamber this year, ''a bad deal is worse than no deal.'' Madam Speaker, this is a bad deal.

The President expects Congress to stand idly by and do nothing while he trades the security of the U.S. and its allies for a legacy-burnishing accomplishment. He expects us to sit on the sidelines while the administration offers one concession after another to the Iranians and agrees on a deal that would endanger the stability of the entire Middle East and jeopardize U.S. national security. That must not happen.

As the 60-day review process mandated by the Iran Nuclear Agreement Review Act begins, Congress must unequivocally reject this agreement by voting for a resolution of disapproval. We will not stand idly by while the American people's security is traded for some empty promises. A nuclear-armed Iran would start a new arms race in the Middle East and pose an interoperable threat to the national security of the United States and our allies—especially Israel.

Madam Speaker, as Prime Minister Netanyahu said in this very Chamber, again: ''Standing up to Iran is not easy; standing up to dark and murderous regimes never is.'' But for the sake of our children and our children's children, we must face down this threat now before it is too late.

□ 1615

I urge my colleagues to review this agreement with an eye towards history, towards the past, towards the present, and towards the future of a region critical to America's national interests.

Iran has a record of deception and hostility towards American interest. No amount of wishful thinking will change their core tendencies. Congress must use this opportunity to stand up for what is right.

The United States must not capitulate in the face of persistent evil. We must stand together, united against the threat of a nuclear Iran in order to guarantee a free and peaceful tomorrow.

Mrs. ELLMERS of North Carolina. I now yield to the gentlewoman from Indiana (Mrs. BROOKS).

Mrs. BROOKS of Indiana. Madam Speaker, I want to thank my dear friend, the gentlewoman from North Carolina, for organizing this session today.

Last week, when she organized this Special Order, I don't think you were really entirely aware how timely the topic would be today. I am so pleased that you did organize this, so thank you.

Now, many of us are still reviewing the text, having just received the 150 pages, that make up this deal with Iran; but from what I have heard thus far, it leaves me highly skeptical that the accord that was reached does not advance our interests in the region and signifies a retreat from the world stage.

Let me first say that, even if we take the President at his word, the words that I heard this morning—and we assume for a second that this deal cuts off ''every pathway to a nuclear weapon''—there are still significant ramifications for granting $150 billion in sanctions relief to a country whose unofficial motto, that we just heard from the gentlewoman of Missouri, has become ''death to America.''

As Israeli Ambassador Dermer told some of my constituents just last night at a Christians United for Israel speech, a $150 billion infusion of cash into Iran's coffers is like a trillion dollars flowing into the United States Treasury; and that money will go toward funding the Ayatollah's terror machines, ranging from Assad's regime in Syria, Hezbollah in Lebanon, the Houthis in Yemen, Hamas, the Islamic jihad in Gaza, and the many other of Iran's terror proxies throughout the region.

This is compounded by the fact that the deal will lift the conventional arms embargo in Iran in no more than 5 years and the embargo on missile sales to Iran in no more than 8 years. What the deal appears to do is give the Iranian regime $150 billion in sanctions relief, while simultaneously allowing

them to buy more conventional weapons, weapons that we know have been used in the past to actually kill American soldiers.

Now, this isn't to mention the unintended consequence that effectively shreds our foreign policy playbook that has guided the U.S. on the world stage for decades. This is a historic mistake—not only what Prime Minister Netanyahu has said is a historic mistake for the world, but it will allow Iran to continue to pursue its aggression and terror in the region. As the Congresswoman from Missouri said, it will start a nuclear arms race in the Middle East.

Just today, former CIA Director, General Hayden, testified that not only do we need to understand that our nuclear focus does not make other realities go away, even if we had a successful conclusion to these nuclear negotiations, issues will remain.

I just want to close by reminding what our issues will Iran include. We know and believe they are the largest state supporter sponsor of terrorism. They hold American hostages without a fair trial. They support Palestinian terrorism, and they destabilize Iraq where we have invested so much treasure and lives. Hayden concluded the issue is not just Iran's nuclear problem; the issue is Iran itself.

Madam Speaker, no deal is clearly a better outcome than a bad deal; and I, too, am extremely concerned the Obama administration has negotiated a bad deal. I assure you that my colleagues and I will leave no detail of the final negotiated terms unexplored as this decision comes with consequences that will reverberate for generations moving forward.

The world cannot afford a nuclear Iran and thus cannot afford a deal with unacceptable terms.

Mrs. ELLMERS of North Carolina. I yield to the gentlewoman from Indiana (Mrs. WALORSKI).

Mrs. WALORSKI. Madam Speaker, I thank the gentlewoman from North Carolina and also my colleague from Indiana.

Madam Speaker, I rise to express my deepest concern that the President of the United States is signing an agreement with a leading state sponsor of terrorism, Iran. This administration has collectively created a pathway for Iran to create a nuclear bomb.

This agreement endangers the lives of Americans by providing billions of dollars in sanctions relief for Iran to continue killing Americans. The lack of adequate safeguards and controls in this plan that literally allows Iran to choose if and when they agree to verification is deeply troubling, and it should be to every American, especially when we start by lifting sanctions without any verification.

Also, let's not forget that by lifting the weapons embargo, Iran will increase their stockpile of missiles, ICBMs, directly from Russia—able to strike this homeland and other more advanced weapons that will lead to an arms race in the Middle East.

Once again, the President is bypassing the American people by threatening a veto of any legislation that comes from here that would curb his agreement.

The President of the United States continues to reject the will of the American people. As this unrest continues, the United States has to maintain our rich partnership with our allies, including Israel, sitting directly in line with Iran.

I just want to say to my colleagues here, very quickly, let's not forget that it was just a couple of months ago that Prime Minister Netanyahu of Israel stood in this very place right here. It was an unbelievable moment for this country.

He traveled all the way here to tell this body and to tell the American people how bad of a deal and how dangerous this agreement is. If you weren't here, I can tell you there was electricity in this place. People were moved, and America heard for the first time what a danger this was not only to us and our homeland, but the existential threat to the nation of Israel. They were moved, and the next morning, our Nation was not the same.

I just appreciate so much my colleague from North Carolina for allowing us to talk about this tonight. See, the American people know that this is not just a bad deal; this is not just a danger to our Nation. This is the complete unravelling of the Middle East as we know it today, and we are going to do everything we can—I can tell you I will do everything I can—to make sure that this bad deal goes away and we do what we are called upon when we raised our right hand to take these positions, which is to protect this Nation from attack.

Mrs. ELLMERS of North Carolina. I yield to the gentlewoman from Utah (Mrs. LOVE).

Mrs. LOVE. Madam Speaker, when it comes to the deal with Iran, I want to express how incredibly serious this is. That is because the stakes have never been higher.

Are we willing to continue to gamble with America's future and American lives?

Iran is a snake in the grass. Its leaders have made it very clear that they want to implement sharia law, not freedom. Iran does not value human life the way we do. They have actually shown that they are willing to support terrorists. They have shown that they are willing to hurt their own women and children.

On the other hand, we have a President of the United States of America that said he will veto any efforts to stop this bad deal. That shows he has no interest in listening to the American people.

How can we claim we are fighting terror when we are giving the leading state sponsors of terrorism a break to the tune of billions of dollars? At this rate, we will all but build the nuclear weapons for them in 15 years.

Now that a deal with Iran is in place, here is what is most concerning: They will turn around and build a nuclear weapon anyway, funded by the profits made from the lack of sanctions.

This is not a joke. This is not a game. Iran has a history of noncompliance. A great indicator of what is going to happen in the future is what has happened in the past. How do we know they will never change? How do we know they will change? We don't. Chances are, they won't change.

Ronald Reagan was an advocate of peace through strength. He said that the world would experience peace when the United States was a beacon of strength.

I ask you all to stand strong with the United States against Iran and against any administration that would like to silence us, the American people.

Mrs. ELLMERS of North Carolina. I yield to the gentlewoman from the great State of Alabama (Mrs. ROBY).

Mrs. ROBY. Madam Chair, I thank my friend from North Carolina.

This is a great opportunity today for all of us ladies to be down here on the floor together, having a little conversation about what we recognize and can see matters to the majority of Americans, and that is the safety of this country and our national defense, our ability to defend against enemies. To my friend from North Carolina, there are a lot of those out there right now.

As we watch the lack of leadership in this administration, we have seen these enemies raise their heads, and it is by no mistake because they will seek to fill a void, and that is exactly what is happening around the world.

All of our colleagues that have talked earlier in this hour about the bad, bad deal with Iran, this comes at a time not only where we are seeing the atrocities of ISIS and other groups around the world, but also at a time when we have cut our military not through the muscle, but into the bone.

All of us here, we all have military interests in some respect throughout our districts. I know you have a large military presence in your district and others here joining us today, our colleagues; so everyone here has not felt the pain of what these cuts look like.

To my colleagues, if we don't do something about this sequester here, when it goes into full implementation—we are already cutting combat aviation brigades. We will have to cut even more.

Of course, I represent Fort Rucker, where we train these folks at the Army Aviation Center of Excellence, so, certainly, these realities are not lost on me; and I know you represent Fort Bragg and others here. The gentlewoman from Tennessee has a large military presence.

I guess the conversation that I want to have with you guys today on behalf of our constituents is: What are we going to do about it? We have got to

figure this out because, if we don't, it is going to be irresponsible as it relates to our readiness and our ability to defend this Nation.

We owe it to our military families, our men and women that wear the uniform, to ensure that they have everything that they need every time we send them into harm's way. This is really a dangerous time in our country, and certainly, it is not lost to everyone here as it relates to Iran and the bad deal that was negotiated there.

We have got to be willing to do our part as it relates to that deal. Here in this legislative body, we have to be willing to use the tools that we have and stand up against it and use the courage that we all have in our hearts to fight against this, knowing that it is going to not just have a huge impact on our security here at home, but our very important allies in the Middle East.

I just got back from a codel in the spring where we went to Saudi Arabia, Iraq, and Israel. Our allies over there are looking at us right now, going: What? What?

Anyway, I share my frustration with you, and I know you share it with me as well. We need to give the Army what they need. We need to give our military what they need and know that we are having the appropriate impact in the parts of the world that are under so much pressure right now as it relates to this plan.

I hope we can continue this dialogue. I appreciate all of you coming to the floor and letting me be a part of this.

I am very concerned. This is what literally keeps all of us up at night, worrying about the future of our country and our safety not just here at home, but for all the men and women that are serving our country abroad.

Again, I hope that we collectively can put our heads together and figure out a way to end this sequester, particularly as it relates to defense, once and for all.

Mrs. ELLMERS of North Carolina. I yield to the gentlewoman from Tennessee (Mrs. BLACK).

Mrs. BLACK. Madam Speaker, it is an honor to be here and to be a part of today's Republican Women's Policy Committee on this Special Order on national security, and I want to thank the gentlewoman from North Carolina for bringing us together on this very important topic.

I rise today to specifically address the President's attempts to strike a deal with both Iran and Cuba.

First, Iran—after four missed deadlines, President Obama announced a deal this morning with Iran, the world's largest state sponsor of terrorism and a nation whose Ayatollah famously called the United States ''the Great Satan.''

□ 1630

It was a deal praised by the likes of Syria and Russia and condemned by our allies, such as Israel. What is more, under the agreement, international inspectors must ask Iran's permission before reviewing its nuclear sites, by the way, after which, Iran has 2 weeks to decide whether to even grant it. All told, Iran would have 24 days to drag out this process and conceal signs of noncompliance.

Instead of peace through strength, this agreement amounts to unrest through appeasement. Under the Iran Nuclear Agreement Review Act, Congress does have the power to vote down a bad deal that threatens our national security. I believe this is a bad deal, and I intend to use what we can to show the President we do not support this deal.

Unfortunately, the President's efforts to cozy up to rogue nations doesn't end there. President Obama is attempting to normalize relations with Cuba. Here again, the President is clearly more interested in striking a deal—any deal—rather than knowing the details of the deal.

Consider this: Cuba was listed as a state sponsor of terrorism until the end of May, and now the President wants to open up an embassy on the shores of Havana. So can you tell me what has changed?

Just last week I led nearly 20 of my colleagues in sending a letter to the President, citing a report from the Department of Homeland Security which found more than 21,000 Cuban nationals with felony convictions living within our borders.

These individuals are rated by our Department of Homeland Security as a threat level 1, meaning that they are the worst of the worst. They have no legal status as they have been given orders to be removed, but they are roaming our streets because Cuba will not take back its criminals.

Madam Speaker, if the President insists on opening the door to negotiations with tyrants like Raul Castro, the very least he could do is to force this nation to follow the law on this simple matter and take back these criminals into his own country. Listen, when it comes to Iran and Cuba, the President must put national security and the well-being of the United States before his political legacy.

Again, I thank my colleague and friend from North Carolina for this Special Order today in order to bring these very important issues to the American people.

Mrs. ELLMERS of North Carolina. Madam Speaker, I yield to the gentlewoman from Tennessee (Mrs. BLACKBURN).

Mrs. BLACKBURN. I thank the gentlewoman from North Carolina for pulling us together.

Madam Speaker, when you talk about issues that are women's issues, right now national security is at the top of the heap.

As we have talked about soccer moms and Walmart moms and all of these other iterations and descriptions during the years, right now we are looking at a category of security moms because the issue of security is what mothers are talking about.

I appreciate so much the gentlewoman from North Carolina's leadership, and we have two other colleagues who have yet to join us—Ms. ROS-LEHTINEN from Florida and Mrs. LUMMIS from Wyoming—to talk about this issue.

Coast to coast, this is what people are talking about, and they sit in disbelief at what this administration is doing.

Whether it is Iran or whether it is other foreign policy, our friends and allies look at us, as the gentlewoman from Alabama said, and they ask: ''What are you doing? Where have you been? What are you thinking?'' As we would say in Nashville, ''They have got a thinking problem.''

Our enemies look at us and say: ''Asleep at the wheel. This is our opportunity.'' That is exactly what Iran is doing, and they are looking at what we are doing to our military.

I thank the gentlewoman from Alabama for talking about her love for Fort Rucker and the men and women there. I know the gentlewoman probably sits down with those in her district at Fort Rucker, like I do with the families, with the leadership team, with the men and women in uniform at Fort Campbell, which is located in my district.

They are terribly concerned. They have a mission to fulfill, and it is despicable that this administration will continue to try to cut and cut and cut our military, cut the numbers, don't give them raises, don't give them all the tools and training, don't give them the Flying Hours Program that they need for redeployment.

Guess what, Madam Speaker. Every bit of that affects the effectiveness of our men and women in uniform.

The gentlewoman from Alabama will expand on the point of the cuts that are taking place at Fort Rucker and what that means to her constituents.

Mrs. ROBY. Madam Speaker, I appreciate the gentlewoman and just her shared concern here that we have for our men and women in uniform, for Army aviators, and for their families as well.

If the sequester goes into full effect not only when we are cutting from 12 CABs now—combat aviation brigades—to 10, there is a potential that we could have to go to 9.

What that means directly for Rucker is that we will decrease our student load, the number of Army aviation pilots that we are training. What that means for our country is that we are no longer ready.

I mean, you could make the argument that that, in fact, is the case now. They are going to do everything we ask them to do with what they have. We know that about the United States military, the best in the world. Yet, we are spreading them more and more thin.

We are fighting an enemy overseas right now. Whether you want to call it ''war'' or not, it is happening, and our men and women are in harm's way. There are boots on the ground, and if these cuts move forward, they are going to suffer more.

I appreciate the gentlewoman for drawing attention to Rucker, and I know that she feels as passionately as I about the military.

Mrs. BLACKBURN. I do, indeed.

The gentlewoman makes a point that is so very important, the readiness and the ability to fight 21st-century warfare on a lot of different fronts.

Madam Speaker, my colleagues and I will say part of that is naming and knowing your enemy, radical Islamist extremists. That is the enemy, and that is one of the reasons that this deal that the President announced this morning is so terribly disturbing to us.

His advisors had said that no deal is better than a bad deal. Guess what. What we saw from the President this morning is a pretty bad deal.

Here is what Iran gets to keep in this deal: 5,060 centrifuges. It includes an 8-year limitation on uranium enrichment. Think about that, an 8-year limitation.

So, then, are we setting a time certain that Iran can move forward? This is something that our constituents and the American people need to know about.

Then you look at the other components of this, the IAEA's not having the ability to just move forward and inspect anytime anywhere, but having to give that 2-week notice. That is something, again, of tremendous concern.

The President has threatened to veto any legislation that impedes the nuclear deal. My hope is that Congress is going to stand up and say ''no'' to the President in this deal and that we will say ''yes'' to increasing the security of this Nation.

Mrs. ELLMERS of North Carolina. Madam Speaker, I yield to the gentlewoman from Wyoming (Mrs. LUMMIS).

Mrs. LUMMIS. Madam Speaker, I thank the gentlewoman from North Carolina for sponsoring this Special Order, which allows the women of the Republican Conference to talk about an issue that is affecting all Americans, men and women.

Benjamin Netanyahu is calling this deal a historic mistake. Historic. Think about Israel and history. And when you have its prime minister calling this a historic mistake, we should be paying attention.

Madam Speaker, there is a very real and present danger of nuclear proliferation because of this deal; so it is critical that America not let her military preparedness for deterrence deteriorate. It will have exactly the opposite effect of that which the administration intends.

Consequently, we need all three legs of the nuclear triad—land, air, and water—for a strong defense and deterrence against attack. With a triad of bombers, submarines, and ICBMs, missiles are the most affordable, and they are on alert, protecting America and deterring her enemies 24 hours a day, 7 days a week.

We should be talking with Poland, with the Czech Republic, and we should make sure that they have an adequate missile defense. We are going to have to start talking to Saudi Arabia.

If Israel and Saudi Arabia are already today talking about the consequences of a deal with Iran, what does that tell you? It tells you just what the gentlewoman from Alabama was telling us a few minutes ago when they visited there, which is that security in Saudi Arabia—homeland security—is an enormous issue.

It is because there are always terrorists coming into Saudi Arabia, trying to get at Mecca and Medina, trying to do something that will cause a conflagration around the world, that will incite religious battles.

When they have one of their most feared adversaries now being in a position after 8 years and having now the money because of the lifting of the sanctions to go ahead with a nuclear program, what do you think they are going to do? What are the Saudis going to do? It is critical that we maintain for world peace and the deterrence of nuclear war our own ability to respond and to deter.

Madam Chairman, I thank you for this Special Order, and I thank you for your diligent work in this regard.

Mrs. ELLMERS of North Carolina. Madam Speaker, I yield to the gentlewoman from Florida (Ms. ROS-LEHTINEN).

Ms. ROS-LEHTINEN. Madam Speaker, I want to thank my friend and colleague and chair of the Republican Women's Policy Committee, Congresswoman RENEE ELLMERS, for leading the charge on this Special Order so that we can discuss issues of national security.

As we have heard, Madam Speaker, and will continue to hear tonight, there is no shortage of national security threats that are facing us today. That is not what should scare us.

What should scare us is that the Obama administration has no strategy, no plan in place, to address some of the most serious threats that are out there.

Perhaps the most pressing issue currently facing U.S. national security, the security of our friend and ally, really—the Democratic Jewish State of Israel—and, indeed, global security is a nuclear-armed Iran.

□ 1645

If we want to discuss national security threats, we can spend all day discussing the ones the administration just set into motion when it and the rest of the P5+1 nations announced this nuclear agreement with Iran.

Let's set aside for a moment, Madam Speaker, the fact that the administration just guaranteed that Iran will become a nuclear threshold state as a result of this deal, and we can all set our timers on when that first Iranian bomb will be produced thanks to this weak and dangerous deal.

Let's focus on the fact that the administration just guaranteed that the Iranian regime's billions of dollars that it is going to have to fill its coffers to underwrite its support for terror aimed at the U.S. and aimed at our interests around the world and especially our ally the democratic Jewish State of Israel.

Remember, this is the same regime that was responsible for building and providing the vast majority of roadside bombs that killed and injured thousands of our brave men and women who served valiantly in Iraq. It is the same regime that has propped up the murderous Assad regime in Syria, that supports the Shiite militias, all of which contributed greatly to the rise of the Sunni terror group ISIL, which has now become one of the greatest threats to U.S. national security as well.

This regime is responsible for the bombing of the U.S. Marine barracks and the U.S. Embassy bombings in Beirut and continues to support Hezbollah and Hamas as the terror groups that target Israel.

If this terrifying scenario wasn't bad enough, Madam Speaker, the Obama administration has included in this sweetheart of a deal for the Iranian regime lifting all U.N. Security Council resolutions, including the arms embargo, and that won't even last the duration of the deal, but it will be only in 5 years.

Madam Speaker, what has Iran done to deserve a lifting of the arms embargo, the lifting of sanctions against its ballistic missile program, its support for terror? Iran, in fact, continues to stoke sectarian violence, foments instability in the Middle East, flexing its muscles with the arms and military equipment that it already has.

Now, we are prepared to lift the arms embargo on that murderous regime, lift the restrictions in place on its ballistic missile program, the most expansive program out of any country in the region.

What kind of message did we just send to our partners in the region who fear Iran's hegemonic ambitions? We just allowed their most feared enemy to become a nuclear state, to have access to have even more money to support its illicit activities, and to bolster its conventional weapons and ballistic missile program.

Talk about threats to our national security, Madam Speaker—wow. This nuclear deal that the Obama administration announced this morning just guaranteed an all-out conventional and nuclear arms race that very well could lead to what the President claimed he was trying to avoid, a war.

Whether it is Iran or whether it is Cuba, as Mrs. BLACK of Tennessee pointed out, President Obama is going legacy shopping. I fear that Israel will

be next on Obama's legacy shopping list. I worry that President Obama will force Israel to accept a bad peace deal with the Palestinians.

Madam Speaker, let's shut down Obama's legacy store. We just can't afford it. I would like to thank Mrs. ELLMERS for her leadership on this national security threat.

Mrs. ELLMERS of North Carolina. I now yield to the gentlewoman from New York (Ms. STEFANIK).

Ms. STEFANIK. Madam Speaker, just this past Monday the Iraqi Government declared that it was beginning a major military operation to retake western Anbar province from ISIS. This area of operation, including major cities of Ramadi and Fallujah, is the same region which ISIS seized this past May.

Following this announcement, American-led coalition airstrikes permeated Anbar province. I fervently support U.S. and coalition military targeted airstrikes which continue to attack the Islamic State within Syria and Iraq. Along with airstrikes, U.S. troops serve as a part of an advise and assist role in Iraq and continue to do so in Afghanistan.

Since September 11, 2001, the Army's 10th Mountain Division has been the most actively deployed division to Iraq and Afghanistan, and I am honored to represent the 10th Mountain Division, a light infantry division comprised of competent, resilient, and skilled warriors.

In New York's north country, we understand what fighting for our Nation's liberties and freedoms truly means; and come this winter, during the holidays, when we are at home with our loved ones, these brave soldiers from the 10th Mountain Division will be serving our Nation in highly kinetic combat zones.

When I speak against ISIS, their barbaric tactics, and the instability they create around the world, I am speaking for my constituents, the brave servicemen and -women who are overseas right now, fighting to protect our national security.

I speak for their loved ones, the military families who are back in the north country at Fort Drum, worrying about their safety, and looking forward to the day they arrive back home.

This is why I am extremely frustrated when cuts to our defense budget continue. Sequestration is a real threat to our national security. Sequestration was proposed by this administration, signed into law by this President, and passed by a previous Congress.

As ISIS remains a major source of terrorism and instability throughout the Middle East, here, in Congress, we must discuss real solutions related to stabilizing the region, continued threats to our own national security, the readiness for our Armed Forces, and the tools they need to keep our country safe.

The National Defense Authorization Act provides our Nation's Armed Forces with the resources they need to defend our national security against ISIS, and soon, this imperative piece of legislation will be on its way to the President for his signature.

A veto could threaten the safety of our Nation's servicemembers and our country's defense. Our national security is gravely at risk, as long as ISIS remains intact and our troops are tasked with doing more with less.

I urge my colleagues to join me in supporting our Armed Forces in fighting against defense sequestration, and I implore this President to sign the National Defense Authorization Act.

Mrs. ELLMERS of North Carolina. I would like to say how much I appreciate receiving General Townsend to the XVIII Airborne Corps as commanding general from the 10th Mountain Division.

I know that you appreciate him as much as I do.

Ms. STEFANIK. Absolutely.

Mrs. ELLMERS of North Carolina. I now yield to the gentlewoman from Arizona (Ms. MCSALLY).

Ms. MCSALLY. Madam Chair, I appreciate you organizing this so that the women in our Conference can speak about something that is vitally important to our communities.

Everywhere I go in my district, my constituents are concerned about the security of our Nation and making sure that our men and women in uniform have everything they need in order to defend America.

Having served 26 years in uniform myself and representing a district of 85,000 veterans and two military bases, right now, we have over 750 of them deployed overseas in the fight against ISIS and also to work with our allies to deter Russian aggression.

People are deeply concerned about what appears to be—and not just appears to be—a failed defense strategy and foreign policy out of this administration. I can tell you, as I look around the world—and I have been doing national security for 30 years—we are in a more dangerous world than I have ever seen in my lifetime. I have got the experience of six combat deployments and a couple master's degrees.

Taking a look at this, we don't have enough time in an hour to go around the world with the threats that are emanating. The one that is obviously taking up the news today is the bad deal related to Iran and their march towards a nuclear capability.

I am going to read the whole thing tonight and tomorrow and make sure that we see all the details, but it seems like, on its surface, the goalposts have been moved; and the deal that has been negotiated is one where, myopically, this administration wanted to get a deal, really at all costs.

That cost is quite high to our national security, to the security of our friends and our allies, with significant destabilization in the Middle East, while we have Iran, which is the greatest state sponsor of terror, continuing to destabilize and fight proxy wars in the region and continuing to threaten Americans.

They have blood on their hands of American soldiers in Iraq and in Lebanon and other places. They are continuing to threaten Israel, destabilizing the region, and propping up nonstate actors in their proxy wars; and none of that is changing.

Now, we basically are legitimizing that and not addressing any of these other issues while potentially lifting the arms embargo. This is potentially a very reckless direction that we are going in. My constituents have been talking to me even today about the concerns and just the myopic focus of this administration on this particular bad deal.

If we take a larger view of the Middle East, there appears to be an absolutely incoherent strategy in the larger Middle East. While we have Qasem Soleimani, the general responsible for the Quds Force, responsible for all these terrorist activities that I mentioned, actually commanding the ground forces in Iraq to take back Tikrit, while we are providing the air power and sort of pretending that we are not operating in the same space for the same objectives, then we see what Iran is doing to continue to destabilize both in Yemen, in their support to Hamas and Hezbollah.

All of this is just absolutely incoherent. If you were to try to ask somebody what are we trying to do in the Middle East relative to Iran, which is the hegemon in the room, as a state sponsor of terror, I don't think anybody could really answer that. I don't think this President can answer this. There is deep concern about this lack of coherency.

When it comes to the fight against ISIS, we are doing these anemic attacks from the air. Having been a fighter pilot myself and having been involved in the targeting process—from being a flight lead in an A–10, all the way up to running the counterterrorism operations in Africa—I am very familiar with the targeting process.

We are in a situation where ISIS is continuing to gain momentum, to recruit foreign fighters. Over 20,000 have been recruited, and it looks like they are taking us on, and they are winning because we are putting the bar so high on what targets that we can actually strike—legitimate targets that we are having pilots fly away from—and let continue to thrive and murder massive numbers of civilians in Iraq and Syria; gaining a foothold; gaining territory; and, in using social media, gaining new recruits because it looks like they are winning.

We have an absolute incoherent military strategy in the fight against ISIS not using our power in the way that it should be used, with all that it can bring to the fight, in order to achieve our national security objectives.

We had the Secretary of Defense and the Chairman of the Joint Chiefs in

front of us on the House Armed Services Committee a couple weeks ago, where they said, related to this strategy, hope is not a strategy, but it looks like that is exactly what we are relying on. We are hoping that the Iraqis have an inclusive government, which they have shown time and time again that they are failing to do.

While Iraq has their national security interests certainly in the region, we have our own interests in making sure that ISIS does not gain a strong foothold with resources and the desire to recruit, train, and inspire individuals to attack Americans and take away our way of life. This strategy has just been failed coming out of this administration.

Russia, just another example, the squadron that I commanded is soon coming back from a deployment to Russia, A–10s over in the region to help assure and train our allies against the continued aggression that we are seeing from Russia.

Our incoming potential Chairman of the Joint Chiefs declared last week in a hearing that he believes Russia is actually the largest threat that we are potentially dealing with; yet the weakness from this administration in standing up and leading to defend our national security interests and reassure our allies is allowing Putin to fill that vacuum.

The Baltics and the other allies that are in the region, after basically the Russians were able to invade Ukraine, are wondering who is next and what is at stake with our NATO partners. This is just another example.

What China is doing in the South and East China Seas is just one more example of us not leading and not being able to assure our allies, showing weakness. Our friends are wondering can they count on us anymore, and our enemies are no longer afraid of us. This is the dangerous world we are in.

Some of these factors were going to be happening anyway, but American leadership can make or break situations, and we can change the course of international events if we are leading or not leading. This administration says that they are leading from behind. In the military, we call that following. There is no such thing as leading from behind.

We need to make sure we have a strong national security strategy, that we have a capable military. The impact sequestration is having on our military, I have friends and individuals I know that are still serving and trying to serve, and they are rearranging deck chairs right now, trying to deal with the lack of resources and diminishing capabilities in training and readiness.

That is not a strategy-based budget; that is a budget-based strategy. I have been very strong in speaking against sequestration. I think we need to work together in order to make sure we can give the men and women in the military everything they need to defend America.

The last point I will make—and there are many to make, but we don't have enough time—is that we have passed the National Defense Authorization Act for the last 54 years.

□ 1700

This is an important piece of legislation that gives the troops the authorization, the pay raises, and everything that they need—combating sexual assault—all the different things that we have authorized in the NDAA, and this President is threatening to veto it.

I really hope that those around America who are listening to this will rise up and call their Members of Congress, call their Senators, call the White House and tell them that you don't play politics with our men and women in uniform. This is about national security and national defense. You need to sign that bill.

We are working through conference right now to hopefully get it done before we go into recess. This is an important piece of legislation, and we should not be playing political games with our national security.

So thank you, Madam Chairman, for organizing this. Thanks for the opportunity to come down and speak on behalf of our constituents, on behalf of those in my district right now that are serving overseas, the men and women in uniform. We owe it to them to make sure that we have a strong national security, that we have a strong military, we give them everything they need, and that we provide leadership in the world.

We have got to continue to provide oversight to the failed foreign policy and defense policy of this administration, and I look forward to continuing these discussions.

Mrs. ELLMERS of North Carolina. I thank the gentlewoman.

Madam Speaker, on behalf of the members of the Republican Women's Policy Committee, I would like to end this Special Order today by thanking our troops and their families. These men and women voluntarily venture into harm's way to protect our freedoms, ideals, and way of life.

It is equally as important that we recognize the sacrifices that military spouses and children make as well. They deserve our unwavering support for putting the safety and security of our country first.

May God continue to bless this great Nation and our men and women in uniform.

Madam Speaker, I yield back the balance of my time to conclude this Special Order on national security.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 2898, WESTERN WATER AND AMERICAN FOOD SECURITY ACT OF 2015, AND PROVIDING FOR CONSIDERATION OF H.R. 3038, HIGHWAY AND TRANSPORTATION FUNDING ACT OF 2015, PART II

Mr. NEWHOUSE (during the Special Order of Mrs. ELLMERS of North Carolina), from the Committee on Rules, submitted a privileged report (Rept. No. 114–204) on the resolution (H. Res. 362) providing for consideration of the bill (H.R. 2898) to provide drought relief in the State of California, and for other purposes, and providing for consideration of the bill (H.R. 3038) to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund, and for other purposes, which was referred to the House Calendar and ordered to be printed.

REPORT ON H.R. 3049, AGRICULTURE, RURAL DEVELOPMENT, FOOD AND DRUG ADMINISTRATION, AND RELATED AGENCIES APPROPRIATIONS ACT, 2016

Mr. ADERHOLT (during the Special Order of Mrs. ELLMERS of North Carolina), from the Committee on Appropriations, submitted a privileged report (Rept. No. 114–205) on the bill (H.R. 3049) making appropriations for Agriculture, Rural Development, Food and Drug Administration, and Related Agencies programs for the fiscal year ending September 30, 2016, and for other purposes, which was referred to the Union Calendar and ordered to be printed.

The SPEAKER pro tempore. Pursuant to clause 1, rule XXI, all points of order are reserved on the bill.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. GRIFFITH. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2722

Mr. HILL. Madam Speaker, I ask unanimous consent that my name be removed as a cosponsor of H.R. 2722.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arkansas?

There was no objection.

MAKE IT IN AMERICA

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from California (Mr. GARAMENDI) is recognized for 60 minutes as the designee of the minority leader.

Mr. GARAMENDI. Madam Speaker, we are going to spend about an hour here talking about something that is of great importance to the American people, to the economy, to the strength of America, and, indeed, the discussion we just heard about national security. It

is about how we can build the American economy and build jobs for the working men and women of this country, the great middle class.

There will be much discussion in the days ahead about the Iran nuclear deal. That will be something that is of importance. But today, one question that we ought to ask each other is: If we don't have a deal, then what? The answer to that is: Nothing good.

Let's talk about Make It In America. This is an agenda that the minority whip put together about 4 years ago, and it is about building the American economy, how we can do it. The Make It In America agenda has moved along these last 4 years, almost 5 years now, with numerous pieces of legislation, and we are going to talk about those.

Last week, the minority whip, Mr. STENY HOYER, put together a hearing on this subject matter, and those Democrats that have introduced legislation over these many years and have reintroduced that legislation testified at the hearing about their pieces of legislation.

The result of that was, wow, what if we did those things? What if we actually passed those pieces of legislation? What if they became law? Well, I tell you what it would mean. What it would mean is an enormous opportunity for this economy to grow and for the great American middle class to enjoy higher wages, more jobs, and more opportunity.

Essentially, the legislation came down in these various ways. We had trade legislation. For example, the big discussion we have had over the last 3 months about trade policy and the Trans-Pacific Partnership is extremely important for American manufacturing. Done properly, it probably would grow American manufacturing. On the other hand, what we have seen in the many years previously is that trade policy can hollow out, destroy American manufacturing. So we talked about trade policy.

One issue of extreme importance to me is the maintenance of the Buy America provisions. This is law that has been in place for more than 50 years, and it essentially says, if you are going to spend American taxpayer money, then spend it on American-made goods and equipment.

Tax policy is extremely important. You can, as present tax policy is set in place, encourage the offshoring of American jobs. American corporations are taking their capital, running off to the lowest wage rate country in the world, planting their capital there, building their manufacturing facilities, and leaving behind the American worker. So there are numerous ideas on tax policy.

Energy policy is another issue. We now know that we have had a very robust, large expansion of American energy production, natural gas and oil, so much so that we are likely to ship off in the days ahead liquefied natural gas. Well, if we do a little bit of that, it is probably okay. If we do too much of that, we raise American prices for energy, and then we are going to see less robust American manufacturing.

On labor policy, it is about how we encourage labor, wage rates, and the reeducation for those men and women that have lost their jobs. Education and research and development are extremely important.

These are the essential elements of the Make It In America policy. We will be talking about all of these today.

As my colleagues come in, I want to welcome them to the floor. I see our colleague from the great Northeast, ANN KUSTER, here. If you would like to talk about some of your legislation on Make It In America, we would be delighted to have you join us. I know that you have been working on this a long time in your area, and you have introduced bills in the last Congress and you have new bills in this Congress.

Ms. KUSTER. Mr. GARAMENDI, I appreciate you yielding, and I appreciate you taking the time to share with the American people our Make It In America agenda. I really want to thank you for the fantastic work that you have been doing on growing domestic manufacturing in the country.

We are joined by our wonderful leader, Mr. STENY HOYER, and his leadership on this issue is now legendary. So thank you for that.

New Hampshire has had a long history of being a leader in the manufacturing industry, all the way back to the paper mills at the turn of the century, the textile mills. At one point in Manchester, New Hampshire, we made a mile of cloth a day, and we were leaders in that.

So from the beginning of the time that I have served here in Congress, I have been highly focused on how we can support successful local businesses and embrace innovation to help move our manufacturing economy into the 21st century.

In New Hampshire and across the country, we have some of the hardest working and most innovative companies in the world. I have had the opportunity to visit dozens of companies in my congressional district, visiting manufacturing companies, community colleges, community groups, and organizations all across the Granite State that are harnessing these new technologies to revitalize the manufacturing sector and breathe new life into our industry.

In Keene, New Hampshire, in the southwest corner of my district, for example, we have a Regional Center for Advanced Manufacturing, bringing together leaders from the community, from the K–12 school unit there, public schools, from our community college—River Valley Community College—our State university system—Keene State University—and students and leaders from all across the region learning and teaching the trades of tomorrow.

Coming up in October, New Hampshire will celebrate a full Manufacturing Week. It is a fabulous program. It started out 1 day; it has now exploded into a whole week. Hundreds, if not thousands, of students from the high schools will come into our manufacturing companies and will have a chance to see firsthand what this looks like, these CNC machines and the computerized precision manufacturing.

This is not your grandfather's factory. It is not dirty. It is not noisy. In fact, it is pristine clean. The machines are run on computerized programming, and every employee in the company needs to have the latest in education and talent. People will be able to come in to the companies and see what the work is that is going on.

I have had the chance to see the CNC computerized machines working with wood, working with textiles, working in glass, even counting and organizing eggs at a wonderful Pete and Gerry's Organic Eggs farm.

The problem is that, during the last several decades, lower wages, lack of access to education and skill training, and changes in our global economy have stacked the deck against our U.S. manufacturers. These issues are standing in the way of innovation.

So that is why we have all come together with this Make It In America agenda: to make the right policy changes to help level the playing field so that our manufacturers can grow and successfully create more jobs. That is my number one priority: jobs and economic development.

As part of the Make It In America agenda that I am supporting, we have developed a strong, comprehensive plan to help manufacturers thrive in the 21st century. The great thing about manufacturing, as my good colleague, Mr. GARAMENDI, has pointed out, is whether you are working on transportation policy, education, taxes, regulatory issues, trade, or most any other issue, we can take actions that help manufacturers. And that is exactly what our Make It In America agenda is seeking to do.

One bill that I introduced—and I am working hard to include it in the agenda, and I am working hard to pass—is the Workforce Development Investment Act. What this important piece of legislation would do is create a tax break for employers who partner with community colleges to provide skill training for specific jobs in their respective industries.

As I go around visiting these companies, they do have jobs available, but they don't always have people in the community with the skills that they need. And so, for example, at Nashua Community College, we got funding to create a new program that would train people in this advanced manufacturing, precision manufacturing computerized techniques, and those people will come out with a 2-year associates degree and walk directly into jobs at $55,000 with great benefits and a great quality of life right there in New Hampshire.

My legislation would do all of this by encouraging greater collaboration between community colleges and employers to make sure that students not only have the right skills to succeed, but are on a path to employment when they graduate.

So again, I thank Mr. HOYER, Mr. GARAMENDI, and everyone else who has worked to shape this strong manufacturing agenda. I am proud to be a part of it.

Mr. GARAMENDI. Ms. KUSTER, thank you so very, very much. I think New Hampshire is very fortunate to have your leadership on manufacturing. I think I want to go up there and watch your Manufacturing Week. Now, I am not running for President, so that is not why I would go.

I notice that we have our leader, who has put together this program over the last 5 years. He has geared us up with the hearing last week with all of the members of the Democratic Caucus that have introduced legislation.

Mr. HOYER, you are our leader. You have made Make It In America an American agenda. Thank you so much for that leadership. Thank you for being here and for last week's conference. We have got more work to do. We need to get all this legislation in place. I know with your leadership we have got a good shot at it.

Mr. HOYER, welcome.

Mr. HOYER. I thank you very much, Mr. GARAMENDI. You do such an extraordinary job for California—and have for a long period of time—but you are doing an extraordinary job here in Washington on behalf of America, on behalf of America's workers, on behalf of manufacturers, and on behalf of making sure that we make it here and sell it here and everywhere. That is what Make It In America is about. Nobody, including myself, has been any more tenacious in informing people about this agenda, and I thank you for that.

□ 1715

I want to thank ANN KUSTER. Congresswoman KUSTER and I had an opportunity to visit a really neat manufacturing facility in her district not too long ago.

They were excited about what they were doing, and they were excited, as she has pointed out, about making their business more technology focused and making it more efficient and more productive and, yes, more profitable; but the good news is they were retaining jobs in that effort. I thank Congresswoman KUSTER.

I want to thank DON NORCROSS, who is a new Member of the Congress, but not new to supporting Make It In America—he may not have called it Make It In America in New Jersey—but Make It In America legislation and policies. DON NORCROSS comes from a background of a working family, and he has made them proud and made us proud, and we welcome him to this effort.

I noticed also that SHEILA JACKSON LEE from Houston is also on the floor, who has been a tenacious and very, very faithful spokesperson and worker on behalf of Make It In America.

I am proud to share with my colleagues that House Democrats held a hearing, as has been mentioned, this past Thursday to begin exploring how to improve, expand, and adapt the Make It In America plan to meet the needs and challenges of 2015 and beyond.

As a matter of fact, one of the things we want to find out is how we can better create an environment for new technologies, for new ways of doing business, for new ways of making it in America.

Representative GARAMENDI was one of 34 Members who participated at last week's hearing. For the past 5 years, we have worked together in a bipartisan way to enact already 16 Make It In America bills into law.

These bills included measures to clear the backlog of patent applications, reauthorize the America COMPETES Act, and expand investments in workforce development, which is what Mr. GARAMENDI was talking about and Ms. KUSTER was talking about in terms of training people for the new technologies.

If we are going to compete worldwide in this global marketplace in which we now find ourselves, America is going to be the high value end of the global marketplace. As a result, we need to make sure that we educate and train people to effectively participate and compete and succeed in that high-tech environment.

For the past 5 years, Make It In America has been focused on creating the conditions that encourage, as I said, business to innovate, manufacture, and create jobs here in the United States of America.

Now, with the rise of new technologies with the potential of transforming our economy, it is now time to update the Make It In America plan to address today's challenges and build on past successes.

That is why, Madam Speaker, the hearing that House Democrats held on Thursday was the first in what will be a series of hearings to solicit feedback from Members, entrepreneurs, job creators, in other words, economists, innovators, and others who have insights to share how we can be more successful in creating jobs and competing. These hearings are entitled: ''Make It In America: What's Next?''

Five years have gone by. Circumstances have changed. Challenges have changed. Opportunities have changed. We need to be making sure that we are in a position to seize those opportunities on behalf of all of our people. This is a process of listening, learning, and then implementing the best ideas that emerge.

Thursday's hearings—Mr. GARAMENDI, you participated in them; you were one of the leaders there, which highlighted Members' ideas and feedback they have received from speaking and meeting with constituents back home—was a great success.

I want to emphasize that. We take, from time to time, breaks, and we call them district work periods, and some people call them vacations.

Almost every Member on both sides of the aisle use a district work period to go among their constituents, go to businesses, go to schools, go to construction sites, go to offices, and talk to people about what they think.

That is what our Founding Fathers had in mind: House Members, close to the people, listen to the people, bring their views here. That is what we did at this hearing.

We heard about the economic impact of the so-called Internet of things, which—in my generation, what language are you speaking, Internet of things—which uses wireless technology to connect everyday objects, your home, your refrigerator, your air conditioner, your television, everyday objects; we are all connected now.

We also heard about maker faires and fab labs, where students and professionals alike can transform tinkering into innovation. I sometimes say, Mr. GARAMENDI, that one of the policies that we ought to do is we ought to—a previous President talked about a chicken in every pot.

We ought to give a garage to every graduating high school student. It seems everything is generated in a garage in America. Although, as BILL FOSTER pointed out, these fab labs and maker faires were perhaps the new garages of our time.

Representative GARAMENDI, as I said, was among those who spoke about new ways to help traditional manufacturing, when he discussed the role our shipbuilding industry plays in helping American businesses move natural gas and other goods to market at home and abroad.

That shipbuilding industry was critically important to us winning in World War II. Now, as Mr. GARAMENDI pointed out, it is a shadow of its former self, and we need to rebuild it, and we need to be shipping goods on American fleets.

These were just some of the things that came up in the hearing, and I encourage all of my colleagues and all Americans to go online to democraticwhip.gov and read Members' testimonies.

Ms. KUSTER's testimony is on that, Mr. GARAMENDI's, and Mr. NORCROSS' testimony is on the Web; and you can see their perspective, add them all together, and we come up with a powerful agenda to create jobs in America.

That is what we are focused on; that is what the people want us focused on, and that is what we are going to work on. That is what Make It In America is all about.

I want to express my gratitude, again, to all the Members who participated in the first hearing, including, of

course, the leader of this Special Order, Mr. GARAMENDI from California, and I thank him for yielding.

Mr. GARAMENDI. Mr. HOYER, none of this would be happening were it not for your leadership. You brought us together, 34 Members of the Democratic Caucus, each with one or more specific pieces of legislation to move the Make It In America agenda, so that Americans can have those middle class jobs and beyond and above and, in the process, grow the American economy. It is the fair way to do it. It is the right way to do it; grow the American economy in a fair way so that those middle class jobs are there.

It is the future; it has been the past; it can be the future with the legislation, and each one of these ideas—trade, taxes, energy, labor, education, research and infrastructure—the 34 Members of your caucus brought forth legislation in each and every one of those areas.

Mr. HOYER. Will the gentleman yield?

Mr. GARAMENDI. I yield to the gentleman from Maryland.

Mr. HOYER. The last item on there is infrastructure. When you build infrastructure in America, you don't create jobs any place other than America.

We are hopefully going to have a highway bill; and we need a permanent highway bill, a long-term, 6-year minimum highway bill, so that we lend confidence to the marketplace that the infrastructure is going to be in place because, if we are going to Make It In America, a good, solid competitive infrastructure is absolutely essential.

I thank the gentleman for that list. I thank him for his work. I thank him for the—I will say a few things while the gentleman is restoring Make It In America to its rightful place.

Mr. GARAMENDI. I am going to move this thing along. I see several of our other colleagues have joined us here.

SHEILA JACKSON LEE, you said you had a brief presentation. Please take the floor, then Mr. NORCROSS, and then we will—MARCY KAPTUR is here from Ohio. Here we go.

Ms. JACKSON LEE. Let me add my appreciation as well to be one of those Members who joined Mr. HOYER 5 years ago to emphasize that Make It In America is a double win. Make It In America, and we will make it in America, and that is what this message has been. I want to thank my good friend from California for leading this effort.

I just want to read what many of our constituents appreciate as being part of this Make It In America. The fair trade concept, taxes, energy, labor, education, research, and infrastructure, all of these are part, if they work fairly for the working man and woman.

I highlighted The Wall Street Journal earlier this year, 2014 marked the best year for job growth in 15 years, with employers adding 2.95 million jobs, and the unemployment rate falling to a postrecession low of 5.6 percent.

For the first time since the recession ended, payrolls are expected to grow. In all of America's cities and throughout the U.S., they are expected to add another 2.6 million jobs.

Houston is ranked as a top city for STEM occupations, jobs requiring a degree in science, technology, engineering, and math. Of course, we are engaged in the energy sector, and for that, we need employees.

All of my colleagues who believe in Make It In America collectively have put in place nearly 100 additional bills that have been introduced to focus on Make It In America. As well, all of us have focused on this concept of skills training.

I introduced H.R. 73, the America RISING Act of 2015, which stands for Realizing the Informational Skills and Initiative of New Graduates, establishing a grant program for stipends to assist in the cost of compensation paid by employers to certain recent college graduates and provide funding for their further education in subjects relating to mathematics, science, engineering, and technology.

What I want to say this evening is that this is a movement that should continue. I am very delighted that America recognizes that manufacturing is an economic engine.

I want to make mention of the Houston Community College, that I have had a meeting with over the last week, to particularly focus on a new facility that we hope will be finalized that will have automotive technology at the highest level and manufacturing as part of its training.

This is to help not only recent graduates or individuals in what we call early college, but it is to help adults to be retrained for important elements that will manufacture, something I want to see increased in Houston, and as well will have us at the highest levels of technology.

It is no longer the auto mechanic; it is the automotive engineer, the person who knows how to deal with sophisticated electric cars, solar-driven cars, and others that make a difference in our lives.

I want to thank the gentleman for having this very special Special Order, as he has done over the years and months, and to say that we are committed to passing legislation, building infrastructure, increasing our education and research, and particularly providing a new generation an opportunity for creating jobs and putting America, as it has been in the past, at the top in production; manufacturing; research; and, certainly, technology.

I thank the gentleman.

Thank you Congressman GARAMENDI for anchoring this Special Order and yielding me time to share with our colleagues legislation I have introduced that comports with the principles underlying our Make It In America agenda.

Our Make it in America plan sets forth four central guiding posts: 1. We must adopt and pursue a well-developed national manufacturing strategy that begins right here in America. 2. We must promote the export of our manufacturing goods so that businesses can compete domestically and internationally. 3. We must also encourage businesses abroad to bring jobs and innovation back to the United States. 4. Lastly, and most importantly, we must train and educate a workforce that will secure the sustainability of this plan.

As we continue this critical work of identifying and advancing effective policy change for our communities and collectively throughout the nation, it is important that we acknowledge the great progress we have made.

I supported the 16 Make It In America bills that have been signed into law by our President.

Additionally, as highlighted by the Wall Street Journal earlier this year, 2014 marked the best year for job growth in 15 years, with employers adding 2.95 million jobs and the unemployment rate falling to a post-recession low of 5.6%.

For the first time since the recession ended, payrolls are expected to grow in all of America's cities and employers throughout the U.S. are expected to add another 2.65 million jobs this year.

Houston is ranked as a top city for STEM occupations, jobs requiring a degree in science, technology, engineering and math related subjects.

Known as the ''Energy Capital of the World'', Houston has core strengths in the energy sector, import/export trade activity, medical advancements and a diverse population that supports innovative growth.

However, Houston and other cities across the nation remain at risk of stalemating any progress we have made or are projected to make if we do continue to open up our job market and expand opportunities in all cities across the nation.

As we look to the pillars and priorities of our plan, which aims to ensure that these jobs are permanent and sustainable throughout all sectors and populations of America, it is important to keep sight of the nearly 100 additional bills my colleagues and I have introduced calling for strategic action and fair enhancement of our economy as we continue to experience this growth.

American businesses can only remain competitive when they have the trained and educated workers they need.

This is why I have introduced legislation that will help strengthen our education and skills-training programs to make sure our workers are getting the preparation and certifications they need while also providing an opportunity to find and retain work once trained with those high-demand skills.

H.R. 73, the ''America RISING Act of 2015'' which stands for Realizing the Informational Skills and Initiative of New Graduates, establishes a grant program for stipends to assist in the cost of compensation paid by employers to certain recent college graduates and provides funding for their further education in subjects relating to mathematics, science, engineering, and technology.

ABOUT H.R. 73, THE ''AMERICA RISING ACT OF 2015'' AND THE PROBLEM IT ADDRESSES

According to the Bureau of Labor Statistics, in 2012 the national unemployment rate for persons with a bachelor's degree was 4.5% and 6.2% for those persons with associate's degrees among college graduates aged 25

years and older. For college graduates aged 18–25 these percentages were higher at 7.7%.

Because the typical college graduate leaves college owing an average of $29,400, in student loan debt, a rate that has increased 6% every year since 2008, the current job market offers exceedingly few opportunities for them to obtain employment at a salary adequate to service their college loan debt.

There are more than 26 million small businesses in the United States, of these more than 4 million are owned and operated by members of economically and socially disadvantaged groups.

In the current economic climate, small businesses are experiencing difficulty in finding the resources needed to increase sales, modernize operations, and hire new employees.

Recent college graduates need the experience that can be obtained only in the workplace to refine their skills and lay the groundwork for productive careers.

Small and disadvantaged businesses need the technologically based problem-solving skills possessed by recent college graduates, particularly those with training in the areas of science, technology, engineering, and mathematics.

Enabling recent graduates to obtain employment with small business and companies operating in economically distressed areas benefits the national economy by granting graduates deferred payments on their student loans with frozen interest rates while they gain essential business management experience that they can put into practice throughout their careers, while at the same time providing businesses the human capital and technical expertise needed to compete and win in the global economy of the 21st century.

The key elements of the program would be that the federal government would provide relief to a corps of recent college graduates in order for them to be deployed to assist struggling small and minority businesses in located in disadvantaged or economically depressed areas.

These are the types of business that are most in need of the technical and knowledge based skills possessed by recent college graduates but least able to afford them.

The benefit to participants is three-fold: 1. The federal government would provide relief from the piling interest rates of graduates' student loans by instating a freeze on their payments for two years while graduates who have not obtained a STEM degree are able to pursue a second training course or certification program in the STEM fields with eligibility for federal financial assistance. 2. Those graduates, who would have completed a degree in the STEM fields within the past 24 months, will be eligible to receive deferment of the cost of previous school balances by obtaining two years of additional education in the STEM fields as well as federal financial aid to complete the training. 3. The program participants will gain valuable experience applying the knowledge learned in college to the workplace after graduation or during their re-training.

In the long run the best way to guarantee America's future economic prosperity is to develop and grow an entrepreneurial class of Americans that is broadly represented among all demographic groups.

It is not enough to provide jobs that can be performed by the millions of low-skilled workers who need employment now.

In a global economy, any such job provided cannot be protected over the long haul and cannot be made lucrative enough to sustain a middle class standard of living.

Therefore, it is critical that there exist job training and retraining programs to enable workers to upgrade existing skills and to learn new ones.

I invite all my colleagues to join me in cosponsoring H.R. 73, the "America RISING Act of 2015," which will help create the next generation of entrepreneurs and businesses that will provide good-paying middle-class jobs for America.

Mr. GARAMENDI. Thank you very much, Ms. JACKSON LEE. I really appreciate it.

As we talk about each of these things, you are talking labor and education and the way they come together and, in doing so, increasing the productivity and the ability of an American worker to get a job in the new manufacturing world in which we are living.

These things do come together, all of these pieces of the puzzle, 34 Members of the Caucus, over 100 pieces of legislation in all of these areas.

Joining us, Mr. NORCROSS, thank you very much for joining us today. You were, I think, introduced very nicely by the minority whip. Welcome.

I yield to the gentleman from New Jersey (Mr. NORCROSS).

Mr. NORCROSS. Thank you. Certainly, we appreciate what you are doing here today, and that is highlighting what is going on in America. In south Jersey, where I am from, born and raised, a half century ago, we knew what it was like to Make It In America.

I live in the Victor building, where the Victrolas used to be made. We are not making Victrolas anymore. The Victrola turned into RCA and then went on from there. My father's first job was in the building I now live, which means they are not manufacturing Victrolas there anymore.

During the heyday, we built ships at New York shipyard. In fact, New York shipyard was where the very first nuclear-powered merchant ship was made.

Campbell Soup, who is still in our city, made soups, which now are known around the world.

□ 1730

But we look back over the last half century and see how things have changed. Many of those jobs have moved out because of bad trade deals. I had many, many empty warehouses and manufacturing plants where once thousands of people worked.

But we are on the rise again. And I just want to highlight a couple of items that are going to help us make it in America again.

We have a startup company by Dr. Singh, who was educated at the University of Pennsylvania, and he is now going to make SMR, small modular reactors, unconditionally safe, clean, carbon-free.

He was looking for a place to make them. And he literally could have gone anywhere in the world, where many of his products currently go. He is coming to Camden, New Jersey, here in America.

Why? Because of the educational system. Because those men and women that are going to be trained there are here in America and understand that.

Because we know in education not one size fits all. Most parents—and you hear it day in and day out, that they want to send their children to college. Well, the fact of the matter is not everybody wants or needs to go to college.

We have those who are serving in the military, those in our trade programs. And we take a look at those trade programs, they are the backbone of what is going to be happening in the next generation of making it in America.

Because Dr. Singh is going to start out with 400 new employees and go to 1,000 after a few years, creating these new SMRs, which is high tech, but very labor intensive, whether it is arc welding, electricians, carpenters.

And they all have to have an education. Not all of them have to go to college. Those who are going to engineer this obviously do.

But working with your hands is a noble trade. I like to tell people, as I started out as an electrician, that I am still an electrician. I just wear a tie.

But that adult learning and having a flexible way to learn, whether—we heard a few moments ago about the community college system, which I firmly believe is the most affordable quality education that somebody leaving high school can go to.

You know, not everybody understands when they get out of high school where they want to go. But having that educational system, whether it is through the community college or through an apprenticeship program, is the way you can make it in America.

Now, when we take a look back over the last 50 years, we have had our ups and downs in America, but we always know the best social program is a job.

When you have a job, many of those other issues that you are facing when you are unemployed tend to go away. And when you have that job, you can make it in America.

I would like to thank my colleague from California for having us down here today and talking about this very important issue. Making it in America is about having a job. And when we stay focused on that here in Congress, America will win.

Mr. GARAMENDI. I thank you very much, Mr. NORCROSS. I knew that you had come out of a family that was in the building trades. You are an electrician, and you are also a Member of Congress.

So you are bringing something very valuable, and that is hands-on experience in the working world, where the middle class has seen their part of the American economy stall out, not able to climb ahead.

But over the last 20 years, we have seen this American middle class basically just barely able to hold its

ground. And one of the reasons is the enormous decline in the manufacturing industry in this Nation and, also, that this Nation has not been keeping up with the needs of infrastructure.

So as we look at the Make It In America agenda, yes, education is absolutely important so that the workers of today and tomorrow are prepared for the kind of jobs that are out there.

Electricians—I am sure you can speak to this—when you started in the business, it was one kind of skill set and, as you proceeded, you have found a need for additional.

Would you like to talk about how that works and the way it might integrate with the small modular reactors?

Mr. NORCROSS. Certainly. And I appreciate you yielding.

When we look at the educational system, apprenticeship programs have been around since the beginning of time, whether it was the shoemaker or the carpenter.

When I started out, it was a 4-year apprenticeship program. Today it is up to 5 years plus, depending on what specialty area you would like to focus on.

But those are the jobs that, when you are working, you are going to school, you are paying your taxes. When you are not working, you are not paying your taxes, and the system is a drag. You can't find a better life.

So when I say the best social program is a job, it is good for America. It pays the taxes. That means you are going to afford to send your kids to college if they want to go to college.

I have three children. Two of them wanted to go to college. One wanted to become an electrician. They each value what they do so much, and they are proud of what they do.

Mr. GARAMENDI. Perhaps it was your testimony at the hearing that the gentleman from Maryland (Mr. HOYER) put together, and they were talking about job training programs.

And I believe one witness, maybe you, said that the largest technical training program in the Nation are the apprenticeship programs that the unions run.

So the electricians union, IEBW, their apprenticeship program, the plumbers union and steelworkers and so forth each have an apprenticeship training program. And, when taken together, it is the single largest job training program in the Nation.

You said you spent some time at that?

Mr. NORCROSS. Well, it is interesting you are bringing that up. There are 15 different craft unions. And the fact of the matter is sometimes we can't see the forest for the trees.

They are the largest training—$1.9 billion a year, privately funded, not through any government funds—through the apprenticeship training program of those 15 different craft unions.

It is so important because it is in place. That means that, when they are working, they are putting that next generation of people to work.

We need people to be in the STEMs, the engineers. But these apprenticeship programs, over 900 sites around the country, are training carpenters, plumbers, cement masons, laborers each and every day, and they have been doing it.

The way we can help them make it in America is to start the infrastructure up so that they can start that next generation of folks because an apprenticeship program only works when the journeyman is teaching the apprentice.

Mr. GARAMENDI. In terms of public policy, we have passed a new piece of legislation, the Education and Workforce Innovation Act, last year.

And it seems to me that that piece of legislation, which provides Federal assistance for various kinds of workforce preparation, education, and other activities, to the extent that that can be brought into and connected with the apprenticeship programs that those labor unions that you just described are running out there, we might see even a more robust program within these. And these are employer and union, both of them participating in the apprenticeship programs.

Mr. NORCROSS. It is interesting you brought that up.

Today I spoke in front of the Building & Construction Trades Council. They have a program called Helmets to Hardhats, which is taking those veterans who are returning home and looking for an opportunity.

And those opportunities aren't always there, but those building trades in New Jersey alone over the last 4 years have taken 500 veterans into their apprenticeship programs.

So it is taking an existing program, giving not a handout, but just an opportunity to those vets. And they are some of the best apprentices that we have ever had, and it works extremely well.

Mr. GARAMENDI. We had a job fair out in California 2 weeks ago, and I was talking to some of the folks that were looking for a job.

Many of them had gone to the community college, taken a preapprenticeship training program so that they would be prepared and have the necessary education to go into the apprenticeship program.

That is a very, very important part of the Make It In America agenda: education coupled with labor. It is a very, very powerful piece of this.

Thank you so very much for participating today.

Closing comment?

Mr. NORCROSS. You bring up a good point.

The one issue, the preapprentice program is giving an opportunity to those who might not normally look into it: Women, minorities, and those who haven't been exposed to the trades. And I think that is a great point.

Do you want to be out there when it is in the middle of the summer? Do you want to be out there in the cold? So the preapprentice program exposes them to all the different crafts to see if this is what they want to do. It is a great opportunity to make it in America.

I thank you for the time.

Mr. GARAMENDI. Well, I am going to pass this discussion on to a lady who knows a lot of manufacturing.

I now yield to the gentlewoman from the great State of Ohio (Ms. KAPTUR), the heart of the manufacturing center in the United States.

Thank you so very much for joining us this afternoon.

Ms. KAPTUR. I want to thank you, Congressman GARAMENDI, for your continuing leadership on jobs in America and Make It In America.

It is a pleasure to join also with Congressmen NORCROSS and SHERMAN, who are here tonight after hours as we attempt to bring the cause of the American people here to our Nation's Capitol.

I want to thank you for the logo of ''Make It In America.'' We in the Midwest would also say ''make it and grow it in America'' because agriculture is a major underpinning of Ohio as well, and I know it is of California.

I want to begin my remarks tonight by saying that the American economy, in a way, is upside down. We have seen two-thirds of the manufacturing jobs in America eliminated over the last three decades, and it isn't just because of technology.

It is because those jobs have been outsourced to third-world environments, where people work for penny wage jobs, and their livelihoods don't really increase. They aren't bettering themselves. They are basically not starving. They certainly don't live a middle class way of life.

But two-thirds of the manufacturing jobs, gone in America. And at the same time, we see the financial sector growing in power. Six banks headquartered on Wall Street mainly controlling the investment that occurs that allows the outsourcing, the very same characters that brought this economy down and hurt the world through the development of derivatives.

It has been interesting to read about the Greek financial crisis and to see that Goldman Sachs is right in there again, creating a derivative instrument that can't hold water. So the inner tube is just leaking all over the place.

It is important for the American people to see that manufacturing jobs have gone down. We have lost two-thirds of them. And the financial sector, meanwhile, has gained power, the very same characters that are outsourcing these jobs.

Because who has the money to invest in third-world environments? It sure isn't the community banks that I represent.

Let me point out that, over the last 30 years, we haven't had a single year where the United States was able to send more out—export goods—than import from other places.

So we have been upside down as an economy now for going on 30 years.

And from my region, that means the average family has had their income go down, their net effective buying power, $7,000 as the middle class hemorrhages.

Let's look at the numbers. We have had over $10 trillion of trade deficit since the mid-1970s, when the first free trade agreement was signed. That $10 trillion probably translates into a loss of over 40 million jobs over that period of time.

We are growing now sluggishly, sluggishly, because the ''make it'' and ''grow it'' parts of America have been very, very trimmed back.

If you lose two-thirds of your manufacturing jobs, you have growing poverty and you have sinking wages and sinking buying power across our country.

Now, there is a book. I recommend it to everybody. ''American Theocracy'' by Kevin Phillips. In chapter 8, he talks about the financialization of the U.S. economy: loss of manufacturing jobs, increase of jobs in the financial sector, high rewards for the people that sit at the top, but for everybody else, sinking wages and a shrinking middle class.

The derivative instruments that hurt our country and the collateralized debt obligations that threw us into a spin back in 2008, those weren't invented by people in Toledo, and I doubt they were invented by people in Cleveland or central California. They were invented by money-changers.

And they had figured out how to trade away American jobs, make huge, huge profits for their shareholders at the expense of the rest of the American people, the 99 percent.

On agriculture, I want to say that what has happened over the same period of time—because we have a vast underpinning of agriculture in this country. But even with it, 15 percent of our food is now imported. It used to be about 3 percent.

Start looking at the shelves and you are going: Oh, what did we trade away for that or that or that? And certainly, in pharmaceuticals, we have traded away most of those jobs someplace else.

And isn't it interesting that the cost of pharmaceuticals hasn't gone down, as we have just seen an avalanche of drugs coming in here, whether they be generic or brand-name.

There are people who are financing this outsourcing, and they are sitting fat and happy in the major financial center of our country.

I can go through my region. I can look at companies like Dixon Ticonderoga. It didn't close its doors in Sandusky, Ohio, because it couldn't make its crayons and school supplies anymore. It was moved to Mexico, where it sits near Mexico City. It moved from Sandusky, Ohio, down there.

Delphi moved from the same general area, Port Clinton, Ohio. Ford Focus just last week announced 4,000 jobs out of suburban Detroit down to Mexico. Champion Spark Plug in Toledo, closed. Acklin Stamping in Toledo, closed. Dura, Dana, Chase Bag, Textile Leather, the list goes on and on. Ford's Maumee Stamping, there couldn't be a better Ford stamping plant in America than the one in Maumee—doors shut, jobs gone.

Two-thirds. That is just one part of America. Two-thirds of the manufacturing jobs of this country, lost.

Our economy is lopsided. It is benefiting a few. We are seeding the field, and that is why the American people feel the pinch.

I just wanted to make one other important point where the gentleman references research and innovation. There will be a patent bill coming up here very soon which I hope people will vote against because it will further dampen the ability of individual inventors and those working in our universities inventing the new products of the future and will reward only the big companies.

And I say to my colleagues, if you haven't decided how to vote on H.R. 9, I hope you will vote ''no'' on what is being called the Innovation Act because what it is, it is a transfer of more power to the biggest global corporations to say to their patents: Full steam ahead.

But if you are an individual out there in America or you are a person who doesn't have a whole legal team of lawyers who are being paid at your behest, you don't have a chance. You won't have a chance with H.R. 9.

We have a bill, H.R. 2045, that I hope people will look at as an alternative. It is supported by all of the research universities, small inventors across our country, who can't afford any longer to put their invention out there because they don't have the legal or financial capacity to defend it.

There is something really insidious about what is going on with our patent system and will make it so much harder.

And I give as proof, I read in our local newspaper the other day—they listed all the patents that had been approved this year over the first half of the year from my part of the country. There wasn't a single individual patent approved. Every single patent that was approved belonged to a company that had already been successful.

There wasn't even a university patent approved. I thought: Oh, my goodness. This is really not going to support innovation. This only supports the very same big-pocketed folks who already hold all the power in this society and have far too much sway in this Congress.

So I thank the gentleman for allowing me to add my two cents to the discussion this evening and to say the American people deserve a better deal than this.

I hope that Members will look at our Glass-Steagall Act as well. That is my bill, ELIZABETH WARREN's bill over in the other body, to break up the big banks and to have more democratic activity among the financial institutions of this country and not just lodging over two-thirds of the power in the big six.

It is really warping our society, and it is making it much less representative. It is harming manufacturing. It is harming agriculture. It is harming innovation.

Thank you, Congressman GARAMENDI, for the phenomenal work that you do in allowing all of us whose districts have been so impacted to add to the American fabric and represent all of America, not just the wealthiest part of it.

Mr. GARAMENDI. Ms. KAPTUR, thank you so very much for bringing us the message from America's heartland. And, by the way, agriculture is also a manufacturing industry. The farmer grows, but then the food processors are manufacturing that and bringing added value and a major part.

You are quite correct about the escape of capital, using tax policy and trade policy to encourage American companies to take their capital and build overseas, leaving American workers behind.

Ms. KAPTUR. Will the gentleman yield?

Mr. GARAMENDI. I yield to the gentlewoman from Ohio.

Ms. KAPTUR. I just want to place on the record that our Glass-Steagall bill to essentially break up the big banks and take the investment side of the operation away from the prudent banking portion of it is H.R. 381.

We have over 60 cosponsors of our bill here in the House, and I am hoping, as the American people hear our message tonight, they will encourage their Members of Congress to sponsor our Glass-Steagall Restoration Act, H.R. 381.

□ 1745

Mr. GARAMENDI. Ms. KAPTUR, thank you so very, very much. You talked about things that are extremely important along the way: the trade policy, our tax policy, the escape of American capital, leaving American workers behind, economic theory, and capital and labor resources. If one of those leaves—in this case, capital—then the American worker is left behind.

Mr. Speaker, the Make It In America agenda is all about rebuilding the foundation of America's economic growth. We can do that in several ways. I am going to wrap up with a very quick rendition of several policy opportunities that present themselves to us.

First of all, at the bottom of that list—not because it is at the bottom, but because it is just there—is the issue of infrastructure. We are faced with a huge challenge, one that, unfortunately, I am afraid the Congress will, once again, duck the challenge of creating a robust program to revitalize the American infrastructure.

Infrastructure is the foundation. It is the sanitation, the water systems; it is

the roads, the airports; it is the rivers, the ports, and transportation system.

The President has introduced, in the last Congress, the GROW AMERICA Act. We now call it the GROW AMERICA Act 2. Unfortunately, this week, tomorrow, our majority, our Republican colleagues, are failing to address this issue.

Instead, they are going back to a childhood game called kick the can—in this case, kick the can down the road for another 6 months instead of putting in place a long-term, 5- or 6-year transportation program that can accomplish all of these things—the rail, the buses, the ports, the bridges, the highways, the sanitation systems, and the communications systems. The leadership in the House on the Republican side is simply missing the fundamental necessity of infrastructure.

By the way, Mr. Speaker, this goes back to the Founding Fathers. George Washington asked Alexander Hamilton to develop an economic plan. He came back with one called manufacturers; in that was an infrastructure. Alexander Hamilton, the first Secretary of the Treasury, said that we must build the roads—postal roads at that time—we must build the canals, and we must build the ports if we are going to have a strong economy. The infrastructure is critically important to the Make It In America agenda.

Another one, Mr. Speaker, is using our tax dollars to build the American economy to make it in America. This is a story of two bridges. Very, very quickly, one bridge on the West Coast, this is called the San Francisco-Oakland Bay Bridge, a multibillion dollar project, the other one on the East Coast, and this is on the Hudson River in New York City, the Tappan Zee Bridge.

The San Francisco Bay Bridge, in a fit of what I call stupidity, the State of California decided that they would seek Chinese steel because it was supposed to be 10 percent cheaper to build the bridge. Well, the result was 6,000 jobs were in China, a brand-new steel mill, the most high-tech steel mill in the world—and, for America, taken to the cleaners.

It was a significant overrun of multimillions of dollars, a delay of years and years, steel that was shoddy, welds that were shoddy, and a lesson for America: spend our tax money on American-made equipment and supplies. Buy American steel. Those 6,000 jobs could have been in America. That steel mill could have been in America, and the shoddy work would not have occurred.

New York decided to buy American steel. So what happens—on time and under budget and 7,728 American jobs were created. It is the story of two coasts: California, stupid policy; New York, wise policy. Spend the American taxpayer dollars on American-made goods and equipment.

One final thing, Mr. Speaker, and then I am going to return this over to the speaker. I don't know if you can see that, but that is a liquefied natural gas tanker. America later this year will begin to export natural gas in the form of LNG, liquefied natural gas. This is a big deal and a big potential for the gas industry.

They are going to make a lot of money because the cost of natural gas around the world is maybe twice to three times what the price would be in the United States, so the gas companies are all for shipping gas overseas. We need to be careful about this because, if we ship too much overseas, then we are going to raise the price.

The Cheniere facility in the Gulf Coast will take 100 tankers, and I have legislation that says, if we are going to ship a strategic national asset overseas, then we ought to take care of the rest of the national security.

Shipbuilding is absolutely essential. American mariners, captains, and seamen and -women are absolutely essential for the American defense and security. Make it in America, ship it on American-built tankers—we are talking about tens of thousands, indeed, over 100,000 jobs and a supply chain for jobs all across the country.

Mr. Speaker, I have got just a few minutes, and I notice that my colleague from New York is here. The East-West show is back in force.

Mr. TONKO, thank you for coming in so quietly. I didn't see you on my left side. Please join us, and let's talk about Make It In America.

Mr. TONKO. Thank you, Representative GARAMENDI. It is always a pleasure to join you on the House floor to speak to any issue, but in this case, to Make It In America.

I am certain through the hour you have talked about the capital and physical infrastructure demands, but we also have to highlight the human infrastructure portion of the equation that will resound in the greatest success for the Make It In America agenda, and that is training the skilled talent that we need.

We need to promote the development and the advancement of manufacturing—advanced manufacturing, as it has been coined of late—but also to understand that it is an innovation economy, and so that means dealing with issues in production with great precision.

That great precision requires extremely gifted skill sets and education, apprentice programs in higher ed, making certain we have a growing force of engineers, where we are woefully underproducing the amount of engineers we require.

There are bits of legislation that all of us have cosponsored, that perhaps we are leading as sponsor, that will encourage the development engineers that we require for our being able to be a great manufacturing nation as we move forward.

Those are important elements, making certain that we have the precision instrumentation that will enable us to, again, compete because it is not the cheapest investment, but the wisest investment that is made.

It is not going to be significant by the dollar only, but what is the best product, what is the most thoughtful product that is developed for whatever needs society may have. The engineering components of all of this is very important, and the skill set component is very important.

As we go forward, we want to make certain that that human infrastructure is geared up and ready to go with cutting-edge skill sets that speak to today's economy. That is very important.

Mr. Speaker, we have always prided ourselves on a strong workforce, a well-trained, well-educated, and well-equipped force that goes out there and enables us to compete and compete effectively in a global race on innovation. That has grown significant over the last decade.

We see more and more investment coming in, that human infrastructure from nations around the world that will then be competing with this Nation to be able to export its goods, so a full complement of programs that are essential in policy format and resource advocacy and investing in that Make It In America agenda, investment here where there are rightful anticipations of lucrative returns on the taxpayer dollars that are invested.

I thank you for the laser sharp focus you put on to Make It In America as an agenda and the underscoring of importance that you have drawn to manufacturing as a sector. It was walked away from by previous administrations.

This administration, the Obama administration, has talked about sound investment in advance manufacturing will enable us to stop bleeding the loss of manufacturing jobs where we are losing, at one point, one out of four.

□ 1800

We are still perched pretty high in terms of manufacturing jobs, but we have to stop that bleeding, and the way we do it is by turning it around with policy and resource advocacy. And I thank you again for your leadership in this regard.

Mr. GARAMENDI. Mr. TONKO, thank you. I know that your previous work before you came to Congress several years ago was in the State of New York working on the innovation economy. You certainly have ramped up innovation economy in the State of New York, and now you are bringing that experience here with legislation.

The Make It In America agenda, I am going to put it back up very, very quickly here because you talked about this. The Make It in America agenda is about the middle class; it is about rebuilding the middle class.

Thirty-four members of the Democratic Caucus talked last week about their legislation dealing with trade and taxes, energy, labor, education, research, and infrastructure, about how that constellation of issues comes together to boost the American middle

class, to give every American an opportunity for that middle class job. So it is there.

I see we are about to be out of time, or maybe we are already out of time, so I am going to say I want to thank my colleagues and Mr. HOYER for leading us in this.

Mr. TONKO, you have got 30 seconds to close.

Mr. TONKO. Well, I just say, let's move forward with investment. It happens when we have a laser sharp focus on just where to apply our resources to capital, physical, and human infrastructure, so as to be the strongest competitor out there in a global race for kingpin of the innovation economy, and whoever wins that race, becomes the go-to agent for the worldwide economy. So we can't afford to hesitate or fail in our attempt here.

Thank you, again, for leading us.

Mr. GARAMENDI. Thank you, Mr. TONKO.

Mr. Speaker, I yield back the balance of my time.

IRAN NUCLEAR DEAL

The SPEAKER pro tempore (Mr. GRAVES of Louisiana). Under the Speaker's announced policy of January 6, 2015, the Chair recognizes the gentleman from California (Mr. SHERMAN) for 30 minutes.

Mr. SHERMAN. Mr. Speaker, I would like to begin by praising Mr. GARAMENDI, the gentleman from California, for this excellent presentation on why we should make it in America.

But I am here today to talk about something that was made in Vienna, namely, the Iran nuclear deal. I am going to start with a few observations and then get to the heart of my remarks.

The first observation is that we ought to set the record straight. The sanctions that brought Iran to the table were imposed by Congress over the objection of the executive branch of government.

For 30 years, Congress had it right, and for 30 years, the executive branch had it wrong. For 30 years, every time we passed sanctions acts, they would be argued against and thwarted and watered down due to the efforts of several administrations.

The only time Congress got it wrong is when the House of Representatives got it right and passed tough sanctions legislation that went over to the Senate where, unfortunately, some in the senior body listened to the administrations at the time and failed to pass our legislation.

The second observation I would like to make is that the deal in Vienna lifts a number of sanctions which were not imposed as a result of Iran's nuclear activity. It provides greater sanctions relief than that which was supposed to be provided.

I, in particular, note that the arms embargo against Iran, an Iran that has created so much mischief in Syria, Yemen, and elsewhere, will be phased out and the Iran Sanctions Act will be waived. The Iran Sanctions Act was passed by the Congress in the early 1990s.

A review of that bill indicates that only one of three reasons it was passed was Iran's work with WMDs. And, of course, weapons of mass destruction come in three forms, not only the nuclear, but also the chemical and the biological. So I would reckon that only one-ninth of the reason Congress passed that bill was Iran's nuclear program, and yet those sanctions are being waived.

And finally, we see that the sanctions relief is so complete that not only are we waiving our secondary sanctions and allowing Iran to do business with the rest of the world, we are even allowing Iran to export to the United States. We won't buy their oil, but we will buy the things that we don't need and they couldn't sell anywhere else.

The next observation I would like to make is that there are those who say this deal may only work for about 10 years, but the Iranian Government will get better over the next 10 years. Do not hold your breath. The whole purpose of sanctions is to put pressure on the government, which either causes it to change its policy or creates a change in regime. That is what you do when you are trying to force a change in government.

Showering this government with economic benefits is not going to lead to its destruction or its eclipse. Look at Tehran. What you see is what you get.

Another observation is about missiles. It is unfortunate that this deal will allow Iran, in 8 years, to get more missile technology. There is only one reason for them to be working on intercontinental ballistic missiles, and that is to deliver a nuclear payload to a different continent than their own—namely, ours; namely, Europe. There is no other reason. Iran is not trying to fly to the Moon. They are trying to get a nuclear device to North America or Europe.

But let us not be sanguine one way or the other about missiles. A nuclear weapon—they vary in size, but they are about the size of a person, and you can smuggle one into the United States inside a bale of marijuana.

So while we should be doing everything possible to stop Iran's missile program, the heart of our effort has got to be to stop their nuclear weapons program. The heart of my speech is to focus on the deal from a nuclear weapons perspective.

Now, the political pundits outside this Capitol are all trying to make this an ''evaluate the President'': Are you for him or are you against him? Is this a good deal? Did the President do a good job?

Those questions may be relevant to those seeking ratings on this or that cable television channel, but we in Congress have got to deal with a completely different question: What should Congress do at this time under these circumstances in the real world as it exists today where the President has agreed to sign this deal, not as it existed 2 days ago, not as it existed a decade ago when we should have been enforcing sanctions laws, but what should Congress do today?

Now, in order to reach that conclusion, we need to look at the overall deal and realize that it has different phases. It is a different deal over time. So let us look at the deal from the good, the bad, and the ugly.

In the first year, the most important good parts occur. Iran must ship 90 percent of its uranium stockpiles out of country and mothball two-thirds of the centrifuges. As we craft our policy, we should be loathe to give up those two advantages. We must, whenever we focus on anything, say, yes, there are some bad parts of this deal, but two-thirds of the centrifuges, 90 percent of the stockpiles, that is something we need to be focused on. So that is the good.

The bad also occurs in the first year. Iran will get its hands on $120 billion-plus of their own money that we have under the sanctions been able to freeze in various money centers around the world.

What will they use this $120 billion for? Part of it will go to help their own people because they have raised expectations. A good chunk of it will go to graft and corruption in the Iranian regime because it is, after all, the Iranian regime. A large portion of that money will go to kill Sunni Muslims. Some of them deserve it, most do not. And what is left over will be used to kill Americans and Israelis.

So there is bad in the first year and good in the first year.

But what is truly ugly occurs after 10 years. After year 10, Iran can have an unlimited number of centrifuges of unlimited quality. As the President himself says, at that point, their breakout time, the amount of time from the day they kick out the inspectors to the day when they have enough fissile material for a nuclear weapon, shrinks to virtually zero days for the first bomb, a few more days for the second bomb.

Why is this? Because after 10 years, Iran will be allowed to create a huge industrial facility capable of supporting several electric generation nuclear plants. It is counterintuitive, but true, that it takes an awful lot more enrichment to power a nuclear plant than to create a nuclear bomb. In effect, we will be in a situation where it is as if Iran has an industrial-sized giant bakery capable of feeding many of their cities, and all they need for a nuclear bomb is a bag full of breadcrumbs. Obviously, once they go big, once they go industrial, once we get to the ugly part of this deal, Iran is a nuclear power—perhaps not an admitted nuclear power, but a nuclear power nevertheless.

So we are faced with the good, the bad, and the ugly. But the question is: What should Congress do?

One choice before us, and it is, I hope, the choice we will take, is to consider a resolution of approval of this deal and to vote it down by an overwhelming majority.

What will this do?

It will demonstrate for the world that the American people, the American Congress, and future administrations are not morally or legally bound by this agreement. It will set the stage for a subsequent administration to demand that the limits on uranium centrifuges are continued well past year 10 of this agreement. So the current administration will take advantage of the good, we will suffer the bad, but in the future we will not have to deal with the ugly.

The second approach we can take is to consider a resolution of disapproval. Unlike a resolution of approval, a resolution of disapproval, if adopted, would have immediate legal effects under U.S. law. It would blow a hole in the deal. But as I will get to it, possibly the wrong hole and perhaps no hole at all. Because if we were to consider a resolution of disapproval, I think it would pass this House. I think it might get 60 votes in the other body. The President has already announced he will veto it. And then, as far as I can tell, we would not override the veto.

Now, this would have a similar legal effect to us voting down a resolution of approval. Overall, the majority of the House and the majority of the Senate would have voted to disapprove. But that last picture will be a picture of the proponents of this agreement winning by not losing more than two-thirds of the vote. That conveys in the most confused way the fact that this agreement will not be binding on future administrations and future Congresses.

There is, of course, the possibility that we somehow override a Presidential veto. That does not put us back where we were yesterday. That does not reinstitute sanctions. That does not create a good platform for creating a better deal, because by then many UN sanctions will be lifted. Our trading partners in Europe will already be doing business. The President will have told the world that Iran is acting reasonably and Congress is acting unreasonably.

□ 1815

Under such circumstance, Iran would get the lion's share of sanctions relief. They would be denied some sanctions relief because U.S. law would remain in effect.

But Iran would have every excuse not to deliver the important good parts of this deal, not to ship their uranium stockpiles out of the country, not to decommission two-thirds of their centrifuges.

So if we pass over a Presidential veto, a resolution of disapproval, we have not blown up the deal and taken us back to where we had the deal.

Rather, we have created a circumstance where Iran has literally split the U.S. Government, with Congress pushing in one direction, the President pushing in another direction, and every nation in the world taking its cue from the President.

Instead, I suggest that we would be in a stronger position if we demonstrate to the world that Congress does not accept this agreement, it is not binding on the American people, the President may not be legally constrained for the remainder of his term in implementing this deal, getting us the good, suffering the bad, but knowing that the ugly is something that needs to be confronted by another administration.

It is another administration that needs to prevent Iran from claiming that it will have the right to unlimited centrifuges 10 years from now but, instead, demanding a renegotiation of this deal.

Finally, the sanctions relief promised in Vienna is relief only from those sanctions due to Iran's nuclear program. It is not a get-out-of-jail-free card. It is not a protection and a grant of authority to Tehran to engage in all kinds of evil activity in the Middle East and elsewhere.

If Iran continues to support Assad, we need to impose additional sanctions for that reason. If they continue to destabilize Yemen, we need to impose sanctions for that reason. And we cannot give Iran a free pass just because they have entered into this particular deal. This is not rapprochement with Iran.

This is a deal that has, in its first year, the good and the bad and, in its 10th year, is so ugly that we have to demand additional negotiations.

When we make that demand, we need to make that demand in the voice of a President in a future administration who is determined to say that Iran can never have an unlimited number of centrifuges, Iran can never have an unlimited quality of centrifuges, Iran can never be a few days from a nuclear weapon, and that, in order to prevent that, we have the legal right to put all options on the table.

I yield back the balance of my time.

SENATE ENROLLED BILL SIGNED

The Speaker announced his signature to an enrolled bill of the Senate of the following title:

S. 179. An act to designate the facility of the United States Postal Service located at 143rd Avenue, NW, in Chisholm, Minnesota, as the ''James L. Oberstar Memorial Post Office Building''.

BILL PRESENTED TO THE PRESIDENT

Karen L. Haas, Clerk of the House, reported that on July 14, 2015, she presented to the President of the United States, for his approval, the following bill:

H.R. 2620. To amend the United States Cotton Futures Act to exclude certain cotton futures contracts from coverage under such act.

ADJOURNMENT

Mr. SHERMAN. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 6 o'clock and 18 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, July 15, 2015, at 10 a.m. for morning-hour debate.

EXPENDITURE REPORTS CONCERNING OFFICIAL FOREIGN TRAVEL

Reports concerning the foreign currencies and U.S. dollars utilized for Official Foreign Travel during the first and second quarters of 2015, pursuant to Public Law 95–384, are as follows:

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON ARMED SERVICES, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Visit to Thailand, Philippines, Hong Kong—January 4–12, 2015.											
Catherine Sendak	1/7	1/9	Thailand		488.25						488.25
	1/9	1/11	Philippines		533.97						533.97
	1/11	1/12	Hong Kong		493.68						493.68
Commercial airfare							14,665.50				14,665.50
Michael Amato	1/7	1/9	Thailand		488.25						488.25
	1/9	1/11	Philippines								
	1/11	1/12	Hong Kong		493.68						493.68
Commercial airfare							14,665.50				14,665.50

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON ARMED SERVICES, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Craig Greene	1/7	1/9	Thailand		488.25						488.25
	1/9	1/11	Philippines								
	1/11	1/12	Hong Kong		493.68						493.68
Commercial airfare							14,665.50				14,665.50
Delegation expenses	1/7	1/9	Thailand		559.96						559.96
Visit to Germany with CODEL McCain—February 5–8, 2015.											
Hon. William M. "Mac" Thornberry	2/6	2/8	Germany		822.00						822.00
Hon. Michael R. Turner	2/6	2/8	Germany		822.00						822.00
Hon. James Langevin	2/6	2/8	Germany		822.00						822.00
Visit to India, Pakistan—February 14–21, 2015.											
Alexander Gallo	2/15	2/18	India		906.00						906.00
	2/18	2/21	Pakistan		320.00						320.00
Commercial airfare							10,491.00				10,491.00
William Spencer Johnson	2/15	2/18	India		906.00						906.00
	2/18	2/21	Pakistan		320.00						320.00
Commercial airfare							10,491.00				10,491.00
Visit to United Arab Emirates, Kuwait, Iraq, Afghanistan, Jordan—February 13–20, 2015.											
Hon. Joe Wilson	2/14	2/17	United Arab Emirates		396.00						396.00
	2/15	2/16	Afghanistan		6.00						6.00
	2/17	2/18	Jordan		354.65						354.65
	2/18	2/20	Kuwait		220.00						220.00
Commercial airfare							4,878.70				4,878.70
Hon. Seth Moulton	2/14	2/17	United Arab Emirates		396.00						396.00
	2/15	2/16	Afghanistan		6.00						6.00
	2/17	2/18	Jordan		354.65						354.65
	2/18	2/20	Kuwait		220.00						220.00
Commercial airfare							13,967.70				13,967.70
Hon. Brad Ashford	2/14	2/17	United Arab Emirates		396.00						396.00
	2/15	2/16	Afghanistan		6.00						6.00
	2/17	2/18	Jordan		354.65						354,65
	2/18	2/20	Kuwait		220.00						220.00
Commercial airfare							13,967.70				13,967.70
Hon. Elise Stefanik	2/14	2/17	United Arab Emirates		396.00						396.00
	2/15	2/16	Afghanistan		6.00						6.00
	2/17	2/18	Jordan		354.65						354.65
	2/18	2/20	Kuwait		220.00						220.00
Commercial airfare							13,967.70				13,967.70
Peter Villano	2/14	2/17	United Arab Emirates		396.00						396.00
	2/15	2/16	Afghanistan		6.00						6.00
	2/17	2/18	Jordan		354.65						354.65
	2/18	2/20	Kuwait		220.00						220.00
Commercial airfare							13,967.70				13,967.70
Lindsay Kavanaugh	2/14	2/17	United Arab Emirates		396.00						396.00
	2/15	2/16	Afghanistan		6.00						6.00
	2/17	2/18	Jordan		354.65						354.65
	2/18	2/20	Kuwait		220.00						220.00
Commercial airfare							13,967.70				13,967.70
Visit to Turkey, Austria, Belgium—February 16–22, 2015.											
Hon. Michael R. Turner	2/16	2/16	Belgium		645.48						645.48
	2/17	2/19	Turkey		89.00						89.00
	2/19	2/20	Austria		163.00						163.00
Hon. Paul Cook	2/16	2/16	Belgium		645.48						645.48
	2/17	2/19	Turkey		89.00						89.00
	2/19	2/20	Austria		163.00						163.00
Hon. Loretta Sanchez	2/16	2/16	Belgium		645.48						645.48
	2/17	2/19	Turkey		89.00						89.00
	2/19	2/20	Austria		163.00						163.00
Jesse Tolleson	2/16	2/16	Belgium		645.48						645.48
	2/17	2/19	Turkey		89.00						89.00
	2/19	2/20	Austria		163.00						163.00
Delegation expenses	2/14	2/16	Belgium, Turkey						6,043.83		6,043.83
Delegation expenses	2/19	2/20	Austria				1,046.71				1,046.71
Visit to United Kingdom, Germany, Romania—February 16–23, 2015.											
Michael Miller			United Kingdom		1,518,00						1,518.00
			Germany		570.00						570.00
			Romania		510.00						510.00
Commercial airfare							3,111.40				3,111.40
Brian Garrett			United Kingdom		1,518,00						1,518.00
			Germany		570.00						570.00
			Romania		510,00						510,00
Commercial airfare						3,111.40					3,111.40
Visit to Belgium with STAFFEDEL, Karem—February 19–21, 2015.											
Michael Casey	2/19	2/21	Belgium		627.52						627.52
Commercial airfare											
Visit to Cuba—February 24, 2015.											
Hon. Vicky Hartzler	2/24	2/24	Cuba								
Hon. Hank Johnson	2/24	2/24	Cuba								
Hon. Gwen Graham	2/24	2/24	Cuba								
Hon. Beto O'Rourke	2/24	2/24	Cuba								
Hon. Steven M. Palazzo	2/24	2/24	Cuba								
Hon. Pete Aguilar	2/24	2/24	Cuba								
Hon. Tom MacArthur	2/24	2/24	Cuba								
Hon. Jackie Walorski	2/24	2/24	Cuba								
Christopher J. Bright	2/24	2/24	Cuba								
Mark Morehouse	2/24	2/24	Cuba								
Elizabeth Conrad	2/24	2/24	Cuba								
Michael Casey	2/24	2/24	Cuba								
Visit to Peru, Honduras—March 9–14, 2015.											
Catherine Sendak	3/9	3/12	Peru		571.51						571.51
	3/12	3/14	Honduras		516.00						516.00
Commercial airfare							896.95				896.95
Michael Amato	3/9	3/12	Peru		571.51						571.51
	3/12	3/14	Honduras		516.00						516.00
Commercial airfare							896.95				896.95
Visit to United Kingdom—March 19–23, 2015.											
Hon. Michael Turner	3/19	3/23	England		1,656.59						1,656.59
Commercial airfare							9,657.46				9,657.46
Hon. Loretta Sanchez	3/19	3/23	England		1,656.59						1,656.59
Commercial airfare							9,657.46				9,657.46
Kari Bingen	3/19	3/23	England		1,656.59						1,656.59

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON ARMED SERVICES, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN JAN. 1 AND MAR. 31, 2015—Continued

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Commercial airfare							9,657.46				9,657.46
Joseph Whited	3/19	3/23	England		1,656.59						1,656.59
Commercial airfare							9,657.46				9,657.46
Douglas Bush	3/19	3/23	England		1,656.59						1,656.59
Commercial airfare							9,657.46				9,657.46
Delegation expenses							3,323.98		222.20		3,546.18
Committee totals					34,689.03		200,370.39			6,266.03	241,325.45

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. MAC THORNBERRY, Chairman, June 11, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON THE BUDGET, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Karen Robb	3/28	4/3	Myanmar		2,079.00		440.00				2,519.00
Committee total					2,079.00		440.00				2,519.00

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. TOM PRICE, Chairman, June 26, 2015.

REPORT OF EXPENDITURES FOR OFFICIAL FOREIGN TRAVEL, COMMITTEE ON NATURAL RESOURCES, HOUSE OF REPRESENTATIVES, EXPENDED BETWEEN APR. 1 AND JUNE 30, 2015

Name of Member or employee	Date		Country	Per diem [1]		Transportation		Other purposes		Total	
	Arrival	Departure		Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]	Foreign currency	U.S. dollar equivalent or U.S. currency [2]
Hon. Raúl Grijalva	5/23	5/28	Cuba		1,455.00				637.00		2,092.00
Bertha Guerrero	5/23	5/28	Cuba		1,455.00				637.00		2,092.00
Committee total					2,910.00				1,274.00		4,184.00

[1] Per diem constitutes lodging and meals.
[2] If foreign currency is used, enter U.S. dollar equivalent; if U.S. currency is used, enter amount expended.

HON. ROB BISHOP, Chairman, July 8, 2015.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

2149. A letter from the Counsel, Legal Division, Consumer Financial Protection Bureau, transmitting the Bureau's Major final rule — Integrated Mortgage Disclosures Under the Real Estate Settlement Procedures Act (Regulation X) and the Truth In Lending Act (Regulation Z) [Docket No.: CFPB-2012-0028] (RIN: 3170-AA19) received July 13, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Financial Services.

2150. A letter from the Director, Regulations Policy and Management Staff, FDA, Department of Health and Human Services, transmitting the Department's Major final rule — Permanent Discontinuance or Interruption in Manufacturing of Certain Drug or Biological Products [Docket No.: FDA-2011-N-0898] (RIN: 0910-AG88) received July 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2151. A letter from the Assistant Secretary, Employee Benefits Security Administration, Department of Labor, transmitting the Department's Major final rules — Coverage of Certain Preventive Services Under the Affordable Care Act (RIN: 1210-AB67) received July 13, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2152. A letter from the Secretary, Securities and Exchange Commission, transmitting the Commission's final rule — Freedom of Information Act Regulations: Fee Schedule, Addition of Appeals Time Frame, and Miscellaneous Administrative Changes [Release No.: 34-75388; File No.: S7-07-14] (RIN: 3235-AL58) received July 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Oversight and Government Reform.

2153. A letter from the Assistant Attorney General, Office of Legislative Affairs, Department of Justice, transmitting a report entitled ''Report to the Congress of the United States on the Activities of the Department of Justice in Relation to the Prison Rape Elimination Act'', pursuant to Sec. 5(b) of Pub. L. 108-79; to the Committee on the Judiciary.

2154. A letter from the Assistant Attorney General, Office of Legislative Affairs, Department of Justice, transmitting the Department's Office of Privacy and Civil Liberties Activities Semiannual Report covering October 1, 2014, through March 31, 2015, pursuant to Sec. 803 of the Implementing Recommendations of the 9/11 Commission Act of 2007, Pub. L. 110-53, 121 Stat. 266, 361-62 (codified at 42 U.S.C. 2000ee-1(f)); to the Committee on the Judiciary.

2155. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Honeywell International Inc. Turboprop Engines [Docket No.: FAA-2006-23706; Directorate Identifier 2006-NE-03-AD; Amendment 39-18177; AD 2014-12-04] (RIN: 2120-AA64) received July 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2156. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Airbus Helicopters Deutschland GmbH (Previously Eurocopter Deutschland GmbH) (Airbus Helicopters) [Docket No.: FAA-2014-0577; Directorate Identifier 2013-SW-042-AD; Amendment 39-18184; AD 2015-12-09] (RIN: 2120-AA64) received July 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2157. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; The Boeing Company Airplanes [Docket No.: FAA-2014-0426; Directorate Identifier 2013-NM-231-AD; Amendment 39-18186; AD 2015-12-11] (RIN: 2120-AA64) received July 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2158. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Fokker Services B.V. Airplanes [Docket No.: FAA-2014-0492; Directorate Identifier 2013-NM-134-AD; Amendment 39-18187; AD 2015-12-12] (RIN: 2120-AA64) received July 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added

by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2159. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Pratt and Whitney Division Turbofan Engines [Docket No.: FAA-2015-0266; Directorate Identifier 2015-NE-03-AD; Amendment 39-18185; AD 2015-12-10] (RIN: 2120-AA64) received July 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2160. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Establishment of Class E Airspace; Cloverdale, CA [Docket No.: FAA-2014-0457; Airspace Docket No.: 14-AWP-4] received July 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2161. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Establishment of Class E Airspace; Highmore, SD [Docket No.: FAA-2014-0723; Airspace Docket No.: 14-AGL-13] received July 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2162. A letter from the Regulatory Ombudsman, FMCSA, Department of Transportation, transmitting the Department's final rule — Incorporation by Reference; North American Standard Out-of-Service Criteria; Hazardous Materials Safety Permits [Docket No.: FMCSA-FMCSA-2015-0075] (RIN: 2126-AB78) received July 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2163. A letter from the Division Chief, FMCSA, Regulatory Development, Department of Transportation, transmitting the Department's final rule — Rulemaking Procedures--Federal Motor Carrier Safety Regulations; Treatment of Confidential Business Information [Docket No.: FMCSA-2015-0168] (RIN: 2126-AB79) received July 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2164. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Amendment of Class D Airspace; Baltimore, Martin State Airport, MD [Docket No.: FAA-2015-0793; Airspace Docket No.: 15-AEA-3] received July 10, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

[Pursuant to the order of the House on July 13, 2015 the following report was filed on July 14, 2015]

Mr. BISHOP of Utah: Committee on Natural Resources. Supplemental report on H.R. 2898. A bill to provide drought relief in the State of California, and for other purposes (Rept. 114–197, Pt. 2).

[Filed on July 14, 2015]

Mr. HENSARLING: Committee on Financial Services. H.R. 432. A bill to amend the Investment Advisers Act of 1940 to prevent duplicative regulation of advisers of small business investment companies (Rept. 114–199). Referred to the Committee of the Whole House on the state of the Union.

Mr. HENSARLING: Committee on Financial Services. H.R. 1334. A bill to amend the Securities Exchange Act of 1934 to make the shareholder threshold for registration of savings and loan holding companies the same as for bank holding companies (Rept. 114–200). Referred to the Committee of the Whole House on the state of the Union.

Mr. HENSARLING: Committee on Financial Services. H.R. 1723. A bill to direct the Securities and Exchange Commission to revise Form S–1 so as to permit smaller reporting companies to use forward incorporation by reference for such form (Rept. 114–201). Referred to the Committee of the Whole House on the state of the Union.

Mr. HENSARLING: Committee on Financial Services. H.R. 1847. A bill to amend the Securities Exchange Act of 1934 and the Commodity Exchange Act to repeal the indemnification requirements for regulatory authorities to obtain access to swap data required to be provided by swaps entities under such Acts; with an amendment (Rept. 114–202, Pt. 1). Referred to the Committee of the Whole House on the state of the Union.

Mr. HENSARLING: Committee on Financial Services. H.R. 2064. A bill to amend certain provisions of the securities laws relating to the treatment of emerging growth companies; with an amendment (Rept. 114–203). Referred to the Committee of the Whole House on the state of the Union.

Mr. NEWHOUSE: Committee on Rules. House Resolution 362. Resolution providing for consideration of the bill (H.R. 2898) to provide drought relief in the State of California, and for other purposes, and providing for consideration of the bill (H.R. 3038) to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund, and for other purposes (Rept. 114–204). Referred to the House Calendar.

Mr. ADERHOLT: Committee on Appropriations. H.R. 3049. A bill making appropriations for Agriculture, Rural Development, Food and Drug Administration, and Related Agencies programs for the fiscal year ending September 30, 2016, and for other purposes (Rept. 114–205). Referred to the Committee of the Whole House on the state of the Union.

DISCHARGE OF COMMITTEE

Pursuant to clause 2 of rule XIII, the Committee on Agriculture discharged from further consideration. H.R. 1847 referred to the Committee of the Whole House on the state of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. WILLIAMS (for himself and Mr. LUCAS):

H.R. 3048. A bill to provide an exemption from rules and regulations of the Bureau of Consumer Financial protection for community financial institutions, and for other purposes; to the Committee on Financial Services.

By Ms. FOXX (for herself and Mr. LARSON of Connecticut):

H.R. 3050. A bill to amend the Internal Revenue Code of 1986 to allow rollovers from other retirement plans into simple retirement accounts; to the Committee on Ways and Means.

By Mr. CLYBURN:

H.R. 3051. A bill to eliminate the requirement that a firearms dealer transfer a firearm if the national instant criminal background check system has been unable to complete a background check of the prospective transferee within 3 business days; to the Committee on the Judiciary.

By Mrs. BLACK:

H.R. 3052. A bill to amend title 28, United States Code, to prevent the misuse of foreign law in Federal courts, and for other purposes; to the Committee on the Judiciary.

By Mr. BUCSHON (for himself, Mr. BOUSTANY, and Ms. CLARK of Massachusetts):

H.R. 3053. A bill to ensure appropriate coverage of ventricular assist devices under the Medicare program under title XVIII of the Social Security Act, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CAPUANO (for himself, Mr. JONES, Ms. CLARK of Massachusetts, and Mr. YOHO):

H.R. 3054. A bill to reduce risks to the financial system by limiting banks' ability to engage in certain risky activities and limiting conflicts of interest, to reinstate certain Glass-Steagall Act protections that were repealed by the Gramm-Leach-Bliley Act, and for other purposes; to the Committee on Financial Services, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CRAMER (for himself and Mr. WELCH):

H.R. 3055. A bill to authorize the exportation of consumer communication devices to Cuba and the provision of telecommunications services to Cuba, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GRAVES of Missouri:

H.R. 3056. A bill to amend title 5, United States Code, to provide for certain special congressional review procedures for EPA rulemakings; to the Committee on the Judiciary, and in addition to the Committees on Energy and Commerce, Transportation and Infrastructure, Agriculture, Rules, and the Budget, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GRIJALVA:

H.R. 3057. A bill to require the Secretary of Health and Human Services to issue to Federal agencies guidelines for developing procedures and requirements relating to certain primary care Federal health professionals completing continuing medical education on nutrition and to require Federal agencies to submit annual reports relating to such guidelines, and for other purposes; to the Committee on Energy and Commerce.

By Mr. KELLY of Pennsylvania (for himself and Mr. KIND):

H.R. 3058. A bill to amend the Internal Revenue Code of 1986 to provide for special treatment of the research credit for certain start-up companies, and for other purposes; to the Committee on Ways and Means.

By Mr. RUSSELL (for himself, Mr. LUCAS, Mr. BRIDENSTINE, Mr. MULLIN, and Mr. COLE):

H.R. 3059. A bill to designate the facility of the United States Postal Service located at 4500 SE 28th Street, Del City, Oklahoma, as the James Robert Kalsu Post Office Building; to the Committee on Oversight and Government Reform.

By Mr. SCHIFF (for himself, Ms. ROS-LEHTINEN, Mrs. NAPOLITANO, Ms. LEE, Mr. TAKANO, Mr. GRIJALVA, Ms. MOORE, Mr. TONKO, Mr. HINOJOSA, Mr. DESAULNIER, Mr. QUIGLEY, Mr. MCDERMOTT, and Mr. TED LIEU of California):

H.R. 3060. A bill to require certain standards and enforcement provisions to prevent child abuse and neglect in residential programs, and for other purposes; to the Committee on Education and the Workforce.

By Mr. WELCH (for himself, Ms. SCHAKOWSKY, Ms. SLAUGHTER, Mr. ELLISON, Mr. YARMUTH, Ms. CASTOR of Florida, and Mr. HUFFMAN):

H.R. 3061. A bill to amend part D of title XVIII of the Social Security Act to require the Secretary of Health and Human Services to negotiate covered part D drug prices on behalf of Medicare beneficiaries; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. WOMACK (for himself, Mr. HILL, Mr. CRAWFORD, and Mr. WESTERMAN):

H.R. 3062. A bill to prohibit the use of eminent domain in carrying out certain projects; to the Committee on Natural Resources.

By Mr. YOUNG of Alaska (for himself and Mr. RUIZ):

H.R. 3063. A bill to amend the Balanced Budget and Emergency Deficit Control Act of 1985 to exempt Alaska Native and American Indian programs from sequestration; to the Committee on the Budget.

By Mrs. BLACKBURN (for herself, Mr. GENE GREEN of Texas, Mr. ENGEL, Mr. FRANKS of Arizona, Mr. BARTON, Mr. ROE of Tennessee, Mr. BABIN, Mr. WOODALL, Mr. BISHOP of Michigan, Mr. BRADY of Texas, Mr. HARDY, Mr. ROUZER, Mr. MCCLINTOCK, Mr. SALMON, Mr. LAMBORN, Mr. WILLIAMS, Mr. SHERMAN, Mr. FLORES, Mr. TOM PRICE of Georgia, and Mr. CHAFFETZ):

H. Con. Res. 62. Concurrent resolution expressing the sense of Congress that Jerusalem is the capital of Israel and therefore, consistent with the location of other United States embassies, the United States embassy in Israel should be located in Jerusalem; to the Committee on Foreign Affairs.

By Mr. WILLIAMS:

H. Res. 361. A resolution expressing the sense of the House of Representatives concerning the need to explore emerging technologies that are mobile and capable of supplying high volumes of sterile, pathogenic-free water, and for other purposes; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. WILLIAMS:

H.R. 3048.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 (''To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes'').

By Mr. ADERHOLT:

H.R. 3049.

Congress has the power to enact this legislation pursuant to the following:

The principal constitutional authority for this legislation is clause 7 of section 9 of article I of the Constitution of the United States (the appropriation power), which states: ''No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law. . . .'' In addition, clause 1 of section 8 of article I of the Constitution (the spending power) provides: ''The Congress shall have the Power . . . to pay the Debts and provide for the common Defence and general Welfare of the United States. . . .'' Together, these specific constitutional provisions establish the congressional power of the purse, granting Congress the authority to appropriate funds, to determine their purpose, amount, and period of availability, and to set forth terms and conditions governing their use.

By Ms. FOXX:

H.R. 3050.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 1 and the 16th Amendment.

By Mr. CLYBURN:

H.R. 3051.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

By Mrs. BLACK:

H.R. 3052.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the United States Constitution.

By Mr. BUCSHON:

H.R. 3053.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 to regulate commerce with foreign nations, and among the several states and with the Indian Tribes.

By Mr. CAPUANO:

H.R. 3054.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8.

By Mr. CRAMER:

H.R. 3055.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the United States Constitution.

By Mr. GRAVES of Missouri:

H.R. 3056.

Congress has the power to enact this legislation pursuant to the following:

The power granted Congress under Article I, Section 8, Clause 18, of the United States Constitution, in making all Laws which shall be necessary and proper for carring into Execution the forgoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Mr. GRIJALVA:

H.R. 3057.

Congress has the power to enact this legislation pursuant to the following:

U.S. Const. art. I, §8.

By Mr. KELLY of Pennsylvania:

H.R. 3058.

Congress has the power to enact this legislation pursuant to the following:

The Congress enacts this bill pursuant to Clause 3 of Section 8 of Article I of the United States Constitution. he Congress enacts this bill pursuant to Clause 1 of Section 8 of Article I of the United States Constitution.

By Mr. RUSSELL:

H.R. 3059.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress in Article I, Section 8, Clause 7: ''The Congress shall have Power . . . To establish Post Offices and post roads''

By Mr. SCHIFF:

H.R. 3060.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1, 3, and 18 of the United States Constitution

By Mr. WELCH:

H.R. 3061.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18: The Congress shall have Power To . . . make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Mr. WOMACK:

H.R. 3062.

Congress has the power to enact this legislation pursuant to the following:

clause 3 of section 8 of article I of the Constitution.

By Mr. YOUNG of Alaska:

H.R. 3063.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clauses 3 and 18; and Article 1, Section 9, Clause 7

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 131: Mr. ZELDIN.

H.R. 133: Mr. HURT of Virginia.

H.R. 136: Mr. BERA.

H.R. 169: Mr. ROKITA.

H.R. 213: Mr. POMPEO.

H.R. 239: Ms. MENG, Mr. MICHAEL F. DOYLE of Pennsylvania, Mr. COHEN, Mr. HIGGINS, and Mr. HASTINGS.

H.R. 281: Mr. WENSTRUP.

H.R. 372: Mr. RICHMOND.

H.R. 379: Mr. JOYCE and Ms. MATSUI.

H.R. 381: Mrs. DINGELL, Ms. EDWARDS, and Ms. ROYBAL-ALLARD.

H.R. 427: Ms. HERRERA BEUTLER, Mr. LABRADOR, and Mr. CARTER of Georgia.

H.R. 510: Mr. WESTERMAN and Mrs. LUMMIS.

H.R. 511: Mr. WESTERMAN.

H.R. 525: Mr. COURTNEY.

H.R. 546: Ms. DEGETTE and Mr. DUNCAN of South Carolina.

H.R. 556: Ms. MCSALLY and Mr. NOLAN.

H.R. 592: Mrs. COMSTOCK and Mr. KING of Iowa.

H.R. 599: Mr. HULTGREN.

H.R. 600: Mr. WELCH.

H.R. 602: Mr. DONOVAN.

H.R. 604: Mr. BRAT.

H.R. 616: Mr. ROHRABACHER.

H.R. 692: Mr. CLAWSON of Florida, Mr. GROTHMAN, Mr. WALKER, and Mrs. ROBY.
H.R. 700: Mr. THOMPSON of California.
H.R. 702: Mr. WALKER.
H.R. 799: Mr. CHABOT.
H.R. 815: Mr. TOM PRICE of Georgia.
H.R. 816: Mr. BYRNE and Mr. MULVANEY.
H.R. 835: Mr. KILDEE.
H.R. 836: Mr. GRAVES of Missouri.
H.R. 842: Mr. WILSON of South Carolina, Mr. HANNA, and Mr. VARGAS.
H.R. 846: Mr. MOULTON and Mr. AGUILAR.
H.R. 863: Mr. ALLEN.
H.R. 868: Mr. BRADY of Pennsylvania.
H.R. 879: Mr. BOST and Mr. CARTER of Georgia.
H.R. 918: Mr. ROSKAM.
H.R. 969: Mr. KILDEE and Mrs. MCMORRIS RODGERS.
H.R. 985: Ms. KELLY of Illinois.
H.R. 1004: Ms. LOFGREN.
H.R. 1062: Mr. RYAN of Ohio.
H.R. 1094: Mr. STEWART, Mr. ROSKAM, Mr. AUSTIN SCOTT of Georgia, and Mr. MEEKS.
H.R. 1114: Mr. RODNEY DAVIS of Illinois and Mr. KELLY of Pennsylvania.
H.R. 1147: Mr. BRAT.
H.R. 1151: Mr. RIGELL.
H.R. 1186: Ms. NORTON.
H.R. 1202: Mr. KING of Iowa.
H.R. 1209: Mr. KIND, Mr. GARAMENDI, Ms. MCSALLY, Mr. KATKO, Mr. JOYCE, and Mr. WALZ.
H.R. 1211: Mr. RICHMOND.
H.R. 1220: Mr. COOK and Mr. WALZ.
H.R. 1221: Mr. HIMES.
H.R. 1248: Mr. BLUM.
H.R. 1270: Mr. BRADY of Texas.
H.R. 1299: Mr. COLLINS of New York.
H.R. 1321: Mr. LIPINSKI and Mr. ELLISON.
H.R. 1343: Mr. PETERS and Ms. GABBARD.
H.R. 1344: Mr. RYAN of Ohio.
H.R. 1356: Mrs. BROOKS of Indiana, Mr. VELA, Mr. CRAMER, Mr. CLAWSON of Florida, and Mr. GRIJALVA.
H.R. 1370: Mrs. HARTZLER.
H.R. 1384: Mr. VELA and Mr. CLAWSON of Florida.
H.R. 1401: Mr. CHABOT.
H.R. 1427: Mr. KILMER and Ms. SLAUGHTER.
H.R. 1459: Mr. MURPHY of Florida.
H.R. 1462: Mr. RYAN of Ohio.
H.R. 1482: Ms. MCCOLLUM.
H.R. 1490: Mrs. KIRKPATRICK.
H.R. 1533: Ms. LOFGREN.
H.R. 1546: Mrs. KIRKPATRICK and Mr. MURPHY of Florida.
H.R. 1548: Ms. MCCOLLUM and Mr. AGUILAR.
H R. 1594: Mr. VELA, Mr. ASHFORD, and Mr. CLAWSON of Florida.
H.R. 1598: Mr. HONDA.
H.R. 1599: Mr. WOODALL, Mr. PITTENGER, and Mr. ABRAHAM.
H.R. 1607: Ms. LOFGREN and Mr. LARSEN of Washington.
H.R. 1608: Mr. FARR.
H.R. 1610: Mr. GRIFFITH.
H.R. 1624: Mrs. DAVIS of California, Mr. RENACCI, Mr. DUNCAN of South Carolina, Mr. BRADY of Texas, Mrs. ROBY, and Mr. BUCHANAN.
H.R. 1655: Mr. KELLY of Pennsylvania, Mr. TIBERI, Mr. GIBSON, and Mr. BRADY of Pennsylvania.
H.R. 1671: Mr. OLSON.
H.R. 1688: Mrs. WATSON COLEMAN.
H.R. 1713: Ms. SINEMA.
H.R. 1726: Mr. BISHOP of Georgia and Mr. HECK of Washington.
H.R. 1728: Ms. VELÁZQUEZ, Mr. KILMER, Mr. SMITH of Washington, and Mr. ROSS.
H.R. 1737: Mr. GOODLATTE and Mr. KING of New York.
H.R. 1752: Mrs. LUMMIS and Mr. LABRADOR.
H.R. 1814: Ms. CLARK of Massachusetts, Ms. BORDALLO, Mr. YARMUTH, and Mr. ZINKE.
H.R. 1833: Mr. AGUILAR.
H.R. 1836: Mr. DUNCAN of South Carolina.
H.R. 1853: Mr. GUINTA.
H.R. 1886: Mr. ALLEN.
H.R. 1901: Mr. GOODLATTE, Mr. GUTHRIE, and Mrs. LUMMIS.
H.R. 1969: Mr. BILIRAKIS and Mr. MCGOVERN.
H.R. 1995: Mr. JOYCE.
H.R. 1996: Mr. TIBERI.
H.R. 2000: Mrs. BEATTY.
H.R. 2016: Ms. MOORE.
H.R. 2050: Ms. BASS and Mr. BOST.
H.R. 2061: Mrs. MCMORRIS RODGERS and Mr. BRADY of Texas.
H.R. 2096: Mr. SIMPSON and Mr. HULTGREN.
H.R. 2167: Mr. SARBANES.
H.R. 2169: Mr. DEUTCH and Mr. MURPHY of Florida.
H.R. 2193: Mr. KILDEE.
H.R. 2217: Mr. KEATING.
H.R. 2218: Mr. PETERS.
H.R. 2315: Mr. CARSON of Indiana and Mr. FORTENBERRY.
H.R. 2382: Mrs. LUMMIS.
H.R. 2404: Mr. NUNES.
H.R. 2410: Mr. THOMPSON of California.
H.R. 2483: Mr. MARCHANT.
H.R. 2510: Mr. EMMER of Minnesota.
H.R. 2523: Mr. ROSKAM.
H.R. 2524: Mr. HASTINGS.
H.R. 2531: Mr. BOST.
H.R. 2544: Mr. PEARCE.
H.R. 2588: Mr. ROSS.
H.R. 2636: Mr. QUIGLEY.
H.R. 2643: Mr. PEARCE, Mr. ROTHFUS, and Mr. MULVANEY.
H.R. 2646: Mr. MICHAEL F. DOYLE of Pennsylvania and Ms. KAPTUR.
H.R. 2675: Mr. ROKITA.
H.R. 2689: Mr. HUNTER and Mrs. TORRES.
H.R. 2710: Mr. HARRIS and Mr. WALDEN.
H.R. 2713: Mr. YARMUTH, Ms. ROYBAL-ALLARD, Ms. PLASKETT, and Mr. HIGGINS.
H.R. 2715: Mr. KILMER and Ms. MOORE.
H.R. 2722: Mr. COSTELLO of Pennsylvania and Mrs. RADEWAGEN.
H.R. 2744: Mr. PIERLUISI, Mr. LOWENTHAL, Mrs. RADEWAGEN, Mr. LARSEN of Washington, Mr. THOMPSON of California, Mr. KILMER, Mr. CLAWSON of Florida, Mr. PETERS, Mr. ROONEY of Florida, Mr. ROUZER, and Mr. JONES.
H.R. 2754: Mr. KIND, Mr. KELLY of Pennsylvania, and Mr. KING of New York.
H.R. 2793: Mr. LOUDERMILK, Mr. GROTHMAN, Mr. AUSTIN SCOTT of Georgia, and Mr. KELLY of Mississippi.
H.R. 2798: Mr. RANGEL.
H.R. 2799: Mr. PETERS.
H.R. 2800: Mr. MACARTHUR and Mrs. BLACK.
H.R. 2817: Ms. MCCOLLUM.
H.R. 2826: Ms. SINEMA.
H.R. 2899: Mr. KATKO, Mr. CARTER of Georgia, Mr. WALKER, Mr. DONOVAN, and Ms. MCSALLY.
H.R. 2903: Mr. PEARCE and Mr. TONKO.
H.R. 2904: Mr. PETERSON.
H.R. 2905: Mr. MULVANEY and Mr. KING of Iowa.
H.R. 2918: Mr. MACARTHUR.
H.R. 2920: Ms. PINGREE.
H.R. 2921: Mr. MILLER of Florida.
H.R. 2937: Mr. RIBBLE and Mr. DUNCAN of South Carolina.
H.R. 2948: Ms. ESTY.
H.R. 2973: Mr. DUNCAN of Tennessee, Mr. FLEISCHMANN, and Mr. ROE of Tennessee.
H.R. 2974: Mr. VARGAS.
H.R. 2983: Ms. DEGETTE.
H.R. 2987: Mrs. BEATTY and Mr. BARR.
H.R. 2991: Mr. JOYCE.
H.R. 2999: Ms. BROWN of Florida, Ms. BROWNLEY of California, Ms. KUSTER, Ms. TITUS, and Mr. WALZ.
H.R. 3002: Mr. DUNCAN of South Carolina, Mr. YOHO, and Mr. ADERHOLT.
H.R. 3009: Mr. MCCLINTOCK and Mr. LUETKEMEYER.
H.J. Res. 50: Mr. BUCK and Mr. POMPEO.
H. Con. Res. 19: Mrs. BLACK.
H. Con. Res. 58: Mr. MOOLENAAR.
H. Res. 145: Mr. TED LIEU of California.
H. Res. 208: Mr. VEASEY.
H. Res. 282: Mr. VAN HOLLEN.
H. Res. 294: Mr. CARSON of Indiana and Ms. MATSUI.
H. Res. 354: Mr. BRADY of Pennsylvania, Mr. KLINE, Mr. KING of New York, and Mr. FITZPATRICK.
H. Res. 359: Mr. ABRAHAM and Mr. GROTHMAN.

CONGRESSIONAL EARMARKS, LIMITED TAX BENEFITS, OR LIMITED TARIFF BENEFITS

Under clause 9 of rule XXI, lists or statements on congressional earmarks, limited tax benefits, or limited tariff benefits were submitted as follows:

OFFERED BY MR. MCCLINTOCK

The amendment filed to Rules Committee Print 114–23 for H.R. 2829 by me does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of House rule XXI.

OFFERED BY MR. BISHOP OF UTAH

The provisions that warranted a referral to the Committee on Natural Resources in H.R. 3038 do not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

OFFERED BY MR. KLINE

The provisions that warranted a referral to the Committee on Education and the Workforce in H.R. 3038 do not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

OFFERED BY MR. MCCAUL

The provisions that warranted a referral to the Committee on Homeland Security in H.R. 3038 do not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

OFFERED BY MR. RYAN OF WISCONSIN

The provisions that warranted a referral to the Committee on Ways and Means in H.R. 3038, ''Highway and Transportation Funding Act of 2015, Part II,'' do not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI of the Rules of the U.S. House of Representatives.

OFFERED BY MR. SHUSTER

H.R. 3038 does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

OFFERED BY MR. SMITH OF TEXAS

The provisions that warranted a referral to the Committee on Science, Space, and Technology in H.R. 3038, the ''Highway and Transportation Funding Act of 2015, Part II,'' do not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

OFFERED BY MR. UPTON

The provisions that warranted a referral to the Committee on Energy and Commerce in H.R. 3038 do not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

DELETIONS OF SPONSORS FROM PUBLIC BILLS AND RESOLUTIONS

Under clause 7 of rule XII, sponsors were deleted from public bills and resolutions, as follows:

H.R. 2722: Mrs. COMSTOCK, Mr. FLEISCHMANN, Mr. CLAWSON of Florida, Mrs. LUMMIS, Mrs. BLACK, Mr. HILL, Mr. PALMER, Mr. HOLDING, Mrs. WALORSKI, Mr. FLEMING, Mr. MOOLENAAR, Mr. BUCK, Mr. CRAMER, Mr. YODER, Mrs. NOEM, Mr. MEADOWS, Mr. SANFORD, Mrs. BLACKBURN, Mrs. ROBY, Mr. GRIFFITH, Mr. GOSAR, Mr. HUDSON, Mr. CRAWFORD, Mr. DESANTIS, and Mr. PERRY.

United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE *114th* CONGRESS, FIRST SESSION

Vol. 161 WASHINGTON, TUESDAY, JULY 14, 2015 *No. 109*

Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Father of all, give us Your wisdom in these challenging times. May Your wisdom ignite within us reverential awe for You. Inspired by Your wisdom, help our Senators to strive to ensure that their thoughts, words, and deeds glorify You. May our lawmakers not forget that You are an ever-present help for turbulent times, eager to deliver those who call on Your Holy Name.

Lord, sustain us with Your might that we will live free from fear. Mighty God, salvation belongs to You. Continue to shower us with Your blessings.

We pray in Your majestic Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDENT pro tempore. The majority leader is recognized.

NUCLEAR AGREEMENT WITH IRAN

Mr. MCCONNELL. Mr. President, 2 weeks ago, I asked the Obama administration to step back from the Iran negotiations, press pause, and reexamine the point of having the talks in the first place. That would have been the most rational and reasonable approach for the White House to take, especially considering that its own allies in the Senate were using phrases such as ''deeply worrying'' to describe the direction of the talks.

But instead of taking the time to reexamine basic objectives with its partners and agree on the nonnegotiable elements of any deal—things such as anytime, anywhere inspections, complete disclosure of previous military-related nuclear research, and phased relief of sanctions tied to Iranian compliance—the White House acquiesced instead to artificial deadline after artificial deadline and opportunity after opportunity for Iran to press for additional concessions along the way.

The result is the comprehensive nuclear agreement announced today. Given what we do know so far, it appears that Republicans and Democrats were right to be deeply worried about the direction of these talks.

It seems Americans in both parties were right to fear that a deal inked by the White House would further the flawed elements of April's interim agreement, that it would aim at the best deal acceptable to Iran rather than one that might actually end Iran's nuclear program. Remember, ending Iran's nuclear program was supposed to be the point of these talks in the first place. What is already clear about this agreement is that it will not achieve or even come close to achieving that original purpose.

Instead, the Iranians appear to have prevailed in this negotiation, maintaining thousands of centrifuges, enriching their threshold nuclear capability instead of ending it, reaping a multibillion-dollar windfall to spend freely on terrorism, dividing our Western allies and negotiating partners, some of whom will undoubtedly sell arms to Iran, and gaining legitimacy before the world.

This was an entirely predictable result—in fact, the most predictable result given the administration's stance. As noted back in 2012, here is what I said: ''The only way the Iranian regime can be expected to negotiate to preserve its own survival rather than to simply delay as a means of pursuing nuclear weapons is if the administration imposes the strictest sanctions while at the same time enforcing a firm, declaratory policy that reflects a commitment to the use of force.''

But, no, the administration never did that. Instead, it relied upon train-and-equip programs instead of forward presence, emphasized special operations forces in economy of force efforts, pursued a drawdown from Iraq and Afghanistan based on timelines, not battlefield conditions, and executed a drawdown of our conventional and nuclear forces and a withdrawal of those forces by both attrition and redeployment. Through actions such as these and by eschewing any declaratory policy toward Iran, the President made clear to the world, contrary to his rhetoric, that all options were not on the table. All options were simply not on the table. Knowing this, the Iranians never feared for their survival—of course, the survival of their regime being their No. 1 goal. And so we have the deal we have today.

It appears we have lost the chance to dismantle Iran's nuclear program and that will now become a challenge for the next President to confront, regardless of political party. But the Senate has yet to receive the final text of the agreement. We will not come to a final judgment until we do. The country deserves a thorough and fair review right here in the Senate, and that is just what we intend to pursue.

Committees will be holding hearings, witnesses will be coming to testify, and then Congress will approve or disapprove the deal in accordance with the Iran Nuclear Agreement Review Act.

The test of the agreement should be this. Will it leave our country and our allies safer? Will this agreement leave our country and our allies safer?

There are several things we will be looking at in particular as we weigh

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Printed on recycled paper.

whether it will, and here are a few of them: Will the agreement allow for anytime, anywhere inspections of military installations and research and development facilities?

Will the agreement compel the Iranians to disclose the possible military dimensions of their nuclear program?

Will the agreement make any real impact on Iran's ability to continue researching and developing advanced centrifuges?

Will the agreement's sanctions relief be tied to Iran's strict adherence to the terms of the deal, and will we have any real way to verify its compliance?

These parameters will also help us determine just how successful the Iranians have been in extracting concessions from the White House. So we will be examining them very closely.

I will remind colleagues of the deadly seriousness of the issue at hand. This should not be about some political legacy project. This is not some game either.

It is certainly not the time for more tired, obviously untrue talking points about the choice here between a bad deal and war. No serious person would believe that is true. Even the people saying these things have to know they are not true, and they probably know that the very opposite is, in fact, more likely. So the country doesn't have time to waste on more White House messaging exercises when the seriousness of the moment calls for intellectually honest debate. The choices made today are sure to affect our country for years—probably decades—to come.

The future we leave to our children is at issue as well. The Senate should engage in serious consideration of what faces us in the years ahead. I invite every Democrat and every Republican to join us in that critical conversation. Our country deserves no less. What we must decide now is whether this is really the right time to be reducing pressure on the world's leading state sponsor of terror and for what in return. We already know what the Quds Force is capable of under the sanctions regime. What will Iran's support of terrorism look like with the additional funding obtained from sanctions relief?

Let's not forget that Iran is pursuing a full-spectrum campaign to expand its sphere of influence and undermine American security and standing in the region. Iran's continued support of terrorism and its determination to expand ballistic missile and conventional military capabilities should be gravely concerning to each of us. They certainly are to me. They pose significant challenges to our country and President Obama's successor.

This comes on top of the many other threats that challenge our country today and into the future from groups such as the Taliban, Al Qaeda, and ISIL to increasingly aggressive regimes in Moscow and Beijing. A bad deal won't make any of those threats go away. Pretending otherwise isn't going to make us safer. A bad deal will only ensure that Iran has more funding to threaten us with renewed vigor. It will only ensure that Iran expands its stockpile of missiles and that it strengthens terrorist proxies such as Hezbollah, the Houthi insurgents in Yemen, and the Assad regime in Syria.

In fact, here is a Reuters headline from this morning. Listen to this: ''Syria's Assad sees more Iranian support after nuclear deal.'' That is the reaction from the Syrian regime. ''Syria's Assad sees more Iranian support after the nuclear deal.''

Look, the White House needs to know that the Congress elected by the people is prepared to do anything it can to make America safer. We want to work collaboratively with the President to advance that goal, but if we have to work against a bad agreement to do so—a flawed deal that threatens our country and our allies—I assure you, we will.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER (Mr. COTTON). The Democratic leader is recognized.

NUCLEAR AGREEMENT WITH IRAN

Mr. REID. Mr. President, I issued a statement earlier this morning. Today's historic accord is the result of years of hard work by President Obama and his administration. The world community agrees that a nuclear-armed Iran is unacceptable and a threat to our national security, to the safety of Israel, and to the stability of the whole Middle East. Now it is incumbent on the Congress to review this agreement with a thoughtful, level-headed process and to give this agreement the review it deserves.

EDUCATION BILL AND APPROPRIATIONS PROCESS

Mr. REID. Mr. President, in the Chamber this morning we have the chairman of the education committee, a man for whom I have the utmost respect. He is a person who understands education. He was the Governor of the State of Tennessee. He was the Secretary of Education, and he has been an outstanding Senator.

But something occurred last night that I think is really outside the specter of reasonableness. Cloture was filed on the education bill last night, meaning we are going to have a vote on it tomorrow morning.

We have worked on a few amendments, and basically all of them could have been accepted with voice votes. There was not a single difficult amendment that was brought up. So now cloture is being sought, and in the process, ignoring Democratic amendments that we have been waiting to offer for some time now. We are not going to allow cloture to succeed unless we have a pathway forward on these amendments.

The ranking member of the committee, the senior Senator from Washington, knows this. She has talked with the chairman of the committee about this, and we are going to have to have a reasonable time to debate those amendments and have votes on those amendments. Otherwise, we are not going to complete this bill. It is an important bill. We should complete the bill.

Senate Democrats have said for months that Republicans are running a sham on the appropriations process. From the very beginning, the Republicans have proceeded with an appropriations process that is designed to fail. They moved forward bills they know Democrats cannot support. Republican leaders in Congress simply have shown no interest in funding our government in a fair and responsible manner.

This past week, even we were surprised how House Republican leadership has handled the appropriations process. Republicans brought their interior and environment appropriations bill before the House for debate. This legislation is nothing short of a disaster. In fact, the bill that they brought to the floor is so bad that President Obama has made it clear already that it will be vetoed.

What does it do? It strangles the Environmental Protection Agency's budget, cutting it by 9 percent, $700 million. It prohibits completion and implementation of pollution standards for dirty powerplants to address climate change. It cuts funding for State drinking water infrastructure. It cuts funding for National Parks.

We have such an infrastructure deficit in our National Park System that it is a crying shame. Yet they cut more from this program. We are the envy of the rest of the world with our national parks, but with how the Republicans have treated this wonderful system of parks we have, they are really being depleted. It allows corporations to shift costs of their toxic waste bills to taxpayers.

We have had for decades a very successful program to clean up these very, very dirty spills dealing with chemicals and other substances that shouldn't be on the ground. It is called Superfund. What it does is make sure that these environmental disasters are paid for by the people who created the disaster. What does the House do on this? They change this and say: No, we are not going to have the people that messed up the environment clean it up; we are going to have the taxpayers clean it up. That is wrong.

This bill that was in the House last week blocks hydraulic fracking rules for public lands designed to provide transparency and protect communities that host oil and gas drilling. Rules for public lands, not private lands—they eliminate that.

Those are only a small number of the devastating provisions the Republicans

have piled into this funding bill. But even more shocking was what occurred next, as legislation pertaining to the removal of the Confederate flag brought the Republicans' appropriations bill to a screeching halt. In an attempt to avoid voting on amendments that would outlaw the use of Confederate emblems, the House leadership shut down their own spending bill.

The Confederate flag issue was brought up by Republicans. They accepted it the day before this debacle took place on the House floor. But then they wanted more debate on the Confederate flag, and it didn't sell. What did they do? They figured out a way to drop this bill totally and take it off the floor.

Listen to a few of the headlines that were in the newspapers that follow.

From the Atlantic: ''Republican Defenders of the Confederate Flag Derail a Spending Bill.''

From Politico: ''GOP Leaders Yank Bill after Confederate Flag Fracas.''

From Roll Call: ''The Confederate Flag Imperils Republican Goal to Finish Spending Bills by August.''

Finally, from the Wall Street Journal: ''Confederate Flag Debate Prompts House to Pull Spending Bill.''

It is very disappointing that this is what the Republican Party of the 21st century stands for—protecting emblems of racism and our tragic past. The Congress should not be protecting the Confederate flag. Protecting the Confederate flag certainly is not worthy of bringing the entire U.S. Government to a standstill. But that is what the Republicans have been doing all along with their bogus appropriations bills—bringing our country to a standstill.

It has been clear for months that the only way Congress will arrive at a responsible budget is by Republicans and Democrats, Senate and House, sitting down together and finding a path forward. Now is the time to negotiate—not in September, not in October.

We know that the Republicans are experienced in shutting down the government. They did it before for several weeks. It was devastating to our economy, and it was a real shock to the worldwide community. Sequestration is another ingenious method of the Republicans to hurt the American middle class.

Republicans are experienced in shutting down the government. They did it 2 years ago. We know how the American economy suffered.

Senate Democrats aren't the only ones calling on Republican leaders to sit down for bipartisan funding talks. Listen to what was said by congressional Republicans. HAL ROGERS is dean of the Kentucky delegation and chairman of the House Appropriations Committee. Here is what he said:

> If we wait until the end of the fiscal year, then we're going to have to pass a C.R . . . then try to cobble together something in the meantime like we've been doing, but under pressure. And that's not the best way to legislate.

House Appropriations subcommittee chairman MIKE SIMPSON of Idaho said:

> Under sequestration, the way it currently exists, you can't pass appropriations bills. It ensures that what you've got is a C.R. for the rest of your life.

House Appropriations subcommittee chairman TOM COLE said:

> The reality is we still live in a divided government. It's not as if the Democrats can be shut out, but they can't dictate to us any more than we can dictate to them. It's time to sit down and see if we can make a deal.

CHARLIE DENT, Appropriations subcommittee chairman in the House, from Pennsylvania, said:

> We all know there's going to have to be a short-term C.R. to take us from September to December. And I would hope sometime between now and then, we'll have a negotiated budget agreement.

These are just a few of the quotes of the House Republic chairmen. The only way we are going to avoid another Republican Government shutdown is by both parties sitting down to construct a bipartisan agreement.

Let's skip all of the unnecessary drama by starting today to work together to avoid another government shutdown.

What is the business of the day, Mr. President?

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

EVERY CHILD ACHIEVES ACT OF 2015

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of S. 1177, which the clerk will report.

The senior assistant legislative clerk read as follows:

> A bill (S. 1177) to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves.
>
> Pending:
>
> Alexander/Murray amendment No. 2089, in the nature of a substitute.
>
> Murray (for Peters) amendment No. 2095 (to amendment No. 2089), to allow local educational agencies to use parent and family engagement funds for financial literacy activities.
>
> Murray (for Warren/Gardner) amendment No. 2120 (to amendment No. 2089), to amend section 1111(d) of the Elementary and Secondary Education Act of 1965 regarding the cross-tabulation of student data.
>
> Alexander (for Kirk) amendment No. 2161 (to amendment No. 2089), to ensure that States measure and report on indicators of student access to critical educational resources and identify disparities in such resources.
>
> Alexander (for Scott) amendment No. 2132 (to amendment No. 2089), to expand opportunity by allowing Title I funds to follow low-income children.
>
> Murray (for Franken) amendment No. 2093 (to amendment No. 2089), to end discrimination based on actual or perceived sexual orientation or gender identity in public schools.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, the Democratic leader expressed the hope that we could have a path to the end on amendments, and I can assure him that Senator MURRAY and I agree with him wholeheartedly. We are working together to try to be able to do that. In the committee, we adopted 29 amendments. Most of those were Democratic amendments. We have adopted 22 on the floor, and the majority of those are Democratic amendments. The Democratic leader has been very helpful to allow us to come to the floor without delay, and I can assure him and the majority leader that Senator MURRAY and I intend to try to resolve the couple of issues we have right now and be able to recommend to the leadership a path forward. It would be my hope that we don't even have to have a cloture vote—that we didn't have to have one to get on the floor, and I hope we don't have to have one to get off the floor. I am not prepared to say we can do that yet, but we agree with him, and we will do our best to do that.

The PRESIDING OFFICER. The Democratic leader.

Mr. REID. Through the Chair to my friend, the senior Senator from Tennessee, the way the rules now exist, now after coming in tomorrow, there will be a cloture vote. I say to my friend that we need an agreement prior to that or we are not going to get cloture on the bill, on the substitute, which would be a shame. I hope that we can have adequate debate on these amendments. If we have 5 minutes per amendment, that won't work. I know that my friend is a fair man, but we are trying to understand why there was a rush on filing cloture on this bill.

I know there is a lot of work to do around here, but you can't shortchange one bill in an effort to get to something else that may not work either. We have two cloture votes on this bill. We can avoid the cloture vote, and that would be great. Maybe we can avoid the cloture vote on the bill itself. I hope so. But until my Senators are protected, we are not going to invoke cloture tomorrow morning.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, I understand what the Democratic leader is saying. I think the best thing for Senator MURRAY and me to do is to continue to work as we have with other Senators. I believe we know almost all of the amendments that are to be adopted. Not only have we adopted the ones in committee and the ones on the floor, but Senator MURRAY and I have several dozen other amendments that we are prepared to recommend to the full Senate be adopted in the substitute agreement. I would say to Senators that if there is any other amendment, I hope you will let us know about it. The filing deadline is 2:30 this afternoon. I hope we have all of the amendments that we need to have.

Occasionally, I am asked: Why do the Senators argue all the time? My answer usually is this: That is what we

are here to do. We are presented with the most contentious issues in the country—issues that can't be resolved in other places. So of course, we are going to argue a lot. We debate. We have rules about debate. We debate what to do about the Iran nuclear deal. We debate what to do about health care. We debate what kind of trade agreements we should have. But occasionally, we come to a consensus about what to do. A consensus is the way you govern a complex country.

I remember very well when I was a very young staff member here, I watched Senator Dirksen, the Republican leader—this was in 1968—and President Johnson, the Democratic President, work together to pass a civil rights bill. The bill was written in the Republican leader's office, even though it had been proposed by the Democratic President. It took 68 votes to pass it, in order to get cloture at that time. When they finally got 68—it took 67; they got 68—Senator Russell of Georgia, who led the opposition, flew to Atlanta and said: It is the law of the land; we need to support it. That is why we have the Senate. The Senate has been called the one authentic piece of genius in the American political system. It is the only place in our Government that encourages and actually forces consensus on important issues.

When you take a complex issue and try to resolve it and have it be the rule for a country as big and diverse as ours, consensus is the only way to do it. I cannot think of an issue about which there needs to be more consensus than one that involves the 100,000 public schools in our country, which have 50 million children and 3½ million teachers. Having a debate such as this about elementary and secondary education is like attending a football game at the University of Tennessee or Arkansas or Washington. Everybody in the stands is an expert. Everybody in the stands knows they can be the coach or the quarterback.

It is not that easy to get a consensus about what to do about elementary and secondary education in America. What is the proper role for the Federal Government? Once you have decided that, then what do you do about it? How much do you spend? What rules do you set?

The remarkable thing is that we have come to a consensus in two ways here about our elementary and secondary education legislation which is on floor today. The first is that we need to get something done. We are 7 years overdue. Newsweek magazine said this last week in the headline to its story: ''The Education Law Everyone Wants to Fix.'' We have tried twice in the last two Congresses. It was a well-intentioned bipartisan effort. Each failed. Each failed. We don't have to go into the reasons why, but they did fail.

In this Congress, we are off to a different start. We have heard from our teachers, our Governors, our superintendents, and our parents that you have to get this done. We want the bill to be as much like the one each one of us would write as possible. But in the end, let's get it done. Not only do we have a remarkable consensus about the need to fix No Child Left Behind, but we have a remarkable consensus about how to do it. I give a great deal of credit for that to the Senator from Washington, Mrs. MURRAY, who suggested to me that she and I write a draft bill together, which we did. We presented it to our committee, which includes many of the most liberal Members of the Senate and many of the most conservative Members of the Senate.

We worked through that draft. We considered 58 amendments. We adopted 29. A majority of those were Democratic amendments. In the end, every single member of the committee voted to report it to the floor. That did not mean every single member of the committee supported every provision in the bill, but I think what it meant—and I asked the members this before they voted: One, has it been a fair process? Have you had a chance to have your say? Is this bill good enough to present to the full Senate? The answer was yes for 22 Senators on both sides of the aisle.

Now, we have come to the Senate floor and we have been here about a week. We have adopted already 22 amendments, 14 of them are Democratic amendments. We have several dozen more amendments that Senator MURRAY and I have reviewed with our staffs and we agree with them. We are going to recommend to the full Senate that those be adopted by voice vote. They are important amendments, important contributions to the bill. We have about two dozen remaining to go which we need to vote on.

We need to do that today and we need to do that tomorrow. There is no need for us to go longer than that. We know what the amendments are. We have time to talk about those amendments on those 2 days. One or two of those are particularly contentious. We are trying to work those out.

So today what I would appeal to my colleagues for is cooperation. We have had excellent cooperation in the committee. We have had members of our committee who agreed not to offer amendments in the committee because they were told by me and Senator MURRAY that they have a chance to offer those amendments on the floor. We intend for them to have that opportunity before we finish this bill.

Senators on both sides of the aisle exercised restraint in that way in pursuit of a result. Most of the Members of the Senate on both sides of this aisle so far in this debate for the last week have done the same. I would simply ask all the Members of the Senate on both sides of the aisle in the next couple of days to show that same kind of restraint and help us get a result.

There is no need for us to go more than a couple of days. There is no need for us to have a cloture vote. We should be able to agree the amendments we know about can be scheduled and there can be an adequate time for debate on those and we can vote on them. We should be able to do that by unanimous consent. We want Senators to have a right to have their say on amendments that are related—related to elementary and secondary education.

So I thank the majority leader for placing this bill on the floor. I thank the Democratic leader for helping to create an environment in which we can succeed. I thank Senator MURRAY and her staff and our staff for working with the other Senators to get as far as we go. What I would ask our colleagues once again to do is to say: Our filing deadline is 2:30. We hope we already have all of the amendments. If everyone will cooperate with us, hopefully, the Senator from Washington and I can present to the leadership a list of amendments, a time agreement for how much debate there should be, and we should get started. We ought to be able to have one or two amendments voted on before lunch. When that is agreed to, we will let Senators know. Otherwise, I would expect there to be several votes in the afternoon, and a great many votes on Wednesday.

I yield the floor.

The PRESIDING OFFICER. The Senator from Washington.

Mrs. MURRAY. Mr. President, at Zillah High School in my home State of Washington, Jeff Charbonneau teaches science and engineering classes. Nearly half of the students in his school are struggling with poverty or come from low-income backgrounds. But despite the challenges poverty can present for students, Jeff and his colleagues engage their students and work tirelessly to help them succeed.

That dedication had paid off. Zillah High School graduates more than 95 percent of its seniors, and Jeff was named National Teacher of the Year a couple of years ago. But despite all of that success, today Jeff's school is labeled as ''failing.'' The reason: Last year, Washington State lost its waiver from No Child Left Behind requirements. That means most of the schools in my home State are listed as failing.

That is not fair to teachers like Jeff who pour their energy into making sure students can succeed. It is not fair to Washington State parents who are still facing a great deal of uncertainty about their child's school. It is not fair to students who deserve better than the current K-through-12 education law. It is time to finally fix No Child Left Behind. I am working hard to fix this broken law for teachers in my home State like Jeff.

I am working to restore certainty for parents in Washington State and across the country because they want to feel confident in the school where they send their child. I am working to make sure all students can get a quality education at our public schools no matter where they live or how they learn or how much money their parents

make. The Every Child Achieves Act is our chance to finally fix the current law.

It gives States more flexibility, while also including Federal guardrails to make sure all students have access to a quality public education. I look forward to making this good bill even better. It is why I am disappointed with the majority leader's decision last night to file cloture and move toward ending debate on the bill. We still have several important issues to address. Senator FRANKEN has an amendment to help protect LGBT students from bullying and discrimination at school.

I think it is an absolutely critical issue. When students do not feel safe at school, we have failed to provide them with the educational opportunities they deserve. I hope all of our Senate colleagues agree that we need to protect LGBT students from bullying and discrimination. We also have an amendment to expand access to high-quality early childhood education from Senator CASEY, making sure kids can start kindergarten ready to learn. It is one of the best investments we can make to help them succeed in school and later in life. I look forward to having that debate on the Senate floor.

We also need to improve accountability. Our bipartisan bill already includes some Federal guardrails to help students get access to a quality education, but there is more we can do to strengthen those measures and make sure all kids, especially our most vulnerable students, are able to learn and grow and thrive in the classroom.

So we have many issues yet to work through concluding debate on this bill. Getting this right cannot be more important for students across the country. Providing a quality education is not just good for students today, it is an investment in our future workforce, it is an investment in our future economy, and it will help our country grow stronger. Around the country, and in my home State of Washington, parents, students, teachers, and communities are looking to us to fix the No Child Left Behind law. We cannot let them down.

I yield the floor.

The PRESIDING OFFICER. The Senator from Montana.

Mr. TESTER. Mr. President, first of all, before I get into my prepared remarks, I want to say thanks to Senator ALEXANDER and Senator MURRAY for their great work on this bill. I very much appreciate where we are today, and hopefully when the amendments are all done, this bill will continue to be a step forward for this country's public education system and the students who are in it.

As everybody may know in this body, I am a third-generation farmer from North Central Montana. My wife Sharla and I have the incredible opportunity of farming the same land my grandfather and grandmother homesteaded and my folks worked for 35 years. I have been working on the farm since I was very young. From the age of 8, I knew I wanted to be a farmer, but my parents were insistent that I work hard in school and that I pursue a degree, even though agriculture was in my blood.

They knew a degree would give me greater opportunity both on and off the farm. My mother, in particular, had an unbreakable faith in the power of public education. So I went to college and after college—I graduated and got a degree—I started teaching in the same elementary school I attended as a child. While my calling as a farmer pulled me away from my time as a public school teacher in rural America—now, to be honest with you, the fact is, I could make more money in 1 day processing meat than I could in a week of teaching school. But that is another problem.

Nonetheless, I left the formal public education classroom. But it remained a key part of my life because I knew education was important. My parents instilled that in me. So I ran for the school board and got elected. I have been involved in public education my entire life, as a student, as a teacher, as a parent, as a school board member, as a State senator, as a grandfather, and now as a U.S. Senator. I have seen the positive impact that good education can have on folks' lives. I have seen how our system has failed too many kids.

Last year, Denise Juneau, Montana's Superintendent of Public Instruction, put out a report on why graduation matters. Nearly 80 percent of the male inmates in Montana's prison system are high school dropouts—80 percent of the male inmates in Montana's prison system are high school dropouts. Nearly three-quarters of the women in Montana jails are high school dropouts.

Superintendent Juneau estimated that Montana could combine crime reduction savings and additional revenue of over $19 million annually if we just graduated 5 percent more kids and incarcerated fewer of them. Nationally, these stakes are just as high. According to some figures, over 80 percent of the incarcerated population is high school dropouts. It is true that over 8,000 Americans drop out of high school each and every day. We can see how quickly the cost of incarceration will add up, even if many stay out of trouble and some go back and get their GED years later.

But it is not only the question of incarceration. The only jobs left within reach of a high school dropout are almost always going to be minimum wage or close to it. That perpetuates the cycle of poverty. So every American ought to know what we are up against. I know that what we do this week with the Every Child Achieves Act will affect millions of American families for years to come.

For the past few months, the Appropriations Committee has been working on bills that impact everything from our national defense to veterans, to agriculture, to access to public lands. I have been highly critical of where this majority thinks we should spend money and where it thinks we don't need to invest. My colleagues on the Appropriations Committee deserve a lot of credit for doing the best they can, but the end result is still unacceptable.

They have underfunded care for veterans by over $850 million compared to what the VA says it needs to keep up with the increased number of veterans accessing the VA. They have rejected efforts to make Head Start a full-day, full-year learning initiative. By freezing Head Start funding, they risk kicking more than 12,000 kids out of Head Start, despite the successes I have already told you about prison populations and education. It is a direct connection.

They have cut half a billion dollars out of clean water projects. Meanwhile, they have funneled $40 billion of borrowed money into an off-the-books account used for overseas military operations. This week, as we work to reform elementary and secondary education to ensure that our kids and our grandkids are prepared for the challenges of this worldwide economy in which we live, we simply cannot afford to shortchange their future.

That doesn't just mean providing the framework that will guide our Nation's 100,000 school districts as they work to improve education that our students receive, it also means letting them make decisions for themselves. If schools are not teaching well, they are accountable to school boards. If school boards are hiring bad teachers or misapplying resources, they are accountable to their voters. I can tell you as a former school board member, they are accountable to their voters.

But we also have to provide them with the resources they need to succeed. This is an investment we must make. Almost everyone in this body agrees that education is the single best investment we can make to ensure that folks are able to climb the economic ladder and get out of poverty. While I do not agree with everything in the Every Child Achieves Act, I can tell you it is certainly a step in the right direction.

Most importantly—most importantly—this bill eliminates adequate yearly progress known as AYP and moves us away from some of the failed high-stakes testing we have come to know. The chairman and ranking member need to be applauded for that. No Child Left Behind assumed that all students were the same and that success in the classroom meant passing a standardized test. We all know that is simply not the case. No Child Left Behind aimed to hold teachers and administrators solely responsible for the performance of their students, and punishment for low performance was rendered in the halls of the Department of Education here in Washington, DC.

Well, yes, I can tell you teachers and administrators must be held accountable, but much of that achievement gap is tied to things out of the hands of those teachers and administrators. It is tied to what happens outside the classroom.

Students' lives both inside the classroom and out are significantly different depending on their community and the home in which they live.

One of the single biggest factors that impact students' lives is poverty. If we do not address that issue, then this well-intentioned bill will not have the desired effects. If we do not recognize that urban poverty and rural poverty are very different, then we will fail to keep the promise that in America, any kid can grow up to be in the U.S. Senate or be successful in business or in the arts. Quite simply, if we are going to hold teachers and students accountable without addressing the root of some of the inequities in our public schools, then we are not addressing one of the most basic problems our Nation and our schools face.

Using a single formula to grade the Nation's 100,000 schools didn't work, especially when folks in Washington expected schools to change overnight. That expectation added so much pressure to perform that students and teachers alike dreaded going to school. We lost a lot of good teachers.

This bill, resulting from the hard work of Senator ALEXANDER and Senator MURRAY, acknowledges that Washington doesn't have all the answers when it comes to educating our kids. It puts more control in the hands of our States and local school boards.

For example, under No Child Left Behind, all 100,000 schools in this country were subjected to the same regulation for graduation rates. Under that regulation, schools can only count students who graduate with a diploma in 4 years. School districts don't get credit for students who graduate in 5 years or if they earned a GED.

Oftentimes, students who take more than 4 years to graduate have personal or family issues that prevent them from graduating on time. States would have to beg for permission from the Department of Education to count fifth-year graduates, and if the Department chose to accept those graduates, it would tell the States how much weight those students would count toward the schools' assessment. Under the Every Child Achieves Act, States will no longer have to apply to count fifth-year graduates and they can determine on their own how to weigh those students when assessing graduation rates.

This bill also builds on the Schools of Promise Initiative that has worked well in Montana to put some of our poorest performing schools on the right path. Under the leadership of Superintendent Juneau, the communities that are home to Montana's five lowest rated public schools have received support to attract and retain better teachers and to encourage community members to be more involved in the education of our children. That model, which empowers districts and schools to get better—and hire better—is being strengthened by the Every Child Achieves Act.

While this bill can and should go further to place more power at the local level, we have taken a good first step in its potential to do even better.

I recently paid a visit to Busby, MT, on the border of the Northern Cheyenne and Crow Indian Reservations. Beautiful country surrounded by rolling hills, Busby is so small that if you blink while driving, you could miss it. Busby is home to one of Montana's three Bureau of Indian Education schools. It is easy to see how broken America's promise to our tribal communities really is when one goes to Busby. The school has too few resources. The science teacher doesn't have any working microscopes. The teachers often cut pages out of their instruction manuals and make photocopies for each of their students. And the school needs maintenance.

While the scene at many BIE schools would drive you to tears, the public schools that educate over 90 percent of our Native American students are also in serious need of support. Over the last decade, Native American students are the only group—they are the only group—who has not seen improvements in reading and math. In fact, the achievement gap in math has actually widened during that time. Native American students are also the most likely to skip school or drop out and the least likely to go to college.

That is why last week the Senate passed my amendment to restore four grant programs that could help improve education in Indian Country, if they get funded. My amendment allows schools and colleges to train teachers to understand Native American culture so they are better equipped to help those Native American students succeed. It preserves fellowship programs for Native American students to get greater hands-on experience through their degree. It protects gifted and talented programs to better address the needs of bright young Native American students, and it maintains support for adult literacy and GED programs in Native American communities. Those title VII initiatives have never been funded, but they will have a major, positive impact on Native Americans across the country if we can find the money to fund them. Last week's bipartisan vote showed there is real support for these initiatives, and we should provide them with adequate resources.

Additionally, this bill includes strong steps toward improving native language instruction. It is a very good initiative because we know that when Indian kids learn in their native language, they do better in school and carry their history and tradition on to future generations, and they graduate at a higher rate.

Another important step we can take—one that I hear about often when meeting with parents, teachers, and administrators back home—is reducing the annual Federal testing requirement because right now, under No Child Left Behind, we are testing our kids to death. As my colleagues know, a student will take 17 federally mandated tests by the time they graduate high school—17.

I met with some fourth and sixth grade students, as well as their teachers and parents, about how much testing the Feds require. As my colleagues well know, fourth and sixth grade students usually tell it like it is. There is not a political agenda behind it when they ask a question or tell it the way they see it. So when I asked how much testing is the right amount, one bright young girl replied, ''I don't know, but I can tell you now it is too much.'' A fourth grade teacher there told me they are spending over 4 weeks a year testing. That is 4 weeks out of the year. That takes away from instruction time where kids could be learning. The level of testing that is currently required is choking out creativity, innovation, and taking away from our students' ability to learn.

I have offered an amendment to replace that current annual testing with fewer tests. Instead of taking federally mandated tests every year, students would be required to take one test in elementary school, one test in middle school, and one test in high school. If States want to test their students more, they can. If school boards want to test their students more, they can. But, as the young girl in Billings said, what we are doing right now is too much.

My goal and the goal of many in this body is to give a greater voice to the State and local community leaders to determine how best to educate the next generation. This bill as drafted puts us on that path. It is a chance to leave a better future for our country by making sure that every child—from the best school in the big city to the poorest Indian reservation in Montana—has a chance to succeed.

Our schools should not be designed as data warehouses where we can collect statistics on every student in America. Instead, we should be making sure our students love to learn so that they continue to learn even after they graduate and enter the workforce. We should make sure they have the same appreciation for education my mother did. That is what we should be investing in, and that is whom we should be investing for.

I once again thank Senator ALEXANDER and Senator MURRAY for their work on this bill. I look forward to making this bill better through the amendment process—not worse—so that hopefully we have a good bill to vote on at the end of this week.

I thank the Chair.

The PRESIDING OFFICER. The Senator from South Carolina.

AMENDMENT NO. 2132

Mr. SCOTT. Mr. President, I rise today regarding my amendment No. 2132, specifically targeting an opportunity to improve education for those kids attending title I schools. This is a portability amendment.

As we debate this Education bill, we must ensure our focus is in the right place. Education policy is not about protecting a bureaucracy, it should not be about empowering Washington, and it cannot be about an endless, fruitless push for some sort of one-size-fits-all type of system. This conversation must be about kids—5-year-olds and 15-year-olds—and their unlimited potential.

I believe without question that each and every child has within them a reservoir of potential. We should make sure that the access to experiencing the fullness of their potential is available to all Americans throughout this country. Too many of our Nation's children today do not have access to quality education. They don't have access to the education they deserve.

Now, more than half of the students in our Nation's public schools come from low-income households. This is an important point. As someone who grew up in poverty, as someone who grew up in a single-parent household, I know full well the challenges that come with poverty. Poor kids too often move a lot. By the time I was in the fifth grade, I had attended four different schools—four schools in my first 5 years of education. That is 4 different administrators, 4 different sets of teachers, 4 different funding streams—probably 40 different funding streams. So when we look at this through the eyes of a poor kid or if we look at this through the eyes of a single mother who is struggling simply to make ends meet, it seems very clear to me that providing more educational options is the right path forward for us to make sure every child everywhere experiences their full potential.

Giving States the ability to provide portability for the title I dollars—school choice for those most in need—is the kind of reform our kids deserve. It is the kind of reform they need. I don't care whether it is public, private, charter, virtual, home school; I don't really care what option as long as we have all the options so that the parents find the best for their kids.

Instead of forcing funds through red-tape and bureaucracy, let's have it directly follow our students. We are not talking about all the school funding this amazing Nation provides—somewhere around $700 billion of funding for schools. We are talking about a sliver—about 14 percent. Let that 14 percent of the Federal dollars—let those dollars be portable. Give the children in title I areas the greatest opportunity for success we know as a nation.

We all understand and appreciate the fact that to achieve the American dream today, it requires a quality education. By backpacking those funds, we will help kids who are like I used to be—growing up in difficult circumstances—to look into their own future with hope, understanding that opportunity lives and breathes everywhere in America.

We are seeing what happens when the majority of parents simply do not have those basic options, and we are seeing it in some challenging and stunning statistics. In 2010, there were 2.8 million high school dropouts between the ages of 16 and 24. The unemployment rate in America today is around 5.2 percent, but for those kids who dropped out, the unemployment rate is 29 percent, and nearly 36 percent—more than a third of those students—were not participating at all in the workforce. Taken as a whole, nearly two-thirds of all high school dropouts are simply not working. These are devastating numbers for our Nation as a whole. No matter where one lives in America, one is impacted by these statistics, and they should cause us to stand up and take notice.

These are students who deserve better, students who just need a little confidence in their abilities, and we can provide that through school choice. These kids, trapped in failing schools and underperforming schools, deserve an opportunity. It is simply not fair to our children, it is not fair to their parents, and it is not fair to America to allow the status quo to remain.

I know there is no silver bullet, but school choice is a large step—a leap—in the right direction. That is one of the reasons why I launched my Opportunity Agenda with school choice, the CHOICE Act, as a part of the foundation. That is why I am standing here today discussing—pleading with my colleagues to take a serious look at the educational opportunities available in some of the poorest ZIP Codes in America.

I think it is important to note that my amendment complements a growing body of evidence where we see 57 school choice programs in 29 States—57 school choice programs in 29 States—not in the South primarily, but in the South, yes; the Southwest, yes; the Northeast, absolutely; and the Midwest, yes. Local and State leaders are figuring out that when parents have a choice, kids have a chance.

Let me be crystal clear. It is absolutely paramount that we act and that we act now. I know opponents of school choice want to use ''voucher'' as a dirty word. I understand the tactics of those who do not support giving every child a quality opportunity. I understand. But they forget that the Federal Government already authorizes vouchers for education. We just call them Pell grants. Too often too many of our poor kids and our kids of color never receive a Pell grant because their high schools did not prepare them for college.

Now we know there are quality public schools all over this country, and we should celebrate the success of our quality public schools. I am a big fan of our public schools when they work, but I am a bigger fan of removing the potential traps to our kids in underperforming schools.

We can make a difference, we should make a difference, and this amendment provides us the opportunity to make that difference today. We don't have to wait until tomorrow. We don't have to wait until next year. We can do it today. You see, this Senator took a Pell grant to Charleston Southern University, probably the greatest university in the history of the country. Charleston Southern University, a private university, is where I took my Pell grant and experienced a wonderful education.

Faith and hope are two of the most powerful and necessary emotions. They oftentimes serve as the glue to better opportunity. We can restore those two powerful emotions in areas where kids too often are losing hope. This Senator knows that personally. This Senator has seen it happen personally in his own life. That is the power of school choice.

All of our kids—yes, all of our kids—have amazing potential. I believe there are good people on the other side of this argument. I know the other side believes school choice, as I am describing it, is wrong. I believe they have good intentions. This Senator is speaking from personal experience. This Senator is speaking from the statistical realities that we see across this country. This Senator is speaking on behalf of those kids who have been trapped too long, locked out too often, and said no to too many times. It is up to us as policymakers to create an environment where we unlock their potential.

I hope we will continue to have a robust debate, leaving politics behind and figuring out how to improve educational opportunities for all of our children.

Thank you, Mr. President.

The PRESIDING OFFICER. The Senator from Massachusetts.

AMERICAN WORKERS AND OVERTIME PAY

Ms. WARREN. Mr. President, American workers have fought long and hard to improve their lot—banning child labor, better safety on the job, minimum wage, and an 8-hour workday. Unions often led these fights, but their efforts also helped tens of millions of workers who often had no union representation.

In 1868, Congress passed its first 8-hour workday law, and by 1975 rules protecting the 8-hour workday covered about 65 percent of all workers. Of course, those workers might work longer—might be required to work longer—but if they did, they got time and a half for their extra hours. Managers were exempt from those rules, but they were paid more to offset the lost overtime.

To be sure, American workers did their part too. Year over year, decade over decade, workers increased output so that today American workers are among the most productive in the

world. The basic 8-hour day, with overtime for extra hours, was a godsend to families, and, in a larger sense, it was a core part of the deal that American workers could count on. From the 1930s through the 1970s, as American workers' productivity increased, GDP went up and so did wages for the average worker. In other words, as companies got richer, their workers got richer too. This was the America that built the great middle class, the America that created opportunity and protected that opportunity for nearly two-thirds of all workers.

But over time, that basic deal quietly vanished because we haven't meaningfully updated these rules since the 1970s. Instead of two-thirds of the workforce being protected, today only 8 percent of all salaried workers are covered. That means that only the lowest paid workers, workers whose salaries are so low that they are below the poverty line for a family of four, are legally entitled to be paid anything for their overtime. Today, a fast-food worker or a janitor or a grocery store clerk making a little over $23,000 can be classified as a manager and be required to work 10, 12, 14 hours a day, 5, 6 or 7 days a week, with no overtime pay of any kind.

Today, the productivity of American workers continues to rise, but the gains go to Wall Street and to CEOs and are no longer shared with the people doing much of the back-breaking work to make it all happen. That is a broken system.

Two weeks ago, the President announced he is going to fix these broken overtime rules. The administration's new proposal would raise the salary threshold under which a worker is guaranteed overtime pay to just over $50,000, more than double the current threshold and roughly back to the 1975 level, when both corporations and workers benefited from a growing economy.

This matters. According to the White House, nearly 5 million Americans—including over 100,000 people in Massachusetts alone—will get a raise. They estimate that workers will see an additional $1.4 billion in wages in just the first year alone.

But make no mistake, it will be a fight. Some businesses are used to getting an extra 5, 10, 20 hours for free from their employees—and they are just fine keeping the rules just the way they are. They will claim that fixing overtime will hurt businesses. Well, don't believe it. History shows that increases in overtime pay are actually good for the economy.

Employers usually respond to increases in the overtime threshold in one of three ways. Some will actually pay existing employees overtime for the extra work. Others will avoid overtime costs by hiring more workers to get the job done, and some will increase the hours of part-time workers. That is what we are likely to get: higher wages, more jobs or more hours for part-time workers. Even the National Retail Federation, which has lobbied hard against fixing the overtime rules, admits this proposal will add tens of thousands of jobs to this economy. We need those jobs.

But this issue is about more than jobs. This issue is also about fairness. If a worker puts in more time and produces more for the company, the worker should get a chance to share in its benefit. No more free work. Economic growth over the past three decades has been built on the backs of hard-working people, and it is time those hard-working people get a little bit more of all they have produced.

Fixing our outdated overtime rules will not end inequality. It is time to raise the minimum wage. Women should get equal pay for equal work. Workers deserve paid sick leave and paid family leave. Social Security should be expanded. But this is an important step forward, a vital piece of the puzzle that will increase wages, increase hours, and increase employment for millions of Americans, and it is a step that will show that the government can be made to help working people. There are plenty of examples of Washington writing rules that favor the rich and the powerful, but this time we have an overtime rule that will give working families a fighting chance to build some security for themselves. The President has proposed a new rule to benefit working families, and the rest of us are here today ready to fight for that rule.

Thank you, Mr. President.

I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, we are continuing our discussion of legislation to fix No Child Left Behind. We are still hopeful that we may have an agreement that we will have one or two votes before lunch.

I remind Senators that because of their cooperation we have done pretty well. We have adopted 29 amendments in committee, 22 already on the floor. Senator MURRAY and I have a large number of other amendments that we are prepared to recommend to the full Senate be adopted by consent. We have about two dozen amendments which we would like to have a vote on today and tomorrow. So the sooner we can move to those, the better, which will take some cooperation from all Senators.

Senator TESTER, the Senator from Montana, was here earlier. I thank him for his comments. He is a former school board member. He recognizes that the idea that we want to restore responsibility for student achievement to local school boards, to classroom teachers, to States, to chief State school officers is not just a Republican idea, it is a bipartisan consensus. We agree. We want to know whether the children are learning, but we want to restore to the States the decisions about what to do about the results of the tests the students take.

As the New York Principal of the Year wrote to us, wrote to our committee: We cherish our children, too. What she was saying was just because we fly to Washington once a week doesn't make us any more caring or any wiser about how to deal with 50 million children in 100,000 public schools from Native villages in Alaska to the mountains of Tennessee. In fact, we are less able to deal with that because we are further removed from those students.

The Senator from South Carolina, Mr. SCOTT, made that point eloquently. He said school choice is not a political slogan, school choice is an option, and we should look at it from the point of view of someone who is low-income or someone who is growing up in a home with a single parent, which he did. He talked from his own perspective. We shouldn't look down, we should be looking up. Look up at opportunity. Look up to the point of view of a single parent with less income and one or more children who is thinking: How can I help my children rise? How can they look up? Probably the one thing that almost all of us would agree on is, the better the educational opportunity is, the more chance that child has to climb the ladder.

If you have money in your family, you have those choices. You may move to a different part of town or you may choose a private school if you have the money. If you don't have the money, you don't have the choices. So what Senator SCOTT proposes to do is to take $14 billion of Federal funding and allow States—this is not a mandate on the State; this will be up to the State—to say that money can follow the low-income child to the school the child's parent wants that child to attend, public or private.

There is often a lot of talk about what is the proper Federal role for education. Some people don't think there is any. I was in that camp and probably still would be if I were the king. I remember going to see President Reagan in the early 1980s and suggesting that the Federal Government get completely out of elementary and secondary education and let the States do it all. In exchange, the Federal Government would take all of Medicaid. That would have been a good swap for the States, and it would have been good for education. But that is not where we are as a country today.

But if someone were to say what is the single reason why the Federal Government ought to have something to do with education, one answer would be to prevent discrimination, and another answer would be to help low-income children.

What is the best way to help the low-income child? This is what the Senator from South Carolina is saying: Why don't we take the money we have available, and let it follow that child to the school that the child's parent thinks is best? That is what we allow the wealthier parent to do. Why don't we

do it for the child? Why do we send it through bureaucracies and let other people make that decision? Why do we look down when, instead, we should be looking up?

As he also pointed out, it is not such an alien thought—this idea of letting money follow a student to a school. He pointed out that since 1944, with the GI bill for veterans, we have had great success in this country with allowing Federal dollars to follow students to the college of their choice.

In fact, the GI bill for veterans is often described as the most successful social piece of legislation in our country's history. It helped to create the ''greatest generation.'' It said you could take your Pell grant or your student loan to Notre Dame, to the University of Arizona, to Maryville College in Tennessee or you can go to Yeshiva, you can go to Howard University. That is your choice. Public, for-profit or nonprofit, you go. If it is accredited, that is your choice.

We also have vouchers, and that is a voucher at the other end of the scale. We have something called the child care and development block grant. It is a very big Federal program, maybe $8 billion. It says to low-income mothers—mainly mothers—that here is a voucher that you could spend at a daycare center while you work or while you go to school so that you can earn enough money so that you won't have to have a government voucher anymore.

So we have vouchers for parents with 3-, 4-, 5-, and 6-year olds. We have vouchers for students who are 18, 19, and 21 years olds, and somehow we think there is something wrong with having vouchers for elementary and high school students. That line is changing all the time.

I was in Jackson, TN, recently, and the president of Jackson State Community College told me that 30 percent of the students at Jackson State Community College are also in high school. We call that dual enrollment. That means that while you are a junior or a senior in high school, you might be taking physics, mathematics or some program at the community college or some apprenticeship there that might better prepare you for a job.

At Walters State Community College in Morristown, TN, I spoke at the graduation this year. A student there was graduating from Jefferson County High School and Walters State Community College in the same week. That student was going on to Purdue University, but he was going to enter Purdue at the second semester of his sophomore year. In other words, because he had been in both community college and in high school, he was able to save, he said, $65,000 by enrolling in the second semester of the sophomore year.

So we have a voucher to help him pay, if he is low income, to go to Walters State Community College, but somehow there is something wrong with a voucher to allow him to choose among the public high schools he attends. That doesn't make a lot of sense based on our history. It would be rare that we have a social experiment or a social legislation offered in our country where we have these two good pilot programs: the GI bill for veterans, operating since 1944, and the child care and development block grant, operating since the first President Bush was in office and which was reauthorized just last year by Congress.

We all vote for Pell grant vouchers. We all vote for child care and development block grant vouchers, and then we have a big argument when it comes time to talk about vouchers for elementary and secondary education. I think a way to resolve that is to take Senator SCOTT's advice. Instead of looking down on the students, let's look up. Let's look up from the perspective of Senator SCOTT—the Senator from South Carolina—when he was a child, when he was growing up in a home without much money, with a single parent, with limited educational options.

He knows the value and option that a Pell grant gave him for college. He would like to extend that option to elementary and secondary education for students who grow up as he grew up, and I would like to do that as well. We have an opportunity to do that by voting for his amendment when it comes time for a vote on this bill. I intend to vote yes, and I hope my colleagues will too.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. FLAKE). The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. CASEY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CASEY. Mr. President, I ask unanimous consent to set aside the pending amendment and call up Casey amendment No. 2152, the Strong Start for America's Children Act, an amendment to the Every Child Achieves Act, which will establish a Federal-State partnership to provide access to high-quality public prekindergarten education for low- and moderate-income families.

Mr. President, I ask unanimous consent, as well, to add Senators TESTER, REED of Rhode Island, KLOBUCHAR, and MERKLEY as cosponsors.

The PRESIDING OFFICER. Is there objection to adding the cosponsors?

Mr. ALEXANDER. No objection.

The PRESIDING OFFICER. Without objection, it is so ordered.

The PRESIDING OFFICER. Is there objection to setting aside the pending amendment?

Mr. ALEXANDER. Mr. President, reserving the right to object, this is a very important amendment that was thoroughly discussed in the education committee when we considered this legislation.

Both Senator MURRAY and I believe it should be offered on the floor and that Senators should have a chance to vote on it.

The trouble is that the Finance Committee objects to the way it is paid for. And in a moment, on behalf of the chairman, Senator HATCH, the Senator from Utah, I will have to object.

But my hope would be that the Senator from Pennsylvania, who is a member of that committee, could work with the chairman and the ranking member to come up with a different way of paying for the bill so that Senators would have a chance to vote on this important amendment today or tomorrow.

So I object.

The PRESIDING OFFICER. Objection is heard.

Mr. CASEY. Mr. President, by way of response, I understand what my colleague from Tennessee just mentioned as it relates to the objection to the so-called pay-for. I don't agree, obviously, for a couple of reasons.

No. 1 is I would hope that corporations that get the benefit of retaining a lot of operations in the United States and then seek to avoid taxes by so-called inversion would understand, I believe, the duty they have to this country. They benefit from our workers, our infrastructure. They benefit in so many ways. I would hope those companies would understand and Senators here would agree with the notion that they should undertake the duty to pay their fair share. I understand there is a debate about that. I understand there is an objection, but I would hope at some point we can get to the resolution of this basic question: Are we going to require companies to do more if they seek to engage in a tax-avoidance scheme by a so-called inversion?

But I respect what my colleague said, and we will try to move forward constructively.

Mr. ALEXANDER. Mr. President, I have nothing more.

Mr. CASEY. I yield to my colleague from New York.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. Thank you.

Mr. President, first I commend my friend and colleague from Pennsylvania, Senator CASEY, for his amendment, and I appreciate the discussion between him and the chair of the committee.

I think that getting rid of these inversions is very important. I am surprised people on the other side don't want to do it, but so be it. Funding this program is the most important way, and if we could come up with a bipartisan way to get the funding, that will help educate millions of America's young children, and that is why I support this amendment so strongly.

Educating our children is not a sprint, it is a marathon. No one just gets up one day and decides to run a marathon. They plan, they train, and they eat right. We can avoid the most common problems if we start our kids

out early with the right training, not just for some but for every student.

The research has shown that children who attend high-quality preschool programs are more likely to be prepared for school and graduate on time. They get better jobs. They are less likely to wind up in the criminal justice system or to rely on our social safety net. All too often in this body we do what many groups, corporations, and others in America do, we are unwilling to think of the long term. We may be spending a dollar today on this program, but we are going to save tens of dollars for each dollar we spend over the long run. All the studies show it. So having quality pre-K programs for kids who need it is a great investment in America. Yet millions of middle-class and low-income children don't have access to these programs that would provide an immense benefit to them and our country.

In short, pre-K should not be a luxury for the wealthy. Every child, no matter where they live or how much money their parents make, should be able to start their education in pre-K. It is not only for the good of them and their families but for the good of America. Senator CASEY's amendment helps us get there by helping States fund high-quality prekindergarten for 4-year-olds from low- and moderate-income families. It specifies that all preschools be inclusive of children with disabilities and addresses the need for increased funding to support their needs.

As I said, there is nothing wrong with doing inversions. Getting rid of them is the right thing to do, but if there is another way to go, I am certainly open to it, and I know Senator CASEY, our leader on this amendment, is too.

By the way, we will see where the pay-for is. It is the kind of win-win that everyone can get behind, and so I hope my colleagues will come together and fully pay for this. If we can't do it with inversions, which I think is right—and I believe most Americans would think closing the inversion loophole is right—let's find something else.

In New York, there are cities and communities that are already making the investment to ensure access to pre-K for their children. It is working. But at a time when budgets are tight, they shouldn't have to do it alone. Under this amendment, New York will receive the support it needs to serve an additional 137,000 kids over 5 years. States across the country would be able to help a similar number of their schoolchildren, all without costing the Federal Government a single plug nickel.

As we debate how to best ensure students graduate ready for college or careers, we are doing a disservice if we ignore the need to invest in early education.

I thank my friend Senator CASEY for offering this amendment. I urge my colleagues to vote on it in the original form. Stand up against these inversions, but if that vote fails, to have a different proposal would be a good thing to do, although I think we should have a vote on this particular amendment first.

Mr. President, I would like to speak for a moment, with the indulgence of my colleagues, on the title I cuts and the amendment Senator BURR has offered with respect to title I funding, which of course provides assistance to low-income districts and schools that educate a high number of low-income children.

We cannot forget that title I is the largest source of Federal education funding and applies to a wide swath of school districts and includes many suburban and middle-class communities as well as school districts in our cities where poverty is concentrated. You might say: Well, this only affects the poor. It doesn't. If a school is going to lose its title I funding, they may have to do it and spend the money on their own and take away from science or afterschool programs or sports or something else. It affects everybody. Even though title I, since the days of Lyndon Johnson, was aimed at poor kids, it is going to hurt everybody if we make the kind of drastic cuts in so many school districts that the Senator from North Carolina has proposed.

What Senator BURR's amendment would do would not increase funding, which is what we usually do around here when we want to try to change formulas, as we should. He simply robs Peter to pay Paul. He takes away money from a needy school in one State to give to a needy school in another State.

According to the Congressional Research Service, over 9,600 school districts across the country will lose title I funding under this amendment. These schools count on title I funds year in, year out. They budget for it, and without the funding, they could be forced to lay off teachers, cut afterschool programs, and make other dramatic cuts. So it is no answer. Redistributing a limited pie is no way to make Federal policy.

One of my disappointments with this bill is that every American supports increased funding in education, particularly in things like title I. The bill doesn't do it.

At a time when America is competing against China, Japan, Europe, and the world, we are saying we shouldn't help with education, which is the ladder up for so many millions of American families, but we are not. But then to say, while keeping the funding flat, we should take huge amounts of money—$300 million from my State—and give it to other States to help the poor, when in fact it doesn't even require that that money goes to the needy, that doesn't make much sense, in my opinion, and that is not the way to legislate.

We should have a real conversation about our Federal investment in education, one that recognizes that all of our school districts with low-income student populations would benefit from additional resources, one in which my colleagues across the aisle are fond of saying, in a different context, we are not picking winners and losers. I think we would agree that all of our low-income school districts need and deserve extra help.

In conclusion, education is the cornerstone of the American dream. We have to keep that American dream alive, and there is no better way than in funding education. I know my colleagues believe that.

I hope everyone will join us across the aisle in opposing Senator BURR's amendment to change the title I formula without increased Federal support for our schools.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, I thank the Senator from New York for his remarks. I know how passionately he feels about the amendment by the Senator from North Carolina. He has made that clear to me on more than one occasion, and my hope is that the Senator from New York and the Senator from North Carolina will have a successful resolution of that difference of opinion in the next day or two. I know Senator MURRAY and I will be glad to work with them to try to do that, but I hear him loud and clear, and I appreciate him coming to the floor and making those statements.

Mr. SCHUMER. If the Senator will yield.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. Mr. President, I thank my colleague from Tennessee, and I know how much he cares about both this bill and education. I look forward to making this bill as good a bill as we possibly can make it, and so I am always open to any suggestion he might make.

The PRESIDING OFFICER. The Senator from New York.

Mr. ALEXANDER. Mr. President, I thank the Senator from New York. He has not been on the floor in the past at the beginning of the day when I thanked both the majority leader and Democratic leader for their attitude toward this bill. While it is probably not noticed by people around the country, it is noticed here.

The Democratic leader and the Democratic leadership, which the Senator from New York is a part of, allowed this bill to come to the floor without any delay. We have had a chance to offer and consider a lot of amendments. We have already considered and adopted 22 on the floor.

Senator MURRAY and I have several dozen or more that we will recommend to the full Senate to be adopted, and we have about two dozen other amendments that we would like to begin voting on soon. We seem to be moving along. Senators are cooperating.

There have been some developments this morning that are encouraging, and I hope to be able, within the next few

minutes, to announce that we will have a few votes—one to four votes—before lunch and that we will have more votes at 4 p.m., but I am not able to make that agreement yet. For the information of Senators, that is our hope. Then, tomorrow, if we continue on this path, we will have a large number of votes.

I thank the Senators for their cooperation.

The PRESIDING OFFICER. The Senator from Pennsylvania.

Mr. CASEY. Mr. President, I have just a point of clarification. I may have said amendment No. 215-something, it is amendment No. 2152.

I yield the floor.

The PRESIDING OFFICER. The Senator from Louisiana.

Mr. VITTER. Mr. President, I rise again in support of my sanctuary cities amendment and to urge us to come together around sensible legislation that will stop jurisdictions around the country from opposing and not following what is already Federal law.

As the Presiding Officer knows, Federal law is very clear. It says deportation and immigration enforcement is a Federal responsibility, but local law enforcement authorities need to properly cooperate with Federal authorities regarding that. It doesn't mean they need to take it over or take on huge burdens or unfunded mandates. It does mean they need to properly cooperate with Federal authorities.

Well, for several years, as the Presiding Officer knows, there have been hundreds, if not thousands, of so-called sanctuary cities in other jurisdictions around the country that have a formal policy that is completely at odds with that. These policies in various jurisdictions, such as the city of San Francisco, say straight out: We are not going to cooperate in any meaningful way with Federal immigration enforcement. I think that is flatout ridiculous, and tragically it leads to dangerous situations and horrible results. We saw one of those dangerous situations and horrible results just in the last few weeks with the murder of a completely innocent woman in San Francisco by an illegal alien who had been convicted of felonies seven times, deported five times, and released onto the streets of San Francisco, in part, because of San Francisco's sanctuary city policy.

This absurdness—political correctness gone haywire—is to the detriment and danger of American citizens, and it has to end. That is why several years ago I brought legislation to the Senate, beginning in 2009, to put teeth in what is already Federal law. My legislation will ensure that there are consequences when jurisdictions, such as San Francisco, don't properly cooperate with Federal authorities over immigration enforcement. Unfortunately, that has been blocked and blocked and blocked in the Senate.

I brought the same proposal as an amendment to the education bill that is on the floor now to revisit this issue and to urge us to come together around sound, sensible policy that ends sanctuary cities flaunting Federal law and creating very dangerous situations. I urge my colleagues to come around to a commonsense solution to that.

I have fully cooperated with Senator ALEXANDER, who has been the floor leader on this important education bill. As part of that, I agreed not to demand a vote on that amendment on the floor this week if our Judiciary Committee, the appropriate committee of jurisdiction, takes up the issue in a timely way—we reached that agreement yesterday with Senator GRASSLEY, the chair of the Judiciary Committee—and that a Vitter bill on this topic would be taken up appropriately at a markup of the Judiciary Committee this work period.

Well, that is certainly progress, and so let's use this opportunity to make real progress and end sanctuary cities flaunting Federal law and not properly cooperating with immigration enforcement. Let's come together around a strong, meaningful bill that doesn't allow that, that puts consequences and teeth in present Federal law that says local law enforcement has to properly cooperate with Federal immigration enforcement.

I very much look forward to doing that in the Judiciary Committee—the committee of jurisdiction—thanks to the work of Senator ALEXANDER and the agreement of Senator GRASSLEY to take up this measure to work with me and have a markup this work period.

I very much look forward to that being a very constructive path forward. If for any reason it is not, I will certainly be back. I will certainly be back directly on the floor in the context of the highway bill or some other significant piece of legislation because we can't allow this ridiculous political correctness to continue to create truly dangerous situations in communities all over the country.

Federal law requires local law enforcement to properly cooperate with Federal immigration enforcement. The problem is there are no teeth in that law, and that law is ignored and flaunted all the time by many jurisdictions which advertise and brag about their so-called sanctuary city policy and they will not cooperate with Federal immigration enforcement in any way. Really? A seven-time convicted felon, five times deported from the country. And once he was back in, still released onto the streets of San Francisco to commit murder? Really? That is really going to be your policy? If it is, is it really going to be our response that we do absolutely nothing about it?

I urge appropriate action. I urge us to come together around commonsense change and reform to end this all-too-pervasive practice. I look forward to starting that very constructive path forward in the Judiciary Committee with the markup of the Vitter bill, and I am already working with Senator GRASSLEY and his staff in this work period.

I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, I wish to say to the Senator of Louisiana two things:

First, I understand his passion on this issue. I have heard him speak about it. He talked to us last week about how best to express that on the Senate floor. There are a number of Senators who share his view on that. He is a member of the Judiciary Committee. We will have an opportunity to deal with it when the committee does work next week.

Second, I would like to say to him through the Chair that I greatly appreciate the way he has handled this. He not only gave us advance notice of his interest in this amendment last week, he has worked in the Judiciary Committee to find a way to move ahead on his interest without interfering with the progress of our bill to fix No Child Left Behind. I am not surprised by that because he has made a major contribution to the bill to fix No Child Left Behind. Specifically, we have adopted his language or some of his language that would end the common core mandate and stop Washington, DC, from telling Louisiana, Arizona, Tennessee, and Washington State what their academic standards have to be. If a State wants to have an academic standard, it can have it; if it doesn't want it, it doesn't have to have that particular standard.

The fact that the Senator has been willing to say that this is a very important issue and that he will work with Senator GRASSLEY in the Judiciary Committee and pursue it there leaves us free to move ahead on fixing No Child Left Behind, which is important to his State as well as to all other States. I greatly appreciate the way he has handled that and thank him for doing that.

We are still hoping to consider three or four amendments and perhaps have one rollcall vote before lunch, but we will know more about that in the next few minutes.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mrs. MURRAY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. MURRAY. Mr. President, as we continue to debate this bipartisan bill to fix the badly broken No Child Left Behind law, I want to take a step back to lay out why this is so important.

First of all, the idea of a strong public education for all children is part of who we are as a nation. It is sewn into the fabric of America.

Providing quality education is also an economic imperative. When all of

our students have the chance to learn, we strengthen our future workforce, and that helps our country grow stronger. And we empower the next generation of Americans to lead the world. Education is like insurance for our Nation's future economic competitiveness in the years to come. It opens more opportunities for more students, and it helps our economy grow from the middle out, not the top down.

One of the best ways I believe we can strengthen our education system is by making sure more students start kindergarten ready to learn. As we work to fix No Child Left Behind, we also have the opportunity to expand access to high-quality early childhood education and set students on a path toward success.

I am very proud of the bipartisan early learning grants we secured in the base of this bill. I think we should continue to build on that bipartisan progress to make sure more students have access to high-quality early learning programs. That is exactly what Senator CASEY's amendment would do. I urge my colleagues to support it.

First of all, it is important to understand why early learning is essential. Learning begins at birth. Research suggests that before children set foot in kindergarten, they have already developed a foundation that will determine all of the learning, health, and behavior that follows. Early learning programs can strengthen that foundation so more students can start their K–12 education on strong footing.

Preschool programs can be especially important for students from low-income backgrounds. A child growing up in poverty will hear 30 million fewer words by her third birthday compared to a child from a more affluent family. That is a serious disadvantage. By the time she starts kindergarten, the deck will already be stacked against her and her future success.

Studies have confirmed both the short-term and long-term benefits of quality early learning. Children who attend preschool are less likely to repeat a grade. They are less likely to be placed in special education. They are less likely to drop out of school, depend on social safety net programs, or commit a crime. And they are more likely to go to college and earn higher wages. Research suggests we get back between $7 and $8 for every dollar we invest in high-quality preschool programs.

Simply put, early learning is one of the smartest investments we can make for our families, our children, and our country. But today just 14 percent of our 3-year-olds in America are enrolled in Federal- or State-funded preschool programs and 41 percent of 4-year-olds are enrolled.

If we are serious about closing education gaps in grades K through 12 and if we are truly committed to making sure all students have the chance to succeed, we have to invest in quality early education.

I was pleased that during the committee debate on this bill, we were able to pass a bipartisan amendment for early childhood education. I thank my colleague Senator ISAKSON for working with me to include that in the committee markup. Throughout this process, I have appreciated the way he has worked with me on a bipartisan basis to improve the legislation before us.

Our amendment, which is now part of the base bill we are considering, would create a grant program for States that want to improve early childhood education coordination, quality, and access. The program would target resources to low- and moderate-income families. States that want to serve children from birth to the time they enter kindergarten will be eligible. It will help support the work that States like my home State of Washington are already doing to make sure more of our youngest learners have access to preschool. These grants will help States improve the quality of their early childhood system and also expand access to high-quality early learning opportunities for more children.

While I am very proud of what we have achieved in this base bill on our early childhood education, this is not the last step we need to take to improve and expand access to high-quality preschool. The grants are a step in the right direction, but we need to significantly increase investments to ensure that every child in this country starts kindergarten ready to succeed.

My colleague, the senior Senator from Pennsylvania, offered an amendment that would expand access to high-quality preschool programs. It would provide Federal funding to every State that commits to improve access to high-quality learning opportunities for all of our low- and moderate-income 4-year-olds. For the States that already meet that goal, it will help them offer preschool to 3-year-olds. This amendment would support States that don't yet have the infrastructure needed to provide preschool to all low- and moderate-income kids. With preschool development grants, these States will be able to build up their early learning systems. This amendment also provides funding for early Head Start and childcare partnerships to improve the quality of childcare for infants and toddlers through age 3 and provide funding for early learning services for young children with disabilities. Finally, his amendment recognizes the importance of the Maternal, Infant, and Early Childhood Home Visiting Program, which I helped to create to deliver voluntary parent education and family support services to parents with young children.

I am glad to say this amendment will be fully paid for by closing a wasteful corporate tax loophole. Our Tax Code is riddled with a lot of wasteful loopholes and special interest carve-outs. Far too many of these tax breaks are skewed to benefit the wealthiest Americans and biggest corporations.

Today some of my Republican colleagues objected to bringing up his amendment solely because it would close one of those corporate tax loopholes. It is disappointing that they are choosing the biggest corporations over our youngest learners.

I urge our Senate to consider this amendment. I support it because I believe investing in our youngest learners is so important for our children and their families, and it is one of the smartest investments we can make so students can start kindergarten ready to learn and succeed later in life.

I don't believe this is a partisan issue. When I talk to sheriffs in my State, they tell me the young people they bring into the police station might have chosen a better path in life had they had a stronger start in school. That is why law enforcement officials across the country want Congress to expand early learning.

Military leaders have stressed the importance of early learning investments. In fact, at a Senate hearing last year, Air Force Brig. Gen. Douglas Pierce, Retired, said: ''How we prepare our youngest kids to learn and succeed has a profound impact on our military readiness.''

Business leaders have called on Congress to support preschool programs. Why? Because they need the students of today to be able to create and take on the jobs of the 21st-century global economy.

Lawmakers from red States and blue States alike see early learning as a wise investment. Alabama, Kansas, Michigan—States with Republican Governors and Republican-controlled legislatures—have recently made stronger investments in early learning.

It is now time that the U.S. Senate catch up with what State lawmakers, business leaders, law enforcement officials, and military leaders recognize. We need to invest in early childhood education so all of our students can start school ready to learn.

The importance of early childhood education is something I have witnessed firsthand. Before I ever thought about running for office, I taught preschool in a small community in my home State of Washington. I remember that the first day with new students would always start the same way: Some kids would not even know how to hold a pencil or turn a page in a book. But over the first few months, they catch up; they learn how. They learned how to listen at story time. They learned how to line up for recess. By the time they left for kindergarten, they had basic skills so they could tackle a full curriculum in school. I have seen the kind of transformation early learning can inspire in a child.

If we are serious about strengthening our education system, we have to make sure more children have the chance to get a strong start in preschool. In reauthorizing this Education bill, we have the chance to help more students start kindergarten ready to learn.

With the amendment Senator CASEY offers, we have the opportunity to set

kids on the path toward success not just in grade school but into adulthood. We have the chance to fortify our economic competitiveness for years to come.

I urge my colleagues to support his amendment, to support this bill that already contains bipartisan early learning grants, and then take a step further and support the Casey amendment.

I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, I would say to the Senator that we are hoping to be able to lock in some amendments, but we are not quite ready yet. So what I might do is ask him to yield during his speech so that we can do that. I would say to the Senator through the Chair that we look forward to his remarks.

The PRESIDING OFFICER. The Senator from Hawaii.

Mr. SCHATZ. Mr. President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

AMERICAN WORKERS AND OVERTIME PAY

Mr. SCHATZ. Mr. President, I want to join my colleagues in voicing my support for President Obama's proposal to extend overtime benefits to nearly 5 million people across the country. These new rules will significantly enhance family budgets and add over $1.2 billion nationwide to workers' pockets. Once implemented, the proposal would more than double the salary threshold for overtime eligibility from the current level of $455 per week to $970 a week next year. That means employees earning an annual salary of around $50,000 or less will automatically become eligible for overtime pay. Today, the annual salary threshold for earning overtime pay is around $24,000. That is well below the poverty level for a family of four, particularly so for families in Hawaii.

The overtime salary threshold is long overdue for an update. Since 1975, it has been updated only once. Forty years ago, nearly two in three employees benefited from overtime pay—two in three. Today, it is one in nine.

I appreciate the priority this administration and especially Secretary Perez have placed on work and family issues, policies that directly impact the lives of average Americans.

According to the Department of Labor, approximately 20,000 workers in Hawaii would become eligible for overtime pay with this rule change.

By increasing the overtime salary threshold, current employees would be able to earn more money and employers could hire more workers, creating more jobs for our economy.

Housing, transportation, and food costs in Hawaii have made Hawaii one of the most expensive places to live in the country. The high cost of living requires a large percentage of people in Hawaii to work more than one job. The new overtime rules could allow workers to make a liveable wage with one job. If a worker is able to live without a need for a second or third job, it creates more employment opportunities for individuals struggling with unemployment or underemployment to find work.

The potential change in overtime rules can offer more than financial benefit to Americans. If a business does not want to pay overtime, the employees' hours would be limited to 40 hours a week. Since they are salaried and not paid by the hour, they would have more time off with no loss of pay. This would allow individuals to better balance their work and family obligations and give them the opportunity to spend more time with their family, a chance to volunteer in their community, or perhaps further their education.

The new rules will be subject to a 60-day public comment period. I encourage my constituents from Hawaii to let their voice be heard.

This change in overtime rules is appropriate and will help to lift our national and state economy, offer families more choices, and foster greater fairness in the workplace.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. ALEXANDER. For the information of Senators, I am about to ask for unanimous consent—which I expect to receive—to have two rollcall votes and two voice votes before lunch. So I now will do that.

I ask unanimous consent that at 12:10 p.m. the Senate vote in relation to the following amendments: Scott No. 2132, Booker No. 2169, Portman No. 2137, Bennet No. 2159; further, that at 4 p.m. today the Senate vote in relation to the following amendments: Isakson No. 2194, Bennet No. 2210, Lee No. 2162, and Franken No. 2093; with no second-degree amendments in order to any of the amendments prior to the votes; that there be 2 minutes equally divided prior to each vote, with 4 minutes prior to the vote on the Franken amendment, and that all after the first vote be 10-minute votes; that the Scott and Franken amendments be subject to a 60-affirmative-vote threshold for adoption and that it be in order to call up any amendments in the list not currently pending.

The PRESIDING OFFICER. Without objection, it is so ordered.

AMENDMENTS NOS. 2169, 2159, AND 2210 TO AMENDMENT NO. 2089

Mr. BENNET. Mr. President, I ask to set aside the pending amendment and call up the following amendments en bloc: on behalf of Senator BOOKER, amendment No. 2169; Bennet amendment No. 2159; and Bennet amendment No. 2210.

The PRESIDING OFFICER. The clerk will report the amendments by number.

The senior assistant legislative clerk read as follows:

The Senator from Colorado [Mr. BENNET] proposes amendments numbered 2169, 2159, and 2210 to amendment No. 2089.

The amendments are as follows:

AMENDMENT NO. 2169

(Purpose: To require a State's report card to include information on the graduation rates of homeless children and children in foster care)

On page 76, line 13, insert ''and for purposes of subclause (II), homeless status and status as a child in foster care,'' after ''(b)(3)(A),''.

AMENDMENT NO. 2159

(Purpose: To amend title IV regarding family engagement in education programs)

(The amendment is printed in the RECORD of July 8, 2015, under ''Text of Amendments.'')

AMENDMENT NO. 2210

(Purpose: To require States to establish a limit on the aggregate amount of time spent on assessments)

On page 52, between lines 9 and 10, insert the following:

''(L) LIMITATION ON ASSESSMENT TIME.—

''(i) IN GENERAL.—As a condition of receiving an allocation under this part for any fiscal year, each State shall—

''(I) set a limit on the aggregate amount of time devoted to the administration of assessments (including assessments adopted pursuant to this subsection, other assessments required by the State, and assessments required districtwide by the local educational agency) for each grade, expressed as a percentage of annual instructional hours; and

''(II) ensure that each local educational agency in the State will notify the parents of each student attending any school in the local educational agency, on an annual basis, whenever the limitation described in subclause (I) is exceeded.

''(ii) CHILDREN WITH DISABILITIES AND ENGLISH LEARNERS.—Nothing in clause (i) shall be construed to supersede the requirements of Federal law relating to assessments that apply specifically to children with disabilities or English learners.

AMENDMENT NO. 2137 TO AMENDMENT NO. 2089

Mr. ALEXANDER. Mr. President, I call up amendment No. 2137.

The PRESIDING OFFICER. The clerk will report.

The senior assistant legislative clerk read as follows:

The Senator from Tennessee [Mr. ALEXANDER], for Mr. PORTMAN, proposes an amendment numbered 2137 to amendment No. 2089.

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To provide for early college high school and dual or concurrent enrollment opportunities)

On page 69, between lines 16 and 17, insert the following:

''(N) how the State educational agency will demonstrate a coordinated plan to

seamlessly transition students from secondary school into postsecondary education or careers without remediation, including a description of the specific transition activities that the State educational agency will carry out, such as providing students with access to early college high school or dual or concurrent enrollment opportunities;

On page 106, line 3, insert ''early college high school or'' after ''access to''.

On page 314, between lines 21 and 22, insert the following:

''(C) providing teachers, principals, and other school leaders with professional development activities that enhance or enable the provision of postsecondary coursework through dual or concurrent enrollment and early college high school settings across a local educational agency.

Mr. ALEXANDER. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

VOTE ON AMENDMENT NO. 2132

Mr. ALEXANDER. Mr. President, I yield back time on the first amendment.

The PRESIDING OFFICER. All time is yielded back.

The question is on agreeing to the Scott amendment No. 2132.

Mr. ALEXANDER. I ask for the yeas and nays.

The PRESIDING OFFICER (Mr. CRUZ). Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The bill clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from South Carolina (Mr. GRAHAM) and the Senator from Florida (Mr. RUBIO).

Mr. DURBIN. I announce that the Senator from Delaware (Mr. CARPER) and the Senator from Florida (Mr. NELSON) are necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 45, nays 51, as follows:

[Rollcall Vote No. 232 Leg.]

YEAS—45

Alexander	Ernst	Perdue
Ayotte	Flake	Portman
Barrasso	Gardner	Risch
Boozman	Grassley	Roberts
Burr	Hatch	Rounds
Cassidy	Heller	Sasse
Coats	Hoeven	Scott
Cochran	Inhofe	Sessions
Corker	Isakson	Shelby
Cornyn	Johnson	Sullivan
Cotton	Lankford	Thune
Crapo	Lee	Tillis
Cruz	McCain	Toomey
Daines	McConnell	Vitter
Enzi	Paul	Wicker

NAYS—51

Baldwin	Boxer	Casey
Bennet	Brown	Collins
Blumenthal	Cantwell	Coons
Blunt	Capito	Donnelly
Booker	Cardin	Durbin
Feinstein	Manchin	Reid
Fischer	Markey	Sanders
Franken	McCaskill	Schatz
Gillibrand	Menendez	Schumer
Heinrich	Merkley	Shaheen
Heitkamp	Mikulski	Stabenow
Hirono	Moran	Tester
Kaine	Murkowski	Udall
King	Murphy	Warner
Kirk	Murray	Warren
Klobuchar	Peters	Whitehouse
Leahy	Reed	Wyden

NOT VOTING—4

Carper	Nelson
Graham	Rubio

The PRESIDING OFFICER. Under the previous order requiring 60 votes for the adoption of this amendment, the amendment is rejected.

AMENDMENT NO. 2169

The PRESIDING OFFICER. There is now 2 minutes of debate prior to a vote on the Booker amendment No. 2169.

Mr. BOOKER. Mr. President, I rise today in support of my amendment, which I am offering with Senator INHOFE, Senator GRASSLEY, Senator AYOTTE, and Senator WYDEN.

The homeless population is at an all-time high in our country, with 1 in 45 children—or 1.6 million—homeless in the United States every year. Homeless students experience a significant educational disruption, and only about 11.4 percent are proficient in math and 14.6 percent proficient in reading compared to their peers. Homeless students are almost twice as likely as other students to have to repeat a grade, be expelled, get suspended, or drop out of high school.

There are more than half a million foster children in the United States, and foster children also have challenges and are not likely to be on grade level, more likely to change schools during the academic year, and more likely to drop out of high school.

Sixty-seven percent of inmates in our State prisons are high school dropouts, and this disproportionate share comes from these backgrounds.

The amendment is simple. It adds a simple reporting of the graduation rates for homeless and foster youth to the State and school district report cards so we can begin to focus in on this important population we should not leave behind. It provides——

The PRESIDING OFFICER. The Senator's time has expired.

Mr. BOOKER. Mr. President, I ask unanimous consent to speak for an additional 18 seconds.

The PRESIDING OFFICER. Without objection.

Mr. BOOKER. This amendment provides essential information to educators, policymakers, and the public toward improving the educational outcomes for these students.

I thank the Presiding Officer and yield back.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, I commend the Senator from New Jersey for his passion for education but suggest that I am going to vote no because this amendment is premature. It is another burden on States. It adds reporting requirements instead of reducing reporting requirements. It adds 2 new subgroups for every school in the country, and there are 100,000 of those. These populations are difficult to track due to the transient nature of the populations. For foster youth, school districts are poorly equipped to do it. Child welfare agencies would probably do better.

Now what we should be doing is recognizing that we do not need a national school board. This is a good argument, but it should be made to the local school board or to the State school board. We do not need another Federal mandate on 100,000 local schools. That is exactly the wrong direction for us to go.

I urge a ''no'' vote.

The PRESIDING OFFICER. The question is on agreeing to the amendment.

Mrs. MURRAY. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There is a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from South Carolina (Mr. GRAHAM) and the Senator from Florida (Mr. RUBIO).

Mr. DURBIN. I announce that the Senator from Delaware (Mr. CARPER) and the Senator from Florida (Mr. NELSON) are necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 56, nays 40, as follows:

[Rollcall Vote No. 233 Leg.]

YEAS—56

Ayotte	Grassley	Murkowski
Baldwin	Hatch	Murphy
Bennet	Heinrich	Murray
Blumenthal	Heitkamp	Peters
Booker	Heller	Portman
Boxer	Hirono	Reed
Brown	Inhofe	Reid
Cantwell	Kaine	Sanders
Capito	King	Schatz
Cardin	Kirk	Schumer
Casey	Klobuchar	Shaheen
Collins	Lankford	Stabenow
Coons	Leahy	Tester
Donnelly	Manchin	Udall
Durbin	Markey	Warner
Feinstein	McCaskill	Warren
Franken	Menendez	Whitehouse
Gardner	Merkley	Wyden
Gillibrand	Mikulski	

NAYS—40

Alexander	Enzi	Roberts
Barrasso	Ernst	Rounds
Blunt	Fischer	Sasse
Boozman	Flake	Scott
Burr	Hoeven	Sessions
Cassidy	Isakson	Shelby
Coats	Johnson	Sullivan
Cochran	Lee	Thune
Corker	McCain	Tillis
Cornyn	McConnell	Toomey
Cotton	Moran	Vitter
Crapo	Paul	Wicker
Cruz	Perdue	
Daines	Risch	

NOT VOTING—4

Carper	Nelson
Graham	Rubio

The amendment (No. 2169) was agreed to.

AMENDMENT NO. 2137

The PRESIDING OFFICER. There is now 2 minutes of debate prior to a vote on the Portman amendment No. 2137.

The Senator from Ohio.

Mr. PORTMAN. Mr. President, amendment No. 2137 is about early college high school. This is a program that is working incredibly well around the country, both to get young people through high school and to increase graduation rates, which is part of the objective of this legislation, and also to get them not just into college but to stay in college. All of the experience from this program indicates it is working.

I had a recent opportunity to visit the Dayton Early College High School, the academy, and 100 percent of their graduates are from a low-income area. Almost every single one of the students were either the first generation to go to college or into the military. Their retention rate in college is incredibly impressive. This amendment encourages more of that.

Early college high schools are working. It is part of the reform effort that is being undertaken in my State and others, and I strongly encourage a ''yes'' vote.

The PRESIDING OFFICER. The Senator from Delaware.

Mr. COONS. Mr. President, I am honored to join with the Senator from Ohio in cosponsoring this amendment. I, too, have recently visited an early college high school in my home State, which Delaware State College, our historically Black college, has established. It has shown real promise in terms of the possibilities for college access, college affordability, and college completion.

I urge an ''aye'' vote from my colleagues.

The PRESIDING OFFICER. Under the previous order, the question is on agreeing to amendment No. 2137.

The amendment (No. 2137) was agreed to.

VOTE ON AMENDMENT NO. 2159

The PRESIDING OFFICER. There is now 2 minutes of debate prior to a vote on Bennet amendment No. 2159.

Mrs. MURRAY. Mr. President, I yield back our time.

Mr. ALEXANDER. Mr. President, I yield back.

The PRESIDING OFFICER. All time is yielded back.

Under the previous order, the question is on agreeing to amendment No. 2159.

The amendment (No. 2159) was agreed to.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, that concludes the votes for now. We are moving along very well. We expect to have votes at 4 p.m. today on amendments by Senators ISAKSON, BENNET, LEE, and FRANKEN. We may have other votes.

Senator MURRAY and I have a number of amendments that Senators have suggested to us. We would like to move through them today and tomorrow.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 1:05 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. PORTMAN).

EVERY CHILD ACHIEVES ACT OF 2015—Continued

The PRESIDING OFFICER. The Senator from Maryland.

Ms. MIKULSKI. Mr. President, I am here today to stand up for Maryland and for all the students who could lose resources under an amendment offered by the Senator from North Carolina, Mr. BURR.

There is much I admire about Senator BURR, but his current amendment would cause Maryland tremendous problems. The Burr amendment would punish States that make significant investments in those students who need extra help. This amendment would not do one thing to lift kids out of poverty or to close the achievement gap. In fact, it makes it worse.

The so-called hold-harmless provision that is in the amendment does not hold Maryland harmless. It does not prevent any of the Maryland school districts from losing money. Under the Burr amendment, Maryland would lose $40 million. Let me repeat. Under the Burr amendment, Maryland would lose $40 million.

Marylanders know that I have always been on the side of students, teachers, those who run programs, and the taxpayers who pay for them. We in America believe in public education, where one generation is willing to pay taxes to fund the education of the next generation.

Title I in the Elementary and Secondary Education Act was created to lift children up and to close the education gap.

Let me tell you what the Burr amendment would do. Right now, every county and Baltimore City would lose money. There are 24 school districts in Maryland, with 400,000 public school students. Mr. President, 170,000 students—or 45 percent of that population—are eligible for something called title I funding. If the Burr amendment passes, every single one of those boys and girls would lose academic resources they currently get. Let me give you the numbers: Baltimore City, 12 percent; Baltimore County, 23 percent; Garrett County in western Maryland, 20 percent; Somerset County on the Eastern Shore, 15 percent.

From my students in urban schools in the Baltimore/Washington corridor to my rural schools in western Maryland and the Eastern Shore, every single one loses resources, and if you lose resources, you lose opportunity. If we believe in an opportunity ladder, then do not cut off the rungs. It is not the schools that lose, it is the kids who lose. They lose resources and they lose opportunities.

I have heard from school superintendents across Maryland. They tell me the same thing over and over: Do not cut the money for title I.

Dr. Henry Wagner, the superintendent in Dorchester County over on the Eastern Shore, says that the rural schools on the Eastern Shore would be impacted and that he would have to eliminate teaching positions, reduce reading and math services. And the very services to bring in parents would go by the wayside.

Over in Washington County, the gateway to the Eastern Shore, Dr. Clayton Wilcox, the superintendent of Washington County schools, describes how a rural school would be harmed. In his letter in which he describes title I, he said: Senator MIKULSKI, title I resources ''have allowed us to create hope.'' He said: ''They have enabled us to provide extra instructional support in literacy and math—subjects that open up windows and doors often shut to [these boys and girls].'' Without title I dollars, Washington County would have to cut this instructional support in literacy and math. He writes: ''Senator BURR's amendment is bad for the children and young people of Maryland.'' It is bad for all of the children in Maryland.

Baltimore City, where we certainly have had our share of problems lately, would be deeply cut. Right now, Baltimore City receives $50 million. It will lose 10 percent of that funding. Mr. President, $5 million in Baltimore right now sure means a lot. If we cut that money, we are going to shrink pre-K access. The afterschool and summer learning programs will go by the wayside. If they go by the wayside, you will not only have kids with time on their hands, but they will fall behind in reading, in the very things they had gained over the school year. And the professional development for teachers, especially those new teachers we were bringing in, will be eliminated.

I am so proud that Maryland allocates more of its title I dollars to schools that need it the most. For example, 85 percent of students in Baltimore—those kids live in poverty. It has the lowest wealth per pupil in Maryland. So the State allocates more of its resources in this area.

Maryland actually gets penalized under the Burr amendment for putting money where it will do the most good, and, in fact, Maryland gets penalized for making education a priority. Well, I thought we believed in State determination. If a State determines it is going to make a significant investment

in public education and make the funding of the closing of the achievement gap a priority, why punish it for States that cut taxes, cut opportunity? And now we want to change the formula to reward their behavior when we should be rewarding the good behavior of States like my own.

This amendment is bad for Maryland, it is bad for other States, and most of all it is bad for children. Mr. President, 58 percent of the students who benefit from title I funding will get fewer resources, less opportunity.

Title I certainly does need to be reformed and refreshed. Senators MURRAY and ALEXANDER should be congratulated in the way they led the committee through a civil, cogent process. But we cannot make changes based on the needs of a handful of States that essentially have penalized their own children.

The last time the Congress reauthorized the Elementary and Secondary Education Act was in 2001. During that reauthorization, Congress clearly stated that it shall be a national priority that title I should be a priority. In that bill, Congress committed to steadily increase funding for title I. But Congress never fully funded the program. It never provided the adequate funds.

In the major effort that was done just 2 weeks ago within the appropriations bill of Labor, Health and Human Services, and Education, Senator MURRAY offered an amendment to increase title I by $1 billion. Every single Republican on the committee voted against it.

We cannot keep doing this. We need to fully fund title I. This is not about statistics. This is not about numbers. This is about human beings. The genius of America is that we believe—we believe—in the education of our people, that we truly believe that the way we lift all boats in our country is to have a public education system that works well and is funded adequately.

We have had a formula that has worked for title I because it rewards those States that are willing to make public education and the next generation a priority. Let's keep the formula we have. Let's reform where we need to. And let's make sure that our focus is not on bottom lines but that more children get to the head of the class.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. DONNELLY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. DONNELLY. Mr. President, early childhood learning is critical to building a strong foundation for each child's welfare and success. It is linked to better outcomes in school, such as high school and college completion rates, higher wages, and better social and emotional skills.

Research shows that for every dollar spent, the benefits of early childhood education to society are $8.60. Around half of that reflects increased earnings for children when they grow up. Early childhood education can also lower involvement with the criminal justice system and reduce the need for remedial education.

Clearly, early childhood education such as pre-K is crucial to preparing each generation for the academic and professional challenges ahead. There is no doubt that families play a critical role in achieving academic success. When families are involved in children's learning at a young age, it better prepares them to succeed in school. Research shows that when parents and families are involved in their children's education, children are more likely to succeed. For example, children whose parents read to them at home recognize letters and write their names sooner than those whose parents do not.

It is because of the importance of early childhood education and parent and family involvement in that early education that I worked on language that is now included in the Every Child Achieves Act.

I thank my colleagues, Chairman ALEXANDER and Ranking Member MURRAY, for working with me to include language allowing funding for programs that promote parent and family engagement in the new early learning and improvement grants as a part of the Every Child Achieves Act. This effort was also supported by the National PTA, the National Center for Families Learning, the National Education Association, and the American Federation of Teachers. The competitive early learning alignment and improvement grants would provide funding to States that propose improvements to coordination, quality, and access for early childhood education. The language I worked on would allow States to use funding from the early learning alignment and improvement grant to develop, implement or coordinate programs determined by the State to increase parent and family involvement; encourage ongoing communication between children, parents, and families, and early childhood educators; and promote active participation of parents, families, and communities.

I thank my colleagues again for working with me to get this included in a substitute amendment because parent and family engagement in those early years is critical to each student's success as well as to our country's future.

I am committed to working with partners in Indiana to ensure that Hoosier children can take advantage of these important programs, and I stand ready to continue working with my friends on both sides of the aisle to further invest in early childhood education so we can provide brighter futures for more Hoosiers and additional American children.

Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. BENNET. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. BENNET. Thank you, Mr. President.

I am obviously a Senator from Colorado, but as I rise, I am speaking more as the father of three daughters in the Denver Public Schools and a former superintendent of schools.

It was a great privilege of mine, probably the privilege of a lifetime, to have been the superintendent of Denver Public Schools for almost 5 years. I can't begin to express, as I am standing on this floor, my gratitude for what I have learned from teachers, principals, and parents who were sending their kids to what was then a school district that had seen declining enrollment for many years. It is now the fastest growing urban school district in America. Of course, the students themselves day after day inspired all the adults around them to want to help deliver a high-quality education.

But I also was struck when I was superintendent with the barriers that we have accepted as a country and as a society that we would never accept for our own children. We would never accept them for our own children. The first barrier I talked about on the floor before is the fact that if you are born poor in this country, you show up to kindergarten having heard 30 million fewer words than your more affluent peers. This is an enormous barrier we haven't addressed as a country, and there are many other challenges up to and including the fact that we have made it harder and harder as years go by for people to afford a college education without bankrupting themselves or shackling themselves to a mountain of debt.

In the face of all that, we have been very slow to change. We have been very slow at every level to change the way we deliver K–12 education or early childhood education through higher education. Let me just give you one example that this bill addresses today, in part. We have done almost nothing in this country to change the way we attract teachers, recruit teachers, inspire teachers, train teachers, reward teachers, since we had a labor market that discriminated against women and said the only job you can have is being a teacher or being a nurse. Those are your two jobs. So why don't you come to the Denver Public Schools and teach Julius Caesar every year for 30 years of your life for a really low compensation. But if you stick with us for 30 years—which you would not do anymore—we will give you a pension worth three times that of Social Security. That sounded like a good deal because you

were likely to outlive your spouse, you weren't paid a lot during your lifetime, and you get the pension at the end. We have done nothing to change that. That is our offer.

I can tell you again—not speaking as a politician but speaking as a school superintendent, speaking as somebody who has never done anything but substitute teach. I have never actually taught as a traditional teacher. I substitute taught from time to time. That is the hardest job a person can have, especially when you are teaching in a high poverty school. It is much harder, I can say without any doubt, than any job any Member of the U.S. Senate has. Yet we have an offer that belongs to an era that no longer exists.

In all honesty, we used to subsidize the public education system in this country through that discrimination in our labor, our approach to labor, because even though the deal wasn't a good deal, we might have been able to get the very best British literature student in her class to commit to be a teacher of British literature because she had no other options except for perhaps becoming a nurse. Fortunately, that hasn't been true in this country for 30 or 40 years, but we haven't updated the offer, and we haven't changed the way we train our teachers once they get there.

That is why this bill is important in some parts because it makes some important steps in the right direction. We are not going to teach children from Washington. Our kids who today are in systems all across this country in their schools and classrooms are never going to remember who here worked on the new version of the Elementary and Secondary Education Act. That is not going to be of concern to them, but hopefully what they will remember is a third grade teacher who made a huge difference for them, a fourth grade teacher who made a huge difference for them, a college adviser who took a special interest and made sure somebody who didn't know that college was for them was for them.

Our job, it seems to me, is to do what little we can to try to help put people at home in a position to do that job. That is why it is critical in this bill that we raise the quality of professional development by encouraging ongoing training and education that actually tracks the specific strengths and areas of growth for each individual teacher, instead of group workshops that we know are ineffective. For instance, teachers who need help in classroom management will receive training in that specific area, if a school district or a school would want to do that.

We promote collaboration and the use of common planning time, so that teachers can work together in groups as teams, each of whom may have a different view of each kid but together can figure out how to get each child in the school to their potential. One of the things I heard all of the time from the teachers that I worked with in Denver was that they felt that they faced a binary choice when it came to their profession. Yet they loved to teach. They loved being with the kids. But the only other option besides teaching was becoming a principal or going to work in the central office. We worked very hard in that school district and across the State to think differently about career ladders for teachers, to give more opportunity and options for people to give back, and to be able to help perfect their own craft as teachers by learning from their peers and also serving as master teachers.

This bill, for the first time, allows funding to be used for hybrid roles that allow teachers to serve as mentors or academic coaches while remaining in the classroom. It creates options, as I said. It encourages teacher-led and colleague-to-colleague professional development among teachers. I may have learned it the hard way, but I know that nobody knows how best to improve instruction more than our teachers do.

But the struggle is how to figure out how to break out of the old roles to give people the opportunity to be able to have the chance to mentor their colleagues and also, significantly, have the time in the school day and in the school year, when the stress of other business makes it hard to do, to create the time for people to be able to work together for our kids.

In this bill we recognize the work that is happening in cities such as Chicago, Denver, and Boston, around teacher residency programs, an alternative approach to bringing teachers into the profession, not relying anymore solely on higher education, understanding that maybe what we need is content matter experts who can learn how to teach by being latched to master teachers in a school district such as the Denver public schools, who bring their content, their substance from their undergraduate degree but can acquire a masters as they are learning on the job in the classroom, as in a medical residency program. We allow funding to be used for that. These programs can provide critical clinical experience to teacher candidates.

There is funding to train and place effective principals to lead high-need and low-performing schools. You cannot have a good school without a good principal. Ask anyone. You cannot have a good working environment for a teacher without a good principal. It is impossible. We skipped over that in our efforts of implementation across the country. When I had the good fortune to be the superintendent of Denver Public Schools, my chief academic officer was a guy named Jaime Aquino, a gifted school leader.

He and I would start every single day for 2 hours with a group of 15 principals in one of their schools. It was not about broken boilers, and it was not about who got left on the bus. It was about teaching and learning in Denver Public Schools.

We would do the same thing for 3 weeks, and then we would start over again, which meant that I got to see every principal in my school district once every 3 weeks, and they got to see each other. They came to understand that they had a reciprocal obligation to each other as we thought about the obligation we had to the kids in Denver. I will give you an example of one of the sessions. Jaime would bring a 1½-page piece of student writings to these meetings, because it is really important for teachers to look and analyze student work to be able to differentiate their instruction to meet the individual needs of kids in the classroom.

It is easy to say that. It is easy to have the fly-by professional development where a bunch of people are sleeping in auditorium listening to really boring stuff. It is another thing to actually get people to want to do the work. At the beginning it was hard. We would pass out that piece of student writing and you would hear sort of a crescendo as people were talking about it, and they would say: I cannot read this. I don't know what this says. This looks like a foreign language to me.

Then Jaime would say: Based on what you have read, what are Nancy's strengths as a writer?

She turned out to be a very typical fourth grader in our school district.

They would say: Well, she writes from left to right. She has a sense of story structure. She spells high-frequency words correctly.

Jaime would say: Well, why is that? He would say: Well, maybe she had a vocabulary test. He would say: Maybe she had a word wall, and she is using it to scaffold her instruction.

Over time, the principals saw what their role was as leaders and how reliant we were on them.

I can tell you firsthand that school leaders have a powerful affect dramatically improving the quality of teaching and raising student achievement, and we have skipped over them. This bill no longer skips over them.

We also update and improve the teacher incentive fund in this bill. We encourage districts to redesign their systems for recruiting, hiring, and placing teachers.

We incentivize districts to think about paying different teachers differently. In Denver, we don't have a monopoly on wisdom, but if you are working in a high-poverty school, you get paid more for that. It is harder to find you. It is a harder job. We recognize that. If you are teaching a subject for which it is hard to find people to teach, we pay a little more for that.

If you are driving student achievement or your colleagues are, we pay you a little more for that. Through this incentive fund, we promote school autonomy over budgeting, staffing, and other school-level decisions. We incentivize folks to change hiring schedules so high-need schools can hire

earlier in the year and select from the best and brightest teachers, instead of the reverse.

So we have done some good things here on teachers. It is one of the reasons why I am supporting this legislation. I want to thank Chairman ALEXANDER and Ranking Member MURRAY, who are both on the floor today, for their exceptional leadership in bringing this bill out of committee. The people who are watching this on television know that this body cannot seem to agree on anything these days. Because of their work, we were able to produce a bill that got unanimous support in the HELP Committee. Every single member of the committee supported it. Imagine that. Imagine that in this body.

You know what. There are no ringers on that committee either. That committee has the junior Senator from Kentucky on it, Mr. PAUL; it has the junior Senator from Vermont on it, Mr. SANDERS, and everybody in between. That is a rare case of unanimity among a very diverse set of Senators, which I think argues well for getting this bill through in the Senate and hopefully in the House.

I see my colleague is here. If I can just take 2 more minutes I want to mention a word or two about the title I formula. I have joined my friend from North Carolina in supporting an amendment to change the title I funding formula. The formula I think that we are trying to propose today is sensible and eliminates the overly complex and opaque formulas that we currently have. It creates one formula that is targeted and provides more funding for districts with higher concentrations of poverty.

I am extremely sensitive to the arguments that others have made, such as my friend from New York. I also agree that we need to invest significantly more in our kids. This formula change is good for my home State of Colorado. I think if you are a poor kid in Alamosa or Woodrow, CO, you deserve every chance to get a great education, including receiving an equitable share of Federal resources.

With that, I see my colleague from Utah is here. So I will relent and yield the floor and come back at a later time.

The PRESIDING OFFICER. The Senator from Utah.

AMENDMENT NO 2162 TO AMENDMENT NO. 2089

Mr. LEE. Mr. President, I ask to call up and make pending the Lee amendment No. 2162.

The PRESIDING OFFICER. The clerk will report the amendment.

The senior assistant legislative clerk read as follows:

The Senator from Utah [Mr. LEE] proposes an amendment numbered 2162 to amendment No. 2089.

Mr. LEE. Mr. President, I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To amend the Elementary and Secondary Education Act of 1965 relating to parental notification and opt-out of assessments)

On page 52, strike line 3 and all that follows through line 9 and insert the following:

''(K) PARENTAL NOTIFICATION AND OPT-OUT.—

''(i) NOTIFICATION.—Each State receiving funds under this part shall ensure that the parents of each child in the State who are scheduled to take an assessment described in this paragraph during the academic year are notified, at the beginning of that academic year, about any such assessment that their child is scheduled to take and the following information about each such assessment:

''(I) The dates when the assessment will take place.

''(II) The subject of the assessment.

''(III) Any additional information that the State believes will best inform parents regarding the assessment their child is scheduled to take.

''(ii) DELAYED OR CHANGED ASSESSMENT INFORMATION.—If any of the information described in clause (i) is not available at the beginning of the academic school year, or if the initial information provided at that time is changed, the State shall ensure that a subsequent notification is provided to parents not less than 14 days prior to the scheduled assessment, which shall include any new or changed information.

''(iii) OPT-OUT.—

''(I) IN GENERAL.—Notwithstanding the requirement described in section 1111(b)(3)(B)(vi), or any other provision of law, upon the request of the parent of a child made in accordance with subclause (II), and for any reason or no reason at all stated by the parent, a State shall allow the child to opt out of the assessments described in this paragraph. Such an opt-out, or any action related to that opt-out, may not be used by the Secretary, the State, any State or local agency, or any school leader or employee as the basis for any corrective action, penalty, or other consequence against the parent, the child, any school leader or employee, or the school.

''(II) FORM OF PARENTAL OPT-OUT REQUEST.—Unless a State has implemented an alternative process for parents to opt out of assessments as described in this subparagraph, a parent shall request to have their child opt out of an assessment by submitting such request to their child's school in writing.

''(iv) APPLICABILITY.—The requirements relating to notification and opt-out in this subparagraph shall only apply to federally mandated assessments. A State may implement separate requirements for notification and opt-out relating to State and locally mandated assessments.''.

On page 58, on line 21, after ''paragraph (2)'' insert ''(except that such 95 percent requirements shall exclude any student who, pursuant to paragraph (2)(K), opts out of an assessment)''.

Mr. LEE. Mr. President, I ask unanimous consent that Senator PAUL be added as a cosponsor to my amendment.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. LEE. Mr. President, parents and teachers all across America are frustrated by Washington, DC's heavy-handed, overly prescriptive approach to public education policy. I have heard from countless moms and dads in Utah who feel as though anonymous Federal Government officials, living and working 2,000 miles away, have a greater say in the education of their children than they do.

One of the most frustrating issues for parents is the amount of standardized tests that their children are required to take, particularly the tests that are designed and mandated by the Federal Government. It is not just the frequency of those tests that is frustrating. Too often parents do not know when these federally required assessments are going to take place, and they do not even find out until after the fact. It is important to recognize that this is not a partisan issue. The notion that parents should not be expected to forfeit all of their rights to the government, just because they enroll their children in the public school system, is not a Democratic idea nor is it a Republican idea. It is simply an American idea.

That is why several States, including States as distinct as California and Utah, have passed laws that allow parents to opt out of federally required tests. But there is a problem. Under current law, States with opt-out laws risk potentially losing Federal education dollars if a certain portion of parents decides opting out is best for their children, because schools are required to assess 95 percent of their students in order to—and as a condition to—receive Federal funds.

The bill before the Senate today, the Every Student Achieves Act, does not fix this problem. My amendment does. Here is how. My amendment would protect a State's Federal funding for elementary and secondary schools by removing the number of students who opt out of Federal tests from the number of non-assessed students. In other words, the number of students opting out of federally required tests could not threaten a State's eligibility to receive Federal funds.

My amendment would also give parents more information about tests mandated by the Federal Government, ensuring that parents are notified of any federally required assessment that children are scheduled to take. It would allow parents to opt out their children from such assessments. It is important to note that this amendment would have no effect on assessments that are required by the State, local education agency, school or teachers. Nor does it prohibit a State from expanding their parental opt-out laws to apply to a broader set of assessments if they choose to do so.

This amendment would not jeopardize a State law that provides parents the opportunity to opt out their children and it would allow the State to continue to use its own process that allows parents to take such action.

Whether you believe the bill before the Senate today strikes the appropriate balance between Federal and State control, I think all of my colleagues can support this amendment. I believe all of us can agree that parents

should have the final say in their child's education and should have access to information about the testing that is taking place before that testing takes place, and they should be able to decide whether their child will be part of that testing.

I urge all of my colleagues to support this amendment.

The PRESIDING OFFICER (Mr. LANKFORD). The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, I thank the Senator from Utah for his comments. We will be voting on the Senator's amendment this afternoon at 4 o'clock, and I want to just make a couple of comments about it.

I have a little different view of what his proposal is. He talks about our being opposed to Washington's heavyhanded approach. The way I understand his proposal, it is even more of a heavyhanded approach than the bill we are voting on today, and this is why.

His proposal is that Washington tells Utah or Oklahoma or Tennessee or Washington State what to do about whether parents may opt out of these federally required tests. Now, they are not federally designed. Utah has its test. Tennessee has its test. They are designed by the States, but they are required. And there would be—since 2001, and this continues that—for example, two tests for a third grader. The testimony would be that it might take 2 hours for each test, so that would be 2 hours for a math test, 2 hours for a science test; then again in the fourth grade, 2 hours for a math test, 2 hours for a science test.

I don't think anyone believes those are a great burden on students, it is all the other tests that seem to be required as schools prepared for the tests I just described. What we have done in this legislation is restore to States the power to decide how much these standardized tests count.

So the legislation Senator MURRAY and I have proposed—and that came out of our committee unanimously—for the first time authorizes States to decide whether parents may opt out, may allow their children to opt out of these tests or not. Let me say that again. The legislation that Senators will be voting on, hopefully tomorrow for final passage, allows States to decide for themselves whether parents may vote to opt out of the No Child Left Behind tests.

The proposal from the Senator from Utah is a Washington mandate that says to States that Washington will decide that.

So our proposal is local control. His, the way I hear it, is Washington knows best. That is like Common Core.

The proposal that is on the floor for a vote tomorrow says Washington may not mandate to any of our States what its academic standards should be. That ends the Washington Common Core mandate. In the same bill, why should we put a Washington mandate about whether you can opt out of your test? Why don't we allow States to make that decision?

So I say to my Republican friends, especially, do we believe in local control only when we agree with the local policy? I don't think so.

The great economist Art Laffer likes to say: States have a right to be right, and States have a right to be wrong.

I have a different view. I am going to vote no on the amendment of the Senator from Utah because it takes away from States the right to decide whether and how to use the Federal tests and whether parents may opt out.

Why is that a problem? Well, in the following States, States use these tests as part of their State accountability system. They don't have to do it, but they do use it. I am told by the State of Tennessee that if we were to adopt the Utah proposal Federal mandate, that the State would have to come up with a different accountability system.

So which States on their own have decided to use these tests as part of their State accountability system? Florida has, Georgia, Idaho, Indiana, Kentucky, Louisiana, North Carolina, Ohio, Oklahoma, Pennsylvania, Tennessee, and Texas.

So I urge my colleagues to vote for the Alexander-Murray proposal because it reverses the trend toward a national school board and specifically allows States to decide whether States may opt out of tests while the amendment goes the other way. It is a Washington mandate that takes away from States the ability to make that decision.

The PRESIDING OFFICER. The Senator from Georgia.

AMENDMENT NO. 2194 TO AMENDMENT NO. 2089

Mr. ISAKSON. Mr. President, I ask to set aside the pending amendment and call up my Isakson amendment No. 2194.

The PRESIDING OFFICER. The clerk will report.

The bill clerk read as follows:

The Senator from Georgia [Mr. ISAKSON] proposes an amendment numbered 2194 to amendment No. 2089.

Mr. ISAKSON. Mr. President, I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To require local educational agencies to inform parents of any State or local educational agency policy, procedure, or parental right regarding student participation in any mandated assessments for that school year)

On page 110, strike lines 7 through 17 and insert the following:

''(1) INFORMATION FOR PARENTS .—

''(A) IN GENERAL.—At the beginning of each school year, a local educational agency that receives funds under this part shall notify the parents of each student attending any school receiving funds under this part that the parents may request, and the agency will provide the parents on request (and in a timely manner), information regarding any State or local educational agency policy, procedure, or parental right regarding student participation in any mandated assessments for that school year, in addition to information regarding the professional qualifications of the student's classroom teachers, including at a minimum, the following:

Mr. ISAKSON. Mr. President, I begin my remarks by commending Ranking Member MURRAY and Chairman ALEXANDER on a tremendous due diligence effort to see to it that we finally answered the question that States have been asking for 7 years; that is, when are you going to reauthorize the Elementary and Secondary Education Act? When are you going to end the day when 82 percent of all educational public school systems have to get waivers from Washington to teach children the way they want to teach them? When are you going to see to it that money can flow to the States and flow to the student from those States, not everything flow from Washington to the student. It is about time we fixed the Elementary and Secondary Education Act.

In my lifetime, I have been in elected office for 38 years. I have been in every legislative body I can legally be elected to, and I have served on the Education Committee in the Georgia House, the Georgia Senate, the U.S. House, and the U.S. Senate. I don't know a lot about a lot of things, but I know a little bit about public education. In fact, in 1996, Zell Miller, whose seat I now hold in the Senate, called on me to take over the Georgia State Board of Education when Georgia had a major crisis. So I learned under fire.

I learned the following: Children rise to expectations, and in an absence of expectations, children sink. That is why gangs attract kids from broken families, because they seek some kind of recognition, and the gang gives it to them.

We need to make sure education gives them that recognition, that expectation, and that goal to reach higher and higher standards, but that happens closest to home, not in Washington, DC. It happens where the parents and the children are. The more opportunities parents have to engage with their children—the children see the expectations of their local students and their local citizens—the better off they will be, which is why in the committee I offered the amendment which is included in the body of the Alexander-Murray bill, which allows parents in States that approve it to opt out of any testing they want to opt out of—a parent's right to see to it they can opt out of a required test if the State allows them to do so.

Amendment No. 2194, which is before us now, makes sure that provision is in the section of the bill that calls for the parents' right to know. So every parent has the right to know whether the State allows an opt-out. It already lets them know what their child's teacher's qualifications are, what their level of achievement in school is, notice if their child is being taught by a teacher not meeting State standards, and rights as a parent of an English language learner.

The bill is specific in all of those areas, telling the parent: It is your right to know if we have an ESL Program. It is your right to know if we allow an opt-out, and if we do not allow an opt-out, it is your right as a citizen to go to the board of education and make sure we do offer one. In other words, we are opening the door for local control the way all of us planned on it being for years and for years and for years.

It is time we took the shackles off public education. The Washington weight is dragging it down. It is time our school systems no longer have to come to Washington for waivers and all those types of things, but instead we said—in the case of title I, our poorest kids and among those most in need of help, our IDEA kids, where the Federal Government has a role—besides those two areas, it is time for the local system to see to it they are meeting the needs of those kids, the parents know what the system is doing, and the parents have a right to inquire. And if the parent doesn't want the kid to be tested the way the State is doing it and the State allows it, they should be able to opt out. That is the ultimate of local control. It is also the ultimate of expectations for the child through the parent and the school, not through some Washington mandate.

You know the old saying: Education makes people easy to govern and impossible to enslave, easy to build and impossible to drive.

Education is the power that leads our democracy to discoveries. Just today in America—or just sometime today in America—Pluto was discovered by an American satellite that was launched 9 years ago. It has been traveling hundreds of thousands of miles a second to go there. That manpower was done in the educational system of the United States of America.

There is no dream that can't be realized in this country, but it has to be based on education and knowledge. It has to be based on a country that relishes education, a State that embellishes education, and a parent that is involved with their child.

I commend Senator MURRAY and Senator ALEXANDER for their work, for including the opt-out provision in the base of the bill. I ask and hope the Senate will adopt my amendment to require that in the parents' right to know, that provision is made available to every single parent in terms of what the State does and does not require when their kids go into the public school system. So we have a better informed parent, better local control, less Federal mandate, and a child who has expectations that are raised for them by the parents and the teachers closest to them, not by a bureaucrat in Washington, DC.

We live in the greatest country on the face of this Earth. You don't find anybody trying to break out of the United States of America. They are all trying to break in. And when you ask them why, it is because it is a country of opportunity, education, hope, and promise.

Today and tomorrow, the Senate has the ability to reauthorize the Elementary and Secondary Education Act, which has languished for 7 years without a reauthorization. I hope we will do it and give local systems and local boards of education and the parents the choices they need to make the decisions that are right for their children.

I encourage every Senator to vote for amendment No. 2194, the Isakson opt-out amendment and the parental right-to-know amendment.

I yield back the remainder of my time.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, the Senator from Washington is going to speak in just a moment, but while the Senator from Georgia is on the floor, I thank him for his huge contribution to this bill that would fix No Child Left Behind. No committee member has been more valuable than he. He has worked with Senator MURRAY to include within a provision an important step on early childhood education.

He has used his experience as chairman of the Georgia State Board of Education and as a member of the education committee in both the Senate and the House to help us know how to do a better job here.

He is the champion of giving parents the right to know whether their State gives them the opportunity to opt out of the federally required tests. That is his amendment today. And he was the sponsor of the amendment that appears in the Alexander-Murray bill, which gives States the express authority to decide whether the parents may opt their children out of the tests.

So the Isakson amendment says: Give States the power to provide the opt-out, and it gives parents the opportunity to know enough information to be able to do it. That is consistent with this legislation, which requires the important measurements of achievement so we can know whether children are achieving and whether schools are achieving, but then restores to States and local school boards, classroom teachers, and parents the decisions about how to help those children achieve.

That is the kind of local control of education that I think most of us on both sides of the aisle—whether it is the Senator from Montana speaking this morning or the Senator from Georgia speaking this afternoon, that is the spirit of the consensus that guides this bill.

Senator ISAKSON's contribution has been enormous to the right of parents to provide an opt-out of a federally required test for them and their children if they and their State choose to do it.

I yield the floor.

The PRESIDING OFFICER. The Senator from Washington.

AMENDMENT NO. 2093

Mrs. MURRAY. Mr. President, I rise this afternoon to speak in favor of the Franken amendment, which we will be voting on shortly. I want to start with the story of Chandler, who was a 9th grader in Arkansas who experienced daily bullying and harassment. At school, his classmates harassed him based on his perceived sexual orientation. His mom described him as a good kid. She said all he wanted was to fit in, but Chandler couldn't walk down the hall between classes without kids harassing him. He wrote to his school counselor saying he couldn't handle ''being an outcast for four more years.''

And while teachers knew about the bullying, the school district never put a plan in place to address his concerns. And one day in 2010, Chandler took his own life after enduring endless bullying and tormenting at his school.

Chandler's story is more than a tragedy, it feels like an all-too-common trend for students across the country.

As a mother, grandmother, a former educator, and as a citizen, I believe Congress has to act to protect kids such as Chandler. When kids do not feel safe at school, when they are relentlessly bullied because they are different, when they endure harassment simply because of who they are, we have failed to provide them with the educational opportunities they deserve. We have failed them.

As we debate our Nation's K–12 education bill, we need to do everything we can to prevent bullying, harassment, and discrimination and provide students with a safe learning environment. Today, we will consider an amendment to address the unique challenges LGBT students face.

I thank Senator CASEY for his work on the Safe Schools Improvement Act. It is a bill we will not be voting on but will continue working on. I thank, especially, Senator FRANKEN for his tireless leadership on the Student Non-Discrimination Act.

On the HELP Committee, I have been a proud cosponsor of this legislation for years, and today I hope all of our Senate colleagues will join us in protecting students from discrimination based on their actual or perceived sexual orientation or gender identity.

Discrimination, bullying, and harassment at school leads to students who feel unsafe. It leads to kids who skip classes so they avoid harassment. Some students drop out of school because they don't feel safe there. If students don't feel safe, then there is very little else we can do to improve their education that will matter.

This type of bullying and harassment can be severe, particularly for LGBT students. The Gay, Lesbian & Straight Education Network recently did a survey on the experiences of LGBT youth in our schools. In that survey, 6 out of 10 lesbian, gay, and bisexual students reported feeling unsafe at school and 8 out of 10 transgender students said the same.

Eighty-five percent of LGBT students report they have been harassed because of their sexual or gender identity. Even

though bullying and harassment is prevalent for these students, they and their families have limited legal recourse for that kind of discrimination. I believe our students deserve better. The amendment we will be voting on will help to tackle this problem.

The student non-discrimination amendment would prohibit discrimination and harassment in public schools based on actual or perceived sexual orientation and gender identity. The amendment would also prohibit any retaliation for lodging a complaint of discrimination. That would give our LGBT students who are suffering from bullying and harassment legal recourse, and it would allow Federal authorities to address discrimination.

This amendment would offer LGBT students similar protections that currently exist for students who are bullied based on race, gender, religion, disability, or country of national origin. Unless you think LGBT students don't deserve protection from discrimination the way these other students do, this should be easy to support. This amendment is absolutely critical for expanding protections for LGBT students. Again, I thank the junior Senator from Minnesota for his tremendous work.

I know some of our Republican colleagues have argued that taking steps to prevent bullying would only create lawsuits. But I believe these students deserve justice. Giving students and families legal recourse would help provide that.

Under this amendment, the process for legal recourse would be similar to title IX, which actually has been on the books since 1972. In the majority of title IX cases, a school is more than willing to fix the problem so it no longer engages in discriminatory practices. After all, school leaders want to do the right thing and end bullying or harassment in their classrooms. They want to make sure their school is safe for a particular group of students. They want to make sure students are not discriminated against simply because of who they are. With this amendment, this same process would be afforded to LGBT students.

I have also heard some critics of this amendment say there is no need to focus on LGBT students. They don't want to define who would be covered in an anti-discrimination amendment. But that logic doesn't follow what we already know works. There is a reason the civil rights laws of our country clearly define who is protected from discrimination. For example, our civil rights laws make it clear that it is unlawful to discriminate based on race and gender. A generic anti-discrimination policy will not cut it. A vague policy would lead to years of litigation about who is and who is not protected and what legal standards should apply. Making meaningful progress to prevent bullying, harassment, and discrimination requires us to clearly define who will be protected.

We know LGBT students are being bullied. They are being harassed. They are being discriminated against. Ignoring that fact with vague language doesn't help those students; it does them a real disservice, and it is wrong.

I urge my colleagues to support this amendment. The pain physical and emotional abuse can cause is tragic.

In Ohio, a young man named Zach is an openly gay student. Since he was in the third grade, he has been called names at school. That abuse has escalated since then. When he was 16, Zach was physically attacked and repeatedly punched by another student during his third-period class. In a video from the ACLU, Zach's mom said it is not that Zach attended a bad school. She said: ''It's just not a good school for gay or lesbian children.''

It should not matter what school a child attends; all students deserve a safe learning environment. Bullying and harassment take that away from too many of our Nation's students.

I want to take a moment to note the historical significance of this debate and the vote we will be taking on shortly. A few weeks ago, the Supreme Court settled a question that for decades has been an issue of debate in our country. After years of fighting for equal rights, LGBT couples finally have the guarantee of marriage equality nationwide and the protections that all married couples enjoy.

I am proud of how far our country has come. Since the Court's ruling, this—right now, today—will be the first vote this body takes on legislation aimed at ending discrimination against LGBT individuals and in this case discrimination against LGBT children in our schools. Surely we can agree that a minority group of students who have long endured bullying, harassment, and discrimination deserves the same protections we afford other groups of students. There is no excuse for a school or for a United States Senator to stand by as our kids endure harassment and discrimination that puts their academic success and emotional well-being in jeopardy. The country will be watching.

I urge our colleagues to support this amendment and give students across the country the assurance that we are on their side.

Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Ms. HEITKAMP. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. HEITKAMP. Mr. President, I wish to thank Chairman ALEXANDER and Ranking Member MURRAY for their excellent leadership as stewards of this important bipartisan effort. In my conversations with parents, educators, and advocates across my State, one theme prevails: We must reform this outdated law. This bipartisan legislation before us, while not perfect, is a step in the right direction.

I am glad my language was included in the substitute amendment to address conflict resolution and crisis intervention services in schools. It will provide support and the ability of school districts to provide suicide, trafficking, trauma, and violence prevention models. Such models will assist educators as they foster positive school climates so that students can enter school excited and ready to learn.

However, I hope we can also advance my amendment No. 2171, which would support those schools where such preventions are needed the most. My amendment will restore access and make improvements to school and mental health support grants under an existing program in ESEA—the integration of schools and mental health systems. Unfortunately, the bill before us eliminates this program simply because of recent budget cuts. Those budget cuts have allowed for the diversion of its funding to other priorities. This program, however, is more important than ever today.

I am not calling for new or expanded funding or even a new program. The funding conversation should take place during the appropriations process. But for these purposes, we must make sure the program's authorization is not eliminated, as students across this country and students in my State critically need these integrated services that help them deal with the effects of poor educational environments as well as the effects of toxic stress and trauma.

The need to address this problem is something I have heard repeatedly since becoming North Dakota's Senator and previously in my role as North Dakota's attorney general. Through my personal experiences with affected children, school leaders, and tribal representatives, I have focused on making sure all children have the ability to succeed and overcome obstacles associated with suicide, trauma, violence, and stress on their mental health.

In May of 2015, Futures Without Violence, alongside partners such as the Alliance for Excellent Education, the National Education Association, and the National PTA, released a report entitled ''Safe, Healthy, and Ready to Learn'' that detailed how unhealthy school climates, exposure to violence, and the effects of trauma reduce academic success. As a result of such conditions, students with two or more adverse childhood experiences are more than twice as likely to repeat a grade. Students exposed to violence are at a greater risk of dropping out or having difficulty in school. Children exposed to violence scored lower on tests of verbal ability and comprehension, reading and math skills, and overall achievement on standardized tests.

As a member of the Indian Affairs Committee, I can attest that nowhere

are adverse childhood experiences more common than in schools serving this country's Native communities and Native American tribes. The suicide rate for young adults aged 15 to 34 years is 2½ times higher than the national average.

In South Dakota, from December 2014 to May 2015, the Oglala Sioux Tribe lost nine—nine—of their young people to suicide between the ages of 12 and 24. At least 103—I want to repeat that number—103 attempts were made by young people aged 12 to 24 just in those few months.

North Dakota has had a similar experience with suicide. Five young people—three teenagers and two 25-year-olds—on the Standing Rock Sioux Reservation took their own lives within a 2-month period.

Much like North and South Dakota, Montana, Wyoming, and Alaska's suicide rate has increased dramatically in recent years—jumping 70 percent in 10 years, with large increases among middle and high school students.

As populations have increased in the West, violent crime has similarly risen 121 percent in some areas. Through drug crimes, gunrunning, gang activity, and limited capacity of law enforcement, human trafficking has become epidemic, with 83 percent of all victims in the United States being American. How can we expect children to learn when they face such obstacles as these? This is an injustice.

We must make sure our schools have the means to partner with health systems and provide preventive measures and family engagement models for improving school environments and mental health stress. Unfortunately, schools are often the last line of defense for our country's most vulnerable students. My amendment would simply preserve a voluntary program that helps schools provide children stability and the tools necessary to handle mental stress.

I understand the call for Federal streamlining and local flexibility. For North Dakota, strengthening local efficiency is a top priority. However, this particular program should not be a part of that streamlining. This authorization is about updating a civil rights law based on helping all—even the most disadvantaged—students achieve and have access to a better future.

But for many of our States, those disadvantaged students are also owed a Federal trust responsibility. While this language would protect a grant program that is accessible to all, the services provided under this amendment target issues epidemic to Indian Country. As such, it would work to uphold the distinct trust responsibility of this government to provide educational resources to Native children. Much like the amendment from the senior Senator from Montana, which the Senate adopted last week, I hope the Senate will similarly protect this program.

By helping schools coordinate with health professionals specializing in addressing the effects of traumatic events and mental stress, we will secure for our most disadvantaged the equal opportunity they deserve—that equal opportunity to learn and to achieve.

I want to tell you a quick story. The first year I was elected, I had an opportunity to visit with a lot of North Dakota constituents who came into my office. I remember distinctly the day the grade school principals came to visit me, and I thought that I would prepare for this meeting—that I would prepare on No Child Left Behind. I shared a lot of their concerns, and I was ready to talk about No Child Left Behind. That is not what they wanted to talk about. One principal told me a story about two young boys who were in second and third grade who had ridden the bus that morning and beaten up two little girls. When they got to school, the principal asked them why they would ever do that. They said: Well, you understand that last night my dad beat up my mom and he went to jail. They wanted to visit their dad.

How prepared is a school district to deal with that situation? If we do not engage the mental health community, our schools will continue to be those first responders, ill prepared to deal with the trauma of that life. We have to begin to integrate these programs, and we have to look at what is happening with trauma and stress and the effects trauma and stress have on learning and the ability to succeed.

I understand and can completely appreciate and support the idea that we need to streamline programs. I think this is a program whose time has come. We should fund this program. That is a conversation for the Appropriations Committee. We have to begin to emphasize the conditions in which children live if we are going to educate all of our children equally.

I hope my colleagues will join me in supporting this amendment.

I ask unanimous consent that the Futures Without Violence report, ''Safe, Healthy, and Ready to Learn,'' be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

SAFE, HEALTHY, AND READY TO LEARN

EXECUTIVE SUMMARY

Dr. Martin Luther King, at the crossroads of this nation's civil rights movement more than 50 years ago, talked about the ''fierce urgency of now.'' Today, more than ever, every child deserves equality of access and opportunity that will prepare him or her to compete in the changing economies and realities of the 21st century. Yet, for too many children, exposure to violence and trauma can deny them both access and opportunity. Forty-six million children in the United States will be exposed to violence, crime, abuse, or psychological trauma in a given year: two out of every three children in this country. They are our sons, daughters, grandsons, granddaughters, nieces, and nephews. They are our future.

There is an undeniable urgency of now to shine the light on these children and, even more importantly, prevent our children from exposure to violence. We owe it to them to give them the opportunity to live up to their full potential. We should not wait, we cannot wait, and we must not wait.

In partnership with leaders from throughout the health, education, justice, and child development fields, Futures Without Violence (FUTURES), with the support of The California Endowment, Blue Shield of California Foundation, and the Lisa and John Pritzker Family Fund, has spent the last year working to develop public policy solutions to prevent and address childhood exposure to violence and trauma. We examined research, consulted with experts across the country, and convened a multi-disciplinary working group to develop a comprehensive set of recommendations designed to combat this silent epidemic.

Children's exposure to violence, trauma, and ''toxic stress'' can have a permanent negative effect on the chemical and physical structures of their brain, causing cognitive impairments such as trouble with attention, concentration, and memory. Adverse Childhood Experiences (ACEs) research documents the short- and long-term connections between exposure to violence and other adversity and poor health and educational outcomes, such as increased absenteeism in school and changes in school performance. Individuals who have experienced six or more ACEs die, on average, 20 years earlier than those who have none. We know that the effects of this trauma are playing out in numerous ways every day.

The good news is that we know what works to prevent harm and heal children. Our collective task is to identify and elevate the effective policies, programs, and practices that are working and advance them at the federal, state, and local level. This report is designed to do just that.

FUTURES is especially grateful to the thoughtful work and commitment of our policy working group, which made the report possible. The group is unique in its diverse membership and in the willingness of its participants to cross boundaries and recognize the interconnectedness of multiple issues. From reforming school discipline practices and creating positive school climates to combating child abuse and promoting children's physical, emotional and mental health, the group worked to examine and lift up core strategies to meet the needs of the whole child, to address trauma in children's lives, and to create conditions to allow our children to thrive and succeed.

GOALS

The working group developed a set of recommendations that will support each of these seven goals:

1. Invest early in parents and young children
2. Help schools promote positive school climates, be trauma sensitive, and raise achievement
3. Train educators, health care workers, and other child-serving professionals about preventing and responding to youth violence and trauma
4. Prevent violence and trauma
5. Improve intra- and inter-governmental coordination and alignment
6. Increase the availability of trauma-informed services for children and families
7. Increase public awareness and knowledge of childhood violence and trauma

SUMMARY OF RECOMMENDATIONS

The following summarizes the key recommendations for each goal:

No. 1—Invest early in parents and young children. The federal government should support states, local jurisdictions, and tribes in providing parents, legal guardians, and other caregivers the resources necessary to help their children thrive. A multi-generational

approach to comprehensive and evidence-based services and trauma-informed care promotes positive caretaking, reduces inequities, enhances family cohesion, and interrupts the cycle of intergenerational trauma. We recommend expanding the federal Maternal, Infant, and Early Childhood Home Visiting Program (MIECHV) and implementing a two generation approach to addressing ACEs, child abuse, and domestic violence. We also suggest modifying Medicaid and child welfare financing formulas to extend services to parents to address their own experience of trauma.

No. 2—Help schools promote positive school climates, be trauma sensitive, and raise achievement. The federal government should provide significant resources and incentives for states and local jurisdictions to create connected communities and positive school climates that are trauma-sensitive to keep students healthy and in school, involved in positive social networks, and out of the juvenile justice system. Such investments should increase opportunity and close achievement gaps, promote health, resilience, social and emotional learning, and engage the school personnel necessary to effectuate a positive learning environment. We recommend using the reauthorization of the Elementary and Secondary Education Act to support the creation of positive school climates; supporting full-service community schools that include school-based health centers; adopting inclusive disciplinary policies that involve the community; reconsidering school safety strategies and prioritize investing resources in students' emotional health and social connections; providing assistance to school districts in their efforts to prevent and appropriately respond to incidents of bullying; and having the United States Department of Education design and disseminate a practice guide that offers school-wide strategies and best practices for creating trauma sensitive schools.

No. 3—Train educators, health care workers, and other child-serving professionals about preventing and responding to youth violence and trauma. States and other accrediting bodies should support training and certification of child- and youth-serving professionals to effectively respond to children's exposure to violence with a coordinated and trauma-informed approach. Our report urges that school personnel should be trained on implementing effective academic and behavioral practices, such as Positive Behavioral Interventions and Supports and social and emotional learning, and providing pediatricians and staff in community health settings the tools they need to serve traumatized youth.

No. 4—Prevent violence and trauma. Federal, state, and local governments and tribes should increase incentives and expand violence prevention efforts to reduce children's exposure to violence. Research and strategies should be interwoven among the fields of community violence, child abuse, school violence, sexual assault, and domestic violence. Specific policy recommendations are as follows: expanding funding for domestic violence prevention and response services within the Family Violence Prevention and Services Act; providing greater technical assistance to health care providers so they can effectively deliver universal education to parents and caregivers about the impact of exposure to violence on youth and deliver more integrated care to children who may already be exposed to violence; expanding targeted prevention programs focused on healthy relationships among youth developed jointly by the Centers for Disease Control and Prevention and the Office on Violence Against Women; engaging men and boys in prevention; and supporting resilient and healthy communities.

No. 5—Improve intra- and inter-governmental coordination and alignment. Federal, state, and local governments and tribes should better coordinate youth violence prevention and early intervention approaches among themselves and with non-governmental organizations, particularly as it relates to school/community and public/private sector coordination. We recommend the creation of a White House task force to identify specific youth violence and trauma prevention goals, make recommendations on how federal agency resources can be used to meet those goals, and provide guidance to state and local partners. In addition, the federal government should include incentives in relevant federal grant applications for states and localities to demonstrate collaboration in service delivery.

No. 6—Increase the availability of trauma-informed services for children and families. It is time to incentivize and fund states, localities, and tribes to scale up the availability of trauma-informed services for children and their families exposed to violence. These services should support the implementation of two-generation, trauma-informed approaches, coordinate efforts among schools, homes, and communities, and ensure gender-specific and culturally competent practices. We recommend permitting federal entitlement programs to support child trauma assessment and intervention, such as home-based services and crisis intervention, that provide for child well-being, family stability, and community health. The federal government should provide specific support and attention to youth in the juvenile justice system, in foster care, and to those who are homeless.

No. 7—Increase public awareness and knowledge of childhood violence and trauma. Federal, state, and local governments and tribes should support public education and engagement campaigns to increase awareness of the adverse effects of childhood exposure to violence and trauma. The campaigns should describe action people can take to prevent harm, and promote effective solutions. We recommend that the federal government, in coordination with the states, conduct a mass media campaign that highlights the impact of ACEs and helps to reduce the stigma attached to those who seek professional help.

We know that meaningful change will not happen overnight, and we recognize that budgets are tight at all levels of government. However, inaction is not an option—not when tens of millions of children are affected by violence and trauma each year. We know what works. We know that these investments will save money and will prevent many children from suffering. This report provides a blueprint for what needs to be done. It is now up to all of us, as policymakers, educators, advocates, and parents, to take action to ensure that our children's future is bright.

Ms. HEITKAMP. I yield the floor.

The PRESIDING OFFICER. The Senator from Illinois.

Mr. DURBIN. Mr. President, I thank my colleague from North Dakota for bringing up a critically important issue. The need for counseling and mental health resources in our schools cannot be overstated. There are so many kids who appear to be slow learners and have problems that can be traced directly to these issues.

I know that teachers aren't trained to be psychologists and psychiatrists. Many of them are struggling just to teach. So I think the resources that the Senator from North Dakota is talking about are absolutely essential, and I hope her amendment prevails. I will be happy to support it.

Mr. DURBIN. Mr. President, we come together every few years to debate education. Why does the Federal Government get into the conversation about grade schools and high schools? Because 50 years ago we created programs sending Federal money to these schools.

In my State, about 5 percent of all the money spent on education comes from Washington. The rest of it comes from State and local sources. Sending this money to schools was part of a program for accountability back in the 1960s. The problems we faced were largely twofold, problems of poverty and the resulting difficulties that children had in school and problems with racial discrimination. So we tried to resolve these by sending resources to States and holding them accountable if they received Federal money to move toward improving test scores and performance for children and breaking down the walls of segregation.

It is 50 years later. We have tried so many different approaches to this, and under President George W. Bush, a conservative Republican, there was a surprising new approach called No Child Left Behind. What was surprising is that a conservative Republican President actually called for a bigger role of the Federal Government when it came to education.

President Bush felt that we should hold schools and teachers accountable, that we should test to make sure they were making progress, and frankly, call them out if they were not. It was a pretty bold and controversial idea. Now we come together years later in an effort to do it differently. This bill before us, the Every Child Achieves Act, basically shifts the pendulum to the other side and says that now we are going to give it back to the States to measure the performance and progress of schools and intervene where necessary.

I think this is a worthy effort. We may find that we have gone too far in moving it all back to the States and away from the multiple tests that face school districts under No Child Left Behind, but we are engaging in this new approach in the hopes that it will be better and fairer and that more kids in America will get a good education. That is generally why I think we are here on this floor.

There is one aspect of it which I think we should still maintain, and that is the question or issue of accountability. Senators MURPHY of Connecticut, BOOKER of New Jersey, COONS of Delaware, and WARREN of Massachusetts filed an amendment which I have joined with to insert meaningful accountability measures in this bill, including identifying the 5 percent lowest performing schools—high schools where less than two-thirds of the students graduate—and subgroups of students who are not doing well.

There is a concern on the other side of the aisle, and even from some of my friends and supporters, that we are going back to the Federal accountability standards when schools or subgroups are not succeeding. That is not the case with this amendment. It allows the States to still decide which interventions are warranted, but it makes the information public as to how the schools are doing, particularly those that are really struggling, the lowest 5 percent of schools—high schools where two-thirds of the students are not performing. We should know this, and we should hold the States accountable now that it is their responsibility to intervene to make sure that they achieve this. To ignore it and turn our backs on it is not fair. It is to ignore a half-century commitment by this government with the title I program in particular and other programs in our government to really help the States to improve with Federal resources.

We have gone away from overtesting in No Child Left Behind, but let's not reach the point where we ignore the results. Let's hold States accountable. Let them come up with the interventions as required, but let's do it in a way that is transparent so there is accountability. I support this amendment, and I hope it is called up soon.

Mr. President, there is another amendment that may soon be before us offered by Senator BURR of North Carolina that would make changes in the title I funding program in terms of the allocations to States. Title I is the single largest source of Federal funding for elementary and secondary education. It helps States and districts address poverty and the needs of low-income students.

Senator BURR of North Carolina has created a new formula to send money from Washington back to the States. Not surprisingly, his State does very well with that formula, others not so well. The Burr amendment, which we finally saw in writing last night, would be devastating to low-income students in Illinois. It would reduce my State's share of title I funds by $180 million a year. So 28 percent of all the title I funds now coming into the State would be eliminated by the Burr amendment.

Chicago public schools are struggling. Mayor Emanuel, who is in charge of these schools, is trying to resolve decades' old problems with pensions, trying to put the money into the schools, and faces some extremely difficult choices.

Under the Burr amendment, Chicago's public schools would lose $68 million. It is not just about the city of Chicago. Every district in Illinois that receives title I funds for low-income students would see a cut. North Chicago and East St. Louis are the two poorest school districts in the State. East St. Louis is my hometown and where I was born. North Chicago would see a 24-percent cut of money for low-income students, and East St. Louis would see a cut of 18 percent—one of the poorest towns in my State. Rockford would lose $5 million, a 31-percent cut. Rock Island would see a 43-percent cut with the Burr amendment, and Carbondale and Danville, 27 and 20 percent, respectively. Springfield, my hometown, would lose $2 million or 26 percent of their total funds would be cut because the Senator from North Carolina wants to take more money home to his State.

These types of cuts to Illinois, divvied up among districts in other States, isn't a responsible Federal policy for making sure low-income kids in Illinois get a good education. It isn't responsible, and I have to say to my friend and colleague from North Carolina that he is in for a fight. He may think he has chosen just enough States to get a little more money to get a majority together, but my colleagues, at least on this side of the aisle, realize that tomorrow someone else could come up with a little different formula that would be devastating to their own States. This amendment is the most hurtful and damaging amendment that is before us in this bill as far as my State is concerned.

AMENDMENT NO. 2093

Third, there is an amendment from my friend from Minnesota, Senator FRANKEN, called the Student Non-Discrimination Act, also called SNDA. I urge all of my colleagues to support it. SNDA will provide critical protection for LGBT students by explicitly prohibiting discrimination in public schools based on actual or perceived sexual orientation or gender identity.

A few weeks ago the Supreme Court had a historic decision when it came to same-sex couples having the right to marry. While this decision is a major historic achievement, there is more that needs to be done. Students who are or are perceived to be lesbian, gay, bisexual or transgender continue to face extraordinary discrimination.

A recent survey showed that 85 percent of these students reported harassment. The survey also found that these students didn't perform well when they were subjected to this harassment. That is no surprise. Research also shows that these teenagers are four times more likely to attempt suicide, and 40 percent of the homeless students and children in America are LGBT.

I support Senator FRANKEN's amendment. Let's end this discrimination.

Finally, I support the amendment offered by the Senator from Pennsylvania, BOB CASEY, which is based on the Strong Start for America's Children Act, to improve and expand high-quality early childhood education for more than 3 million low-income kids. The Casey amendment would help 100,000 kids in low-income families in Illinois get into pre-K. How important is that?

Well, I am a grandfather and proud of it. We have twin grandkids who are 3½ years old. My wife and I spend a lot of time talking with them and reading to them. These kids are doing just great. They have terrific parents and are heading to pre-K in just a few months. They won't even be 4 years old when they enter the pre-K program in the city of Brooklyn, NY. We are excited about it. We know they are going to do well. Their parents, and maybe even their grandparents, have helped them reach that point.

What BOB CASEY and his amendment try to do is to extend that opportunity to a lot of families—low-income families that may not have the luxury of being able to spend time with their kids the way other families can. Let's give those kids a fighting chance. Let's give them the pre-K education that gets them off to a good, strong start so they can learn and ultimately earn.

I support the Casey amendment, and I hope my colleagues will too.

I yield the floor.

AMENDMENT NO. 2093

Mr. LEAHY. Mr. President, this important debate about how to improve our schools is an opportunity to ensure that children have access to equal educational opportunities. Lesbian, gay, bisexual, and transgender students often face pervasive harassment and bullying in our schools. We must ensure that all children can attend school in a safe and healthy environment. That is why I am proud to support the amendment offered by Senator FRANKEN.

Similar to his bill on this topic, the Student Non-Discrimination Act, this amendment would instill core principles of basic civil rights in our Nation's schools. These are commonsense, fundamental rights that all Americans deserve, particularly children. No person—of any age—should face discrimination because of their race, economic status, religion, gender, gender identity, sexual orientation, or learning abilities.

I have heard from countless Vermont parents about their children being bullied at school and online. I am reminded of the tragic story of Ryan Halligan, an Essex Junction student who took his own life at age 13 after being bullied for his physical appearance. After years of torment, the teasing Ryan endured turned into physical violence. Ryan was harassed online by one of his peers, who took private messages Ryan had sent and showcased them for other students in the school. Ryan was later publically shamed for what he thought was an innocent interaction between himself and a friend.

No child should ever face the needless horror of harassment or bullying. Unfortunately, as many as 7 in 10 students who are, or are perceived to be, lesbian, gay, bisexual, or transgender have been bullied or harassed. But unlike other forms of harassment in our schools, bullying based on gender identity and sexual orientation is often overlooked, and students and their parents have limited legal options to hold schools accountable for discriminatory treatment.

The Franken amendment would extend Federal protections from discrimination in public schools based on actual or perceived gender identity or sexual orientation. The amendment prohibits public school students from being excluded from educational programs on the basis of sexual identity and allows students to take civil action against such discrimination. It also ensures that students who file suit will not face retaliation of any kind. It is a sad reality that discrimination still exists in our country, and that Americans need the powerful anti-discrimination protection of our civil rights laws. But these abuses are happening in our schools, and children are suffering as a result.

What is worse, LGBT youth who face bullying at school do not always have a sanctuary at home. A disproportionate and growing number of runaway and homeless youth are LGBT, often because their families have rejected them. We must ensure that these kids have a safe place to stay, because they are vulnerable to abuse and sexual exploitation while living on the street. That is why Senator COLLINS and I included a nondiscrimination provision in another key piece of legislation, the Runaway and Homeless Youth and Trafficking Prevention Act. This bill would ensure that no child in need of shelter is turned away based on their sexual orientation or gender identity. We cannot protect these children from every injustice they might face, but we should at least ensure that they will be safe in our public schools and federally funded shelters. I will continue to fight for these protections.

I am proud of the many students in Vermont who have taken steps to prevent bullying in their schools and communities. In 2014, Rutland High School students were nationally recognized for their ''Positive Post-it'' campaign, in which small notes of praise and encouragement to fellow students were placed on windows and message boards throughout the school. These young students at Rutland High School should be commended for reminding us all that bullying and discrimination have no place at school. Students across the country are doing their part and we must do ours as well.

Last month, the Supreme Court issued two consequential and historic rulings protecting the basic rights of all Americans to marry and to access housing free from discrimination. Our Nation has come a long way but our work must continue. All Americans, especially our children, deserve the same Federal protections. We have the opportunity to extend this simple principle of basic fairness to children across this country and make our schools safe places for all children to learn. I hope all Senators will support this important amendment.

The PRESIDING OFFICER. The Senator from Tennessee.

AMENDMENT NO. 2194

Mr. ALEXANDER. Mr. President, on behalf of the Senator from Washington, I ask unanimous consent that the 4 p.m. vote begin now.

The PRESIDING OFFICER. Without objection, it is so ordered.

The question now occurs on the Isakson amendment No. 2194.

Mr. ALEXANDER. Excuse me. My fault, Mr. President.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, I got a little ahead of myself. I should have checked with Senator ISAKSON to see if he wished to speak on behalf of his amendment. I see he is now here. Why don't we allow him to do that, and then I will ask for the yeas and nays.

The PRESIDING OFFICER. The Senator from Georgia.

Mr. ISAKSON. Mr. President, I thank the chairman of the committee, and I wish to reiterate my appreciation for what he and Senator MURRAY have done to bring a great bill to the floor.

This is the ultimate local control amendment, which says if a State allows an opt-out, a parent can opt their kid out of testing, and it requires the States to ensure that parents know if opting out is possible. It is a good amendment for children and local control, and I encourage everyone to cast a ''yes'' vote.

The PRESIDING OFFICER. The Senator from Washington.

Mrs. MURRAY. Mr. President, I support this amendment, and I thank Senator ISAKSON for working with us on this. I encourage a ''yes'' vote.

The PRESIDING OFFICER. The question is on agreeing to the amendment.

Mr. ALEXANDER. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The bill clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from South Carolina (Mr. GRAHAM) and the Senator from Florida (Mr. RUBIO).

Mr. DURBIN. I announce that the Senator from Florida (Mr. NELSON) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 97, nays 0, as follows:

[Rollcall Vote No. 234 Leg.]

YEAS—97

Alexander	Casey	Feinstein
Ayotte	Cassidy	Fischer
Baldwin	Coats	Flake
Barrasso	Cochran	Franken
Bennet	Collins	Gardner
Blumenthal	Coons	Gillibrand
Blunt	Corker	Grassley
Booker	Cornyn	Hatch
Boozman	Cotton	Heinrich
Boxer	Crapo	Heitkamp
Brown	Cruz	Heller
Burr	Daines	Hirono
Cantwell	Donnelly	Hoeven
Capito	Durbin	Inhofe
Cardin	Enzi	Isakson
Carper	Ernst	Johnson
Kaine	Murphy	Shaheen
King	Murray	Shelby
Kirk	Paul	Stabenow
Klobuchar	Perdue	Sullivan
Lankford	Peters	Tester
Leahy	Portman	Thune
Lee	Reed	Tillis
Manchin	Reid	Toomey
Markey	Risch	Udall
McCain	Roberts	Vitter
McCaskill	Rounds	Warner
McConnell	Sanders	Warren
Menendez	Sasse	Whitehouse
Merkley	Schatz	Wicker
Mikulski	Schumer	Wyden
Moran	Scott	
Murkowski	Sessions	

NOT VOTING—3

Graham	Nelson	Rubio

The amendment (No. 2194) was agreed to.

AMENDMENT NO. 2210

The PRESIDING OFFICER. There will now be 2 minutes of debate prior to a vote on Bennet amendment No. 2210.

The Senator from Colorado.

Mr. BENNET. I thank the Presiding Officer.

Mr. President, as the father of three girls in Denver Public Schools and as a former school superintendent, I know there is a lot we can do to streamline tests, but the problem is not the Federal requirement. That is not the real problem. The real problem is the way the Federal requirement works with States and the way the State tests have piled up on the Federal requirements.

That is why States should establish a cap on the total amount of time spent taking these assessments. This target would be State-determined, subject to discussion among parents, teachers, and policymakers. If the district exceeds the policy cap, it would be required to simply notify parents. This is an essential way to respond to concerns voiced by students, parents, teachers, principals, and communities across the country about overtesting.

I urge my colleagues to support this amendment.

The PRESIDING OFFICER. Is there further debate?

Mrs. MURRAY. I yield back time.

The PRESIDING OFFICER. All time is yielded back.

The question is on agreeing to Bennet amendment No. 2210.

The amendment (No. 2210) was agreed to.

AMENDMENT NO. 2162

The PRESIDING OFFICER. There will now be 2 minutes of debate equally divided prior to a vote on Lee amendment No. 2162.

The Senator from Utah.

Mr. LEE. Mr. President, my amendment would clarify that parents—not the Federal Government—are the primary educators of their children. It would ensure that parents may allow their children to opt out of federally mandated tests.

Now, the Senator from Tennessee, Mr. ALEXANDER, is right that States should be free to make their own tests mandatory if they so choose. However, that is not what this bill allows. This bill mandates that States give these

tests and requires them to get the content of such tests approved by the Secretary of Education.

My amendment is silent on the question of State tests. It simply clarifies that tests mandated by this Congress are, in fact, voluntary, and that parents—not politicians or bureaucrats—will have the final say on whether individual children take Federal tests. It also ensures that the Federal Government cannot punish a State by restricting Federal funding for education should parents choose to opt out their children from these tests.

Thank you.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, I urge a ''no'' vote. This bill is about reversing the trend toward a national school board. The amendment of the Senator from Utah is about more of a national school board. The Alexander-Murray bill expressly says that a State may decide whether to allow parents to opt out of these tests. The Senator's amendment says: Washington knows best; it will tell States what the policy should be.

That is like common core. Our bill says: We are eliminating the Washington mandate on common core. He would reinstate a Washington mandate on the opt-out policy. I would say this to my Republican friends: Do we only agree with local control when we agree with the local policy?

Art Laffer says: States have a right to be right. States have a right to be wrong. A ''no'' vote is a vote for local control. A ''yes'' vote is a vote for a national school board.

The PRESIDING OFFICER. The Senator from Washington.

Mrs. MURRAY. Mr. President, I concur with the remarks from the chairman of the committee and urge a ''no'' vote.

The PRESIDING OFFICER. The question is on agreeing to the amendment.

Mr. LEE. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER (Mr. COATS). Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from South Carolina (Mr. GRAHAM), the Senator from Florida (Mr. RUBIO), and the Senator from Alaska (Mr. SULLIVAN).

Mr. DURBIN. I announce that the Senator from Florida (Mr. NELSON) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 32, nays 64, as follows:

[Rollcall Vote No. 235 Leg.]

YEAS—32

Ayotte	Ernst	Paul
Barrasso	Fischer	Perdue
Blunt	Grassley	Risch
Boozman	Heller	Sasse
Cassidy	Hoeven	Scott
Coats	Inhofe	Sessions
Cotton	Johnson	Shelby
Crapo	Lankford	Toomey
Cruz	Lee	Vitter
Daines	McCain	Wicker
Enzi	Moran	

NAYS—64

Alexander	Franken	Murray
Baldwin	Gardner	Peters
Bennet	Gillibrand	Portman
Blumenthal	Hatch	Reed
Booker	Heinrich	Reid
Boxer	Heitkamp	Roberts
Brown	Hirono	Rounds
Burr	Isakson	Sanders
Cantwell	Kaine	Schatz
Capito	King	Schumer
Cardin	Kirk	Shaheen
Carper	Klobuchar	Stabenow
Casey	Leahy	Tester
Cochran	Manchin	Thune
Collins	Markey	Tillis
Coons	McCaskill	Udall
Corker	McConnell	Warner
Cornyn	Menendez	Warren
Donnelly	Merkley	Whitehouse
Durbin	Mikulski	Wyden
Feinstein	Murkowski	
Flake	Murphy	

NOT VOTING—4

Graham	Rubio
Nelson	Sullivan

The amendment (No. 2162) was rejected.

AMENDMENT NO. 2093

The PRESIDING OFFICER. There will now be 2 minutes of debate equally divided prior to a vote on Franken amendment No. 2093.

The Senator from Minnesota.

Mr. FRANKEN. Mr. President, the Student Non-Discrimination Act would extend the same Federal civil rights protections available to other children to LGBT children.

I feel very strongly about this, and let me tell you why. LGBT kids are facing an epidemic of bullying in our schools. Nearly 75 percent of LGBT students say they have been verbally harassed at school. More than 30 percent report missing a day of school in the last month because they felt unsafe.

Sometimes kids cannot endure the taunting. These boys, 11 years old, 13, and 15, committed suicide because they were harassed relentlessly, and they are just three of the many tragic cases. And in case after case, the parents begged the school to do something, only to be ignored. Our laws failed these children, but we can change that. We have come very far on this issue. As a body, we passed ENDA, which protects LGBT adults, but this is about children.

It is our job as adults, not just as Senators, to protect children. Think about the LGBT people you know—your friends, staff, family. Now imagine them as children just beginning to discover who they are but doing so in the face of taunts and intimidation. You cannot get a good education if you dread going to school. My amendment just says that schools would have to listen when a parent says ''My kid isn't safe'' and then do something about it.

I thank the chairman and the ranking member for committing to hold this vote. I strongly urge my colleagues to vote to protect our children.

I reserve the remainder of my time.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, I thank the Senator from Minnesota for bringing up the amendment and for the way he has participated in our debate and worked for us to make it possible to get a result.

I am going to ask for a ''no'' vote on this amendment. There is no doubt that bullying or harassment of children based on actual or perceived sexual orientation or gender identity is a terrible problem and has become in some parts of our country even accurately described as an epidemic. But the question is, Is this an argument that is best addressed to the local school board or to the State board of education or to a national school board in Washington, DC?

We have 50 million children in 100,000 public schools and 3.5 million teachers. No more set of issues is more difficult to deal with on an individualized basis in a rural area in Alaska or the mountains of Tennessee or the middle of Harlem than a case of harassment or bullying. Teachers, principals, and school advisors deal with those every day. We do not know more about that than they do. The U.S. Department of Education cannot make regulations for that many different kinds of instances.

This substitutes the judgment of the people closest to the children, who cherish them—substitutes the judgment of Washington bureaucrats for them. It allows the Federal Government to regulate and dictate local school gender identity policies, such as those related to restrooms, locker rooms, and dress codes. It will lead to costly lawsuits.

It is well-intentioned. It is a problem that needs to be addressed, but it should be addressed by the local school board, the State board of education, and not by a national school board in Washington, DC.

I urge a ''no'' vote.

Mr. FRANKEN. Mr. President, may I ask how much time is remaining?

The PRESIDING OFFICER. The Senator from Minnesota has 10 seconds at this time.

Mr. FRANKEN. Mr. President, I ask unanimous consent to speak for 30 more seconds.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Minnesota.

Mr. FRANKEN. This isn't about lawsuits; this is about schools doing the right thing when the parents ask. They are the same protections granted to the kids by virtue of their race. That wasn't a local issue; that was a Federal right we had to pass. The same with title IX for girls. That is why we just won the World Cup.

This is the right thing to do. We are adults here. Let's protect children. Let's protect children. This is not about lawsuits. It is about adults, about a parent calling the principal and saying ''My kid is being harassed'' and then the principal will do something—because they aren't. They aren't in many, many cases.

Thank you.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, I ask unanimous consent for 20 seconds to conclude.

Mr. FRANKEN. I object. I am joking.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The Senator from Tennessee.

Mr. ALEXANDER. Mr. President, the question is whether difficult cases of bullying and harassment of whatever kind in 100,000 schools with 50 million children are best handled by the judgment of men and women close to the children, close to the circumstances, or by Senators in Washington and Federal employees in the U.S. Department of Education.

I believe this legitimate concern should be addressed by those who are closest to the children because they cherish the children more and they will care for them.

I urge a ''no'' vote.

The PRESIDING OFFICER. The question is on agreeing to the amendment.

Mr. RISCH. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from South Carolina (Mr. GRAHAM) and the Senator from Florida (Mr. RUBIO).

Mr. DURBIN. I announce that the Senator from Florida (Mr. NELSON) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 52, nays 45, as follows:

[Rollcall Vote No. 236 Leg.]

YEAS—52

Ayotte	Heinrich	Murray
Baldwin	Heitkamp	Peters
Bennet	Heller	Portman
Blumenthal	Hirono	Reed
Booker	Johnson	Reid
Boxer	Kaine	Sanders
Brown	King	Schatz
Cantwell	Kirk	Schumer
Cardin	Klobuchar	Shaheen
Carper	Leahy	Stabenow
Casey	Manchin	Tester
Collins	Markey	Udall
Coons	McCaskill	Warner
Donnelly	Menendez	Warren
Durbin	Merkley	Whitehouse
Feinstein	Mikulski	Wyden
Franken	Murkowski	
Gillibrand	Murphy	

NAYS—45

Alexander	Enzi	Paul
Barrasso	Ernst	Perdue
Blunt	Fischer	Risch
Boozman	Flake	Roberts
Burr	Gardner	Rounds
Capito	Grassley	Sasse
Cassidy	Hatch	Scott
Coats	Hoeven	Sessions
Cochran	Inhofe	Shelby
Corker	Isakson	Sullivan
Cornyn	Lankford	Thune
Cotton	Lee	Tillis
Crapo	McCain	Toomey
Cruz	McConnell	Vitter
Daines	Moran	Wicker

NOT VOTING—3

Graham	Nelson	Rubio

The PRESIDING OFFICER. Under the previous order requiring 60 votes for the adoption of this amendment, the amendment is rejected.

The Senator from Delaware.

Mr. COONS. Mr. President, as the Senate this week considers the first major reform bill for our Nation's public schools in over a decade, I rise to talk about how we can ensure that every one of our country's children goes to a great school no matter his or her ZIP Code or background. Our Nation has long struggled to fulfill our fundamental promise of equal opportunity since our Nation's founding. It is a struggle that, despite many efforts, continues today.

Fifty years ago, as America fought to break down racial barriers in our Nation's classrooms, President Lyndon Johnson signed the Elementary and Secondary Education Act into law. This civil rights act recognized that without actively investing Federal resources in educating America's underserved children, their dreams would remain tragically deferred.

Since then, our country has continued to struggle with this fundamental civil rights challenge. And five decades after Johnson's landmark law and 14 years after President Bush revamped it with the bipartisan No Child Left Behind Act, we still haven't found a way to ensure that as a nation, we hold every school to the high standards our children deserve.

This week marks the latest effort in this long struggle. The Senate's reform bill, titled the ''Every Child Achieves Act,'' makes important strides to improve what went wrong in 2001's No Child Left Behind. I would like to start by commending Senator PATTY MURRAY and Senator LAMAR ALEXANDER for accomplishing what has eluded the Senate for so many years—a truly bipartisan compromise that deals with some critical but often divisive issues at the heart of America's public schools. They have worked tirelessly on this bill because they understand the urgency of our national education crisis.

In the wake of No Child Left Behind's Federal micromanagement of schools, this bill heeds an important lesson: Communities need to have some flexibility and some space to innovate and find their own solutions to their education problems. But I would urge my colleagues that as we work together to fix many of the law's weaknesses, we not lose sight of some of No Child Left Behind's important accomplishments.

For all its many problems, it exposed uncomfortable realities in America's classrooms and empowered policymakers with real data that simply did not exist before. Most importantly, it refused to lower our Nation's expectations of any school and demanded that every child in America gets the education he or she deserves.

In our drive to decrease the law's rigidity and address its many other challenges, we must maintain those high standards and continue to hold States and school districts accountable. Unfortunately, if it passed today, the Every Child Achieves Act would turn back the clock to a time when local control too often meant national indifference. It would risk letting too many of our children fall through the cracks.

I, myself, have seen how this indifference can hurt America's students. For 20 years, I was actively involved with the national ''I Have a Dream'' Foundation, which works to send some of our country's most at-risk students to college. I had the opportunity to visit schools all over the United States, in some of our most stressed and challenged neighborhoods and some of our most struggling and difficult schools. When I met with students during those visits and asked them about their vision for their own future, while many wanted to become teachers, doctors or scientists, too many others did not believe those kinds of careers could ever be within their grasp.

This, to me, illustrated the twin tragedies of our public education system; the fact that for many students with big dreams, their schools will not give them the chance to realize them, while for too many others, dreams long dead in their families and communities had taught them that daring to dream at all was futile.

These students had fallen victim to what President George W. Bush so accurately described as the ''soft bigotry of low expectations.'' They had internalized the failings of the system around them to mean they were not worth investing in, so they might as well just give up from the beginning.

There are two ways I believe we can and should improve the Every Child Achieves Act to change that message, to raise the expectations we communicate to kids from the day they are born to the day they enter the classroom, to the day they graduate.

The first way is to pass amendments that strengthen Federal accountability provisions and shine a brighter spotlight on the small fraction of our schools that fail our children. Simply put, we cannot allow ourselves to lower our expectations for any of America's schools.

I know for many of my colleagues and for teachers and students around the country, the very word ''accountability'' in the context of education is

associated with high-stakes testing and unfunded mandates, but it doesn't have to mean either of those things. Accountability means holding every school and every child to the same high standards because our public schools must work for every student no matter where they are, where they come from or how they learn. Accountability means not allowing schools to maintain the status quo when they fail to graduate large segments of their students. Accountability means refusing to lower our expectation even when the path forward seems hard.

We have already seen what accountability can accomplish for our children. Over the past decade, all students, but particularly disadvantaged students, have graduated at higher and higher rates and are performing in math and reading better than ever before. The national high school graduation rate is currently 81 percent, its highest level on record. Since 2003, the reading gap between Black and White fourth graders has closed by 16 percentage points, and over the same period Hispanic eighth graders have closed the gap in math by 24 percentage points.

Federal accountability is a critical part of ensuring we invest in all American students as if they were our own children. I urge my colleagues to support Senator MURPHY's amendment, which I am proud to join and cosponsor. This amendment would strengthen accountability in this bill by requiring States to identify low-performing schools and tailor interventions to help them improve their performance. It also ensures that schools set high goals for—and pay attention to—all students, including students with disabilities, low-income students, English language learners, Latino and African-American students.

The second amendment I wish to address takes on another piece of increasing expectations of urging every one of our children to dream. That amendment is based on my bipartisan bill called the American Dream Accounts Act with Senator RUBIO, and it would send the important message to low-income students that a college education can be within their grasp.

For too long, college has been out of reach for the vast majority of poor Americans, but unlike in past decades, economic success today is defined by college access. With the new global economy, Americans with just a high school diploma earn literally $1 million less over their working lives compared to those who go to college. Yet too many of our students who need it most are not given the tools, the resources, and the information to complete a college education.

As the administration has pointed out, just about 1 out of 10 children from low-income families will complete a college degree by the time they are 24—just 1 out of 10. The American Dream Accounts Act is designed to address and break down many of the barriers to college access that our most at-risk students face in seeking higher education. They encourage partnerships between schools, colleges, nonprofits, and businesses to develop secure, Web-based individual student accounts that contain information about each student's academic preparedness, financial literacy, connects them to high-impact mentoring, and is tied to an individual college savings account.

Instead of having each of these different resources available separately through separate silos, an American dream account connects them across existing separated programs and across existing education efforts at the State and Federal level. By connecting across these different silos, it deploys a powerful new tool and resource for students, parents, teachers, and mentors.

Many of the kids I worked with over many years at the ''I Have a Dream'' Foundation have grown up in schools, communities, and families where almost no one around them had the opportunity for a college education. These kids took that to mean college just wasn't for them, that it shouldn't be a part of their plan for their future.

As part of that organization, it was our job to change that perception, and I saw time and again how sending the message that college was a possibility from elementary school on had a powerful and compounding positive impact on these students' ideas of whom they could be and what they could achieve. It demonstrated that exciting and engaging not just young students but their parents, teachers, and an array of mentors has a cumulative, powerful, positive impact.

The American dream accounts would expand on this idea and use modern social networking technology to bring together existing programs and deliver ideas that will work for more and more of our kids. The good news is that by utilizing existing Department of Education funds, this legislation would come at no additional cost to taxpayers.

I urge my colleagues to support my amendment with Senator RUBIO. It is amendment No. 2127, and it would authorize a pilot program to begin making the American dream accounts a reality.

We have an opportunity right now to build on the bill that Senators MURRAY and ALEXANDER wrote to reform our public schools in a way that communicates to every child in every public school that they deserve a high-quality education, the kind of education that tells them not only that they should have dreams but that those dreams are within their grasp.

Mr. President, 55 years after U.S. marshals escorted first grader Ruby Bridges to school, the nature of and need for Federal intervention in public education has surely changed. While schools are no longer closed to certain races by law, too many students are dropping out of school too early or just not receiving an education that prepares them for college and future success.

So while educational inequality is no longer a story of deliberate, legalized racism in need of Federal intervention, it is, unfortunately, still a persistent and tragic national reality that afflicts classrooms from coast to coast.

We have made significant progress due in part to a bipartisan national commitment to raising the bar for all of America's children. We cannot allow ourselves to lower it once again.

I look forward to continuing this important debate and working with my colleagues to make sure this bill strikes the right balance between Federal oversight and local flexibility. We must work together to make sure this bill moves us closer toward the goal President Johnson reached for when he first signed the Elementary and Secondary Education Act into law.

UNANIMOUS CONSENT REQUEST—EXECUTIVE CALENDAR

Mr. President, I now ask unanimous consent that the Senate proceed to executive session to consider the following nominations: Calendar No. 27, Calendar No. 28, Calendar No. 29, Calendar No. 30, and Calendar No. 31, and that the Senate proceed to a vote without intervening action or debate on the nominations; that the motions to reconsider be considered made and laid upon the table with no intervening action or debate; that no further motions be in order to the nominations; that any related statements be printed in the RECORD; that the President be immediately notified of the Senate's action and the Senate then resume legislative action.

The PRESIDING OFFICER. Is there objection?

The Senator from Arkansas.

Mr. COTTON. Mr. President, reserving the right to object, and I will object.

The reason we should not confirm new judges to the Court of Federal Claims has little to do with these nominees and more to do with the court itself. It doesn't need new judges. We should keep in mind that the number of active judges authorized for the Court of Federal Claims by statute, 16, isn't a minimum number, it is a maximum. It is our duty as Senators to determine if the court needs that full contingent and to balance judicial needs in light of our obligation to be good stewards of taxpayer dollars.

What the caseload data shows is that the court does not need all 16 judges—far from it. As we can see from this chart, since 2007, the court's caseload has dropped dramatically and consistently every year. Last year, the court had 2,528 cases on its docket. That is 51 percent fewer than in 2011 and 68 percent fewer than in 2007, when the court had 7,185 cases on its docket.

Today, a full-time judge on the court is responsible for an average caseload of 180 cases. That is far less than the average caseload of 324 cases in 2011 and the average of 488 cases in 2007.

In light of the dramatic drop in caseloads at the court, it is hard to justify

spending more money to confirm additional judges. The court currently also uses a contingent of six senior judges who have retired from active status but can continue to hear cases. While there are currently only 11 active judges, there are actually a total of 17 judges at the court hearing cases.

Furthermore, we should understand that senior judges receive a lifetime annuity worth a full-time salary regardless of whether they handle cases. If the Senate confirms the five nominees, this will expand the number of judges receiving a salary at an extra cost of $800,000 every year.

The bottom line is that there is no caseload crisis at the Court of Federal Claims. If anything, there is a caseload shortage. It therefore makes no sense to spend more taxpayer dollars on judges that the court simply does not need. I object.

The PRESIDING OFFICER. Objection is heard.

Mr. COONS. Mr. President, I ask my colleague from Arkansas, through the Chair, first, if we cannot receive consent to take up these nominations which were made over 15 months ago as a group. I wish to briefly describe one of the truly exceptional candidates. If I might also, I think it is important for all of us in the Chamber to recognize that the Court of Federal Claims, while the actual number of cases considered may have decreased, faces a steadily increasing number of complex cases which are subject to statutory case management deadlines that drive the workload of the court and have roughly doubled in recent years from 68 back in 2005 to 113 last year and likely double that this year. So the actual number of cases may be declining, but their complexity and their workload, because of the need for them to be resolved in a certain period of time, have steadily increased, and I will simply suggest to my colleague from Arkansas that looking more broadly at the workload would suggest some of these nominees are worthy of consideration and confirmation.

I will briefly reference one of the five pending nominees, Jeri Somers, who has spent a decade at the DOJ civil division as a trial attorney but recently retired, having served in the U.S. Air Force Reserves as a lieutenant colonel, having spent two decades as a judge advocate and a military judge in the U.S. Air Force. She is a patriot, a veteran, a highly qualified attorney, and I will simply inquire of my colleague, through the Chair, whether any of the five nominees might be subject for consideration for confirmation today.

The PRESIDING OFFICER. The Senator from Arkansas.

Mr. COTTON. Mr. President, I have to object. Again, this is not so much about a particular nominee but the fact that the Court of Federal Claims is operating with 11 active judges, and when you include the senior judges ready, able, and willing to hear cases, they have more than 16 judges allowed by statute, and those judges will continue to receive their salary even if we confirm any of these new judges.

Furthermore, as someone who has practiced at the Court of Federal Claims myself many moons ago when I was a lawyer, albeit not a very good one, I know the caseload there has always been complex, and I simply think the judges who are at the court are ready, willing, and able to handle the court's work. Therefore, I must object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Delaware.

Mr. COONS. In conclusion, we have a range of highly qualified nominees. Armando Bonilla would be the first Hispanic judge to hold a seat and has been with the Department of Justice. Thomas Halkowski, a third pending nominee, is a respected partner at Fish & Richardson in Wilmington, one of the preeminent IP law firms in the Nation, and has a wealth of experience at a variety of different Federal courts. I think all three of the nominees I referenced today will make excellent additions. While my colleague and I view the caseload differently, I think the President has nominated able and capable nominees and the court needs and deserves to not have to rely on senior status judges to meet its constitutional and statutory obligations.

So, with that, I will yield the floor, although I will not yield on the issue.

I thank the Presiding Officer.

The PRESIDING OFFICER. The Senator from Michigan.

AMENDMENT NO. 2095

Mr. PETERS. Mr. President, I rise to speak in support of the Peters amendment No. 2095. Financial literacy has been defined as the ability to use knowledge and skills to manage financial resources effectively for a lifetime of financial well-being. Unfortunately, too many American families, both parents and their children, lack basic financial skills. Recent studies have shown that future generations are likely to be less financially stable than those who preceded them.

Just last year, the FINRA Investor Education Foundation conducted a survey and found that millenials engaged in problematic financial behaviors and expressed concerns about their debt. To address this issue, a number of States have included financial literacy as a core component of high school education.

A separate FINRA study found that credit scores significantly improved and delinquency rates on credit accounts were reduced in States with financial literacy education. For example, that study found that credit scores improved by 11 points in Georgia, 16 points in Idaho, and 32 points in Texas.

There is a clear need for practical education programming for both parents and students, and we should provide States with the flexibility to provide this programming. That is why I have filed amendment No. 2095. The Peters amendment will include family financial literacy programming as an allowable use for title I parent and family engagement funding.

Family financial literacy programming can ensure our Nation's parents and children have the skills necessary to properly utilize credit, finance an education, manage a household budget, and plan for retirement.

I believe we must do all we can to help our Nation's parents and students succeed in every aspect of their lives.

I thank Senator MURRAY and Senator ALEXANDER for their leadership on this bill and for their willingness to work with me on this amendment. I hope my colleagues will join me in supporting the Peters family financial literacy amendment No. 2095.

Mr. President, in addition to my financial literacy amendment, I was happy to work with the chairman and ranking member to include language in the text of the bill that will help us identify and assist our most vulnerable children. The term ''dual status youth'' refers to children who have come into contact with both the child welfare and juvenile justice systems.

A growing body of research has shown that dual status youth experience poor educational performance, higher recidivism rates, and higher detention rates. Many at-risk children lack stable home lives, and they are frequently funneled through the school-to-prison pipeline. I am glad the Every Child Achieves Act now includes language that would encourage States to identify dual status youth and improve intervention programs in order to reduce school suspensions, expulsions, and referrals to law enforcement.

I was also pleased to join Senator GARDNER in introducing an amendment to allow title I funds to be used to support concurrent and dual enrollment programs at eligible schools. This amendment would enable high school students to simultaneously receive college credit from courses taught by college-approved teachers in secondary education. With the cost of higher education continuing to grow, helping students get a head start on completing their college courses helps them save money and get ahead.

I am proud that this body approved the Gardner-Peters amendment last week. This provision will make the dream of higher education more accessible to students in Michigan and across the country.

WORKING AMERICANS AND OVERTIME PAY

Mr. President, I wish to speak at this time in strong support of plans to increase our Nation's overtime pay threshold for the first time in over a decade and restore meaning to a threshold that has significantly eroded over the last 40 years.

In 1938, Congress passed the Fair Labor Standards Act and President Franklin Delano Roosevelt signed the bill into law. This landmark legislation represents an important promise that is as true today as it was 77 years ago—that if you work hard and play by the

rules, you will have a secure future. Ensuring fair overtime pay for employees is one of the most critical components of the Fair Labor Standards Act. It ensures that hard-working Americans are able to make an honest wage for their hard work. For middle-class families, who are the backbone of our country, and for those families working hard to get there, we must protect the important safeguards put in place by the Fair Labor Standards Act.

I personally learned the value of hard work and the importance of protecting labor standards for all Americans from my mother, Madeleine. Born a French citizen, she met my father during World War II, married him, and moved to this country. She later worked as a nurse's aide. While she enjoyed working with her patients, she did not like the way she or her coworkers were treated by their employer, so she fought for a better workplace and ultimately to win union representation. She later went on to serve as a union steward.

A strong labor movement nationwide helped build economic opportunity for millions of Americans just like my mother. Standing together to call for fair wages, safer work places, and better hours, American workers and their families helped build the American middle class and make the American dream a reality for regular folks.

The strong protections of the Fair Labor Standards Act helped ensure that American workers have a minimum wage, a 40-hour workweek, and overtime pay. Unfortunately, we have allowed these protections to fall behind present-day needs. Today, growing income inequality and stagnant wages are a serious threat to our middle class, to our economy, and to our democracy.

Americans are working harder and harder only to fall further and further behind, receiving less and less pay for their long hours. Middle-class families are struggling to stay afloat, and those who aspire to be in the middle class are finding it more and more difficult to achieve.

Today, some employees are required to put in 50 or 60 hours or more a week and are not receiving any overtime pay for their efforts. Our Nation's overtime pay rules are long overdue for an update. Decades of inflation have outpaced the current overtime pay threshold of $23,600 and eroded the value of an honest paycheck for millions of hard-working Americans. This means a worker earning only $23,600 gets paid the same whether they are working 40 hours or 60 hours in a week. That is simply unacceptable. This is not a fair wage, and it is not the American dream we fought to secure for generations.

If we are truly committed to building a strong American economy, then we have to make sure American families can thrive. Raising the salary threshold for overtime pay will help nearly 5 million workers across the country and as many as 100,000 workers in Michigan earn better wages for their hard work.

The pillars used to build and grow our middle class and support our democracy are in jeopardy of crumbling if we do not stand up and protect them. The American middle class and those who aspire to be in it are the heart and soul of our country, and we have an obligation to help every family nationwide realize their version of the American dream.

My home State of Michigan is the birthplace of our Nation's auto industry, where American workers and their families helped build the middle class and make the American dream a reality for millions of people. We owe it to our future generations to preserve this legacy.

I know there are some who do not believe we should update the overtime pay rules. They will oppose this rule saying it is a harmful attack on our Nation's business community. Well, I strongly disagree with that position.

Prior to coming to Congress, I worked in business for more than 20 years and I hired many people. I found that paying employees a fair wage is the best way to ensure a happy and productive workforce. It is good business, and it is the right thing to do. Providing a fair paycheck to hard-working Americans so they can build their family and own a home and help save for their children's college education as well as enjoy a secure retirement is good for business and it is good for our country. Workers who are paid fairly for their work are able to spend their hard-earned money in their communities, creating new customers for local businesses and in the process help our economy grow. If we invest in American workers—the best and brightest in the world—we will get a strong return on that investment.

Enforcing the Fair Labor Standards Act gives American workers a fair wage for a fair day's work, and it will help keep the possibility of the American dream alive. We must do what is right for our workers. Updating the overtime pay rule will give millions of Americans a wage increase that they have earned and provide economic stability and security for hard-working families, while boosting our economy.

I am proud to support these efforts, and I urge my colleagues to do the same.

I yield the floor.

The PRESIDING OFFICER. The Senator from South Dakota.

NUCLEAR AGREEMENT WITH IRAN

Mr. THUNE. Mr. President, I wish to begin by taking a few moments to discuss the nuclear deal with Iran that was announced this morning. While I am still reviewing the intricacies of the deal, right now I am deeply skeptical that this agreement will prevent Iran from acquiring a nuclear weapon.

The Obama administration appears to have capitulated on almost every redline it established at the outset, and I have strong doubts about whether the final provisions requiring inspections and curtailing enrichment and research and development are strong enough to be effective.

Another significant concern is the fact that removal of sanctions will give Iran access to billions of dollars and other resources to fund its campaign for increased regional influence, which includes proxy wars and material support for terrorist organizations. In fact, if we look at almost anywhere in the Middle East, whether it is Hezbollah in Lebanon or Hamas in the Gaza Strip or the Houthis in Yemen or the Shia militias in Iraq, they all trace their lineage back to and are proxies for Iran.

I am deeply concerned about the fact that the deal creates a timeline for lifting the embargo on conventional and ballistic weapons without requiring Iran to change its behavior in any meaningful way. Given that Iran is the world's leading state sponsor of terrorism and is already intervening in conflicts in the region, the last thing we should be doing is expanding Iran's access to weapons.

In the lead-up to this agreement, Members of both parties expressed their concerns about the direction this deal was headed, and the release of the final document has confirmed many of those fears. Unfortunately, the President is apparently unwilling to listen to Members of either party, and in his speech this morning he threatened to veto any legislation that would prevent his deal from going into effect. Well, that is very disappointing, and it lends credence to the concern that the President is more worried about securing his political legacy than he is about actually preventing Iran from acquiring a weapon.

Regardless of his veto threat, Members of both parties will carefully examine this deal and continue to do everything we can to ensure Iran never acquires a nuclear weapon.

Mr. President, I wish to speak as well this week about what the Senate is currently doing. The Senate is taking a huge step forward on education.

Nearly 8 years after No Child Left Behind expired, Congress is finally taking up legislation to reauthorize Federal K–12 education programs. While the law's focus on improving education for our students was laudable, No Child Left Behind must be updated. The Every Child Achieves Act—the legislation we are considering this week—will restore control of education to the people who know students best: teachers, parents, and local school boards.

Just 10 percent of education funding each year comes from the Federal Government. Despite this, the Federal Government has a huge oversight role in education. Every day, teachers and administrators and students have their day shaped by a host of Federal mandates, from testing requirements to precisely what to do if a school is deemed ''failing.''

Federal control of education has reached its peak in recent years, with the Federal Government going so far as to coerce States into adopting its preferred curriculum and educational standards.

No Child Left Behind demanded that schools meet a number of benchmarks to be judged as adequate. Failure to meet these requirements would result in a school being labeled as failing. Unfortunately, the rigid nature of these standards meant that many schools

were at risk of being labeled as failing. In response, States have made it a habit to apply to the Federal Government for waivers from the terms of the law so they can avoid the burdensome requirements that come along with the ''failing'' label. The Obama administration has generally complied—but with Federal strings attached. Essentially, the administration informs States that it is happy to grant them waivers as long as they agree to implement the Federal Government's preferred academic standards, adopt the Federal Government's preferred method of evaluating teachers, and take the steps the Federal Government believes are the appropriate steps to address failing schools.

Neither Congress nor the administration should be telling States and local communities what to teach in their schools. Decisions about education should be made by those who actually educate students, not by a group of bureaucrats or politicians in Washington, DC.

As any teacher will tell us, education is not a one-size-fits-all proposition. Even within a single classroom, students are likely to come from a wide variety of backgrounds and experiences and have different learning styles. Teachers are constantly adapting their methods and material to meet the needs of the particular students they have in front of them. That is a lot harder to do when Washington is dictating those methods.

The legislation we are considering today—the Every Child Achieves Act—will revoke the Federal Government's authority to dictate standards to the States. Specifically, this legislation explicitly prohibits the Federal Government from tying Federal funds to a State's adoption of specific educational standards. In other words, the Federal Government will no longer be able to blackmail States into adopting its preferred academic criteria.

This is a huge victory for students and for teachers. Thanks to this legislation, States and localities will have much more freedom to adopt the standards and curricula that will help their students achieve.

Another one of the problems created by No Child Left Behind, as any parent or teacher will tell you, is the phenomenon of overtesting. I have received hundreds of letters this year from teachers and parents concerned about the effect overtesting is having on students' education.

While NCLB only required two or three tests per year, the law made these tests the primary indicator of a school's performance, which resulted in many schools deciding to teach to the test. The result? Not surprisingly, instead of teachers deciding what is important material based upon their knowledge of their subject, teachers' instructional priorities are often dictated by the material they think will be on the required tests. As a result, students may never receive instruction in important topics or concepts simply because they are not covered on the tests. In addition, instead of one or two yearly tests required by law, students are subject to months of preparatory testing in order to make sure the school maintains its ranking by gaining acceptable average scores on the mandated tests.

It is undoubtedly true that the tests, including standardized tests, can be incredibly useful in the teaching process both as a diagnostic tool and as a measurement of student progress, but problems arise when tests become the only measure of progress.

The Every Child Achieves Act keeps the testing requirements of No Child Left Behind but gives States the option to give a single comprehensive test, as they do now, or break up the assessment into smaller components that can be given throughout the school year.

Most importantly, the Every Child Achieves Act removes test results as the primary indicator of a school's performance. In fact, it takes progress measurements out of the hands of the Federal Government entirely and gives them to the States. Under this bill, States, not the Federal Government, will be the ones developing accountability systems to measure schools' effectiveness. Instead of a one-size-fits-all Federal standard, each State will be able to identify the best ways to chart the progress of its schools and measure student performance.

In addition, the Every Child Achieves Act removes the Federal Government's national teacher evaluation requirements and allows States to decide whether and how to measure the effectiveness of their teachers.

I have offered several amendments to the Every Child Achieves Act, including two very important measures to address the tragic rash of student suicides that has beset Indian Country over the past several months. The first of these amendments would require the Secretary of Education to coordinate with the Secretary of the Interior and the Secretary of Health and Human Services to report on their Federal response to these suicides, compile and analyze available Federal resources, and make recommendations for improving Federal programs. The second measure would strengthen the Project School Emergency Response to Violence Program—or Project SERV—to help schools prevent tragedies such as youth suicide. I am hopeful that the Senate will pass both of these measures.

I am also pleased that the underlying bill contains important improvements that I championed to the Federal Impact Aid Program—a program that provides districts with revenue to make up for nontaxable Federal activity in school districts.

The reforms contained in the Every Child Achieves Act have been a long time coming, and they have been greeted eagerly. This bill is supported by everyone from the school superintendents organization, to the National Governors Association, to Teach for America. And, of course, this legislation is strongly supported by both Republicans and Democrats in the Senate.

One big reason a No Child Left Behind reauthorization has moved from legislation no Member of Congress wanted to touch to the bipartisan bill that is before us today is Republicans' commitment to restoring regular order to the Senate. We have restored the committee process and ensured that Members of both parties are able to make their voices heard through amendments. The result is legislation like the Every Child Achieves Act—a bill with strong bipartisan authorship and strong bipartisan support. I hope we will have many more achievements like this in the Republican-led Senate this year.

We need to get control out of the hands of Washington bureaucrats—people who have never been to South Dakota, much less a South Dakota school. They shouldn't be telling South Dakota teachers what to teach. The legislation before us today will help strengthen education in this country by putting decisionmaking about education where it belongs—in the hands of State and local school districts. I look forward to the Senate passing this bill later this week.

Mr. President, I yield the floor.

The PRESIDING OFFICER (Mr. GARDNER). The Senator from North Carolina.

Mr. BURR. Mr. President, I thank my colleague from South Dakota for highlighting the real benefits of doing away with No Child Left Behind, breaking down the national school board, and saying to States and localities across this country: We ought to put you in charge of K-through-12 education.

That is where the responsibility needs to be. That is where we will have decisions closer to students. And I don't think there is disagreement among Members of the Senate or Congress or Republicans or Democrats or people from the North or the South—we want to make sure K-through-12 education works. Every child should get across the goal line to graduation, and every child with a diploma should be marketable either to higher education or to a job with a skill that has a paycheck.

I will say that the Federal Government's role is not to micromanage the education system; it is to be a financial partner to K-through-12 education, to be a partner without strings, and to be a partner that provides equity across the board.

So I am here to talk about the Full Education Opportunity Act of 2015, which I hope will be an amendment to this bill. Title I-A is the Federal Government's central financial assistance to 21 million poor children in America. They attend school districts with high levels of poverty, and the kids come from low-income families. They define exactly what the Federal Government

should be focused on. It has served as the cornerstone of the Federal Government's education funding for K through 12 since elementary and secondary education was first signed into law in 1965. At the bill signing, President Lyndon Johnson said that the assistance provided under ESEA would serve to assist in the ''full educational opportunity'' of low-income students and to provide ''financial assistance to school districts serving areas with concentrations of children from low-income families.'' That summed it up in two sentences. That is what the Federal Government's funding source was designed to meet.

So what has happened since 1965? Like every other funding formula in the Federal Government, as the population shifted somewhere else in the country, money never seemed to follow it.

We had this debate several years ago on HIV-AIDS when we woke up one day and realized how much we were investing in the war against HIV-AIDS to keep people alive and find a cure, and we found towns like Washington that were getting a phenomenal amount of money but their HIV-AIDS population had gone down, and throughout rural America, we had an explosion of HIV-AIDS, primarily in African-American women. We worked and we worked and we worked, and we finally changed the legislation to reflect what the intent was so that the money followed the population it was intended to help. Today, there are individuals across this country in rural America who are now getting the drugs they need to either hold in check the disease or in hopes to slow its progression.

Well, I am here today because in 1965 Lyndon Johnson said that is the Federal Government's role—to make sure we target low-income families, kids in poverty.

Despite recognizing that these formula funds were not fully targeted at high-poverty areas, Congress has simply taken the easy route and added more formulas to title I-A in hopes that by putting more formulas out there, eventually it would help the people who were affected. Well, what it has done is it has compounded the problem.

The inadequacies in how we target poverty today just aren't right. My amendment attempts to end this practice and creates a simple, highly targeted program toward poverty with a new formula.

First, what does it do? It is important to make clear that this amendment only addresses title I formulas. It is not the overall funding—that is for appropriators to determine—but it is to structure the formula.

I am a strong supporter of title I funding, and I believe, regardless of the amount at which title I is funded, it should be distributed fairly and targeted to its intended population, which is kids in poverty, low-income families. Simply adding more funds still allows the inequities in the formula to persist. That is why I am attempting to fix the formula once and for all.

This amendment consolidates all of title I's formulas into one simple formula called equity grants. Let me say this. It simplifies I-A so that the calculation, put very simply, is equity grants equal the State's number of poor children times the national average of educating each child. It ends the policy that awards a wealthy State with title I money simply because they are able to spend more on education and therefore they get a higher allotment as a result. For decades, this has penalized poorer States that spend high shares of their tax revenue on education but don't spend as much in absolute terms as wealthier States. This change ensures that poor children born in a poor State aren't penalized because of their ZIP Code and for not living in a wealthy State elsewhere in the country.

Why will equity grants work and where are they targeted? Very simply, this formula takes the number of low-income children in a State, multiplies that by how equitably a State spends its own money on helping low-income children, and then sends the amount to the school district in the State, while placing heavy weights on the school districts that exhibit the highest levels of poverty—embraced in the 1965 initiative of President Johnson.

Current law rewards States that spend a much higher amount of money on their students than poorer States that, despite spending large shares of their overall budget on education, cannot compete with wealthier States in absolute dollars. Essentially, as long as you are above the national average in spending, you get a very large title I bonus payment. For example, the national average per-pupil education spending in the country is $11,014. For States such as Pennsylvania, it is $13,864; Massachusetts, $14,515; and Connecticut, $16,631 per pupil. This has been a pretty good deal for them. For States such as Mississippi, it is $8,130; North Carolina, $8,090; and Utah spends $6,555—not so good a deal. Who gets cheated? The kids in poverty, kids from low-income families.

Rewarding wealth over poverty is also contrary to the original purpose of title I-A funding. This has a real impact on how much a formula child will receive based upon the State in which he or she lives. For example, a child in Guilford County, NC, is only worth $1,128. A poor child in Albuquerque, NM, is only worth $1,158. A poor child in Seattle is only worth $1,240. On the other hand, a poor child in Philadelphia is worth $1,986. A poor child in New Jersey is worth $1,838. A poor child in Boston, MA, is worth $1,847. This is a highly inequitable and unfair formula to the poor children in most States. Because of the changes in this amendment, these disparities go away. They are almost completely eliminated.

Eliminating this provision has been suggested by organizations like the Center for American Progress, the Formula Fairness Campaign, the Rural School and Community Trust, and others. These are not conservative groups. These are very left-of-center groups who said equity is important.

No States should get a bonus payment just because they spend more or they are wealthy. The focus since 1965 was supposed to be kids in poverty. If you have more kids in poverty, you should receive a larger Federal share.

This amendment also addresses the bonus that very large districts that might have small numbers of poverty have enjoyed. Under the current law, a district must meet a $6,500 formula child threshold to receive concentration grants. This has typically resulted in purely large and not necessarily high-concentration impoverished districts receiving large grant awards. This hurts smaller, mostly rural districts with large percentages of poverty but not necessarily high numbers. To fix this, we impart a 20-percent poverty test within the equity grant for large districts to show that they have a concentration of poverty.

Now, this is a novel approach. We have a formula that is targeted to be a Federal partner in money, targeted at kids in poverty, and all of a sudden we are asking them: Show us that you have that population. Under the current law, districts also receive title I-A dollars for merely meeting a small threshold of 10 formula kids or just 2 percent of their overall population being poor.

This has meant that schools in Loudoun County, VA—I am sure there are some in here who might have graduated from Loudoun County schools or have kids in Loudoun County schools—have only 3 percent poor children. It is one of the wealthiest counties in America. It receives about a $1 million as part of an overall nearly $1 billion budget. This is about half the entire spending of the State of South Dakota, which the previous speaker is from.

Now, should he be cheated because they do not spend as much as Virginia, though he has kids in poverty, low-income families, individuals to whom in 1965 the Congress and the President said: This is who we should target—we the Federal Government on behalf of taxpayers. Well, this hurts smaller, rural districts with large percentages of poverty but not necessarily high numbers.

Under current law, it is not going to change. We should do our best to send the money to districts in States that are truly in need by focusing the formula on poverty. Now, sometimes it is easier to see than it is to listen. This is the amendment—the Full Educational Opportunity Act. What do we do? It treats all low-income children the same. I think that is what the Federal Government is supposed to do—to target the poorest communities. That was the spirit of the 1965 law—to prioritize equity, meaning everybody should be

treated equal, that you should not disadvantage a poor child in one area to advantage a system in another area.

Is it fair? A title I child versus a title I child? Denver, CO, $1,218; Boston, MA, $1,847; Miami, FL, $1,212; Philadelphia, PA, $1,986; Albuquerque, NM, $1,158; New Haven, CT, $1,717; Portland, OR, $1,292; Camden, NJ, $2,083; Seattle, WA, $1,240; New York City, $1,839—if I am over here, I think this funding formula is awfully good because we are getting rewarded whether we have poverty kids or not.

Over here, who is being hurt? It is not the States. People have come down to the floor, and they have beaten me up on this amendment for the last few days. Oh, how could you do this? How could you take away something that we have already got? It is real simple. You don't have low-income poverty kids or at least you don't have as much as here. If you did you would qualify under the new formula.

But it gets worse. Fair? Florida has the same number of low-income students, 690,000, as New York, 686,00. What is the distribution of title I funds? It is $774 million, $1.1 billion—the same population but New York receives $400 million more than the State of Florida. How can that be fair? Now, you can be greedy and say: We deserve it; that is what the formula said. You cannot punish us because this is not equitable.

Well, maybe we can. But for once, Congress can do the right thing and fix the formula. That is all I am on the floor attempting to do with my amendment—to fix it. Since 1965 we have not had the backbone to do it when we figured out it was wrong. Well, when we see this, if it is targeted for low-income kids and they have the same numbers, they ought to get the same money. But no, some believe that $400 million is worth it because they have always gotten more.

Here is New Mexico versus Massachusetts. There are 107,000 low-income students in New Mexico and 80,000 low-income students in Massachusetts. New Mexico receives $116 million. Massachusetts receives $116 million. It is the same amount of money, but there are 27,000 more low-income poverty kids in New Mexico. What do you say to a child in New Mexico that just happened to grow up in a poor family? You don't get to get as good an education. You should be have been born in Massachusetts. This is the Federal Government doing it with taxpayer money, and we don't have a problem with this.

My God, this is at the heart of what the Federal Government is supposed to do. There are individuals who come down here and talk about equitable treatment all the time. This is the most unequal thing that can exist. Yet some would block this amendment from coming to the floor. Is this fair? This is title I-A allocation per poor child: Florida, $1,284; New York, $1,611; Minnesota, $1,189; Massachusetts, $1,453; Oregon, $1,149; Maryland, $1,585; Washington, $1,127; Connecticut, $1,447; New Mexico, $1,093; Pennsylvania, $1,517. It does not matter how you slice it. They get more. They get more if they do not have the population to support it.

So who is getting more than their fair share? Boy, pictures speak louder than words. Look at that. The green States get more money. The white States, even though they have kids in poverty, they do not get an equitable distribution of Federal money through the title I-A program. It is embarrassing. It is embarrassing to Congress that we did not change this a long time ago.

For poor children who lose under the current formula, this is the reverse. Now, it is the kids who live in the States that are red that get cheated. They get cheated based upon the 1965 initiative under Lyndon Johnson, signed into law after Congress passed it—the Early Childhood Program, elementary and secondary education. I do not think I have ever seen an issue that broadly affects America where there was this much disparity in equitable distribution of Federal dollars. As a matter of fact, I would say it could not happen. But not only did it happen, people argue that this is fair. Well, all I can say is that if you say this is fair, then you are not focused on what this formula was designed to do, and that is to target low-income kids in poverty.

But you know it does not stop there. Let's go further. Let me take my State of North Carolina, with 391,000 low-income students. We get $417 million in title I-A money. Pennsylvania has 357,000 low-income students. They get $542 million in title I money. So I have 34,000 more low-income children, but I am asked to be satisfied with $125 million less in money to target low-income kids in poverty.

Now, I think I am being pretty diplomatic when I come down here and show things like this. This is what America hates. This is what makes them sick. This is what they think is a great example that we don't have a sense of reality. What do you say to a kid in North Carolina who struggles through K-through-12 education when you say: You are worth $125 million less if you are in poverty than the investment we are going to make in Pennsylvania.

Well, it is only appropriate that the Presiding Officer would be from Colorado, which has 143,000 low-income students and receives $150 million. Maryland has 124,000 low-income students and receives $196 million. There are 19,000 more low-income students in Colorado, but you get $46 million less. I am sure the Presiding Officer has the same hard time I do going back to Colorado and saying: Don't worry; this is fair. This is fair because it has been this way for 25 years.

The money is supposed to follow the population we are targeting to be invested in. In this particular case, it is the most at-risk in our country, from getting the tools they need to getting a job that has a paycheck. Fair?

Nevada, the minority leader's State has 102,000 low-income students. They get $116 million. Connecticut has 80,000 low-income students. They get $116 million. Well, if I were from Nevada, I would be furious at this. You would think that if you get the same amount of money, you should at least have the same amount of kids in poverty, because that is what the formula was designed to do.

But no, wealthy States have found ways to game it by getting bonus payments. Fair?

Indiana, the State of the previous Presiding Officer before this one, has 235,000 low-income students. They get $256 million in Indiana. There are 228,000 low-income students in New Jersey. They get $331 million—7,000 more low-income students in Indiana and somehow New Jersey gets $75 million more than Indiana. This is sort of embarrassing. Some find no shame in this: We are just out for as much money as our State can get.

Let me say to my colleagues that I don't know what the outcome of this amendment is going to be. But let me ask you for 1 minute to put the windfall your State is getting aside and ask yourself this: Do we have an obligation, based upon how elementary and secondary education was perceived and conceived in 1965, to actually make sure that the money follows where kids in poverty are?

If not, don't come down here and talk about equity on every other funding formula. Don't say that money should follow people, when you have the most at-risk population, kids in poverty, and we are talking educating them to where they can function in society, to where they can get a job and a paycheck and not be a ward of anybody, where they can be independent and enjoy every opportunity this country has to offer.

Well, you cannot be for that and be against this amendment. You cannot be for those kids and not fund them where every State is red. It cannot happen. But over history, just like other things, this creates winners and a lot of losers. But let me suggest to you that you take these lines away, and you just see the United States of America. Who should be the winners? Every kid in poverty.

Every kid born into a low-income family should be the recipient of title I-A money in an equal capacity because they should have as good an opportunity and a future—an economic future—regardless of the State they live in, regardless of the ZIP Code. Regardless of whether they are in rural America or urban America, there shouldn't be a discrepancy. This rights a very bad wrong. This makes it work for all kids in poverty—not some kids, not school districts that are wealthy, but all kids in poverty.

Let me just say for my colleagues that it is not going to happen unless we

have a backbone that is strong enough to actually bring an amendment up and vote on it. I am willing to do that. I am willing to roll the dice.

Look at the number of States that benefit from this—and I said that wrong. Look at the number of kids that benefit from this change. This is not about States, and it is not about parties. This is about kids. It is what this act was created for in 1965, and I can't find the reason as to why Congress didn't fix it before 2015. But the fact is that we are talking about reauthorizing the Elementary and Secondary Education Act. It happens about once every 10 years. We have an opportunity to fix this inequity now.

I don't want to look back and say: I had an opportunity to fix it, but, you know, that was hard. It was difficult. It meant that there were winners and losers.

Everybody cannot be a winner when some take advantage of the system like this has. Well, there is only one way to make everybody a winner, and that is to fix the formula. Regardless of how long it takes us to work out of it, we can fix it from this point forward.

I urge my colleagues, if given the opportunity to vote on the Burr-Bennet Full Educational Opportunity Act, to support it. I can't believe I am in the Senate saying ''if, if, if'' we are given an opportunity to actually bring up a germane, relevant amendment that affects every kid in poverty in the United States. I can't imagine the Senate is not willing to debate and vote on that amendment.

I yield the floor.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. WHITEHOUSE. Mr. President, I am not sure what the intentions are of the chairman of the energy committee. As chairman, I would be delighted to yield to her if she is going to take some time on the floor, and I would need about 10 minutes for my remarks.

The PRESIDING OFFICER. The Senator from Alaska.

Ms. MURKOWSKI. Mr. President, it was my understanding that I was next in the queue. If I am incorrect, I would be happy to get this squared away. I, too, have about 15 minutes.

Mr. WHITEHOUSE. Mr. President, I am happy to yield. I thought we went back and forth from side to side ordinarily, but I am very happy to yield. I have a chairman who is a very busy person.

The PRESIDING OFFICER. The Senator from Alaska.

Ms. MURKOWSKI. I thank my colleague from Rhode Island, and I thank him for the opportunity to speak directly to this bill this afternoon.

Mr. President, I wish to speak briefly about the measure we have on the floor today, the Every Child Achieves Act, the bill where we have all been waiting for about 15 years to fix the flawed one-size-fits-all No Child Left Behind Act.

I begin my comments by thanking Senator ALEXANDER, who is the chairman, as well as Senator MURRAY, the ranking member, for how they have managed this legislation from the very beginning.

I think we know there is a little bit of inside baseball that goes on around here that perhaps isn't interesting to many. But I think it is important to note that Chairman ALEXANDER and Ranking Member MURRAY have led this bill in a way that has fostered consensus building and, I think, very constructive negotiations.

More importantly, in the process they allowed the voices of the American people—of Alaskans—to be heard. I think that was one of the reasons why we saw this legislation move unanimously through the HELP Committee in April, and I think that is one of the reasons that you are seeing us move through a series of amendments on issues that are considerable but in a very constructive manner and certainly respectful of one another. So I wish to acknowledge and recognize the masterful work they have done in guiding this bill forward.

I also wish to recognize the work of my staff. Karen McCarthy on my staff has done yeoman's work in working with so many Alaskans, educators, administrators, and the like. That has been an effort that I think has yielded benefit to folks in my home State. But I also wish to recognize the work of those on both Senator MURRAY's staff as well as Senator ALEXANDER's—very hard-working professional staff who are a credit to their Senators and their State.

So why am I standing today before you in support of the Every Child Achieves Act?

When Alaskans are visiting about the education bill that we know as No Child Left Behind, it is clear that to a number—whether you are an educator, whether it is students, parents, tribes; it didn't make any difference—nobody was happy. The one-size-fits-all mandate, poor tribal consultation, and the lack of State and local control over our children's education clearly were not working.

I say that one of the first immersions into politics I had was when I was a PTA president at my son's elementary school. That, for me, was my first introduction to what the mandates meant that were coming out of No Child Left Behind when our school was deemed as a failure because we failed to meet AYP because of the 31 different ways to fail. We certainly made it by not having sufficient subgroups taking the test on the day that the test was required. Our neighborhood school was a failure. It didn't seem to me that it made sense and still does not.

So I make sure to take that experience as a mom, as a PTA president, and as one for whom No Child Left Behind was not just some theoretical exercise. It was Federal law imposed in my town and in my schools, which had a negative and a direct impact on those who were part of our school.

So my top priority was to make sure that any rewrite of No Child Left Behind gave more power to make decisions about Alaska's schools to Alaska and to our local communities.

The failed experiment of adequate yearly progress had to go. Under the Every Child Achieves Act, that is done.

The failed highly qualified teacher mandates that made little sense and also did not work had to go, and they are gone. States will again be able to decide what qualifications and skills to demand of teachers and principals, whether to have a statewide evaluation system, and, if so, whether those evaluations consider growth in student proficiency.

Now, I am very aware that some across the country—in fact, I have heard from some in Alaska—are concerned that the Every Child Achieves Act does not do enough to return local control to schools, that it perpetuates, somehow, the common core standards. In fact, the Every Child Achieves Act specifically and expressly prohibits the Secretary from having any authority to ''mandate, direct, control, coerce, or exercise any direction or supervision over any of the challenging State academic standards adopted or implemented by a State.''

Now I have also heard that some are concerned that the bill maintains secretarial approval of State plans, with the implication then that the Secretary will be able to change or deny elements of State plans, whether it is State standards, assessments or accountability systems, as somehow a condition of approval. But the Every Child Achieves Act also places a number of limitations on the Secretary's authority over the State's plans.

The act prohibits the Secretary from requiring a State to include or delete any element of its State standards from the State plans, use specific assessment instruments or items, set goals, timelines, weights or significance to any indicators of student proficiency, include or delete from the plan standards, measures, assessment, student growth benchmarks or goals of student achievement for school accountability, as well as any aspect of teacher or principal quality, effectiveness or evaluations systems, or require any data collection beyond current reporting requirements. There are similar prohibitions that are scattered throughout the Every Child Achieves Act.

In short, I am confident that the act returns control of State standards, curriculum, instruction, assessments, educator qualifications, and school accountability to the State of Alaska, and that is where I want it to be.

I also have other reasons for supporting the act that will directly impact students, parents, educators, and communities across Alaska in a positive way and with provisions that Alaskans ask for most specifically.

I acknowledge the work that I was able to do with Senator BOXER. Together we worked to craft the support

for the Afterschool for America's Children Act. She and I worked on this bill to update and strengthen the 21st Community Learning Centers afterschool program across the country. We worked with a number of other Members in the Senate to make sure that this important program—the program that keeps our children safe and engaged after school and during the summer—works for all of our States.

We worked with the chairman and ranking member, and after a lot of good negotiation, the Afterschool for America's Children Act, with some amendment, was included in the Every Child Achieves Act, and this was done by unanimous consent in the HELP Committee, which I appreciate.

On the issue of how we ensure that our Native children are cared for and addressed in a real and meaningful way, there were several provisions that we were able to include in the act to better meet the needs of Native children.

At my request, the act requires the States and school districts, where applicable, to consult and engage with the American Indian, Alaska Native or Native Hawaiian tribes and parents in creating State and local plans and in implementing Federal education programs that serve Native students in order to meet their cultural language and education needs. These are our Nation's first peoples, with whom the United States has a constitutionally mandated responsibility to interact with on a government-to-government basis. So I think it is time that our tribes and our Native organizations throughout the country were part of designing the plans and shaping the programs used to improve schools that serve our Native students.

Senator FRANKEN and I, working with Senator TESTER, were able to include a new program in the Every Child Achieves Act to help our Nation's first peoples maintain and revitalize their Native languages through the schools. This is a new grant program that will support the creation, the improvement, and the expansion of Native language immersion schools in which Alaska Native, American Indian, and Native Hawaiian students learn their lessons through ancestral languages. This opportunity will help preserve the fast-vanishing Native languages of our first peoples.

So what we worked to do within the program was that the Native Alaskan language immersion schools and programs will help Native language immersion schools develop curriculum and assessments, provide professional development to teachers and other staff, and carry out activities that will promote the maintenance and revitalization of these endangered languages.

This is a provision where I really am quite proud of what we have been able to do, working with our colleagues to make sure that we do not lose that focus in this important act.

We also eliminate some technical redtape that makes it nearly impossible for Alaska's rural school districts to claim impact aid dollars to which they are entitled just because NCLB and the Alaska Native Claims Settlement Act didn't play well together. While it is more complicated to explain, I just leave it by saying that many rural Alaskan school districts are no longer going to have to bang their heads against a brick wall of illogical and contradictory Federal rules after this provision is enacted. And that is always a good thing.

I would point out that fixing this problem started because a handful of schools, business officials, and superintendents took the time to reach out to me to let me know: We have a problem here. This is really one of those examples where working together we are all building legislation.

I am also quite proud to have helped move strong improvements to the Alaska Native Education Equity Program. We call it ANEP in this legislation. For some years now, Alaska Native leaders have asked: Why do schools get all of the title VII Indian education money and most of the ANEP funding. They explained that they are more than ready to take on responsibility to help their children achieve in school. Alaska Native leaders have a valuable and, indeed, indispensable role to play in designing and implementing programs to help our children succeed. These are sound arguments.

While Alaska receives no funding from the Bureau of Indian Education, and our schools receive the title VII, part A funding, the government-to-government relationship between the Federal Government and Alaska tribes and Native organizations has not been fully honored under ANEP.

Under the amendments we include in the act, ANEP funds will either go directly to tribes and Native organizations that have expertise running education programs or the funds will go to tribes and Native organizations without such experience that partner with school districts. In addition, tribes and tribal organizations may partner with the university and other Non-Native entities if they so choose. This will not only honor our constitutional relationship to Alaska Natives but ensure that they can take on more responsibility for helping their children succeed, which, again, is the right thing to do.

In closing, I wish to say that the Every Child Achieves Act is a good piece of legislation, and it is getting better with each day as we consider additional amendments. It is far better than what we ever had with No Child Left Behind.

While I am positive that each of us will have more thoughts about how this could be a better bill, be a more perfect piece of legislation if only one or two more changes were made, on the whole this is a sound improvement over the current, failed law. I certainly intend to be supportive as we move through the end of this process.

With that, I appreciate the courtesy of my colleague from Rhode Island in deferring, and know that when I have a similar opportunity to yield to the Senator, I shall do so.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. WHITEHOUSE. Mr. President, I wish to join Chairman MURKOWSKI in expressing my satisfaction and pleasure with this bill we are on and join her in commending the leadership of Ranking Member PATTY MURRAY and Chairman LAMAR ALEXANDER. As a result of their work, we have a significant piece of legislation before us. It received bipartisan support in the committee, and I think the secret of their success was that they knew how to let Senators be Senators and work on a bill, really on the merits of it, without a lot of partisan gunslinging. As a result, the legislation before us creates a tremendous improvement in K–2 education over the failed No Child Left Behind Act. The process that led to this was bipartisan, substantive, and thorough. They really listened to a wide array of viewpoints. The result is this strong bipartisan proposal. As one of my senior colleagues on the committee said, this is what happens when you have committee leaders who really know what they are doing.

By now, most Americans—certainly my constituents—are familiar with the failures of No Child Left Behind. It overemphasized a peculiar form of testing, a form of testing in which the student took the test but wasn't graded on it. The subject of the test really was the performance of the school itself. Schools became frantic to heap up student performance to protect themselves. As a result, there was a lot of drama in the schools around these tests. If you did not do well, that pitched you into a narrow, one-size-fits-all approach to fixing the low-performing school. That combination served neither students nor communities well.

The Every Child Achieves Act is based on a very simple idea that I think has broad support in the Senate: Less classroom time spent on this frantic test preparation for the high-stakes exams means more time actually learning. The Every Child Achieves Act allows States to take a whole range of factors into account to gauge how students are doing and how the schools are doing, not just one test. I call that the data dashboard. It can include things such as graduation rates, college performance rates afterwards, how many students are taking AP classes and SAT tests, incidents of violence or bullying, and even working conditions for teachers. It is something we have worked on in Rhode Island through something called the InfoWorks Program. It is a commonsense way of understanding school and student performance without creating this massive distraction and drama.

Less emphasis on this peculiar high-stakes testing regime means more time for teachers to teach a more balanced,

well-rounded curriculum, giving attention to important subjects such as history and the arts, which, because they weren't covered under these high-pressure standardized tests, fell out of the curriculum. So what parents ought to see after we pass this bill is a much richer curriculum for their kids and one that some kids simply need in order to stay interested in school. If arts are your passion as a child and if that has fallen out because of this testing regime, you really have been hurt. If history and the stories of what happened in the olden days are what really gets you excited about education and if that gets squeezed out so you can do the math and the reading test better, you really have been hurt as a student. So that has changed. I am glad we have language in this bill that supports civics and American history education so that beyond reading and math—the tested subjects—students who graduate from public education have a real understanding of what it means to be an American citizen. It means something to be an American citizen. They need to understand the trajectory of this country so that they can fill that role as American citizens better.

The bill supports school libraries, which is an issue my senior Senator, JACK REED, has long championed and which I was proud to support in committee.

It includes an initiative I supported that was led by Senator MIKULSKI to provide support for gifted and talented students, particularly those who are in high-poverty schools. It can be hard to keep a high-ability child engaged and motivated if they are not challenged. I believe Senator MIKULSKI's language will be a big help to these kids, their teachers, and their parents.

When a school does fall short, the Every Child Achieves Act rejects the overly punitive interventions of the No Child Left Behind Act. Instead, it allows communities, parents, and teachers to work together to improve their school in ways that make sense for the students and give them the tools to succeed.

In my experience, I have learned that the greatest unmet area—at least in Rhode Island—is in middle schools. When I talk to people from other States, they see the same thing. Those middle grades are a tipping point in the lives of many students, especially those at risk of dropping out.

When I was Rhode Island's attorney general, I saw hundreds of juvenile cases that had a common thread, which was catastrophic levels of middle school truancy. In order to get a better handle on what was happening in the middle schools, I adopted one—the Oliver Hazard Perry Middle School in Providence. We worked hard to create a real relationship between the police department and the school. We helped get truant kids back in classrooms. We began a mentoring program between students and the attorneys in my office. We brought in community groups to start afterschool programs. We did a lot of different things.

Those years of working with middle school stakeholders helped me realize how much the middle grades bear on a child's future. It is an age when the child is beginning to make his or her own decisions, which can be dangerously bad ones at that time. But they can still be influenced by positive adults and by enriching experiences in their lives.

Many students who fail in high school showed the warning signs in middle school. We need to be reaching back into middle school to help them stay on track. That is why I am so glad to have partnered with our friend Senator BALDWIN on a measure that requires States to identify and support students at risk of dropping out in middle school and not wait until they are in serious trouble in high school.

I am also proud that the bill includes key elements of the Community Partnerships in Education Act, the House version of which was championed by my House colleague Congressman DAVID CICILLINE.

The outstanding success in Rhode Island of the Providence After School Alliance shows that schools and their students can thrive with help from strong community partners focused on sustainable and coordinated afterschool learning opportunities. PASA is really a model. Community-based afterschool has long been underappreciated, and I am glad it is on an even basis in this bill with school-based afterschool.

The Every Child Achieves Act also makes progress in educating students who have become involved in the criminal justice system. As with the juvenile justice reauthorization that I am working on with Chairman GRASSLEY in the Judiciary Committee, this bill tries to break the cycle of troubled kids who enter the juvenile justice system, who get marginalized, who fall further behind in their education, leading to more trouble and ultimately to crime. This phenomenon is referred to as the school-to-prison-pipeline, and it is tragic and it needs to end.

I have also seen and heard how Federal, State, and local regulations can get in the way of innovative reforms. Over the last 2 years, I have worked closely with Rhode Island educators, who have told me time and time again that they could achieve much better results if not for the layers of professional education bureaucracy stifling innovation at multiple levels.

I am working to include an amendment to establish an innovation schools demonstration, giving teachers, parents, and school leaders, who have a unique understanding of the students and communities they serve, the flexibility to turn those ideas into action.

In Rhode Island, I have heard from school leaders who would like to extend the school day for struggling students, reboot their curriculum, take ownership over their school's budgeting and financing, or better manage their school's human resources. But they can't because existing rules and regulations get in the way. They are often daunting because if you try to get after the local regulations, you still have the State regulations. If you try to go after the local and the State regulations, you still have the Federal regulations. So they give up.

My amendment establishes a fast-track process to give public schools relief from barriers to school-level innovation—relief from local, State, and Federal regulations.

Here is what Victor Capellan, superintendent of the Central Falls, RI, School District, told me: ''As a leader, having more flexibility to design the learning around the needs of my students and teachers and within the local context that exists—and not based on old and fixed conditions—makes all the sense in the world to me.''

Overall, the Every Child Achieves Act returns more decisionmaking authority to public schools, gives them tools to help every student succeed, and promotes greater flexibility in achieving high standards.

As I prepared at home for this bill, I worked with a lot of Rhode Islanders to learn what was needed. I am grateful to the groups who gave me so much time. Many of us met over and over to work through these issues and lay the foundation, particularly for the middle school part of the bill and for the innovation schools part of the bill. There was a lot of good Rhode Island work that went into those, and I appreciate it.

I believe this bill responds to the needs and concerns of the many Rhode Island teachers, reformers, students, school administrators, and union officials I worked with. I am proud to support it.

I will close by saying one last thing. There are many issues we deal with where we experience a lot of confrontation. Often we come into a situation thinking we know what the confrontation is. Before we even get to it, we anticipate the confrontation. What I learned from sitting down and spending real time with teachers who are in teachers unions, with reformers who are determined to make schools better and able to innovate, administrators who work in public schools and the administrators who work in charter schools, you put them all together and they agree on so much of what is in this bill. If you treat people involved in this system with the respect they deserve individually, and if you listen to them, the agreement is far greater than the disagreement.

I will close where I began. What Chairman ALEXANDER and Ranking Member MURRAY did was to create a process where we could be Senators, and as a Senator I was able to bring those voices from Rhode Island into this process in a meaningful way. My ability to bring that voice in a meaningful way empowered me to be able to

bring those voices together back in Rhode Island and find the kind of agreement that has enabled these successes, so I am very grateful to them as well.

With that comment, I yield the floor. I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. TILLIS). The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

HIRE MORE HEROES ACT OF 2015—MOTION TO PROCEED

Mr. MCCONNELL. Mr. President, I move to proceed to Calendar No. 19, H.R. 22.

The PRESIDING OFFICER. The clerk will report the motion.

The senior assistant legislative clerk read as follows:

Motion to proceed to Calendar No. 19, H.R. 22, a bill to amend the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The senior assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the motion to proceed to Calendar No. 19, H.R. 22, an act to amend the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act.

Mitch McConnell, Roger F. Wicker, Shelley Moore Capito, Rob Portman, John Cornyn, James M. Inhofe, Daniel Coats, John Boozman, Johnny Isakson, Pat Roberts, John Barrasso, Mike Rounds, Mike Crapo, Roy Blunt, Thom Tillis, Deb Fischer, Richard Burr.

Mr. MCCONNELL. Mr. President, I withdraw my motion to proceed.

The PRESIDING OFFICER. The motion is withdrawn.

ADOPTIVE FAMILY RELIEF ACT

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 145, S. 1300.

The PRESIDING OFFICER. The clerk will report the bill by title.

The bill clerk read as follows:

A bill (S. 1300) to amend the section 221 of the Immigration and Nationality Act to provide relief for adoptive families from immigrant visa fees in certain situations.

There being no objection, the Senate proceeded to consider the bill.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the bill be read a third time and passed, and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 1300) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 1300

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Adoptive Family Relief Act''.

SEC. 2. WAIVER OF FEES FOR RENEWAL OF IMMIGRANT VISA FOR ADOPTED CHILD IN CERTAIN SITUATIONS.

Section 221(c) of the Immigration and Nationality Act (8 U.S.C. 1201(c)) is amended to read as follows:

''(c) PERIOD OF VALIDITY; RENEWAL OR REPLACEMENT.—

''(1) IMMIGRANT VISAS.—An immigrant visa shall be valid for such period, not exceeding six months, as shall be by regulations prescribed, except that any visa issued to a child lawfully adopted by a United States citizen and spouse while such citizen is serving abroad in the United States Armed Forces, or is employed abroad by the United States Government, or is temporarily abroad on business, shall be valid until such time, for a period not to exceed three years, as the adoptive citizen parent returns to the United States in due course of his service, employment, or business.

''(2) NONIMMIGRANT VISAS.—A nonimmigrant visa shall be valid for such periods as shall be by regulations prescribed. In prescribing the period of validity of a nonimmigrant visa in the case of nationals of any foreign country who are eligible for such visas, the Secretary of State shall, insofar as practicable, accord to such nationals the same treatment upon a reciprocal basis as such foreign country accords to nationals of the United States who are within a similar class; except that in the case of aliens who are nationals of a foreign country and who either are granted refugee status and firmly resettled in another foreign country or are granted permanent residence and residing in another foreign country, the Secretary of State may prescribe the period of validity of such a visa based upon the treatment granted by that other foreign country to alien refugees and permanent residents, respectively, in the United States.

''(3) VISA REPLACEMENT.—An immigrant visa may be replaced under the original number during the fiscal year in which the original visa was issued for an immigrant who establishes to the satisfaction of the consular officer that the immigrant—

''(A) was unable to use the original immigrant visa during the period of its validity because of reasons beyond his control and for which he was not responsible;

''(B) is found by a consular officer to be eligible for an immigrant visa; and

''(C) pays again the statutory fees for an application and an immigrant visa.

''(4) FEE WAIVER.—If an immigrant visa was issued, on or after March 27, 2013, for a child who has been lawfully adopted, or who is coming to the United States to be adopted, by a United States citizen, any statutory immigrant visa fees relating to a renewal or replacement of such visa may be waived or, if already paid, may be refunded upon request, subject to such criteria as the Secretary of State may prescribe, if—

''(A) the immigrant child was unable to use the original immigrant visa during the period of its validity as a direct result of extraordinary circumstances, including the denial of an exit permit; and

''(B) if such inability was attributable to factors beyond the control of the adopting parent or parents and of the immigrant.''.

Mr. MCCONNELL. Mr. President, I just want to briefly say a few words about today's Senate passage of S. 1300, the Adoptive Family Relief Act. The issue this bill addresses is of particular importance to me, and I am proud to be a cosponsor of the legislation.

More than 400 American families—approximately 20 of them from Kentucky—have successfully adopted children from the Democratic Republic of the Congo or the DRC. However, due to the DRC Government's suspension of exit permits—which has been in place for close to 2 years now—many of these families have been unable to bring their adoptive children home to the United States.

For example, although I was pleased to be able to help the Brock family from Owensboro, KY, with the return of one of their adopted sons last Christmas, their other son still remains in the DRC. To make matters worse, many of these families have been financially burdened by the cost of continually renewing their children's visas while they wait for the day the DRC decides to lift the suspension.

In an attempt to help these families, the Adoptive Family Relief Act will provide meaningful financial relief by granting the State Department the authority to waive the fees for multiple visa renewals in this and other extraordinary adoption circumstances.

The bill builds on Congress's bipartisan efforts on this adoption issue, including a provision in this year's congressional budget resolution to encourage a solution to the stalemate in the DRC.

I strongly urge the DRC Government to resolve this matter. I truly hope there is a solution to it soon, but until then I urge the House and President Obama to help us enact the Adoptive Family Relief Act. The passage of this bill through the Senate today will help bring needed assistance to so many loving families across our country who want nothing more than to open their homes to a child in need.

I wish to thank the bill's sponsors, Senators FEINSTEIN and JOHNSON, the 17 other bipartisan cosponsors, and the Judiciary Committee for their hard work and truly bipartisan commitment to solving this heartbreaking issue.

I suggest the absence of a quorum.

The PRESIDING OFFICER. Will the Senator withhold?

Mr. MCCONNELL. I am sorry. I withhold.

EVERY CHILD ACHIEVES ACT OF 2015—Continued

The PRESIDING OFFICER. The Senator from Ohio.

Mr. BROWN. Mr. President, I thank the majority leader.

I ask unanimous consent to speak for up to 10 minutes as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

5TH ANNIVERSARY OF DODD-FRANK WALL STREET REFORM ACT

Mr. BROWN. Mr. President, next Tuesday, July 21, is my wife's birthday, and it is also the 5-year anniversary of the Dodd-Frank Wall Street Reform Act becoming law.

Nearly two decades before that, Barings, an international bank, was destroyed by fraud committed by a single one of their traders. In reality, there were no profits, unbeknownst to many at the time, just big losses that this trader managed to conceal until the firm collapsed.

When writing about his actions later in his memoir, the trader said:

> Luckily for my fraud, there were too many chiefs who would chat about it at arm's length but never go further. And they never dared to ask me any basic questions, since they were afraid of looking stupid about not understanding futures and options.

This helps illustrate how we got to that financial crisis.

Wall Street so often speaks its own language—one most Americans can't understand and one that prevented consumers and taxpayers and sometimes even participants from asking questions and from challenging Wall Street.

September 2008 was preceded by a decade of deregulation, after furious lobbying by the financial industry—lobbying buttressed by obfuscation and deceit, always underscored by greed. Risky behavior was rewarded with gargantuan profits for the firms and multimillion-dollar bonuses for the traders and the executives. Questions were not asked. People often looked the other way. So many were confused and tricked, if you will.

Regulators didn't do their jobs. Congress was too—putting it mildly—bought and sold by Wall Street, and look what happened to the American public. Most Americans didn't fully appreciate the connection between Wall Street and our lives until 2008. That is when the biggest banks' recklessness led to the loss of 9 million jobs. The unemployment rate reached 10 percent, 5 million Americans lost their homes, and $13 trillion, with a ''T''—that is 13,000 billion; that is what a trillion is, 13,000 billion dollars—in household wealth was erased.

My wife and I for 2 years have lived in the city of Cleveland in ZIP Code 44105. I mention the ZIP Code because that ZIP Code in 2007, I believe—it was around that time—that ZIP Code had the highest rate of foreclosures of any ZIP Code in the United States of America. It wasn't because people in Slavic Village, Cleveland, OH, in my neighborhood were trying to game the system. It was not because there were all kinds of con men and women in the neighborhood. It was mostly because of job loss due to the decline in manufacturing. It was also because firms that were rewarded by turning over homes and fees came into those communities offering something more than people could really think they would get, and so foreclosure after foreclosure after foreclosure happened.

The financial crisis created 9 million people who wanted to work for a living, contribute to society, and support their families but could not. And behind the millions of foreclosures were 5 million painful conversations.

Think about this. We in this body talk about numbers, we talk about statistics, we talk about foreclosures, we talk about derivatives, we talk about banks, we talk about fees, we talk about all of this, but think about what a foreclosure means. We don't dress the way we do, making good salaries and benefits, hanging out more with people of means rather than people without much means; we don't think a lot about what a foreclosure might mean to a family. Think about this: A mother and father both have sort of middle-income jobs, working-class jobs. They have a daughter who is 12 and a son who is 13. The mother comes home one day and says: I lost my job. The family scrapes things together, figures they can keep going. Six months later the father comes home and says he lost his job. The kids and the father have a conversation.

It is pretty clear they are going to have to move out of their house because they are going to be foreclosed on. They sit down with the son and daughter and they try to explain what this is going to mean.

The daughter says: What school are we going to go to?

The parents say: I don't know. We are going to have to move out of this house and leave our school district.

The son says: What happens to our friends?

And the parents say: We don't know because we are going to move.

Then they have another painful conversation.

What happens to our dog?

We don't have the money to feed the dog, and in that new apartment we are not going to be allowed to have a pet.

Think about that. They lose their home and their neighborhood and their friends. They even have to give away their family pets. They are cutting back.

These are the stories that aren't really told around here—what actually happens to these families when they are foreclosed on. Those conversations happened—I don't know how many conversations, but I know there were 5 million homes foreclosed on where conversations took place such as that night after night after night, as parents explained to their children what was happening to their way of life. Parents were sometimes telling their children, We are going to have to share a house with relatives. Families leaving neighborhoods, leaving schools, leaving friends behind, parents trying to find a new home for the family dog that the child had grown up with since the child was 3 or 4 years old, that is why we passed Wall Street reform.

Despite doomsday predictions from the Republicans—almost all of whom opposed Dodd-Frank reform, almost all of whom opposed Dodd-Frank because Wall Street opposed Dodd-Frank reform—despite those predictions, it has been a huge success.

In 2011, as the law was beginning to be implemented, we heard Republicans running for President, people such as Newt Gingrich, a historical figure who has, by and large, been forgotten now, who used to be the Speaker of the House down the hall, who used to be one of the most powerful people in Washington, who stood toe-to-toe with President Clinton and shut down the government in the 1990s. He said Dodd-Frank will kill small banks, kill small business, kill the housing industry. He was wrong.

Since Dodd-Frank has been implemented over the past 5 years, the private sector has created 13 million new jobs, household wealth has grown by $13 trillion, exceeding precrisis levels, and business lending has climbed 30 percent. Wall Street reform didn't ruin the economy, Wall Street reform stabilized and strengthened it.

Polling that Americans for Financial Reform released last week shows that Americans agree with this assessment. They overwhelmingly support strong financial regulations and they overwhelmingly support the goals of the Consumer Financial Protection Bureau.

But this month—and for the rest of the year—we have seen Republicans try to undermine Wall Street reform, try to do the bidding of Wall Street itself, and try to do all they can to weaken the Consumer Financial Protection Bureau. We have seen it in the Budget Committee and in the Agriculture Committee and in the Banking Committee and in the appropriations process.

Last week, in the Senate Banking Committee, Republicans held another hearing with representatives from the financial industry advocating for legislation to undermine parts of Dodd-Frank. Week after week, it seems, we hear from people who come in front of the Banking Committee—people who seem oblivious to the fact that Wall Street caused this damage to our society, people doing the bidding for Wall Street banks, people who have excused the greed and the overreach of Wall Street and what Wall Street has done to the men and women, done to children, done to families, done to neighborhoods in our society.

My ZIP Code is doing better than it was, but we can still see the ruin and

the devastation brought to ZIP Code 44105, in part, because of Wall Street greed. We can see it all over this country.

Tomorrow, Consumer Financial Protection Bureau Director Rich Cordray, who I can proudly say is from my State of Ohio, will testify again in Congress. This will mark his 54th appearance—either him or someone else from the CFPB. As Republicans claim, the CFPB is unaccountable to Congress—hauled in front of Congress one, two, three, four-plus dozen times, and they still say it is unaccountable. Figure that out. It is all about the politics. Again, they are doing Wall Street's bidding.

This past weekend, two Republican Commissioners on the Securities and Exchange Commission and the Commodities Futures Trading Commission—agencies whose job it is to police Wall Street, to prevent another crisis—these two Republican Commissioners wrote an op-ed denouncing regulation. They wrote: ''One of the greatest potential risks to the financial markets is the work of the regulators themselves.'' They are not saying regulators should have been tougher on Wall Street. They are saying these regulators are overreaching and not doing what they should. In fact, these regulations shouldn't have existed many times. This is the attitude we are up against. We know they will keep fighting to tear down this law just as hard as they fought to keep it from passing.

Now, when Dodd-Frank was passed back in July 5 years ago, in 2010, President Obama signed the bill only a few hours later. The chief lobbyist for the top financial services, the top lobbyist in Washington, proclaimed: ''Now it's halftime.'' What did he mean by ''now it's halftime''? It was that, Wall Street lost that battle in Congress on Dodd-Frank, and now it was time to turn to the agencies and to try to weaken, obfuscate, blunt these rules, delay, and do whatever they could. There were 3,000 lobbyists during the Dodd-Frank act—6 lobbyists for every Member of Congress. Even then they couldn't win because enough of us here had the guts to stand up to Wall Street and do the right thing. Many of those 3,000 lobbyists are back.

In 2012, lobbyists for banks outnumbered consumer protection advocates 20 to 1—1 consumer advocate to 20 bank lobbyists spending hundreds of millions of dollars trying to weaken the law. We must stand firm. We must push back on efforts that roll back the reforms. We should stand up for the CFPB. Nobody is arguing that we can't improve and strengthen Dodd-Frank. We want to do that. But if improve and strengthen means doing Wall Street bidding, that is not what improve and strengthen should mean.

There are enormous challenges we have to tackle. Today's typical American consumer obviously has no union to demand a defined pension or a fair wage and no dependable retirement savings account. The average borrower has left college with a diploma and $33,000 in student loan debt. Nearly 60 percent of 18- to 24-year-olds now live with their parents, largely due to staggering student loan debt and stagnant wages. Five million Americans have mortgages that are under water, meaning they owe more than the house is worth, which represents nearly $350 billion of negative equity. That means if you total up all of the debt of those 5 million Americans—how much they owe on their homes—and subtract what their homes are worth, it would amount to $350 billion of negative equity.

One in five Americans has an error on her credit report that might prevent her from accessing a traditional banking system. It is not due to a mistake they made, but they have an error on their credit report that they, for whatever reason, have not been able to fix. One in three American adults has debt in collections, the majority of which is medical debt. Fifty-seven percent of Americans say they are not financially prepared for the unexpected. A financial crisis only makes these trends worse.

Where do we go? Some sectors of our economy have done better than others. When times are good, we return to discussions about regulatory relief, which I support, for small banks and credit unions. I think we need to make some changes in the midsized regional banks, such as the Huntington in Columbus or the Fifth Third Bank in Cincinnati, to help make them competitive, particularly with the large banks.

What about relief for the average American? All of us in this body need to broaden our focus beyond so-called regulatory relief. The answer to everything, according to my friends on the other side of the aisle, is to cut taxes on the rich and deregulate and weaken consumer laws, weaken safe drinking water laws, weaken clean air laws, and weaken Dodd-Frank laws. That is their answer to everything.

What about relief for average Americans? What about increasing the minimum wage? What about helping Americans who are making $30,000 or $40,000 but are denied overtime because they have been put in a salary or management category even though they are only making $30,000? They may be running the night shift at a fast-food restaurant and have been classified as bosses so as salaried workers, they don't get overtime even if they are working 60 hours a week. How about relief for that average American?

How about relief for Americans who don't have sick leave and go to work when they are sick and take the chance of infecting somebody else, because if they stay home, they will not receive any pay?

How about if their child is sick? Do they send their child to school, because they can't take a day off because they don't get a personal leave day to take care of their child? So their child may end up going to school, doesn't do as well and may get other children sick, which means less productive students or less productive workers if the parent ends up going to work sick—all of those things. Why don't we have relief for working-class and middle-class families—minimum wage, overtime pay when they have earned it and help those families get the kind of sick pay and sick leave as the people who work here have who dress up and are well paid and have the advantage of working in the Senate? Why are we not doing that?

We shouldn't be afraid to ask questions that will lead to the reforms we need. We shouldn't be afraid to challenge the status quo, and we should never be afraid to make Wall Street accountable.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

MORNING BUSINESS

VOTE EXPLANATION

● Mr. NELSON. Mr. President, on Monday, July 13, 2015, I was necessarily absent for a vote on amendment No. 2080 to the Every Child Achieves Act. Had I been present, I would have voted in favor of the amendment.●

REMEMBERING BEAU BIDEN

Mr. CASEY. Mr. President, I wish to pay tribute to Joseph Robinette ''Beau'' Biden III. Beau was a husband, father, son, brother, veteran, and friend, who lived a life of service, devoted to his family and his country. For Beau Biden, family was the center of his life: his father, our Vice President, and Dr. Jill Biden, his brother Hunter, his sister Ashley, and especially his wife Hallie and their children, Natalie and Hunter. Beau Biden's family and my family have been connected as friends, neighbors, and political allies for two generations. Like Vice President BIDEN, Beau was committed to duty, had great political skills, and lived his daily life with joy.

Inscribed on the front of the Finance Building in Harrisburg, PA, is the following quotation: ''All public service is a trust, given in faith and accepted in honor.'' As a soldier and a public official in Delaware, Beau Biden's work was a testament to that inscription. He accepted the trust he was given by serving with honor and distinction. Beau Biden served in the Delaware Army National Guard as a major in the Judge Advocate General, JAG Corps, which included a tour in Iraq. Growing up with a father who was a United States Senator, Beau Biden could have

taken an easy road to elected office, but that was not his way. He wanted to earn the trust of the people. He turned down an appointment as attorney general of Delaware, preferring to run for the position on his own. He won and served two terms as a faithful public servant. He was on track to become the next Governor of Delaware when his life was tragically cut short.

As attorney general, Beau Biden fought every day to protect children. Albert Camus once said: ''Perhaps we cannot prevent this world from being a world in which children are tortured. But we can reduce the number of tortured children. And if you don't help us, who else in the world can help us do this?'' Beau Biden answered that call. He said keeping children safe is why he wanted to be the attorney general of Delaware, and during his years in that position, he prosecuted child predators and worked to protect children from sexual abuse. In a column in the Wilmington News Journal, he wrote, ''As adults, we have a legal and moral obligation to stand up and speak out for children who are being abused—they cannot speak for themselves.'' It is fitting that his family established the Beau Biden Foundation for the Protection of Children to continue his fight.

At times like this, people often think about what could have been. A decade after Robert F. Kennedy died, Allard Lowenstein wrote an article entitled ''Anniversary of an Assassination.'' In it he wrote, ''And anybody who finds himself wishing on this occasion that Robert Kennedy were around knows what Robert Kennedy would be saying if he were here—knows that we have dallied long enough, and that it is past time to try again to do better, to make a difference; past time to dream again of things as they ought to be, and ask again why they are not.'' Beau Biden would not only want us to do the same thing, he would expect us to. He would be telling us to keep up the fight to protect children. He would be reminding us about the honor of public service, and he would be encouraging us to go out and serve our communities and our country.

RECOGNIZING THE HERO CAMPAIGN FOR DESIGNATED DRIVERS

Mr. BOOKER. Mr. President, each year, tens of thousands of lives are lost and millions more are injured in collisions on our Nation's highways. According to the National Highway Traffic Safety Administration, about 40 percent of all traffic fatalities involve alcohol. This preventable behavior continues to impose a terrible toll on our families and our Nation.

To eradicate drunk driving from our roads, we must change our Nation's culture around stepping behind the wheel after consuming alcohol. A major way to enact this change is to encourage and celebrate the role of designated drivers—those who make a commitment to remain sober to ensure that the passengers in their vehicle return home safely at the end of the night.

For this reason, I rise today to honor the 15th anniversary of the HERO Campaign, which works to create partnerships that encourage and support designated drivers.

The HERO Campaign was created in memory of U.S. Navy ENS John Elliott, a New Jersey resident and a graduate of the U.S. Naval Academy. Ensign Elliott was an outstanding citizen and Naval cadet. In each of his 4 years at Annapolis, Elliott was selected by his peers to serve as a human education resource officer, or HERO, to mentor fellow members of his company. At graduation, Elliott was honored as the outstanding HERO in his class.

On July 22, 2000, Ensign Elliott was driving to his home in Egg Harbor Township, NJ with his girlfriend when his vehicle was struck by an oncoming vehicle that crossed into his lane. The driver of that vehicle was operating under the influence of alcohol. Along with Ensign Elliott, that driver was killed in the collision.

Shortly after Ensign Elliott's life came to its untimely end, his parents, Bill and Muriel Elliott, started the HERO Campaign. The HERO Campaign is a non-profit organization that brings together schools, professional sports teams, law enforcement, taverns and restaurants, and community groups to recognize and encourage designated drivers.

Since its inception, the HERO Campaign has registered more than 100,000 designated drivers at sports stadiums, concerts, schools, and colleges in 7 States. In New Jersey, the HERO Campaign contributed to a 35.4 percent decline in alcohol-related driving fatalities in the general population and a 65.1 percent decline for those under 21 years of age. Truly, the accomplishments of the HERO Campaign are nothing less than heroic.

But their work is not done yet. The ultimate goal of the HERO Campaign is to register one million designated drivers across our Nation, and to ensure that having a designated driver before stepping out for the night becomes as automatic as putting on a seatbelt when getting into the car. As Bill Elliott says, the message is simple: ''Who's your HERO tonight?''

I can safely say that, to me, Bill and Muriel Elliott and their colleagues at the HERO Campaign are my heroes this and every night. I commend their accomplishments and support their efforts to save lives by helping others realize their heroic potential as designated drivers.

ADDITIONAL STATEMENTS

TRIBUTE TO BISHOP PAUL S. MORTON

• Mr. VITTER. Mr. President, I wish to honor Bishop Paul S. Morton. Bishop Morton was born in Windsor, Ontario, where he graduated from J.C. Patterson Collegiate Institute and St. Clair College. Despite his northern roots, Bishop Morton was called to New Orleans, LA, in 1972 to preach and spread the Gospel of the Lord. The Greater St. Stephen Missionary Baptist Church was Morton's first home, where he was installed as senior pastor in January 1975. Under the pastor's leadership, the congregation grew dramatically, resulting in the need to expand to a 2,000 seat sanctuary in 1980 and a 4,000 seat sanctuary in 1988. In 1991, Greater St. Stephen Missionary Baptist Church became Greater St. Stephen Full Gospel Baptist Church which preaches of the manifestation of miracles, healings, and gifts of the Holy Spirit.

With his unique leadership skills and his care for the community, Greater St. Stephen Full Gospel Baptist Church grew from 647 members to more than 20,000 members requiring 3 locations in the Greater New Orleans area. In addition to this great local accomplishment, Bishop Morton is also the senior pastor of Changing a Generation Full Gospel Church in Atlanta, GA, as well as the founding presiding bishop of the Full Gospel Baptist Church Fellowship International. The Full Gospel Baptist Church Fellowship represents thousands of church leaders and congregations around the world and focuses on cultivating positive values such as sustainability, holiness, innovation, family, and transcendence.

Bishop Paul S. Morton's dedication to his congregation is seen in the services he provides to the community. In 1997, the Greater St. Stephen ministry purchased a former naval base and converted it into affordable housing for more than 125 families in the New Orleans area. In addition to being an accomplished Gospel singer, the bishop hosts ''Changing a Generation,'' a daily radio show and weekly TV broadcast with the goal of changing the way people view going to church. Bishop Morton also serves as president of the Paul S. Morton, Sr. Scholarship Foundation and president of the Paul S. Morton Bible College and School of Ministry.

I am honored to share the accomplished career of Bishop Paul S. Morton, and I thank him for his services to the State of Louisiana.•

MESSAGES FROM THE HOUSE

At 11:14 a.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bill, without amendment:

S. 179. An act to designate the facility of the United States Postal Service located at 14 3rd Avenue, NW, in Chisholm, Minnesota, as the ''James L. Oberstar Memorial Post Office Building''.

The message also announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 208. An act to improve the disaster assistance programs of the Small Business Administration.

H.R. 387. An act to provide for certain land to be taken into trust for the benefit of Morongo Band of Mission Indians, and for other purposes.

H.R. 1023. An act to amend the Small Business Investment Act of 1958 to provide for increased limitations on leverage for multiple licenses under common control.

H.R. 2499. An act to amend the Small Business Act to increase access to capital for veteran entrepreneurs, to help create jobs, and for other purposes.

H.R. 2670. An act to amend the Small Business Act to provide for expanded participation in the microloan program, and for other purposes.

ENROLLED BILL SIGNED

At 12:47 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the Speaker has signed the following enrolled bill:

S. 179. An act to designate the facility of the United States Postal Service located at 14 3rd Avenue, NW, in Chisholm, Minnesota, as the ''James L. Oberstar Memorial Post Office Building''.

The enrolled bill was subsequently signed by the President pro tempore (Mr. HATCH).

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 208. An act to improve the disaster assistance programs of the Small Business Administration; to the Committee on Small Business and Entrepreneurship.

H.R. 387. An act to provide for certain land to be taken into trust for the benefit of Morongo Band of Mission Indians, and for other purposes; to the Committee on Indian Affairs.

H.R. 2670. An act to amend the Small Business Act to provide for expanded participation in the microloan program, and for other purposes; to the Committee on Small Business and Entrepreneurship.

MEASURES PLACED ON THE CALENDAR

The following bills were read the first and second times by unanimous consent, and placed on the calendar:

H.R. 1023. An act to amend the Small Business Investment Act of 1958 to provide for increased limitations on leverage for multiple licenses under common control.

H.R. 2499. An act to amend the Small Business Act to increase access to capital for veteran entrepreneurs, to help create jobs, and for other purposes.

ENROLLED BILL PRESENTED

The Secretary of the Senate reported that on today, July 14, 2015, she had presented to the President of the United States the following enrolled bills:

S. 179. An act to designate the facility of the United States Postal Service located at 14 3rd Avenue, NW, in Chisholm, Minnesota, as the ''James L. Oberstar Memorial Post Office Building''.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mrs. SHAHEEN:

S. 1754. A bill to amend title 38, United States Code, to make permanent the temporary increase in number of judges presiding over the United States Court of Appeals for Veterans Claims, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. SCHATZ (for himself, Mr. HEINRICH, Mrs. FEINSTEIN, Mr. BOOKER, Mr. WHITEHOUSE, and Mr. FRANKEN):

S. 1755. A bill to amend the Internal Revenue Code of 1986 to provide for a 5-year extension of the tax credit for residential energy efficient property; to the Committee on Finance.

By Mrs. SHAHEEN (for herself and Mr. COONS):

S. 1756. A bill to help small businesses take advantage of energy efficiency; to the Committee on Small Business and Entrepreneurship.

By Mr. PORTMAN (for himself, Mr. HEINRICH, Mr. THUNE, and Mr. BENNET):

S. 1757. A bill to amend title XVIII of the Social Security Act to promote health care technology innovation and access to medical devices and services for which patients choose to self-pay under the Medicare program, and for other purposes; to the Committee on Finance.

By Mr. COATS:

S. 1758. A bill to amend the Social Security Act to make certain revisions to provisions limiting payment of benefits to fugitive felons under titles II, VIII, and XVI of the Social Security Act; to the Committee on Finance.

By Mr. REID (for Mr. NELSON (for himself, Ms. KLOBUCHAR, and Mr. DONNELLY)):

S. 1759. A bill to prevent caller ID spoofing, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mrs. GILLIBRAND (for herself, Mr. KIRK, and Mr. DURBIN):

S. 1760. A bill to prevent gun trafficking; to the Committee on the Judiciary.

By Mrs. BOXER (for herself and Mrs. FEINSTEIN):

S. 1761. A bill to take certain Federal land located in Lassen County, California, into trust for the benefit of the Susanville Indian Rancheria, and for other purposes; to the Committee on Indian Affairs.

By Mr. CRUZ:

S. 1762. A bill to amend the Immigration and Nationality Act to increase the penalties applicable to aliens who unlawfully reenter the United States after being removed; to the Committee on the Judiciary.

By Mr. DURBIN (for himself and Mr. PETERS):

S. 1763. A bill to require a study on the public health and environmental impacts of the production, transportation, storage, and use of petroleum coke, and for other purposes; to the Committee on Environment and Public Works.

By Mr. PAUL:

S. 1764. A bill to prohibit certain Federal funds from being made available to sanctuary cities and for other purposes; to the Committee on the Judiciary.

By Mr. BENNET (for himself, Mr. MERKLEY, and Ms. BALDWIN):

S. 1765. A bill to amend the Older Americans Act of 1965 to provide equal treatment of LGBT older individuals, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mrs. FEINSTEIN (for herself and Mr. LANKFORD):

S. Res. 223. A resolution designating September 2015 as ''National Child Awareness Month'' to promote awareness of charities benefitting children and youth-serving organizations throughout the United States and recognizing the efforts made by those charities and organizations on behalf of children and youth as critical contributions to the future of the United States; considered and agreed to.

ADDITIONAL COSPONSORS

S. 192

At the request of Mr. ALEXANDER, the name of the Senator from Missouri (Mrs. MCCASKILL) was added as a cosponsor of S. 192, a bill to reauthorize the Older Americans Act of 1965, and for other purposes.

S. 298

At the request of Mr. BENNET, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 298, a bill to amend titles XIX and XXI of the Social Security Act to provide States with the option of providing services to children with medically complex conditions under the Medicaid program and Children's Health Insurance Program through a care coordination program focused on improving health outcomes for children with medically complex conditions and lowering costs, and for other purposes.

S. 326

At the request of Mr. FLAKE, the name of the Senator from Montana (Mr. DAINES) was added as a cosponsor of S. 326, a bill to amend the Healthy Forests Restoration Act of 2003 to provide cancellation ceilings for stewardship end result contracting projects, and for other purposes.

S. 491

At the request of Ms. KLOBUCHAR, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 491, a bill to lift the trade embargo on Cuba.

S. 571

At the request of Mr. INHOFE, the name of the Senator from Idaho (Mr. CRAPO) was added as a cosponsor of S. 571, a bill to amend the Pilot's Bill of Rights to facilitate appeals and to apply to other certificates issued by the Federal Aviation Administration, to require the revision of the third class medical certification regulations issued by the Federal Aviation Administration, and for other purposes.

S. 637

At the request of Mr. CRAPO, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. 637, a bill to amend the Internal Revenue Code of 1986 to extend and modify the railroad track maintenance credit.

S. 667

At the request of Mr. ENZI, the name of the Senator from Oklahoma (Mr. LANKFORD) was added as a cosponsor of S. 667, a bill to ensure that organizations with religious or moral convictions are allowed to continue to provide services for children.

S. 700

At the request of Mr. DURBIN, the name of the Senator from California (Mrs. BOXER) was added as a cosponsor of S. 700, a bill to amend the Asbestos Information Act of 1988 to establish a public database of asbestos-containing products, to require public disclosure of information pertaining to the manufacture, processing, distribution, and use of asbestos-containing products in the United States, and for other purposes.

S. 704

At the request of Mr. GRASSLEY, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 704, a bill to establish a Community-Based Institutional Special Needs Plan demonstration program to target home and community-based care to eligible Medicare beneficiaries.

S. 707

At the request of Mr. MARKEY, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of S. 707, a bill to provide certain protections from civil liability with respect to the emergency administration of opioid overdose drugs.

S. 885

At the request of Ms. WARREN, the name of the Senator from New Jersey (Mr. BOOKER) was added as a cosponsor of S. 885, a bill to direct the Architect of the Capitol to place in the United States Capitol a chair honoring American Prisoners of War/Missing in Action.

S. 928

At the request of Mrs. GILLIBRAND, the name of the Senator from Maryland (Ms. MIKULSKI) was added as a cosponsor of S. 928, a bill to reauthorize the World Trade Center Health Program and the September 11th Victim Compensation Fund of 2001, and for other purposes.

S. 1021

At the request of Mr. DURBIN, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 1021, a bill to require the Secretary of Veterans Affairs to award grants to establish, or expand upon, master's degree programs in orthotics and prosthetics, and for other purposes.

S. 1170

At the request of Mrs. FEINSTEIN, the names of the Senator from Missouri (Mr. BLUNT) and the Senator from Iowa (Mr. GRASSLEY) were added as cosponsors of S. 1170, a bill to amend title 39, United States Code, to extend the authority of the United States Postal Service to issue a semipostal to raise funds for breast cancer research, and for other purposes.

S. 1212

At the request of Mr. CARDIN, the name of the Senator from Rhode Island (Mr. REED) was added as a cosponsor of S. 1212, a bill to amend the Internal Revenue Code of 1986 and the Small Business Act to expand the availability of employee stock ownership plans in S corporations, and for other purposes.

S. 1214

At the request of Mr. MENENDEZ, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 1214, a bill to prevent human health threats posed by the consumption of equines raised in the United States.

S. 1300

At the request of Mrs. FEINSTEIN, the name of the Senator from Pennsylvania (Mr. CASEY) was added as a cosponsor of S. 1300, a bill to amend the section 221 of the Immigration and Nationality Act to provide relief for adoptive families from immigrant visa fees in certain situations.

S. 1392

At the request of Mr. MARKEY, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of S. 1392, a bill to require certain practitioners authorized to prescribe controlled substances to complete continuing education.

S. 1409

At the request of Mr. MARKEY, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of S. 1409, a bill to amend title XIX of the Social Security Act to require States to suspend, rather than terminate, an individual's eligibility for medical assistance under the State Medicaid plan while such individual is an inmate of a public institution.

S. 1491

At the request of Mr. BROWN, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 1491, a bill to provide sensible relief to community financial institutions, to protect consumers, and for other purposes.

S. 1498

At the request of Mr. WYDEN, the name of the Senator from Maryland (Ms. MIKULSKI) was added as a cosponsor of S. 1498, a bill to amend title 10, United States Code, to require that military working dogs be retired in the United States, and for other purposes.

S. 1512

At the request of Mr. CASEY, the name of the Senator from Minnesota (Mr. FRANKEN) was added as a cosponsor of S. 1512, a bill to eliminate discrimination and promote women's health and economic security by ensuring reasonable workplace accommodations for workers whose ability to perform the functions of a job are limited by pregnancy, childbirth, or a related medical condition.

S. 1533

At the request of Mr. BARRASSO, the name of the Senator from Wyoming (Mr. ENZI) was added as a cosponsor of S. 1533, a bill to authorize the Secretary of the Interior to coordinate Federal and State permitting processes related to the construction of new surface water storage projects on lands under the jurisdiction of the Secretary of the Interior and the Secretary of Agriculture and to designate the Bureau of Reclamation as the lead agency for permit processing, and for other purposes.

S. 1555

At the request of Ms. HIRONO, the name of the Senator from Virginia (Mr. WARNER) was added as a cosponsor of S. 1555, a bill to award a Congressional Gold Medal, collectively, to the Filipino veterans of World War II, in recognition of the dedicated service of the veterans during World War II.

S. 1617

At the request of Mrs. SHAHEEN, the names of the Senator from Kansas (Mr. MORAN), the Senator from South Carolina (Mr. GRAHAM) and the Senator from Texas (Mr. CRUZ) were added as cosponsors of S. 1617, a bill to prevent Hizballah and associated entities from gaining access to international financial and other institutions, and for other purposes.

S. 1654

At the request of Mr. REED, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of S. 1654, a bill to prevent deaths occurring from drug overdoses.

S. 1746

At the request of Mr. CARDIN, the name of the Senator from New Mexico (Mr. UDALL) was added as a cosponsor of S. 1746, a bill to require the Office of Personnel Management to provide complimentary, comprehensive identity protection coverage to all individuals whose personally identifiable information was compromised during recent data breaches at Federal agencies.

S. RES. 222

At the request of Mr. LEAHY, the names of the Senator from Rhode Island (Mr. WHITEHOUSE), the Senator from Vermont (Mr. SANDERS), the Senator from California (Mrs. FEINSTEIN), the Senator from New York (Mrs. GILLIBRAND), the Senator from Hawaii (Ms. HIRONO) and the Senator from Wisconsin (Ms. BALDWIN) were added as cosponsors of S. Res. 222, a resolution expressing the sense of the Senate that the Federation Internationale de Football Association should immediately eliminate gender pay inequity and treat all athletes with the same respect and dignity.

AMENDMENT NO. 2128

At the request of Mr. KAINE, the names of the Senator from Ohio (Mr. PORTMAN), the Senator from West Virginia (Mrs. CAPITO) and the Senator from South Carolina (Mr. GRAHAM) were added as cosponsors of amendment No. 2128 intended to be proposed to S. 1177, an original bill to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves.

AMENDMENT NO. 2135

At the request of Mrs. GILLIBRAND, the name of the Senator from Maryland (Mr. CARDIN) was added as a cosponsor of amendment No. 2135 intended to be proposed to S. 1177, an original bill to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves.

AMENDMENT NO. 2152

At the request of Mr. CASEY, the names of the Senator from Montana (Mr. TESTER), the Senator from Rhode Island (Mr. REED), the Senator from Minnesota (Ms. KLOBUCHAR) and the Senator from Oregon (Mr. MERKLEY) were added as cosponsors of amendment No. 2152 intended to be proposed to S. 1177, an original bill to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves.

AMENDMENT NO. 2162

At the request of Mr. LEE, the name of the Senator from Kentucky (Mr. PAUL) was added as a cosponsor of amendment No. 2162 proposed to S. 1177, an original bill to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves.

AMENDMENT NO. 2179

At the request of Mr. CRAPO, the name of the Senator from Georgia (Mr. PERDUE) was added as a cosponsor of amendment No. 2179 intended to be proposed to S. 1177, an original bill to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves.

AMENDMENT NO. 2180

At the request of Mr. CRUZ, the names of the Senator from Georgia (Mr. PERDUE) and the Senator from Louisiana (Mr. VITTER) were added as cosponsors of amendment No. 2180 intended to be proposed to S. 1177, an original bill to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves.

AMENDMENT NO. 2227

At the request of Mr. CORNYN, the name of the Senator from Virginia (Mr. WARNER) was added as a cosponsor of amendment No. 2227 intended to be proposed to S. 1177, an original bill to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. DURBIN (for himself and Mr. PETERS):

S. 1763. A bill to require a study on the public health and environmental impacts of the production, transportation, storage, and use of petroleum coke, and for other purposes; to the Committee on Environment and Public Works.

Mr. DURBIN. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 1763

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Petroleum Coke Transparency and Public Health Protection Act''.

SEC. 2. FINDINGS.

Congress finds the following:

(1) In the past several years, United States crude oil refineries have grown their coking capacity to accommodate the conversion of heavy crude oils into refined petroleum products.

(2) As coking capacity has grown, the domestic production of petroleum coke is expected to grow, leading to increases in the storage, transportation, and use of the material.

(3) In Detroit, piles of petroleum coke have been stored in the open air on the banks of the Detroit River.

(4) Uncovered piles of petroleum coke have also been stored in Southeast Chicago near homes and local baseball fields.

(5) State regulators, communities, and industry stakeholders would benefit from a complete understanding of petroleum coke and the potential impact on public health and the environment related to the production, transportation, storage, and use of petroleum coke.

SEC. 3. STUDY OF PETROLEUM COKE PUBLIC HEALTH AND ENVIRONMENTAL IMPACTS.

(a) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Secretary of Health and Human Services, in consultation with the Administrator of the Environmental Protection Agency, the Secretary of Transportation, and the Secretary of Energy, shall submit to Congress a report containing the results of a study concerning petroleum coke that includes the following:

(1) An analysis of the public health and environmental impacts of the production, transportation, storage, and use of petroleum coke.

(2) An assessment of potential approaches and best practices for storing, transporting, and managing petroleum coke.

(3) A quantitative analysis of current and projected domestic petroleum coke production and utilization locations.

(b) BEST AVAILABLE SCIENCE.—The study under subsection (a) shall be carried out using the best available science, including readily available information from appropriate State agencies, nonprofit entities, academic entities, and industry.

(c) PUBLICATION OF REPORT.—Not later than 180 days after the date of enactment of this Act, the Secretary of Health and Human Services shall publish on the Internet website of the Department of Health and Human Service the report described in subsection (a).

SEC. 4. IMPLEMENTATION OF STANDARDS.

Not later than one year after the date of enactment of this Act, the Administrator of the Environmental Protection Agency, in consultation with the Secretary of Transportation, shall promulgate rules concerning the storage and transportation of petroleum coke that ensure the protection of public and ecological health based upon the findings of the study conducted under section 3.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 223—DESIGNATING SEPTEMBER 2015 AS ''NATIONAL CHILD AWARENESS MONTH'' TO PROMOTE AWARENESS OF CHARITIES BENEFITTING CHILDREN AND YOUTH-SERVING ORGANIZATIONS THROUGHOUT THE UNITED STATES AND RECOGNIZING THE EFFORTS MADE BY THOSE CHARITIES AND ORGANIZATIONS ON BEHALF OF CHILDREN AND YOUTH AS CRITICAL CONTRIBUTIONS TO THE FUTURE OF THE UNITED STATES

Mrs. FEINSTEIN (for herself and Mr. LANKFORD) submitted the following resolution; which was considered and agreed to:

S. RES. 223

Whereas millions of children and youth in the United States represent the hopes and future of the United States;

Whereas numerous individuals, charities benefitting children, and youth-serving organizations that work with children and youth collaborate to provide invaluable services to enrich and better the lives of children and youth throughout the United States;

Whereas raising awareness of, and increasing support for, organizations that provide access to health care, social services, education, the arts, sports, and other services will result in the development of character and the future success of the children and youth of the United States;

Whereas the month of September, as the school year begins, is a time when parents, families, teachers, school administrators, and communities increase focus on children and youth throughout the United States;

Whereas the month of September is a time for the people of the United States to highlight and be mindful of the needs of children and youth;

Whereas private corporations and businesses have joined with hundreds of national and local charitable organizations throughout the United States in support of a month-long focus on children and youth; and

Whereas designating September 2015 as ''National Child Awareness Month'' would recognize that a long-term commitment to children and youth is in the public interest and will encourage widespread support for charities and organizations that seek to provide a better future for the children and youth of the United States: Now, therefore, be it

Resolved, That the Senate designates September 2015 as ''National Child Awareness Month''—

(1) to promote awareness of charities benefitting children and youth-serving organizations throughout the United States; and

(2) to recognize the efforts made by the charities and organizations on behalf of children and youth as critical contributions to the future of the United States.

AMENDMENTS SUBMITTED AND PROPOSED

SA 2229. Mr. BLUMENTHAL (for himself, Mr. MURPHY, and Ms. CANTWELL) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table.

SA 2230. Mr. MARKEY submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2231. Mr. BOOZMAN (for himself and Mrs. GILLIBRAND) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2232. Mr. THUNE submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2233. Ms. BALDWIN submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2234. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2235. Ms. HEITKAMP submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2236. Ms. WARREN (for herself, Mr. BOOKER, Mr. DURBIN, Ms. BALDWIN, Mr. BROWN, Ms. HIRONO, Mr. MARKEY, Mr. HEINRICH, Mr. SANDERS, Mr. WYDEN, Mr. CASEY, Mr. FRANKEN, and Mr. COONS) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2237. Mr. WYDEN submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2238. Ms. WARREN submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2239. Ms. WARREN submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2240. Mr. SCHATZ (for himself, Ms. MURKOWSKI, and Mr. DAINES) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2241. Mr. MURPHY (for himself, Mr. BOOKER, Mr. COONS, Ms. WARREN, and Mr. DURBIN) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2242. Mr. CASEY (for himself, Mrs. MURRAY, Ms. HIRONO, Mr. DURBIN, Mr. MURPHY, Mr. HEINRICH, Ms. BALDWIN, Mr. UDALL, Mr. SCHATZ, Ms. MIKULSKI, Mr. FRANKEN, Mr. MARKEY, Mr. WHITEHOUSE, Mrs. GILLIBRAND, Mr. WYDEN, Mr. COONS, Ms. WARREN, Ms. CANTWELL, Mrs. SHAHEEN, Mr. SCHUMER, Mr. SANDERS, Mr. BOOKER, Mr. TESTER, Mr. REED, Ms. KLOBUCHAR, and Mr. MERKLEY) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2243. Mr. COONS (for himself and Mr. RUBIO) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2244. Mr. CASSIDY submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2245. Mrs. SHAHEEN submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2246. Mr. MCCAIN (for himself and Mr. FLAKE) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2247. Mr. BURR (for himself and Mr. BENNET) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2248. Mr. BURR (for himself and Mr. BENNET) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2249. Ms. WARREN (for herself, Mr. GARDNER, and Ms. HIRONO) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2250. Mr. BENNET (for himself and Mr. CARPER) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2251. Mr. BENNET submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2252. Mr. BENNET submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2253. Mr. BENNET submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2254. Mr. KING (for himself and Mrs. CAPITO) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

SA 2255. Mr. MERKLEY submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, supra; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 2229. Mr. BLUMENTHAL (for himself, Mr. MURPHY, and Ms. CANTWELL) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 281, between lines 9 and 10, insert the following:

''(IV) programs that supplement, not supplant, training for teachers, principals, other school leaders, or specialized instructional support personnel in practices that have demonstrated effectiveness in improving student achievement, attainment, behavior, and school climate through addressing the social and emotional development needs of students, such as through social and emotional learning programming.

On page 302, between lines 17 and 18, insert the following:

''(vi) address the social and emotional development needs of students to improve student achievement, attainment, behavior, and school climate such as through social and emotional learning programming;

SA 2230. Mr. MARKEY submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

At the end of title V, add the following:

SEC. 5011. CLIMATE CHANGE EDUCATION.

(a) SHORT TITLE.—This section may be cited as the ''Climate Change Education Act''.

(b) FINDINGS.—Congress finds that—

(1) carbon pollution is accumulating in the atmosphere, causing global temperatures to rise at a rate that poses a significant threat to the economy and security of the United States, to public health and welfare, and to the global environment;

(2) climate change is already impacting the United States with sea level rise, ocean acidification, and more frequent or intense extreme weather events such as heat waves, heavy rainfalls, droughts, floods, and wildfires;

(3) the scientific evidence for human-induced climate change is overwhelming and undeniable as demonstrated by statements from the National Academy of Sciences, the National Climate Assessment, and numerous other science professional organizations in the United States;

(4) the United States has a responsibility to children and future generations of the United States to address the harmful effects of climate change;

(5) providing clear information about climate change, in a variety of forms, can encourage individuals and communities to take action;

(6) the actions of a single nation cannot solve the climate crisis, so solutions that address both mitigation and adaptation must involve developed and developing nations around the world;

(7) investing in the development of innovative clean energy and energy efficiency technologies will—

(A) enhance the global leadership and competitiveness of the United States; and

(B) create and sustain short and long term job growth;

(8) implementation of measures that promote energy efficiency, conservation, renewable energy, and low-carbon fossil energy will greatly reduce human impact on the environment; and

(9) education about climate change is important to ensure the future generation of leaders is well-informed about the challenges facing our planet in order to make decisions based on science and fact.

(c) AMENDMENT TO ESEA.—Title V of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7201 et seq.), as amended by section 5010, is further amended by adding at the end the following:

"PART J—CLIMATE CHANGE EDUCATION

"SEC. 5911. CLIMATE CHANGE EDUCATION PROGRAM.

''(a) PURPOSE.—The purpose of this section is to—

''(1) broaden the understanding of human induced climate change, possible long and short-term consequences, and potential solutions;

''(2) provide learning opportunities in climate science education for all students through grade 12, including those of diverse cultural and linguistic backgrounds;

''(3) emphasize actionable information to help students understand how to utilize new technologies and programs related to energy conservation, clean energy, and carbon pollution reduction; and

''(4) inform the public of impacts to human health and safety as a result of climate change.

''(b) GRANTS AUTHORIZED.—The Secretary, in consultation with the National Oceanic and Atmospheric Administration, the Environmental Protection Agency, and the Department of Energy, shall establish a competitive grant program to provide grants to States to—

''(1) develop or improve climate science curriculum and supplementary educational materials for grades kindergarten through grade 12;

''(2) initiate, develop, expand, or implement statewide plans and programs for climate change education, including relevant teacher training and professional development and multidisciplinary studies to ensure that students graduate from high school climate literate; or

''(3) create State green school building standards or policies.

''(c) APPLICATION.—A State desiring to receive a grant under this section shall submit an application to the Secretary at such time, in such manner, and accompanied by such information as the Secretary may reasonably require.

''(d) REPORT TO CONGRESS.—Not later than 1 year after the date of enactment of this section, and annually thereafter, the Secretary shall transmit to Congress a report that evaluates the scientific merits, educational effectiveness, and broader impacts of activities under this section.

''(e) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section such sums as may be necessary.''.

SA 2231. Mr. BOOZMAN (for himself and Mrs. GILLIBRAND) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 284, strike lines 4 through 8 and insert the following:

(xix) Supporting the efforts and professional development of teachers, principals, and other school leaders to integrate academic and career and technical education content into instructional practices, which may include—

(I) integrating career and technical education with advanced coursework, such as by allowing the acquisition of postsecondary credits, recognized postsecondary credentials, and industry-based credentials, by students while in high school; or

(II) coordinating activities with employers and entities carrying out initiatives under other workforce development programs to identify State and regional workforce needs, such as through the development of State and local plans under title I of the Workforce Innovation and Opportunity Act (29 U.S.C. 3111 et seq);

On page 306, strike lines 18 through 23 and insert the following:

(U) providing high-quality professional development for teachers, principals, and other school leaders on effective strategies to integrate rigorous academic content, career and technical education, and work-based learning, if appropriate, which may include providing common planning time, to help prepare students for postsecondary education and the workforce without the need for remediation; and

---

SA 2232. Mr. THUNE submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 431, between lines 19 and 20, insert the following:

''(e) PROJECT SERV.—

''(1) ADDITIONAL USE OF FUNDS.—Funds available under subsection (a)(4) for extended services grants under the Project School Emergency Response to Violence program (referred to in this subsection as the 'Project SERV program') may be used by a local educational agency or institution of higher education receiving such grant to initiate or strengthen violence prevention activities, as part of the activities designed to restore the learning environment that was disrupted by the violent or traumatic crisis in response to which the grant was awarded, and as provided in this subsection.

''(2) APPLICATION PROCESS.—

''(A) IN GENERAL.—A local educational agency or institution of higher education desiring to use a portion of extended services grant funds under the Project SERV program to initiate or strengthen a violence prevention activity shall—

''(i) submit, in an application that meets all requirements of the Secretary for the Project SERV program, the information described in subparagraph (B); or

''(ii) in the case of a local educational agency or institution of higher education that has already received an extended services grant under the Project SERV program, submit an addition to the original application that includes the information described in subparagraph (B).

''(B) APPLICATION REQUIREMENTS.—The information required under this subparagraph is the following:

''(i) A demonstration that there is a continued disruption or a substantial risk of disruption to the learning environment that would be addressed by such activity.

''(ii) An explanation of the proposed activity designed to restore and preserve the learning environment.

''(iii) A budget and budget narrative for the proposed activity.

''(3) AWARD BASIS.—Any award of funds under the Project SERV program for violence prevention activities under this subsection shall be subject to the discretion of the Secretary and the availability of funds.

''(4) PROHIBITED USE.—No funds provided to a local educational agency or institution of higher education under the Project SERV program for violence prevention activities may be used for construction, renovation, or repair of a facility or for the permanent infrastructure of the local educational agency or institution.

SA 2233. Ms. BALDWIN submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 630, between lines 4 and 5, insert the following:

SEC. 5011. WORLD LANGUAGE ADVANCEMENT GRANT PROGRAM.

Title V (20 U.S.C. 7201 et seq.), as amended by section 5001, is further amended by inserting after part I, as added by section 5010, the following:

"PART J—WORLD LANGUAGE ADVANCEMENT ACT

"SEC. 5910. SHORT TITLE.

''This part may be cited as the 'World Language Advancement Act of 2015'.

"SEC. 5911. PROGRAM AUTHORIZED.

''(a) PROGRAM AUTHORITY.—

''(1) IN GENERAL.—The Secretary is authorized to make grants, on a competitive basis, to State educational agencies and local educational agencies to pay the Federal share of the cost of innovative model programs providing for the establishment, improvement, or expansion of foreign language study for elementary school and secondary school students.

''(2) DURATION.—Each grant under paragraph (1) shall be awarded for a period of 3 years.

''(b) REQUIREMENTS.—In awarding a grant under subsection (a) to a State educational agency or local educational agency, the Secretary shall support programs that—

''(1) show the promise of being continued beyond the grant period;

''(2) demonstrate approaches that can be disseminated and duplicated in other States or local educational agencies; and

''(3) may include a professional development component.

''(c) FEDERAL SHARE.—

''(1) IN GENERAL.—The Federal share for each fiscal year shall be 50 percent.

''(2) WAIVER.—The Secretary may waive all or part of the matching requirement described in paragraph (1) for any fiscal year for a State educational agency or local educational agency if the Secretary determines that applying the matching requirement would result in serious hardship or an inability to carry out the activities described in this part.

''(d) SPECIAL RULE.—Not less than 75 percent of the funds made available to carry out this part shall be used for the expansion of foreign language learning in the elementary grades.

''(e) RESERVATION.—The Secretary may reserve not more than 5 percent of funds made available to carry out this part for a fiscal year to evaluate the efficacy of programs assisted under this part.

"SEC. 5912. APPLICATIONS.

''(a) IN GENERAL.—Any State educational agency or local educational agency desiring a grant under this part shall submit an application to the Secretary at such time, in

such manner, and containing such information and assurances as the Secretary may require.

''(b) SPECIAL CONSIDERATION.—The Secretary shall give special consideration to applications describing programs that—

''(1) include intensive summer foreign language programs for professional development of foreign language teachers;

''(2) link non-native English speakers in the community with the schools in order to promote two-way language learning;

''(3) promote the sequential study of a foreign language for students, beginning in elementary schools;

''(4) make effective use of technology, such as computer-assisted instruction, language laboratories, or distance learning, to promote foreign language study; and

''(5) promote innovative activities, such as foreign language immersion, partial foreign language immersion, or content-based instruction.

''SEC. 5913. AUTHORIZATION OF APPROPRIATIONS.

''There are authorized to be appropriated to carry out this part such sums as may be necessary.''.

SA 2234. Mr. LEE submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

After section 9115, insert the following:

SEC. 9116. RULE OF CONSTRUCTION REGARDING TRAVEL TO AND FROM SCHOOL.

Subpart 2 of part F of title IX (20 U.S.C. 7901 et seq.), as amended by sections, 9114 and 9115, and redesignated by section 9601, is further amended by adding at the end the following:

''SEC. 9539A. RULE OF CONSTRUCTION REGARDING TRAVEL TO AND FROM SCHOOL.

''(a) IN GENERAL.—Subject to subsection (b), nothing in this Act shall authorize the Secretary to, or shall be construed to—

''(1) prohibit a child from traveling to and from school on foot or by car, bus, or bike when the parents of the child have given permission; or

''(2) expose parents to civil or criminal charges for allowing their child to responsibly and safely travel to and from school by a means the parents believe is age appropriate.

''(b) NO PREEMPTION OF STATE OR LOCAL LAWS.—Notwithstanding subsection (a), nothing in this section shall be construed to preempt State or local laws.''.

SA 2235. Ms. HEITKAMP submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 669, strike lines 3 and 4, and insert the following:

''(7) activities designed to educate individuals and improve school climate and safety, such as training for school personnel related to conflict prevention and resolution practices, including—

''(A) suicide prevention;

''(B) substance abuse prevention;

''(C) effective and trauma-informed practices in classroom management;

''(D) crisis management techniques;

''(E) human trafficking (defined as an act or practice described in paragraph (9) or (10) of section 103 of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7102)); and

''(F) school-based violence prevention strategies;

SA 2236. Ms. WARREN (for herself, Mr. BOOKER, Mr. DURBIN, Ms. BALDWIN, Mr. BROWN, Ms. HIRONO, Mr. MARKEY, Mr. HEINRICH, Mr. SANDERS, Mr. WYDEN, Mr. CASEY, Mr. FRANKEN, and Mr. COONS) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 146, line 12, strike the semicolon and insert the following: '', which method shall identify a public high school as in need of intervention and support if the high school—

(i) has a 4-year adjusted cohort graduation rate at or below 67 percent for 2 or more consecutive years; or

(ii) has an extended-year adjusted cohort graduation rate at or below 67 percent (or a higher percentage determined by the State);

SA 2237. Mr. WYDEN submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 840, after line 5, add the following:

PART C—MISCELLANEOUS REAUTHORIZATIONS

SEC. 10301. EXTENSION OF SECURE RURAL SCHOOLS AND COMMUNITY SELF-DETERMINATION PROGRAM.

(a) DEFINITION OF FULL FUNDING AMOUNT.—Section 3(11) of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7102(11)) is amended—

(1) in subparagraph (B), by striking ''and'' at the end;

(2) in subparagraph (C)—

(A) by striking ''fiscal year 2012 and each fiscal year thereafter'' and inserting ''each of fiscal years 2012 and 2013''; and

(B) by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(D) for fiscal year 2014 and each fiscal year thereafter, the amount that is equal to the full funding amount for fiscal year 2011.''.

(b) SECURE PAYMENTS FOR STATES AND COUNTIES CONTAINING FEDERAL LAND.—

(1) AVAILABILITY OF PAYMENTS.—Section 101 of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7111) is amended by striking ''2013'' each place it appears and inserting ''2016''.

(2) ELECTIONS.—Section 102(b) of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7112(b)) is amended—

(A) in paragraph (1)(A), by striking ''by August 1, 2013 (or as soon thereafter as the Secretary concerned determines is practicable), and August 1 of each second fiscal year thereafter'' and inserting ''by August 1 of each applicable fiscal year (or as soon thereafter as the Secretary concerned determines is practicable)''; and

(B) in paragraph (2)(B)—

(i) by striking ''in 2013'' and inserting ''in 2014''; and

(ii) by striking ''fiscal year 2013'' and inserting ''fiscal year 2016''.

(3) ELECTION AS TO USE OF BALANCE.—Section 102(d)(1) of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7112(d)(1)) is amended—

(A) in subparagraph (B)(ii), by striking ''not more than 7 percent of the total share for the eligible county of the State payment or the county payment'' and inserting ''any portion of the balance''; and

(B) by striking subparagraph (C) and inserting the following:

''(C) COUNTIES WITH MAJOR DISTRIBUTIONS.—In the case of each eligible county to which $350,000 or more is distributed for any fiscal year pursuant to paragraph (1)(B) or (2)(B) of subsection (a), the eligible county shall elect to do 1 or more of the following with the balance of any funds not expended pursuant to subparagraph (A):

''(i) Reserve any portion of the balance for projects in accordance with title II.

''(ii) Reserve not more than 7 percent of the total share for the eligible county of the State payment or the county payment for projects in accordance with title III.

''(iii) Return the portion of the balance not reserved under clauses (i) and (ii) to the Treasury of the United States.''.

(4) NOTIFICATION OF ELECTION.—Section 102(d)(3)(A) of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7112(d)(3)(A)) is amended by striking ''2012,'' and inserting ''2014 (or as soon thereafter as the Secretary concerned determines is practicable)''.

(5) FAILURE TO ELECT.—Section 102(d)(3)(B)(ii) of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7112(d)(3)(B)(ii)) is amended by striking ''purpose described in section 202(b)'' and inserting ''purposes described in section 202(b), 203(c), or 204(a)(5)''.

(6) DISTRIBUTION OF PAYMENTS TO ELIGIBLE COUNTIES.—Section 103(d)(2) of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7113(d)(2)) is amended by striking ''2013'' and inserting ''2016''.

(c) CONTINUATION OF AUTHORITY TO CONDUCT SPECIAL PROJECTS ON FEDERAL LAND.—

(1) SUBMISSION OF PROJECT PROPOSALS.—Section 203(a)(1) of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7123(a)(1)) is amended by striking ''September 30 for fiscal year 2008 (or as soon thereafter as the Secretary concerned determines is practicable), and each September 30 thereafter for each succeeding fiscal year through fiscal year 2013'' and inserting ''September 30 of each applicable fiscal year (or as soon thereafter as the Secretary concerned determines is practicable)''.

(2) EVALUATION AND APPROVAL OF PROJECTS BY SECRETARY CONCERNED.—Section 204(e) of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7124(e)) is amended by striking paragraph (3).

(3) RESOURCE ADVISORY COMMITTEES.—Section 205(a)(4) of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7125(a)(4)) is amended by striking ''2012'' each place it appears and inserting ''2015''.

(4) AVAILABILITY OF PROJECT FUNDS.—Section 207(a) of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7127(a)) is amended by striking ''September 30, 2008 (or as soon thereafter as the Secretary concerned determines is practicable), and each September 30 thereafter for each succeeding fiscal year through fiscal year 2013'' and inserting ''September 30 of

each applicable fiscal year (or as soon thereafter as the Secretary concerned determines is practicable)''.

(5) TERMINATION OF AUTHORITY.—Section 208 of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7128) is amended—

(A) in subsection (a), by striking ''2013'' and inserting ''2016 (or as soon thereafter as the Secretary concerned determines is practicable)''; and

(B) in subsection (b), by striking ''2014'' and inserting ''2017''.

(d) CONTINUATION OF AUTHORITY TO RESERVE AND USE COUNTY FUNDS.—Section 304 of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7144) is amended—

(1) in subsection (a), by striking ''2013'' and inserting ''2016 (or as soon thereafter as the Secretary concerned determines is practicable)''; and

(2) in subsection (b), by striking ''September 30, 2014, shall be returned to the Treasury of the United States'' and inserting ''September 30, 2017, may be retained by the counties for the purposes identified in section 302(a)(2)''.

(e) AUTHORIZATION OF APPROPRIATIONS.—Section 402 of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7152) is amended by striking ''2013'' and inserting ''2016''.

(f) AVAILABILITY OF FUNDS.—

(1) TITLE II FUNDS.—Any funds that were not obligated as required by section 208 of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7128) (as in effect on the day before the date of enactment of this Act) shall be available for use in accordance with title II of that Act (16 U.S.C. 7121 et seq.).

(2) TITLE III FUNDS.—Any funds that were not obligated as required by section 304 of the Secure Rural Schools and Community Self-Determination Act of 2000 (16 U.S.C. 7144) (as in effect on the day before the date of enactment of this Act) shall be available for use in accordance with title III of that Act (16 U.S.C. 7141 et seq.).

SEC. 10302. RESTORING MANDATORY FUNDING STATUS TO THE PAYMENT IN LIEU OF TAXES PROGRAM.

Section 6906 of title 31, United States Code, is amended in the matter preceding paragraph (1), by striking ''of fiscal years 2008 through 2014'' and inserting ''fiscal year''.

SA 2238. Ms. WARREN submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 128, line 7, insert ''the school receives a waiver from the State educational agency and'' after ''if''.

SA 2239. Ms. WARREN submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

Beginning on page 53, strike line 6 and all that follows through line 3 on page 54 and insert the following:

''(i)(I) Annually establishes State-designed ambitious but achievable goals for all students and separately for each of the categories of students in the State. Such goals shall expect accelerated academic gains from the categories of students who are the farthest away from reaching the State-determined multi-year goals as described in subclause (II) and the graduation rate goals as described in subclause (III) and shall include, at a minimum—

''(aa) academic achievement, which may include student growth, on the State assessments under paragraph (2); and

''(bb) high school graduation rates, including—

''(AA) the 4-year adjusted cohort graduation rate; and

''(BB) at the State's discretion, the extended-year adjusted cohort graduation rate.

''(II) Sets multi-year goals that are consistent with the challenging State academic standards under subsection (b)(1)(A) to ensure that all students graduate prepared to enter the workforce or postsecondary education without the need for postsecondary remediation.

''(III) Sets a multi-year graduation rate goal of not less than 90 percent.

SA 2240. Mr. SCHATZ (for himself, Ms. MURKOWSKI, and Mr. DAINES) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

At the end of the bill, add the following:

SEC. 1020___. REPORT ON NATIVE AMERICAN LANGUAGE MEDIUM EDUCATION.

(a) PURPOSE.—The purpose of this section is to authorize a study to evaluate all levels of education being provided primarily through the medium of Native languages and to require a report of the findings, within the context of the findings, purposes, and provisions of the Native American Languages Act (25 U.S.C. 2901), the findings, purposes, and provisions of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6301 et seq.), and other related laws.

(b) STUDY AND REVIEW.—The Secretary of Education shall award grants to eligible entities to study and review Native language medium schools and programs.

(c) ELIGIBLE ENTITY DEFINED.—In this section, the term ''eligible entity'' means a consortium that—

(1) includes not less than 3 units of an institution of higher education, such as a department, center, or college, that has significant experience—

(A) and expertise in Native American or Alaska Native languages, and Native language medium education; and

(B) in outreach and collaboration with Native communities;

(2) has within its membership at least 10 years of experience—

(A) addressing a range of Native American or Alaska Native languages and indigenous language medium education issues through the lens of Native studies, linguistics, and education; and

(B) working in close association with a variety of schools and programs taught predominantly through the medium of a Native language;

(3) includes for each of American Indians, Alaska Natives, and Native Hawaiians, at least 1 unit of an institution of higher education that focuses on schools that serve such populations; and

(4) includes Native American scholars and staff who are fluent in Native American languages.

(d) APPLICATIONS.—An eligible entity that desires to receive a grant under this section shall submit an application to the Secretary of Education that—

(1) identifies 1 unit in the consortium that is the lead unit of the consortium for the study, reporting, and funding purposes;

(2) includes letters of verification of participation from the top internal administrators of each unit in the consortium;

(3) includes a brief description of how the consortium meets the eligibility qualifications under subsection (c);

(4) describes the work proposed to carry out the purpose of this section; and

(5) provides other information as requested by the Secretary of Education.

(e) SCOPE OF STUDY.—An eligible entity that receives a grant under this section shall use the grant funds to study and review Native American language medium schools and programs and evaluate the components, policies, and practices of successful Native language medium schools and programs and how the students who enroll in them do over the long term, including—

(1) the level of expertise in educational pedagogy, Native language fluency, and experience of the principal, teachers, paraprofessionals, and other educational staff;

(2) how such schools and programs are using Native languages to provide instruction in reading, language arts, mathematics, science, and, as applicable, other core academic subjects;

(3) how such school and programs' curricula incorporates the relevant Native culture of the students;

(4) how such schools and programs assess the academic proficiency of the students, including—

(A) whether the school administers assessments of language arts, mathematics, science, and other academic subjects in the Native language of instruction;

(B) whether the school administers assessments of language arts, mathematics, science, and other academic subjects in English; and

(C) how the standards measured by the assessments in the Native language of instruction and in English compare;

(5) the academic, graduation rate, and other outcomes of students who have completed the highest grade taught primarily through such schools or programs, including, when available, college attendance rates compared with demographically similar students who did not attend a school in which the language of instruction was a Native language; and

(6) other appropriate information consistent with the purpose of this section.

(f) OTHER ENTITIES.—An eligible entity may enter into a contract with another individual, entity, or organization to assist in carrying out research necessary to fulfill the purpose of this section.

(g) RECOMMENDATIONS.—Not later than 18 months after the date of enactment of this Act, an eligible entity that receives a grant under this section shall—

(1) develop a detailed statement of findings and conclusions regarding the study completed under subsection (e), including recommendations for such legislative and administrative actions as the eligible entity considers to be appropriate; and

(2) submit a report setting forth the findings and conclusions, including recommendations, described in paragraph (1) to each of the following:

(A) The Committee on Health, Education, Labor, and Pensions of the Senate.

(B) The Committee on Education and the Workforce of the House of Representatives.

(C) The Committee on Indian Affairs of the Senate.

(D) The Subcommittee on Indian, Insular, and Alaska Native Affairs of the House of Representatives.

(E) The Secretary of Education.

(F) The Secretary of the Interior.

SA 2241. Mr. MURPHY (for himself, Mr. BOOKER, Mr. COONS, Ms. WARREN, and Mr. DURBIN) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 26, strike lines 5 through 9.

On page 27, line 11, strike ''goals, or metrics'' and insert ''or goals''.

On page 27, strike lines 13 through 17.

Beginning on page 53, strike line 6 and all that follows through page 58, line 25, and insert the following:

''(i) Establishes measurable State-designed goals for all students and separately for each of the categories of students in the State that take into account the progress necessary for all students and each of the categories of students to graduate from high school prepared for postsecondary education or the workforce without the need for postsecondary remediation, which shall be based on a composite of the following indicators:

''(I) Academic achievement, which may include student growth, on the State assessments under paragraph (2).

''(II) High school graduation rates, including—

''(aa) the 4-year adjusted cohort graduation rate; and

''(bb) at the State's discretion, the extended-year adjusted cohort graduation rate.

''(III) For public elementary schools and secondary schools that are not high schools, an academic indicator of student performance that is valid and reliable and the same statewide for all public elementary school students and all students at such secondary schools and each category of students and which is consistent with progress toward readiness for postsecondary education or the workforce without the need for postsecondary remediation, which may include—

''(aa) measures of early literacy skills;

''(bb) performance measures aligned to the State's challenging academic standards;

''(cc) student project-based assessments or student portfolios that meet assessment requirements under clauses (i) through (v), (vii), (viii), and (x) through (xiii) of paragraph (2)(B); or

''(dd) on-track rates to postsecondary education or the workforce without the need for postsecondary remediation.

''(IV) English language proficiency of all English learners towards meeting the goals described in subsection (c)(1)(K) in all public schools and local educational agencies, which may include measures of student growth.

''(V) Not less than one other valid and reliable indicator of student readiness to enter postsecondary education or the workforce without the need for remediation, that will be applied to all local educational agencies and all public schools consistently throughout the State for all students and for each of the categories of students, which may include measures of—

''(aa) successful completion of Advanced Placement, International Baccalaureate, dual or concurrent enrollment, or early college high school courses;

''(bb) student project-based assessments or student portfolios that meet assessment requirements under clauses (i) through (v), (vii), (viii), and (x) through (xiii) of paragraph (2)(B);

''(cc) student attainment of industry-recognized credentials for career and technical education; or

''(dd) performance measures aligned to the State's challenging academic standards.

''(VI) Not less than one other valid and reliable indicator of school quality, student success, or student supports, as determined appropriate by the State, that will be applied to all local educational agencies and public schools consistently throughout the State for all students and for each of the categories of students, which may include measures of—

''(aa) student engagement, such as attendance rates and chronic absenteeism;

''(bb) educator engagement, such as educator satisfaction (including working conditions within the school), teacher quality and effectiveness, and teacher absenteeism;

''(cc) results from student, parent, and educator surveys;

''(dd) school climate and safety, such as incidents of school violence, bullying, and harassment, and disciplinary rates, including rates of suspension, expulsion, referrals to law enforcement, school-based arrests, disciplinary transfers (including placements in alternative schools), and student detentions;

''(ee) student access to or success in advanced coursework or educational programs or opportunities; and

''(ff) any other State-determined measure of school quality or student success.

''(VII) In carrying out this clause and in developing the composite goals for all students and for each category of students, the indicators described in subclauses (I), (II), (III), and (IV) shall weigh more heavily than the indicators described in subclauses (V) and (VI) combined.

''(ii) Establishes a system of annually identifying and meaningfully differentiating among all public schools in the State, which shall—

''(I) be based on the goals described in clause (i) for all students and separately for each of the categories of students; and

''(II) differentiate schools where any category of students miss the goals described in clause (i) for 2 consecutive years.

''(iii) For public schools receiving assistance under this part, meets the requirements of section 1114.

''(iv) Provides a clear and understandable explanation of the method of identifying and meaningfully differentiating schools under clause (ii).

''(v) Measures the annual progress of not less than 95 percent of all students, and students in each of the categories of students, who are enrolled in the school and are required to take the assessments under paragraph (2) and provides a clear and understandable explanation of how the State will factor this requirement into the State-designed accountability system determinations.

On page 61, line 13, strike ''(3)(B)(ii)(II)(aa)'' and insert ''(3)(B)(i)(III)''.

On page 61, line 14, strike ''paragraph (3)(B)(ii)(IV)'' and insert ''subclause (V) or (VI) of paragraph (3)(B)(i)''.

On page 61, lines 18 and 19, strike ''subclauses (III) and (IV) of paragraph (3)(B)(ii)'' and insert ''subclauses (IV), (V), and (VI) of paragraph (3)(B)(i)''.

Beginning on page 61, strike line 22 and all that follows through page 62, line 4.

Beginning on page 62, strike line 23 and all that follows through page 63, line 25 and insert the following:

''(i) the minimum number of students that the State determines are necessary to be included in each such category of students to carry out such requirements and how that number is statistically sound and is the same for each category of students;

''(ii) how such minimum number of students was determined by the State, including how the State collaborated with teachers, principals, other school leaders, parents, and other stakeholders when setting the minimum number; and

''(iii) how the State ensures that such minimum number does not reveal personally identifiable information about students;

''(B) the State educational agency's system to monitor and evaluate the intervention and support strategies implemented by local educational agencies in schools identified as in need of intervention and support under section 1114(a)(1)(A), and, if such strategies are not effective within 3 years of implementation, the steps the State will take to further assist local educational agencies;

Beginning on page 146, strike line 3 and all that follows through page 156, line 2, and insert the following:

''(a) STATE REVIEW AND RESPONSIBILITIES.—

''(1) IN GENERAL.—Each State educational agency receiving funds under this part shall use the system designed by the State under section 1111(b)(3) to annually—

''(A) meaningfully differentiate among all public schools, including public schools operated or supported by the Bureau of Indian Education, that receive funds under this part and are in need of intervention and support using the method established by the State in section 1111(b)(3)(B)(ii) which—

''(i) may include establishing multiple levels of school performance or other methods for differentiating among all public schools; and

''(ii) shall include the identification of at least—

''(I) the lowest-performing public schools that receive funds under this part in the State not meeting the goals described in section 1111(b)(3)(B)(i), and which shall include at least 5 percent of all the State's public schools that receive funds under this part;

''(II) any public high school that receives funds under this part and has a 4-year adjusted cohort graduation rate at or below 67 percent for 2 or more consecutive years, or an extended-year adjusted cohort graduation rate for 2 or more consecutive years that is at or below a rate determined by the State and set higher than 67 percent; and

''(III) any public school that receives funds under this part with any category of students, as defined in section 1111(b)(3)(A), not meeting the goals described in section 1111(b)(3)(B)(i) for 2 consecutive years;

''(B) require for inclusion—

''(i) on each local educational agency report card required under section 1111(d), the names of schools served by the agency described under subparagraph (A)(ii); and

''(ii) on each school report card required under section 1111(d), whether the school was described under subparagraph (A)(ii);

''(C) ensure that all public schools that receive funds under this part and are identified as in need of intervention and support under subparagraph (A), implement an evidence-based intervention or support strategy designed by the State or local educational agency described in subparagraph (A) or (B) of subsection (b)(3) that addresses the reason for the school's identification and that takes into account performance on all of the indicators in the State's accountability system under section 1111(b)(3)(B)(i);

''(D) prioritize intervention and supports in the identified schools most in need of intervention and support, as determined by the State, using the results of the accountability system under 1111(b)(3)(B); and

''(E) monitor and evaluate the implementation of school intervention and support

strategies by local educational agencies, including in the lowest-performing elementary schools and secondary schools in the State, and use the results of the evaluation to take appropriate steps to change or improve interventions or support strategies as necessary.

''(2) STATE EDUCATIONAL AGENCY RESPONSIBILITIES.—The State educational agency shall—

''(A) make technical assistance available to local educational agencies that serve schools identified as in need of intervention and support under paragraph (1)(A);

''(B) if the State educational agency determines that a local educational agency failed to carry out its responsibilities under this section, or that its intervention and support strategies were not effective within 3 years of implementation, take such actions as the State educational agency determines to be appropriate and in compliance with State law to assist the local educational agency and ensure that such local educational agency is carrying out its responsibilities;

''(C) inform local educational agencies of schools identified as in need of intervention and support under paragraph (1)(A) in a timely and easily accessible manner that is before the beginning of the school year; and

''(D) publicize and disseminate to the public, including teachers, principals and other school leaders, and parents, the results of the State review under paragraph (1).

''(b) LOCAL EDUCATIONAL AGENCY REVIEW AND RESPONSIBILITIES.—

''(1) IN GENERAL.—Each local educational agency with a school identified as in need of intervention and support under subsection (a)(1)(A) shall, in consultation with teachers, principals and other school leaders, school personnel, parents, and community members—

''(A) conduct a review of such school, including by examining the indicators and measures included in the State-determined accountability system described in section 1111(b)(3)(B) to determine the factors that led to such identification;

''(B) conduct a review of the policies, procedures, personnel decisions, and budgetary decisions of the local educational agency, including the measures on the local educational agency and school report cards under section 1111(d) that impact the school and could have contributed to the identification of the school;

''(C) develop and implement appropriate intervention and support strategies, as described in paragraph (3), that are proportional to the identified needs of the school, for assisting the identified school;

''(D) develop a rigorous comprehensive plan that will be publicly available and provided to parents, for ensuring the successful implementation of the intervention and support strategies described in paragraph (3) in identified schools, which may include—

''(i) technical assistance that will be provided to the school;

''(ii) ensuring identified schools have access to resources, such as adequate facilities, funding, and technology;

''(iii) improved delivery of services to be provided by the local educational agency;

''(iv) increased support for stronger curriculum, program of instruction, wraparound services, or other resources provided to students in the school;

''(v) any changes to personnel necessary to improve educational opportunities for children in the school;

''(vi) redesigning how time for student learning or teacher collaboration is used within the school;

''(vii) using data to inform instruction for continuous improvement;

''(viii) providing increased coaching or support for principals and other school leaders and teachers;

''(ix) improving school climate and safety;

''(x) providing ongoing mechanisms, such as evidence-based community schools and wraparound services, for family and community engagement to improve student learning;

''(xi) establishing partnerships with entities, including private entities with a demonstrated record of improving student achievement, that will assist the local educational agency in fulfilling its responsibilities under this section; and

''(xii) an ongoing process, involving parents, teachers and their representatives, principals, and other school leaders, to improve school leader and staff engagement in the development and implementation of the comprehensive plan; and

''(E) collect and use data on an ongoing basis to monitor the results of the intervention and support strategies and adjust such strategies as necessary during implementation in order to improve student academic achievement.

''(2) NOTICE TO PARENTS.—A local educational agency shall promptly provide to a parent or parents of each student enrolled in a school identified as in need of intervention and support under subsection (a)(1)(A) in an easily accessible and understandable form and, to the extent practicable, in a language that parents can understand—

''(A) an explanation of what the identification means, and how the school compares in terms of academic achievement and other measures in the State accountability system under section 1111(b)(3)(B) to other schools served by the local educational agency and the State educational agency involved;

''(B) the reasons for the identification;

''(C) an explanation of what the local educational agency or State educational agency is doing to help the school address student academic achievement and other measures, including a description of the intervention and support strategies developed under paragraph (1)(C) that will be implemented in the school;

''(D) an explanation of how the parents can become involved in addressing academic achievement and other measures that caused the school to be identified; and

''(E) an explanation of the parents' option to transfer their child to another public school under paragraph (4), if applicable.

''(3) SCHOOL INTERVENTION AND SUPPORT STRATEGIES.—

''(A) IN GENERAL.—Consistent with subsection (a)(1) and paragraph (1), a local educational agency shall develop and implement evidence-based intervention and support strategies for an identified school that the local educational agency determines appropriate to address the needs of students in such identified school, which shall—

''(i) be designed to address the specific reasons for identification, as described in paragraph (1)(A);

''(ii) take into account performance on the indicators used by the State as described in 1111(b)(3)(B)(i);

''(iii) be implemented, at a minimum, in a manner that is proportional to the specific reasons for identification, as described in subparagraphs (A) and (B) of paragraph (1); and

''(iv) distinguish between the schools identified in subclauses (I) and (II) of subsection (a)(1)(A)(ii) and in need of comprehensive supports and schools identified in subsection (a)(1)(A)(ii)(III) in need of targeted supports.

''(B) STATE-DETERMINED STRATEGIES.—Consistent with State law, a State educational agency may establish alternative evidence-based State-determined strategies that can be used by local educational agencies to assist a school identified as in need of intervention and support under subsection (a)(1)(A), in addition to the assistance strategies developed by a local educational agency under subparagraph (A).

''(4) PUBLIC SCHOOL CHOICE.—

''(A) IN GENERAL.—A local educational agency may provide all students enrolled in a school identified as in need of intervention and support under subclauses (I) and (II) of subsection (a)(1)(A)(ii) with the option to transfer to another public school served by the local educational agency, unless such an option is prohibited by State law.

''(B) PRIORITY.—In providing students the option to transfer to another public school, the local educational agency shall give priority to the lowest achieving children from low-income families, as determined by the local educational agency for the purposes of allocating funds to schools under section 1113(a)(3).

''(C) TREATMENT.—Students who use the option to transfer to another public school shall be enrolled in classes and other activities in the public school to which the students transfer in the same manner as all other children at the public school.

''(D) SPECIAL RULE.—A local educational agency shall permit a child who transfers to another public school under this paragraph to remain in that school until the child has completed the highest grade in that school.

''(E) FUNDING FOR TRANSPORTATION.—A local educational agency may spend an amount equal to not more than 5 percent of its allocation under subpart 2 to pay for the provision of transportation for students who transfer under this paragraph to the public schools to which the students transfer.

On page 156, strike lines 13 through 15.

SA 2242. Mr. CASEY (for himself, Mrs. MURRAY, Ms. HIRONO, Mr. DURBIN, Mr. MURPHY, Mr. HEINRICH, Ms. BALDWIN, Mr. UDALL, Mr. SCHATZ, Ms. MIKULSKI, Mr. FRANKEN, Mr. MARKEY, Mr. WHITEHOUSE, Mrs. GILLIBRAND, Mr. WYDEN, Mr. COONS, Ms. WARREN, Ms. CANTWELL, Mrs. SHAHEEN, Mr. SCHUMER, Mr. SANDERS, Mr. BOOKER, Mr. TESTER, Mr. REED, Ms. KLOBUCHAR, and Mr. MERKLEY) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

At the end of title X, add the following:

PART C—UNIVERSAL PREKINDERGARTEN

Subpart A—Prekindergarten Access

SEC. 10300. SHORT TITLE.

This part may be cited as the ''Strong Start for America's Children Act of 2015''.

SEC. 10301. PURPOSES.

The purposes of this subpart are to—

(1) establish a Federal-State partnership to provide access to high-quality public prekindergarten programs for all children from low-income and moderate-income families to ensure that they enter kindergarten prepared for success;

(2) broaden participation in such programs to include children from additional middle-class families;

(3) promote access to high-quality kindergarten, and high-quality early childhood education programs and settings for children; and

(4) increase access to appropriate supports so children with disabilities and other children who need specialized supports can fully participate in high-quality early education programs.

SEC. 10302. DEFINITIONS.

In this subpart:

(1) CHILD WITH A DISABILITY.—The term ''child with a disability'' means—

(A) a child with a disability, as defined in section 602 of the Individuals with Disabilities Education Act (20 U.S.C. 1401); or

(B) an infant or toddler with a disability, as defined in section 632 of the Individuals with Disabilities Education Act (20 U.S.C. 1432).

(2) COMPREHENSIVE EARLY LEARNING ASSESSMENT SYSTEM.—The term ''comprehensive early learning assessment system''—

(A) means a coordinated and comprehensive system of multiple assessments, each of which is valid and reliable for its specified purpose and for the population with which it will be used, that—

(i) organizes information about the process and context of young children's learning and development to help early childhood educators make informed instructional and programmatic decisions; and

(ii) conforms to the recommendations of the National Research Council reports on early childhood; and

(B) includes, at a minimum—

(i) child screening measures to identify children who may need follow-up services to address developmental, learning, or health needs in, at a minimum, areas of physical health, behavioral health, oral health, child development, vision, and hearing;

(ii) child formative assessments;

(iii) measures of environmental quality; and

(iv) measures of the quality of adult-child interactions.

(3) DUAL LANGUAGE LEARNER.—The term ''dual language learner'' means an individual who is limited English proficient.

(4) EARLY CHILDHOOD EDUCATION PROGRAM.—The term ''early childhood education program'' has the meaning given the term under section 103 of the Higher Education Act of 1965 (20 U.S.C. 1003).

(5) ELEMENTARY SCHOOL.—The term ''elementary school'' has the meaning given the term in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801).

(6) ELIGIBILITY DETERMINATION DATE.—The term ''eligibility determination date'' means the date used to determine eligibility for public elementary school in the community in which the eligible local entity involved is located.

(7) ELIGIBLE LOCAL ENTITY.—The term ''eligible local entity'' means—

(A) a local educational agency, including a charter school or a charter management organization that acts as a local educational agency, or an educational service agency in partnership with a local educational agency;

(B) an entity (including a Head Start program or licensed child care setting) that carries out, administers, or supports an early childhood education program; or

(C) a consortium of entities described in subparagraph (A) or (B).

(8) FULL-DAY.—The term ''full-day'' means a day that is—

(A) equivalent to a full school day at the public elementary schools in a State; and

(B) not less than 5 hours a day.

(9) GOVERNOR.—The term ''Governor'' means the chief executive officer of a State.

(10) HIGH-QUALITY PREKINDERGARTEN PROGRAM.—The term ''high-quality prekindergarten program'' means a prekindergarten program supported by an eligible local entity that includes, at a minimum, the following elements based on nationally recognized standards:

(A) Serves children who—

(i) are age 4 or children who are age 3 or 4, by the eligibility determination date (including children who turn age 5 while attending the program); or

(ii) have attained the legal age for State-funded prekindergarten.

(B) Requires high qualifications for staff, including that teachers meet the requirements of 1 of the following clauses:

(i) The teacher has a bachelor's degree in early childhood education or a related field with coursework that demonstrates competence in early childhood education.

(ii) The teacher—

(I) has a bachelor's degree in any field;

(II) has demonstrated knowledge of early childhood education by passing a State-approved assessment in early childhood education;

(III) while employed as a teacher in the prekindergarten program, is engaged in ongoing professional development in early childhood education for not less than 2 years; and

(IV) not more than 4 years after starting employment as a teacher in the prekindergarten program, enrolls in and completes a State-approved educator preparation program in which the teacher receives training and support in early childhood education.

(iii) The teacher has bachelor's degree with a credential, license, or endorsement that demonstrates competence in early childhood education.

(C) Maintains an evidence-based maximum class size.

(D) Maintains an evidence-based child to instructional staff ratio.

(E) Offers a full-day program.

(F) Provides developmentally appropriate learning environments and evidence-based curricula that are aligned with the State's early learning and development standards described in section 10305(1).

(G) Offers instructional staff salaries comparable to kindergarten through grade 12 teaching staff.

(H) Provides for ongoing monitoring and program evaluation to ensure continuous improvement.

(I) Offers accessible comprehensive services for children that include, at a minimum—

(i) screenings for vision, hearing, dental, health (including mental health), and development (including early literacy and math skill development) and referrals, and assistance obtaining services, when appropriate;

(ii) family engagement opportunities that take into account home language, such as parent conferences (including parent input about their child's development) and support services, such as parent education, home visiting, and family literacy services;

(iii) nutrition services, including nutritious meals and snack options aligned with requirements set by the most recent Child and Adult Care Food Program guidelines promulgated by the Department of Agriculture as well as regular, age-appropriate, nutrition education for children and their families;

(iv) programs in coordination with local educational agencies and entities providing services and supports authorized under part B and part C of the Individuals with Disabilities Education Act (20 U.S.C. 1411 et seq.; 1431 et seq.) to ensure the full participation of children with disabilities;

(v) physical activity programs aligned with evidence-based guidelines, such as those recommended by the Institute of Medicine, and which take into account and accommodate children with disabilities;

(vi) additional support services, as appropriate, based on the findings of the community assessment, as described in section 10311(b)(4); and

(vii) on-site coordination, to the maximum extent practicable.

(J) Provides high-quality professional development for all staff, including regular in-classroom observation for teachers and teacher assistants by individuals trained in such observation and which may include evidence-based coaching.

(K) Meets the education performance standards in effect under section 641A(a)(1)(B) of the Head Start Act (42 U.S.C. 9836a(a)(1)(B)).

(L) Maintains evidence-based health and safety standards.

(M) Maintains disciplinary policies that do not include expulsion or suspension of participating children, except as a last resort in extraordinary circumstances where—

(i) there is a determination of a serious safety threat; and

(ii) policies are in place to provide appropriate alternative early educational services to expelled or suspended children while they are out of school.

(11) HOMELESS CHILD.—The term ''homeless child'' means a child or youth described in section 725(2) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11434a(2)).

(12) INDIAN TRIBE; TRIBAL ORGANIZATION.—The terms ''Indian tribe'' and ''tribal organization'' have the meanings given the terms in 658P of the Child Care and Development Block Grant of 1990 (42 U.S.C. 9858n).

(13) INSTITUTION OF HIGHER EDUCATION.—The term ''institution of higher education'' has the meaning given the term in section 102 of the Higher Education Act of 1965 (20 U.S.C. 1002).

(14) LIMITED ENGLISH PROFICIENT.—The term ''limited English proficient'' has the meaning given the term in section 637 of the Head Start Act (42 U.S.C. 9832).

(15) LOCAL EDUCATIONAL AGENCY; STATE EDUCATIONAL AGENCY; EDUCATIONAL SERVICE AGENCY.—The terms ''local educational agency'', ''State educational agency'', and ''educational service agency'' have the meanings given the terms in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801).

(16) MIGRATORY CHILD.—The term ''migratory child'' has the meaning given the term in section 1309 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6399).

(17) OUTLYING AREA.—The term ''outlying area'' means each of the United States Virgin Islands, Guam, American Samoa, the Commonwealth of the Northern Mariana Islands, and the Republic of Palau, the Federated States of Micronesia, and the Republic of the Marshall Islands.

(18) POVERTY LINE.—The term ''poverty line'' means the official poverty line (as defined by the Office of Management and Budget)—

(A) adjusted to reflect the percentage change in the Consumer Price Index for All Urban Consumers published by the Bureau of Labor Statistics of the Department of Labor for the most recent 12-month period or other interval for which the data are available; and

(B) applicable to a family of the size involved.

(19) SECONDARY SCHOOL.—The term ''secondary school'' has the meaning given the term in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801).

(20) SECRETARY.—The term ''Secretary'' means the Secretary of Education.

(21) STATE.—Except as otherwise provided in this subpart, the term ''State'' means

each of the 50 States, the District of Columbia, the Commonwealth of Puerto Rico, and each of the outlying areas.

(22) STATE ADVISORY COUNCIL ON EARLY CHILDHOOD EDUCATION AND CARE.—The term ''State Advisory Council on Early Childhood Education and Care'' means the State Advisory Council on Early Childhood Education and Care established under section 642B(b) of the Head Start Act (42 U.S.C. 9837b(b)).

SEC. 10303. PROGRAM AUTHORIZATION.

From amounts made available to carry out this subpart, the Secretary, in consultation with the Secretary of Health and Human Services, shall award grants to States to implement high-quality prekindergarten programs, consistent with the purposes of this subpart described in section 10301. For each fiscal year, the funds provided under a grant to a State shall equal the allotment determined for the State under section 10304.

SEC. 10304. ALLOTMENTS AND RESERVATIONS OF FUNDS.

(a) RESERVATION.—From the amount made available each fiscal year to carry out this subpart, the Secretary shall—

(1) reserve not less than 1 percent and not more than 2 percent for payments to Indian tribes and tribal organizations;

(2) reserve one-half of 1 percent for the outlying areas to be distributed among the outlying areas on the basis of their relative need, as determined by the Secretary in accordance with the purposes of this subpart;

(3) reserve one-half of 1 percent for eligible local entities that serve children in families who are engaged in migrant or seasonal agricultural labor; and

(4) reserve not more than 1 percent or $30,000,000, whichever amount is less, for national activities, including administration, technical assistance, and evaluation.

(b) ALLOTMENTS.—

(1) IN GENERAL.—From the amount made available each fiscal year to carry out this subpart and not reserved under subsection (a), the Secretary shall make allotments to States in accordance with paragraph (2) that have submitted an approved application.

(2) ALLOTMENT AMOUNT.—

(A) IN GENERAL.—Subject to subparagraph (B), the Secretary shall allot the amount made available under paragraph (1) for a fiscal year among the States in proportion to the number of children who are age 4 who reside within the State and are from families with incomes at or below 200 percent of the poverty line for the most recent year for which satisfactory data are available, compared to the number of such children who reside in all such States for that fiscal year.

(B) MINIMUM ALLOTMENT AMOUNT.—No State receiving an allotment under subparagraph (A) may receive less than one-half of 1 percent of the total amount allotted under such subparagraph.

(3) REALLOTMENT AND CARRY OVER.—

(A) IN GENERAL.—If one or more States do not receive an allotment under this subsection for any fiscal year, the Secretary may use the amount of the allotment for that State or States, in such amounts as the Secretary determines appropriate, for either or both of the following:

(i) To increase the allotments of States with approved applications for the fiscal year, consistent with subparagraph (B).

(ii) To carry over the funds to the next fiscal year.

(B) REALLOTMENT.—In increasing allotments under subparagraph (A)(i), the Secretary shall allot to each State with an approved application an amount that bears the same relationship to the total amount to be allotted under subparagraph (A)(i), as the amount the State received under paragraph (2) for that fiscal year bears to the amount that all States received under paragraph (2) for that fiscal year.

(4) STATE.—For purposes of this subsection, the term ''State'' means each of the 50 States, the District of Columbia, and the Commonwealth of Puerto Rico.

(c) FLEXIBILITY.—The Secretary may make minimal adjustments to allotments under subsection (b), which shall neither lead to a significant increase or decrease in a State's allotment determined under subsection (b), based on a set of factors, such as the level of program participation and the estimated cost of the activities specified in the State plan under section 10306(2).

SEC. 10305. STATE ELIGIBILITY CRITERIA.

A State is eligible to receive a grant under this subpart if the State demonstrates to the Secretary that the State—

(1) has established or will establish early learning and development standards that—

(A) describe what children from birth to kindergarten entry should know and be able to do;

(B) are universally designed and developmentally, culturally, and linguistically appropriate;

(C) are aligned with the State's challenging academic content standards and challenging student academic achievement standards, as adopted under section 1111(b)(1) of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6311(b)(1)); and

(D) cover all of the essential domains of school readiness, which address—

(i) physical well-being and motor development;

(ii) social and emotional development;

(iii) approaches to learning, including creative arts expression;

(iv) developmentally appropriate oral and written language and literacy development; and

(v) cognition and general knowledge, including early mathematics and early scientific development;

(2) has the ability or will develop the ability to link prekindergarten data with State elementary school and secondary school data for the purpose of collecting longitudinal information for all children participating in the State's high-quality prekindergarten program and any other federally funded early childhood program that will remain with the child through the child's public education through grade 12;

(3) offers State-funded kindergarten for children who are eligible children for that service in the State; and

(4) has established a State Advisory Council on Early Childhood Education and Care.

SEC. 10306. STATE APPLICATIONS.

To receive a grant under this subpart, the Governor of a State, in consultation with the Indian tribes and tribal organizations in the State, if any, shall submit an application to the Secretary at such time, in such manner, and containing such information as the Secretary may reasonably require. At a minimum, each such application shall include—

(1) an assurance that the State—

(A) will coordinate with and continue to participate in the programs authorized under section 619 and part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419; 1431 et seq.), the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858 et seq.), and the maternal, infant, and early childhood home visiting programs funded under section 511 of the Social Security Act (42 U.S.C. 711) for the duration of the grant;

(B) will designate a State-level entity (such as an agency or joint interagency office), selected by the Governor, for the administration of the grant, which shall coordinate and consult with the State educational agency if the entity is not the State educational agency; and

(C) will establish, or certify the existence of, program standards for all State prekindergarten programs consistent with the definition of a high-quality prekindergarten program under section 10302;

(2) a description of the State's plan to—

(A) use funds received under this subpart and the State's matching funds to provide high-quality prekindergarten programs, in accordance with section 10307(d), with open enrollment for all children in the State who—

(i) are described insection 10302(10)(A);and

(ii) are from families with incomes at or below 200 percent of the poverty line;

(B) develop or enhance a system for monitoring eligible local entities that are receiving funds under this subpart for compliance with quality standards developed by the State and to provide program improvement support, which may be accomplished through the use of a State-developed system for quality rating and improvement;

(C) if applicable, expand participation in the State's high-quality prekindergarten programs to children from families with incomes above 200 percent of the poverty line;

(D) carry out the State's comprehensive early learning assessment system, or how the State plans to develop such a system, ensuring that any assessments are culturally, developmentally, and age-appropriate and consistent with the recommendations from the study on Developmental Outcomes and Assessments for Young Children by the National Academy of Sciences, consistent with section 649(j) of the Head Start Act (42 U.S.C. 9844);

(E) develop, implement, and make publicly available the performance measures and targets described in section 10309;

(F) increase the number of teachers with bachelor's degrees in early childhood education, or with bachelor's degrees in another closely related field and specialized training and demonstrated competency in early childhood education, including how institutions of higher education will support increasing the number of teachers with such degrees and training, including through the use of assessments of prior learning, knowledge, and skills to facilitate and expedite attainment of such degrees;

(G) coordinate and integrate the activities funded under this subpart with Federal, State, and local services and programs that support early childhood education and care, including programs supported under this subpart, the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6301 et seq.), the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.), the Head Start Act (42 U.S.C. 9831 et seq.), the Community Services Block Grant Act (42 U.S.C. 9901 et seq.), the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858 et seq.), the temporary assistance for needy families program under part A of title IV of the Social Security Act (42 U.S.C. 601 et seq.), the Race to the Top program under section 14006 of division A of the American Recovery and Reinvestment Act of 2009 (Public Law 111–5), federally funded early literacy programs, the maternal, infant, and early childhood home visiting programs funded under section 511 of the Social Security Act (42 U.S.C. 711), health improvements to child care funded under title XIX of the Social Security Act (42 U.S.C. 1396 et seq.), the program under subtitle B of title VII of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11431 et seq.), the innovation fund program under section 14007 of the American Recovery and Reinvestment Act of 2009 (Public Law 111–5), programs authorized under part E of title IV of the Social Security Act (42 U.S.C. 670 et seq.), the Fostering Connections to Success and Increasing Adoptions Act of 2008 (Public

Law 110–351), grants for infant and toddler care through Early Head Start-Child Care Partnerships funded under the heading ''CHILDREN AND FAMILIES SERVICES PROGRAMS'' under the heading ADMINISTRATION FOR CHILDREN AND FAMILIES in title II of division H of the Department of Health and Human Services Appropriations Act, 2014 (Public Law 113–76; 128 Stat. 377–378), the preschool development grants program funded under the heading ''INNOVATION AND IMPROVEMENT'' in title III of division G of the Department of Education Appropriations Act, 2015 (Public Law 113–235; 128 Stat. 2496), and any other Federal, State, or local early childhood education programs used in the State;

(H) award subgrants to eligible local entities, and in awarding such subgrants, facilitate a delivery system of high-quality prekindergarten programs that includes diverse providers, such as providers in community-based, public school, and private settings, and consider the system's impact on options for families;

(I) in the case of a State that does not have a State-determined funding mechanism for prekindergarten, use objective criteria in awarding subgrants to eligible local entities that will implement high-quality prekindergarten programs, including actions the State will take to ensure that eligible local entities will coordinate with local educational agencies or other early learning providers, as appropriate, to carry out activities to provide children served under this subpart with a successful transition from preschool into kindergarten, which activities shall include—

(i) aligning curricular objectives and instruction;

(ii) providing staff professional development, including opportunities for joint-professional development on early learning and kindergarten through grade 3 standards, assessments, and curricula;

(iii) coordinating family engagement and support services; and

(iv) encouraging the shared use of facilities and transportation, as appropriate;

(J) use the State early learning and development standards described in section 10305(1) to address the needs of dual language learners, including by incorporating benchmarks related to English language development;

(K) identify barriers, and propose solutions to overcome such barriers, which may include seeking assistance under section 10316, in the State to effectively use and integrate Federal, State, and local public funds and private funds for early childhood education that are available to the State on the date on which the application is submitted;

(L) support articulation agreements (as defined in section 486A of the Higher Education Act of 1965 (20 U.S.C. 1093a)) between public 2-year and public 4-year institutions of higher education and other credit-bearing professional development in the State for early childhood teacher preparation programs and closely related fields;

(M) ensure that the higher education programs in the State have the capacity to prepare a workforce to provide high-quality prekindergarten programs;

(N) support workforce development, including State and local policies that support prekindergarten instructional staff's ability to earn a degree, certification, or other specializations or qualifications, including policies on leave, substitutes, and child care services, including non-traditional hour child care;

(O) hold eligible local entities accountable for use of funds;

(P) ensure that the State's early learning and development standards are integrated into the instructional and programmatic practices of high-quality prekindergarten programs and related programs and services, such as those provided to children under section 619 and part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419 and 1431 et seq.);

(Q) increase the number of children in the State who are enrolled in high-quality kindergarten programs and carry out a strategy to implement such a plan;

(R) coordinate the State's activities supported by grants under this subpart with activities in State plans required under the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6301 et seq.), the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.), the Head Start Act (42 U.S.C. 9831 et seq.), the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858 et seq.), and the Adult Education and Family Literacy Act (29 U.S.C. 3271 et seq.);

(S) encourage eligible local entities to coordinate with community-based learning resources, such as libraries, arts and arts education programs, appropriate media programs, family literacy programs, public parks and recreation programs, museums, nutrition education programs, and programs supported by the Corporation for National and Community Service;

(T) work with eligible local entities, in consultation with elementary school principals, to ensure that high-quality prekindergarten programs have sufficient and appropriate facilities to meet the needs of children eligible for prekindergarten;

(U) support local early childhood coordinating entities, such as local early childhood councils, if applicable, and help such entities to coordinate early childhood education programs with high-quality prekindergarten programs to ensure effective and efficient delivery of early childhood education program services;

(V) support shared services administering entities, if applicable;

(W) ensure that the provision of high-quality prekindergarten programs will not lead to a diminution in the quality or supply of services for infants and toddlers or disrupt the care of infants and toddlers in the geographic area served by the eligible local entity, which may include demonstrating that the State will direct funds to provide high-quality early childhood education and care to infants and toddlers in accordance with section 10307(d); and

(X) encourage or promote socioeconomic, racial, and ethnic diversity in the classrooms of high-quality prekindergarten programs, as applicable; and

(3) an inventory of the State's higher education programs that prepare individuals for work in a high-quality prekindergarten program, including—

(A) certification programs;

(B) associate degree programs;

(C) baccalaureate degree programs;

(D) masters degree programs; and

(E) other programs that lead to a specialization in early childhood education, or a related field.

SEC. 10307. STATE USE OF FUNDS.

(a) RESERVATION FOR QUALITY IMPROVEMENT ACTIVITIES.—

(1) IN GENERAL.—A State that receives a grant under this subpart may reserve, for not more than the first 4 years such State receives such a grant, not more than 20 percent of the grant funds for quality improvement activities that support the elements of high-quality prekindergarten programs. Such quality improvement activities may include supporting teachers, center directors, and principals in a State's high-quality prekindergarten program, licensed or regulated child care, or Head Start programs to enable such teachers, principals, or directors to earn a baccalaureate degree in early childhood education, or a closely related field, through activities which may include—

(A) expanding or establishing scholarships, counseling, and compensation initiatives to cover the cost of tuition, fees, materials, transportation, and release time for such teachers;

(B) providing ongoing professional development opportunities, including regular in-classroom observation by individuals trained in such observation, for such teachers, directors, principals, and teachers assistants to enable such teachers, directors, principals, and teachers assistants to carry out the elements of high-quality prekindergarten programs, which may include activities that address—

(i) promoting children's development across all of the essential domains of early learning and development;

(ii) developmentally appropriate curricula and teacher-child interaction;

(iii) effective family engagement;

(iv) providing culturally competent instruction;

(v) working with a diversity of children and families, including children with disabilities and dual language learners;

(vi) childhood nutrition and physical education programs;

(vii) supporting the implementation of evidence-based curricula;

(viii) social and emotional development; and

(ix) incorporating age-appropriate strategies of positive behavioral interventions and supports; and

(C) providing families with increased opportunities to learn how best to support their children's physical, cognitive, social, and emotional development during the first 5 years of life.

(2) NOT SUBJECT TO MATCHING.—The amount reserved under paragraph (1) shall not be subject to the matching requirements under section 10310.

(3) COORDINATION.—A State that reserves an amount under paragraph (1) shall coordinate the use of such amount with activities funded under section 658G of the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858e) and the Head Start Act (42 U.S.C. 9831 et seq.).

(4) CONSTRUCTION.—A State may not use funds reserved under this subsection to meet the requirement described in 10302(10)(G).

(b) SUBGRANTS FOR HIGH-QUALITY PREKINDERGARTEN PROGRAMS.—A State that receives a grant under this subpart shall award subgrants of sufficient size to eligible local entities to enable such eligible local entities to implement high-quality prekindergarten programs for children who—

(1) are described insection 10302(10)(A);

(2) reside within the State; and

(3) are from families with incomes at or below 200 percent of the poverty line.

(c) ADMINISTRATION.—A State that receives a grant under this subpart may reserve not more than 1 percent of the grant funds for administration of the grant, and may use part of that reservation for the maintenance of the State Advisory Council on Early Childhood Education and Care.

(d) EARLY CHILDHOOD EDUCATION AND CARE PROGRAMS FOR INFANTS AND TODDLERS.—

(1) USE OF ALLOTMENT FOR INFANTS AND TODDLERS.—An eligible State may apply to use, and the appropriate Secretary may grant permission for the State to use, not more than 15 percent of the funds made available through a grant received under this subpart to award subgrants to early childhood education programs to provide, consistent with the State's early learning and

development guidelines for infants and toddlers, high-quality early childhood education and care to infants and toddlers who reside within the State and are from families with incomes at or below 200 percent of the poverty line.

(2) APPLICATION.—To be eligible to use the grant funds as described in paragraph (1), the State shall submit an application to the appropriate Secretary at such time, in such manner, and containing such information as the Secretary may require. Such application shall, at a minimum, include a description of how the State will—

(A) designate a lead agency which shall administer such funds;

(B) ensure that such lead agency, in coordination with the State's Advisory Council on Early Childhood Education and Care, will collaborate with other agencies in administering programs supported under this subsection for infants and toddlers in order to obtain input about the appropriate use of such funds and ensure coordination with programs for infants and toddlers funded under the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858 et seq.), the Head Start Act (42 U.S.C. 9831 et seq.) (including any Early Learning Quality Partnerships established in the State under section 645B of the Head Start Act, as added by section 202), the Race to the Top program under section 14006 of division A of the American Recovery and Reinvestment Act of 2009 (Public Law 111–5), the maternal, infant, and early childhood home visiting programs funded under section 511 of the Social Security Act (42 U.S.C. 711), part C of the Individuals with Disabilities Education Act (20 U.S.C. 1431 et seq.), and grants for infant and toddler care through Early Head Start-Child Care Partnerships funded under the heading ''CHILDREN AND FAMILIES SERVICES PROGRAMS'' under the heading ADMINISTRATION FOR CHILDREN AND FAMILIES in title II of division H of the Department of Health and Human Services Appropriations Act, 2014 (Public Law 113–76; 128 Stat. 377–378);

(C) ensure that infants and toddlers who benefit from amounts made available under this subsection will transition to and have the opportunity to participate in a high-quality prekindergarten program supported under this subpart;

(D) in awarding subgrants, give preference to early childhood education programs that have a written formal plan with baseline data, benchmarks, and timetables to increase access to and full participation in high-quality prekindergarten programs for children who need additional support, including children with developmental delays or disabilities, children who are dual language learners, homeless children, children who are in foster care, children of migrant families, children eligible for a free or reduced-price lunch under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.), or children in the child welfare system; and

(E) give priority to activities carried out under this subsection that will increase access to high-quality early childhood education programs for infants and toddlers in local areas with significant concentrations of low-income families that do not currently benefit from such programs.

(3) ELIGIBLE PROVIDERS.—A State may use the grant funds as described in paragraph (1) to serve infants and toddlers only by working with early childhood education program providers that—

(A) offer full-day, full-year care, or otherwise meet the needs of working families; and

(B) meet high-quality standards, such as—

(i) Early Head Start program performance standards under the Head Start Act (42 U.S.C. 9831 et seq.); or

(ii) high-quality, demonstrated, valid, and reliable program standards that have been established through a national entity that accredits early childhood education programs.

(4) FEDERAL ADMINISTRATION.—

(A) IN GENERAL.—The Secretary shall bear responsibility for obligating and disbursing funds to support activities under this subsection and ensuring compliance with applicable laws and administrative requirements, subject to paragraph (3).

(B) INTERAGENCY AGREEMENT.—The Secretary of Education and the Secretary of Health and Human Services shall jointly administer activities supported under this subsection on such terms as such Secretaries shall set forth in an interagency agreement. The Secretary of Health and Human Services shall be responsible for any final approval of a State's application under this subsection that addresses the use of funds designated for services to infants and toddlers.

(C) APPROPRIATE SECRETARY.—In this subsection, the term ''appropriate Secretary'' used with respect to a function, means the Secretary designated for that function under the interagency agreement.

SEC. 10308. ADDITIONAL PREKINDERGARTEN SERVICES.

(a) PREKINDERGARTEN FOR 3-YEAR-OLDS.—Each State that certifies to the Secretary that the State provides universally available, voluntary, high-quality prekindergarten programs for 4-year-old children who reside within the State and are from families with incomes at or below 200 percent of the poverty line may use the State's allocation under section 10304(b) to provide high-quality prekindergarten programs for 3-year-old children who reside within the State and are from families with incomes at or below 200 percent of the poverty line.

(b) SUBGRANTS.—In each State that has a city, county, or local educational agency that provides universally available high-quality prekindergarten programs for 4-year-old children who reside within the State and are from families with incomes at or below 200 percent of the poverty line the State may use amounts from the State's allocation under section 10304(b) to award subgrants to eligible local entities to enable such eligible local entities to provide high-quality prekindergarten programs for 3-year-old children who are from families with incomes at or below 200 percent of the poverty line and who reside in such city, county, or local educational agency.

SEC. 10309. PERFORMANCE MEASURES AND TARGETS.

(a) IN GENERAL.—A State that receives a grant under this subpart shall develop, implement, and make publicly available the performance measures and targets for the activities carried out with grant funds. Such measures shall, at a minimum, track the State's progress in—

(1) increasing school readiness across all domains for all categories of children, as described in section 10313(b)(7), including children with disabilities and dual language learners;

(2) narrowing school readiness gaps between minority and nonminority children, and low-income children and more advantaged children, in preparation for kindergarten entry;

(3) decreasing the number of years that children receive special education and related services as described in part B of the Individuals with Disabilities Education Act (20 U.S.C. 1411 et seq.);

(4) increasing the number of programs meeting the criteria for high-quality prekindergarten programs across all types of local eligible entities, as defined by the State and in accordance with section 10302;

(5) decreasing the need for grade-to-grade retention in elementary school;

(6) if applicable, ensuring that high-quality prekindergarten programs do not experience instances of chronic absence among the children who participate in such programs;

(7) increasing the number and percentage of low-income children in high-quality early childhood education programs that receive financial support through funds provided under this subpart; and

(8) providing high-quality nutrition services, nutrition education, physical activity, and obesity prevention programs.

(b) PROHIBITION OF MISDIAGNOSIS PRACTICES.—A State shall not, in order to meet the performance measures and targets described in subsection (a), engage in practices or policies that will lead to the misdiagnosis or under-diagnosis of disabilities or developmental delays among children who are served through programs supported under this subpart.

SEC. 10310. MATCHING REQUIREMENTS.

(a) MATCHING FUNDS.—

(1) IN GENERAL.—Except as provided in paragraph (2), a State that receives a grant under this subpart shall provide matching funds from non-Federal sources, as described in subsection (c), in an amount equal to—

(A) 10 percent of the Federal funds provided under the grant in the first year of grant administration;

(B) 10 percent of the Federal funds provided under the grant in the second year of grant administration;

(C) 20 percent of the Federal funds provided under the grant in the third year of grant administration;

(D) 30 percent of the Federal funds provided under the grant in the fourth year of grant administration; and

(E) 40 percent of the Federal funds provided under the grant in the fifth year of grant administration.

(2) REDUCED MATCH RATE.—A State that meets the requirements under subsection (b) may provide matching funds from non-Federal sources at a reduced rate. The full reduced matching funds rate shall be in an amount equal to—

(A) 5 percent of the Federal funds provided under the grant in the first year of grant administration;

(B) 5 percent of the Federal funds provided under the grant in the second year of grant administration;

(C) 10 percent of the Federal funds provided under the grant in the third year of grant administration;

(D) 20 percent of the Federal funds provided under the grant in the fourth year of grant administration; and

(E) 30 percent of the Federal funds provided under the grant in the fifth year of grant administration.

(b) REDUCED MATCH RATE ELIGIBILITY.—A State that receives a grant under this subpart may provide matching funds from non-Federal sources at the full reduced rate under subsection (a)(2) if the State, across all publicly funded programs (including locally funded programs)—

(1)(A) offers enrollment in high-quality prekindergarten programs to not less than half of children in the State who are—

(i) age 4 on the eligibility determination date; and

(ii) from families with incomes at or below 200 percent of the poverty line; and

(B) has a plan for continuing to expand access to high-quality prekindergarten programs for such children in the State; and

(2) has a plan to expand access to high-quality prekindergarten programs to children from moderate income families whose income exceeds 200 percent of the poverty line.

(c) NON-FEDERAL RESOURCES.—

(1) IN CASH.—A State shall provide the matching funds under this section in cash with non-Federal resources which may include State funding, local funding, or contributions from philanthropy or other private sources, or a combination thereof.

(2) FUNDS TO BE CONSIDERED AS MATCHING FUNDS.—A State may include, as part of the State's matching funds under this section, not more than 10 percent of the amount of State or local funds designated for State or local prekindergarten programs or to supplement Head Start programs under the Head Start Act (42 U.S.C. 9831 et seq.) as of the date of enactment of this Act, but may not include any funds that are attributed as matching funds, as part of a non-Federal share, or as a maintenance of effort requirement, for any other Federal program.

(d) MAINTENANCE OF EFFORT.—

(1) IN GENERAL.—If a State reduces its combined fiscal effort per student or the aggregate expenditures within the State to support early childhood education programs for any fiscal year that a State receives a grant authorized under this subpart relative to the previous fiscal year, the Secretary shall reduce support for such State under this subpart by the same amount as the decline in State effort for such fiscal year.

(2) WAIVER.—The Secretary may waive the requirements of paragraph (1) if—

(A) the Secretary determines that a waiver would be appropriate due to a precipitous decline in the financial resources of a State as a result of unforeseen economic hardship or a natural disaster that has necessitated across-the-board reductions in State services, including early childhood education programs; or

(B) due to the circumstances of a State requiring reductions in specific programs, including early childhood education, if the State presents to the Secretary a justification and demonstration why other programs could not be reduced and how early childhood programs in the State will not be disproportionately harmed by such State action.

(e) SUPPLEMENT NOT SUPPLANT.—Grant funds received under this subpart shall be used to supplement and not supplant other Federal, State, and local public funds expended on public prekindergarten programs in the State.

SEC. 10311. ELIGIBLE LOCAL ENTITY APPLICATIONS.

(a) IN GENERAL.—An eligible local entity desiring to receive a subgrant under section 10307(b) shall submit an application to the State, at such time, in such manner, and containing such information as the State may reasonably require.

(b) CONTENTS.—Each application submitted under subsection (a) shall include the following:

(1) PARENT AND FAMILY ENGAGEMENT.—A description of how the eligible local entity plans to engage the parents and families of the children such entity serves and ensure that parents and families of eligible children, as described in clauses (i) and (ii) of section 10306(2)(A), are aware of the services provided by the eligible local entity, which shall include a plan to—

(A) carry out meaningful parent and family engagement, through the implementation and replication of evidence-based or promising practices and strategies, which shall be coordinated with parent and family engagement strategies supported under the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.), part A of title I and title V of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6311 et seq.; 7201 et seq.), and strategies in the Head Start Parent, Family, and Community Engagement Framework, if applicable, to—

(i) provide parents and family members with the skills and opportunities necessary to become engaged and effective partners in their children's education, particularly the families of dual language learners and children with disabilities, which may include access to family literacy services;

(ii) improve child development; and

(iii) strengthen relationships among prekindergarten staff and parents and family members; and

(B) participate in community outreach to encourage families with eligible children to participate in the eligible local entity's high-quality prekindergarten program, including—

(i) homeless children;

(ii) dual language learners;

(iii) children in foster care;

(iv) children with disabilities; and

(v) migrant children.

(2) COORDINATION AND ALIGNMENT.—A description of how the eligible local entity will—

(A) coordinate, if applicable, the eligible local entity's activities with—

(i) Head Start agencies (consistent with section 642(e)(5) of the Head Start Act (42 U.S.C. 9837(e)(5))), if the local entity is not a Head Start agency;

(ii) local educational agencies, if the eligible local entity is not a local educational agency;

(iii) providers of services under part C of the Individuals with Disabilities Education Act (20 U.S.C. 1431 et seq.);

(iv) programs carried out under section 619 of the Individuals with Disabilities Education Act (20 U.S.C. 1419); and

(v) if feasible, other entities carrying out early childhood education programs and services within the area served by the local educational agency;

(B) develop a process to promote continuity of developmentally appropriate instructional programs and shared expectations with local elementary schools for children's learning and development as children transition to kindergarten;

(C) organize, if feasible, and participate in joint training, when available, including transition-related training for school staff and early childhood education program staff;

(D) establish comprehensive transition policies and procedures, with applicable elementary schools and principals, for the children served by the eligible local entity that support the school readiness of children transitioning to kindergarten, including the transfer of early childhood education program records, with parental consent;

(E) conduct outreach to parents, families, and elementary school teachers and principals to discuss the educational, developmental, and other needs of children entering kindergarten;

(F) help parents, including parents of children who are dual language learners, understand and engage with the instructional and other services provided by the kindergarten in which such child will enroll after participation in a high-quality prekindergarten program; and

(G) develop and implement a system to increase program participation of underserved populations of eligible children, especially homeless children, children eligible for a free or reduced-price lunch under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.), parents of children who are dual language learners, and parents of children with disabilities.

(3) FULL PARTICIPATION OF ALL CHILDREN.—A description of how the eligible local entity will meet the diverse needs of children in the community to be served, including children with disabilities, dual language learners, children who need additional support, children in the State foster care system, and homeless children. Such description shall demonstrate, at a minimum, how the entity plans to—

(A) ensure the eligible local entity's high-quality prekindergarten program is accessible and appropriate for children with disabilities and dual language learners;

(B) establish effective procedures for ensuring use of evidence-based practices in assessment and instruction, including use of data for progress monitoring of child performance and provision of technical assistance support for staff to ensure fidelity with evidence-based practices;

(C) establish effective procedures for timely referral of children with disabilities to entities authorized under part B and part C of the Individuals with Disabilities Education Act (20 U.S.C. 1411 et seq.; 1431 et seq.);

(D) ensure that the eligible local entity's high-quality prekindergarten program works with appropriate entities to address the elimination of barriers to immediate and continuous enrollment for homeless children; and

(E) ensure access to and continuity of enrollment in high-quality prekindergarten programs for migratory children, if applicable, and homeless children, including through policies and procedures that require—

(i) outreach to identify migratory children and homeless children;

(ii) immediate enrollment, including enrollment during the period of time when documents typically required for enrollment, including health and immunization records, proof of eligibility, and other documents, are obtained;

(iii) continuous enrollment and participation in the same high-quality prekindergarten program for a child, even if the child moves out of the program's service area, if that enrollment and participation are in the child's best interest, including by providing transportation when necessary;

(iv) professional development for high-quality prekindergarten program staff regarding migratory children and homelessness among families with young children; and

(v) in serving homeless children, collaboration with local educational agency liaisons designated under section 722(g)(1)(J)(ii) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11432(g)(1)(J)(ii)), and local homeless service providers.

(4) ACCESSIBLE COMPREHENSIVE SERVICES.—A description of how the eligible local entity plans to provide accessible comprehensive services, described in section 10302(10)(I), to the children the eligible local entity serves. Such description shall provide information on how the entity will—

(A) conduct a data-driven community assessment in coordination with members of the community, including parents and community organizations, or use a recently conducted data-driven assessment, which—

(i) may involve an external partner with expertise in conducting such needs analysis, to determine the most appropriate social or other support services to offer through the eligible local entity's on-site comprehensive services to children who participate in high-quality prekindergarten programs; and

(ii) shall consider the resources available at the school, local educational agency, and community levels to address the needs of the community and improve child outcomes; and

(B) have a coordinated system to facilitate the screening, referral, and provision of services related to health, nutrition, mental health, disability, and family support for children served by the eligible local entity.

(5) WORKFORCE.—A description of how the eligible local entity plans to support the instructional staff of such entity's high-quality prekindergarten program, which shall, at a minimum, include a plan to provide high-quality professional development, or facilitate the provision of high-quality professional development through an external partner with expertise and a demonstrated track record of success, based on scientifically valid research, that will improve the knowledge and skills of high-quality prekindergarten teachers and staff through activities, which may include—

(A) acquiring content knowledge and learning teaching strategies needed to provide effective instruction that addresses the State's early learning and development standards described under section 10305(1), including professional training to support the social and emotional development of children;

(B) enabling high-quality prekindergarten teachers and staff to pursue specialized training in early childhood development;

(C) enabling high-quality prekindergarten teachers and staff to acquire the knowledge and skills to provide instruction and appropriate language and support services to increase the English language skills of dual language learners;

(D) enabling high-quality prekindergarten teachers and staff to acquire the knowledge and skills to provide developmentally appropriate instruction for children with disabilities;

(E) promoting classroom management;

(F) providing high-quality induction and support for incoming high-quality prekindergarten teachers and staff in high-quality prekindergarten programs, including through the use of mentoring programs and coaching that have a demonstrated track record of success;

(G) promoting the acquisition of relevant credentials, including in ways that support career advancement through career ladders; and

(H) enabling high-quality prekindergarten teachers and staff to acquire the knowledge and skills to provide culturally competent instruction for children from diverse backgrounds.

SEC. 10312. REQUIRED SUBGRANT ACTIVITIES.

(a) IN GENERAL.—An eligible local entity that receives a subgrant under section 10307(b) shall use subgrant funds to implement the elements of a high-quality prekindergarten program for the children described in section 10307(b).

(b) COORDINATION.—

(1) LOCAL EDUCATIONAL AGENCY PARTNERSHIPS WITH LOCAL EARLY CHILDHOOD EDUCATION PROGRAMS.—A local educational agency that receives a subgrant under this subpart shall provide an assurance that the local educational agency will enter into strong partnerships with local early childhood education programs, including programs supported through the Head Start Act (42 U.S.C. 9831 et seq.).

(2) ELIGIBLE LOCAL ENTITIES THAT ARE NOT LOCAL EDUCATIONAL AGENCIES.—An eligible local entity that is not a local educational agency that receives a subgrant under this subpart shall provide an assurance that such entity will enter into strong partnerships with local educational agencies.

SEC. 10313. REPORT AND EVALUATION.

(a) IN GENERAL.—Each State that receives a grant under this subpart shall prepare an annual report, in such manner and containing such information as the Secretary may reasonably require.

(b) CONTENTS.—A report prepared under subsection (a) shall contain, at a minimum—

(1) a description of the manner in which the State has used the funds made available through the grant and a report of the expenditures made with the funds;

(2) a summary of the State's progress toward providing access to high-quality prekindergarten programs for children eligible for such services, as determined by the State, from families with incomes at or below 200 percent of the poverty line, including the percentage of funds spent on children from families with incomes—

(A) at or below 100 percent of the poverty line;

(B) at or below between 101 and 150 percent of the poverty line; and

(C) at or below between 151 and 200 percent of the poverty line;

(3) an evaluation of the State's progress toward achieving the State's performance targets, described in section 10309;

(4) data on the number of high-quality prekindergarten program teachers and staff in the State (including teacher turnover rates and teacher compensation levels compared to teachers in elementary schools and secondary schools), according to the setting in which such teachers and staff work (which settings shall include, at a minimum, Head Start programs, public prekindergarten, and child care programs) who received training or education during the period of the grant and remained in the early childhood education program field;

(5) data on the kindergarten readiness of children in the State;

(6) a description of the State's progress in effectively using Federal, State, and local public funds and private funds, for early childhood education;

(7) the number and percentage of children in the State participating in high-quality prekindergarten programs, disaggregated by race, ethnicity, family income, child age, disability, whether the children are homeless children, and whether the children are dual language learners;

(8) data on the availability, affordability, and quality of infant and toddler care in the State;

(9) the number of operational minutes per week and per year for each eligible local entity that receives a subgrant;

(10) the local educational agency and zip code in which each eligible local entity that receives a subgrant operates;

(11) information, for each of the local educational agencies described in paragraph (10), on the percentage of the costs of the public early childhood education programs that is funded from Federal, from State, and from local sources, including the percentages from specific funding programs;

(12) data on the number and percentage of children in the State participating in public kindergarten programs, disaggregated by race, family income, child age, disability, whether the children are homeless children, and whether the children are dual language learners, with information on whether such programs are offered—

(A) for a full day; and

(B) at no cost to families;

(13) data on the number of individuals in the State who are supported with scholarships, if applicable, to meet the bachelor's degree requirement for high-quality prekindergarten programs, as defined in section 10302; and

(14) information on—

(A) the rates of expulsion, suspension, and similar disciplinary action, of children in the State participating in high-quality prekindergarten programs, disaggregated by race, ethnicity, family income, child age, and disability;

(B) the State's progress in establishing policies on effective behavior management strategies and training that promote positive social and emotional development to eliminate expulsions and suspensions of children participating in high-quality prekindergarten programs; and

(C) the State's policies on providing early learning services to children in the State participating in high-quality prekindergarten programs who have been suspended.

(c) SUBMISSION.—A State shall submit the annual report prepared under subsection (a), at the end of each fiscal year, to the Secretary, the Secretary of Health and Human Services, and the State Advisory Council on Early Childhood Education and Care.

(d) COOPERATION.—An eligible local entity that receives a subgrant under this subpart shall cooperate with all Federal and State efforts to evaluate the effectiveness of the program the entity implements with subgrant funds.

(e) NATIONAL REPORT.—The Secretary shall compile and summarize the annual State reports described under subsection (c) and shall prepare and submit an annual report to Congress that includes a summary of such State reports.

SEC. 10314. PROHIBITION OF REQUIRED PARTICIPATION OR USE OF FUNDS FOR ASSESSMENTS.

(a) PROHIBITION ON REQUIRED PARTICIPATION.—A State receiving a grant under this subpart shall not require any child to participate in any Federal, State, local, or private early childhood education program, including a high-quality prekindergarten program.

(b) PROHIBITION ON USE OF FUNDS FOR ASSESSMENT.—A State receiving a grant under this subpart and an eligible local entity receiving a subgrant under this subpart shall not use any grant or subgrant funds to carry out any of the following activities:

(1) An assessment that provides rewards or sanctions for individual children, teachers, or principals.

(2) An assessment that is used as the primary or sole method for assessing program effectiveness.

(3) Evaluating children, other than for the purposes of—

(A) improving instruction or the classroom environment;

(B) targeting professional development;

(C) determining the need for health, mental health, disability, or family support services;

(D) program evaluation for the purposes of program improvement and parent information; and

(E) improving parent and family engagement.

SEC. 10315. COORDINATION WITH HEAD START PROGRAMS.

(a) INCREASED ACCESS FOR YOUNGER CHILDREN.—Not later than 1 year after the date of enactment of this Act, the Secretary and the Secretary of Health and Human Services shall develop a process—

(1) for use in the event that Head Start programs funded under the Head Start Act (42 U.S.C. 9831 et seq.) operate in States or regions that have achieved sustained universal, voluntary access to 4-year-old children who reside within the State and who are from families with incomes at or below 200 percent of the poverty line to high-quality prekindergarten programs; and

(2) for how such Head Start programs will begin converting slots for children who are age 4 on the eligibility determination date to children who are age 3 on the eligibility determination date, or, when appropriate, converting Head Start programs into Early Head Start programs to serve infants and toddlers.

(b) COMMUNITY NEED AND RESOURCES.—The process described in subsection (a) shall—

(1) be carried out on a case-by-case basis and shall ensure that sufficient resources

and time are allocated for the development of such a process so that no child or cohort is excluded from currently available services; and

(2) ensure that any conversion shall be based on community need and not on the aggregate number of children served in a State or region that has achieved sustained, universal, voluntary access to high-quality prekindergarten programs.

(c) PUBLIC COMMENT AND NOTICE.—Not fewer than 90 days after the development of the proposed process described in subsection (a), the Secretary and the Secretary of Health and Human Services shall publish a notice describing such proposed process for conversion in the Federal Register providing at least 90 days for public comment. The Secretaries shall review and consider public comments prior to finalizing the process for conversion of Head Start slots and programs.

(d) REPORTS TO CONGRESS.—Concurrently with publishing a notice in the Federal Register as described in subsection (c), the Secretaries shall provide a report to the Committee on Education and the Workforce of the House of Representatives and the Committee on Health, Education, Labor, and Pensions of the Senate that provides a detailed description of the proposed process described in subsection (a), including a description of the degree to which Head Start programs are providing State-funded high-quality prekindergarten programs as a result of the grant opportunity provided under this subpart in States where Head Start programs are eligible for conversion described in subsection (a).

SEC. 10316. TECHNICAL ASSISTANCE IN PROGRAM ADMINISTRATION.

In providing technical assistance to carry out activities under this subpart, the Secretary shall coordinate that technical assistance, in appropriate cases, with technical assistance provided by the Secretary of Health and Human Services to carry out the programs authorized under the Head Start Act (42 U.S.C. 9831 et seq.), the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858 et seq.), and the maternal, infant and early childhood home visiting programs assisted under section 511 of the Social Security Act (42 U.S.C. 711).

SEC. 10317. AUTHORIZATION OF APPROPRIATIONS.

To carry out this subpart, there are authorized to be appropriated, and there are appropriated—

(1) $1,300,000,000 for fiscal year 2016;

(2) $3,250,000,000 for fiscal year 2017;

(3) $5,780,000,000 for fiscal year 2018;

(4) $7,580,000,000 for fiscal year 2019; and

(5) $8,960,000,000 for fiscal year 2020.

Subpart B—Prekindergarten Development Grants

SEC. 10321. PREKINDERGARTEN DEVELOPMENT GRANTS.

(a) IN GENERAL.—The Secretary of Education, in consultation with the Secretary of Health and Human Services, shall award competitive grants to States that wish to increase their capacity and build the infrastructure within the State to offer high-quality prekindergarten programs.

(b) ELIGIBILITY OF STATES.—A State that is not receiving funds under subpart A may compete for grant funds under this section if the State provides an assurance that the State will, through the support of grant funds awarded under this section, meet the eligibility requirements of section 10305 not later than 3 years after the date the State first receives grant funds under this section.

(c) GRANT DURATION.—The Secretary shall award grants under this section for a period of not more than 3 years. Such grants shall not be renewed.

(d) APPLICATION.—

(1) IN GENERAL.—A Governor, or chief executive officer of a State that desires to receive a grant under this section shall submit an application to the Secretary of Education at such time, in such manner, and accompanied by such information as the Secretary of Education may reasonably require, including, if applicable, a description of how the State plans to become eligible for grants under section 10305 by not later than 3 years after the date the State first receives grant funds under this section.

(2) DEVELOPMENT OF STATE APPLICATION.—In developing an application for a grant under this section, a State shall consult with the State Advisory Council on Early Childhood Education and Care and incorporate the Council's recommendations, where applicable.

(e) MATCHING REQUIREMENT.—

(1) IN GENERAL.—To be eligible to receive a grant under this section, a State shall contribute for the activities for which the grant was awarded non-Federal matching funds in an amount equal to not less than 20 percent of the amount of the grant.

(2) NON-FEDERAL FUNDS.—To satisfy the requirement of paragraph (1), a State may use—

(A) non-Federal resources in the form of State funding, local funding, or contributions from philanthropy or other private sources, or a combination of such resources; or

(B) in-kind contributions.

(3) FINANCIAL HARDSHIP WAIVER.—The Secretary may waive the requirement under paragraph (1) or reduce the amount of matching funds required under that paragraph for a State that has submitted an application for a grant under this subsection if the State demonstrates, in the application, a need for such a waiver or reduction due to extreme financial hardship, as determined by the Secretary.

(f) SUBGRANTS.—

(1) IN GENERAL.—A State awarded a grant under this section may use the grant funds to award subgrants to eligible local entities, as defined in section 10302, to carry out the activities under the grant.

(2) SUBGRANTEES.—An eligible local entity awarded a subgrant under paragraph (1) shall comply with the requirements of this section relating to grantees, as appropriate.

(g) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there are authorized to be appropriated, and there are appropriated, $750,000,000 for each of fiscal years 2016 through 2020.

Subpart C—Early Learning Quality Partnerships

SEC. 10331. PURPOSES.

The purposes of this part are to—

(1) increase the availability of, and access to, high-quality early childhood education and care programming for infants and toddlers;

(2) support a higher quality of, and increase capacity for, such programming in both child care centers and family child care homes;

(3) encourage the provision of comprehensive, coordinated full-day services and supports for infants and toddlers; and

(4) increase access to appropriate supports so children with disabilities and other children who need specialized supports can fully participate in high-quality early education programs.

SEC. 10332. EARLY LEARNING QUALITY PARTNERSHIPS.

The Head Start Act is amended—

(1) by amending section 645A(e) (42 U.S.C. 9840a(e)) to read as follows:

''(e) SELECTION OF GRANT RECIPIENTS.—The Secretary shall award grants under this section on a competitive basis to applicants meeting the criteria in subsection (d) (giving priority to entities with a record of providing early, continuous, and comprehensive childhood development and family services and entities that agree to partner with a center-based or family child care provider to carry out the activities described in section 645B).''; and

(2) by inserting after section 645A the following:

''SEC. 645B. EARLY LEARNING QUALITY PARTNERSHIPS.

''(a) IN GENERAL.—The Secretary shall make grants to Early Head Start agencies to enable the Early Head Start agencies to form early learning quality partnerships by partnering with center-based or family child care providers, particularly those that receive support under the Child Care and Development Block Grant of 1990 (42 U.S.C. 9858 et seq.), that agree to meet the program performance standards described in section 641A(a)(1) and Early Head Start standards described in section 645A that are applicable to the ages of children served with funding and technical assistance from the Early Head Start agency.

''(b) SELECTION OF GRANT RECIPIENTS.—

''(1) IN GENERAL.—Except as provided in paragraphs (2) and (3), the Secretary shall award grants under this section in a manner consistent with section 645A(e).

''(2) COMPETITIVE PRIORITY.—In awarding grants under this section, the Secretary shall give priority to applicants—

''(A) that propose to create strong alignment of programs with maternal, infant, and early childhood home visiting programs assisted under section 511 of the Social Security Act (42 U.S.C. 711), State-funded prekindergarten programs, programs carried out under the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858 et seq.), and other programs supported under this Act, to create a strong continuum of high-quality services for children from birth to school entry; and

''(B) that seek to work with child care providers across settings, including center-based and home-based programs.

''(3) ALLOCATION.—

''(A) RESERVATION.—From funds appropriated to carry out this section, the Secretary shall reserve—

''(i) not less than 3 percent of such funds for Indian Head Start programs that serve young children;

''(ii) not less than 4.5 percent for migrant and seasonal Head Start programs that serve young children; and

''(iii) not less than 0.2 percent for programs funded under clause (iv) or (v) of section 640(a)(2)(B).

''(B) ALLOCATION AMONG STATES.—The Secretary shall allocate funds appropriated to carry out this section and not reserved under subparagraph (A) among the States proportionally based on the number of young children from families whose income is below the poverty line residing in such States.

''(c) ELIGIBILITY OF CHILDREN.—Partnerships formed through assistance provided under this section may serve children through age 3, and the standards applied to children in subsection (a) shall be consistent with those applied to 3-year-old children under this subchapter.

''(d) PARTNERSHIPS.—An Early Head Start agency that receives a grant under this section shall—

''(1) enter into a contractual relationship with a center-based or family child care provider to raise the quality of such provider's programs so that the provider meets the program performance standards described in subsection (a) through activities that may include—

''(A) expanding the center-based or family child care provider's programs through financial support;

''(B) providing training, technical assistance, and support to the provider in order to help the provider meet the program performance standards, which may include supporting program and partner staff in earning a child development associate credential, associate's degree, or baccalaureate degree in early childhood education or a closely related field for working with infants and toddlers; and

''(C) blending funds received under the Child Care and Development Block Grant of 1990 (42 U.S.C. 9858 et seq.) and the Early Head Start program carried out under section 645A in order to provide high-quality child care, for a full day, that meets the program performance standards;

''(2) develop and implement a proposal to recruit and enter into a contract with a center-based or family child care provider, particularly a provider that serves children who receive assistance under the Child Care and Development Block Grant of 1990 (42 U.S.C. 9858 et seq.);

''(3) create a clear and realizable timeline to increase the quality and capacity of a center-based or family child care provider so that the provider meets the program performance standards described in subsection (a); and

''(4) align activities and services provided through funding under this section with the Head Start Child Outcomes Framework.

''(e) STANDARDS.—Prior to awarding grants under this section, the Secretary shall establish standards to ensure that the responsibility and expectations of the Early Head Start agency and the partner child care providers are clearly defined.

''(f) DESIGNATION RENEWAL.—A partner child care provider that receives assistance through a grant provided under this section shall be exempt, for a period of 18 months, from the designation renewal requirements under section 641(c).

''(g) SURVEY OF EARLY HEAD START AGENCIES AND REPORT TO CONGRESS.—Within one year of the effective date of this section, the Secretary shall conduct a survey of Early Head Start agencies to determine the extent of barriers to entering into early learning quality partnership agreements under this section on Early Head Start agencies and on child care providers, and submit this information, with suggested steps to overcome such barriers, in a report to the Committee on Education and the Workforce of the House of Representatives and the Committee on Health, Education, Labor, and Pensions of the Senate, including a detailed description of the degree to which Early Head Start agencies are utilizing the funds provided.

''(h) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section—

''(1) $1,430,376,000 for fiscal year 2016; and

''(2) such sums as may be necessary for each of fiscal years 2017 through 2020.''.

Subpart D—Authorization of Appropriations for the Education of Children With Disabilities

SEC. 10341. PRESCHOOL GRANTS.

Section 619(j) of the Individuals with Disabilities Education Act (20 U.S.C. 1419(j)) is amended to read as follows:

''(j) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section $418,000,000 for fiscal year 2016 and such sums as may be necessary for each succeeding fiscal year.''.

SEC. 10342. INFANTS AND TODDLERS WITH DISABILITIES.

Section 644 of the Individuals with Disabilities Education Act (20 U.S.C. 1444) is amended to read as follows:

''SEC. 644. AUTHORIZATION OF APPROPRIATIONS.

''For the purpose of carrying out this part, there are authorized to be appropriated $508,000,000 for fiscal year 2016 and such sums as may be necessary for each succeeding fiscal year.''.

Subpart E—Maternal, Infant, and Early Childhood Home Visiting Program

SEC. 10351. SENSE OF THE SENATE.

It is the sense of the Senate that—

(1) from the prenatal period to the first day of kindergarten, children's development rapidly progresses at a pace exceeding that of any subsequent stage of life;

(2) as reported by the National Academy of Sciences in 2001, striking disparities exist in what children know and can do that are evident well before they enter kindergarten;

(3) such differences are strongly associated with social and economic circumstances, and they are predictive of subsequent academic performance;

(4) research has consistently demonstrated that investments in high-quality programs that serve infants and toddlers—

(A) better positions those children for success in elementary, secondary, and postsecondary education; and

(B) helps those children develop the critical physical, emotional, social, and cognitive skills that they will need for the rest of their lives;

(5) in 2011, there were 11,000,000 infants and toddlers living in the United States, and 49 percent of these children came from low-income families with incomes at or below 200 percent of the Federal poverty guidelines;

(6) the Maternal, Infant, and Early Childhood Home Visiting program (referred to as ''MIECHV'') was authorized by Congress to facilitate collaboration and partnership at the Federal, State, and community levels to improve health and development outcomes for at-risk children, including those from low-income families, through evidence-based home visiting programs;

(7) MIECHV is an evidence-based policy initiative and the program's authorizing legislation requires that at least 75 percent of funds dedicated to the program must support programs to implement evidence-based home visiting models, which includes the home-based model of Early Head Start; and

(8) Congress should continue to provide resources to MIECHV to support the work of States to help at-risk families voluntarily receive home visits from nurses and social workers to—

(A) promote maternal, infant, and child health;

(B) improve school readiness and achievement;

(C) prevent potential child abuse or neglect and injuries;

(D) support family economic self-sufficiency;

(E) reduce crime or domestic violence; and

(F) improve coordination or referrals for community resources and supports.

Subpart F—Paying a Fair Share

SEC. 10361. FAIR SHARE TAX ON HIGH-INCOME TAXPAYERS.

(a) IN GENERAL.—Subchapter A of chapter 1 of the Internal Revenue Code of 1986 is amended by adding at the end the following new part:

''PART VII—FAIR SHARE TAX ON HIGH-INCOME TAXPAYERS

''Sec. 59A. Fair share tax.

''SEC. 59A. FAIR SHARE TAX.

''(a) GENERAL RULE.—

''(1) PHASE-IN OF TAX.—In the case of any high-income taxpayer, there is hereby imposed for a taxable year (in addition to any other tax imposed by this subtitle) a tax equal to the product of—

''(A) the amount determined under paragraph (2), and

''(B) a fraction (not to exceed 1)—

''(i) the numerator of which is the excess of—

''(I) the taxpayer's adjusted gross income, over

''(II) the dollar amount in effect under subsection (c)(1), and

''(ii) the denominator of which is the dollar amount in effect under subsection (c)(1).

''(2) AMOUNT OF TAX.—The amount of tax determined under this paragraph is an amount equal to the excess (if any) of—

''(A) the tentative fair share tax for the taxable year, over

''(B) the excess of—

''(i) the sum of—

''(I) the regular tax liability (as defined in section 26(b)) for the taxable year, determined without regard to any tax liability determined under this section,

''(II) the tax imposed by section 55 for the taxable year, plus

''(III) the payroll tax for the taxable year, over

''(ii) the credits allowable under part IV of subchapter A (other than sections 27(a), 31, and 34).

''(b) TENTATIVE FAIR SHARE TAX.—For purposes of this section—

''(1) IN GENERAL.—The tentative fair share tax for the taxable year is 30 percent of the excess of—

''(A) the adjusted gross income of the taxpayer, over

''(B) the modified charitable contribution deduction for the taxable year.

''(2) MODIFIED CHARITABLE CONTRIBUTION DEDUCTION.—For purposes of paragraph (1)—

''(A) IN GENERAL.—The modified charitable contribution deduction for any taxable year is an amount equal to the amount which bears the same ratio to the deduction allowable under section 170 (section 642(c) in the case of a trust or estate) for such taxable year as—

''(i) the amount of itemized deductions allowable under the regular tax (as defined in section 55) for such taxable year, determined after the application of section 68, bears to

''(ii) such amount, determined before the application of section 68.

''(B) TAXPAYER MUST ITEMIZE.—In the case of any individual who does not elect to itemize deductions for the taxable year, the modified charitable contribution deduction shall be zero.

''(c) HIGH-INCOME TAXPAYER.—For purposes of this section—

''(1) IN GENERAL.—The term 'high-income taxpayer' means, with respect to any taxable year, any taxpayer (other than a corporation) with an adjusted gross income for such taxable year in excess of $1,000,000 (50 percent of such amount in the case of a married individual who files a separate return).

''(2) INFLATION ADJUSTMENT.—

''(A) IN GENERAL.—In the case of a taxable year beginning after 2016, the $1,000,000 amount under paragraph (1) shall be increased by an amount equal to—

''(i) such dollar amount, multiplied by

''(ii) the cost-of-living adjustment determined under section 1(f)(3) for the calendar year in which the taxable year begins, determined by substituting 'calendar year 2015' for 'calendar year 1992' in subparagraph (B) thereof.

''(B) ROUNDING.—If any amount as adjusted under subparagraph (A) is not a multiple of $10,000, such amount shall be rounded to the next lowest multiple of $10,000.

''(d) PAYROLL TAX.—For purposes of this section, the payroll tax for any taxable year is an amount equal to the excess of—

''(1) the taxes imposed on the taxpayer under sections 1401, 1411, 3101, 3201, and

3211(a) (to the extent such tax is attributable to the rate of tax in effect under section 3101) with respect to such taxable year or wages or compensation received during such taxable year, over

''(2) the deduction allowable under section 164(f) for such taxable year.

''(e) SPECIAL RULE FOR ESTATES AND TRUSTS.—For purposes of this section, in the case of an estate or trust, adjusted gross income shall be computed in the manner described in section 67(e).

''(f) NOT TREATED AS TAX IMPOSED BY THIS CHAPTER FOR CERTAIN PURPOSES.—The tax imposed under this section shall not be treated as tax imposed by this chapter for purposes of determining the amount of any credit under this chapter (other than the credit allowed under section 27(a)) or for purposes of section 55.''.

(b) CLERICAL AMENDMENT.—The table of parts for subchapter A of chapter 1 of the Internal Revenue Code of 1986 is amended by adding at the end the following new item:

''PART VII—FAIR SHARE TAX ON HIGH-INCOME TAXPAYERS''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after December 31, 2015.

(d) FUNDING.—Any increase in revenue attributable to the amendments made by this section shall be allocated to carrying out subparts A and B.

SA 2243. Mr. COONS (for himself and Mr. RUBIO) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

At the end of the bill, add the following:

PART C—AMERICAN DREAM ACCOUNTS

SEC. 10301. SHORT TITLE.

This part may be cited as the ''American Dream Accounts Act''.

SEC. 10302. DEFINITIONS.

In this part:

(1) AMERICAN DREAM ACCOUNT.—The term ''American Dream Account'' means a personal online account for low-income students that monitors higher education readiness and includes a college savings account.

(2) APPROPRIATE COMMITTEES OF CONGRESS.—The term ''appropriate committees of Congress'' means the Committee on Health, Education, Labor, and Pensions, the Committee on Appropriations, and the Committee on Finance of the Senate, and the Committee on Education and the Workforce, the Committee on Appropriations, and the Committee on Ways and Means of the House of Representatives, as well as any other Committee of the Senate or House of Representatives that the Secretary determines appropriate.

(3) CHARTER SCHOOL.—The term ''charter school'' has the meaning given such term in section 5110 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7221i).

(4) COLLEGE SAVINGS ACCOUNT.—The term ''college savings account'' means a trust created or organized exclusively for the purpose of paying the qualified expenses of only an individual who, when the trust is created or organized, has not obtained 18 years of age, if the written governing instrument creating the trust contains the following requirements:

(A) The trustee is a Federally insured financial institution, or a State insured financial institution if a Federally insured financial institution is not available.

(B) The assets of the trust will be invested in accordance with the direction of the individual or of a parent or guardian of the individual, after consultation with the entity providing the initial contribution to the trust or, if applicable, a matching or other contribution for the individual.

(C) The assets of the trust will not be commingled with other property except in a common trust fund or common investment fund.

(D) Any amount in the trust that is attributable to an account seed or matched deposit may be paid or distributed from the trust only for the purpose of paying qualified expenses of the individual.

(5) DUAL OR CONCURRENT ENROLLMENT PROGRAM.—The term ''dual or concurrent enrollment program'' means a program of study—

(A) provided by an institution of higher education through which a student who has not graduated from high school with a regular high school diploma (as defined in section 200.19(b)(1)(iv) of title 34, Code of Federal Regulations, as such section was in effect on November 28, 2008) is able to earn postsecondary credit; and

(B) that shall consist of not less than 2 postsecondary credit-bearing courses and support and academic services that help a student persist and complete such courses.

(6) EARLY COLLEGE HIGH SCHOOL PROGRAM.—The term ''early college high school program'' means a formal partnership between at least 1 local educational agency and at least 1 institution of higher education that allows participants, who are primarily low-income students, to simultaneously complete requirements toward earning a regular high school diploma (as defined in section 200.19(b)(1)(iv) of title 34, Code of Federal Regulations, as such section was in effect on November 28, 2008) and earn not less than 12 transferable credits as part of an organized course of study toward a postsecondary degree or credential.

(7) ELIGIBLE ENTITY.—The term ''eligible entity'' means—

(A) a State educational agency;

(B) a local educational agency, including a charter school that operates as its own local educational agency;

(C) a charter management organization or charter school authorizer;

(D) an institution of higher education or a Tribal College or University;

(E) a nonprofit organization;

(F) an entity with demonstrated experience in educational savings or in assisting low-income students to prepare for, and attend, an institution of higher education;

(G) a consortium of 2 or more of the entities described in subparagraphs (A) through (F); or

(H) a consortium of 1 or more of the entities described in subparagraphs (A) through (F) and a public school, a charter school, a school operated by the Bureau of Indian Affairs, or a tribally controlled school.

(8) INSTITUTION OF HIGHER EDUCATION.—The term ''institution of higher education'' has the meaning given such term in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a)).

(9) LOCAL EDUCATIONAL AGENCY.—The term ''local educational agency'' has the meaning given such term in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801).

(10) LOW-INCOME STUDENT.—The term ''low-income student'' means a student who is eligible to receive a free or reduced price lunch under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.).

(11) PARENT.—The term ''parent'' has the meaning given such term in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801).

(12) QUALIFIED EXPENSES.—The term ''qualified expenses'' means, with respect to an individual, expenses that—

(A) are incurred after the individual receives a secondary school diploma or its recognized equivalent; and

(B) are associated with attending an institution of higher education, including—

(i) tuition and fees;

(ii) room and board;

(iii) textbooks;

(iv) supplies and equipment; and

(v) Internet access.

(13) SECRETARY.—The term ''Secretary'' means the Secretary of Education.

(14) STATE EDUCATIONAL AGENCY.—The term ''State educational agency'' has the meaning given such term in section 9101 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7801).

(15) TRIBAL COLLEGE OR UNIVERSITY.—The term ''Tribal College or University'' has the meaning given such term in section 316(b) of the Higher Education Act of 1965 (20 U.S.C. 1059c(b)).

(16) TRIBALLY CONTROLLED SCHOOL.—The term ''tribally controlled school'' has the meaning given such term in section 5212 of the Tribally Controlled Schools Act of 1988 (25 U.S.C. 2511).

SEC. 10303. GRANT PROGRAM.

(a) PROGRAM AUTHORIZED.—The Secretary shall establish a pilot program and award 10 grants to eligible entities to enable such eligible entities to establish and administer American Dream Accounts for a group of low-income students.

(b) RESERVATION.—From the amounts appropriated each fiscal year to carry out this part, the Secretary shall reserve not more than 5 percent of such amount to carry out the evaluation activities described in section 10306.

(c) DURATION.—A grant awarded under this part shall be for a period of not more than 3 years. The Secretary may extend such grant for an additional 2-year period if the Secretary determines that the eligible entity has demonstrated significant progress, based on the factors described in section 10304(b)(11).

SEC. 10304. APPLICATIONS; PRIORITY.

(a) IN GENERAL.—Each eligible entity desiring a grant under this part shall submit an application to the Secretary at such time, in such manner, and containing such information as the Secretary may require.

(b) CONTENTS.—At a minimum, the application described in subsection (a) shall include the following:

(1) A description of the characteristics of a group of not less than 30 low-income public school students who—

(A) are, at the time of the application, attending a grade not higher than grade 9; and

(B) will, under the grant, receive an American Dream Account.

(2) A description of how the eligible entity will engage, and provide support (such as tutoring and mentoring for students, and training for teachers and other stakeholders) either online or in person, to—

(A) the students in the group described in paragraph (1);

(B) the family members and teachers of such students; and

(C) other stakeholders such as school administrators and school counselors.

(3) An identification of partners who will assist the eligible entity in establishing and sustaining American Dream Accounts.

(4) A description of what experience the eligible entity or the partners of the eligible entity have in managing college savings accounts, preparing low-income students for

postsecondary education, managing online systems, and teaching financial literacy.

(5) A demonstration that the eligible entity has sufficient resources to provide an initial deposit into the college savings account portion of each American Dream Account.

(6) A description of how the eligible entity will help increase the value of the college savings account portion of each American Dream Account, such as by providing matching funds or incentives for academic achievement.

(7) A description of how the eligible entity will notify each participating student in the group described in paragraph (1), on a semiannual basis, of the current balance and status of the college savings account portion of the American Dream Account of the student.

(8) A plan that describes how the eligible entity will monitor participating students in the group described in paragraph (1) to ensure that the American Dream Account of each student will be maintained if a student in such group changes schools before graduating from secondary school.

(9) A plan that describes how the American Dream Accounts will be managed for not less than 1 year after a majority of the students in the group described in paragraph (1) graduate from secondary school.

(10) A description of how the eligible entity will encourage students in the group described in paragraph (1) who fail to graduate from secondary school to continue their education.

(11) A description of how the eligible entity will evaluate the grant program, including by collecting, as applicable, the following data about the students in the group described in paragraph (1) during the grant period, or until the time of graduation from a secondary school, whichever comes first, and, if sufficient grant funds are available, after the grant period:

(A) Attendance rates.

(B) Progress reports.

(C) Grades and course selections.

(D) The student graduation rate, as defined as the percentage of students who graduate from secondary school with a regular diploma in the standard number of years.

(E) Rates of student completion of the Free Application for Federal Student Aid described in section 483 of the Higher Education Act of 1965 (20 U.S.C. 1090).

(F) Rates of enrollment in an institution of higher education.

(G) Rates of completion at an institution of higher education.

(12) A description of what will happen to the funds in the college savings account portion of the American Dream Accounts that are dedicated to participating students described in paragraph (1) who have not matriculated at an institution of higher education at the time of the conclusion of the period of American Dream Account management described in paragraph (9), including how the eligible entity will give students this information.

(13) A description of how the eligible entity will ensure that participating students described in paragraph (1) will have access to the Internet.

(14) A description of how the eligible entity will take into consideration how funds in the college savings account portion of American Dream Accounts will affect participating families' eligibility for public assistance.

(c) PRIORITY.—In awarding grants under this part, the Secretary shall give priority to applications from eligible entities that—

(1) are described in subparagraph (G) or (H) of section 10302(7);

(2) serve the largest number of low-income students;

(3) in the case of an eligible entity described in subparagraph (A) or (B) of section 10302(7), provide opportunities for participating students described in subsection (b)(1) to participate in a dual or concurrent enrollment program or early college high school program at no cost to the student or the student's family; or

(4) as of the time of application, have been awarded a grant under chapter 2 of subpart 2 of part A of title IV of the Higher Education Act of 1965 (20 U.S.C. 1070a–21 et seq.) (commonly referred to as the ''GEAR UP program'').

SEC. 10305. AUTHORIZED ACTIVITIES.

(a) IN GENERAL.—An eligible entity that receives a grant under this part shall use such grant funds to establish an American Dream Account for each participating student described in section 10304(b)(1), that will be used to—

(1) open a college savings account for such student;

(2) monitor the progress of such student online, which—

(A) shall include monitoring student data relating to—

(i) grades and course selections;

(ii) progress reports; and

(iii) attendance and disciplinary records; and

(B) may also include monitoring student data relating to a broad range of information, provided by teachers and family members, related to postsecondary education readiness, access, and completion;

(3) provide opportunities for such students, either online or in person, to learn about financial literacy, including by—

(A) assisting such students in financial planning for enrollment in an institution of higher education;

(B) assisting such students in identifying and applying for financial aid (such as loans, grants, and scholarships) for an institution of higher education; and

(C) enhancing student understanding of consumer, economic, and personal finance concepts;

(4) provide opportunities for such students, either online or in person, to learn about preparing for enrollment in an institution of higher education, including by providing instruction to students about—

(A) choosing the appropriate courses to prepare for postsecondary education;

(B) applying to an institution of higher education;

(C) building a student portfolio, which may be used when applying to an institution of higher education;

(D) selecting an institution of higher education;

(E) choosing a major for the student's postsecondary program of education or a career path; and

(F) adapting to life at an institution of higher education; and

(5) provide opportunities for such students, either online or in person, to identify skills or interests, including career interests.

(b) ACCESS TO AMERICAN DREAM ACCOUNT.—

(1) IN GENERAL.—Subject to paragraphs (3) and (4), and in accordance with applicable Federal laws and regulations relating to privacy of information and the privacy of children, an eligible entity that receives a grant under this part shall allow vested stakeholders, as described in paragraph (2), to have secure access, through an Internet website, to an American Dream Account.

(2) VESTED STAKEHOLDERS.—The vested stakeholders that an eligible entity shall permit to access an American Dream Account are individuals (such as the student's teachers, school counselors, school administrators, or other individuals) that are designated, in accordance with section 444 of the General Education Provisions Act (20 U.S.C. 1232g, commonly known as the ''Family Educational Rights and Privacy Act of 1974''), by the parent of a participating student in whose name such American Dream Account is held, as having permission to access the account. A student's parent may withdraw such designation from an individual at any time.

(3) EXCEPTION FOR COLLEGE SAVINGS ACCOUNT.—An eligible entity that receives a grant under this part shall not be required to give vested stakeholders, as described in paragraph (2), access to the college savings account portion of a student's American Dream Account.

(4) ADULT STUDENTS.—Notwithstanding paragraphs (1), (2), and (3), if a participating student is age 18 or older, an eligible entity that receives a grant under this part shall not provide access to such participating student's American Dream Account without the student's consent, in accordance with section 444 of the General Education Provisions Act (20 U.S.C. 1232g, commonly known as the ''Family Educational Rights and Privacy Act of 1974'').

(5) INPUT OF STUDENT INFORMATION.—Student data collected pursuant to subsection (a)(2)(A) shall be entered into an American Dream Account only by a school administrator or the designee of such administrator.

(c) PROHIBITION ON USE OF STUDENT INFORMATION.—An eligible entity that receives a grant under this part shall not use any student-level information or data for the purpose of soliciting, advertising, or marketing any financial or non-financial consumer product or service that is offered by such eligible entity, or on behalf of any other person.

(d) PROHIBITION ON THE USE OF GRANT FUNDS.—An eligible entity shall not use grant funds provided under this part to provide any deposits into a college savings account portion of a student's American Dream Account.

SEC. 10306. REPORTS AND EVALUATIONS.

(a) IN GENERAL.—Not later than 1 year after the Secretary has disbursed grants under this part, and annually thereafter until each grant disbursed under this part has ended, the Secretary shall prepare and submit a report to the appropriate committees of Congress, which shall include an evaluation of the effectiveness of the grant program established under this part.

(b) CONTENTS.—The report described in subsection (a) shall—

(1) list the grants that have been awarded under section 10303(a);

(2) include the number of students who have an American Dream Account established through a grant awarded under section 10303(a);

(3) provide data (including the interest accrued on college savings accounts that are part of an American Dream Account) in the aggregate, regarding students who have an American Dream Account established through a grant awarded under section 10303(a), as compared to similarly situated students who do not have an American Dream Account;

(4) identify best practices developed by the eligible entities receiving grants under this part;

(5) identify any issues related to student privacy and stakeholder accessibility to American Dream Accounts;

(6) provide feedback from participating students and the parents of such students about the grant program, including—

(A) the impact of the program;

(B) aspects of the program that are successful;

(C) aspects of the program that are not successful; and

(D) any other data required by the Secretary; and

(7) provide recommendations for expanding the American Dream Accounts program.

SEC. 10307. ELIGIBILITY TO RECEIVE FEDERAL STUDENT FINANCIAL AID.

Notwithstanding any other provision of law, any funds that are in the college savings account portion of a student's American Dream Account shall not affect such student's eligibility to receive Federal student financial aid, including any Federal student financial aid under the Higher Education Act of 1965 (20 U.S.C. 1001 et seq.), and shall not be considered in determining the amount of any such Federal student aid.

SEC. 10308. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated to carry out this part such sums as may be necessary for fiscal year 2016 and each of the 4 succeeding fiscal years.

SA 2244. Mr. CASSIDY submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 66, between lines 2 and 3, insert the following:

''(H) how the State educational agency will—

''(i) provide information on the immunization rates of local educational agencies (in accordance with State law) to inform parents and to protect the health and safety of students; and

''(ii) make such information publically available in an understandable and usable format on the State educational agency's website, including links to each local educational agency's website and the appropriate State health agency that has such information;

SA 2245. Mrs. SHAHEEN submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

At the end of the bill, add the following:

SEC. 1020____. SENSE OF THE SENATE ON SEQUESTRATION.

It is the Sense of the Senate that—

(1) the Nation's fiscal challenges are a top priority for Congress, and sequestration, non-strategic, across-the-board budget cuts, remains an unreasonable and inadequate budgeting tool to address the Nation's deficits and debt;

(2) sequestration relief must be accomplished for fiscal years 2016 and 2017;

(3) sequestration relief should include equal defense and non-defense relief; and

(4) sequestration relief should be offset through targeted changes in mandatory and discretionary categories and revenues.

SA 2246. Mr. MCCAIN (for himself and Mr. FLAKE) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

At the end, add the following:

TITLE XI—MISCELLANEOUS

SEC. 11001. REVIEW AND NOTIFICATIONS OF CATEGORICAL EXCLUSIONS GRANTED FOR NEXT GENERATION FLIGHT PROCEDURES.

Section 213(c) of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 40101 note) is amended by adding at the end the following:

''(3) NOTIFICATIONS AND CONSULTATIONS.—Not less than 30 days before granting a categorical exclusion under this subsection for a new procedure, the Administrator shall notify and consult with the affected public and the operator of the airport at which the procedure would be implemented.

''(4) REVIEW OF CERTAIN CATEGORICAL EXCLUSIONS.—

''(A) IN GENERAL.—The Administrator shall review a decision of the Administrator made on or after February 14, 2012, and before the date of the enactment of this paragraph to grant a categorical exclusion under this subsection with respect to a procedure to be implemented at an airport to determine if the implementation of the procedure had a significant effect on the human environment in the community in which the airport is located if the operator of that airport requests such a review and demonstrates that there is good cause to believe that the implementation of the procedure had such an effect.

''(B) CONTENT OF REVIEW.—If, in conducting a review under subparagraph (A) with respect to a procedure implemented at an airport, the Administrator, in consultation with the operator of the airport, determines that implementing the procedure had a significant effect on the human environment in the community in which the airport is located, the Administrator shall—

''(i) consult with the operator of the airport to identify measures to mitigate the effect of the procedure on the human environment; and

''(ii) in conducting such consultations, consider the use of alternative flight paths.''.

SA 2247. Mr. BURR (for himself and Mr. BENNET) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

Strike sections 1009, 1010, and 1011 and insert the following:

SEC. 1009. GRANTS FOR THE OUTLYING AREAS AND THE SECRETARY OF THE INTERIOR.

Section 1121 (20 U.S.C. 6331) is amended—

(1) in subsection (a), in the matter preceding paragraph (1), by striking ''and 1125A(f)''; and

(2) in subsection (b)(3)(C)(ii), by striking ''challenging State academic content standards'' and inserting ''challenging State academic standards''.

SEC. 1010. ALLOCATIONS TO STATES.

Section 1122 (20 U.S.C. 6332) is amended—

(1) by striking subsection (a) and inserting the following:

''(a) ALLOCATION FORMULA.—

''(1) INITIAL ALLOCATION.—For each of fiscal years 2016 through 2021 (referred to in this subsection as the 'current fiscal year'), the Secretary shall allocate $14,500,000,000 of the amount appropriated under section 1002(a) to carry out this part (or, if the total amount appropriated for this part is equal to or less than $14,500,000,000, all of such amount) in accordance with the following:

''(A) An amount equal to the amount made available to carry out section 1124 for fiscal year 2001 shall be allocated in accordance with section 1124.

''(B) An amount equal to the amount made available to carry out section 1124A for fiscal year 2001 shall be allocated in accordance with section 1124A.

''(C) An amount equal to 100 percent of the amount, if any, by which the amount made available under this paragraph for the current fiscal year for which the determination is made exceeds the amount available to carry out sections 1124 and 1124A for fiscal year 2001 shall be allocated in accordance with section 1125 and 1125A.

''(2) ALLOCATIONS IN EXCESS OF $14,500,000,000.—For each of the current fiscal years for which the amounts appropriated under section 1002(a) to carry out this part exceed $14,500,000,000, an amount equal to such excess amount shall be allocated in accordance with section 1123.'';

(2) in subsection (b)—

(A) in paragraph (1)—

(i) by striking ''under this subpart'' and inserting ''under subsection (a)(1) for sections 1124, 1124A, 1125, and 1125A''; and

(ii) by striking ''and 1125'' and inserting ''1125, and 1125A''; and

(B) in paragraph (2)—

(i) by inserting ''under subsection (a)(1)'' after ''become available''; and

(ii) by striking ''and 1125'' and inserting ''1125, and 1125A'';

(3) in subsection (c)(1), by inserting ''and to the extent amounts under subsection (a)(1) are available'' after ''For each fiscal year''; and

(4) in subsection (d)(1), by striking ''under this subpart'' and inserting ''under subsection (a)(1) for sections 1124, 1124A, 1125, and 1125A''.

SEC. 1011. EQUITY GRANTS.

Subpart 2 of part A of title I (20 U.S.C. 6331 et seq.) is amended by inserting after section 1122 the following:

''SEC. 1123. EQUITY GRANTS.

''(a) AUTHORIZATION.—From funds appropriated under section 1002(a) for a fiscal year and available for allocation pursuant to section 1122(a)(2), the Secretary is authorized to make grants to States, from allotments under subsection (b), to carry out the programs and activities of this part.

''(b) DISTRIBUTION BASED UPON CONCENTRATIONS OF POVERTY.—

''(1) IN GENERAL.—

''(A) IN GENERAL.—Except as provided in subparagraphs (B) and (C), funds appropriated pursuant to subsection (a) for a fiscal year shall be allotted to each State based upon the number of children counted under section 1124(c) in such State multiplied by the product of—

''(i) 40 percent of the average per-pupil expenditure in the United States (other than the Commonwealth of Puerto Rico); multiplied by

''(ii) 1.30 minus such State's equity factor described in paragraph (2).

''(B) PUERTO RICO.—For each fiscal year, the Secretary shall allot to the Commonwealth of Puerto Rico an amount of the funds appropriated under subsection (a) that bears the same relation to the total amount of funds appropriated under such subsection as the amount that the Commonwealth of Puerto Rico received under this subpart for fiscal year 2015 bears to the total amount received by all States for such fiscal year.

''(C) STATE MINIMUM.—Notwithstanding any other provision of this section, from the total amount available for any fiscal year to

carry out this section, each State (except for Puerto Rico) shall be allotted at least the lesser of—

''(i) 0.35 percent of the total amount available to carry out this section for such fiscal year; or

''(ii) the average of—

''(I) 0.35 percent of such total amount for such fiscal year; and

''(II) 150 percent of the national average grant under this section per child described in section 1124(c), without application of a weighting factor, multiplied by the State's total number of children described in section 1124(c), without application of a weighting factor.

''(2) EQUITY FACTOR.—

''(A) DETERMINATION.—

''(i) IN GENERAL.—Except as provided in subparagraph (B), the Secretary shall determine the equity factor under this section for each State in accordance with clause (ii).

''(ii) COMPUTATION.—

''(I) IN GENERAL.—For each State, the Secretary shall compute a weighted coefficient of variation for the per-pupil expenditures of local educational agencies in accordance with subclauses (II), (III), and (IV).

''(II) VARIATION.—In computing coefficients of variation, the Secretary shall weigh the variation between per-pupil expenditures in each local educational agency and the average per-pupil expenditures in the State according to the number of pupils served by the local educational agency.

''(III) NUMBER OF PUPILS.—In determining the number of pupils under this paragraph served by each local educational agency and in each State, the Secretary shall multiply the number of children counted under section 1124(c) by a factor of 1.4.

''(IV) ENROLLMENT REQUIREMENT.—In computing coefficients of variation, the Secretary shall include only those local educational agencies with an enrollment of more than 200 students.

''(B) SPECIAL RULE.—The equity factor for a State that meets the disparity standard described in section 222.162 of title 34, Code of Federal Regulations (as such section was in effect on the day preceding the date of enactment of the No Child Left Behind Act of 2001) or a State with only one local educational agency shall be not greater than 0.10.

''(c) USE OF FUNDS; ELIGIBILITY OF LOCAL EDUCATIONAL AGENCIES.—All funds awarded to each State under this section shall be allocated to local educational agencies under the following provisions:

''(1) DISTRIBUTION WITHIN LOCAL EDUCATIONAL AGENCIES.—Within local educational agencies, funds allocated under this section shall be distributed to schools on a basis consistent with section 1113, and may only be used to carry out activities under this part.

''(2) ELIGIBILITY FOR GRANT.—A local educational agency in a State is eligible to receive a grant under this section for any fiscal year if—

''(A) the number of children in the local educational agency counted under section 1124(c), before application of the weighted child count described in subsection (d), is at least 10; and

''(B) if the number of children counted for grants under section 1124(c), before application of the weighted child count described in subsection (d), is at least 5 percent of the total number of children aged 5 to 17 years, inclusive, in the school district of the local educational agency.

''(d) ALLOCATION OF FUNDS TO ELIGIBLE LOCAL EDUCATIONAL AGENCIES.—

''(1) IN GENERAL.—Funds received by States under this section for a fiscal year shall be allocated within States to eligible local educational agencies on the basis of weighted child counts calculated in accordance with paragraph (2), (3), or (4), as appropriate for each State.

''(2) STATES WITH AN EQUITY FACTOR LESS THAN .10.—

''(A) IN GENERAL.—In States with an equity factor less than .10, the weighted child counts referred to in paragraph (1) for a fiscal year shall be the larger of the 2 amounts determined under subparagraphs (B) and (C).

''(B) BY PERCENTAGE OF CHILDREN.—The amount referred to in subparagraph (A) is determined by adding—

''(i) the number of children determined under section 1124(c) for that local educational agency who constitute not more than 17.27 percent, inclusive, of the agency's total population aged 5 to 17, inclusive, multiplied by 1.0;

''(ii) the number of such children who constitute more than 17.27 percent, but not more than 23.48 percent, of such population, multiplied by 1.75;

''(iii) the number of such children who constitute more than 23.48 percent, but not more than 29.11 percent, of such population, multiplied by 2.5;

''(iv) the number of such children who constitute more than 29.11 percent, but not more than 36.10 percent, of such population, multiplied by 3.25; and

''(v) the number of such children who constitute more than 36.10 percent of such population, multiplied by 4.0.

''(C) BY NUMBER OF CHILDREN.—The amount referred to in subparagraph (A) is determined by adding—

''(i) the number of children determined under section 1124(c) who constitute not more than 834, inclusive, of the agency's total population aged 5 to 17, inclusive, multiplied by 1.0;

''(ii) the number of such children between 835 and 2,629, inclusive, in such population, multiplied by 1.5;

''(iii) the number of such children between 2,630 and 7,668, inclusive, in such population, multiplied by 2.0; and

''(iv)(I) in the case of an agency that is not a high poverty percentage local educational agency, the number of such children in excess of 7,668 in such population, multiplied by 2.0; or

''(II) in the case of a high poverty percentage local educational agency—

''(aa) the number of such children between 7,669 and 26,412, inclusive, in such population, multiplied by 2.5; and

''(bb) the number of such children in excess of 26,412 in such population, multiplied by 3.0.

''(3) STATES WITH AN EQUITY FACTOR GREATER THAN OR EQUAL TO .10 AND LESS THAN .20.—

''(A) IN GENERAL.—In States with an equity factor greater than or equal to .10 and less than .20, the weighted child counts referred to in paragraph (1) for a fiscal year shall be the larger of the 2 amounts determined under subparagraphs (B) and (C).

''(B) BY PERCENTAGE OF CHILDREN.—The amount referred to in subparagraph (A) is determined by adding—

''(i) the number of children determined under section 1124(c) for that local educational agency who constitute not more than 17.27 percent, inclusive, of the agency's total population aged 5 to 17, inclusive, multiplied by 1.0;

''(ii) the number of such children who constitute more than 17.27 percent, but not more than 23.48 percent, of such population, multiplied by 1.5;

''(iii) the number of such children who constitute more than 23.48 percent, but not more than 29.11 percent, of such population, multiplied by 3.0;

''(iv) the number of such children who constitute more than 29.11 percent, but not more than 36.10 percent, of such population, multiplied by 4.5; and

''(v) the number of such children who constitute more than 36.10 percent of such population, multiplied by 6.0.

''(C) BY NUMBER OF CHILDREN.—The amount referred to in subparagraph (A) is determined by adding—

''(i) the number of children determined under section 1124(c) who constitute not more than 834, inclusive, of the agency's total population aged 5 to 17, inclusive, multiplied by 1.0;

''(ii) the number of such children between 835 and 2,629, inclusive, in such population, multiplied by 1.5;

''(iii) the number of such children between 2,630 and 7,668, inclusive, in such population, multiplied by 2.25; and

''(iv)(I) in the case of an agency that is not a high poverty percentage local educational agency, the number of such children in excess of 7,668 in such population, multiplied by 2.25; or

''(II) in the case of a high poverty percentage local educational agency—

''(aa) the number of such children between 7,669 and 26,412, inclusive, in such population, multiplied by 3.375; and

''(bb) the number of such children in excess of 26,412 in such population, multiplied by 4.5.

''(4) STATES WITH AN EQUITY FACTOR GREATER THAN OR EQUAL TO .20.—

''(A) IN GENERAL.—In States with an equity factor greater than or equal to .20, the weighted child counts referred to in paragraph (1) for a fiscal year shall be the larger of the 2 amounts determined under subparagraphs (B) and (C).

''(B) BY PERCENTAGE OF CHILDREN.—The amount referred to in subparagraph (A) is determined by adding—

''(i) the number of children determined under section 1124(c) for that local educational agency who constitute not more than 17.27 percent, inclusive, of the agency's total population aged 5 to 17, inclusive, multiplied by 1.0;

''(ii) the number of such children who constitute more than 17.27 percent, but not more than 23.48 percent, of such population, multiplied by 2.0;

''(iii) the number of such children who constitute more than 23.48 percent, but not more than 29.11 percent, of such population, multiplied by 4.0;

''(iv) the number of such children who constitute more than 29.11 percent, but not more than 36.10 percent, of such population, multiplied by 6.0; and

''(v) the number of such children who constitute more than 36.10 percent of such population, multiplied by 8.0.

''(C) BY NUMBER OF CHILDREN.—The amount referred to in subparagraph (A) is determined by adding—

''(i) the number of children determined under section 1124(c) who constitute not more than 834, inclusive, of the agency's total population aged 5 to 17, inclusive, multiplied by 1.0;

''(ii) the number of such children between 835 and 2,629, inclusive, in such population, multiplied by 2.0;

''(iii) the number of such children between 2,630 and 7,668, inclusive, in such population, multiplied by 3.0; and

''(iv)(I) in the case of an agency that is not a high poverty percentage local educational agency, the number of such children in excess of 7,668 in such population, multiplied by 3.0; or

''(II) in the case of a high poverty percentage local educational agency—

''(aa) the number of such children between 7,669 and 26,412, inclusive, in such population, multiplied by 4.5; and

''(bb) the number of such children in excess of 26,412 in such population, multiplied by 6.0.

''(e) MAINTENANCE OF EFFORT.—

''(1) IN GENERAL.—A State is entitled to receive its full allotment of funds under this section for any fiscal year if the Secretary finds that the State's fiscal effort per student or the aggregate expenditures of the State with respect to the provision of free public education by the State for the preceding fiscal year was not less than 90 percent of the fiscal effort or aggregate expenditures for the second preceding fiscal year, subject to the requirements of paragraph (2).

''(2) REDUCTION IN CASE OF FAILURE TO MEET.—

''(A) IN GENERAL.—The Secretary shall reduce the amount of the allotment of funds under this section in any fiscal year in the exact proportion by which a State fails to meet the requirement of paragraph (1) by falling below 90 percent of both the fiscal effort per student and aggregate expenditures (using the measure most favorable to the State), if such State has also failed to meet such requirement (as determined using the measure most favorable to the State) for 1 or more of the 5 immediately preceding fiscal years.

''(B) SPECIAL RULE.—No such lesser amount shall be used for computing the effort required under paragraph (1) for subsequent years.

''(3) WAIVER.—The Secretary may waive the requirements of this subsection if the Secretary determines that a waiver would be equitable due to—

''(A) exceptional or uncontrollable circumstances, such as a natural disaster or a change in the organizational structure of the State; or

''(B) a precipitous decline in the financial resources of the State.

''(f) ADJUSTMENTS WHERE NECESSITATED BY APPROPRIATIONS.—

''(1) IN GENERAL.—If the sums available under this section for any fiscal year are insufficient to pay the full amounts that all local educational agencies in States are eligible to receive under this section for such year, the Secretary shall ratably reduce the allocations to such local educational agencies, subject to paragraphs (2) and (3).

''(2) ADDITIONAL FUNDS.—If additional funds become available for making payments under this section for such fiscal year, allocations that were reduced under paragraph (1) shall be increased on the same basis as they were reduced.

''(3) HOLD HARMLESS AMOUNTS.—Beginning with the second fiscal year for which amounts are appropriated to carry out this section, and if sufficient funds are available, the amount made available to each local educational agency under this section for a fiscal year shall be—

''(A) not less than 95 percent of the amount made available for the preceding fiscal year if the number of children counted under section 1124(c) is equal to or more than 30 percent of the total number of children aged 5 to 17 years, inclusive, in the local educational agency;

''(B) not less than 90 percent of the amount made available for the preceding fiscal year if the percentage described in subparagraph (A) is less than 30 percent and equal to or more than 15 percent; and

''(C) not less than 85 percent of the amount made available for the preceding fiscal year if the percentage described in subparagraph (A) is less than 15 percent.

''(4) APPLICABILITY.—Notwithstanding any other provision of law, the Secretary shall not take into consideration the hold-harmless provisions of this subsection for any fiscal year for purposes of calculating State or local allocations for the fiscal year under any program administered by the Secretary other than a program authorized under this part.

''(g) DEFINITIONS.—In this section:

''(1) HIGH POVERTY PERCENTAGE LOCAL EDUCATIONAL AGENCY.—The term 'high poverty percentage local educational agency' means a local educational agency for which the number of children determined under subsection (b) for a fiscal year is 20 percent or more of the total population aged 5 to 17, inclusive, of the local educational agency for such fiscal year.

''(2) STATE.—The term 'State' means each of the 50 States, the District of Columbia, and the Commonwealth of Puerto Rico.''.

SEC. 1011A. ADEQUACY OF FUNDING RULE.

Section 1125AA(b) (20 U.S.C. 6336(b)) is amended by striking ''section 1122(a)'' and inserting ''section 1122(a)(1)''.

SEC. 1011B. EDUCATION FINANCE INCENTIVE GRANT PROGRAM.

In section 1125A (20 U.S.C. 6337)—

(1) in subsection (a), by striking ''under subsection (f)'' and inserting ''under section 1002(a) and made available under section 1122(a)(1)'';

(2) in subsection (b), by striking ''pursuant to subsection (f)'' and inserting ''made available for this section under section 1122(a)(1)'';

(3) in subsection (c), by redesignating subparagraphs (A) and (B) as paragraphs (1) and (2), respectively;

(4) in subsection (d)(1)(A)(ii), by striking ''clause ''(i)'' and inserting ''clause (i)'';

(5) by striking subsection (e) and inserting the following:

''(e) MAINTENANCE OF EFFORT.—

''(1) IN GENERAL.—A State is entitled to receive its full allotment of funds under this section for any fiscal year if the Secretary finds that the State's fiscal effort per student or the aggregate expenditures of the State with respect to the provision of free public education by the State for the preceding fiscal year was not less than 90 percent of the fiscal effort or aggregate expenditures for the second preceding fiscal year, subject to the requirements of paragraph (2).

''(2) REDUCTION IN CASE OF FAILURE TO MEET.—

''(A) IN GENERAL.—The Secretary shall reduce the amount of the allotment of funds under this section for any fiscal year in the exact proportion by which a State fails to meet the requirement of paragraph (1) by falling below 90 percent of both the fiscal effort per student and aggregate expenditures (using the measure most favorable to the State), if such State has also failed to meet such requirement (as determined using the measure most favorable to the State) for 1 or more of the 5 immediately preceding fiscal years.

''(B) SPECIAL RULE.—No such lesser amount shall be used for computing the effort required under paragraph (1) for subsequent years.

''(3) WAIVER.—The Secretary may waive the requirements of this subsection if the Secretary determines that a waiver would be equitable due to—

''(A) exceptional or uncontrollable circumstances, such as a natural disaster or a change in the organizational structure of the State; or

''(B) a precipitous decline in the financial resources of the State.'';

(6) by striking subsection (f);

(7) by redesignating subsection (g) as subsection (f); and

(8) in subsection (f), as redesignated by paragraph (7)—

(A) in paragraph (1), by striking ''under this section'' and inserting ''to carry out this section''; and

(B) in subsection (f)(3), in the matter preceding subparagraph (A), by striking ''shall be'' and inserting ''shall be—''.

SEC. 1011C. SPECIAL ALLOCATION PROCEDURES.

Section 1126 (20 U.S.C. 6338) is amended by striking ''sections 1124, 1124A, 1125, and 1125A'' each place the term appears and inserting ''sections 1123, 1124, 1124A, 1125, and 1125A''.

SA 2248. Mr. BURR (for himself and Mr. BENNET) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

Strike sections 1009, 1010, and 1011 and insert the following:

1009. GRANTS FOR THE OUTLYING AREAS AND THE SECRETARY OF THE INTERIOR.

Section 1121 (20 U.S.C. 6331) is amended—

(1) in subsection (a), in the matter preceding paragraph (1), by striking ''and 1125A(f)''; and

(2) in subsection (b)(3)(C)(ii), by striking ''challenging State academic content standards'' and inserting ''challenging State academic standards''.

SEC. 1010. ALLOCATIONS TO STATES.

(a) AMENDMENTS.—Section 1122 (20 U.S.C. 6332) is amended—

(1) by striking subsection (a) and inserting the following:

''(a) ALLOCATION FORMULA.—

''(1) INITIAL ALLOCATION.—For each of fiscal years 2016 through 2021 (referred to in this subsection as the 'current fiscal year'), the Secretary shall allocate $14,500,000,000 of the amount appropriated under section 1002(a) to carry out this part (or, if the total amount appropriated for this part is equal to or less than $14,500,000,000, all of such amount) in accordance with the following:

''(A) An amount equal to the amount made available to carry out section 1124 for fiscal year 2001 shall be allocated in accordance with section 1124.

''(B) An amount equal to the amount made available to carry out section 1124A for fiscal year 2001 shall be allocated in accordance with section 1124A.

''(C) An amount equal to 100 percent of the amount, if any, by which the amount made available under this paragraph for the current fiscal year for which the determination is made exceeds the amount available to carry out sections 1124 and 1124A for fiscal year 2001 shall be allocated in accordance with section 1125 and 1125A.

''(2) ALLOCATIONS IN EXCESS OF $14,500,000,000.—For each of the current fiscal years for which the amounts appropriated under section 1002(a) to carry out this part exceed $14,500,000,000, an amount equal to such excess amount shall be allocated in accordance with section 1123.'';

(2) in subsection (b)—

(A) in paragraph (1)—

(i) by striking ''under this subpart'' and inserting ''under subsection (a)(1) for sections 1124, 1124A, 1125, and 1125A''; and

(ii) by striking ''and 1125'' and inserting ''1125, and 1125A''; and

(B) in paragraph (2)—

(i) by inserting ''under subsection (a)(1)'' after ''become available''; and

(ii) by striking ''and 1125'' and inserting ''1125, and 1125A'';

(3) in subsection (c)(1), by inserting ''and to the extent amounts under subsection (a)(1) are available'' after ''For each fiscal year''; and

(4) in subsection (d)(1), by striking ''under this subpart'' and inserting ''under subsection (a)(1) for sections 1124, 1124A, 1125, and 1125A''.

(b) POINT OF ORDER.—

(1) IN THE SENATE.—

(A) IN GENERAL.—When the Senate is considering a bill or joint resolution making appropriations for a fiscal year, or an amendment thereto, amendment between the Houses in relation thereto, conference report thereon, or motion thereon, if a point of order is made by a Senator against a provision that provides appropriations for part A of title I of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6311 et seq.) in an amount greater than $14,500,000,000 for such year and does not appropriate funds for equity grants under section 1123 of such Act in accordance with section 1122(a)(2) of such Act, as amended by this Act, and the point of order is sustained by the Chair, that provision shall be stricken from the measure and may not be offered as an amendment from the floor.

(B) FORM OF THE POINT OF ORDER.—In the Senate, a point of order under subparagraph (A) may be raised by a Senator as provided in section 313(e) of the Congressional Budget Act of 1974 (2 U.S.C. 644(e)).

(C) CONFERENCE REPORTS.—When the Senate is considering a conference report on, or an amendment between the Houses in relation to, a bill or joint resolution, upon a point of order being made by any Senator pursuant to subparagraph (A), and such point of order being sustained, such material contained in such conference report or House amendment shall be stricken, and the Senate shall proceed to consider the question of whether the Senate shall recede from its amendment and concur with a further amendment, or concur in the House amendment with a further amendment, as the case may be, which further amendment shall consist of only that portion of the conference report or House amendment, as the case may be, not so stricken. Any such motion in the Senate shall be debatable. In any case in which such point of order is sustained against a conference report (or Senate amendment derived from such conference report by operation of this subsection), no further amendment shall be in order.

(D) SUPERMAJORITY WAIVER AND APPEAL.—In the Senate, this paragraph may be waived or suspended only by an affirmative vote of three-fifths of the Members, duly chose and sworn. An affirmative vote of three-fifths of Members of the Senate, duly chosen and sworn shall be required to sustain an appeal of the ruling of the Chair on a point of order raised under this paragraph.

(2) IN THE HOUSE OF REPRESENTATIVES.—

(A) IN GENERAL.—A provision in a bill or joint resolution making appropriations for a fiscal year that provides appropriations for part A of title I of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6311 et seq.) in an amount greater than $14,500,000,000 for such year and does not appropriate funds for equity grants under section 1123 of such Act in accordance with section 1122(a)(2) of such Act, as amended by this Act, shall not be in order in the House of Representatives.

(B) AMENDMENTS AND CONFERENCE REPORTS.—It shall not be in order in the House of Representatives to consider an amendment to, or a conference report on, a bill or joint resolution making appropriations for a fiscal year if such amendment thereto or conference report thereon provides appropriations for part A of title I of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6311 et seq.) in an amount greater than $14,500,000,000 for such year and does not appropriate funds for equity grants under section 1123 of such Act in accordance with section 1122(a)(2) of such Act, as amended by this Act.

(3) EXERCISE OF RULEMAKING POWERS.—Congress adopts the provisions of this subsection—

(A) as an exercise of the rulemaking power of the Senate and the House of Representatives, respectively, and as such they shall be considered as part of the rules of each House or of that House to which they specifically apply, and such rules shall supersede other rules only to the extent that they are inconsistent with such other rules; and

(B) with full recognition of the constitutional right of either the Senate or the House of Representatives to change those rules (insofar as they relate to that House) at any time, in the same manner, and to the same extent as is the case of any other rule of the Senate or House of Representatives.

SEC. 1011. EQUITY GRANTS.

Subpart 2 of part A of title I (20 U.S.C. 6331 et seq.) is amended by inserting after section 1122 the following:

''SEC. 1123. EQUITY GRANTS.

''(a) AUTHORIZATION.—From funds appropriated under section 1002(a) for a fiscal year and available for allocation pursuant to section 1122(a)(2), the Secretary is authorized to make grants to States, from allotments under subsection (b), to carry out the programs and activities of this part.

''(b) DISTRIBUTION BASED UPON CONCENTRATIONS OF POVERTY.—

''(1) IN GENERAL.—

''(A) IN GENERAL.—Except as provided in subparagraphs (B) and (C), funds appropriated pursuant to subsection (a) for a fiscal year shall be allotted to each State based upon the number of children counted under section 1124(c) in such State multiplied by the product of—

''(i) 40 percent of the average per-pupil expenditure in the United States (other than the Commonwealth of Puerto Rico); multiplied by

''(ii) 1.30 minus such State's equity factor described in paragraph (2).

''(B) PUERTO RICO.—For each fiscal year, the Secretary shall allot to the Commonwealth of Puerto Rico an amount of the funds appropriated under subsection (a) that bears the same relation to the total amount of funds appropriated under such subsection as the amount that the Commonwealth of Puerto Rico received under this subpart for fiscal year 2015 bears to the total amount received by all States for such fiscal year.

''(C) STATE MINIMUM.—Notwithstanding any other provision of this section, from the total amount available for any fiscal year to carry out this section, each State (except for Puerto Rico) shall be allotted at least the lesser of—

''(i) 0.35 percent of the total amount available to carry out this section for such fiscal year; or

''(ii) the average of—

''(I) 0.35 percent of such total amount for such fiscal year; and

''(II) 150 percent of the national average grant under this section per child described in section 1124(c), without application of a weighting factor, multiplied by the State's total number of children described in section 1124(c), without application of a weighting factor.

''(2) EQUITY FACTOR.—

''(A) DETERMINATION.—

''(i) IN GENERAL.—Except as provided in subparagraph (B), the Secretary shall determine the equity factor under this section for each State in accordance with clause (ii).

''(ii) COMPUTATION.—

''(I) IN GENERAL.—For each State, the Secretary shall compute a weighted coefficient of variation for the per-pupil expenditures of local educational agencies in accordance with subclauses (II), (III), and (IV).

''(II) VARIATION.—In computing coefficients of variation, the Secretary shall weigh the variation between per-pupil expenditures in each local educational agency and the average per-pupil expenditures in the State according to the number of pupils served by the local educational agency.

''(III) NUMBER OF PUPILS.—In determining the number of pupils under this paragraph served by each local educational agency and in each State, the Secretary shall multiply the number of children counted under section 1124(c) by a factor of 1.4.

''(IV) ENROLLMENT REQUIREMENT.—In computing coefficients of variation, the Secretary shall include only those local educational agencies with an enrollment of more than 200 students.

''(B) SPECIAL RULE.—The equity factor for a State that meets the disparity standard described in section 222.162 of title 34, Code of Federal Regulations (as such section was in effect on the day preceding the date of enactment of the No Child Left Behind Act of 2001) or a State with only one local educational agency shall be not greater than 0.10.

''(c) USE OF FUNDS; ELIGIBILITY OF LOCAL EDUCATIONAL AGENCIES.—All funds awarded to each State under this section shall be allocated to local educational agencies under the following provisions:

''(1) DISTRIBUTION WITHIN LOCAL EDUCATIONAL AGENCIES.—Within local educational agencies, funds allocated under this section shall be distributed to schools on a basis consistent with section 1113, and may only be used to carry out activities under this part.

''(2) ELIGIBILITY FOR GRANT.—A local educational agency in a State is eligible to receive a grant under this section for any fiscal year if—

''(A) the number of children in the local educational agency counted under section 1124(c), before application of the weighted child count described in subsection (d), is at least 10; and

''(B) if the number of children counted for grants under section 1124(c), before application of the weighted child count described in subsection (d), is at least 5 percent of the total number of children aged 5 to 17 years, inclusive, in the school district of the local educational agency.

''(d) ALLOCATION OF FUNDS TO ELIGIBLE LOCAL EDUCATIONAL AGENCIES.—

''(1) IN GENERAL.—Funds received by States under this section for a fiscal year shall be allocated within States to eligible local educational agencies on the basis of weighted child counts calculated in accordance with paragraph (2), (3), or (4), as appropriate for each State.

''(2) STATES WITH AN EQUITY FACTOR LESS THAN .10.—

''(A) IN GENERAL.—In States with an equity factor less than .10, the weighted child counts referred to in paragraph (1) for a fiscal year shall be the larger of the 2 amounts determined under subparagraphs (B) and (C).

''(B) BY PERCENTAGE OF CHILDREN.—The amount referred to in subparagraph (A) is determined by adding—

''(i) the number of children determined under section 1124(c) for that local educational agency who constitute not more than 17.27 percent, inclusive, of the agency's total population aged 5 to 17, inclusive, multiplied by 1.0;

''(ii) the number of such children who constitute more than 17.27 percent, but not more than 23.48 percent, of such population, multiplied by 1.75;

''(iii) the number of such children who constitute more than 23.48 percent, but not more

than 29.11 percent, of such population, multiplied by 2.5;

''(iv) the number of such children who constitute more than 29.11 percent, but not more than 36.10 percent, of such population, multiplied by 3.25; and

''(v) the number of such children who constitute more than 36.10 percent of such population, multiplied by 4.0.

''(C) BY NUMBER OF CHILDREN.—The amount referred to in subparagraph (A) is determined by adding—

''(i) the number of children determined under section 1124(c) who constitute not more than 834, inclusive, of the agency's total population aged 5 to 17, inclusive, multiplied by 1.0;

''(ii) the number of such children between 835 and 2,629, inclusive, in such population, multiplied by 1.5;

''(iii) the number of such children between 2,630 and 7,668, inclusive, in such population, multiplied by 2.0; and

''(iv)(I) in the case of an agency that is not a high poverty percentage local educational agency, the number of such children in excess of 7,668 in such population, multiplied by 2.0; or

''(II) in the case of a high poverty percentage local educational agency—

''(aa) the number of such children between 7,669 and 26,412, inclusive, in such population, multiplied by 2.5; and

''(bb) the number of such children in excess of 26,412 in such population, multiplied by 3.0.

''(3) STATES WITH AN EQUITY FACTOR GREATER THAN OR EQUAL TO .10 AND LESS THAN .20.—

''(A) IN GENERAL.—In States with an equity factor greater than or equal to .10 and less than .20, the weighted child counts referred to in paragraph (1) for a fiscal year shall be the larger of the 2 amounts determined under subparagraphs (B) and (C).

''(B) BY PERCENTAGE OF CHILDREN.—The amount referred to in subparagraph (A) is determined by adding—

''(i) the number of children determined under section 1124(c) for that local educational agency who constitute not more than 17.27 percent, inclusive, of the agency's total population aged 5 to 17, inclusive, multiplied by 1.0;

''(ii) the number of such children who constitute more than 17.27 percent, but not more than 23.48 percent, of such population, multiplied by 1.5;

''(iii) the number of such children who constitute more than 23.48 percent, but not more than 29.11 percent, of such population, multiplied by 3.0;

''(iv) the number of such children who constitute more than 29.11 percent, but not more than 36.10 percent, of such population, multiplied by 4.5; and

''(v) the number of such children who constitute more than 36.10 percent of such population, multiplied by 6.0.

''(C) BY NUMBER OF CHILDREN.—The amount referred to in subparagraph (A) is determined by adding—

''(i) the number of children determined under section 1124(c) who constitute not more than 834, inclusive, of the agency's total population aged 5 to 17, inclusive, multiplied by 1.0;

''(ii) the number of such children between 835 and 2,629, inclusive, in such population, multiplied by 1.5;

''(iii) the number of such children between 2,630 and 7,668, inclusive, in such population, multiplied by 2.25; and

''(iv)(I) in the case of an agency that is not a high poverty percentage local educational agency, the number of such children in excess of 7,668 in such population, multiplied by 2.25; or

''(II) in the case of a high poverty percentage local educational agency—

''(aa) the number of such children between 7,669 and 26,412, inclusive, in such population, multiplied by 3.375; and

''(bb) the number of such children in excess of 26,412 in such population, multiplied by 4.5.

''(4) STATES WITH AN EQUITY FACTOR GREATER THAN OR EQUAL TO .20.—

''(A) IN GENERAL.—In States with an equity factor greater than or equal to .20, the weighted child counts referred to in paragraph (1) for a fiscal year shall be the larger of the 2 amounts determined under subparagraphs (B) and (C).

''(B) BY PERCENTAGE OF CHILDREN.—The amount referred to in subparagraph (A) is determined by adding—

''(i) the number of children determined under section 1124(c) for that local educational agency who constitute not more than 17.27 percent, inclusive, of the agency's total population aged 5 to 17, inclusive, multiplied by 1.0;

''(ii) the number of such children who constitute more than 17.27 percent, but not more than 23.48 percent, of such population, multiplied by 2.0;

''(iii) the number of such children who constitute more than 23.48 percent, but not more than 29.11 percent, of such population, multiplied by 4.0;

''(iv) the number of such children who constitute more than 29.11 percent, but not more than 36.10 percent, of such population, multiplied by 6.0; and

''(v) the number of such children who constitute more than 36.10 percent of such population, multiplied by 8.0.

''(C) BY NUMBER OF CHILDREN.—The amount referred to in subparagraph (A) is determined by adding—

''(i) the number of children determined under section 1124(c) who constitute not more than 834, inclusive, of the agency's total population aged 5 to 17, inclusive, multiplied by 1.0;

''(ii) the number of such children between 835 and 2,629, inclusive, in such population, multiplied by 2.0;

''(iii) the number of such children between 2,630 and 7,668, inclusive, in such population, multiplied by 3.0; and

''(iv)(I) in the case of an agency that is not a high poverty percentage local educational agency, the number of such children in excess of 7,668 in such population, multiplied by 3.0; or

''(II) in the case of a high poverty percentage local educational agency—

''(aa) the number of such children between 7,669 and 26,412, inclusive, in such population, multiplied by 4.5; and

''(bb) the number of such children in excess of 26,412 in such population, multiplied by 6.0.

''(e) MAINTENANCE OF EFFORT.—

''(1) IN GENERAL.—A State is entitled to receive its full allotment of funds under this section for any fiscal year if the Secretary finds that the State's fiscal effort per student or the aggregate expenditures of the State with respect to the provision of free public education by the State for the preceding fiscal year was not less than 90 percent of the fiscal effort or aggregate expenditures for the second preceding fiscal year, subject to the requirements of paragraph (2).

''(2) REDUCTION IN CASE OF FAILURE TO MEET.—

''(A) IN GENERAL.—The Secretary shall reduce the amount of the allotment of funds under this section in any fiscal year in the exact proportion by which a State fails to meet the requirement of paragraph (1) by falling below 90 percent of both the fiscal effort per student and aggregate expenditures (using the measure most favorable to the State), if such State has also failed to meet such requirement (as determined using the measure most favorable to the State) for 1 or more of the 5 immediately preceding fiscal years.

''(B) SPECIAL RULE.—No such lesser amount shall be used for computing the effort required under paragraph (1) for subsequent years.

''(3) WAIVER.—The Secretary may waive the requirements of this subsection if the Secretary determines that a waiver would be equitable due to—

''(A) exceptional or uncontrollable circumstances, such as a natural disaster or a change in the organizational structure of the State; or

''(B) a precipitous decline in the financial resources of the State.

''(f) ADJUSTMENTS WHERE NECESSITATED BY APPROPRIATIONS.—

''(1) IN GENERAL.—If the sums available under this section for any fiscal year are insufficient to pay the full amounts that all local educational agencies in States are eligible to receive under this section for such year, the Secretary shall ratably reduce the allocations to such local educational agencies, subject to paragraphs (2) and (3).

''(2) ADDITIONAL FUNDS.—If additional funds become available for making payments under this section for such fiscal year, allocations that were reduced under paragraph (1) shall be increased on the same basis as they were reduced.

''(3) HOLD HARMLESS AMOUNTS.—Beginning with the second fiscal year for which amounts are appropriated to carry out this section, and if sufficient funds are available, the amount made available to each local educational agency under this section for a fiscal year shall be—

''(A) not less than 95 percent of the amount made available for the preceding fiscal year if the number of children counted under section 1124(c) is equal to or more than 30 percent of the total number of children aged 5 to 17 years, inclusive, in the local educational agency;

''(B) not less than 90 percent of the amount made available for the preceding fiscal year if the percentage described in subparagraph (A) is less than 30 percent and equal to or more than 15 percent; and

''(C) not less than 85 percent of the amount made available for the preceding fiscal year if the percentage described in subparagraph (A) is less than 15 percent.

''(4) APPLICABILITY.—Notwithstanding any other provision of law, the Secretary shall not take into consideration the hold-harmless provisions of this subsection for any fiscal year for purposes of calculating State or local allocations for the fiscal year under any program administered by the Secretary other than a program authorized under this part.

''(g) DEFINITIONS.—In this section:

''(1) HIGH POVERTY PERCENTAGE LOCAL EDUCATIONAL AGENCY.—The term 'high poverty percentage local educational agency' means a local educational agency for which the number of children determined under subsection (b) for a fiscal year is 20 percent or more of the total population aged 5 to 17, inclusive, of the local educational agency for such fiscal year.

''(2) STATE.—The term 'State' means each of the 50 States, the District of Columbia, and the Commonwealth of Puerto Rico.''.

SEC. 1011A. ADEQUACY OF FUNDING RULE.

Section 1125AA(b) (20 U.S.C. 6336(b)) is amended by striking ''section 1122(a)'' and inserting ''section 1122(a)(1)''.

SEC. 1011B. EDUCATION FINANCE INCENTIVE GRANT PROGRAM.

In section 1125A (20 U.S.C. 6337)—

(1) in subsection (a), by striking ''under subsection (f)'' and inserting ''under section 1002(a) and made available under section 1122(a)(1)'';

(2) in subsection (b), by striking ''pursuant to subsection (f)'' and inserting ''made available for this section under section 1122(a)(1)'';

(3) in subsection (c), by redesignating subparagraphs (A) and (B) as paragraphs (1) and (2), respectively;

(4) in subsection (d)(1)(A)(ii), by striking ''clause ''(i)'' and inserting ''clause (i)'';

(5) by striking subsection (e) and inserting the following:

''(e) MAINTENANCE OF EFFORT.—

''(1) IN GENERAL.—A State is entitled to receive its full allotment of funds under this section for any fiscal year if the Secretary finds that the State's fiscal effort per student or the aggregate expenditures of the State with respect to the provision of free public education by the State for the preceding fiscal year was not less than 90 percent of the fiscal effort or aggregate expenditures for the second preceding fiscal year, subject to the requirements of paragraph (2).

''(2) REDUCTION IN CASE OF FAILURE TO MEET.—

''(A) IN GENERAL.—The Secretary shall reduce the amount of the allotment of funds under this section for any fiscal year in the exact proportion by which a State fails to meet the requirement of paragraph (1) by falling below 90 percent of both the fiscal effort per student and aggregate expenditures (using the measure most favorable to the State), if such State has also failed to meet such requirement (as determined using the measure most favorable to the State) for 1 or more of the 5 immediately preceding fiscal years.

''(B) SPECIAL RULE.—No such lesser amount shall be used for computing the effort required under paragraph (1) for subsequent years.

''(3) WAIVER.—The Secretary may waive the requirements of this subsection if the Secretary determines that a waiver would be equitable due to—

''(A) exceptional or uncontrollable circumstances, such as a natural disaster or a change in the organizational structure of the State; or

''(B) a precipitous decline in the financial resources of the State.'';

(6) by striking subsection (f);

(7) by redesignating subsection (g) as subsection (f); and

(8) in subsection (f), as redesignated by paragraph (7)—

(A) in paragraph (1), by striking ''under this section'' and inserting ''to carry out this section''; and

(B) in subsection (f)(3), in the matter preceding subparagraph (A), by striking ''shall be'' and inserting ''shall be—''.

SEC. 1011C. SPECIAL ALLOCATION PROCEDURES.

Section 1126 (20 U.S.C. 6338) is amended by striking ''sections 1124, 1124A, 1125, and 1125A'' each place the term appears and inserting ''sections 1123, 1124, 1124A, 1125, and 1125A''.

SA 2249. Ms. WARREN (for herself, Mr. GARDNER, and Ms. HIRONO) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 73, line 12, strike the period at the end and insert the following: ''; and

''(N) the State educational agency will provide the information described in clauses (ii), (iii), and (iv) of subsection (d)(1)(C) to the public in an easily accessible and user-friendly manner that can be cross-tabulated by, at a minimum, each major racial and ethnic group, gender, English proficiency, and students with or without disabilities, which—

''(i) may be accomplished by including such information on the annual State report card described subsection (d)(1)(C)); and

''(ii) shall be presented in a manner that—

''(I) is first anonymized and does not reveal personally identifiable information about an individual student;

''(II) does not include a number of students in any category of students that is insufficient to yield statistically reliable information or that would reveal personally identifiable information about an individual student; and

''(III) is consistent with the requirements of section 444 of the General Education Provisions Act (20 U.S.C. 1232g, commonly known as the 'Family Educational Rights and Privacy Act of 1974').

''(3) RULES OF CONSTRUCTION.—Nothing in paragraph (2)(N) shall be construed to—

''(A) require groups of students obtained by any entity that cross-tabulates the information provided under such paragraph to be considered categories of students under subsection (b)(3)(A) for the purposes of the State accountability system under subsection (b)(3); or

''(B) to prohibit States from publicly reporting data in a cross-tabulated manner, in order to meet the requirements of paragraph (2)(N).

''(4) TECHNICAL ASSISTANCE.—Upon request by a State educational agency, the Secretary shall provide technical assistance to such agency in order to meet the requirements of paragraph (2)(N).

On page 189, after line 23, insert the following:

''(5) Designing the report cards and reports under section 1111(d) in an easily accessible, user-friendly manner that cross-tabulates student information by any category the State determines appropriate, as long as such cross-tabulation—

''(A) does not reveal personally identifiable information about an individual student; and

''(B) is derived from existing State and local reporting requirements and data sources.

''(b) RULE OF CONSTRUCTION.—Nothing in paragraph (5) shall be construed as authorizing, requiring, or allowing any additional reporting requirements, data elements, or information to be reported to the Secretary not otherwise explicitly authorized under this Act.

SA 2250. Mr. BENNET (for himself and Mr. CARPER) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 336, between lines 4 and 5, insert the following:

''PART C—TEACHER, TEACHER LEADER, PRINCIPAL, OR OTHER SCHOOL LEADER PATHWAYS

''SEC. 2251. PROGRAM AUTHORIZED.

''From the funds made available under section 2256(a) and not reserved under section 2256(b) for each fiscal year, the Secretary is authorized to award grants, on a competitive basis, to eligible entities to enable such eligible entities to create or expand evidence-based programs that provide pathways into teaching, teacher leadership, and school administration that employ innovative approaches to recruitment, competitive selection, preparation, and placement of new teachers, teacher leaders, principals, and other school leaders to teach or lead in and meet the specific needs of local educational agencies with a high share of high-need schools.

''SEC. 2252. DEFINITIONS.

''In this part:

''(1) ELIGIBLE ENTITY.—The term 'eligible entity' means—

''(A) one or more institutions of higher education or nonprofit organizations with a demonstrated record of—

''(i) preparing teachers, principals, or other school leaders who meet a high standard of performance in the classroom, including by increasing student learning; and

''(ii) placing a significant percentage of those teachers, principals, or other school leaders in high-need schools, including in low-performing high-need schools, and, as appropriate within those schools, in high-need fields, subjects, or geographic areas; or

''(B) a high-need local educational agency or consortium of such agencies that has—

''(i) a demonstrated record of preparing teachers, principals, or other school leaders who meet a high standard of performance, including by increasing student learning; or

''(ii) a promising new preparation model that meets the description of evidence-based under subclause (I) or (II) of section 9101(23)(A)(i).

''(2) GRADUATE.—The terms 'program graduates', 'graduates', and 'graduate' may include program participants who are teachers of record, principals, or other school leaders.

''SEC. 2253. APPLICATIONS.

''(a) IN GENERAL.—An eligible entity that desires a grant under this part shall submit an application to the Secretary at such time, in such manner, and containing such information and assurances as the Secretary may reasonably require.

''(b) CONTENTS.—Each application shall—

''(1) describe how the eligible entity will implement an evidence-based teacher, principal, or other school leader preparation program that prepares teachers, principals, or other school leaders to meet a high standard of performance in the classroom or school, including by increasing student learning, and shall include a description of how the eligible entity will—

''(A) recruit and competitively select candidates, especially from underrepresented groups, with high potential to be effective teachers, principals, or other school leaders in high-need schools;

''(B) prepare candidates to meet the specific needs of high-need schools and, as appropriate within those schools, to teach or lead in high-need fields or subjects, or across the entire school, including providing sustained, rigorous, high-quality school-based clinical preparation and on-the-job support; and

''(C) determine if an individual participating in the program is attaining, or has attained, the competencies needed to complete the training and succeed in the classroom or school, and ensure a high standard for exit from the program while providing counseling to individuals who have not attained those competencies needed to complete the training;

''(2) identify local educational agencies to be served under the grant and describe how the eligibly entity determined the educator quality needs of each local educational agency and how the activities to be conducted

under the grant program will meet such needs;

''(3) identify any partners that will be involved in developing or implementing projects under the grant and the role of those partners in implementing the program, including any partner that will provide training to prospective teachers, principals, or other school leaders;

''(4) if applying to expand an existing preparation model by an experienced provider to more candidates or to a new geographic area, provide data about the eligible entity's record of producing teachers, principals, or other school leaders who—

''(A) have been hired to teach or lead in high-need schools;

''(B) meet a high standard of performance in classrooms or in school administration, including increasing student learning; and

''(C) have high early career retention rates in high-need schools;

''(5) describe how the eligible entity will maintain a system to track and report on the success of program graduates based on multiple measures, including if applicable, as appropriate, and if feasible—

''(A) the percentage of graduates who are effective under a State evaluation system, or if the eligible entity operates in a State that has no State evaluation system, a local educational agency evaluation system, that uses multiple measures of educator performance, including student learning and growth, and provides clear, timely, and useful feedback that identifies needs and guides professional development;

''(B) student learning, including growth of students taught or lead by the graduate;

''(C) the percentage of program participants who become teachers, principals, or other school leaders in a high-need or low-performing school;

''(D) the percentage of graduates who remain in high-need schools for 3 years or more;

''(E) graduate and supervisor feedback; and

''(F) certification pass rate; and

''(6) describe how the eligible entity will maintain specialized accreditation or demonstrate that graduates have content and pedagogical knowledge and high-quality clinical preparation, and have met rigorous exit requirements.

''(c) PRIORITY.—In awarding grants under this part,—

''(1) the Secretary shall give priority to an applicant that includes an entity that will implement or expand a preparation program or activities in a program that has strong or moderate evidence; and

''(2) the Secretary may give priority to an application that includes an eligible entity that will rigorously evaluate the program and activities funded by the grant in a manner that will help further build the evidence base in the field relevant to this part.

''SEC. 2254. SELECTION CRITERIA.

''In awarding grants under this part, the Secretary—

''(1) shall consider—

''(A) the proposed program's level of evidence; and

''(B) the extent to which an eligible entity will—

''(i) rigorously evaluate the programs and activities funded by the grant in a manner that will help further build the evidence base in the field relevant to this part;

''(ii) comprehensively track and report on the effectiveness of program graduates based on multiple measures, including performance at the classroom or school level, placement and retention in high-need schools, or other indicators of teacher, principal, or other school leader quality, and use data to continuously improve the program;

''(iii) prepare prospective teachers, principals, or other school leaders to meet specific local educational agency needs in high-need and low-performing schools;

''(iv) if applicable, prepare prospective teachers to teach in high-need fields or subjects within high-need schools;

''(v) ensure a high standard for entry to and exit from the program; and

''(vi) align the coursework and clinical preparation provided to prospective teachers, principals, or other school leaders being prepared under the grant, as appropriate, with the content areas the individuals will be teaching or leading, the school environment in which the individuals will be working (including significant special populations the individuals may be working with), and the instructional activities the individuals will be expected to perform or lead; and

''(2) may consider the extent to which an eligible entity—

''(A) allows prospective teachers, principals, or other school leaders being prepared under the grant to demonstrate competency on subject-matter tests;

''(B) recruits, competitively selects, and prepares veterans of the Armed Forces (including those recently separated from military service) or candidates from underrepresented groups who—

''(i) have strong potential to be effective educators in high-need schools; and

''(ii) are interested in beginning a career as a teacher, principal, or other school leader; or

''(C) will provide a teacher residency program or a school leader residency program.

''SEC. 2255. USES OF FUNDS.

''(a) IN GENERAL.—A recipient of a grant under this part may use grant funds to carry out evidence-based teacher, principal, or other school leader preparation programs that prepare teachers, principals, or other school leaders to meet a high standard of performance in the classroom or school, including by increasing student learning, and to teach and lead in high-need schools, which may include activities to—

''(1) rigorously recruit and competitively select candidates with the strongest potential to be effective educators in high-need schools, especially from underrepresented groups;

''(2) provide robust, continuous, and high-quality school-based clinical experiences, which may include teacher residency programs or school leader residency programs;

''(3) develop program participants' ability to analyze quantitative and qualitative student data to inform planning, instructional decisions, and professional development;

''(4) train candidates to implement personalized learning environments, tools, resources, and activities, including through the effective use of educational technology;

''(5) prepare teachers in classroom management, instructional planning and delivery, subject matter, and teaching skills;

''(6) place candidates who are prepared to immediately meet a high standard of performance on the job in teaching or leadership positions in high-need schools and classrooms;

''(7) provide induction, mentoring, and support programs for early career program graduates;

''(8) train teacher, principal, or other school leader candidates on how to effectively communicate and engage with parents, relatives, and other family members to improve student outcomes; and

''(9) provide training and compensation for staff in schools that are used for a proposed clinical portion of the preparation program, as well as the development of curriculum and training materials for such staff.

''(b) STIPENDS, SERVICE, WAIVER, REPAYMENT.—

''(1) A grantee may use a portion of its grant funds under this part to provide a stipend and other support services for prospective teachers, teacher leaders, principals, or other school leaders selected for programs under the grant.

''(2) Where applicable, the grantee shall establish such rules for length of service, waiver of service, repayment requirements, and amount of stipends, for Federal funds used under this part for stipends and other support services for prospective teachers, teacher leaders, principals, or other school leaders selected for programs under the grant, as the Secretary deems appropriate. A grantee shall use any repayment recovered under those rules to carry out additional activities that are consistent with the purpose of this part.

''SEC. 2256. AUTHORIZATION OF APPROPRIATIONS.

''(a) IN GENERAL.—For the purposes of carrying out this part, there are authorized to be appropriated such sums as may be necessary for each of fiscal years 2016 through 2021.

''(b) RESERVATION.—From the funds made available under subsection (a) for any fiscal year, the Secretary may reserve not more than 5 percent for national leadership activities, including—

''(1) technical assistance to grantees; and

''(2) evaluation of the effectiveness of the program assisted under this part, which shall be conducted by a third party or by the Institute of Education Sciences.''.

SA 2251. Mr. BENNET submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 367, by striking ''using'' on line 9 and all that follows through line 23 and inserting ''by calculating—

''(i) the sum of—

''(I) 75 percent of the number of individuals age 5 to 21 who speak English less than very well in the State, as determined from 3 year estimates through data available from the American Community Survey conducted by the Department of Commerce; and

''(II) 25 percent of the number of students who are determined not to be English proficient on the basis of the State's English language proficiency assessment under section 1111(b)(2)(G) (which may be multiyear estimates); or

''(ii) another combination of the data derived from the sources described in subclauses (I) and (II) of clause (i), except that such combination of data shall include not less than 25 percent of the number of students described in clause (i)(II);

SA 2252. Mr. BENNET submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 746, between lines 2 and 3, insert the following:

(ii) in subparagraph (B), by striking clause (iv) and inserting the following:

''(iv)(I) In the case of a local educational agency that has a total student enrollment

of fewer than 1,000 students and that has a per-pupil expenditure that is less than the average per-pupil expenditure of the State in which the agency is located or less than the average per-pupil expenditure of all the States, the total percentage used to calculate threshold payments under clause (i) shall not be less than 40 percent.

''(II) In the case of a local educational agency that, on the date of enactment of the Every Child Achieves Act of 2015, met the description in subclause (I) and whose total student enrollment increases for a subsequent year to—

''(aa) more than 999 but not more than 1,100 students, the total percentage used to calculate threshold payments under clause (i) shall not be less than 30 percent, unless such local educational agency would receive a larger payment under subsection (e); or

''(bb) more than 1,100 but not more than 1,200 students, the total percentage used to calculate threshold payments under clause (i) shall not be less than 20 percent, unless such local educational agency would receive a larger payment under subsection (e).'';

SA 2253. Mr. BENNET submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

On page 146, line 12, after ''1111(b)(3)(B)(iii)'' insert ''which shall include identification of the lowest-performing public schools that receive funds under this part in the State based on the method described in section 1111(b)(3)(B)(iii), which shall include at least 5 percent of all the State's public schools that receive funds under this part''.

SA 2254. Mr. KING (for himself and Mrs. CAPITO) submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

Beginning on page 587, strike line 15 and all that follows through page 588, line 10, and insert the following:

''(2) ELIGIBLE TECHNOLOGY.—The term 'eligible technology' means modern computer, and communication technology software, services, or tools, including computer or mobile devices (which may include any service or device that provides Internet access outside of the school day), software applications, systems and platforms, and digital learning content, and related services and supports.

''(3) TECHNOLOGY READINESS SURVEY.—The term 'technology readiness survey' means a survey completed by a local educational agency that provides standardized information on the quantity and types of technology infrastructure and access available to the students and in the community served by the local educational agency, including computer devices, access to school libraries, Internet connectivity (including Internet access outside of the school day), operating systems, related network infrastructure, data systems, educator professional learning needs and priorities, and data security.

''(4) UNIVERSAL DESIGN FOR LEARNING.—The term 'universal design for learning' has the meaning given the term in section 103 of the Higher Education Act of 1965 (20 U.S.C. 1003).

''SEC. 5702A. RESTRICTION.

''Funds awarded under this part shall not be used to address the networking needs of an entity that is eligible to receive support under the E-rate program.

SA 2255. Mr. MERKLEY submitted an amendment intended to be proposed to amendment SA 2089 submitted by Mr. ALEXANDER (for himself and Mrs. MURRAY) to the bill S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves; which was ordered to lie on the table; as follows:

Beginning on page 228, strike line 21 and all that follows through page 230, line 19, and insert the following:

''(a) STATE ALLOCATIONS.—

''(1) IN GENERAL.—Except as provided in subsection (b) and paragraph (2), each State (other than the Commonwealth of Puerto Rico) is entitled to receive under this part for a fiscal year an amount equal to—

''(A) the sum of

''(i) the average number of identified eligible migratory children, aged 3 through 21, residing in the State, based on data for the preceding 3 fiscal years; and

''(ii) the number of identified eligible migratory children, aged 3 through 21, who received services under this part in summer or intersession programs provided by the State during the previous fiscal year; multiplied by

''(B) 40 percent of the average per-pupil expenditure in the State, except that the amount calculated under this paragraph shall not be less than 32 percent, nor more than 48 percent, of the average per-pupil expenditure in the United States.

''(2) HOLD HARMLESS.—Notwithstanding paragraph (1), for each of fiscal years 2016, 2017, and 2018, no State shall receive under this part less than 90 percent of the amount such State received under this part for the previous fiscal year.'';

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ARMED SERVICES

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Armed Services be authorized to meet during the session of the Senate on July 14, 2015, at 9:30 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Commerce, Science, and Transportation be authorized to meet during the session of the Senate on July 14, 2015 at 10 a.m., in room SR–253 of the Russell Senate Office Building to conduct a subcommittee hearing entitled ''Unlocking the Cures for America's Most Deadly Diseases.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMERCE ON ENERGY AND NATURAL RESOURCES

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be authorized to meet during the session of the Senate on July 14, 2015, at 10 a.m., in room SD–366 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON SMALL BUSINESS AND ENTREPRENEURSHIP

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Committee on Small Business and Entrepreneurship be authorized to meet during the session of the Senate on July 14, 2015, at 2:30 p.m. in room 428A of the Russell Senate Office Building to conduct a hearing entitled ''Challenges and Opportunities for Small Businesses Engaged in Energy Development and Energy Intensive Manufacturing.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on July 14, 2015, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Ms. WARREN. Mr. President, I ask unanimous consent that Lindsay Owens from my staff be given privileges for the remainder of the 114th Congress.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that the following individuals who are interns on my staff for this summer be given privileges of the floor: Steven Murphy, Gwen Ranniger, Christian Escalante, Alexander Wong, Cassandra Adams, Taylor Sheldon, Max Blust, Kellie Chong, Malia Walters, and Kaitlin Bowers.

The PRESIDING OFFICER. Without objection, it is so ordered.

EXECUTIVE SESSION

NOMINATION OF ROMONIA S. DIXON TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR NATIONAL AND COMMUNITY SERVICE

NOMINATION OF VICTORIA ANN HUGHES TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR NATIONAL AND COMMUNITY SERVICE

NOMINATION OF RICHARD CHRISTMAN TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR NATIONAL AND COMMUNITY SERVICE

NOMINATION OF ERIC P. LIU TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR NATIONAL AND COMMUNITY SERVICE

NOMINATION OF DEAN A. REUTER TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR NATIONAL AND COMMUNITY SERVICE

NOMINATION OF SHAMINA SINGH TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR NATIONAL AND COMMUNITY SERVICE

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Senate proceed to executive session to consider the following nominations en bloc: Calendar Nos. 133, 134, 135, 206, 207, and 208; that the Senate proceed to vote without intervening action or debate; that the motions to reconsider be considered made and laid upon the table with no intervening action or debate; that no further motions be in order to the nominations; that any statements related to the nominations be printed in the RECORD; that the President be immediately notified of the Senate's action, and the Senate then resume legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the nominations.

The senior assistant legislative clerk read the nominations of Romonia S. Dixon, of Arizona, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring October 6, 2018; Victoria Ann Hughes, of Virginia, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring October 6, 2016; Richard Christman, of Kentucky, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring October 6, 2017; Eric P. Liu, of Washington, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring December 27, 2017; Dean A. Reuter, of Virginia, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring September 14, 2016; and Shamina Singh, of New York, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring October 6, 2019.

VOTE ON DIXON NOMINATION

The PRESIDING OFFICER. The question is, Will the Senate advise and consent to the nomination of Romonia S. Dixon, of Arizona, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring October 6, 2018?

The nomination was confirmed.

VOTE ON HUGHES NOMINATION

The PRESIDING OFFICER. The question is, Will the Senate advise and consent to the nomination of Victoria Ann Hughes, of Virginia, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring October 6, 2016?

The nomination was confirmed.

VOTE ON CHRISTMAN NOMINATION

The PRESIDING OFFICER. The question is, Will the Senate advise and consent to the nomination of Richard Christman, of Kentucky, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring October 6, 2017?

The nomination was confirmed.

VOTE ON LIU NOMINATION

The PRESIDING OFFICER. The question is, Will the Senate advise and consent to the nomination of Eric P. Liu, of Washington, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring December 27, 2017?

The nomination was confirmed.

VOTE ON REUTER NOMINATION

The PRESIDING OFFICER. The question is, Will the Senate advise and consent to the nomination of Dean A. Reuter, of Virginia, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring September 14, 2016?

The nomination was confirmed.

VOTE ON SINGH NOMINATION

The PRESIDING OFFICER. The question is, Will the Senate advise and consent to the nomination of Shamina Singh, of New York, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring October 6, 2019?

The nomination was confirmed.

LEGISLATIVE SESSION

The PRESIDING OFFICER. The Senate will now resume legislative session.

The Senator from Tennessee.

SYRIAN WAR CRIMES ACCOUNTABILITY ACT OF 2015

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 117, S. 756.

The PRESIDING OFFICER. The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (S. 756) to require a report on accountability for war crimes and crimes against humanity in Syria.

There being no objection, the Senate proceeded to consider the bill.

Mr. ALEXANDER. I further ask unanimous consent that the bill be read a third time and passed and the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 756) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 756

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Syrian War Crimes Accountability Act of 2015''.

SEC. 2. FINDINGS.

Congress makes the following findings:

(1) March 2015 marks the fourth year of the ongoing conflict in Syria.

(2) On December 17, 2014, the United Nations Security Council unanimously adopted Resolution 2191 ''expressing outrage at the unacceptable and escalating level of violence and the killing of more than 191,000 people, including well over 10,000 children'' and approximately 1,000,000 injured in Syria.

(3) More than half of Syria's population is displaced as of March 2015, with more than 7,600,000 internally displaced and more than 3,700,000 refugees in neighboring countries.

(4) On February 19, 2015, United Nations Secretary-General Ban Ki-moon reported to the Security Council that ''parties to the conflict are failing to live up to their international legal obligations to protect civilians'' and called for action to ensure the unfettered delivery of humanitarian relief, an end to the use of denial of services as a weapon of war, and a response to ''the relentless and indiscriminate attacks on civilians, including through the use of barrel bombs''.

(5) On February 27, 2014, the Department of State issued its 2013 Human Rights Report on Syria, which described President Bashar al Assad's use of ''indiscriminate and deadly force'' in the conflict, including the August 21, 2013, use of ''sarin gas and artillery to target East Ghouta and Moadamiya al-Sham, suburbs of Damascus, which killed over 1,000 people''.

(6) The 2014 United States Commission on International Religious Freedom Annual Report states that in Syria ''terrorist organizations espouse violence and the creation of an Islamic state with no space for religious diversity and have carried out religiously-motivated attacks and massacres against Alawite, Shi'a and Christian civilians.''

(7) On February 4, 2015, the Executive Council of the Organization for the Prohibition of Chemical Weapons (OPCW) adopted a decision expressing serious concern about the findings ''with a high degree of confidence'' of an OPCW fact-finding mission

that chlorine had been used as a weapon in some areas of Syria in 2014 and calling for those individuals responsible to be held accountable.

(8) The United Nations Independent International Commission of Inquiry on the Syrian Arab Republic reports that pro-government forces have conducted attacks on Syrian civilian populations, and have utilized murder, torture, assault, and rape as war tactics. Anti-government groups have also committed murder and torture, engaged in hostage-taking, attacked protected objects, and shelled civilian neighborhoods. The Commission's February 2015 report states that Syria's civil war ''has been characterized by massive, recurrent violations of human rights and international humanitarian law that demand urgent international and national action''.

(9) On March 12, 2015, Physicians for Human Rights (PHR) reported that since 2011, at least 610 medical personnel have been killed and there have been 233 deliberate or indiscriminate attacks on 183 medical facilities in Syria. The Physicians for Human Rights report cited evidence that the Government of Syria committed 88 percent of the recorded hospital attacks and 97 percent of medical personnel killings, and ''has targeted health care and increasingly used it as a weapon of war to destroy its opponents by preventing care, killing thousands of civilians along the way''.

(10) Internationally accepted rules of war require actors to distinguish between civilians and combatants and that all parties are obligated to respect and protect the wounded and sick and to take care all reasonable measures to provide safe and prompt access for the wounded and sick to medical care.

SEC. 3. SENSE OF CONGRESS.

Congress—

(1) strongly condemns the ongoing violence, use of chemical weapons, targeting of civilian populations with barrel, incendiary, and cluster bombs and SCUD missiles, and systematic gross human rights violations carried out by Government of Syria and progovernment forces under the direction of President Bashar al-Assad, as well as all abuses committed by violent extremist groups and other combatants involved in the civil war in Syria;

(2) expresses its support for the people of Syria seeking democratic change;

(3) urges all parties to the conflict to immediately halt indiscriminate attacks on civilians, allow for the delivery of humanitarian and medical assistance, and end sieges of civilian populations;

(4) calls on the President to support efforts in Syria and on the part of the international community to ensure accountability for war crimes and crimes against humanity committed during the conflict; and

(5) supports the requirement in United Nations Security Council Resolutions 2191, 2165 and 2139 for regular reporting by the Secretary-General on implementation on the resolutions, including of paragraph 2 of resolution 2139, which demands that all parties desist from violations of international humanitarian law and violations and abuses of human rights and calls on the Security Council to establish a committee to investigate past and ongoing gross violations of human rights and war crimes in the Syrian conflict.

SEC. 4. REPORT ON ACCOUNTABILITY FOR WAR CRIMES AND CRIMES AGAINST HUMANITY IN SYRIA.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, and again not later than 180 days after the cessation of violence in Syria, the Secretary of State shall submit to the appropriate congressional committees a report on war crimes and crimes against humanity in Syria.

(b) ELEMENTS.—The report required under subsection (a) shall include the following elements:

(1) A description of violations of internationally recognized human rights, war crimes, and crimes against humanity perpetrated during the civil war in Syria, including—

(A) an account of incidents that may constitute war crimes and crimes against humanity committed by the regime of President Bashar al-Assad and all forces fighting on its behalf;

(B) an account of incidents that may constitute war crimes and crimes against humanity committed by violent extremist groups, anti-government forces, and any other combatants in the conflict;

(C) a description of any incidents that may violate the principle of medical neutrality and, when possible, an identification of the individual or individuals who engaged in or organized such violations; and

(D) where possible, a description of the conventional and unconventional weapons used for such crimes and, the origins of the weapons.

(2) A description of efforts by the Department of State and the United States Agency for International Development to ensure accountability for violations of internationally recognized human rights, international humanitarian law, and crimes against humanity perpetrated against the people of Syria by the regime of President Bashar al-Assad, violent extremist groups, and other combatants involved in the conflict, including—

(A) a description of initiatives that the United States Government has undertaken to train investigators in Syria on how to document, investigate, and develop findings of war crimes, including the number of United States Government or contract personnel currently designated to work full-time on these issues and an identification of the authorities and appropriations being used to support training efforts;

(B) a description and assessment of Syrian and international efforts to ensure accountability for crimes committed during the Syrian conflict, including efforts to promote a transitional justice process that would include criminal accountability and the establishment of an ad hoc tribunal to prosecute the perpetrators of war crimes committed during the civil war in Syria; and

(C) an assessment of the influence of accountability measures on efforts to reach a negotiated settlement to the conflict during the reporting period.

(c) FORM.—The report required under subsection (a) may be in unclassified or classified form, but shall include a publicly available annex.

(d) APPROPRIATE CONGRESSIONAL COMMITTEE DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Foreign Relations of the Senate; and

(2) the Committee on Foreign Affairs of the House of Representatives.

NEED-BASED EDUCATIONAL AID ACT OF 2015

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 146, S. 1482.

The PRESIDING OFFICER. The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (S. 1482) to improve and reauthorize provisions relating to the application of the antitrust laws to the award of need-based educational aid.

There being no objection, the Senate proceeded to consider the bill.

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the bill be read a third time and passed and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 1482) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 1482

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Need-Based Educational Aid Act of 2015''.

SEC. 2. EXTENSION RELATING TO THE APPLICATION OF THE ANTRITRUST LAWS TO THE AWARD OF NEED-BASED EDUCATIONAL AID.

Section 568 of the Improving America's Schools Act of 1994 (15 U.S.C. 1 note) is amended—

(1) in subsection (a)—

(A) in paragraph (2), by inserting ''or'' after the semicolon;

(B) in paragraph (3), by striking ''; or'' and inserting a period at the end; and

(C) by striking paragraph (4); and

(2) in subsection (d), by striking ''2015'' and inserting ''2022''.

Mr. LEAHY. Mr. President, today the Senate has passed the bipartisan Need-Based Educational Aid Act of 2015, which will extend for another 7 years the anti-trust exemption permitting colleges and universities to collaborate on issues of need-based financial aid. I worked on this legislation with Senators GRASSLEY and LEE. Together we crafted an approach to reauthorize this exemption which earned the unanimous support of the Judiciary Committee just last week. This anti-trust exemption allows colleges and universities that admit students on a need-blind basis to collaborate on the formula used to determine how much families can pay for college. Without congressional action, this exemption will expire at the end of September.

Congress first enacted this exemption in 1994 and this will be the third time we have acted to reauthorize it. It is important for Congress to carefully review anti-trust exemptions to ensure that they continue to serve the public interest. In this case, our review led us to conclude that one particular provision should sunset because it has never been used by colleges and universities. The need for this slight modification underscores why I am skeptical of permanent anti-trust exemptions. Requiring those who benefit from exemptions to the anti-trust laws to come to Congress and justify renewal ensures that they do not become a blank check for anti-competitive behavior.

I would contrast the limited renewal the Senate has passed today with the McCarran-Ferguson Act, a permanent anti-trust exemption that the insurance industry has enjoyed since 1945. I

have worked for years on a bipartisan basis to repeal that law precisely because marketplace conditions can change significantly over a 7-year period, not to mention the 70 years since McCarran-Ferguson was enacted. We should learn from our experience with today's bill.

Our bipartisan and bicameral bill serves an important goal—allowing covered universities to focus their resources on ensuring the most qualified students can attend some of the best schools in the country, regardless of income. I am proud that Middlebury College in Vermont is one of those covered schools. I also appreciate the efforts of the bill's sponsors in the House, Congressmen SMITH and JOHNSON. I urge the House to pass our bipartisan bill this week.

WORLD REFUGEE DAY

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 134, S. Res. 204.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 204) recognizing June 20, 2015 as ''World Refugee Day.''

There being no objection, the Senate proceeded to consider the resolution.

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 204) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in the RECORD of June 18, 2015, under ''Submitted Resolutions.'')

NATIONAL CHILD AWARENESS MONTH

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of S. Res. 223, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 223) designating September 2015 as ''National Child Awareness Month'' to promote awareness of charities benefitting children and youth-serving organizations throughout the United States and recognizing the efforts made by those charities and organizations on behalf of children and youth as critical contributions to the future of the United States.

There being no objection, the Senate proceeded to consider the resolution.

Mr. ALEXANDER. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 223) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

EVERY CHILD ACHIEVES ACT

Mr. ALEXANDER. Mr. President, we have had a good day on our legislation to fix No Child Left Behind. I thank the Senators for their cooperation. We have worked through most issues. I think it is important to note that in our committee consideration, we considered 58 amendments and adopted 29. So far, we have considered 22 on the floor and adopted—well, we have adopted 22 on the floor.

Senator MURRAY—the ranking member—and I have agreed to another couple of dozen amendments from both sides of the aisle; more of them are Democratic than Republican. We are prepared to recommend them to the Senate for adoption by unanimous consent. There are another two dozen amendments; more of them are Democratic than Republican, including several which are important to the Democratic side—the accountability amendment, for example; the early childhood amendment, for example—which I think deserve a vote. I don't support them, but I think they deserve a vote. We are prepared to recommend that the Senate consider them. If we were to do that, we could finish the bill.

We have one remaining issue. It is an impasse over a formula funding question, which State gets more money from title I. That is always very difficult. The disputants are two of the most distinguished Members of the Senate. I am confident that they see the larger picture, which is that most Americans expect us to finish this bill and most Senators would expect us to be able to vote on the nearly 50 amendments that I just described.

So my hope is that we can come to some agreement; that tomorrow morning even before the cloture vote is scheduled we announce that agreement and we proceed to adopt by unanimous consent the amendments that remain to be adopted and then we vote on the amendments that remain to be voted on, all of which would permit us to finish the bill on Thursday.

So I thank Senators for that. I continue to ask for cooperation. I think an excellent example of that cooperation was the Senator from Minnesota, Mr. FRANKEN, who withheld his amendment in committee and offered it on the floor in order to make sure the bill passed.

ORDERS FOR WEDNESDAY, JULY 15, 2015

Mr. ALEXANDER. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m., Wednesday, July 15; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following leader remarks, the Senate resume consideration of S. 1177, with the time until the cloture vote equally divided in the usual form; finally, that the filing deadline for all second-degree amendments to the substitute amendment No. 2089 and the underlying bill, S. 1177, be at 10 a.m. tomorrow.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

Mr. ALEXANDER. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 7:39 p.m., adjourned until Wednesday, July 15, 2015, at 9:30 a.m.

CONFIRMATIONS

Executive nominations confirmed by the Senate July 14, 2015:

CORPORATION FOR NATIONAL AND COMMUNITY SERVICE

ROMONIA S. DIXON, OF ARIZONA, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR NATIONAL AND COMMUNITY SERVICE FOR A TERM EXPIRING OCTOBER 6, 2018.

VICTORIA ANN HUGHES, OF VIRGINIA, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR NATIONAL AND COMMUNITY SERVICE FOR A TERM EXPIRING OCTOBER 6, 2016.

RICHARD CHRISTMAN, OF KENTUCKY, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR NATIONAL AND COMMUNITY SERVICE FOR A TERM EXPIRING OCTOBER 6, 2017.

ERIC P. LIU, OF WASHINGTON, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR NATIONAL AND COMMUNITY SERVICE FOR A TERM EXPIRING DECEMBER 27, 2017.

DEAN A. REUTER, OF VIRGINIA, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR NATIONAL AND COMMUNITY SERVICE FOR A TERM EXPIRING SEPTEMBER 14, 2016.

SHAMINA SINGH, OF NEW YORK, TO BE A MEMBER OF THE BOARD OF DIRECTORS OF THE CORPORATION FOR NATIONAL AND COMMUNITY SERVICE FOR A TERM EXPIRING OCTOBER 6, 2019.

EXTENSIONS OF REMARKS

CONGRESSIONAL BLACK CAUCUS

SPEECH OF

HON. TERRI A. SEWELL

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Monday, July 13, 2015

Ms. SEWELL of Alabama. Mr. Speaker, today I rise to address the ongoing debate over the Confederate battle flag and its placement on state and federal government property. As a daughter of Selma, Alabama, I have a great respect and understanding of the deep heritage and tradition that every Southerner holds close to their heart. But as an American, I find it very troubling that some continue to defend a symbol of obvious and demonstrated hatred. From its creation, the flag was a denotation of the intention to segregate and enslave African Americans.

While some people genuinely revere the Confederate Battle Flag because of its connection to their ancestors, there can be little doubt that it is cherished by groups and individuals expressing racial hatred. As my colleague and friend JOHN LEWIS declared in this Chamber last week, the state troopers wore the flag on their helmets as they beat him and nearly took his life at the foot of the Edmund Pettus Bridge in 1965. It is clear that the flag is overwhelmingly associated with some of the darkest sins of our nation's past. The original intention of the flag saw resurgence in the 1950s as an expression of resistance to the Civil Rights Movement and desegregation. In 1963, Governor George Wallace raised the Confederate Battle Flag over the Alabama State Capitol as a protest to then U.S. Attorney General Robert Kennedy's visit to Alabama to urge desegregation. This very reaction to the rise of civil rights for African-Americans proves its symbolism as one of racial segregation and not one of heritage.

But let there be no mistake. The removal of this divisive symbol does not cure our society of all discrimination. Hatred stubbornly lingers on even after these flags are lowered. Removing flags from federally owned property or from a state's capitol grounds is a strong step forward, but it is not a final solution to our society's deeply entrenched structural oppression. Much more needs to be done to combat discrimination in our society and in our public institutions.

The United States has always been a beacon of progress and equality, so it stuns me that we continue to be shackled to these discriminatory symbols. The destiny of America is always in the future, not the past. We can learn from the past, both good and ill, but it is to the future that we must always direct our focus and our ambitions. We must forge a path forward, away from the symbols of the darkest times in our nation's history. Racism will end when we confront the hate behind the heritage with unity and reconciliation.

IN HONOR OF WILLIAM LAWSON LITTLE III

HON. SAM FARR

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. FARR. Mr. Speaker, I rise today in memory of William Lawson Little III, an important community leader whose integrity, compassion, and business acumen enriched the lives of his family, friends and the entire Monterey Peninsula. Lawson passed away on June 29, 2015. As his family and friends gather to honor and remember his wonderful life, I ask all my colleagues to join me in saluting one of the Monterey Peninsula's most well-respected figures.

Lawson was born in 1957 to William Lawson Little Jr. and Dorothy Hurd. He grew up along the golf links of Pebble Beach, and followed in the footsteps of his father, a Hall of Fame Golfer, as a true lover of the game of golf. He attended Carmel High School, Monterey Peninsula College, and San Jose State University. After college he played in professional golf tournaments around the world and spent a time as a tennis pro in Palm Desert. In 2009, Lawson was inducted into the California Golf Writers Hall of Fame and in 2010 he was inducted into the Monterey Peninsula College Hall of Fame.

In 1974, Lawson left professional sports and began a remarkable career at Quail Lodge Golf and Country Club, where he made a lasting mark beyond the golf course and in our community. He was a key leader in the development of Quail Meadows and would rise to become Vice President and President of Quail Lodge. While at Quail Lodge, Lawson brought a number of notable events to the Monterey Peninsula, including The Quail, A Motorsports Gathering, The Quail Rally, and the Eagle Cup. All of these events brought joy to thousands of people and raised much needed funding for a variety of local charities.

Mindful of the importance of serving one's community, Lawson made time to serve a number of local civic organizations, including the Jim Tunney Youth Foundation Board, G16 Coalition, Coalition for Monterey Peninsula Business, Monterey County Sheriffs Advisory Board, Carmel River Watershed Conservancy, Monterey County Emergency Assistance Team, as well as many others.

In 1977, Lawson married the love of his life, Rose and they would raise their two children, Chris and Sarah Rose in Carmel Valley. Despite his professional success and civic engagement, more than anything, Lawson will be remembered for being a role model, mentor, friend, and family man. He was a man who always put others above himself. He offered countless people counsel in their time of need and steady guidance to those that needed it. He was a man of undeniable strength and quiet wisdom. He was incredibly fun, lived in the moment, and loved playing games. He cherished classic cars, the San Francisco Giants, and making lasting memories with his family. Put simply, Lawson improved the lives of all of those around him.

Mr. Speaker, I know I speak for the whole House in honoring Lawson's lifetime of achievement and in extending our heartfelt condolences to his friends, and family members, including his wife Rose, son Chris, daughter Sarah Rose and sisters Linda, Sandy, and Sonya. I ask all my colleagues to pause and join me in paying respect to an extraordinary man, William Lawson Little III.

RECOGNIZING THE SESQUICENTENNIAL CELEBRATION OF SAND CREEK, WISCONSIN

HON. RON KIND

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. KIND. Mr. Speaker, this weekend we recognize the sesquicentennial celebration of Sand Creek, Wisconsin. On this historic occasion, it is only fitting that we reflect on and celebrate the rich history of this town, whose agricultural heritage is a reflection of western and central Wisconsin values.

Since the town's founding in 1865, the agricultural fertility of the land and the beautiful Red Cedar River have driven the development of the community. Norwegian settlers who decided to homestead in the area were the first to recognize the potential of the land in the Sand Creek region. Despite the wild land that these settlers first encountered, they were able to see through the wilderness and envision the future success that the land and water in the area could provide.

With a population of about 600 residents today, the Township of Sand Creek should be proud of its countless close-knit community connections. Those connections—and the people of Sand Creek who form them—are what make this community so special and what will lead the community to continued success.

Throughout this weekend's celebration, Sand Creek residents will come together for a full slate of exciting activities, all put on by their fellow community members. While they enjoy the weekend activities that commemorate Sand Creek's 150 years, we remember the past, reflect on the present, and look to the future.

Congratulations on 150 proud and prosperous years. Best wishes and many more to come.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

CONGRATULATING FRANCIS HOWELL CENTRAL HIGH SCHOOL FOR ITS PLACEMENT IN THE TOP 25 MISSOURI RANKED HIGH SCHOOLS

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Francis Howell Central High School for its placement in the top 25 Missouri high schools as ranked by U.S. News and World Report.

This school's administration, teachers, and students should be commended for all of their hard work throughout this past year and for their commitment to education.

I ask you to join me in recognizing Francis Howell Central High School for a job well done.

HONORING KATIE ARROYO AND JARED BAILEY OF THE FLORIDA SMALL BUSINESS DEVELOPMENT CENTER AT THE UNIVERSITY OF NORTH FLORIDA FOR RECEIVING THE FLORIDA INNOVATIVE SERVICE AND BEST PRACTICE AWARD OF 2015

HON. ANDER CRENSHAW

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. CRENSHAW. Mr. Speaker, I rise today to honor Katie Arroyo and Jared Bailey of the Florida Small Business Development Center at the University of North Florida for receiving the Florida Innovative Service and Best Practice Award of 2015. Katie and Jared received this prestigious award for their hard work and expertise in creating the International Marketing Metrics tool.

Using the International Marketing Metrics tool as part of the network's international trade services, small business exporters are able to quickly compare dozens of markets via the interactive country ranking matrix and illustrative graphing system. Jared and Katie developed this new and progressive tool for the Small Business Development Center at the University of North Florida.

The Florida Innovative Service and Best Practice Award is given in recognition for significant contributions to organizational improvement and enhanced performance in Florida's SBDC network, which is exactly what the International Marketing Metrics tool accomplishes. They were presented this prestigious award by Florida SBDC Network CEO and State Director Michael Myhre in Miami, Florida on June 23, 2015 as part of the Florida SBDC Network's professional development conference. At the annual conference, they recognize top personnel, volunteers, and partners for their contributions to the Network's mission in helping Florida's small businesses grow and succeed.

I am honored to have two such motivated and dedicated individuals living and working in the Fourth Congressional District of Florida. They truly exemplify what it means to work tirelessly in their effort to provide small businesses with the tools they need to grow and be successful here in Florida and across the nation.

I salute the dedicated work of both Katie Arroyo and Jared Bailey, and their well-deserved recognition upon being selected for this prestigious award.

IN HONOR OF KANNAPOLIS POLICE SERGEANT CHUCK MORGAN'S CAREER

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. HUDSON. Mr. Speaker, I rise today to honor Police Sergeant Chuck Morgan for his faithful service with the Kannapolis Police Department located in the 8th Congressional District of North Carolina.

Sergeant Morgan began his career with the Kannapolis Police Department as a Patrol Officer in 1986 and was then promoted to the rank of Sergeant on April 7, 1999. As a Sergeant, he has served the Kannapolis community in both the Patrol and Traffic Divisions.

As a result of his exemplary service, Sergeant Morgan has received various commendations from law enforcement agencies, civic organizations, churches, and his peers. To highlight a few, he earned a 10-year safe driving award in 1996 and then the Kannapolis Police Department's Physical Fitness Award in 2013.

Equally as impressive as his excellence in the field was his dedication to becoming a better officer. Sergeant Morgan earned an Advanced Law Enforcement Certificate from the N.C. Criminal Justice Education and Training Standards Commission having successfully completed 2,977 hours of professional training.

Mr. Speaker, please join me today in thanking Sergeant Chuck Morgan for his esteemed service to our community and congratulating him on his retirement.

21ST CENTURY CURES ACT

SPEECH OF

HON. JOSEPH R. PITTS

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 9, 2015

The House in Committee of the Whole House on the state of the Union had under consideration the bill (H.R. 6) to accelerate the discovery, development, and delivery of 21st century cures, and for other purposes:

Mr. PITTS. Mr. Chair, I rise in strong support for H.R. 6, the 21st Century Cures Act which will help advance the discovery, development, and delivery of new treatments and cures for patients and will foster private sector innovation here in the U.S.

Arriving here today has been a long journey—full of lots of steps and some twists and turns along the way. I especially want to thank Legislative Counsel for their tireless efforts in helping translate our legislative aims into legislative language. They worked nights and weekends and were consummate professionals throughout the process. Specifically, I want to thank the following: Warren Burke, Ed Grossman, Jessica Shapiro, Michelle Vanek, Jesse Cross.

I also want to thank the health care staff of the Congressional Budget Office for all their help in recent months. In addition to their role in estimating the budgetary effects of numerous policies in the bill, they were instrumental in helping us shape a number of proposals the Committee considered. I specifically want to thank Holly Harvey, Tom Bradley, Chad Chirico, and all their colleagues for their diligence and assistance through the process.

And I would be remiss if I did not again thank the outstanding team on Energy and Commerce, and most especially the Health team, led by Chief Health Counsel, Clay Alspach, supported by Josh Trent, Paul Edattel, John Stone, Robert Horne, Carly McWilliams, Michelle Rosenberg, Katie Novaria, Adrianna Simonelli, Traci Vitek and Graham Pittman—without whose expertise, wisdom and counsel, this legislative work would not be possible.

H.R. 6 was reported from Energy and Commerce Committee by a vote of 51–0 and advances conservative fiscal and regulatory reforms. Every dollar of advanced appropriations in the bill (which will sunset at the end of FY 2020) is offset with other permanent reforms—including billions of dollars in mandatory entitlement savings in Medicare and Medicaid.

But this is no ordinary mandatory spending—like the kind we usually see in entitlement spending such as Social Security, Medicare, Medicaid and Obamacare. This mandatory spending is for five years only and then stops or sunsets. This mandatory spending is fully paid for with mandatory spending cuts elsewhere that will not stop in five years, but are permanent reforms resulting in real savings. By comparison, the Ryan-Murray budget deal for health care savings yielded much less.

This innovative hybrid approach allows us to cut mandatory spending (entitlement spending) and use the savings to fund what would otherwise be a discretionary project—but in this case is 5-year dedicated spending on medical research.

Congressional Budget Office determined that H.R. 6 will reduce the deficit by $500 million over the first ten years, and at least another $7 billion over the second decade.

The funds provided to the National Institutes for Health (NIH) and Food and Drug Administration (FDA) will be subject to explicit review and reprogramming through the annual appropriations process. Congress can review the dedicated funding and allocate it for specific initiatives.

Additionally, all the important policy riders that accompany federal funding through appropriations will be included—such as the Hyde Amendment and the Dickey-Wicker Amendment.

This bill also includes a policy that excludes authorized generics from Average Manufacturers' Price. This is a common sense policy from the President's budget proposal, intended to ensure the appropriate calculation of Medicaid brand name rebates paid by manufacturers. The policy is not intended to effect Medicaid programs' pharmacy reimbursements. Instead, the provision, which many states support, will result in an increase in manufacturer rebates under Medicaid and thus save money for states and the federal government.

H.R. 6 will help America to innovate its way out of our entitlement crisis. The regulatory reforms included in H.R. 6 will accelerate the pace of discovery, development and delivery of new treatments and cures, thereby providing significant health care savings to the federal budget that will only grow over time.

By modernizing clinical trials, eliminating duplicative administrative requirements, and perhaps most importantly, making FDA less bureaucratic by advancing the voice and needs of patients in the drug and device approval process—H.R. 6 will make lasting, positive changes to the entire ecosystem of Cures. Over 250 patient groups have enthusiastically said "yes" and endorsed Cures.

I urge all of my colleagues to think of the patients and vote "AYE" in support of H.R. 6.

21ST CENTURY CURES ACT

SPEECH OF

HON. MARSHA BLACKBURN

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 9, 2015

The House in Committee of the Whole House on the state of the Union had under consideration the bill (H.R. 6) to accelerate the discovery, development, and delivery of 21st century cures, and for other purposes:

Mrs. BLACKBURN. Mr. Chair, America has been at her best when facing great challenges.

Some of our greatest challenges today are in the area of healthcare.

With over 10,000 known diseases, only 500 have cures.

We need to embrace a national vision of improving lives, and of course, saving money, through a Cures Strategy.

Sepsis is one condition that will benefit from this legislation.

Sepsis is the body's response to an overwhelming infection.

Approximately 250,000 people die from sepsis every year in the U.S. and yet most people have never heard of it.

Sepsis is the #1 most expensive condition treated in U.S. hospitals and in FY11 the aggregate hospital cost for sepsis was more than $20 billion.

This legislation comes too late for Katie McQuestion and Rory Staunton, both who succumbed to sepsis as vibrant, health young people.

But through the work that the CURES legislation will support, we can find ways to identify sepsis earlier and even find ways to prevent sepsis.

The 21st Century Cures legislation includes language that I have authored with my friend from Texas, Rep. GENE GREEN—the SOFTWARE act.

Getting bureaucracy out of the way and allowing innovation is the goal of SOFTWARE.

SOFTWARE will codify the manner in which FDA approaches health IT—including the wonderful apps that we all use to keep us healthy.

FDA is the agency charged with assuring the safety and efficacy of drugs and medical devices.

But data is not a drug or device and it makes no sense to regulate it as such.

However obvious that is, it hasn't stopped FDA from trying to make medical device law fit health IT.

We need to modernize the FDA authorities to reflect the new technology that is health IT.

SOFTWARE, as included in 21st Century Cures is an important first step in our efforts to modernize the FDA.

It is common sense legislation to provide opportunity for health IT to deliver on the promise of better health for all Americans.

I look forward to working with my colleagues in the Senate to bolster these efforts as SOFTWARE moves through the Senate.

For all the reasons I've outlined, the 21st Century Cures legislation is an important bill. But we must ensure that the new treatments, devices and drugs that will be created as a result of this legislation get to the people that need it the most. And some of the most needy are our nations seniors who get health care through Medicare.

Today, Medicare struggles with the adaption of new technology. Many seniors go years without access to the latest treatment options. We must change that. Congress receives great support from the Medicare Payment Advisory Commission (MedPAC) who offers recommendations and policy support to Congress to improve Medicare.

But as we are on the cusp of changing how health care is delivered, MedPAC could use additional policy support including Commissioners that have real-world expertise in this area, and who understand the changes that need to be made in both Medicare payment and regulatory policies to make that happen. I've been pleased to support such candidates in the past, and will continue to do so in the future.

RECOGNIZING FRED DEHARO FOR HIS POSITIVE IMPACT ON IMPROVING HEALTH EDUCATION FOR PRESIDENTS OF THE COACHELLA VALLEY

HON. RAUL RUIZ

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. RUIZ. Mr. Speaker, I rise today to congratulate and recognize the extraordinary contributions Fred Deharo has made to the health and wellbeing of residents in the Coachella Valley, making a real difference in the lives of the people I serve.

There is a dire need for quality health education and health care in the Coachella Valley. As an Emergency Physician myself, I know how critical it is for this population to have access to health care and education, and have seen first-hand the impact of Mr. Deharo's work.

For the last 35 years, Mr. Deharo has dedicated his life to expanding and improving public health. Upon graduating from UCLA with a Masters of Arts in Health Education-School of Public Health, Mr. Deharo was hired by "El Progreso Del Desierto," a farm worker health clinic in Coachella, to run their health education program, and eventually became their Executive Director.

Mr. Deharo's genuine passion for our country's medically underserved populations steered him toward his next professional endeavor. In 1993, he began consulting and grant writing, and was instrumental in the opening of the health clinic "Clinicas Del Pueblo" in Mecca, CA. Mecca, primarily a farming community, lacks access to basic health care and health education facilities.

Continuing with his service to underserved communities of Southern California, Mr. Deharo returned to the Coachella Valley in 1998 and in collaboration with another passionate health advocate, Rosa Lucas, they contributed to the opening of another clinic "Santa Rosa Del Valle" in Coachella, CA. Currently Mr. Deharo is Chief Contracts Officer for Borrego Community Health Foundation. And soon will be the Director of Contracting and Business Development for Clinicas Del Camino Real, Inc. in Ventura County, Ca.

Mr. Deharo recognizes the urgent needs that medically underserved communities struggle with on a daily basis. As a resident of the Coachella Valley, and as a Doctor, I thank Mr. Deharo for his life's work to provide better healthcare access to the rural and underserved communities of the Coachella Valley.

Mr. Speaker, on behalf of the thousands of families and children who have access to a Doctor through the health clinics that Mr. Deharo helped make possible, I would like to offer my sincerest thanks to Mr. Deharo, and look forward to continuing to support his legacy.

CONGRATULATING TIMBERLAND HIGH SCHOOL ON ITS BRONZE MEDAL AWARD

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Timberland High School on its Bronze Medal Award as a top Missouri High School from U.S. News and World Report.

This school's administration, teachers, and students should be commended for all of their hard work throughout the past year and for their commitment to education.

I ask you to join me in recognizing Timberland High School for a job well done.

IN RECOGNITION OF COLONEL SCOTT B. AVERY

HON. SANFORD D. BISHOP, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. BISHOP of Georgia. Mr. Speaker, I rise today to recognize and commend Colonel Scott B. Avery, Commander of Martin Army Community Hospital, for his distinguished service to the United States of America. Colonel Avery was instrumental in the partnership between the United States Department of Veterans Affairs (VA) and the Martin Army Community Hospital at Fort Benning, Georgia to greatly improve the healthcare services provided by the VA in the Columbus, Georgia area. On Tuesday, July 14, 2015, Colonel Avery relinquished Command of Martin Army Community Hospital to Colonel Marie A. Dominguez.

Colonel Avery was commissioned as a Medical Service Corps Officer in the U.S. Army

after graduating from the University of Washington in June 1988 with a baccalaureate degree in Political Science. After completing the Medical Service Corps Officer Basic Course in November 1988, Colonel Avery was stationed in Kirchgoens, Germany as a Medical Platoon Leader for 4th BN, 32nd Armor, and 3rd Armor Division. From there, he went on to hone his leadership skills as he successfully completed numerous command and staff assignments at Fort Irwin, California; Fort Bragg, North Carolina; Ansbach, Germany; Wiesbaden, Germany; Joint Base Lewis-McChord, Washington; and Fort Benning, Georgia. In between his staff and command positions, Colonel Avery became a UH–60 Blackhawk pilot and a Master Navigator. He also completed numerous combat tours during his career. He deployed to Bosnia-Herzegovina during Operation Joint Guard; to the Middle East in support of Operation Desert Shield/Desert Storm; to Kosovo twice in support Operation of Joint Guardian II; and to Iraq twice in support of Operation Iraqi Freedom and Operation New Dawn.

The Second Congressional District of Georgia gained a respected and compassionate leader when Colonel Avery arrived in Ft. Benning, Georgia in June 2011 to serve as Commander of the Martin Army Community Hospital. In this capacity, Colonel Avery was instrumental in improving the lives and health of veterans in the Chattahoochee Valley. Colonel Avery's partnership with the U.S. Department of Veterans Affairs resulted in the opening of a new 19,000-square foot Veterans Affairs Clinic at Fort Benning on July 6, 2015. The new VA clinic will improve access to health care for veterans, as well as its quality and cost effectiveness. The new clinic will offer a full complement of primary care providers with integrated mental health services which will serve more than 13,000 veterans and implement tele-health hubs to provide an additional 96 appointments per week.

Colonel Avery is the epitome of the U.S. Army values: Loyalty, Duty, Respect, Selfless Service, Honor, and Personal Courage. The new clinic would not exist today without Colonel Avery's personal courage, selfless service, relentless desire, and tireless duty to improve the lives of those who have fought to protect our cherished liberties. His loyalty and respect to the current and former servicemen and servicewomen is commendable and should be emulated by leaders in the military and in Congress.

Mr. Speaker, I ask my colleagues to join me, my wife Vivian, the Chattahoochee Valley community, and the 730,000 residents of Georgia's Second Congressional District in honoring Colonel Scott B. Avery for his contributions to the veterans of Southwest Georgia. We extend our best wishes to Colonel Avery and his family in his next assignment and throughout his career as he continues to be a champion for veterans.

TRIBUTE TO EAGLE SCOUT AUSTIN PERRIN

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Austin Perrin of Boy Scout Troop 218 in Shenandoah, Iowa, for achieving the rank of Eagle Scout. The Eagle Scout rank is the highest advancement rank in scouting. Only about five percent of Boy Scouts earn the Eagle Scout Award. The award is a performance-based achievement with high standards that have been well-maintained for more than a century.

For nine years Austin has dedicated his time and efforts to the Scouts. Not only has he excelled in Scouts, but he's also been a top-notch student and role model in the community. He represents his freshman class as their President and representative on the student council. He also participates in athletics and a number of different school related activities.

To earn the Eagle Scout rank, a Boy Scout must pass specific tests organized by requirements and merit badges, and complete an Eagle Project to benefit the community. For his Eagle Scout Service Project, Austin built a 28- foot cedar gazebo at Priest Park in Shenandoah. His inspiration came from seeing young students waiting for the bus in the rain without any shelter. Now, each day that it rains, students have a dry place to wait for the bus.

Mr. Speaker, the example set by this young man and his service to his community demonstrates the rewards of hard work, dedication and perseverance. I am honored to represent Austin in the United States Congress. I know that all of my colleagues in the U.S. House of Representatives will join me in congratulating him on reaching the rank of Eagle Scout, and I wish him nothing but continued success in his future education and career.

HONORING GANNETT FLEMING

HON. SCOTT PERRY

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. PERRY. Mr. Speaker, I'm proud to take this opportunity to offer my sincere congratulations to Gannett Fleming on the 100th Anniversary of their company's founding. Their record of accomplishment and longevity truly is exceptional and praiseworthy.

When Farley Gannett partnered with Theodore Seelye to form ''Farley Gannett, Consulting Engineer'' in Harrisburg on August 1, 1915, they laid the foundation for a company that would become a driving force in improving our communities through a commitment to growth, ethics and technical excellence.

Whether designing water supply and flood control dams to improve the quality of drinking water and reducing the risk of flooding, building highways that strengthen our economy and allow for the safe and efficient movement of people and goods, or water and wastewater treatment plants that result in cleaner streams, Gannett Fleming's more than 2,000 employees maintain the tradition of excellence, innovation and responsiveness that began 100 years ago.

Mr. Speaker, I also commend Gannett Fleming and its employees for their work on military and public service projects, including the Cancer Institute and Children's Hospital at the University's Medical Center in Hershey. Additionally, their ongoing support of community and charitable organizations throughout the region is invaluable.

Congratulations once again to Gannett Fleming and their employees on this wonderful milestone. Best wishes for continued success in the years to come.

CONGRATULATING ST. CLAIR HIGH SCHOOL ON ITS BRONZE MEDAL AWARD

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating St. Clair High School on its Bronze Medal Award as a top Missouri High School from U.S. News and World Report.

This school's administration, teachers, and students should be commended for all of their hard work throughout the past year and for their commitment to education.

I ask you to join me in recognizing St. Clair High School for a job well done.

OLDER AMERICANS ACT 50TH ANNIVERSARY

HON. JOYCE BEATTY

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mrs. BEATTY. Mr. Speaker, today marks the 50th anniversary of the landmark Older Americans Act, which President Lyndon Johnson signed into law on July 14, 1965.

Congress passed the Older Americans Act in response to concerns by policymakers about a lack of community social services for older persons.

The Older Americans Act is the major federal vehicle for the delivery of social and nutrition services for older persons.

It ensures seniors have transportation to medical appointments, the grocery store, adult day care and more.

It provides critical support and respite services to those caring for older adults—and, today, over 35 million Americans are family caregivers for older Americans.

The Older Americans Act also promotes health and well-being—helping manage diabetes, prevent falls, and improve behavioral health so seniors can live at home in their community.

The Older Americans Act has been serving our seniors and families well for half a century.

With 10,000 Americans turning 65 each day, we have an obligation to keep the Older Americans Act strong.

Just yesterday, President Obama spoke at the 2015 White House Conference on Aging to emphasize the importance of addressing aging issues and reauthorization of the Older Americans Act.

Across the country, older Americans are running businesses, helping to raise their grandchildren, serving as teachers, acting as mentors, and contributing their many talents for the better of their community.

I am committed to making sure that Americans are able to enjoy the secure retirement they deserve—whether they are already retired, are about to retire or are just starting out.

I will continue to work to protect and expand Social Security, improve health care affordability, and create affordable long-term care options.

Americans who have worked hard, raised families, and kept our country strong should be able to live their years in retirement with dignity and independence.

The Older Americans Act helps them do that by providing critical services to millions of senior citizens and their families.

Reauthorization of this important piece of legislation should occur as soon as possible.

PERSONAL EXPLANATION

HON. LOUISE McINTOSH SLAUGHTER

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Ms. SLAUGHTER. Mr. Speaker, I was unavoidably detained and missed Roll Call vote number 434. Had I been present, I would have voted aye.

HONORING BEAR WALLOW DISTILLERY

HON. TODD C. YOUNG

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. YOUNG of Indiana. Mr. Speaker, small businesses across my district work every day to produce the goods and services needed to drive our economy, and today it is my honor to highlight one of them. My home state of Indiana has a long heritage of agriculture and manufacturing business, as well as a spirit of entrepreneurship and innovation. One small business in Indiana's 9th District, Bear Wallow Distillery, sits at the center of these proud Hoosier traditions.

Bear Wallow Distillery, located in scenic and historic Brown County, Indiana, is a homegrown success story. Founded and still owned by Mike and Susan Spagnuolo, their craft distillery opened its doors in August 2014. In the year since, the company has expanded its initial offering of Hoosier-made moonshine to include bourbon and several different whiskeys; all crafted from locally grown and supplied ingredients. Operating a still and a serving room, Bear Wallow has served thousands of thirsty Hoosiers. Visitors can see the distillery operation on behind-the-scene tours and sample local foods as well as drinks.

Bear Wallow does its part to support our long tradition of quality craftsmanship. The company creates its signature spirits using a traditional copper still from another family-owned small business, Vendome Brass and Copper of Louisville, KY. The small-batch, handcrafted spirits that Bear Wallow produces are then aged in charred American White Oak barrels and served-up straight or as part of a cocktail. The business is known for its ''Moonshine shake-ups,'' made with fruit elixirs and served in a tasting area featuring Prohibition-era decorations and a bare-wood bar made from locally milled red oak.

Bear Wallow refers to itself as ''the first legal distillery in Indiana.'' The claim rings very true, as the success of Bear Wallow would not have been possible even two years ago. Previous Indiana law prevented would-be entrepreneurs from operating small distilleries in the state. Following changes to the law in 2013, Mike and Susan Spagnuolo were on the front line pioneering this industry that is flourishing in Indiana's 9th District. Their small business, like so many others, is helping to create needed jobs, drive our local economy, and generate tourism throughout the state.

It is an honor representing entrepreneurs like the Spagnuolos who took a risk opening Bear Wallow Distillery. I hope their example serves to inspire other would-be entrepreneurs, and am pleased to highlight their good work today in this installment of Indiana's 9th District Small Business Spotlight.

CONGRATULATING SECKMAN SENIOR HIGH SCHOOL FOR ITS BRONZE MEDAL AWARD

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Seckman Senior High School on its Bronze Medal Award as a top Missouri High School from U.S. News and World Report.

This school's administration, teachers, and students should be commended for all of their hard work throughout the past year and for their commitment to education.

I ask you to join me in recognizing Seckman Senior High School for a job well done.

HONORING JOANNE LEINOW ON THE OCCASION OF HER RETIREMENT AS PARTNERSHIP DEVELOPMENT DIRECTOR OF BIG BROTHERS BIG SISTERS OF THE DESERT

HON. RAUL RUIZ

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. RUIZ. Mr. Speaker, I rise today to congratulate Ms. Joanne Leinow on her retirement after 28 years of service with the Big Brothers Big Sisters (BBBS) program, whose mission is to provide children facing adversity with strong and enduring, professionally supported one-to-one relationships that change their lives for the better, forever.

Throughout her nearly three decades of service, Ms. Leinow has been involved in with BBBS in both large and small communities, all across the country including Cincinnati, Ohio, Los Angeles, California, and most recently here in our desert. From her contribution in 1960, in Cincinnati, Ohio, to her work with the Jewish Big Brothers Big Sisters in Los Angeles in the 1990s, and finally her most recent service over the past 9 years with Big Brothers Big Sisters of the Desert, Ms. Leinow has made a tremendous impact on thousands of youth in our nation.

In 2002, Ms. Leinow was hired at the BBBS of the Desert to develop a site based mentoring program. Unfamiliar with the region, Ms. Leinow performed her BBBS ''magic.'' In 2006 she was promoted to Partnership Development Director for her incredible job recruiting new volunteers, developing community and business partnerships, and making sure that the Coachella Valley community knew BBBSD was the ''go-to'' agency for mentoring.

From the time Ms. Leinow became the Partnership Development Director in 2006, BBBSD has seen a 108% increase in the number of children served, increasing from 333 children in 2006 to 555 in 2010.

Ms. Leinow's hard work and passion for public service does not go unnoticed. She has been recognized with numerous awards, including the Skip Walsh Award in 2011, which honors BBBS professionals who excel in the qualities of education, enthusiasm, and generosity.

Mr. Speaker, Ms. Leinow's commitment to public service and particularly to stimulate children to overcome hardship through mentorship is an act of human kindness. On behalf of all those who have benefited from BBBSD, and the residents of California's 36th Congressional District, I would like to offer my sincerest thanks and congratulate Ms. Leinow for her exceptional commitment. I wish her well in her well-deserved retirement.

IN RECOGNITION OF THE ACHIEVEMENTS OF PERCIVAL LOWELL

HON. RICHARD E. NEAL

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. NEAL. Mr. Speaker, I would like to take this opportunity to introduce an article entitled ''The Bostonian astronomer who dreamed of Pluto'' that was published in the Boston Globe on July 12, 2015. Written by Ted Widmer, this article reviews the life and accomplishments of Percival Lowell, the Boston astronomer that had a tremendous impact on the discovery of Pluto. As the *New Horizons* spacecraft sped past that distant planet this morning, this article stands as a tribute to ensure we do not forget Percival Lowell's part in this great human achievement of innovation and exploration.

THE BOSTONIAN ASTRONOMER WHO DREAMED OF PLUTO

(By Ted Widmer, The Boston Globe)

This Tuesday, July 14, at 7:49:57 a.m. EDT, the New Horizons spacecraft will rendezvous with Pluto at a point in space nearly 3 billion miles from Earth. It's been a long strange trip.

New Horizons launched nearly a decade ago, on Jan. 19, 2006. It received a gravity boost from Jupiter in 2007, and has been cruising at more than 30,000 miles per hour ever since. It won't even slow down as it passes by the planet at the end of the solar system, but it will gather data and take photos as it screams silently by.

By 7:49:58, the moment will have passed, and New Horizons will be seeking new adventures in the Kuiper Belt.

For New Englanders, there are a couple reasons to feel proud of the fly-by. The mission is the first in the ''New Frontiers'' series, named after President Kennedy. And Pluto is something of a local concern. Though Pluto was formally discovered by a Kansan named Clyde Tombaugh in 1930, he was spurred to look where he did because of calculations made years earlier by a Bostonian astronomer, Percival Lowell.

Lowell was born in 1855, near the State House—the epicenter of ''the Hub of the Solar System,'' as Oliver Wendell Holmes famously called the city. More than most, Lowell helped Boston live up to that claim, with his relentless research into the heavens. The astronomical symbol for Pluto, a P and L mashed together, is a tribute to him. And by laying out instructions for where to look for the celestial object he called ''Planet X,'' Lowell was like the owner of a shoveled-out parking spot, leaving a battered lawn chair as a space-saver, to mark his territory forever. How Boston is that?

Lowell was an unlikely astronomical pioneer. He grew up privileged, one of a brood that included Harvard's future president, A. Lawrence Lowell, and the poet Amy Lowell (whom he called ''Big Fat Baby''). He could have coasted, the way so many wealthy Americans did in the smug years that followed the Civil War. But three deep passions seized him, and helped him to achieve escape velocity—enough to leave Boston's gravity forever.

The first of these was Japan. In 1883, after a brief period managing family investments, he set sail for what he called ''the morning land,'' in search of spiritual enlightenment. Americans had begun to appreciate Japanese design at the 1876 Centennial Exposition in Philadelphia, so fresh and direct in contrast to the grandiloquent statements of the Gilded Age. A small wavelet of Bostonians traveled there, or even established residence, including William Sturgis Bigelow (who gave 40,000 Japanese artifacts to the MFA), Isabella Stewart Gardner, Edward Sylvester Morse, and Ernest Fenollosa. Lowell happily joined this expatriate tide, which fit perfectly his desire to declare independence from the Hub.

He lived in Japan for 10 years, and wrote prolifically about Shintoism and other aspects of a culture that he found un-Bostonian in every way—except for its ancestor worship. At the same time, Boston helped him immensely, by distributing his esoteric musings through well-trusted outlets like The Atlantic. His writings inspired other Japanophiles, and they helped Lowell gain the confidence to explore other worlds. These he was beginning to glimpse, by climbing Japanese mountains, where it was understood that spiritual understanding came more quickly. The Buddhists revere what they call ''celestial'' enlightenment. Typically, Lowell found it in his own way, by searching the skies for unusual objects.

In 1893, he began to devote intense study to the planet Mars, the second of his three obsessions. Learning that Mars would be approaching close to Earth the next year, he dropped everything and began to prepare. He purchased land on an elevated plateau near Flagstaff, Ariz., brought two large telescopes, and for the next 23 years devoted his attention to the place he named Mars Hill. It became a kind of transcendental-astronomical paradise for him, and he delivered philosophical musings, like, ''To stand a mile and a half nearer the stars is not to stand immune.'' Lowell's principal thesis—that Mars contained a network of canals, and was likely inhabited—was more imaginative than scientific.

But despite Lowell's failure to find signs of extraterrestrial life, his years of close observation yielded much valuable data, and helped people see our planetary neighbor in new ways. The science fiction industry was not slow to follow his lead, and tales of Martian invaders have never failed to sell. He built an important establishment in Arizona, the Lowell Observatory. And once again, he fell in love with an exotic land—this time, the Southwest, where he wandered happily, collecting plant specimens by day, and stars by night.

Lowell's third passion took him even further afield. Earlier in life, as a young man recently graduated from Harvard, he had tired of Boston's predictability, and written, with the studied weariness of the young, that he was considering ''migrating to another planet or ceasing to exist.''

In 1905, he began an obsessive search for a new planet, beyond Neptune, the legendary ''Planet X.'' He predicted where it might be found, and even photographed it in 1915, although he was not aware that he had. He died a year later, but it would have delighted this otherworldly thinker to know that his research lived on and provided a road map to the sky-gazers who followed in his wake.

In 1930, when Pluto was finally pinpointed, there was universal excitement. Walt Disney named Mickey Mouse's dog after the discovery. The element plutonium was also named after Pluto. There were now nine planets—a number that felt right. It seemed as if Lowell had found final vindication, after all those years chasing Japanese ghosts and Martian canals.

But year by year, as scientists got to know Pluto better, they liked it less, finding it smaller than expected, icy, and dubious in other ways, including its orbit and its relationship with neighboring objects. In 2006, 101 years after Lowell began his search for it, Pluto suffered the ultimate indignity when it was downgraded to a ''dwarf planet.'' The fleeting fly-by this Tuesday may help restore luster to the object formerly known as Planet X. But more than likely, we will have to look elsewhere for Lowell's vindication.

Fortunately, it's not too hard to find. In June, scientists began to get excited again about the possibility of life on Mars, and research is coming into the Martian subsoil. A different monument to Lowell exists right here, in Cambridge's Mount Auburn Cemetery. He is not buried there, that would be too predictable (his actual grave is at Mars Hill, in Arizona). But a piece of petrified rock, left by his instruction, gives his grave's real location, and testifies to the enduring individuality of a Bostonian who wanted to be present, but not too present. Percival Lowell always encountered the world on his own terms.

CONGRATULATING NEW HAVEN HIGH SCHOOL FOR ITS BRONZE MEDAL AWARD

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating New Haven High School on its Bronze Medal Award as a top Missouri High School from U.S. News and World Report.

This school's administration, teachers, and students should be commended for all of their hard work throughout the past year and for their commitment to education.

I ask you to join me in recognizing New Haven High School for a job well done.

TRIBUTE TO STANLEY AND WILMA EMBREE

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Stanley and Wilma Embree on the very special occasion of their 70th wedding anniversary on June 17, 2015.

This couple was married in North Carolina in 1945 and farmed in Adams County until the 1980's. Stanley and Wilma now live in Atlantic, Iowa in Cass County. Stanley and Wilma's lifelong commitment to each other and to their children and family truly embodies Iowa's values. I congratulate this devoted couple on their 70 years together and I wish them many more. I know my colleagues in the United States House of Representatives will join me in congratulating them on this momentous occasion.

DISTINGUISHED OFFICER EDWARD ALFRED THOMAS

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. POE of Texas. Mr. Speaker, the Houston Police Headquarters will soon be renamed in honor of the retired Senior Police Officer Edward Alfred Thomas, a fitting tribute to his lifelong service to the city of Houston.

Police Officer Edward Alfred Thomas, also known as "Mr. Thomas" around the station, has provided 65 years of service as an officer to the Houston Police Department.

Officer Thomas served the Houston Police Department from January 12, 1948 to July 23, 2011. His accomplishments are numerous and include The 100 Club, Officer of the Year, the Lifetime Achievement Award, and a Chief of Police Commendation.

Officer Thomas served nearly 20 years prior to the Civil Rights Movement and was one of the first African-American police officers to integrate into the Houston Police Department.

Fellow officers declare that Officer Thomas has been an incredible example of perseverance, courage, and duty to the Houston Police Force.

Several organizations support the proposal to name the Police Headquarters in Officer Thomas's honor such as the African American Police Officer League (AAPOL), Houston Police Officer's Union (HPOU), the Houston Organization of Public Employees (HOPE), and Houston Police Organization of Spanish Speaking Officers (OSSO).

The City Council unanimously approved the proposal to name the Houston Police Headquarters in his honor on June 15, 2015.

And that's just the way it is.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $18,151,921,010,337.51. We've added $7,525,044,062,425.42 to our debt in 6 years. This is over $7.5 trillion in debt our nation, our economy, and our children could

have avoided with a balanced budget amendment.

CONGRATULATING FT. ZUMWALT SOUTH HIGH SCHOOL ON ITS BRONZE MEDAL AWARD

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Ft. Zumwalt South High School on its Bronze Medal Award as a top Missouri High School from U.S. News and World Report.

This school's administration, teachers, and students should be commended for all of their hard work throughout the past year and for their commitment to education.

I ask you to join me in recognizing Ft. Zumwalt South High School for a job well done.

DULLES ACADEMIC CHAMPIONSHIP

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. OLSON. Mr. Speaker, I rise today to congratulate Dulles High School on being named the 2015 6A Academic State Champions. This win marks Dulles' third state title in four years.

This impressive achievement brought the gold medal to Dulles for the third time in just four years. This year's win also marks the eighth consecutive academic championship title for Fort Bend ISD. Dulles earned first place team honors in Science, Math, and Speech and Debate and second place team honors in Number Sense. No doubt, these students worked diligently all year to win this championship. Their success would not have been possible without the support of their teachers, principal, and parents. We are all looking forward to the continued achievements of this bright group of students.

On behalf of the Twenty-Second Congressional District of Texas, congratulations again to Dulles High School's Academic State Champions. This victory makes the entire Fort Bend ISD community proud.

RECOGNIZING MOMS2B PROGRAM

HON. STEVE STIVERS

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. STIVERS. Mr. Speaker, I rise today to recognize the Moms2B program in Columbus, Ohio for receiving the Supporting the Safety Net Award from the Association of Community Affiliated Plans (ACAP). The award was given at the 2015 ACAP CEO Summit. ACAP works with not-for-profit Safety Net Health Plans in their efforts to improve the health of lower-income and vulnerable populations.

Moms2B was founded in 2010 and began as a 10-week nutrition course. The program has now grown into a multidisciplinary program with a variety of healthcare professionals serving the neighborhoods of Columbus.

The program is designed to address maternal and infant health issues in low-income communities with high rates of infant mortality. Specifically, there is a focus on helping pregnant women deliver full term, healthy babies. Moms2B also partners with a variety of organizations, including the American Red Cross, The Mid-Ohio Food Bank, the Ohio State University Outreach and Engagement, and many others in an effort to improve their outreach and care to the families in Central Ohio.

Moms2B has enrolled more than 350 women into the program, and has seen great success in its short time in operation. Through August 2013, program participants had a 50 percent reduction in low birth weight babies compared to the Medicaid expected number.

Winning the ACAP Supporting Safety Net Award is a true testament to the incredible impact Moms2B has had on families in Central Ohio. On behalf of the people of Ohio's 15th Congressional District, I thank Moms2B for all they do for our community and wish them continued success in the future.

CONGRATULATING FATIMA HIGH SCHOOL ON ITS BRONZE MEDAL AWARD

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Fatima High School on its Bronze Medal Award as a top Missouri High School from U.S. News and World Report.

This school's administration, teachers, and students should be commended for all of their hard work throughout the past year and for their commitment to education.

I ask you to join me in recognizing Fatima High School for a job well done.

2015 CARNEGIE HALL NATIONAL YOUTH ORCHESTRA

HON. LOUISE McINTOSH SLAUGHTER

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Ms. SLAUGHTER. Mr. Speaker, today I rise to recognize the 2015 National Youth Orchestra of the United States of America.

Each summer, Carnegie Hall's Weill Music Institute brings together some of the finest young musicians from across the country to form the prestigious National Youth Orchestra. The musicians, ranging from ages 16–19 years old, undergo a comprehensive audition process; the 114 talented, dedicated musicians who are selected reflect the breadth, diversity and quality of young musicians in the United States.

After an intensive two-week training residency at State University of New York Purchase College with faculty from some of the country's finest professional orchestras, the players travel the world on an annual tour to top music capitals. Our musicians have the opportunity to interact with local young musicians and sightsee wherever they travel, and they inspire their audiences with their music-making.

In its inaugural season in 2013, the Orchestra traveled to Russia and the UK. This year, from July 10–26, they will travel from New York City to China. In Beijing, Shanghai, Hong Kong, and four other cities, the Orchestra will share their talent with Chinese audiences while experiencing firsthand the richness of China's culture and history. As musical ambassadors for America, the orchestra will strengthen ties between citizens of the US and the People's Republic of China through culture.

I am thrilled to announce this summer's performers include two young musicians from my own Congressional district. Martine Thomas, 17, plays viola with the Rochester Philharmonic Youth Orchestra. She was a member of the National Youth Orchestra's inaugural summer tour in 2013, and this will be her second appearance with the group. She enjoys spending her weekends busking at a farmers market and performing at assisted living centers. Additionally, Helen Wong, 17, plays violin and attends Webster Schroeder High School is a performer in this years National Youth Orchestra. She enjoys performing piano and violin at senior centers and churches in her free time.

Participating in the arts can have incredible benefits on our nation's students. From higher test scores to better behavior, stronger critical thinking skills, and better decision making skills. Team building skills along that these students will cultivate in the orchestra are essential to today's interconnected workplace.

Again, I would like to congratulate all of the young musicians of the 2015 National Youth Orchestra and wish them the best of luck in their future endeavors.

IN RECOGNITION OF JAMES SICILIANO

HON. FRANK PALLONE, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. PALLONE. Mr. Speaker, I rise today to recognize Mr. James Siciliano. Mr. Siciliano will be honored by the Italian American Memorial Association (IAMA) on July 18, 2015 and I would like to join with its members in congratulating Mr. Siciliano.

The son of first generation Italian Americans, Mr. Siciliano honors his heritage and continues to uphold the objective of the IAMA to promote social, cultural and recreational activities for the betterment of the residents of Long Branch, New Jersey. His dedication to the community and the IAMA is truly deserving of this body's recognition.

A native of Long Branch, Mr. Siciliano has been involved with the IAMA since childhood. Having participated in the IAMA Little League, Mr. Siciliano knows first-hand the positive influence the association's recreational and athletic activities have on the community's youth. As a member and President of the IAMA, he maintains active participation in the association and ensures its continued success. Under his leadership, the IAMA has grown in membership and activities. He also helped begin

the association's scholarship program and oversees the daily functions of the center.

Mr. Speaker, I sincerely hope that my colleagues will join me in recognizing Mr. James Siciliano as he is honored by the Italian American Memorial Association and thanking him for his countless contributions to the community.

HONORING THE OLDER AMERICANS ACT 50TH ANNIVERSARY

HON. EDDIE BERNICE JOHNSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Ms. EDDIE BERNICE JOHNSON of Texas. Mr. Speaker, I rise in honor of the Older Americans Act 50th Anniversary. Originally passed in 1965, the Older Americans Act ensures that older individuals and their caregivers have access to a wide array of services. Aside from Medicare, Medicaid, and Social Security, services such as community-based care, meal delivery, health prevention programs, and elder rights protection are just a few of the many vital programs that the Older Americans Act provides.

The population age 65 and over increased by 24.7 percent between 2003 and 2013 and the number of individuals in need of aging programs continues to rise. Nearly 50 million older Americans and Americans with disabilities rely on Medicare coverage and more than 70 million individuals depend on Medicaid and the Children's Health Insurance Program for their health care needs. Nearly 42 million Americans receive Social Security retirement benefits and for 6 out of 10 seniors, Social Security provides most of their income. I strongly believe in solvent Medicare, Medicaid, and Social Security systems that give older Americans the security they need.

As for the impact of the community and social services provided by the Older Americans Act, the aging network serves an average of 11 million people each year. For example, over a five year period, 130 million rides to doctors' offices, grocery stores, and other locations were provided. More than 1 billion meals were served and 95 percent of those served would recommend the nutrition program. Nearly 20 million hours of case management, over 60 million hours of homemaker services, and more than 30 million hours of respite care were provided, helping older adults continue to live in their own homes. Through the Senior Community Service Employment Program, more than 200,000 participants provided almost 248 million hours of community service, effectively allowing seniors to give back to their community.

As the Baby Boomer Generation enters the 65 and over age bracket and the average life expectancy lengthens, it is clear that we cannot afford a shortage of services. As we celebrate the Older Americans Act 50th Anniversary, we must also keep in mind that these services often end up on the chopping block. On this historic day, I hope that we can all work together to find ways to continue to provide these vital services to our older Americans.

CONGRATULATING THE CHAMOIS HIGH SCHOOL ON ITS BRONZE MEDAL AWARD

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Chamois High School on its Bronze Medal Award as a top Missouri High School from U.S. News and World Report.

This school's administration, teachers, and students should be commended for all of their hard work throughout the past year and for their commitment to education.

I ask you to join me in recognizing Chamois High School for a job well done.

HOUSTON COMMUNITY COLLEGE AND TEXAS A&M UNIVERSITY

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. POE of Texas. Mr. Speaker, Texas A&M University has recently announced the new Texas A&M-Chevron Engineering Academies at two year colleges across Texas, including Houston Community College. This allows more students to receive a high quality engineering degree. The Texas Workforce Commission projects that by 2022 the state of Texas will need 62,000 more engineers, and this program is one of the ways Texas is going to get there.

In this program, students can complete their first two years of core classes at HCC and be granted full emission into Texas A&M to complete their major specific classes. Students will be able to learn in smaller environments for a fraction of the price. It combines the best from both schools, the atmospheres and learning setting. HCC already offers a wide variety of engineering majors, and now with A&Ms majors available to them, the possibilities for these students are endless.

Texas A&M is one of the top engineering programs not only in the state of Texas, not only in the country, but the world. Much like the 19th century British empire, the sun never sets in Aggieland, for they have campuses set all over the world.

Houston Community College has 60,000 students annually and serves Houston as one of the top schools to earn a degree from. This partnership is ensuring that more students have access to a top engineering education and the connections they make through this will benefit not only them, but our future economy and industrial developments throughout the world.

And that's just the way it is.

RECOGNIZING OUR NATION'S COMMUNITY CORRECTIONS PROFESSIONALS

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Ms. NORTON. Mr. Speaker, I rise today to ask the House of Representatives to join me in recognizing the invaluable contribution to public safety made by community corrections professionals in the United States and throughout the world. Every year, the American Probation and Parole Association (APPA) and its allied members set aside a week to honor these valued public servants, and this year, they have chosen July 12–18 to mark Pretrial, Probation and Parole Supervision Week 2015. I am proud to stand in support of corrections professionals not only in the District of Columbia but around the world.

In the nation's capital, thousands of women and men serve as pretrial, probation and parole officers or administrators. As public servants, these constituents, along with many other Americans, commit themselves on a daily basis to helping improve the lives of those involved in the criminal justice system. Mr. Speaker, the work of these professionals ultimately results in stronger and safer communities for all.

Community corrections professionals are responsible for supervising adult and juvenile offenders in communities throughout our nation. In many cases, these trained professionals go above and beyond the call of duty by providing their clients supportive services or referrals to critical community-based resources, employment opportunities and housing programs. Additionally, community corrections professionals provide services, support, and protection for victims, while continuously promoting the importance of crime prevention and restorative justice.

In honor of Pretrial, Probation and Parole Supervision Week 2015, I recognize, in particular, the community corrections and supervision services carried out here in the District of Columbia by the Court Services and Offender Supervision Agency for the District of Columbia (CSOSA) and the Pretrial Services Agency for the District of Columbia (PSA). CSOSA and PSA stand out as model community supervision agencies due to both their professionalism and their novel, partnership-based approach to reentry and public safety in the District of Columbia.

On any given day, CSOSA is responsible for supervising approximately 12,000 individuals on probation, parole or supervised release, whereas PSA supervises roughly 20,000 defendants. Charged with having to balance issues of public safety with social services and reentry support, the employees of CSOSA and PSA help to enhance the security of everyone that lives, works or visits the District of Columbia,

I extend my gratitude to these public servants for their commitment, compassion and contributions to healthier and safer communities throughout the District of Columbia.

Mr. Speaker, I ask the House of Representatives to join me in acknowledging the impact community corrections professionals have on the quality of life of so many Americans, and recognizing July 12–18 as Pretrial, Probation and Parole Supervision Week 2015.

CONGRATULATING THE LAKE COUNTY VETERANS AND FAMILY SERVICES FOUNDATION ON THE OPENING OF THE NEW DRYHOOTCH DROP-IN CENTER AND OFFICES

HON. ROBERT J. DOLD

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. DOLD. Mr. Speaker, I rise today to recognize the Lake County Veterans and Family Services Foundation (LCVFSF) of Grayslake, Illinois on the opening of their new Dryhootch Drop-In Center and Offices on July 16, 2015. The new center provides a welcoming atmosphere for active service members, veterans, and their families to come and enjoy a cup of coffee, meet others who have shared their military experience, or learn more about the many services available to them through LCVFSF from a veteran peer specialist.

The new facility was made possible through a joint partnership between LCVFSF and Dryhootch of America—a nonprofit organization formed by combat veterans to help veterans in their return home. Dryhootch was envisioned as a place where veterans could gather informally in a drug and alcohol free coffeehouse environment that is safe and comfortable. LCVFSF's goal is to make veterans' transition to civilian life easier and safer by providing support from those who have been there in the past. Their vision is to embed 100 percent free and confidential care for Lake County veterans, reservists, guardsmen, and their families—regardless of their discharge status—into the community through a network of veteran volunteers, veteran peer-to-peer specialists, and critical community resources.

Mr. Speaker, I applaud the LCVFSF Board of Directors and staff on the opening of this new facility to help veterans and families in their time of need. I look forward to working with them in the future as they bring employment and peer support services to the veterans of Illinois' 10th District.

CONGRATULATING BLAIR OAKS HIGH SCHOOL ON ITS BRONZE MEDAL AWARD

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. LUETKEMEYER. Mr. Speaker, I rise today to ask my colleagues to join me in congratulating Blair Oaks High School on its Bronze Medal Award as a top Missouri High School from U.S. News and World Report.

This school's administration, teachers, and students should be commended for all of their hard work throughout the past year and for their commitment to education.

I ask you to join me in recognizing Blair Oaks High School for a job well done.

HONORING MARÍA DEHARO ON THE OCCASION OF HER RETIREMENT AS DIRECTOR OF MIGRANT EDUCATION FOR THE RIVERSIDE COUNTY OFFICE OF EDUCATION

HON. RAUL RUIZ

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. RUIZ. Mr. Speaker, I rise today to congratulate Mrs. Deharo on her well-deserved retirement as Director of Migrant Education, after 35 years of educational service in various capacities in Coachella Valley, especially on behalf of migrant farmworkers families and children in Riverside County.

For more than thirty years, Mrs. Deharo dedicated both her career and her life to improving the lives of hundreds of migrant children and their families. In the face of adversity, and despite a chronic lack of resources, Mrs. Deharo has successfully helped students graduate from high school and attend college, enhancing not only their lives, but their community as a whole.

Mrs. Deharo's involvement with students goes beyond the classroom. She routinely participated in countless student and family events, from after-school tutoring and summer college institutes, to home visits. Mrs. Deharo vision to bring services to students in their communities became a reality when she fought and received funding for a bookmobile, which helps migrant children and families by strengthening their literacy skills through computer training, story time, arts and crafts and free books.

In her long and successful career, Mrs. Deharo, worked as a teacher for ten years at the Coachella Valley Unified School District, she was a School Facilitator for three years, Bilingual Coordinator for three years, and a Principal for 9 years. Mrs. Deharo also served as the Riverside County Office of Education Director of Migrant Education for 11 years. As proof of her achievement and leadership, county offices and district from across the great state of California have requested her assistance with their migrant education programs.

Mrs. Deharo understands firsthand the difficulties that these children face. Having someone like Mrs. Deharo by our side is a blessing and an inspiration to achieve the American Dream.

Mr. Speaker, on behalf of all the thousands of children and families that had the opportunity to work with Mrs. Deharo, and the residents of California's 36th Congressional District, I would like to offer my sincerest thanks and congratulate Mrs. Deharo for her passion and pride for educational excellence. I wish her well in her well-deserved retirement.

HONORING MAINE VETERAN SAMUEL ALDERETE FOR HEROIC SERVICE IN WWII

HON. CHELLIE PINGREE

OF MAINE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Ms. PINGREE. Mr. Speaker, I rise today to congratulate one of my constituents—94-year-old Samuel Alderete of Topsham, Maine—on receiving the prestigious French Legion of Honour and to applaud the courageous actions for which it is being awarded.

As a young Army warrant officer in WWII, Mr. Alderete fought his way across France, Belgium, and Germany with the 980th Field Artillery Battalion. He fought in and survived the infamous Battle of the Bulge. The actions of Mr. Alderete and his brothers in arms, many of whom didn't make it home, directly contributed to the liberation of France. I sincerely thank the French Government for recognizing Mr. Alderete and other American veterans who fought to save the French people.

I am deeply grateful for Mr. Alderete's brave service—both in WWII and his later combat experience in Korea—and also admire him for exhibiting the kind of humility that characterizes the Maine veterans I've had the pleasure of meeting. When asked for any heroic actions or battles he participated in, Mr. Alderete simply replies, ''Nothing heroic. Just soldiered in combat.''

Despite Mr. Alderete's assertion, Mr. Speaker, I find his actions to be quite heroic. He fought with courage and honor at great personal danger, in terrible conditions, far from home. The 70 years that have passed since then have done nothing to diminish his distinguished service. I wholeheartedly congratulate him on receiving this well-deserved honor from the French people.

PERSONAL EXPLANATION

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Ms. ESHOO. Mr. Speaker, I was not present during roll call vote number 434 on July 13, 2015, due to a flight delay.

On roll call vote no. 434 I would have voted YES.

HONORING ALBUQUERQUE SOL

HON. MICHELLE LUJAN GRISHAM

OF NEW MEXICO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Ms. MICHELLE LUJAN GRISHAM of New Mexico. Mr. Speaker, I rise today to commend all those involved in assembling a remarkable and successful professional international soccer match that took place in Albuquerque, New Mexico on Saturday, June 27, 2015 between Lobos de la BUAP of Ascenso, Mexico and Albuquerque Sol Football Club (FC) of the Premier Development League.

The Sore No More Summer Clasico was organized by PinVaca & Associates, LLC, a local sports marketing firm committed to bringing quality sporting events to New Mexico. Under the leadership of New Mexico State Representative Antonio ''Moe'' Maestas, a local company which manufactures and distributes a natural pain relieving gel, ''Sore No More,'' agreed to be the title sponsor.

Professional Club de Futbol Lobos de la Benemerita Universidad Autonoma de Puebla is based in Puebla, Mexico and is a professional team representing the Autonomous University of Puebla. The club conducted a youth

soccer clinic while in Albuquerque and brought several dignitaries from Puebla, including the University President.

Lobos de la BUAP felt right at home, as the club's mascot is also the mascot of the University of New Mexico—where the match was played.

Albuquerque Sol FC was founded in 2013 by Ron Patel, a native of Liverpool, England who played soccer with his local team, grew up playing soccer with his dad in the front yard and watching his national team compete for the European and World Cups. His passion for ''the beautiful game'' has contributed greatly to Albuquerque's growing soccer culture.

The fans in attendance were treated to an exciting match featuring world class play. Both teams demonstrated exceptional defense and attacking offense that ended in a 0–0 draw. This type of competition brings the community together and emphasizes to New Mexico's youth the importance of dedication, teamwork and camaraderie. We look forward to more international friendlies in the future. I thank the sponsors for reaching out to talented soccer clubs around the world and bringing them to New Mexico.

REMEMBERING THE LIFE OF FRANK E. MILLER

HON. MARCY KAPTUR

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Ms. KAPTUR. Mr. Speaker, I rise to remember the life and achievements of Frank E. Miller, who passed from this life at the dawn of Spring, not long after the first ships began arriving after winter's break. Frank was instrumental in the development of Toledo, Ohio's seaport.

Frank Miller was born in Marion, Ohio in 1929 to Carl and Alverta Miller. He married his wife Vera in 1951 and together they raised three children, Gary, Brian and Linda. Frank served in the U.S. Army Corps of Engineers during the Korean War. After coming home, he moved to Toledo, Ohio to work as a crane operator.

In 1962 he became an equipment operator and overseas docks supervisor for the Toledo Lucas County Port Authority. With his 1976 appointment as Director of the Seaport Frank moved the port forward to become a major seaport both domestically and internationally. His claim to fame was as ''the man behind the seaport's 'Big Lucas' gantry crane. He designed and operated the large cargo handling crane for many years and taught many others to do the same.'' Frank was a pathbreaking, early leader for development of Toledo's Port, its cranes and storage capacity, now the busiest on the lower Great Lakes. He mounted the equipment and literally, made the Port hum with activity. He was an enthusiastic, persevering advocate for the Port and its global potential.

Frank was a leader in the Association of Great Lakes Ports and served as a director of the American Association of Port Authorities. He also was a self published author and good humored observer of everyday life.

After leaving his imprimatur on the Toledo Lucas County Port Authority, Frank started his own business, Toledo World Industries located in Toledo's East Side. He was also owner and publisher of Business Venture Magazine until his retirement in the 1990s.

A community leader, Frank Miller also found time to enjoy ''golf, Ohio State University football, Detroit Red Wings hockey and spending time on the docks at the Port Authority.'' Most important was his family and he was a supportive grandpa to his five grandchildren.

To Vera, their children, grandchildren and great-grandchild, we offer our prayers that they find comfort in their memories of a wonderful, devoted man who understood what it takes to create a close family and an enterprising community.

HONORING APHRODITE LOUTAS

HON. MIKE QUIGLEY

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 14, 2015

Mr. QUIGLEY. Mr. Speaker, I rise today to honor the distinguished career of Aphrodite Loutas. After over 28 years of government service, Ms. Loutas will be retiring as Chief of Staff for U.S. Citizenship and Immigration Services.

A Chicago resident since 1972, Ms. Loutas began her outstanding career with Immigration and Naturalization Services in 1987 as a Supervisory Legalization Officer for the Legalization Program. She joined the District in 1990 as Immigration Examiner and became a supervisor in citizenship from 1991 through 1997. In 1997, she was asked to serve in headquarters for a year as Central Region Coordinator for the Headquarters Office of Naturalization Operations.

In 1999, Ms. Loutas was appointed to Special Assistant to the District Director in the Chicago district in and contributed to that capacity until 2005.

Ms. Loutas then served as the Assistant Director for Mission Support, where she worked diligently to secure America's promise as a nation of immigrants and ensure the integrity of our immigration system to constituents. She was named Chief of Staff of the Chicago's 14th District office in 2009. In 2011, she was honored with the United States Citizenship and Immigration Services Director's Heritage Award for her outstanding service and dedication.

I invite my colleagues to join me in honoring Aphrodite Loutas for the work she has done for the 14th District, her community, and this great nation. I thank her for her invaluable service, and wish her well in all future endeavors.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S5021–S5090

Measures Introduced: Twelve bills and one resolution were introduced, as follows: S. 1754–1765, and S. Res. 223. **Page S5061**

Measures Passed:

Adoptive Family Relief Act: Senate passed S. 1300, to amend the section 221 of the Immigration and Nationality Act to provide relief for adoptive families from immigrant visa fees in certain situations. **Page S5057**

Syrian War Crimes Accountability Act: Senate passed S. 756, to require a report on accountability for war crimes and crimes against humanity in Syria. **Pages S5088–89**

Need-Based Educational Aid Act: Senate passed S. 1482, to improve and reauthorize provisions relating to the application of the antitrust laws to the award of need-based educational aid. **Pages S5089–90**

World Refugee Day: Senate agreed to S. Res. 204, recognizing June 20, 2015 as ''World Refugee Day''. **Page S5090**

National Child Awareness Month: Senate agreed to S. Res. 223, designating September 2015 as ''National Child Awareness Month'' to promote awareness of charities benefitting children and youth-serving organizations throughout the United States and recognizing the efforts made by those charities and organizations on behalf of children and youth as critical contributions to the future of the United States. **Page S5090**

Measures Considered:

Every Child Achieves Act—Agreement: Senate continued consideration of S. 1177, to reauthorize the Elementary and Secondary Education Act of 1965 to ensure that every child achieves, taking action on the following amendments proposed thereto: **Pages S5023–59**

Adopted:

By 56 yeas to 40 nays (Vote No. 233), Bennet (for Booker) Amendment No. 2169 (to Amendment No. 2089), to require a State's report card to include information on the graduation rates of homeless children and children in foster care. **Pages S5033–35**

Alexander (for Portman/Coons) Amendment No. 2137 (to Amendment No. 2089), to provide for early college high school and dual or concurrent enrollment opportunities. **Pages S5033–34, S5035**

Bennet Amendment No. 2159 (to Amendment No. 2089), to amend title IV regarding family engagement in education programs. **Pages S5033, S5035**

By a unanimous vote of 97 yeas (Vote No. 234), Isakson/Ayotte Amendment No. 2194 (to Amendment No. 2089), to require local educational agencies to inform parents of any State or local educational agency policy, procedure, or parental right regarding student participation in any mandated assessments for that school year. **Pages S5039–40, S5045**

Bennet Amendment No. 2210 (to Amendment No. 2089), to require States to establish a limit on the aggregate amount of time spent on assessments. **Pages S5033, S5045**

Rejected:

By 45 yeas to 51 nays (Vote No. 232), Alexander (for Scott) Amendment No. 2132 (to Amendment No. 2089), to expand opportunity by allowing Title I funds to follow low-income children. (A unanimous-consent agreement was reached providing that the amendment, having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S5023, S5027–33, S5034**

By 32 yeas to 64 nays (Vote No. 235), Lee/Paul Amendment No. 2162 (to Amendment No. 2089), to amend the Elementary and Secondary Education Act of 1965 relating to parental notification and opt-out of assessments. **Pages S5038–39, S5045–46**

By 52 yeas to 45 nays (Vote No. 236), Murray (for Franken) Amendment No. 2093 (to Amendment No. 2089), to end discrimination based on actual or perceived sexual orientation or gender identity in public schools. (A unanimous-consent agreement was reached providing that the amendment, having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S5023, S5040–45, S5046–47**

Pending:

Alexander/Murray Amendment No. 2089, in the nature of a substitute. **Page S5023**

Murray (for Peters) Amendment No. 2095 (to Amendment No. 2089), to allow local educational agencies to use parent and family engagement funds for financial literacy activities. **Pages S5023, S5049**

Murray (for Warren/Gardner) Amendment No. 2120 (to Amendment No. 2089), to amend section 1111(d) of the Elementary and Secondary Education Act of 1965 regarding the cross-tabulation of student data. **Page S5023**

Alexander (for Kirk) Amendment No. 2161 (to Amendment No. 2089), to ensure that States measure and report on indicators of student access to critical educational resources and identify disparities in such resources. **Page S5023**

A unanimous-consent agreement was reached providing for further consideration of the bill at approximately 9:30 a.m., with the time until the vote on the motion to invoke cloture on Alexander/Murray Amendment No. 2089 (listed above) equally divided in the usual form; and that the filing deadline for all second-degree amendments to Alexander/Murray Amendment No. 2089, and to the bill, be at 10 a.m. **Page S5090**

Hire More Heroes Act—Cloture: Senate began consideration of the motion to proceed to consideration of H.R. 22, to amend the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act. **Page S5057**

A motion was entered to close further debate on the motion to proceed to consideration of the bill, and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur on Thursday, July 16, 2015. **Page S5057**

Subsequently, the motion to proceed was withdrawn. **Page S5057**

Nominations Confirmed: Senate confirmed the following nominations:

Romonia S. Dixon, of Arizona, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring October 6, 2018. **Pages S5088, S5090**

Victoria Ann Hughes, of Virginia, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring October 6, 2016. **Pages S5088, S5090**

Richard Christman, of Kentucky, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring October 6, 2017. **Pages S5088, S5090**

Eric P. Liu, of Washington, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring December 27, 2017. **Pages S5088, S5090**

Dean A. Reuter, of Virginia, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring September 14, 2016. **Pages S5088, S5090**

Shamina Singh, of New York, to be a Member of the Board of Directors of the Corporation for National and Community Service for a term expiring October 6, 2019. **Pages S5088, S5090**

Messages from the House: **Pages S5060–61**

Measures Referred: **Page S5061**

Measures Placed on the Calendar: **Page S5061**

Enrolled Bills Presented: **Page S5061**

Additional Cosponsors: **Pages S5061–63**

Statements on Introduced Bills/Resolutions: **Page S5063**

Additional Statements: **Page S5060**

Amendments Submitted: **Pages S5063–87**

Authorities for Committees to Meet: **Page S5087**

Privileges of the Floor: **Page S5087**

Record Votes: Five record votes were taken today. (Total—236) **Pages S5034–35, S5045–47**

Adjournment: Senate convened at 10 a.m. and adjourned at 7:39 p.m., until 9:30 a.m. on Wednesday, July 15, 2015. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S5090.)

Committee Meetings

(Committees not listed did not meet)

NOMINATIONS

Committee on Armed Services: Committee concluded a hearing to examine the nominations of General Paul J. Selva, USAF, to be Vice Chairman of the Joint Chiefs of Staff, and General Darren W. McDew, USAF, to be commander of the U.S. Transportation Command, after the nominees testified and answered questions in their own behalf.

CURES FOR AMERICA'S MOST DEADLY DISEASES

Committee on Commerce, Science, and Transportation: Committee concluded a hearing to examine unlocking the cures for America's most deadly diseases, after receiving testimony from former Senator Tom Coburn; Christopher Frangione, XPRIZE,

Washington, D.C.; Peter W. Huber, Manhattan Institute, Hanover, New Hampshire; and Keith R. Yamamoto, University of California, San Francisco.

ISLANDED ENERGY SYSTEMS

Committee on Energy and Natural Resources: Committee concluded an oversight hearing to examine islanded energy systems, focusing on energy and infrastructure challenges and opportunities in Alaska, Hawaii and the United States Territories, after receiving testimony from former Representative Robert A. Underwood, University of Guam, Mangilao; Esther P. Kia'aina, Assistant Secretary of the Interior for Insular Areas; Mark Glick, Hawaii Department of Business, Economic Development, and Tourism State Energy Administrator, Honolulu; Hugo V. Hodge, Jr., Virgin Islands Water and Power Authority Executive Director, Charlotte Amalie, on behalf of the Caribbean Electric Utilities Service Corporation; and Meera Kohler, Alaska Village Electric Cooperative, Inc., Anchorage.

CHALLENGES AND OPPORTUNITIES FOR SMALL BUSINESSES ENGAGED IN ENERGY DEVELOPMENT

Committee on Small Business and Entrepreneurship: Committee concluded a hearing to examine challenges and opportunities for small businesses engaged in energy development and energy intensive manufacturing, after receiving testimony from Toby Mack, Energy Equipment and Infrastructure Alliance, Kateri Callahan, The Alliance to Save Energy, and Tyson Slocum, Public Citizen, all of Washington, D.C.; and Neil Aspinwall, SOWELA Technical Community College, Lake Charles, Louisiana.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 15 public bills, H.R. 3048, 3050–3063; and 2 resolutions, H. Con. Res. 62; and H. Res. 361 were introduced. **Pages H5171–72**

Additional Cosponsors: **Pages H5172–73**

Reports Filed: Reports were filed today as follows:

Supplemental report on H.R. 2898, to provide drought relief in the State of California, and for other purposes (H. Rept. 114–197, Part 2);

H.R. 432, to amend the Investment Advisers Act of 1940 to prevent duplicative regulation of advisers of small business investment companies (H. Rept. 114–199);

H.R. 1334, to amend the Securities Exchange Act of 1934 to make the shareholder threshold for registration of savings and loan holding companies the same as for bank holding companies (H. Rept. 114–200);

H.R. 1723, to direct the Securities and Exchange Commission to revise Form S–1 so as to permit smaller reporting companies to use forward incorporation by reference for such form (H. Rept. 114–201);

H.R. 1847, to amend the Securities Exchange Act of 1934 and the Commodity Exchange Act to repeal the indemnification requirements for regulatory authorities to obtain access to swap data required to be provided by swaps entities under such Acts, with an amendment (H. Rept. 114–202, Part 1);

H.R. 2064, to amend certain provisions of the securities laws relating to the treatment of emerging growth companies, with an amendment (H. Rept. 114–203);

H. Res. 362, providing for consideration of the bill (H.R. 2898) to provide drought relief in the State of California, and for other purposes, and providing for consideration of the bill (H.R. 3038) to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund, and for other purposes (H. Rept. 114–204); and

H.R. 3049, making appropriations for Agriculture, Rural Development, Food and Drug Administration, and Related Agencies for the fiscal year ending September 30, 2016, and for other purposes (H. Rept. 114–205). **Page H5171**

Speaker: Read a letter from the Speaker wherein he appointed Representative Curbelo (FL) to act as Speaker pro tempore for today. **Page H5119**

Recess: The House recessed at 10:37 a.m. and reconvened at 12 noon. **Page H5123**

Suspensions: The House agreed to suspend the rules and pass the following measures:

Homes for Heroes Act of 2015: H.R. 251, to transfer the position of Special Assistant for Veterans Affairs in the Department of Housing and Urban Development to the Office of the Secretary, by a ⅔ yea-and-nay vote of 412 yeas to 1 nay, Roll No. 435; **Pages H5130–32, H5150**

Housing Assistance Efficiency Act: H.R. 1047, to authorize private nonprofit organizations to administer permanent housing rental assistance provided through the Continuum of Care Program under the McKinney-Vento Homeless Assistance Act; **Pages H5132–34**

Preservation Enhancement and Savings Opportunity Act of 2015: H.R. 2482, to amend the Low-Income Housing Preservation and Resident Homeownership Act of 1990; **Pages H5134–35**

Private Investment in Housing Act of 2015: H.R. 2997, to authorize the Secretary of Housing and Urban Development to carry out a demonstration program to enter into budget-neutral, performance-based contracts for energy and water conservation improvements for multifamily residential units, by a ⅔ yea-and-nay vote of 395 yeas to 28 nays, Roll No. 436; **Pages H5135–37, H5150–51**

Mortgage Servicing Asset Capital Requirements Act of 2015: H.R. 1408, amended, to require certain Federal banking agencies to conduct a study of the appropriate capital requirements for mortgage servicing assets for nonsystemic banking institutions; **Pages H5137–40**

Agreed to amend the title so as to read "To require certain Federal banking agencies to conduct a study of the appropriate capital requirements for mortgage servicing assets for banking institutions, and for other purposes.". **Page H5140**

SBIC Advisers Relief Act of 2015: H.R. 432, to amend the Investment Advisers Act of 1940 to prevent duplicative regulation of advisers of small business investment companies; **Pages H5140–42**

Holding Company Registration Threshold Equalization Act of 2015: H.R. 1334, to amend the Securities Exchange Act of 1934 to make the shareholder threshold for registration of savings and loan holding companies the same as for bank holding companies; **Pages H5142–44**

Small Company Simple Registration Act of 2015: H.R. 1723, to direct the Securities and Exchange Commission to revise Form S–1 so as to permit smaller reporting companies to use forward incorporation by reference for such form, by a ⅔ yea-and-nay vote of 426 yeas with none voting "nay", Roll No. 437; **Pages H5144–45, H5151–52**

Swap Data Repository and Clearinghouse Indemnification Correction Act of 2015: H.R. 1847, amended, to amend the Securities Exchange Act of 1934 and the Commodity Exchange Act to repeal the indemnification requirements for regulatory authorities to obtain access to swap data required to be provided by swaps entities under such Acts; and **Pages H5145–47**

Improving Access to Capital for Emerging Growth Companies Act: H.R. 2064, amended, to amend certain provisions of the securities laws relating to the treatment of emerging growth companies. **Pages H5147–49**

Suspension—Proceedings Postponed: The House debated the following measure under suspension of the rules. Further proceedings were postponed.

Breast Cancer Awareness Commemorative Coin Act: H.R. 2722, amended, to require the Secretary of the Treasury to mint coins in recognition of the fight against breast cancer. **Pages H5127–30**

Quorum Calls—Votes: Three yea-and-nay votes developed during the proceedings of today and appear on pages H5150, H5150–51 and H5151. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 6:18 p.m.

Committee Meetings

MISCELLANEOUS MEASURE

Committee on Agriculture: Full Committee held a markup on H.R. 1599, the "Safe and Accurate Food Labeling Act of 2015". H.R. 1599 was ordered reported, as amended.

MISCELLANEOUS MEASURE

Committee on Appropriations: Full Committee held a markup on the Homeland Security Appropriations Bill for FY 2016. The Homeland Security Appropriations Bill for FY 2016 was ordered reported, as amended.

OVERSIGHT OF PIPELINE SAFETY, REGULATORY CERTAINTY, AND JOB CREATION ACT OF 2011 AND RELATED ISSUES

Committee on Energy and Commerce: Subcommittee on Energy and Power held a hearing entitled "Oversight of Pipeline Safety, Regulatory Certainty, and Job Creation Act of 2011 and Related Issues". Testimony was heard from Stacy Cummings, Interim Executive Director, Pipeline and Hazardous Materials Safety Administration; Dianne Black, Assistant Director of Planning and Development, County of Santa Barbara, California; and public witnesses.

MEDICARE PART D: MEASURES NEEDED TO STRENGTHEN PROGRAM INTEGRITY

Committee on Energy and Commerce: Subcommittee on Oversight and Investigations held a hearing entitled "Medicare Part D: Measures Needed to Strengthen Program Integrity". Testimony was heard from Ann Maxwell, Assistant Inspector General, Evaluation and Inspections, Office of Inspector General, Department of Health and Human Services; and Shantanu Agrawal, M.D., Deputy Administrator and Director, Center for Program Integrity, Centers for Medicare and Medicaid Services, Department of Health and Human Services.

FED OVERSIGHT: LACK OF TRANSPARENCY AND ACCOUNTABILITY

Committee on Financial Services: Subcommittee on Oversight and Investigations held a hearing entitled "Fed Oversight: Lack of Transparency and Accountability". Testimony was heard from public witnesses.

IMPLICATIONS OF A NUCLEAR AGREEMENT WITH IRAN: PART II

Committee on Foreign Affairs: Full Committee held a hearing entitled "Implications of a Nuclear Agreement with Iran: Part II". Testimony was heard from former Senator Lieberman; and public witnesses.

THE EUROPEAN UNION'S FUTURE

Committee on Foreign Affairs: Subcommittee on Europe, Eurasia, and Emerging Threats held a hearing entitled "The European Union's Future". Testimony was heard from public witnesses.

TUNISIA'S FRAGILE DEMOCRATIC TRANSITION

Committee on Foreign Affairs: Subcommittee on the Middle East and North Africa held a hearing entitled "Tunisia's Fragile Democratic Transition". Testimony was heard from public witnesses.

SECURING THE MARITIME BORDER: THE FUTURE OF CBP AIR AND MARINE

Committee on Homeland Security: Subcommittee on Border and Maritime Security held a hearing entitled "Securing the Maritime Border: The Future of CBP Air and Marine". Testimony was heard from Randolph D. Alles, Assistant Commissioner, Office of Air and Marine, U.S. Customs and Border Protection, Department of Homeland Security; and John Roth, Inspector General, Office of Inspector General, Department of Homeland Security.

WEAPONS OF MASS DESTRUCTION: BOLSTERING DHS TO COMBAT PERSISTENT THREATS TO AMERICA

Committee on Homeland Security: Subcommittee on Cybersecurity, Infrastructure Protection, and Security Technologies; and Subcommittee on Emergency Preparedness, Response, and Communications, held a joint hearing entitled "Weapons of Mass Destruction: Bolstering DHS to Combat Persistent Threats to America". Testimony was heard from the following Department of Homeland Security officials: Reginald Brothers, Under Secretary for Science and Technology; Kathryn Brinsfield, Assistant Secretary, Office of Health Affairs; and Huban Gowadia, Director, Domestic Nuclear Detection Office; and public witnesses.

OVERSIGHT OF THE UNITED STATES DEPARTMENT OF HOMELAND SECURITY

Committee on the Judiciary: Full Committee held a hearing entitled "Oversight of the United States Department of Homeland Security". Testimony was heard from Jeh Johnson, Secretary of Homeland Security, Department of Homeland Security.

THE FUNDAMENTAL ROLE OF SAFE SEISMIC SURVEYING IN OCS ENERGY EXPLORATION AND DEVELOPMENT

Committee on Natural Resources: Subcommittee on Energy and Mineral Resources held a hearing entitled "The Fundamental Role of Safe Seismic Surveying in OCS Energy Exploration and Development". Testimony was heard from Abigail Ross Hopper, Director, Bureau of Ocean Energy Management, Department of the Interior; and public witnesses.

LEGISLATIVE MEASURES

Committee on Natural Resources: Subcommittee on Federal Lands held a hearing on H.R. 2270, the "Billy Frank Jr. Tell Your Story Act"; and a discussion draft of the "Lake Tahoe Restoration Act of 2015". Testimony was heard from Representatives Heck of Washington and Amodei; Leslie Weldon, Deputy Chief, National Forest System, U.S. Forest Service, Department of Agriculture; and a public witness.

CRIMINAL JUSTICE REFORM, PART I

Committee on Oversight and Government Reform: Full Committee held a hearing entitled "Criminal Justice Reform, Part I". Testimony was heard from Senators Cornyn and Booker; Representatives Sensenbrenner and Scott of Virginia; Robert Bentley, Governor, Alabama; and Jack Markell, Governor, Delaware.

WESTERN WATER AND AMERICAN FOOD SECURITY ACT OF 2015; HIGHWAY AND TRANSPORTATION FUNDING ACT OF 2015, PART II

Committee on Rules: Full Committee held a hearing on H.R. 2898, the "Western Water and American Food Security Act of 2015"; and H.R. 3038, the "Highway and Transportation Funding Act of 2015, Part II". The committee granted, by voice vote, a structured rule for H.R. 2898. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Natural Resources. The rule waives all points of order against consideration of the bill. The rule makes in order as original text for purpose of amendment an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–23 and provides that it shall be considered as read. The rule waives all points of order against that amendment in the nature of a substitute. The rule makes in order only those further amendments printed in the Rules Committee report. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in the report. The rule provides one motion to recommit with or without instructions. Additionally, the rule granted a closed rule for H.R. 3038. The rule provides one hour of debate equally divided among and controlled by the chairs and ranking minority members of the Committee on Transportation and Infrastructure and the Committee on Ways and Means. The rule waives all points of order against consideration of the bill. The rule provides that the bill shall be considered as read. The rule waives all points of order against provisions in the bill. The rule provides one motion to recommit. Testimony was heard from Chairman Shuster, Chairman Ryan of Wisconsin, and Representatives McClintock, Huffman, Costa, and Levin.

ADVANCING COMMERCIAL WEATHER DATA: COLLABORATIVE EFFORTS TO IMPROVE FORECASTS, PART II

Committee on Science, Space, and Technology: Subcommittee on Environment held a hearing entitled "Advancing Commercial Weather Data: Collaborative Efforts to Improve Forecasts, Part II". Testimony was heard from Manson Brown, Deputy Administrator, National Oceanic and Atmospheric Administration.

LEGISLATIVE MEASURES

Committee on Veterans' Affairs: Subcommittee on Health held a hearing on H.R. 272, the "Medal of Honor Priority Care Act"; H.R. 353, the "Veterans' Access to Hearing Health Act of 2015"; H.R. 359, the "Veterans Dog Training Therapy Act"; H.R. 421, the "Classified Veterans Access to Care Act"; H.R. 423, the "Newborn Care Improvement Act"; H.R. 1356, the "Women Veterans Access to Quality Care Act of 2015"; H.R. 1688, to amend the Veterans Access, Choice, and Accountability Act of 2014 to designate 20 graduate medical education residency positions specifically for the study of optometry; H.R. 1862, the "Veterans' Credit Protection Act"; H.R. 2464, the "Demanding Accountability for Veterans Act of 2015"; H.R. 2914, the "Build a Better VA Act"; H.R. 2915, the "Female Veteran Suicide Prevention Act"; H.R. 3016, to amend title 38, United States Code, to clarify the role of podiatrists in the Department of Veterans Affairs; and draft legislation to authorize VA major medical facility construction projects for FY 2015 and to make certain improvements in the administration of VA medical facility construction projects. Testimony was heard from Representatives Walberg, Duffy, Stivers, Sinema, Collins of Georgia, Coffman, Denham, Boustany, and Wenstrup; Madhulika Agarwal, M.D., Deputy Under Secretary for Health for Policy and Services, Veterans Health Administration, Department of Veterans Affairs; Janet P. Murphy, Acting Deputy Under Secretary for Health for Operations and Management, Veterans Health Administration, Department of Veterans Affairs; and public witnesses.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, JULY 15, 2015

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Banking, Housing, and Urban Affairs: to hold hearings to examine the Consumer Financial Protection Bureau's semi-annual report to Congress, 10 a.m., SD–538.

Committee on Commerce, Science, and Transportation: Subcommittee on Consumer Protection, Product Safety, Insurance, and Data Security, to hold hearings to examine the governance and integrity of international soccer, 2:30 p.m., SR–253.

Full Committee, business meeting to consider S. 1732, to authorize elements of the Department of Transportation, 4:45 p.m., SR–253.

Committee on Environment and Public Works: to hold hearings to examine the nominations of Kristen Marie Kulinowski, of New York, to be a Member of the Chemical Safety and Hazard Investigation Board for a term of five years, and Gregory Guy Nadeau, of Maine, to be Administrator of the Federal Highway Administration, Department of Transportation, 9:30 a.m., SD–406.

Committee on Foreign Relations: Subcommittee on Western Hemisphere, Transnational Crime, Civilian Security, Democracy, Human Rights, and Global Women's Issues, to hold hearings to examine United States policy towards Haiti prior to the elections; to be immediately followed by a full committee hearing to examine the nominations of Perry L. Holloway, of South Carolina, to be Ambassador to the Co-operative Republic of Guyana, Laura Farnsworth Dogu, of Texas, to be Ambassador to the Republic of Nicaragua, Roberta S. Jacobson, of Maryland, to be Ambassador to the United Mexican States, and Peter F. Mulrean, of Massachusetts, to be Ambassador to the Republic of Haiti, 2:30 p.m., SD–419.

Committee on Homeland Security and Governmental Affairs: to hold hearings to examine securing the border, focusing on understanding threats and strategies for the maritime border, 10 a.m., SD–342.

Committee on Indian Affairs: to hold an oversight hearing to examine juvenile justice in Indian Country, focusing on challenges and promising strategies, 2:15 p.m., SD–628.

Special Committee on Aging: to hold hearings to examine diabetes research, focusing on improving lives on the path to a cure, 2:15 p.m., SD–G50.

House

Committee on Agriculture, Full Committee, hearing on recognizing the continuing contributions of the 1890s Land-Grant Universities on the 125th Anniversary of the passage of the Second Morrill Act, 10 a.m., 1300 Longworth.

Subcommittee on Nutrition, hearing entitled "Past, Present, and Future of SNAP: Developing and Using Evidence-Based Solutions", 1:30 p.m., 1300 Longworth.

Committee on Financial Services, Full Committee, hearing entitled "Monetary Policy and the State of the Economy", 10 a.m., 2128 Rayburn.

Committee on Foreign Affairs, Subcommittee on Asia and the Pacific, hearing entitled "U.S. Economic and Military Alliances in Asia", 1 p.m., 2200 Rayburn.

Committee on Homeland Security, Full Committee, hearing entitled "The Rise of Radicalization: Is the U.S. Government Failing to Counter International and Domestic Terrorism?"; markup on H.R. 2899, the "Countering Violent Extremism Act of 2015", 10 a.m., 311 Cannon.

Committee on the Judiciary, Full Committee, markup on H.R. 1656, the "Secret Service Improvements Act of 2015", 10 a.m., 2141 Rayburn.

Subcommittee on Regulatory Reform, Commercial and Antitrust Law, hearing entitled "Oversight Hearing on the Office of Information and Regulatory Affairs", 3 p.m., 2141 Rayburn.

Committee on Natural Resources, Subcommittee on Energy and Mineral Resources, hearing entitled "The Future of Hydraulic Fracturing on Federally Managed Lands", 10:30 a.m., 1324 Longworth.

Subcommittee on Indian, Insular and Alaska Native Affairs, hearing on H.R. 1028, the "Return of Certain Lands At Fort Wingate to The Original Inhabitants Act"; H.R. 2684, the "Alabama-Coushatta Tribe of Texas Equal and Fair Opportunity Settlement Act"; and H.R. 2733, the "Nevada Native Nations Lands Act", 2 p.m., 1324 Longworth.

Committee on Oversight and Government Reform, Full Committee, hearing entitled "Criminal Justice Reform, Part II", 10 a.m., 2154 Rayburn.

Subcommittee on Information Technology; and Subcommittee on the Interior, joint hearing entitled "Cybersecurity: The Department of the Interior", 2 p.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Full Committee, hearing entitled "Investigating Contract Misconduct at the National Weather Service", 10 a.m., 2318 Rayburn.

Committee on Small Business, Full Committee, hearing entitled "Taking Flight: Small Business Utilization of Unmanned Aircraft", 11 a.m., 2360 Rayburn.

Committee on Veterans' Affairs, Full Committee, markup on H.R. 1994, the "VA Accountability Act of 2015"; hearing entitled "Exploring VA's Administration of Individual Unemployability Benefits", 10 a.m., 334 Cannon.

Committee on Ways and Means, Subcommittee on Human Resources, hearing on welfare reform proposals, specifically involving the reauthorization of the Temporary Assistance for Needy Families (TANF) program, 10:30 a.m., 1100 Longworth.

Joint Meetings

Joint Economic Committee: to hold hearings to examine what lower labor force participation rates tell us about work opportunities and incentives, 2:30 p.m., SD–562.

Next Meeting of the **SENATE**

9:30 a.m., Wednesday, July 15

Senate Chamber

Program for Wednesday: Senate will continue consideration of S. 1177, Every Child Achieves Act. At approximately 10:30 a.m., Senate will vote on the motion to invoke cloture on Alexander/Murray Amendment No. 2089. The filing deadline for all second-degree amendments to Alexander/Murray Amendment No. 2089, and to the bill, is at 10 a.m.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, July 15

House Chamber

Program for Wednesday: Begin consideration of H.R. 2898—Western Water and American Food Security Act (Subject to a Rule).

Extensions of Remarks, as inserted in this issue

HOUSE

Beatty, Joyce, Ohio, E1062
Bishop, Sanford D., Jr., Ga., E1061
Blackburn, Marsha, Tenn., E1061
Coffman, Mike, Colo., E1064
Crenshaw, Ander, Fla., E1060
Dold, Robert J., Ill., E1067
Eshoo, Anna G., Calif., E1067
Farr, Sam, Calif., E1059
Hudson, Richard, N.C., E1060
Johnson, Eddie Bernice, Tex., E1066
Kaptur, Marcy, Ohio, E1068
Kind, Ron, Wisc., E1059
Luetkemeyer, Blaine, Mo., E1060, E1061, E1062, E1063, E1064, E1065, E1065, E1066, E1067
Lujan Grisham, Michelle, N.M., E1067
Neal, Richard E., Mass., E1063
Norton, Eleanor Holmes, The District of Columbia, E1066
Olson, Pete, Tex., E1065
Pallone, Frank, Jr., N.J., E1065
Perry, Scott, Pa., E1062
Pingree, Chellie, Me., E1067
Pitts, Joseph R., Pa., E1060
Poe, Ted, Tex., E1064, E1066
Quigley, Mike, Ill., E1068
Ruiz, Raul, Calif., E1061, E1063, E1067
Sewell, Terri A., Ala., E1059
Slaughter, Louise McIntosh, N.Y., E1063, E1065
Stivers, Steve, Ohio, E1065
Young, David, Iowa, E1062, E1064
Young, Todd C., Ind., E1063

Congressional Record The *Congressional Record* (USPS 087–390). The Periodicals postage is paid at Washington, D.C. The public proceedings of each House of Congress, as reported by the Official Reporters thereof, are printed pursuant to directions of the Joint Committee on Printing as authorized by appropriate provisions of Title 44, United States Code, and published for each day that one or both Houses are in session, excepting very infrequent instances when two or more unusually small consecutive issues are printed one time. ¶Public access to the *Congressional Record* is available online through the U.S. Government Publishing Office, at *www.fdsys.gov*, free of charge to the user. The information is updated online each day the *Congressional Record* is published. For more information, contact the GPO Customer Contact Center, U.S. Government Publishing Office. Phone 202–512–1800, or 866–512–1800 (toll-free). E-Mail, *contactcenter@gpo.gov*. ¶To place an order for any of these products, visit the U.S. Government Online Bookstore at: bookstore.gpo.gov. Mail orders to: Superintendent of Documents, P.O. Box 979050, St. Louis, MO 63197–9000, or phone orders to 866–512–1800 (toll-free), 202–512–1800 (D.C. area), or fax to 202–512–2104. Remit check or money order, made payable to the Superintendent of Documents, or use VISA, MasterCard, Discover, American Express, or GPO Deposit Account. ¶Following each session of Congress, the daily *Congressional Record* is revised, printed, permanently bound and sold by the Superintendent of Documents in individual parts or by sets. ¶With the exception of copyrighted articles, there are no restrictions on the republication of material from the *Congressional Record*.

POSTMASTER: Send address changes to the Superintendent of Documents, *Congressional Record*, U.S. Government Publishing Office, Washington, D.C. 20402, along with the entire mailing label from the last issue received.